Chapter FWD

FOREWORD

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UPPER NAZARETH CODE

Chapter AO

ADOPTING ORDINANCE

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Part 1
PRELIMINARY PROVISIONS

§ 1-101. Short Title. [A.O.]

The short title of this Code of Ordinances prepared and published for the Township of Upper Nazareth shall be the "Township of Upper Nazareth Code of Ordinances."

§ 1-102. Citation of Code of Ordinances. [A.O.]

The Township of Upper Nazareth Code of Ordinances may be cited by section number. The approved short form is "Code." Thus, "Code, § 27-101" refers to § 101 of Chapter 27 of this Code of Ordinances.

§ 1-103. Arrangement of Code. [A.O.]

1. This Code is divided into Chapters which are subdivided as follows:
   - A. Subchapters, identified by capital letters, beginning with a chapter title and number.
   - B. Parts, identified by Arabic numerals, beginning with a part title and number.
   - C. Subparts, identified by Arabic numerals, beginning with a title.
2. The sections of the Code are subdivided into subsections.

§ 1-104. Headings. [A.O.]

Chapter, subchapter, part, subpart, section, and subsection headings contained in the Code may not be deemed to govern, limit, modify or affect the scope, meaning or intent of the Code. The headings of sections, subsections or other divisions of this Code are intended as mere captions to indicate the contents of the section, subsection or other division and shall not be deemed to be taken as titles of such section, subsection or other division, nor as any part of said section, subsection or other division unless expressly so provided.

§ 1-105. Tenses, Gender and Number. [A.O.]

Except as may be otherwise stated in any provision of this Code, the present tense includes the past and future tenses, and the future the present; the masculine gender includes the feminine and neuter, the feminine includes the masculine and neuter, and the neuter includes the masculine and feminine; and the singular includes the plural, and the plural the singular.

§ 1-106. Construction. [A.O.]

1. Except as may be otherwise specifically provided by any provision of this Code, the Statutory Construction Act of 1972, 1 Pa.C.S.A. § 1501 et seq., shall be applied in construing this Code.
2. Effect of Repeal or Expiration of Code Section.
   - A. The repeal of a Code section or ordinance, or its expiration by virtue of any provision contained therein, shall not affect any right accrued or any offense committed, any penalty or punishment incurred, or any proceeding commenced before the repeal took effect or the ordinance expired.
   - B. When any ordinance repealing a former Code section, ordinance, clause or provision shall itself

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be repealed, such repeal shall not be construed to revive such former Code section, ordinance, clause or provision, unless it shall be expressly so provided.

3. Saving Clause. The provisions of this Code, so far as they are the same as those ordinances and regulations in force immediately prior to the adoption of this Code, are intended as a continuation of such ordinances, resolutions and regulations and not as a new enactment. The provisions of this Code shall not affect any suit or prosecution pending or to be instituted to enforce any of the prior ordinances or regulations. Except as specifically stated in this Code or in the ordinance adopting this consolidation, codification and revision of the ordinances and regulations, it is the intention of the Board of Supervisors that no ordinance or regulation of the Township be amended, revised or repealed by implication.

4. Resolutions. The provisions of this Code of Ordinances may contain resolutions, that is, actions of the Board of Supervisors (in written form and designated "resolution") which did not require prior public notice in accordance with the provisions of the Second Class Township Code, 53 P.S. § 65101 et seq., at the time of their passage by the Board of Supervisors. Such "resolutions" are included herein for ease of reference and the Board of Supervisors does not intend by their inclusion herein to require prior public notice before amending, revising or repealing such resolution or resolutions as may have been included herein in the future. It is the intention of the Board of Supervisors that such actions of the Board of Supervisors that may be included in this Code and specifically cited and designated as a resolution shall not become an ordinance (requiring prior public notice before amendment, revision or repeal) by the simple fact of inclusion in this Code.

§ 1-107. Normal Numbering. [A.O.]

1. Chapters. Chapters are numbered sequentially in Arabic throughout this Code.

2. Parts. Parts are numbered sequentially in Arabic throughout this Code.

3. Whenever other divisions are necessary, chapters shall be divided into subchapters, parts into subparts and designated with the chapter or part number followed by a capital letter. For instance, Chapter 1 may be divided into Subchapters 1A and 1B.

4. Sections. Sections are numbered sequentially throughout a chapter and a part such that the first number or numbers is the chapter number, followed by a hyphen, followed by the part number, followed by the section number within the Part. For example, "§ 1-101" designates Chapter 1, Part 1, Section 1. Similarly, "§ 27-305" designates Chapter 27, Part 3, Section 5.

5. Internal Divisions of Sections. Whenever internal divisions are necessary, sections shall be divided into subsections.

§ 1-108. Special Numbering Problems. [A.O.]

1. Addition of New Units Between Existing Units. If it becomes necessary to introduce a new chapter, part or section between existing chapters, parts or sections, the new chapter, part or section shall be designated by the addition of a capital letter suffix or a point number to the preceding chapter, part or section number. Thus, a chapter introduced between Chapters 5 and 6 would be Chapter 5A, and sections in that chapter would be numbered, for instance, "§ 5A-101." If it becomes necessary to introduce a part between existing Parts 5 and 6, the new part would be Part 5A and sections in that part would be numbered, for instance, "§ 5-5A01." A new section introduced between existing §§ 5-105 and 5-106 would be "§ 5-105.1." When a number of new parts or sections have been introduced, the chapter or part shall be renumbered.

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2. If it becomes necessary to introduce a subsection between subsections, for instance, Subsections 5 and 6, the new subsection would be numbered Subsection 5.1.

3. If it becomes necessary to introduce a unit smaller than a subsection between existing units, the entire subsection shall be revised and renumbered.

4. Vacated Numbers. Whenever a number is vacated by a revocation or repeal, the remaining elements in the overall unit shall retain their old numbers until the overall unit is completely revised. Prior to revision, the vacated number may be marked: "(Reserved)."

§ 1-109. Amending Code. [A.O.]

1. All ordinances passed subsequent to the adoption of this Code which amend, repeal or in any way affect this Code shall be numbered in accordance with the numbering system of this Code and printed for inclusion herein. In the case of repealed chapters, parts, sections, subsections or other part or provision hereof, by subsequent ordinance, such repealed portions may be excluded from this Code by omission from reprinted pages affected thereby. The subsequent ordinances as numbered and printed, or omitted in the case of repeal, shall be prima facie evidence of such subsequent ordinances until such time as this Code and subsequent ordinances omitted are readopted as a new Code by the Board of Supervisors.

2. Amendment to any provision of this Code shall be made by specific reference to the chapter, part, section and/or subsection number of this Code in the following language:

   A. Amendment or Revision. "Chapter_____, Part_____, Section _____, Subsection _____, is hereby amended (revised) to read as follows . . . ." The amended or revised provisions may then be set out in full as desired.

   B. Addition. "Chapter _____, Part_____, Section_____, Subsection _____, is hereby amended by the addition of the following . . . ." The new provision shall then be set out in full as desired.

   C. Repeal. "Chapter _____, Part _____, Section_____, Subsection_____, is hereby repealed in its entirety."

3. It is the intention of the Board of Supervisors that the numbering scheme of this Code be adhered to in enacting future ordinances. In the event that any ordinance or other enactment be adopted which does not conform to the numbering system of this Code, it is the intention of the Board of Supervisors that such enactment be renumbered in the process of supplementing, revising or updating this Code to conform to the numbering scheme of this Code. The Board of Supervisors hereby acknowledges and confirms that the numbering scheme herein is for ease of reference and that the renumbering of any enactment when added to this Code shall not in any manner affect the validity of said enactment.

§ 1-110. Altering Code. [A.O.]

It shall be unlawful for any person to change or amend by addition or deletion any part or portion of this Code, or to insert or delete pages or portions thereof, or to alter or tamper with such Code in any manner whatsoever, except by ordinance or resolution or other official act of the Board of Supervisors.

§ 1-111. Penalties. [A.O.]

1. Penalty Where No Penalty Provided. Whenever in this Code or in any ordinance of the Township any act is prohibited or is declared to be unlawful, or whenever in this Code or other ordinance the doing

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of any act is declared to be unlawful, and no specific penalty is provided therefor:

A. Violations of Health, Safety and Welfare Provisions. For violations of ordinances adopting building, housing, property maintenance, health, fire or public safety codes; and for ordinances regulating water services, water pollution, air pollution and noise, the following penalty shall be provided:

(1) Any person, firm or corporation who shall violate any provision of this Part, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

B. Other Violations. All other penalties, except for penalties in Chapter 15, "Motor Vehicles and Traffic" (based on the Vehicle Code, 75 Pa.C.S.A. § 101 et seq.), penalties and ordinances adopted under the authority of the Municipalities Planning Code, 53 P.S. § 10101 et seq., earned income tax ordinances adopted under the Local Tax Enabling Act, 53 P.S. § 6924.101 et seq., and ordinances adopted under the authority of the Sewage Facilities Act, 35 P.S. § 750.1 et seq., should provide, generally:

(1) Any person, partnership or corporation who or which has violated or permitted the violation of any provision of this Part, upon being found liable therefor in a civil enforcement proceeding commenced by the Township, shall pay a judgment of not more than $600 plus all court costs. No judgment shall commence or be imposed, levied or payable until the date of the determination of a violation by a magisterial district judge. If the defendant neither pays nor timely appeals the judgment, the Township may enforce the judgment pursuant to the applicable rules of civil procedure, at which time, in addition to any penalties, the violator shall be liable for any attorney's fees and costs incurred by the Township. Each day that a violation continues or each section of this Part which shall be found to have been violated shall constitute a separate violation.

2. The imposition of a penalty under the provisions of this Code shall not prevent the revocation of any permit or license or the taking of other punitive or remedial action where called for or permitted under the laws of the Commonwealth of Pennsylvania and the United States of America. In addition, the Township may institute injunctive, mandamus or any other appropriate action or proceeding at law or in equity for the enforcement of this Code. Any court of competent jurisdiction shall have the right to issue restraining orders, temporary or permanent injunctions, mandamus, or other appropriate forms of remedy or relief.

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Part 2
APPOINTED OFFICIALS

ARTICLE A.
Township Manager.

§ 1-201. Creation of the Office. [Ord. 95, 5/5/2004, § 1]

The Office of Township Manager is hereby created by the Board of Supervisors of the Township of Upper Nazareth of Northampton County, subject to the right of the Township, by ordinance, at any time to abolish said office.

§ 1-202. Appointment and Removal. [Ord. 95, 5/5/2004, § 2]

1. The Board of Supervisors shall appoint by a majority vote of all members one person to fill the office of Township Manager. The Township Manager shall be employed by the Township for an indefinite term. The Township Manager shall serve in the position of Township Manager until his/her successor is appointed and qualified, unless:

   A. The Township Manager is removed by the Board of Supervisors by a majority vote of the Board of Supervisors.

   B. Submits a written resignation to the Board of Supervisors. At least 30 days before any removal becomes effective, the Board shall furnish the Manager with a written statement setting forth its intention of removal.

§ 1-203. Conditions, Duties, and Responsibilities. [Ord. 95, 5/5/2004, § 3]

Conditions of employment may be unilaterally created and/or abolished by the Board of Supervisors prior to and after the employment of the Township Manager. Said conditions, duties, and responsibilities may be created by motion or resolution of the Board of Supervisors and may include specific requirements contained within a written job description approved by the Board of Supervisors.

§ 1-204. Qualifications. [Ord. 95, 5/5/2004, § 4]

The Township Manager shall be chosen on the basis of his executive, administrative, and leadership qualifications and without regard to race, color, religious creed, ancestry, age, sex, national origin, or past handicap or disability pursuant to the Pennsylvania Human Relations Act, 43 P.S. § 951 et seq., or other applicable local, State or Federal laws.

§ 1-205. Bond. [Ord. 95, 5/5/2004, § 5]

Prior to performing and entering upon his duties, the Township Manager shall give bond to the Township with a bonding company as surety in such sum as is set by resolution by the Board of Supervisors, conditioned for the faithful performance of his duties, premium for said bond to be paid by the Township.

§ 1-206. Compensation. [Ord. 95, 5/5/2004, § 6]

The Township Manager shall receive such compensation as shall be fixed from time to time by resolution of the Board of Supervisors.

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§ 1-207. General Duties. [Ord. 95, 5/5/2004, § 7]

The Township Manager shall have and exercise all powers and duties assigned to Township Manager by statute, and such other authority as may be granted to the Township Manager by the Township Board of Supervisors. The Township Manager shall be charged with the enforcement of all laws and ordinances within the Township insofar as their enforcement is within the powers of the Township, excepting however, that Township Manager shall in no way restrict, infringe, or supplant the authority of the Zoning Officer, Sewage Enforcement Officer, or any other Township employee who are directly responsible to the Board of Supervisors by statute, ordinance or otherwise. The Township Manager shall attend such meetings as may be required by the Board of Supervisors. The Township Manager shall keep the Board of Supervisors informed as to the affairs of the Township, and shall recommend to the Board of Supervisors such actions as may be necessary or expedient for the health, safety, and welfare of the Township.

§ 1-208. Employees. [Ord. 95, 5/5/2004, § 8]

1. The Township Manager shall administer, supervise, and be responsible for the activities of all office and clerical employees of the Township, other than such employees which may be exempted from the supervision of the Township Manager by the Board of Supervisors and which are exempt from supervision by statute or law. The Township Manager shall administer, supervise, and be responsible for the day to day activities of all Code Enforcement Officials, including, but not limited to: Zoning Officers, Building Officials, Code Enforcement Officers, and/or any other employees so directed by the Board of Supervisors. Unless otherwise preempted by the Board of Supervisors, statute or law, the Township Manager shall have charge of all personnel of the Township including Road Department, Parks, and Recreation personnel, and General Administration Departments. The Township Manager shall represent the Board of Supervisors in matters relative to personnel matters and shall issue all work rules and disciplinary notices to personnel on behalf of the Board of Supervisors. The Township Manager shall if requested by the Board of Supervisors make recommendations concerning hiring, firing, promotion, demotion, preparation of job descriptions and discipline of all other personnel related matters under his jurisdiction.

2. In addition, the Township Manager shall administer, supervise, and be responsible for activities of any other Township employees who shall be assigned to his jurisdiction by ordinance or resolution of the Board of Supervisors.

§ 1-209. Planning. [Ord. 95, 5/5/2004, § 9]

The Township Manager shall be responsible for planning, initiating, supervising, completing, costing and documenting all projects and activities of all departments of the Township. The Township Manager shall maintain priorities in accordance with requirements of the Board of Supervisors and shall be responsible to the appropriate committee of the Board of Supervisors for all works and projects of these departments. The Township Manager shall insure that all activities under his jurisdiction are accomplished in a timely and orderly manner.

§ 1-210. Contracts. [Ord. 95, 5/5/2004, § 10]

The Township Manager shall examine all proposed contracts to which the Township may be a party, and may sign on behalf of the Board of Supervisors, with the approval of the Board of Supervisors any contract, excepting where the Board of Supervisors directs that some other officer shall do so. It shall be the duty of the Township Manager to see to it that all terms of any contract to which the Township is a party are fully performed by all parties thereof.

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§ 1-211. Purchases. [Ord. 95, 5/5/2004, § 11]

The Township Manager shall be the general purchasing agent for the Township, and except where specific provision to the contrary is made by law or by the Board of Supervisors, the Township Manager shall make all purchases of supplies, materials and equipment authorized by the Board of Supervisors in the manner prescribed by and subject to the limitations imposed by law. No purchase shall be made or obligation incurred excepting upon authorization by the Board of Supervisors and no expense shall be incurred, except for the purpose for which no prior appropriation is required by law if the amount thereof is not covered by an unexpended appropriation for the purpose.

§ 1-212. Appropriation and Levies. [Ord. 95, 5/5/2004, § 12]

The Township Manager shall see that all money owed the Township is promptly paid, and that proper proceedings are taken for the security and collection of all of the Township's claims.

§ 1-213. Accounts. [Ord. 95, 5/5/2004, § 13]

It shall be the duty of the Township Manager to keep current accounts showing all times and fiscal conditions of the Township, including the current and anticipated expenses, appropriations, cash on hand and anticipated revenue of all municipal funds and accounts, and the Township Manager shall see to the collection of all monies due to the Township.

§ 1-214. Budgeting. [Ord. 95, 5/5/2004, § 14]

It shall be the duty of the Township Manager to prepare the preliminary budget for review and final approval by the Board of Supervisors.

§ 1-215. Inventories/Property. [Ord. 95, 5/5/2004, § 15]

The Township Manager shall keep a current inventory showing all real and personal property of the Township and its location, and shall be responsible for the care and custody of all such property including equipment, buildings, parks, and all other Township property, which is not by law assigned to some other officer or body for care and control.

§ 1-216. Reports and Publications. [Ord. 95, 5/5/2004, § 16]

It shall be the duty of the Township Manager to see to the publication of all notices, ordinances, or other documents required by law to be published, and to prepare or cause to be prepared, all reports which the Township or any of the officials thereof are required by law to prepare.

§ 1-217. Records/Certificates. [Ord. 95, 5/5/2004, § 17]

1. The Township Manager shall prepare and have custody of all municipal records required by law to be kept by the Township and not specifically delegated to some other specific Township officer and/or employee. Where the law makes it the duty of a specific officer to keep or maintain records, the Township Manager shall make available to such officer all necessary clerical assistance for the preparation of such records and shall make available a place for the custody of such records. And in compliance herewith, the Township Manager shall make available to the Clerk, stenographic or clerical assistance necessary for the preparation of the journal of Board of Supervisor proceedings, if required, and the record of ordinances and all other documents which by law the Board of Supervisors and/or the Township is required to keep; and the Township Manager shall perform similar service for

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the Treasurer and/or Secretary in the maintenance of bond registers, and all other records or documents which by law the Treasurer/Secretary or any other employee and/or official is required to keep or prepare.

2. Where the law requires or provides for certification of any records or documents by any officer of the Township, the Township Manager shall cause such records or documents to be properly prepared and presented to such officer for the Township Manager's signature.

§ 1-218. Maps/Plats. [Ord. 95, 5/5/2004, § 18]

The Township Manager shall cause to be kept a complete set of maps and plats showing the location of all Township utilities and/or properties, all streets and other public places, and all lots or parcels of land subdivided according to law.

§ 1-219. Offices. [Ord. 95, 5/5/2004, § 19]

The Township Manager shall maintain an office in the Township Municipal Building and shall spend such time in the performance of his duties as may be required by the Board of Supervisors.

§ 1-220. Absence from the Township. [Ord. 95, 5/5/2004, § 20]

In the event that Township Manager shall be absent from the Township or incapacitated from performing the duties of his position, the Board of Supervisors shall duly appoint such person who shall act as Township Manager during his absence or incapacity.

§ 1-221. Board of Supervisors Powers and Duties. [Ord. 95, 5/5/2004, § 21]

The Board of Supervisors is hereby authorized to delegate in writing to the Township Manager, subject to recall by written notification at any time in accordance with § 1301 of the Second Class Township Code, 53 P.S. § 66301, any of the Township Manager's non-legislative and non-judicial powers and duties.

§ 1-222. Compatibility with Secretary/Treasurer Statutory Offices. [Ord. 95, 5/5/2004, § 22]

In accordance with § 1301 of the Second Class Township Code, 53 P.S. § 66301, it is recognized that the office of Township Manager is compatible with the office of Township Secretary and/or Township Treasurer and/or Township Zoning Officer, and with the approval of the Board of Supervisors the Township Manager shall perform the duties of Township Treasurer and/or Township Secretary and/or Township Zoning Officer, in accordance with law.

§ 1-223. Associations. [Ord. 95, 5/5/2004, § 23]

The Township Manager may also join any association related to the office of Township Manager and such dues and expenses for membership or participation therein shall be paid by the Township.

§ 1-224. Conflict of Interest. [Ord. 95, 5/5/2004, § 24]

The Township Manager shall have no personal interest, direct or indirect, in any contracts with the Township.

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Part 3
BOARDS AND COMMISSIONS

ARTICLE A.
Recreation Board.

§ 1-301. Purpose. [Ord. 172, 7/20/2016[1]]

It is the purpose and intent of this Part to implement the provisions of the Second Class Township Code, specifically 53 P.S. § 67204, providing for the creation of recreation boards to supervise, regulate, equip, and maintain Township-funded recreation programs and facilities, said Recreation Boards having only those powers specifically delegated to it by the Board of Supervisors.

§ 1-302. Creation; Terms. [Ord. 172, 7/20/2016]

The Recreation Board of Upper Nazareth Township is hereby established which shall consist of seven persons to be appointed by the Board of Supervisors to terms of five years or until their successors are appointed, such that the terms of not more than two members expire annually. All persons appointed shall serve their full terms unless voluntarily resigned or removed by the Board of Supervisors for dereliction or neglect of duty.

§ 1-303. Pay; Reimbursement. [Ord. 172, 7/20/2016]

Members shall serve without pay but may be reimbursed by the Township for all expenses incurred in performing their duties, such expense reimbursement shall be authorized in advance.

§ 1-304. Vacancies. [Ord. 172, 7/20/2016]

Vacancies on the Board occurring other than by the expiration of term shall be for the unexpired term filled and shall be filled in the same manner as original appointments.

§ 1-305. Election of Officers. [Ord. 172, 7/20/2016]

The Recreation Board shall elect its own Chairman and Secretary and any other officers deemed necessary to serve for a period of one year.

§ 1-306. Parks and Recreation Director. [Ord. 172, 7/20/2016]

In the event the Board of Supervisors appoints a Parks and Recreation Director, said Parks and Recreation Director shall be the administrative officer responsible for effectuating the policies and program of the Recreation Board, which policies shall be recommended by the Recreation Board and approved by the Board of Supervisors prior to implementation. The Parks and Recreation Director shall report to the Board of Supervisors through the Township Manager. The Parks and Recreation Director will obtain approval of the recreation program and expenditures from the Board of Supervisors prior to the effectuation of any such program and the expenditure of any funds. In the absence of a Parks and Recreation Director, the Township Manager, or the Board of Supervisors' designee, shall assume such duties set forth for the position of Parks and Recreation Director.

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1. **Editor's Note: This ordinance also specifically repealed Ord. 86.**

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§ 1-307. Powers and Duties. [Ord. 172, 7/20/2016]

1. The Recreation Board shall have such powers as delegated to it by the Board of Supervisors relating to the development and operation of recreation systems and parks and playgrounds and shall be subject to any and all restrictions contained in such directives of the Board of Supervisors.

2. The Recreation Board shall provide information and updates to the Parks and Recreation Director on a regular basis pertaining to maintenance of the Township parks, parkways, playgrounds, play fields, swimming pools, bathing places, and indoor and outdoor recreation spaces and facilities.

3. The Recreation Board shall initiate, provide and recommend to the Board of Supervisors, from time to time, plans for the acquisition of, construction of, improvement of, equipping of, operation of, financing of, and regulation of public parks, parkways, playgrounds, play fields, swimming pools, bathing places and indoor and outdoor recreation places and facilities. The Recreation Board may cooperate with one or more municipality for these purposes, subject to compliance with the Intergovernmental Cooperation Act and approval by the Board of Supervisors.

§ 1-308. Rules and Regulations. [Ord. 172, 7/20/2016]

The Recreation Board shall make and alter rules and regulations for its organization and procedure provided that said rules and regulations shall be consistent with the ordinances of the Township of Upper Nazareth, the laws of the Commonwealth of Pennsylvania, and shall be approved by the Board of Supervisors. The Recreation Board may incur expenses only when authorized by and approved by the Board of Supervisors.

§ 1-309. Budgets. [Ord. 172, 7/20/2016]

The Recreation Board, at such times as directed by the Board of Supervisors, shall annually review the proposed budgets for the ensuing year as prepared by the Township Manager to be submitted to and approved by the Board of Supervisors. The Recreation Board shall not in any manner obligate the Township for payment of any municipal funds until the same is appropriated and authorized by the Board of Supervisors.

§ 1-310. Annual Report. [Ord. 172, 7/20/2016]

The Recreation Board shall submit an annual report to the Board of Supervisors including an analysis of the adequacy and effectiveness of community recreation areas, facilities, and leadership as well as such other full and complete reports to the Board of Supervisors at such times as may be designated or requested by the Board. The fiscal year of the Recreation Board shall conform to that of the Township.

§ 1-311. Authority Over Recreation Places. [Ord. 172, 7/20/2016]

The Recreation Board shall exercise the authority granted herein over any recreation place acquired hereafter or now existing, unless otherwise specified by the Board of Supervisors.

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ARTICLE B.
Joint Sewer Board.

§ 1-312. Intention. [Ord. 19, 6/12/1968, § I]

The Board of Supervisors of the Township, Northampton County, Pennsylvania, being the governing body of the said Township hereby signifies its intention and desire to join with the Township of Bethlehem, the City of Easton, the Township of Forks, the Borough of Glendon, the Township of Lower Mt. Bethel, the Township of Lower Nazareth, the Borough of Nazareth, the Township of Palmer, the Township of Plainfield, the Borough of Stockertown, the Borough of Tatamy, the Borough of West Easton, the Township of Williams, the Borough of Wilson, and the Borough of Wind Gap, all of the County of Northampton, State of Pennsylvania, or any of them, or any other municipalities of the said Northampton County to organize a joint sewer board under the provisions of the Township Code for Second Class Townships, Act 1947, July 10, P.L. (1481), § 38, as amended, for the purpose of securing preliminary surveys and estimates and acting generally as an advisory and administrative agency in constructing, improving, maintaining and operating sewers and sewer systems, including trunk line sewers or drains and sewage treatment works.

§ 1-313. Appointing Representative of the Township. [Ord. 19, 6/12/1968, § II]

One representative of this Township shall be appointed on the said joint sewer board by resolution of the Board of Supervisors, and any vacancy in such position may be filled by the Board of Supervisors by resolution from time to time.

§ 1-314. Authorization to Appoint. [Ord. 19, 6/12/1968, § III]

The joint sewer board is authorized to appoint an engineer, a solicitor and such other assistants as are deemed necessary, and the Board of Supervisors may agree to the share of the compensation and costs the Township shall pay to such persons or board, by resolution.

§ 1-315. Effecting the Participation. [Ord. 19, 6/12/1968, § IV]

The Board of Supervisors of the Township are hereby directed to do all such other things necessary or appropriate to effect the participation by the Township in a joint sewer board.

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ARTICLE C.
Planning Commission.

§ 1-321. Creation of Commission. [A.O.]

A Township Planning Commission, to be composed of five members, appointed as provided by law, 53 P.S. § 10202, is hereby created in and for the Township. The Planning Commission shall perform all duties and may exercise all powers conferred by law upon Township planning agencies; provided, the Planning Commission previously created in and for the said Township shall constitute the tenure of any of the members thereof, but any and all vacancies in the said Commission hereafter occurring shall be filled in the manner and for the term provided in the law governing Township planning commissions in effect at the time of the happening of the said vacancy.

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ARTICLE D.
Environmental Advisory Committee.

§ 1-331. Creation of Council. [Ord. No. 185, 6/2/2021]

An advisory council to be known as the "Upper Nazareth Township Environmental Advisory Council" is hereby created and shall continue to function until this subpart is revoked.

§ 1-332. Membership. [Ord. No. 185, 6/2/2021]

The Environmental Advisory Council shall be composed of seven residents of this municipality.

§ 1-333. Appointment Procedures. [Ord. No. 185, 6/2/2021]

1. Council members shall be appointed in accordance with the following procedures:

   A. All council members shall be appointed by the governing body of the political subdivision.

   B. Council members' terms of office shall expire on the first Monday in January following the last year of their term of office.

   C. Duly appointed Council members shall serve a term of three years, except that initial appointments shall be so staggered that the terms of approximately 1/3 of the membership shall expire each year.

   D. Whenever possible, one member shall also be a member of the Upper Nazareth Township Planning Commission, and one member shall also be a member of the Upper Nazareth Township Board of Supervisors.

§ 1-334. Compensation. [Ord. No. 185, 6/2/2021]

Council members shall receive no compensation for their services, but may be reimbursed for the expenses actually and necessarily incurred by them in the performance of their duties.

§ 1-335. Purpose. [Ord. No. 185, 6/2/2021]

The Environmental Advisory Council is to be advisory to and shall coordinate its activities with the Board of Supervisors of Upper Nazareth Township, Upper Nazareth Township staff, Upper Nazareth Township Planning Commission, and other local governmental agencies.

§ 1-336. Designation of Chairperson. [Ord. No. 185, 6/2/2021]

The governing body shall designate the Chairperson of the Council.

§ 1-337. Powers. [Ord. No. 185, 6/2/2021]

1. The Environmental Advisory Council shall have the power to:

   A. Identify environmental problems and recommend plans and programs to the appropriate agencies for the promotion and conservation of the natural resources and for the protection and improvement of the quality of the environment within Upper Nazareth Township.

   B. Make recommendations as to the possible use of open land areas within Upper Nazareth

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Township.

C. Promote a community environmental program.

D. Keep an index of all open areas, publicly or privately owned, including flood-prone areas, swamps and other unique natural areas, for the purpose of obtaining information on the proper use of those areas.

E. Advise the Upper Nazareth Township Planning Commission, Recreation Board, Board of Supervisors, or other relevant appointed bodies within Upper Nazareth Township in the acquisition of both real and personal property by gift, purchase, grant, bequest, easement, devise or lease, in matters dealing with agricultural preservation, open space, and recreation.

§ 1-338. Records of Meetings. [Ord. No. 185, 6/2/2021]

The Environmental Advisory Council shall keep records of its meetings and activities and shall make an annual report, which shall be printed in the annual municipal report or otherwise made publicly available. Minutes of each meeting shall be promptly forwarded to the Board of Supervisors.

§ 1-339. Expenses. [Ord. No. 185, 6/2/2021]

The Board of Supervisors may, from time to time, appropriate funds for the expenses incurred by the Council. Appropriations may be expended for those administrative, professional, clerical, printing, engineering and legal services as may be required. The whole or any part of any funds so appropriated in any year may be placed in a conservation fund and allowed to accumulate from year to year or may be expended in any year.

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Part 4
MUNICIPAL AUTHORITIES

ARTICLE A.
Bushkill-Lower Lehigh Joint Sewer Authority.

§ 1-401. Intention and Desire to Become Member. [Ord. 28, 10/10/1973, § 1]

The Board of Supervisors of this Township signifies the intention and desire of this Township to become a member of Bushkill-Lower Lehigh Joint Sewer Authority (the "Authority"), an existing municipality authority heretofore organized by the Boroughs of Stockertown and Tatamy and the Townships of Bushkin, Palmer and Plainfield, all situate in Northampton County, Pennsylvania (the "Municipalities"), under provisions of the Act of May 2, 1945, P.L. 382, known as the "Municipality Authorities Act of 1945," as amended and supplemented (the "Act").

§ 1-402. Members of Board. [Ord. 28, 10/10/1973, § 2]

The Chairman or Vice Chairman and Secretary or Assistant Secretary of the Board of Supervisors of this Township are [here followed the names and addresses of the first members of the Board of said Authority].

§ 1-403. Making a Request to the Board of the Authority for Consent and Approval to Join. [Ord. 28, 10/10/1973, § 3]

Proper officers of this Township are authorized and directed to make a request to the Board of the Authority for its consent to and approval of the joining of the Authority by this Township, as required by the Act, and to secure the joinder of the Authority in the foregoing application of this Township.

§ 1-404. Making a Request to the Municipal Authorities for Consent and Approval to Join. [Ord. 28, 10/10/1973, § 4]

Proper officers of this Township are authorized and directed to make a request to the municipal authorities of the municipalities for their consent to and approval of the joining of the Authority by this Township, as required by the Act, and to secure the joinder of the municipalities in the foregoing application of this Township.

§ 1-405. Directing to Cause a Notice. [Ord. 28, 10/10/1973, § 5]

Proper officers of this Township are directed to cause a notice of the substance of this Subpart, including the substance of the foregoing application and of the proposed filing of the foregoing application, to be published, as required by the Act.

§ 1-406. Filing of Application. [Ord. 28, 10/10/1973, § 6]

Proper officers of this Township are directed to file the foregoing application, including the necessary joinders, together with the necessary proofs of publication, with the Secretary of the Commonwealth of Pennsylvania and to do all other things necessary or appropriate to effect the joinder of this Township as a member municipality in the Authority, including payment of any fees necessary in connection therewith.

§ 1-407. Number of Members. [Ord. 28, 10/10/1973, § 7]

This Township agrees and determines that the Board of the Authority, upon admission of this Township

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as a member thereof, shall be 12 in number, with two members being appointed by each of the member municipalities in the Authority.

§ 1-408. First Members of the Board. [Ord. 28, 10/10/1973, § 8]

The following named persons are designated as the first members of the Board of the Authority to represent this Township:

Name	Address	Term of Office (from January 1, 1974)
Lewis H. Wolfe	69 Willowdale Avenue, Nazareth, Pennsylvania	1 year
Ralph F. Heckman	206 Rose Inn Avenue, Nazareth, Pennsylvania	2 years

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Part 5
FEES AND CHARGES LAND USE MATTERS

§ 1-501. Whereas Clauses. [Ord. 36, 11/11/1981, § 1]

All "Whereas" clauses are incorporated herein by reference.[2]

§ 1-502. Establishing an Account. [Ord. 36, 11/11/1981, § 2]

The Township hereby establishes an account called the "Upper Nazareth Township Plans and Appeals Account."

§ 1-503. Depositing Sufficient Funds to Cover All Township Administrative Expenses. [Ord. 36, 11/11/1981, § 3]

1. An applicant, requesting approval of subdivision plans under the Subdivision and Land Development Ordinance [Chapter 22] or requiring site plan review by the Planning Commission or requesting a hearing under the Zoning Ordinance [Chapter 27] or other resolution, ordinance of the Township or County or statute of the Commonwealth of Pennsylvania, shall deposit sufficient funds to cover all Township administrative expenses, which shall include, but not be limited to, legal, engineering and other professional consultants, as well as any other expenses and costs, which funds shall be paid in advance, provided, however, that additional funds may be requested by the Secretary of the Planning Commission or Zoning Officer or other proper officials of the Township from time to time based on the anticipated expenditures of the Township with regard to the particular application. The following initial minimum deposits shall be applicable to such applications:

   A. Where the application requires site plan review by the Planning Commission under Township ordinances, the applicant shall deposit the sum of $250 to the Upper Nazareth Township Plans and Appeals Account, and such other funds as may be requested from time to time by the Township.

   B. Where the application requires approval of subdivision plans under the Subdivision and Land Development Resolution or Ordinance [Chapter 22] and no written subdivision agreement is anticipated, the applicant shall deposit the sum of $350 in the Upper Nazareth Township Plans and Appeals Account, and such other funds as may be requested from time to time by the Township.

   C. Where the application requires approval of subdivision plans under the Subdivision and Land Development Resolution or Ordinance [Chapter 22] and a written subdivision agreement is

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2. **"WHEREAS, applications for preliminary and final approval of subdivision plans under the Subdivision and Land Development Ordinance [Chapter 22], and applications for building permits requiring site plan review by the Planning Commission under the Zoning Ordinance [Chapter 27] or other ordinances of the Township, and applications for variances or special exception uses under the zoning laws of the Township, the Township incurs administrative costs and expenses which include legal, engineering and other costs, which administrative costs and expanses should be properly charged to the applicant, rather than charged against the Township General Fund because these administrative and other expenses are incurred as a result of the application, and benefit the applicant, and"WHEREAS, the Township wishes to adopt the following procedure whereby funds can be paid to the Township in anticipation of administrative, professional and other expenses to be incurred by the Township and whereby funds will be deposited in escrow in advance of any application, and"WHEREAS, the Township wishes to make provisions for the party requesting a zoning change pursuant to §§ 609 and 609.1 of the Municipal Planning Code of the Commonwealth of Pennsylvania, to advance the costs which will or may be incurred by the Township, and"WHEREAS, the Township desires to establish a special bank account to be known as the "Upper Nazareth Township Plans and Appeals Account," to which account deposits for costs may be made by an applicant to cover the administrative, professional and other expenses, and"WHEREAS, it is the intention of Upper Nazareth Township to provide for such an account so that there can be an orderly receipt and disbursement of funds for the purposes aforesaid."**

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anticipated, the applicant shall deposit the sum of $1,500 in the Upper Nazareth Township Plans and Appeals Account, and such other funds as may be requested from time to time by the Township.

D. Where the application requests a hearing before the Zoning Hearing Board, the applicant shall deposit the sum of $150 in the Upper Nazareth Township Plans and Appeals Account to cover administrative expenses, at the time of making his application or appeal.

§ 1-504. Hearings Scheduled. [Ord. 36, 11/11/1981, § 4]

No hearing will be scheduled until the deposit of costs is made. If there are postponed or continued hearings and additional sums are required to cover costs and expenses of these extended hearings, the Chairperson of the Zoning Hearing Board is empowered to estimate and assess these additional costs. The applicant or appellant shall be notified, in writing, of the amount of such additional deposit required, and said deposit shall be made prior to the commencement of any hearings, or adjourned hearings, or subsequent hearings on the matter.

§ 1-505. Requesting a Zoning Amendment. [Ord. 36, 11/11/1981, § 5]

An applicant requesting a zoning amendment pursuant to §§ 609 or 609.1 of the Municipalities Planning Code of the Commonwealth of Pennsylvania, 53 P.S. §§ 10609, 10609.1, shall deposit in the Upper Nazareth Township Plans and Appeals Account the sum of $1,000, against which shall be charged all reasonable and necessary administrative costs and any other expenses which may be incurred in the process of considering a request for a zoning ordinance amendment.

§ 1-506. Funds Held in the Plans and Appeals Account. [Ord. 36, 11/11/1981, § 6]

The funds held in the Plans and Appeals Account shall be held in one account; however, a separate ledger shall be kept for each deposit, which ledger shall be available for inspection by the applicant (i.e., developer, appellant, etc.) the Supervisors and the public, as to payments and disbursements; provided, however, that the administrative expenses chargeable to the application in question shall be charged against the account of the applicant, and the checks shall thereafter be drawn from the Plans and Appeals Account, which payments shall be approved in the same manner as those made from the General Funds.

§ 1-507. Costs of Processing Application. [Ord. 36, 11/11/1981, § 7]

In addition to the aforesaid sums, the applicant shall also pay to the Township's General Fund such amounts as are required to cover the costs of processing a particular application as determined from time to time by the Township Supervisors as Township fees.

§ 1-508. Surplus Funds. [Ord. 36, 11/11/1981, § 8]

After final disposition of the application, any surplus funds held on account of any particular applicant shall be returned to the applicant upon direction of the Township Treasurer.

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Part 6
NAZARETH AREA COUNCIL OF GOVERNMENTS

§ 1-601. Agreeing to Intergovernmentally Cooperate with the Association of Municipal Subdivisions. [Ord. 77, 3/14/2000, § 1]

The Township of Upper Nazareth hereby agrees to intergovernmentally cooperate with the Association of Municipal Subdivisions consisting of the Township of Bushkill, Lower Nazareth, and Upper Nazareth, and the Boroughs of Nazareth, Bath, Stockertown, and Tatamy, and the Nazareth Area School District known as the Nazareth Area Council of Governments. No function, power, or responsibility of the Township will be exercised through intergovernmental cooperation with other member municipalities unless ratified by resolution of the Board of Supervisors of the Township.

§ 1-602. Agreeing to Participate in the Nazareth Area Council of Governments. [Ord. 77, 3/14/2000, § 2]

The Township hereby agrees to participate in the Nazareth Area Council of Governments for a term commencing with the adoption of this Part.

§ 1-603. Entering into an Agreement. [Ord. 77, 3/14/2000, § 3]

The Township shall enter into an agreement entitled Articles of Agreement, a copy of which is attached hereto and incorporated herein by reference,[3] with the intent and effect that the Township shall be bound by the agreement.

§ 1-604. Execution of the Agreement. [Ord. 77, 3/14/2000, § 4]

The Chairman of the Board of Supervisors and Secretary are hereby authorized and directed on behalf of the Township to execute and deliver the agreement.

§ 1-605. Authorized Actions. [Ord. 77, 3/14/2000, § 5]

The Board of Supervisors of Upper Nazareth Township is hereby authorized to take such other action as may be necessary or appropriate to carry out the purposes of this Part and said Articles of Agreement.

§ 1-606. Purpose. [Ord. 77, 3/14/2000, § 6]

The purpose of the Nazareth Area Council of Governments is to meet at regular intervals to foster a cooperative effort to resolve regional problems, to determine policies, and to formulate plans and programs to meet regional needs. Additional purposes shall include: communication and coordination, policies and priorities, community facilities and services, forum, regional spokesman, staff support, and regional review. The Board of Supervisors of the Township hereby pledges its support of such purposes and further agrees to jointly cooperate in the exercise or in the performance of its respective governmental functions, powers, and responsibilities. This pledge of intergovernmental cooperation without further amendment to the within Part shall not be construed as to delegate or transfer any functions, powers or responsibilities to another local government or to the Nazareth Area Council of Governments.

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3. Editor's Note: The referenced Articles of Agreement are on file in the Township office.

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§ 1-607. Pledging Expenditures. [Ord. 77, 3/14/2000, § 7]

The Township pledges such expenditures as shall be required under the Articles of Agreement.

§ 1-608. Conformance. [Ord. 77, 3/14/2000, § 8]

The Nazareth Area Council of Governments shall in all respects conform with the requirements of the Intergovernmental Cooperation Act, 53 Pa.C.S.A. § 2301 et seq., and the School Code, 24 P.S. § 5-522.

§ 1-609. Powers and Authorities. [Ord. 77, 3/14/2000, § 8]

The Nazareth Area Council of Governments powers and authorities shall be limited by the Articles of Agreement incorporated herein and made a part hereof.[4]

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4. Editor's Note: The referenced Articles of Agreement are on file in the Township office.

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Part 7
OFFICIAL MAP

§ 1-701. Adoption of Map. [Ord. 176, 6/20/2018, § 1]

The Official Map for Upper Nazareth Township, Northampton County, Pennsylvania, attached hereto, made a part hereof,[5] and marked Exhibit "A," draft dated May 29, 2018, is hereby adopted as the Official Map of Upper Nazareth Township pursuant to Article IV of the Municipalities Planning Code.[6]

§ 1-702. Amendments to Map. [Ord. 176, 6/20/2018, § 2]

After adoption of the Official Map, all streets, watercourses, public grounds and elements listed in Section 401 of the Municipalities Planning Code[7] on final, recorded plats which are subsequently approved as provided by the Pennsylvania Municipalities Planning Code shall be deemed amendments to the Official Map.

§ 1-703. Adoption of Street, Street Lines and Public Lands. [Ord. 176, 6/20/2018, § 3]

The adoption of any street, street lines, or other public lands as part of the Official Map shall not, in and of itself, constitute or be deemed to constitute the opening or establishment of any street nor the taking or acceptance of any land, nor shall it obligate the Township to improve or maintain any such street or land. The adoption of the proposed watercourses or public grounds as part of the Official Map shall not, in and of itself, constitute or be deemed to constitute the taking or acceptance of any land of the Township.

§ 1-704. Restriction on Permits; Special Encroachment Permit. [Ord. 176, 6/20/2018, § 4]

For the purposes of preserving the integrity of the Official Map of Upper Nazareth Township, no permit shall be issued for any building within the lines of any street, watercourse, or public ground shown or laid out on the Official Map. No person shall recover any damages for the taking for public use of any building or improvements constructed within the lines of any street, watercourse, or public ground after the same shall have been included in the Official Map, and any such building or improvement shall be removed at the expense of the owner. However, when the property of which the reserved location forms a part, cannot yield a reasonable return to the owner unless a permit shall be granted, the owner may apply to the Board of Supervisors of Upper Nazareth Township for the grant of a special encroachment permit to build. Before granting any special encroachment permit authorized in this section, the Board of Supervisors may submit the application for special encroachment permit to the Upper Nazareth Township Planning Commission and allow the Planning Commission 30 days for review and comment and shall give public notice and hold a public hearing at which all parties in interest shall have an opportunity to be heard. A refusal by the Board of Supervisors to grant the special encroachment permit applied for may be appealed by the applicant to the Zoning Hearing Board in the same manner, and within the same time limitation, as provided by the Pennsylvania Municipalities Planning Code.[8]

§ 1-705. Incorporation of Identified Features and Classifications. [Ord. 176, 6/20/2018, § 5]

Adoption of the Official Map shall be subject to the provisions of Section 406 of the Pennsylvania

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5. **Editor's Note: Said map is on file in the Township offices.**
6. **Editor's Note: See 53 P.S. § 10401 et seq.**
7. **Editor's Note: See 53 P.S. § 10401.**
8. **Editor's Note: See 53 P.S. § 10101 et seq.**

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Municipalities Planning Code,[9] providing for time limitations on reservation for future taking, and Section 407 of the Pennsylvania Municipalities Planning Code,[10] providing for release of damage claims or compensation. The Official Map provides designation of parcel boundaries, public recreation land, Township facilities, public paths, existing roadway classifications, and proposed greenways to be reserved for open space. Subsequent to the adoption of this Part and Official Map, any subdivision or land development plan submitted to the Township must incorporate the identified features and classifications.

9. **Editor's Note: See 53 P.S. § 10406.**

10. **Editor's Note: See 53 P.S. § 10407.**

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UPPER NAZARETH CODE

Chapter 2

ANIMALS

Part 1
ANIMAL NUISANCES

§ 2-101. Intent and Purposes.
§ 2-102. Noise Disturbance.
§ 2-103. Accumulation of Excrement.
§ 2-104. Exceptions.
§ 2-105. Penalties.

Part 2
Livestock Running At Large

§ 2-201. Definitions.
§ 2-202. Running at Large Prohibited.
§ 2-203. Fence Required.
§ 2-204. Violations and Penalties.
§ 2-205. Severability.
§ 2-206. Repealer.
§ 2-207. When Effective.

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Part 1
ANIMAL NUISANCES

§ 2-101. Intent and Purposes. [Ord. 76, 8/9/2000, § 1]

The Township, finding that excessive levels of sound and the accumulation of animal excrement are detrimental to the physical, mental and social well being of the people as well as to their comfort, living conditions, general welfare and safety and being, therefore, a public health and welfare hazard, and public nuisance, hereby declares it to be necessary to provide for the greater control and more effective regulation of excessive sound and the sources of excessive sound and the accumulation of animal excrement within the Township.

§ 2-102. Noise Disturbance. [Ord. 76, 8/9/2000, § 2]

It shall be illegal within the Township for any person or persons to own or possess any unattended animal or bird which makes any noise continuously and/or incessantly for a period of 10 minutes or makes such noise intermittently for more than 30 minutes, or for any person or persons to own, possess, harbor or control any attended animal or bird which makes any noise continuously for a period of 10 minutes and intermittently for a period of 30 minutes to the annoyance or disturbance of any person, any time of the day or night, regardless of whether the animal or bird is physically situated in or upon private property, said noise being declared a nuisance.

§ 2-103. Accumulation of Excrement. [Ord. 76, 8/9/2000, § 3; as amended by Ord. No. 198, 11/6/2024]

1. Every person or persons who is the owner, keeper, custodian or in possession of any domestic animal shall remove immediately any feces or vomit deposited by their domestic animal on any public street or street right-of-way, including the sidewalk and any other part of the street right-of-way, such as the grass boulevard between the street and the private property line; on any public park land or public use area; or on any property of which such person is not the owner or tenant. The feces or vomit deposited by a domestic animal on any property other than that of the owner or custodian of the domestic animal shall be collected by the owner or custodian in a sanitary fashion and disposed of by any accepted sanitary method.

2. It shall be illegal within the Township for any person or persons to accumulate or allow the accumulation of animal excrement on their property such that said accumulation poses a hazard to the health, safety and welfare of neighboring property owners or produces an offensive odor that crosses the property lines of any person or persons, said accumulation or odor being declared a nuisance. Every person or persons who is the owner, keeper, custodian, or in possession of any animal on any privately owned lands shall cause all feces from that animal to be collected at least twice a week, and then disposed of by any accepted sanitary method, in such manner as not to permit the presence of fly larvae.

§ 2-104. Exceptions. [Ord. 76, 8/9/2000, § 4]

This Part shall not be deemed to prohibit or otherwise declare unlawful any agricultural operations protected from nuisance suits by the Protection of Agricultural Operations from Nuisance Suits and Ordinances Act, Act of June 10, 1982, P.L. 454, No. 133, 3 P.S. § 951 et seq., as amended.

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§ 2-105. Penalties. [Ord. 76, 8/9/2000, § 5; as amended by A.O.]

Any person, firm or corporation who shall violate any provision of this Part, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

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Part 2
Livestock Running At Large

§ 2-201. Definitions. [Ord. No. 186, 10/6/2021]

As used in this Part 2, the following words shall have the meanings indicated:

LIVESTOCK — Includes all horses, cattle, jacks, burros, sheep, goats, llamas, alpacas, mules, bulls, steer, cows, swine, calves, poultry, ostriches, emus and ratites.

§ 2-202. Running at Large Prohibited. [Ord. No. 186, 10/6/2021]

No owner, custodian or keeper of livestock shall permit such livestock to run at large at any time either upon any of the streets or public grounds in the Township, or upon the property of any person other than the owner, custodian or keeper of such livestock, unless such livestock is accompanied by and under the immediate control of such owner, custodian or keeper.

§ 2-203. Fence Required. [Ord. No. 186, 10/6/2021]

Every owner, custodian or keeper of premises upon which livestock is housed, stabled, penned or otherwise kept shall erect and maintain around the area in which such livestock is permitted to graze unattended a fence with appropriate locks and closing devices of sufficient height and strength to restrain the livestock from leaving such area.

§ 2-204. Violations and Penalties. [Ord. No. 186, 10/6/2021]

This Part 2 shall be enforced by the Upper Nazareth Township Police Department. This Part 2 regulates building, housing, property, maintenance, health, public safety, and therefore shall be enforced pursuant to the Second Class Township Code, 53 P.S. § 66601(c.1)(2), as a summary offense. Enforcement thereof may be by an action before a District Justice in the same manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure. The Township Solicitor may assume charge of the prosecution without the consent of the District Attorney as required under Pennsylvania Rules of Criminal Procedure No. 83(c) (relating to trial and summary cases). The Board of Supervisors hereby sets a criminal fine not to exceed $1,000 per violation, and the costs of prosecution, and, in default of payment of such fine and costs of prosecution, to undergo imprisonment of not more than 10 days; provided, further, that each day's continuance of a violation shall constitute a separate event.

§ 2-205. Severability. [Ord. No. 186, 10/6/2021]

In the event any of the provisions of this Part 2 are declared unconstitutional, unlawful, or unenforceable by a court of competent jurisdiction, such declaration shall not affect the validity of the remainder of this Part 2 or of this Part 2 as a whole, but shall continue in full force and effect as though the unconstitutional, unlawful, or unenforceable provision had never been a part hereof.

§ 2-206. Repealer. [Ord. No. 186, 10/6/2021]

All ordinances or parts of ordinances conflicting or inconsistent with the provisions of this Part 2 hereby adopted are hereby repealed.

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§ 2-207. When Effective. [Ord. No. 186, 10/6/2021]

This Part 2 shall become effective five days after enactment.

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Chapter 3

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UPPER NAZARETH CODE

Chapter 5

CODE ENFORCEMENT

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Part 1
UNIFORM CONSTRUCTION CODE

§ 5-101. Election to Enforce. [Ord. 98, 6/2/2004, § 1]

The Township hereby elects to administer and enforce the provisions of the Pennsylvania Construction Code Act, Act 45 of 1999, 35 P.S. § 7210.101 et seq., as amended from time to time, and its regulations.

§ 5-102. Adoption. [Ord. 98, 6/2/2004, § 2]

The Uniform Construction Code, contained in 34 Pa. Code, Chapters 401-405, as amended from time to time, is hereby adopted and incorporated herein by reference as the municipal building code of the Township.

§ 5-103. Administration and Enforcement. [Ord. 98, 6/2/2004, § 3]

1. Administration and enforcement of the Code within the Township shall be undertaken in any of the following ways as determined by the Board of Supervisors of the Township from time to time by resolution:

   A. By the designation of an employee of the Township to serve as the municipal code official to act on behalf of the Township.

   B. By the retention of one or more construction code officials or third-party agencies to act on behalf of the Township.

   C. By agreement with one or more other municipalities for the joint administration and enforcement of this Act through an intermunicipal agreement.

   D. By entering into a contract with another municipality for the administration and enforcement of this Act on behalf of the Township.

   E. By entering into an agreement with the Pennsylvania Department of Labor and Industry for plan review, inspections, and enforcement of structures other than one-family or two-family dwelling units and utility and miscellaneous use structures.

§ 5-104. Board of Appeals. [Ord. 98, 6/2/2004, § 4]

Board of Appeals shall be established by resolution of the Board of Supervisors of the Township in conformity with the requirements of the relevant provisions of the Code, as amended from time to time, and for the purposes set forth therein. If at any time enforcement and administration is undertaken jointly with one or more other municipalities, the Board of Appeals shall be established by joint action of the participating municipalities.

§ 5-105. Savings Clause. [Ord. 98, 6/2/2004, § 5]

1. All building code ordinances or portions of ordinances which were adopted by the Township on or before July 1, 1999, and which equal or exceed the requirements of the Code shall continue in full force and effect until such time as such provisions fail to equal or exceed the minimum requirements of the Code, as amended from time to time.

2. All building code ordinances or portions of ordinances which are in effect as of the effective date of

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this Part and whose requirements are less than the minimum requirements of the Code are hereby amended to conform with the comparable provisions of the Code.

3. All relevant ordinances, regulations and policies of the Township not governed by the Code shall remain in full force and effect.

§ 5-106. Fees. [Ord. 98, 6/2/2004, § 6]

Fees assessable by the Township for the administration and enforcement undertaken pursuant to this Part and the Code shall be established by the Board of Supervisors by resolution from time to time.

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Part 2
PROPERTY MAINTENANCE STANDARDS

§ 5-201. Short Title. [Ord. 54, 11/9/1988, § 1]

This Part shall be known and cited as the "Upper Nazareth Township Property Maintenance Ordinance."

§ 5-202. Preface. [Ord. 54, 11/9/1988, § 2]

Recognizing the need within the Township to establish certain minimum health and safety requirements for those building structures, or properties which are used or associated with human occupancy, this Part hereby establishes standards which the Township considers to be fair and effective in meeting those minimum requirements.

§ 5-203. Authority. [Ord. 54, 11/9/1988, § 3]

This Part, and the objective leading to its enactment, are authorized by the following provisions of the Township, to wit.

§ 5-204. Definitions. [Ord. 54, 11/9/1988, § 4]

For the purpose of this Part, unless otherwise expressly used, the following terns shall have the meanings herein respectively indicated:

BUILDING — A roofed structure, enclosed by one or more walls, for the shelter, housing, storage or enclosure of persons, goods, materials, equipment or animals.

COURT — An open and unoccupied space on a lot enclosed in at least three sides by the walls of a building.

GARBAGE — Putrescible animal and vegetable wastes resulting from the handling, preparation, cooking and consumption of food.

INFESTATION — The presence of insects, rodents, vermin and/or other pests.

LOT — Plot, tracts, premises or parcel of land, with or without improvements thereto.

OWNER — Any person or persons, jointly or severally, firm, corporation or other entity which, either by conveyance or inheritance or otherwise, is vested with the title to a lot and/or improvements thereto or who retains the exclusive control of such a lot and/or improvements thereto in his capacity as a legal representative, such as an administrator, trustee, executor, etc.

REFUSE — All putrescible and nonputrescible solid wastes, including garbage, rubbish, ashes, dead animals and market and industrial wastes.

UNOCCUPIED HAZARD — Any building, or part thereof, or man-made structure, which remains unoccupied for a period of more than six months, with either doors, windows, or other openings broken, removed, boarded or sealed up, or any building under construction upon which little or no construction work has been performed for a period of more than six months.

YARD — Any open the space on the same lot with a building and, for the most part, unobstructed from the ground up.

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§ 5-205. Application. [Ord. 54, 11/9/1988, § 5]

The provisions of this Part shall supplement local laws, ordinances or regulations existing in the Township or those of the Commonwealth of Pennsylvania. Where a provision of this Part is found to be in conflict with any provision of a local law, ordinance, code or regulation, or those of the Commonwealth of Pennsylvania, the provision which is more restrictive or which establishes the higher standard shall prevail.

§ 5-206. Buildings and Structures. [Ord. 54, 11/9/1988, § 6]

1. No owner of any buildings or structures shall fail to take steps and perform such maintenance thereto, as may be required from time to time, to ensure the property is safe, sound, sanitary and secure and does not present a health and/or safety hazard to surrounding properties and to the general populace.

2. No owner of any unoccupied building or structure shall fail to take such steps as may be required to insure that these are securely closed so as to prohibit and deter entry thereto and to insure that no health and/or safety hazard, or thereat thereof, is precipitated due to a lack of maintenance or due to neglect.

3. Owners of any and all unoccupied buildings and/or structures which, through neglect, have deteriorated to the point of being classified as unoccupied hazards, and therefore constitute a severe health and/or safety hazard, shall, upon direction of the Township, remove, or cause the removal of, the building and/or structure.

§ 5-207. Yards, Open Lots, Parking Areas. [Ord. 54, 11/9/1988, § 7]

1. No person shall permit:

   A. Fences and/or minor structures to be constructed and maintained so as to present a safety or health hazard to persons and/or property.

   B. The development or accumulation of hazards, rodent harborage and/or infestation upon yards, courts, lots.

   C. Objectionable materials to accumulate or to be blown about the surrounding neighborhood.

   D. Wells, cesspools, cisterns, sedimentation ponds, stormwater management impoundment ponds and/or ponds of a similar nature to remain open without adequate fencing or barricades to prevent access thereto by the general public.

   E. The accumulation of heavy undergrowth and/or vegetation which would impair the health and/or safety of the neighborhood; nor shall they permit any trees, plants or shrubbery, or any portion thereof, to grow on their property and which constitute a safety hazard to pedestrian and/or vehicular traffic.

§ 5-208. Infestation, Prevention and Correction. [Ord. 54, 11/9/1988, § 8]

1. Grounds, buildings and structures shall be maintained free of insect, vermin and rodent harborage and infestation.

2. Adequate sanitary facilities and methods shall be used for the collection, storage, handling and disposal of garbage and refuse.

3. Where there exists rodent and vermin infestation, corrective measures shall be undertaken by the

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property owner and/or occupant to alleviate the existing problem(s), to include screening, extermination and/or garbage and refuse control. Methods employed for extermination shall conform with generally accepted practices.

§ 5-209. Miscellaneous Provisions. [Ord. 54, 11/9/1988, § 9]

1. No person shall permit:

   A. Roof, surface and/or sanitary drainage to create a safety and/or health hazard to persons and/or property by reason of inadequate and/or improper construction, or maintenance or manner of discharge.

   B. Roof gutters, drains, or any other system designed and constructed to transport stormwater to be discharged into any sanitary sewage system and/or any part thereof.

   C. Any refrigerator, freezer and/or other similar storage chest to be discarded, abandoned or stored in any place or location which is accessible to the general public without first completely removing any and all locking devices and/or doors.

§ 5-210. Responsibilities of Occupants. [Ord. 54, 11/9/1988, § 10]

Any occupant of a premises shall be responsible for compliance with the provisions of this Part with respect to the maintenance of that part of the premises which he occupies and/or controls in a safe, sound and/or sanitary condition pursuant to the terms of the contract/agreement under which he exercises occupancy and/or control thereof.

§ 5-211. Responsibilities of Owners. [Ord. 54, 11/9/1988, § 11]

1. Owner of premises shall comply with the provisions of this Part as well as operators and occupants, regardless of any agreements between owners and operators or occupants as to which party shall assume such responsibility.

2. In instances where en occupant is responsible, or shares responsibility with an owner, for the existence of one or more violations of this Part, said occupant shall be deemed responsible and treated as if an owner within the true intent and meaning of this Part.

§ 5-212. Inspection. [Ord. 54, 11/9/1988, § 12]

The Board of Supervisors may, or may cause through an authorized representative of the Township, entry onto premises for the purpose of inspection of any and all premises, properties, buildings and/or structures located within the Township for ascertaining the existence of violations. In those matters where the nature of an alleged violation is such that an inspection of the interior of a building or structure is necessitated, prior arrangements must be made with the owner, or his agent, to secure access thereof.

§ 5-213. Notice to Comply. [Ord. 54, 11/9/1988, § 13]

1. If noncompliance with the provisions of this Part constitutes a nuisance, or if any condition, structure, or improvement poses a threat to the health, safety, or welfare of the public, the (Enforcement Officer) shall issue a written notice to be served by registered or certified mail upon the owner of said premises, or, if the owner's whereabouts or identity be unknown, by posting the notice conspicuously upon the offending premises.

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2. Said notice shall specify the condition or structure or improvement complaint of, and shall require the owner to commence to remove or otherwise rectify the condition or structure or improvement as set forth therein within 10 days of mailing or posting of said notice and thereafter to fully comply with requirements of the notice within a reasonable time.

§ 5-214. Authority to Remedy Noncompliance. [Ord. 54, 11/9/1988, § 14]

If the owner does not comply with the notice to abate the conditions, within the time limit prescribed, the Township shall have the authority to take measures to correct the conditions and collect the cost of such corrections plus 10% of all costs. The Township, in such event and pursuant to its statutory or otherwise authorized police powers, shall have the right and power to enter upon the offending premises to accomplish the foregoing.

§ 5-215. Hearing. [Ord. 54, 11/9/1988, § 15]

1. Any person aggrieved by the decision of the (Enforcement Officer/Inspector) may request and then be granted a hearing before the Board Supervisors; provided, he files with the Board of Supervisors within 10 days after notice of the (Enforcement Officer's/Inspector's) decision, a written petition requesting such hearing and setting forth a brief statement of the grounds therefor. The hearing shall commence not later than 30 days after the date on which the petition was filed unless postponed for sufficient cause.

2. After such hearing, the Board of Supervisors shall sustain, modify or overrule the action of the (Enforcement Officer/Inspector).

§ 5-216. Penalties. [Ord. 54, 11/9/1988, § 16; as amended by A.O.]

Any person, firm or corporation who shall violate any provision of this Part, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

§ 5-217. Owners Severally Responsible. [Ord. 54, 11/9/1988, § 17]

If the premises are owned by more than one owner, each owner shall severally be subject to prosecution for the violation of this Part.

§ 5-218. Remedies Not Mutually Exclusive. [Ord. 54, 11/9/1988, § 18]

The remedies provided herein for the enforcement of this Part, or any remedy provided by law, shall not be deemed mutually exclusive; rather, they may be employed simultaneously or consecutively at the option of the Board of Supervisors.

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Chapter 6

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Chapter 7

FIRE PREVENTION AND FIRE PROTECTION

Part 1
OPEN FIRES AND BURNING

§ 7-101. Definitions.
§ 7-102. Regulations.
§ 7-103. Exceptions.
§ 7-104. Recreational Fires.
§ 7-105. Enforcement.
§ 7-106. Penalties.

Part 2
FIRE LOSS INSURANCE PROCEEDS ESCROW

§ 7-201. Appointment of Designated Officer.
§ 7-202. Payment of Claim.
§ 7-203. Issuance of Certificate.
§ 7-204. Adoption of Procedures and Regulations; Fees.
§ 7-205. Penalties.

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Part 1
OPEN FIRES AND BURNING[11]

§ 7-101. Definitions. [Ord. No. 191, 7/19/2023]

As used in this Part, the following terms shall have the meanings indicated, unless a different meaning clearly appears from the context.

OPEN FIRE — A fire in which any material is burned in the open or in a receptacle other than that permitted as a recreational fire.

PERSON — Any individual, partnership, association, corporation, department, bureau, agency or other legal entity.

RECREATIONAL FIRE — Any deliberately set and maintained fire ignited in the confines of a fire ring, chiminea, fireplace, or patio wood-burning device, and used for the sole purpose of recreational pleasure. All recreational fires must include a metal covering device/ spark arrester over the entire surface of the containerized fire.

REFUSE — Garbage, rubbish and trade waste.

§ 7-102. Regulations. [Ord. No. 191, 7/19/2023]

1. Within the Township limits, all open fires are prohibited and without limitation no person shall:

   A. Burn in a burn barrel.

   B. Burn any material that can be recycled.

   C. Burn any waste or refuse.

   D. Burn any construction or demolition waste.

   E. Burn any hazardous materials.

   F. Burn any trees, brush, stumps, leaves, and grass clippings.

   G. Burn any materials upon any public land, street, curb, gutter, or sidewalk or on the ice of any lake, pond, stream, or body of water.

   H. Discharge fireworks other than those permitted by state statute or Upper Nazareth Township ordinance.

§ 7-103. Exceptions. [Ord. No. 191, 7/19/2023]

1. Subject to the following exceptions:

   A. Open fires may be set in the performance of an official duty of any public officer if the fire is necessary for:

      (1) The prevention of a fire hazard which cannot be abated by other means.

      (2) The protection of public health.

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11. Editor's Note: Former Part 1, Open Fires And Burning, Was Repealed 7/19/2023 By Ord. No. 191. Prior History Includes Ord. No. 58.

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(3) Training authorized by the Fire Chief.

B. Normal agricultural operations as defined by the Pennsylvania Right to Farm Act, Act of June 10, 1982, P.L. 454, No. 133, 3 P.S. § 951-957.

§ 7-104. Recreational Fires. [Ord. No. 191, 7/19/2023]

1. Recreational fires are permitted only in accordance with all of the following provisions:

A. Any recreational fire shall not be used to burn waste or any recyclable material.

B. Only clean, dry wood (paper may be used in the lighting of the fire only) shall be used in the recreational fire.

C. The recreational fire shall be located at least 25 feet away from the nearest structure which is not on the same property as the recreational fire.

D. The recreational fire shall be located at least 10 feet away from the nearest structure which is on the same property as the recreational fire.

E. All recreational fires shall be supervised by the owner or occupant of the property or a responsible adult until the fire is extinguished and is cold. The person shall have readily available for use such fire extinguishing equipment as may be necessary for total control of the fire.

§ 7-105. Enforcement. [Ord. No. 191, 7/19/2023]

The Board of Supervisors of Upper Nazareth Township hereby appoints the Upper Nazareth Township Police Department to enforce the provisions of this Part.

§ 7-106. Penalties. [Ord. No. 191, 7/19/2023]

Any person, firm or corporation who shall violate any provision of this Part, upon conviction thereof in an action brought before a Magisterial District Judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

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Part 2
FIRE LOSS INSURANCE PROCEEDS ESCROW

§ 7-201. Appointment of Designated Officer. [Ord. 146, 5/18/2011, § 1]

The Zoning Officer or such official's designee is hereby appointed as the designated officer who is authorized to carry out all responsibilities and duties stated herein.

§ 7-202. Payment of Claim. [Ord. 146, 5/18/2011, § 2]

No insurance company, association or exchange (hereinafter the "insuring agent") doing business in the Commonwealth of Pennsylvania shall pay a claim of a named insured for fire damage to a structure located within the Township of Upper Nazareth (hereinafter the "Township") where the amount recoverable for the fire loss to the structure under all policies exceeds $7,500, unless the insuring agent is furnished by the Township Treasurer with a Township certificate pursuant to § 508(b) of Act 98 of 1992, 40 P.S. § 638, as amended, and unless there is compliance with § 508(c) and (d) of Act 98 of 1992, as amended, and the provisions of this Part.

§ 7-203. Issuance of Certificate. [Ord. 146, 5/18/2011, § 3]

1. Where pursuant to § 508(b)(1)(i) of Act 98 of 1992, 40 P.S. § 638, as amended, the Township Treasurer issues a certificate indicating that there are no delinquent taxes, assessments, penalties or user charges against real property, the insuring agent shall pay the claim of the named insured, provided however, that if the loss agreed upon by the named insured and the insuring agent equals or exceeds 60% of the aggregate limits of liability on all fire policies covering the building or other structure, the following procedures must be followed:

   A. The insuring agent shall transfer from the insurance proceeds to the designated officer of the Township in the aggregate of $2,000 for each $15,000 of a claim and for each fraction of that amount of a claim, this section to be applied such that if the claim is $15,000 or less, the amount transferred to the Township shall be $2,000.

   B. If at the time of a proof of loss agreed to between the named insured and the insuring agent, the named insured has submitted a contractor's signed estimate of the costs of removing, repairing or securing the building or other structure, the insuring agent shall transfer to the Township from the insurance proceeds the amount specified in the estimate.

   C. The transfer of proceeds shall be on pro rata basis by all companies, associations or exchanges insuring the building or other structure.

   D. After the transfer, the named insured may submit a contractor's signed estimate of the costs of removing, repairing or securing the building or other structure, and the designated officer shall return the amount of the funds transferred to the Township in excess of the estimate to the named insured, if the Township has not commenced to remove, repair or secure the building or other structure.

   E. Upon receipt of proceeds under this section, the Township shall do the following:

      (1) The designated officer shall place the fund to be used solely as security against the total costs of removing, repairing, or securing the building or structure which are incurred by the Township, and payment of any delinquent taxes, assessments, penalties or user charges against the real property. Such costs shall include without limitation, any engineering,

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legal or administrative costs incurred by the Township in connection with such removal, repair or securing of the building or any proceedings related thereto.

(2) It is the obligation of the insuring agent when transferring the proceeds to provide the Township with the name and address of the named insured. Upon receipt of the transferred funds and the name and address of the named insured, the designated officer shall contact the named insured, certify that the proceeds have been received by the Township and notify the named insured that the procedures under this subsection shall be followed.

(3) When repairs, removal or securing of the building or other structure have been completed in accordance with all applicable regulations and orders of the Township and the required proof of such completion received by the designated officer, and if the Township has not incurred any costs for repairs, removal or securing, the fund shall be returned to the named insured. If the Township has incurred costs for repairs, removal or securing of the building or other structure, the costs shall be paid from the fund and if excess funds remain, the Township shall transfer the remaining funds to the named insured.

(4) To the extent that interest is earned on proceeds held by the Township pursuant to this section, and not returned to the named insured, such interest shall belong to the Township. To the extent that proceeds are returned to the named insured, interest earned on such proceeds shall be distributed to the named insured at the time that the proceeds are returned.

(5) From the fund established the designated officer shall pay any outstanding delinquent taxes, assessments, penalties or user charges against the subject real property and provide an account thereof to the named insured, prior to making any other disbursements from the account.

F. Nothing in this section shall be construed to limit the ability of the Township to recover any deficiency. Furthermore, nothing in this subsection shall be construed to prohibit the Township and the named insured from entering into an agreement that permits the transfer of funds to the named insured if some other reasonable disposition of the damaged property has been negotiated.

§ 7-204. Adoption of Procedures and Regulations; Fees. [Ord. 146, 5/18/2011, § 4]

The Board of Supervisors may by resolution adopt procedures and regulations to implement Act 98 of 1992, 40 P.S. § 638, as amended, and this Part and may by resolution fix reasonable fees to be charged for Township activities or services provided pursuant to Act 98 of 1992, as amended, and this Part; including, but not limited to, issuance of certificates and bills, performance of inspections, and opening separate fund accounts.

§ 7-205. Penalties. [Ord. 146, 5/18/2011, § 5; as amended by A.O.]

Any owner of property, any named insured or any insuring agent who violates this Part, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

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Chapter 9

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Chapter 10

HEALTH AND SAFETY

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Part 1
GRASS, WEEDS AND OTHER VEGETATION

§ 10-101. Purpose. [Ord. 145, 3/16/2011, § 1]

The Township hereby finds that tall grass and weeds can have a blighting effect on neighborhoods and can provide a refuge for vermin and insects. The purpose of this Part is to secure the public health, safety and general welfare of the residents and property owners of the Township by regulating the height of grass, weeds and other vegetation that are allowed to grow in certain areas of the Township in which more people reside in close proximity.

§ 10-102. Unlawful Acts. [Ord. 145, 3/16/2011, § 2]

No person, firm, corporation, partnership, association of persons, owner, agent, occupant or anyone having supervision or control of any lot, tract, parcel of land or portion thereof, occupied or unoccupied, improved or unimproved, within the Township limits of the Township to suffer or permit grass, weeds or other vegetation that is uncultivated to grow to a height greater than 12 inches or weeds less than 12 inches as defined herein.

§ 10-103. Definitions. [Ord. 145, 3/16/2011, § 3]

GRASS — Any type of grass or weed, but not including crops grown as a source of income, including, but not limited to, corn, hay, oats or barley.

LAND USED FOR AGRICULTURE — The use of land for tilling of the soil, the raising of field or tree crops or animal husbandry, as a source of income.

OCCUPANT — Any person who has the right to occupy a parcel of property due to being an owner or pursuant to a verbal or written lease or rental agreement with the owner or agent thereof.

OWNER — Any person holding an ownership interest in land in the Township upon which there is tall grass growing. For the purposes of this Part, the name and address listed on the Northampton County Property Tax Records shall indicate ownership interest in such land.

WEEDS — Includes Canada thistle (Circium arvense), dodders (any species of Cuscuta), mustards (charlock, black mustard and Indian mustard, species of Brassica or Sinapis), wild carrot (Daucus carota), bindweed (Convolvulus arvensis), perennial sowthistle (Sonchus arvensis), hoary alyssum (Berteroa incana), ragweed (ambrosia elatior 1) and poison ivy (rhus toxicodendron), poison sumac (toxicodendron vernix) or other plants that are recognized by the Pennsylvania Bureau of Plant Industry and listed as noxious weeds and/or any of which is in the opinion of the Township Board of Supervisors.

§ 10-104. Land Subject to Regulations. [Ord. 145, 3/16/2011, § 4]

1. This Part applies to the following:

   A. On lots in a platted subdivision with a structure, it shall be unlawful to suffer or permit grass, weeds or other vegetation in excess of 12 inches in height or weeds as defined herein to grow uncultivated within 100 feet adjacent to and along any improved street within the limits of the Township or within 100 feet on either side of any lot that is occupied as a residence or business.

   B. Vacant lots within platted residential subdivisions in which buildings have been erected upon 75% or more of the lots:

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(1) It shall be unlawful to suffer or permit grass, weeds or other vegetation in excess of 12 inches in height or weeds as defined herein on the remaining undeveloped lots.

C. On an undeveloped lot:

(1) It shall be unlawful to suffer or permit grass, weeds or other vegetation in excess of 12 inches in height or weeds as defined herein.

D. On a developed lot:

(1) It shall be unlawful to suffer or permit grass, weeds or other vegetation in excess of 12 inches in height or weeds as defined herein.

E. On parcels of land along improved streets in common usage within the Township:

(1) It shall be unlawful to suffer or permit grass, weeds or other vegetation in excess of 12 inches in height or weeds as defined herein to a depth of 150 feet or the depth of the ownership, whichever is the lesser.

2. This Part does not apply to:

A. Land used for agricultural purposes including weeds in fields devoted to growing any small grain crops such as wheat, oats, barley, or rye.

B. Portions of lots used for flower gardens, shrubbery or vegetable gardens.

C. Naturally wooded areas, regulated wetlands or meadows.

D. Areas designated as undeveloped open space.

§ 10-105. Duty to Cut Grass. [Ord. 145, 3/16/2011, § 5]

The owner and/or occupants of land to which this Part applies shall not allow tall grass or weeds to grow over 12 inches in height throughout the growing season including grass and weeds in the right-of-way, and it shall be the duty of all owners and/or occupants of land located in the Township either to cut or otherwise destroy by lawful means all tall grass and weeds, as defined in this Part, which are growing upon said property, before they reach a seed-bearing stage, and to prevent weeds from perpetuating themselves and from becoming a detriment to public health.

§ 10-106. Enforcement. [Ord. 145, 3/16/2011, § 6]

1. Enforcement Officer. This Part shall be enforced by such persons who shall be so designated by the Township Board of Supervisors, who shall for purposes of this Part be the Township Code Enforcement Officer (CEO).

2. Violation Notice. After inspection, if any property is determined to be in violation of this Part, a violation notice will be sent to the property owner and/or occupant of said premises in which the name appears in the Northampton County Tax Records for the Township. The notice shall be sent by first class mail and/or by posting a copy of said notice on the property. The notice shall give the property owner 10 days from the date of the notice to cut the tall grass and weeds.

3. Failure to Comply. If the tall grass and weeds are not cut within 10 days from the date of issuance of notice, the CEO shall have the authority to file with the local magisterial district judge a citation in violation of this Part and seek fines and penalties as prescribed by this Part and authorized in the

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Second Class Township Code, 53 P.S. § 65101 et seq.

§ 10-107. Penalties. [Ord. 145, 3/16/2011, § 7; as amended by A.O.]

1. Any violation of this Part, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and counsel fees incurred in enforcement and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

2. Repeat offenses under this Part shall be subject to increased fines as provided by this section. As used in this section, "repeat offense" means a second (or any subsequent) violation of the same requirement or provision of this Part within any one-year period for which the person admits responsibility or is determined to be responsible. The increased fine for a repeat offense under this Part shall be as follows:

   A. The fine for any offense which is a first repeat offense shall be not less than $500 nor more than $1,000 plus costs and counsel fees incurred in enforcement and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days.

   B. The fine for any offense which is a second repeat offense shall be not less than $750 nor more than $1,000 plus costs and counsel fees incurred in enforcement and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days.

   C. The fine for any offense which is a third repeat offense or any subsequent repeat offense shall be not less than $1,000 plus costs and counsel fees incurred in enforcement and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days.

3. Each day on which any violation of this Part occurs or continues shall constitute a separate offense subject to separate sanctions.

§ 10-108. Declaration of Nuisance. [Ord. 145, 3/16/2011, § 8]

Any violation of any provisions of this section is hereby declared to be a nuisance and detrimental to the health, safety, cleanliness, comfort and welfare of the inhabitants of the Township. The Township may seek enforcement of the Part by suit for injunction, damages, or other appropriate legal action, as against a nuisance, at the expense of the property owner including reasonable attorney fees. Any such civil action shall be in addition to any prosecution for violations of this Part as a summary offense, commencement of any such proceedings shall not constitute an election of remedies.

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Part 2
OUTDOOR SOLID FUEL BURNING DEVICES

§ 10-201. Applicability. [Ord. 141, 2/3/2010, § 1]

1. This Part applies to all outdoor burning furnaces, boilers and appliances within the Township.

   A. This Part does not apply to grilling or cooking using charcoal, wood, propane or natural gas in cooking or grilling appliances.

   B. This Part does not apply to burning in a stove, furnace, fireplace or other heating device within a building or structure used for human or animal habitation.

   C. This Part does not apply to the use of propane, acetylene, natural gas, gasoline or kerosene in a device intended for heating, construction or maintenance activities.

§ 10-202. Purpose and Scope. [Ord. 141, 2/3/2010, § 2]

Whereas the Board of Supervisors of the Township has determined that air pollution from outdoor solid fuel burning appliance may be detrimental to the health, comfort, living conditions, welfare, and safety of the citizens of the Township, it is hereby declared to be the policy of the Township to safeguard the citizens of the Township from such air pollution.

§ 10-203. Definitions. [Ord. 141, 2/3/2010, § 3]

APCA — Air Pollution Control Act, 35 P.S. § 4001 et seq.

CHIMNEY — Any vertical structure enclosing a flue or flues that carry off smoke or exhaust from a solid fuel fired outdoor heating appliance.

CLEAN WOOD — Natural wood that has no paint, stains, or other types of coatings, and natural wood that has not been treated with, including, but not limited to, copper chromium arsenate, creosote, or pentachlorophenol.

EPA OWHH PHASE 1 PROGRAM OR PHASE 2 PROGRAM — EPA OWHH (Outdoor Wood-fired Hydronic Heater Program) Phase 1 Program or Phase 2 Program administered by the United States Environmental Protection Agency.

EPA OWHH PHASE 1 PROGRAM QUALIFIED MODEL — An outdoor wood-fired hydronic heater that has been EPA OWHH Phase 1 Program qualified. The model has met the EPA OWHH Phase 1 emission level and has the proper qualifying label and hangtag.

EPA OWHH PHASE 2 PROGRAM QUALIFIED MODEL — An outdoor wood-fired hydronic heater that has been EPA OWHH Phase 2 Program qualified. The model has met the EPA OWHH Phase 2 emission level and has the proper qualifying label and hangtag.

OUTDOOR SOLID FUEL BURNING APPLIANCE — Any equipment, device or apparatus which is installed, affixed or situated outdoors, and not situate within a building intended for habitation by humans or domestic animals, which is used for the primary purpose of combustion of fuel to produce heat for energy as a heating system, or component thereof, which provides heat or hot water to the principal structure, to a structure used for human or animal habitation, or to any accessory uses or structures, including, but not limited to, greenhouses, conservatories and swimming pools.

§ 10-204. Materials That May Not Be Burned. [Ord. 141, 2/3/2010, § 4]

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1. Unless specific written approval has been obtained from the Pennsylvania Department of Environmental Protection (DEP), the following materials may not be burned in the Township under any circumstances:

   A. Rubbish or garbage including, but not limited to, food wastes, food wraps, packaging, animal carcasses, paint or painted materials, furniture, composite shingles, demolition debris or other household or business wastes, including paper waste and cardboard.

   B. Waste oil or other oily wastes except used oil burned in a heating device for energy recovery subject to applicable Pennsylvania DEP regulations.

   C. Asphalt and products containing asphalt.

   D. Driftwood, treated or painted wood including but not limited to plywood, composite wood products or other wood products that are painted, varnished or treated with preservatives.

   E. Any plastic material including, but not limited to, nylon, PVC, ABS, polystyrene or urethane foam, and synthetic fabrics, films and containers.

   F. Rubber including tires and synthetic rubber-like products.

   G. Any material that is not recommended for burning by the manufacturer of the appliance.

§ 10-205. Regulations for Existing Outdoor Solid Fuel Burning Furnaces or Appliances. [Ord. 141, 2/3/2010, § 5]

1. All owners/operators of existing outdoor solid fuel burning appliances shall apply for a permit for the appliance in accordance with the permit requirements contained in §§ 10-206, Subsections 1A, C-J, K-M, O, 10-207, Subsections 2 and 5 hereof within 60 days of the adoption of this Part.

2. Any existing noncomplying outdoor solid fuel burning appliance shall be removed, replaced or modified within a period of 60 days from the receipt of a notice generated from the Zoning Officer.

3. Upon application for a waiver of the provisions of this Part, the Board of Supervisors may grant a waiver of the provisions of this Part after public hearing pursuant to the Local Agency Law, 2 Pa.C.S.A. § 751 et seq., provided that all of the following findings be made, where relevant:

   A. There are unique physical circumstances or conditions (including irregularity, narrowness or shallowness of lot size or shape, or exceptional topographical or other physical conditions peculiar to the particular property) and that an unnecessary hardship is due to such conditions and not the circumstances or conditions generally created in the neighborhood in which the property is located.

   B. Because of such physical circumstances or conditions, a waiver is necessary to enable the reasonable use of the property.

   C. Such unnecessary hardship has not been created by the property owner.

   D. The waiver, if authorized, will not alter the essential character of the neighborhood nor substantially or permanently impair the appropriate use or development of adjacent property, nor be detrimental to the public welfare.

   E. The waiver, if authorized, will represent the minimum variance that will afford relief and will represent the least modification possible of the provisions of this Part.

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F. In granting a waiver, the Board may attach such reasonable conditions and safeguards as it may deem necessary to implement the purposes of this Part.

§ 10-206. Specific Requirements. [Ord. 141, 2/3/2010, § 6]

1. An outdoor solid fuel burning appliance may be used in the Township only in accordance with the following provisions:

A. An appliance shall not be used to burn any of the prohibited materials listed in § 10-204 of this Part. Only firewood, clean wood, untreated lumber, or pellets made from clean wood are permitted to be burned in any outdoor fuel burning appliance. Home heating oil, natural gas, propane or that complies with all applicable sulfur limits and is used as a starter or supplemental fuel for dual fired outdoor wood burning boilers shall also be permitted.

B. Any outdoor solid fuel burning appliance shall be located on a lot of not less than one acre and shall be not less than 75 feet from any lot line and shall not be less than 100 feet from any home not served by the unit.

C. Chimney Location. No person shall install an outdoor solid fuel burning appliance unless it has a permanent attached stack with a minimum stack height of 20 feet above the ground that also extends at least two feet above the highest peak of any residence not served by the unit located less than 150 feet from the outdoor solid fuel burning appliance, unless the unit is Phase 2 compliant and manufacturer recommends a lower stack height.

D. Appliances.

(1) All appliances shall comply with emissions standards as required for outdoor solid fuel burning appliances, as promulgated by the Environmental Protection Agency (EPA). For purposes of this Part, all emission standards currently required by the EPA are hereby adopted by reference as well as any amendments or modifications made to them hereafter.

(2) No person shall use or operate a new or existing outdoor solid fuel burning appliance unless it complies with all existing state and local regulations. Some regulations of this commonwealth that could apply include:

(a) 25 Pa. Code § 121.7-Prohibition of Air Pollution.

(b) 25 Pa. Code § 123.1-Fugitive Emissions.

(c) 25 Pa. Code § 123.31-Odor Emissions.

(d) 25 Pa. Code § 123.41-Visible Emissions.

(e) Section 8 of the APCA, 35 P.S. § 4008-Unlawful Conduct.

(f) Section 13 of the APCA, 35 P.S. § 4013-Public Nuisances.

E. All appliances shall be installed, operated and maintained in strict compliance with the manufacturer's instructions and guidelines for the said appliance. In the event that a conflict arises between the manufacturer's instructions and regulations and the regulations contained in this Part, the stricter instructions or regulations shall apply.

F. All ashes or waste must be disposed of in a manner approved by the Township and/or the Pennsylvania Department of Environmental Protection.

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G. All appliances shall be used for the sole purpose of furnishing heat and/or hot water to a dwelling or other structure pursuant to a permit issued hereunder, including residential swimming pools and accessory structures.

H. In the event that the appliance is damaged more than 50%, or it is physically deteriorated or decayed, the said appliance must be removed and/or replaced with a new unit within 60 days of the date that notice is received from the Township. In such event, all provisions of this Part, including, but not limited to, permitting procedures, shall be complied with.

I. Outdoor solid fuel burning appliances shall be operated only between October 1 and May 1 each year.

J. Spark Arrestors. All outdoor solid fuel burning appliances shall be equipped with properly functioning spark arrestors if recommended by the manufacturer.

K. Catalytic Converter. All outdoor solid fuel burning appliances installed within the Township must be equipped with a properly functioning catalytic converter, unless the unit is EPA OWHH Phase 1 or Phase 2 Program qualified.

L. The use of such outdoor solid fuel burning appliances must follow all operating instructions supplied by the manufacturer.

M. Installation of any electrical or plumbing apparatus or device used in connection with the operation of an exterior furnace shall be in conformity with all applicable electrical and plumbing codes and, in the absence of such code, in conformity with the manufacturer's installation specifications.

N. Standards for installation shall also require the outdoor solid fuel burning appliances be installed upon a nominal six-inch thick permanent, reinforced cement pad in such dimension so as to allow a minimum of six inches of exposed surface area along the perimeter of the pad.

O. All stacks or chimneys must be so constructed to withstand high winds or other related elements.

P. The use of lighter fluids, gasoline or chemicals to start the furnace is prohibited.

Q. The appliance shall be located on a property with due consideration to prevailing wind conditions.

R. No person shall use or operate a new or existing outdoor solid fuel burning appliance unless it complies with all existing state and local regulations. Some regulations of this commonwealth that could apply include:

(1) 25 Pa. Code § 121.7-Prohibition of Air Pollution.

(2) 25 Pa. Code § 123.1-Fugitive Emissions.

(3) 25 Pa. Code § 123.31-Odor Emissions.

(4) 25 Pa. Code § 123.41-Visible Emissions.

(5) Section 8 of the APCA, 35 P.S. § 4008-Unlawful Conduct.

(6) Section 13 of the APCA, 35 P.S. § 4013-Public Nuisances.

S. All outdoor solid fuel burning appliances shall comply with the standards of EPA OWHH Phase

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2 Program qualified models or better.

§ 10-207. Permits. [Ord. 141, 2/3/2010, § 7]

1. No person shall install, start or maintain any outdoor solid fuel burning appliance without first obtaining a permit issued by the Township.

2. Before a permit can be issued hereunder, an inspection of the proposed installation shall be required. In addition, a site plan is required showing the location of the proposed appliance on the property, location and height of all existing structures on the adjacent properties, and distances from the appliance to existing structures on the adjacent properties. The manufacturer's specifications and instructions shall also be furnished to the Township before a permit can be issued.

3. A permit can only be issued if all requirements contained in this Part are strictly complied with.

4. Any violation of the aforementioned conditions shall be deemed a violation of this Part. Any violation of this Part or the issued permit shall void the permit.

5. The fee for a permit shall be determined by resolution of the Board of Supervisors from time to time pursuant to the Township Fee Schedule.

6. Any resident who has secured a permit to install an outdoor solid fuel burning appliance in so doing will also be agreeing to allow the Township Zoning Officer or any person designated by the Township to inspect the furnace if a written complaint is filed relative to a violation of this Part.

7. Upon sale or transfer of any real property, the permit shall be renewed. All appliances not meeting applicable emissions, setback or chimney height requirements shall be replaced, removed or rendered permanently inoperable.

§ 10-208. Liability. [Ord. 141, 2/3/2010, § 8]

A person utilizing or maintaining an outdoor solid fuel burning appliance shall be responsible for all fire suppression costs and any other liability resulting from damage caused by a fire.

§ 10-209. Right of Entry and Inspection. [Ord. 141, 2/3/2010, § 9]

Any authorized officer, agent, employee or representative of the Township Zoning and Codes Office, who presents credentials, may inspect any property for the purpose of ascertaining compliance with the provisions of this Part. If access is denied, access shall be obtained pursuant to applicable laws of the Commonwealth of Pennsylvania.

§ 10-210. Enforcement and Penalties. [Ord. 141, 2/3/2010, § 10; as amended by A.O.]

1. The Zoning and Codes Officer of the Township is authorized to enforce any provisions of this Part.

2. Any person, firm or corporation who shall violate any provision of this Part, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs, including reasonable attorney's fees incurred by the Township as a result thereof and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

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3. This Part shall be governed by the laws of the Commonwealth of Pennsylvania.

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Part 3
VECTOR CONTROL

§ 10-301. Definitions. [Ord. 55, 11/9/1988, § 1; as amended by A.O.]

As used in this Part, terms shall have the meanings indicated, unless a different meaning clearly appears from the context.

ACCESSORY STRUCTURE — A detached structure which is not used or not intended to be used for living or sleeping by human occupants and which is located on or partially on any premises.

BREEDING AREA — Any condition which provides the necessary environment for the birth or hatching of vectors.

COLLECTION OF WATER — Water contained in ditches, pools, ponds, streams, excavations, holes, depressions, open cesspools, privy vaults, fountains, cisterns, tanks, shallow wells, barrels, troughs, urns, cans, boxes, bottles, tubs, buckets, roof gutters, tanks of flush closets, reservoirs, vessels, receptacles of any kind, or other containers or devices which may hold water.

COVERED RECEPTACLE — A container of metal, wood, heavy-duty plastic or synthetic material of solid construction, with a tight-fitting cover secured against wind and leakage.

DEP — Department of Environmental Protection, Commonwealth of Pennsylvania.

DILAPIDATED — Fallen into partial ruin or decay.

DISPOSAL — Storage, collection, disposal or handling of refuse.

EXTERMINATION — The control and elimination of vectors by eliminating their harborage places; by removing or making inaccessible materials that may serve as their food; by poisoning, spraying, fumigating, fogging, larviciding, trapping or by any other recognized and legal vector control elimination methods approved by the local or state authority having such administrative authority.

GARBAGE — All animal and vegetable wastes resulting from the handling, preparation, cooking or consumption of food.

HARBORAGE — Any place where vectors can live, nest or seek shelter.

OCCUPANT — Any person, over one year of age, living, sleeping, cooking or eating in or actually having possession of a dwelling unit or a rooming unit; in dwelling units a guest will not be considered an occupant.

OWNER — Any person who, alone or jointly or severally with other shall have:

(1) Legal title to any premises, dwelling or dwelling unit, with or without accompanying actual possession thereof.

(2) Charge, care, or control or any premises, dwelling or dwelling unit, as owner or agent of the owner, or an executor, administrator, trustee or guardian of the estate of the owner. Any such person thus representing the actual owner shall be bound to comply with the provisions of this Part and of the rules and regulation adopted pursuant thereto, to the same extent; as if he were the owner.

PERSON — Any natural person, firm, partnership, association, or corporation.

REFUSE — All solid wastes, except human body wastes, and including handling of refuse.

RUBBISH — Glass, metal, paper, plant growth, wood, or nonputrescible solid wastes.

VECTOR — A rodent, anthropod, or insect capable of transmitting a disease or infection, including, but

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not limited to, rats, mosquitoes, cockroaches, flies, and ticks.

VECTOR-PROOFING — A form of construction to prevent ingress or egress of vectors to or from a given space or building or gaining access to food, water, or harborage, including, but limited to, rat-proofing, fly-proofing, and mosquito-proofing.

§ 10-302. Prohibited Acts. [Ord. 55, 11/9/1988, § 2; as amended by A.O.]

1. It shall be unlawful:

   A. For any person to deposit or to knowingly permit any person acting as agent, employee, or servant of said person to deposit any refuse, offal, pomace, dead animals, decaying matter, or organic substance of any kind in or upon any private lot, building, structure, accessary structure, premises, or in or upon any street, avenue, alley parkway, ravine, ditch, gutter, or into any of the waters of the commonwealth so that the same shall or may afford food, harborage, or breeding areas for vectors.

   B. For any person to deposit or permit to accumulate in or upon any premises, improved or vacant, or on any open lot, or alley, any lumber, boxes, barrels, bottles, cans, glass, scrap iron, wire, metal articles, pipe, broken stone or cement, broken crockery, broken plaster, or rubbish of any kind, unless the same is kept in covered receptacles or placed on open racks that are elevated not less than 18 inches above the ground, and evenly piled or stacked; or unless disposed of in a manner approved by DEP.

   C. To maintain upon any premises improved or vacant or upon any open lot or alley, to maintain a junkyard or a place for the dumping, storing or wrecking or disassembling of automobiles, trucks, tractors, or machinery of any kind or of any of the parts thereof, or for the storing or leaving of any machinery, equipment or materials used by contractors or builders or by other persons, including salvagable materials taken from demolished buildings, in such a manner as to afford harborages or breeding areas for vectors.

   D. To store refuse in containers other than covered receptacles, which shall be kept clean by rinsing and draining as often as necessary so as not to provide food or breeding areas for vectors.

   E. To dump, burn, bury, destroy, or otherwise dispose of refuse except at an approved refuse disposal site.

   F. To collect, haul, transport, or convey garbage in open, unenclosed, nonleak-proof vehicles.

   G. To construct, maintain or use a sewage system, privy, urinal, cesspool, or other receptacle for human excrement so that vectors may have access to the excrementitious matter contained therein.

   H. To have, keep, maintain, cause or permit any collection of standing or flowing water except for agricultural or industrial purposes in which mosquitoes breed or are likely to breed, unless such collection of water is treated or maintained so as effectually to prevent such breeding.

§ 10-303. Responsibilities of Owners and Occupants. [Ord. 55, 11/9/1988, § 3]

1. Every owner of a dwelling containing two or more dwelling units shall maintain in a clean and sanitary condition the shared or public areas of the dwelling and premises thereof, in such a manner as to prevent breeding areas and harborages for vectors.

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2. Every occupant of a dwelling unit in a dwelling containing more than one dwelling unit shall be responsible for the extermination within his dwelling unit. Notwithstanding the foregoing provisions of this subsection, whenever infestation is caused by failure of the owner to maintain a dwelling in a rodent-proof or reasonable insect-proof condition, extermination shall be the responsibility of the owner. Whenever infestation exists in two or more of the dwelling units in any dwelling, or in the shared or public parts of any dwelling containing two or more dwelling units, extermination shall be the responsibility of the owner.

§ 10-304. Vector-Proofing. [Ord. 55, 11/9/1988, § 4]

1. Any dwelling, building, structure, accessory structure, premises or any other place shall be required to be vector-proofed when found to provide harborage or breeding areas for vectors, upon written notice at least 10 days prior to a hearing, and upon hearing by the Board of Supervisors with an opportunity for the owner to be present, to cross-examine witnesses, and to receive a written decision to be rendered within 10 days after the hearing.

2. It shall be unlawful for the owner, occupant, contractor, public utility company, plumber or any other person to remove and fail to restore in like condition the vector-proofing from any building structure or accessory structure for any purpose.

§ 10-305. Private Vector Control Programs. [Ord. 55, 11/9/1988, § 5]

A program plan and specifications for private vector control programs shall be required to be submitted by the owner to the Township upon determination of the necessity by the Board of Supervisors. Said determination shall be served on the owner personally or by certified mail. Within five days of said service the owner may contest the necessity of the program by requesting a hearing to be conducted in accordance with § 10-304 of this Part. Said program plan shall be submitted by the owner to the Board of Supervisors within 10 days of notice. The program plan shall state the type of vectors to be controlled, the name of the company contracted to carry out the program, if any, and any and all work to be conducted in an effort to control said vectors. The Board of Supervisors shall review the program plan, and if the plan is found to be inadequate or incomplete, additional information may be required as well as additional control methods. The owner may request a hearing on the determination in accordance with § 10-304 of this Part.

§ 10-306. Authority to Abate Vector Problems. [Ord. 55, 11/9/1988, § 6]

1. From and after passage of this Part, the Township and/or a representative of the vector control program is empowered to make periodic inspections of the interior and exterior of all dwellings, building, structures, and accessory structures, premises, collections of water, or any other places to determine evidence of vector infestation and the need for vector-proofing or additions repairs to existing vector-proofing.

2. Whenever it shall be determined by the Township that any dwelling, building, structure, accessory structure, premises, collection of water, or any other place is in violation of this Part, a notice shall be issued setting forth the alleged violation(s), and advising the owner, occupant, operator, or agent that such violation(s) must be corrected. The time for the correction of said violation(s) must be given as well as the necessary methods to be employed in the correction.

3. Whenever any violation(s) shall fail to be corrected within the time set forth, and an extension of time is not deemed to be necessary, the Township may proceed to abate the violation(s) in the manner provided by law.

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4. The owner shall have the right to appeal from said determination by hearing in accordance with § 10-304 of this Part.

§ 10-307. Penalties. [Ord. 55, 11/9/1988, § 7; as amended by A.O.]

Any person, firm or corporation who shall violate any provision of this Part, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

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Part 4
NOISE

§ 10-401. Title. [Ord. No. 193, 3/6/2024]

This Part shall be known as the "Upper Nazareth Township Noise Ordinance."

§ 10-402. Authority. [Ord. No. 193, 3/6/2024]

This Part is enacted pursuant to the Second Class Township Code.[12]

§ 10-403. Purpose. [Ord. No. 193, 3/6/2024]

The purpose of this Part is to ensure that public health, safety and welfare shall not be abridged by the making and creating of noise pollution or of public nuisances from disturbing, excessive or offensive noises in the Township. The residents of the Township recognize that uncontrolled noise represents a danger to the health and welfare of their neighbors and that each person in the community is entitled to live in an environment in which the level of impulsive and amplified noise is minimized for the community good. It is the purpose and scope of this Part to provide regulations prohibiting offensive noise that vehicles, appliances and equipment may generate, and to provide for the prohibition of other kinds of offensive noises. These regulations and prohibitions are intended to protect the physical, mental and social well-being of the residents of Upper Nazareth Township.

§ 10-404. Legislative Findings. [Ord. No. 193, 3/6/2024]

1. The Board of Supervisors finds that failure of individuals, businesses, industries, persons maintaining animals, social gatherings and other activities to regulate the noise emanating from their premises constitutes a violation of the peace and enjoyment of the residents of the Township and a public nuisance. Specifically, such noise emanating from home occupations, businesses, industries, sound amplification equipment, radios, electronic sound recording equipment, vehicles, persons maintaining animals, social gatherings, and other activities which:

    A. Creates a nuisance in that residents are deprived of the enjoyment of their homes, disturbed in their sleep and otherwise prevented from the quiet enjoyment of their residential premises;

    B. Affects the property values of residences in the Township;

    C. Affects the public welfare by reflecting negatively on the quality of life in residential areas of the Township;

    D. Disturbs the peace and good order of the Township; and

    E. Creates noise pollution.

§ 10-405. Definitions. [Ord. No. 193, 3/6/2024]

The following words and phrases, when used in this Part, shall have, unless the context clearly indicates otherwise, the meanings given to them in this section:

EXCESSIVE NOISE — Excessive noise is that sound which is: 1) injurious or which unreasonably

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12. Editor's Note: See 53 P.S. § 65101 et seq.

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interferes with the comfortable enjoyment of life and property; 2) annoying to a person of ordinary sensibilities.

IMPULSIVE SOUND — Sound of short duration, usually less than one second, with an abrupt onset of rapid decay. Examples of impulsive sound include: explosions, drop forge impacts, and the discharge of firearms.

NIGHT TIME — 10:00 p.m. to 7:00 a.m., prevailing time, conversely, day time is 7:00 a.m. to 10:00 p.m., prevailing time.

NOISE — Any sound emitted by a person, animal, appliance, equipment, instrument, or other device which annoys or disturbs humans or which causes or tends to cause an adverse psychological effect on humans.

NOISE CREATING DEVICE — Any electrical, mechanical, or chemical device or instrument or combination thereof, that creates noise during its operation by a person.

NOISE DISTURBANCE — Any sound which:

1. Endangers, would endanger or is likely to endanger, or injures, would injure or is likely to injure, the safety or health of humans or animals;
2. Annoys, would annoy or is likely to annoy, or disturb a reasonable person of normal sensibilities;
3. Endangers, would endanger, or is likely to injure, personal or real property;
4. Disturbs, or is likely to disturb, the peace; or
5. Creates, would create, or is likely to create, a nuisance.

NOISE POLLUTION — Noise of such loudness and character from a single source or from multiple sources, which is, or may be predicted with reasonable certainty to be, injurious to health or which unreasonably interferes with the enjoyment of property or with any lawful business or activity.

PERSON — Includes an individual, firm, association, organization, partnership, trust, company, corporation or any other similar entity.

PROPERTY LINE BOUNDARY — An imaginary line drawn through the points of contact of adjoining lands, apartments, condominiums, townhouses, and duplexes owned, rented, or leased by different persons, a demarcation or a line of separate properties and also, for any two or more buildings sharing common grounds, the line drawn midway between any two such buildings. All area devoted to public rights-of-way shall be deemed to be across the property line. For the purpose of this definition the property line includes all points on a plan formed by projecting the property line in a manner deemed appropriate by the enforcing police officer.

PUBLIC RIGHT-OF-WAY — Any street, avenue, boulevard, highway, sidewalk, alley, or similar place which is owned or controlled by a government entity.

PUBLIC SPACE — Any real property or structures thereon which are owned or controlled by a governmental entity.

REAL PROPERTY — All land, whether publicly or privately owned, whether improved or not improved, with or without structures, exclusive of any areas devoted to public rights-of-way.

SOUND — An oscillation in pressure, particle displacement, particle velocity, or other physical parameter, in a medium with internal forces that cause compression and rarefaction of that medium, or the superposition of such propagated oscillation which evokes an auditory sensation. The description of sound including duration, intensity and frequency.

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TOWNSHIP — Township of Upper Nazareth, Northampton County, Pennsylvania.

VEHICLE — Any device, or combination of devices, used for or capable of being used for transporting persons or property. Vehicles include, but are not limited to, the following: automobiles, trucks, buses, motorcycles, motorized bicycles, snowmobiles, scooters, all-terrain vehicles, go-carts, racers, and life devices, farm machinery, industrial machinery, highway graders, trailers, graders and semi-trailers.

§ 10-406. Prohibited Acts; Violations. [Ord. No. 193, 3/6/2024]

1. General Prohibition. It shall be unlawful for any person to make or cause to be made a noise disturbance within the jurisdictional boundaries of the Township of Upper Nazareth, except as otherwise permitted in this Part.

2. Specific Prohibitions. The following are specifically prohibited, except otherwise permitted in or exempted from this Part:

   A. No person shall operate, play or permit the operation or playing of any radio, television, phonograph, drum, musical instrument, cassette player, sound amplifier or similar device which produces, reproduces or amplifies sound:

      (1) In such a manner as to cause a noise disturbance.

      (2) In such a manner, which is plainly audible at a distance of 50 feet from such source, when the source is operated in, from or on a motor vehicle or hand carried on a public right-of-way or public space.

3. Noise Disturbances Prohibited. No person shall make, continue, or cause to be made, or cause to be continued any noise disturbance by any means, nor shall any person suffer, allow, or permit any noise disturbance, by any means, to be made or continued from or at any property, whether public or private, real or personal, that is subject to such person's right of control.

4. Animals. The following is declared to be a noise disturbance and therefore a violation of this Part: owning, keeping, possessing, harboring, or controlling any animal which howls, barks, or makes other sounds continuously and/or incessantly for a period of 10 minutes or makes such noise intermittently for one-half hour or more to the disturbance of any person at any time of the day or night regardless of whether the animal is situated in or upon private property; provided, however, that at the time the animal is making such noise, no person or animal is trespassing or threatening to trespass upon private property in or upon which the animal is situated.

5. Prima Facie Violation. Prima facie evidence of a noise disturbance shall exist if the noise from any of the acts prohibited:

   A. Disturbs two or more residents (regardless of jurisdiction boundaries) who are in general agreement as to the times and durations of the noise and who reside in separate residences including apartments and condominiums located within the same building, located across a property line (boundary) from the property which the source of the noise is generated except for emergency purposes or testing.

   B. One resident located across a property line (boundary) (regardless of jurisdictional boundaries) from the property on which the source of the noise is generated and corroborated by a police officer except for emergency purposes or testing.

§ 10-407. Noise Limit. [Ord. No. 193, 3/6/2024]

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1. No person shall create or allow the creation of any noise or operate or cause to be operated any source of sound on property owned, leased, occupied or otherwise controlled by such person, which causes a reasonable person of normal sensitivities which:

   A. Endangers, would endanger, or is likely to endanger, or injures, would injure, or is likely to injure, the safety or health of humans or animals;

   B. Annoys, would annoy, or is likely to annoy, or disturb a reasonable person of normal sensitivities;

   C. Endangers, would endanger, or is likely to injure, personal or real property;

   D. Disturbs, or is likely to disturb, the peace; or

   E. Creates, would create, or is likely to create, a nuisance. The sound level at the boundaries of the lot, parcel, tract or property, on which such activities take place between the hours of 10:00 p.m. and 7:00 a.m. prevailing time.

§ 10-408. Exemptions. [Ord. No. 193, 3/6/2024]

1. Noise emitted from the following sources shall be exempt from the noise standards specified herein:

   A. All safety signals and warning devices (e.g., intrusion alarms, back-up alarms on trucks); authorized vehicles when responding to emergencies (e.g., police, fire, ambulance sirens or any other device used to alert persons to an emergency or used during the conduct of emergency work).

   B. The provision, repair and maintenance of municipal services or public utilities.

   C. Bells, chimes and carillons used for religious purposes or in conjunction with national celebrations or public holidays.

   D. Appliances, lawn and garden equipment, chain saws, snow removal equipment and power tools in use between the hours of 7:00 a.m. (prevailing time) and 10:00 p.m. (prevailing time) provided such are operated within the manufacturer's specifications and with all standard noise-reducing equipment in use, unmodified, and in proper operating condition.

   E. Heavy construction equipment when being used on a specific short-term project (such as constructing a building; constructing, repairing or cleaning a road; drilling a well; and other similar short-term, specific construction, demolition, or repair projects) in use between the hours of 7:00 a.m. and 10:00 p.m., prevailing time, for the duration of such short-term, specific project; provided, such heavy construction equipment is operated within the manufacturer's specifications and with all standard noise-reducing equipment in use, unmodified, and in proper operating condition.

   F. Air-conditioners, fans, heating units and similar comfort devices, provided such are operated within the manufacturer's specifications and with all standard noise-reducing equipment in use, unmodified, and in proper operating condition.

   G. Airplanes, helicopters, normal activities of properly licensed airports, and trains operating on railroads.

   H. Musical, recreational, and athletic events conducted by or permitted by schools, local government, community or community association or festivals, or events sponsored by

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nonprofit organizations.

I. Existing weapons firing ranges during the daytime as defined herein.

J. All motor vehicles being operated on the public roads in Upper Nazareth Township, provided such are operated within the manufacturer's specifications and with all standard noise-reducing equipment in use, unmodified, and in proper working condition.

K. Activities permitted by special waiver, as provided herein, according to the terms and conditions of said waiver.

L. All farm-related operations and activities.

M. Any existing legitimate or licensed business, commercial or industrial operation between the hours of 7:00 a.m. and 10:00 p.m., prevailing time; provided any appliances, equipment, machinery or devices used in such operation are operated within the manufacturer's specifications and with all standard noise-reducing equipment in use, unmodified, and in proper operating condition.

N. Unamplified human voices.

§ 10-409. Special Waiver. [Ord. No. 193, 3/6/2024]

A temporary waiver from strict compliance with the noise standards specified herein may be granted to persons during emergency circumstances, as determined by the Board of Supervisors, to permit reasonable time to effect repairs.

§ 10-410. Policy. [Ord. No. 193, 3/6/2024]

It is the policy of the Board of Supervisors in adopting this Part not to force any industrial or commercial enterprise out of business, but rather to work with any industrial or commercial enterprise to find ways to reduce noise levels to the level permitted by this Part.

§ 10-411. Enforcement Officers. [Ord. No. 193, 3/6/2024]

This Part may be enforced by any police officer.

§ 10-412. Enforcement Procedures. [Ord. No. 193, 3/6/2024]

1. The following procedures and penalties are prescribed for enforcement of this Part:

A. Any person making a complaint pursuant to this Part shall file a written complaint with the Upper Nazareth Township Police Department on a form provided by the Upper Nazareth Township Police Department.

B. Warnings. If it is determined that there is a noise disturbance, the Township of Upper Nazareth shall, upon written complaint by the affected person who resides in the Township, confirmed and signed by a second complainant, or corroborated by a Upper Nazareth Township Police Officer, issue a written warning to the person responsible. Any such warning shall be in effect for six months.

C. Offenses. If it is determined that a noise is in excess of that permitted by this Part and shall have been caused or permitted by any person within six months after the issuance of a warning, any

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person affected thereby, who resides in Upper Nazareth Township, may prosecute such person causing or permitting said noise disturbance before the Magisterial District Judge.

D. Injunctions. In addition, any person affected thereby may file legal or equitable actions in court to abate or enjoin violations of this Part.

E. Public Nuisance. Any emission of noise from any source in excess of the limitations established herein is hereby declared to be a public nuisance and may be abated by administrative or judicial proceedings, fines and penalties herein provided.

F. Other Remedies. Nothing in this Part shall be construed to impair any cause of action, or legal remedy thereof, of any person or the public for injury or damage arising from the emission or release into the atmosphere or ground from any source whatsoever of noise at such place or manner, or at such levels which may give rise to such cause of action.

§ 10-413. Relationship With Other Restrictions. [Ord. No. 193, 3/6/2024]

The provisions of this Part are not intended to interfere with, abrogate or annul other rules, regulations or ordinances, including Title 18 (Crimes Code) and Title 75 (Vehicle Code), Pennsylvania Consolidated Statutes.[13] If more stringent requirements concerning noise abatement are contained in other statutes, rules, regulations or ordinances, the more stringent regulation shall apply.

§ 10-414. Penalties. [Ord. No. 193, 3/6/2024]

Any person, firm or corporation who shall violate any provision of this Part shall, upon conviction thereof, as a summary offense, be sentenced to pay a fine of not more than $1,000; and in default of payment, to imprisonment for a term not to exceed 30 days. Every day that a violation of this Part continues shall constitute a separate offense.

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13. Editor's Note: See 18 Pa.C.S.A. § 101 et seq. and 75 Pa.C.S.A. § 101 et seq., respectively.

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UPPER NAZARETH CODE

Chapter 11

HOUSING

Part 1
LANDLORD/TENANT REPORTS

§ 11-101. Filing of Certified List.
§ 11-102. Exclusion or Exemption.
§ 11-103. Penalties.

Part 2
MOVING PERMITS

§ 11-201. Securing a Permit.
§ 11-202. Application.
§ 11-203. Permit Fee.
§ 11-204. Penalties.

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Part 1
LANDLORD/TENANT REPORTS

§ 11-101. Filing of Certified List. [Ord. 80, 5/8/2002, § 1]

Every owner of real estate within the Township, who rents, leases or causes to be occupied, any parcel of real estate in whole or in part, to or by any other person or persons, shall file with the Secretary of the Township a certified list of all person(s) who rented or occupied real estate from the said owner or under the authority of the owner during the preceding six months. Said list shall include the name and last known address of each adult who resided in said rented real estate for all or a portion of said six-month period. The list shall be filed semi-annual, the deadlines for said semi-annual filing being May 31, and November 30, of each and every calendar year.

§ 11-102. Exclusion or Exemption. [Ord. 80, 5/8/2002, § 2]

For the purpose of this Part, the fact that the owner of real estate rents, leases or permits to be occupied any property for minimal or no rental to another person shall not exclude or exempt said owner from filing the certified list required in § 11-101 above.

§ 11-103. Penalties. [Ord. 80, 5/8/2002, § 3; as amended by A.O.]

Every owner of real estate who fails to so comply with the requirements of this Part, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense. For the purpose of this Part, every day that an owner of real estate is late in filing said certified list as required above shall constitute a separate offense.

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Part 2
MOVING PERMITS

§ 11-201. Securing a Permit. [Ord. 135, 12/3/2008, § 1]

No person or persons, firm or corporation shall move or cause to be moved to any place within the Township or from any place therein to another place therein or beyond the limits thereof any household goods or other goods, wares or merchandise in bulk, without first securing from the Secretary of the Township a permit for such moving or transportation.

§ 11-202. Application. [Ord. 135, 12/3/2008, § 2]

Any person or persons, firm or corporation requiring such a permit for such moving or transportation of household goods or other goods, wares or merchandise in bulk, shall make application to the Secretary of the Township setting forth his, her, their or its name and address, the name or names of the reputed owner or owners of the property to be moved or transported, the address or location from which the property is to be moved or transported and the address or location to which the property is to be moved or transported.

§ 11-203. Permit Fee. [Ord. 135, 12/3/2008, § 3; as amended by A.O.]

The Secretary of the Township shall, upon application being made as provided in § 11-202 hereof, issue a permit on payment of a fee in an amount as established, from time to time, by resolution of the Board of Supervisors, which permit shall set forth the name or names of the permittee or permittees, the name or names of the reputed owner or owners of the property to be moved or transported, the address or location from which the property is to be moved or transported and the address or location to which the property is to be moved or transported.

§ 11-204. Penalties. [Ord. 135, 12/3/2008, § 4; as amended by A.O.]

Any person or persons, firm or corporation violating the provisions of this Part or furnishing false information to the Secretary of the Township in connection with any application for permit hereunder, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs of all legal proceedings and be paid for the general use of the Township and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

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Chapter 12

(RESERVED)

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Chapter 13

LICENSES, PERMITS AND GENERAL BUSINESS REGULATIONS

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YARD/GARAGE SALES

§ 13-101. Title.
§ 13-102. Purpose.
§ 13-103. Definitions.
§ 13-104. Conditions for Sales.
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PEDDLERS

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§ 13-203. License.
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§ 13-207. Hawking or Crying His Wares.
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Part 1
YARD/GARAGE SALES

§ 13-101. Title. [Ord. 64, 11/9/1994, § 1]

This Part shall be known and cited as the "Upper Nazareth Township Garage and Yard Sale Ordinance."

§ 13-102. Purpose. [Ord. 64, 11/9/1994, § 2]

These rules and regulations are designed to control and restrict garage and yard sales in order to protect the public health, safety and convenience and to restrict such sales to casual and/or occasional occurrences, in keeping with the character of the neighborhood where this activity is carried on in compliance with the Township Zoning Ordinance [Chapter 27]. The intent of this Part is to eliminate perpetual, prolonged and extended garage and yard sales in residential areas. Such sales if continued indefinitely tend to become retail businesses in residential areas and zones, create a nuisance and often violate applicable zoning regulations. It is not the intent of this Part to change or amend the zoning ordinance or any other ordinances of the Township.

§ 13-103. Definitions. [Ord. 64, 11/9/1994, § 3]

GARAGE SALES —

A. The sale or offering for sale of four or more new, used or secondhand items of personal property at any one residential property at any one time shall constitute a garage sale.

B. Includes all sales in residential areas entitled "garage sales," "yard sales," "tag sale," "porch sale," "lawn sale," "attic sale," "basement sale," "rummage sale," "flea market sale," or any similar casual sale of tangible personal property.

GOODS — Any goods, warehouse merchandise or other personal property capable of being the object of a sale regulated hereunder.

MUNICIPALITY — All residential dwellings located within any type of zone, zoned area or zoning district, whether or not said areas or zones are residential, business, commercial or otherwise, within the geographic boundaries of the Township of Upper Nazareth.

PERSONS — Individuals, partnerships, family groups, voluntary associations and corporations.

§ 13-104. Conditions for Sales. [Ord. 64, 11/9/1994, § 4]

1. Garage sales as hereinbefore defined shall be limited to two such sales per household (or similar unit) per calendar year, each sale to have a duration of not more than two days.

2. It shall be unlawful for any person to conduct more than two garage sales per calendar year within the boundaries of the Township.

§ 13-105. Exemptions. [Ord. 64, 11/9/1994, § 5]

1. This Part shall not be applicable to:

   A. Persons selling goods pursuant to an order of process of a court of competent jurisdiction.

   B. Persons acting in accordance with their powers and duties as public officials.

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C. Any person selling or advertising for sale an item or items of personal property which is specifically named or described in the advertisement and which separate items do not exceed three in number. Notwithstanding any provisions of this Part, any person may sell up to three secondhand articles without being subject to the provisions of this Part.

D. Any sale conducted by any legitimate business or commercial or industrial establishment on property zoned under the zoning regulations of the Township with or without the protection of the nonconforming use section of the zoning laws, or any sale conducted by any other vendor or dealer when the sale is conducted in a properly zoned area and not otherwise prohibited by laws of the Commonwealth of Pennsylvania and ordinances of the Township including this Part.

E. Sales by a bona fide charitable, educational, cultural, or governmental institution, civic group, service club, religious or fraternal society or other tax-exempt organization; provided, however, that the burden of proof to establish the exemption under this paragraph shall be on the organization or institution claiming such exemption.

F. Any public auction having a duration of no more than two days and conducted by an auctioneer licensed by the Commonwealth of Pennsylvania.

§ 13-106. Enforcement. [Ord. 64, 11/9/1994, § 6; as amended by A.O.]

1. This Part shall be enforced by the Township Chief of Police and it shall be his duty to investigate and prosecute any violation of this Part.

2. If after an investigation, a violation is found to exist, the Chief of Police shall prosecute a complaint before the appropriate magisterial district judge pursuant to the provisions of this Part.

3. The person conducting the sale and the owner, tenant or occupant of the premises where the sale or activity is conducted shall be jointly or severally responsible for the maintenance of good order and decorum on the premises during the hours of such sale or activity.

   A. No such person shall permit any loud or boisterous conduct on such premises or permit vehicles to impede the passage of traffic on any roads or streets in the area of the premises where the sale is being conducted.

   B. In the event of an emergency, all such persons shall obey reasonable orders from any member of the Police Department or the Fire Department in order to maintain the public health, safety, and convenience.

§ 13-107. Penalties. [Ord. 64, 11/9/1994, § 7; as amended by A.O.]

Any person, firm or corporation who shall violate any provision of this Part, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

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Part 2
PEDDLERS

§ 13-201. Title. [Ord. 33, 12/29/1976, § 1]

This Part shall be known and may be cited as the "Peddler's License Ordinance."

§ 13-202. Definitions. [Ord. 33, 12/29/1976, § 2]

The following words and phrases when used in this Part shall have the meanings ascribed to them in this section unless the context clearly indicates a different meaning:

CHIEF OF POLICE — The person employed by the Board of Supervisors of the Township to occupy the position of Chief of Police of the Township.

PEDDLER — Any person who shall engage in peddling, as hereinabove defined.

PEDDLING — Engaging in a transient retail business, peddling, canvassing, soliciting, or taking of orders, either by sample or otherwise, for any goods, wares or merchandise, upon any of the streets or sidewalks or from house to house within the Township; provided, the word "peddling" shall not apply: (1) to farmers selling their own produce, (2) to the sale of goods, wares and merchandise, donated by the owners thereof, the proceeds whereof are to be applied to any charitable or philanthropic purpose, or (3) to any manufacturer or producer in the sale of bread, bakery products, meat, meat products, milk or milk products.

PERSON — Any natural person, association, partnership, copartnership, firm or corporation.

In this Part, the singular shall include the plural and the masculine shall include the feminine and the neuter.

§ 13-203. License. [Ord. 33, 12/29/1976, § 3]

No person shall engage in peddling in the Township without first having procured a license as herein provided.

§ 13-204. Application. [Ord. 33, 12/29/1976, § 4]

Every person desiring to engage in peddling in the Township shall first make application to the Chief of Police for a license. If such person shall also be required to obtain a license from any county officer, he must, when making such application, exhibit a valid county license. Upon such application, such person shall give his name, address, the name of the person for whom he works, if any, the type of goods, wares and merchandise he wishes to peddle, the length of time for which he wishes to be licensed, the type of vehicle he uses, if any, and the license number thereof, and the number and name and address of the helpers he has. Provided, where a person makes application for himself alone and one or more helpers, all applicable personal information specified above shall be given for each helper, and an individual license shall be required for each helper. No license issued under this Part shall be transferable from one person to another.

§ 13-205. Fees. [Ord. 33, 12/29/1976, § 5; as amended by A.O.]

No license shall be issued under this Part until an application has been made as above required, and the proper fee, in an amount as established, from time to time, by resolution of the Board of Supervisors, paid

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to the Township.

§ 13-206. Issuance of License. [Ord. 33, 12/29/1976, § 6]

Upon making application therefore and paying the proper fee, as herein specified, a license shall be issued to every peddler. Such license shall contain the information required to be given upon the application therefore. Every peddler shall at all times when engaged In peddling in the Township carry such license, upon his person, and shall exhibit such license, upon request, to all police officers, Township officials and citizens. No peddler shall engage in selling any product not mentioned upon such license.

§ 13-207. Hawking or Crying His Wares. [Ord. 33, 12/29/1976, § 7]

No person, licensed as a peddler under this Part, shall hawk or cry his wares upon any of the streets or sidewalks of the Township nor shall be use any loud speaker or horn or any other device for announcing his presence by which the public is annoyed.

§ 13-208. Parking Vehicle Upon Any Street or Alley. [Ord. 33, 12/29/1976, § 8]

No person, licensed as a peddler under this Part, shall park any vehicle upon any of the streets or alleys of the Township in order to sort, rearrange or clean any of his goods, wares or merchandise, nor may any such person place or deposit any refuse upon any of such streets or alleys, nor may any such person maintain or keep a street or curbstone market by parking any vehicle upon any street or alley in the Township for longer than necessary in order to sell therefrom to persons residing in the immediate vicinity.

§ 13-209. Occupying any Fixed Location Upon any Streets, Alleys or Sidewalks. [Ord. 33, 12/29/1976, § 9]

No person, licensed as a peddler under this Part, shall occupy any fixed location upon any of the streets, alleys, or sidewalks of the Township for the purpose of peddling, with or without any stand or counter.

§ 13-210. Maintaining a Record of All Licenses Issued. [Ord. 33, 12/29/1976, § 10]

The Chief of Police shall maintain a record of all licenses issued under this Part, and shall supervise the activities of all holders of such licenses.

§ 13-211. Suspension of License. [Ord. 33, 12/29/1976, § 11]

The Chief of Police is hereby authorized to suspend any license issued under this Part where there is a violation of any of the provisions of this Part, or for giving false information upon any application for a license hereunder.

§ 13-212. Penalties. [Ord. 33, 12/29/1976, § 12; as amended by A.O.]

Any person, firm or corporation who shall violate any provision of this Part, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

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Part 3
CONTRACTORS LICENSES

§ 13-301. Licensing. [Ord. 102, 9/1/2004, § 1]

It shall be unlawful for any person, firm, corporation or other entity to engage in the business of contractor or subcontractor within the Township without first having obtained a license therefor as provided in this Part. Types of businesses subject to the licensing requirement shall include, but not be limited to, the following: excavator, foundation and footer concrete work, framer, plumber, electrician, heating ventilation and air-conditioning, insulator, drywall, concrete (flat work), siding, gutter, trim, kitchen, well driller, septic installer, hardwood flooring, tile, carpet, mirrors and shower doors, closet installer, roofer, landscaping and seeding, blacktop, alarm system, painter, cleaning service, garage doors, and general contractor employing or contracting any of the above.

§ 13-302. Exemptions from Licensing Requirements. [Ord. 102, 9/1/2004, § 2]

The requirements of obtaining a license as set forth in this Part shall not apply where the work is to be performed by the owner of a residential property in which he resides.

§ 13-303. Application for Licenses. [Ord. 102, 9/1/2004, § 3]

1. Applications for licenses under this Part shall be made to the Zoning Officer for the Township in writing, on such printed forms as shall be prescribed and prepared by the Township from time to time. The application shall be signed by the applicant and shall contain the following, in addition to any other pertinent information to which the Township may deem reasonably necessary:

   A. The name and address of the applicant.

   B. The classification for which the applicant seeks to be licensed.

   C. An indemnification agreement, approved by the Township Solicitor, and executed by the applicant, evidencing that the applicant indemnifies and holds the Township, its officials, agents and employees, harmless from any and all damages caused by any negligence of the applicant in the performance of his duties or any negligence in protecting his work or by any unfaithful, imperfect or inadequate work done.

   D. Payment of fees required by this Part.

   E. Proof of insurance required herein.

§ 13-304. Issuance of Licenses. [Ord. 102, 9/1/2004, § 4]

Upon receipt of the application and the fee, the Township Zoning Officer shall issue the license to the applicant, which license shall expire on December 31 of the year of issuance.

§ 13-305. License Conditions. [Ord. 102, 9/1/2004, § 5]

1. Each license shall be issued for the calendar year during which it is issued, expiring on December 31, and the full fee shall be payable irrespective of the date of issue.

2. No license shall be transferable.

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3. The licensee shall at all times maintain adequate general liability insurance coverage in the amount of not less than $100,000 per person and $300,000 per accident.

4. The licensee shall at all times maintain adequate workers compensation insurance coverage for all employees.

§ 13-306. Renewals. [Ord. 102, 9/1/2004, § 6]

1. Any license issued hereunder may be renewed without further examination or investigation, provided that application for such renewal, accompanied by the renewal fee prescribed hereinafter, shall have been filed prior to the expiration of the existing license.

2. All licenses shall be renewed between December 1 and December 31, of each calendar year, regardless of date of original issue. Licenses not renewed by December 31, of any year shall be deemed to have expired and the holder thereof shall, at the discretion of the Township, be subject to the application and fee requirements herein provided for new applicants.

3. If a license has expired, the licensee may renew the license upon payment of the current year's license fee and the proceeding year's license fee, assuming that all other requirements have been met.

§ 13-307. Misrepresentation; False Statements. [Ord. 102, 9/1/2004, § 7]

1. No person, partnership, firm, corporation or other entity, not the holder of the license, shall falsely represent that he or it holds such license or shall use in any advertising the words "licensed contractor" or any words of similar meaning or import.

2. Any person who knowingly makes a false statement or causes or procures to be made or aids or assists in the making of a false statement in an application for a license or renewal of a license, or in any application provided by this Part or in any proof or instrument in writing in connection therewith, shall be in violation of this Part.

§ 13-308. Grounds for Suspension or Revocation of License. [Ord. 102, 9/1/2004, § 8]

1. Licenses may be suspended or revoked for any one or more of the following acts or omissions:

   A. Fraud or misrepresentation in obtaining a license or renewal thereof.

   B. Violation of this Part or any other applicable code, ordinance or statute governing the work performed.

   C. Filing of a voluntary or involuntary petition in bankruptcy.

   D. Fraud or misrepresentation in obtaining or performing a contract for the performance of which a license is required under this Part.

§ 13-309. Surrender of License. [Ord. 102, 9/1/2004, § 9]

1. Upon suspension or revocation of a license, the same shall be surrendered to the Township Zoning Officer.

2. Every holder of a license, upon retiring from the business, shall notify the Township Zoning Officer of such fact and at the same time surrender the license certificate.

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§ 13-310. Fees. [Ord. 102, 9/1/2004, § 10; as amended by A.O.]

The fee for obtaining of a license under this Part and the fee for renewal of the license shall be in amounts as established, from time to time, by resolution of the Board of Supervisors of the Township.

§ 13-311. Responsibilities. [Ord. 102, 9/1/2004, § 11]

It shall be the responsibility of the general contractor or homeowner engaging any of the persons, firms, corporations or other entities engaging in the businesses as set forth in § 13-301 to ensure that all contractors or subcontractors employed or subcontracted by them shall be licensed pursuant to the provisions of this Part. It shall be unlawful for any person, firm, corporation or entity to contract or employ a business not licensed pursuant to the provisions of this Part.

§ 13-312. Display of License. [Ord. 102, 9/1/2004, § 12]

All contractors must display their licenses at the job site.

§ 13-313. List of All Subcontractors. [Ord. 102, 9/1/2004, § 13]

Each general contractor shall provide to the Township a list of all subcontractors who will be performing work for or are employed by the general contractor.

§ 13-314. Disclaimer. [Ord. 102, 9/1/2004, § 14]

The issuance of a license by the Township shall not be construed in any event as a statement or certification by the Township that the licensee is qualified to undertake the work for which the license is issued. In no event shall the Township be held liable, jointly or severally, for the issuance of a license in accordance with this Part.

§ 13-315. Violations and Penalties. [Ord. 102, 9/1/2004, § 15; as amended by A.O.]

Any person, firm or corporation who shall violate any provision of this Part, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

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Part 4
BUSINESS REGISTRATION CERTIFICATE

§ 13-401. Registration. [Ord. 168, 4/15/2015, § 1]

The Board of Supervisors finds it in the best interest of the residents of the Township, Northampton County, Pennsylvania, that all persons or firms that engage in any business, home occupation, or no-impact home-based business, as defined below in the Township, are required to register and obtain a business registration certificate from the Township for such purpose, so that the Township is informed as to what businesses are in the Township and the extent of such business. No business registration certificate shall be required of any political, charitable, or religious establishment.

§ 13-402. Definitions. [Ord. 168, 4/15/2015, § 2]

As used in this Part, the following definitions shall apply:

BUSINESS — Any trade, profession, vocation, service, construction, communication or commercial activity, or making sales to persons or rendering services for or attributable to any office or location in the Township, whether for gain or profit or otherwise.

HOME OCCUPATION — A routine, accessory and customary nonresidential use conducted within or administered from a portion of a dwelling or its permitted accessory building that meets all of the home occupation requirements of § 27-403, Subsection 4J, of the Township Zoning Ordinance [Chapter 27].

NO-IMPACT HOME-BASED BUSINESS — A business or commercial activity administered or conducted as an accessory use which is clearly secondary to the use as a residential dwelling and which involves no customer, client or patient traffic, whether vehicular or pedestrian, pickup, delivery or removal functions to or from the premises, in excess of those normally associated with residential use. The business or commercial activity must satisfy the following Pennsylvania Municipalities Planning Code, 53 P.S. § 10101 et seq., requirements:

(1) The business activity shall be compatible with the residential use of the property and surrounding residential uses.

(2) The business shall employ no employees other than family members residing in the dwelling.

(3) There shall be no display or sale of retail goods and no stock piling or inventory of a substantial nature.

(4) There shall be no outside appearance of a business use, including, but not limited to, parking, signs or lights.

(5) The business activity may not use any equipment or process which creates noise, vibration, glare, fumes, odors, and/or electrical/electronic interference, including interference with radio or television reception, which is detectable in the neighborhood.

(6) The business activity may not generate any solid waste or sewage discharge, in volume or type, which is not normally associated with residential use in the neighborhood.

(7) The business activity shall be conducted only within the dwelling and may not occupy more than 25% of the habitable floor area.

(8) The business may not involve any illegal activity.

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§ 13-403. Application. [Ord. 168, 4/15/2015, § 3]

After the effective date of this Part, any person, firm, association, or corporation desiring to conduct or continue to conduct any business, home occupation or no-impact home-based business within the Township shall file with the Township Zoning Officer or his designee an application for a certificate to operate a business within the Township. Upon the filing of a properly completed application and upon payment of the fee, if applicable, and after review by the Zoning Officer, a business registration certificate shall be issued to the applicant to commence or continue the business designated in said application if the business complies with the terms of this Part. In cases where more than one place of business is conducted within the Township, a separate business registration certificate shall be required and issued for each place of business with a separate fee for each certificate being issued. The issued business registration certificate shall be conspicuously posted in the place of business for which such certificate is issued.

§ 13-404. Fees. [Ord. 168, 4/15/2015, § 4; as amended by A.O.]

Business registration certificate fees may be amended annually within the Fee Schedule Resolution by the Board of Supervisors. A fee in the amount as established, from time to time, by resolution of the Board of Supervisors, shall be paid to secure a business registration certificate for a business or home occupation as defined above. There shall be no pro rata discount in the application fee for engaging in business for less than the registration year. The certificate or certificates shall be effective until June 30 of the year in which issued. Business registration certificates not renewed within 30 days after the due date shall, in addition to the yearly renewal fee, pay a late fee in an amount as established, from time to time, by resolution of the Board of Supervisors.

§ 13-405. Collection of Fees. [Ord. 168, 4/15/2015, § 5]

The Township Zoning Officer or his designee is charged with the duty of collecting and receiving the business registration certificate fees imposed by this Part. It shall be his duty to keep a record showing the amount received, from whom received, and the date of such receipt. The Board of Supervisors is hereby empowered to prescribe, adopt or promulgate rules or regulations relating to any matter pertaining to the administration and enforcement of this Part and are charged with enforcing the provisions of this Part and any rules and/or regulations promulgated pursuit hereto. Any information as requested by the Township Zoning Officer shall be submitted by the applicant at the time of application.

§ 13-406. Transfer of Certificate. [Ord. 168, 4/15/2015, § 6]

No business registration certificate shall be transferred by the holder to any other person, business, or entity. The business registration certificate holder shall notify the Township prior to any termination of the business for which the business registration certificate was issued, and no part of the business registration certificate fee shall be refunded.

§ 13-407. Revocation of Certificate. [Ord. 168, 4/15/2015, § 7]

In the event of any noncompliance with the provisions of this Part after a business registration certificate has been issued, the same may be revoked by order of the Township Zoning Officer until the noncompliance has been corrected as determined by the Zoning Officer. In the event of revocation, the business registration certificate fee will not be refunded.

§ 13-408. Violation. [Ord. 168, 4/15/2015, § 8]

If any person, firm, corporation, or occupant makes any false or untrue statement on any application

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required by this Part or a person authorized to file the application fails or refuses to file a business registration certificate application as required by this Part, or a person otherwise fails or refuses to comply with this Part is in violation of this Part.

§ 13-409. Penalties. [Ord. 168, 4/15/2015, § 9; as amended by A.O.]

Any person, firm, corporation, or occupant who shall violate or fail, neglect or refuse to comply with any of the provisions of this Part, shall, upon conviction thereof in a Summary Proceeding brought before a District Justice in the same manner provided for the enforcement of Summary Offenses under the Pennsylvania Rules of Criminal Procedure, be sentenced to pay a fine of not to exceed $300, plus the cost of prosecution. For the purpose of this Part, every day that a business operates without a business registration certificate shall constitute a separate offense and notice to the offender shall not be necessary in order to constitute an offense.

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Chapter 14

MOBILE HOMES AND MOBILE HOME PARKS

Part 1
MOBILE HOME PARKS

§ 14-101. Definitions.
§ 14-102. Permits.
§ 14-103. Registration.
§ 14-104. Inspection of Mobile Home Parks.
§ 14-105. Park Construction Requirements.
§ 14-106. Water Supply.
§ 14-107. Sewerage Disposal.
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§ 14-109. Service Buildings.
§ 14-110. Refuse Handling.
§ 14-111. Insect and Rodent Control.
§ 14-112. Required Recreation Areas.
§ 14-113. Fire Protection.
§ 14-114. Other Permits Required.
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§ 14-116. Notices, Hearings and Orders.
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Part 1
MOBILE HOME PARKS

§ 14-101. Definitions. [Ord. 26, 3/15/1972, § 1]

HEALTH AUTHORITY — The legally designated health authority of Pennsylvania or the Township.

LICENSE — Written approval, in whatever form, as issued by the Pennsylvania Department of Health, authorizing a person to operate and maintain a mobile home park.

MOBILE HOME — See § 27-202 of the Township Zoning Ordinance [Chapter 27].

MOBILE HOME LOT — A parcel of land in a mobile home park, constructed with the necessary utility connections, patio, and other appurtenances necessary for the erection thereon of a single mobile home, and for the exclusive use of its occupants.

MOBILE HOME PARK — A parcel of land under single ownership, which has been planned and improved for the placement of mobile homes occupied for dwelling or sleeping purposes and for non-transient use.

PERSON — Any individual, firm, trust, partnership, public or private association or corporation, or other entity.

SERVICE OR RECREATIONAL BUILDINGS — A structure housing operational, office, recreational, park maintenance and other facilities built to conform to required local standards.

§ 14-102. Permits. [Ord. 26, 3/15/1972, § 2; as amended by A.O.]

1. It shall be unlawful for any person to construct, alter or extend any mobile home park within the limits of the Township unless he holds a valid permit issued by the Pennsylvania Department of Health in the name of such person for the specific construction, alteration or extension proposed, and also a permit issued by this Township hereunder.

2. All applications for permits shall be made by the owner of the mobile home park or his authorized representative in accordance with the rules and regulations, Commonwealth of Pennsylvania, Department of Health, Chapter 4, Article 415, Regulations for Mobilehome Parks, adopted October 30, 1959, as amended.

3. A copy of the said Department of Health application shall be concurrently filed with the Zoning Administrator of the Township and the applicant shall also submit an application to the same official, using a form furnished by the Township for a permit to operate a mobile home park in the Township.

4. Upon receipt of such application, the Zoning Administrator shall forthwith inspect the applicant's plans and proposed park to determine compliance with the provisions of this Part. After favorable determination of same, and upon being furnished a copy of the permit issued by the Pennsylvania Department of Health to the applicant, the Zoning Administrator shall report his findings to the Board of Supervisors of the Township at a duly convened meeting of the Board. Upon favorable action by the Board of Supervisors, the Zoning Administrator shall issue a mobile home park permit to applicant which shall be valid for a period of one year thereafter.

5. Renewal permits for a like period shall be issued by said officer upon furnishing proof by applicant that his park continues to meet the standards prescribed by the Pennsylvania Department of Health and this Part.

6. Each application for a new or renewal permit hereunder shall be accompanied by payment of an

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inspection fee in the amount as established, from time to time, by resolution of the Board of Supervisors. In the event that the Zoning Administrator is required to perform additional or unusual service in determining said application, the cost of such additional service shall be borne by the applicant. Such charges shall be levied whether or not the application is approved.

7. Mobile home parks in existence or approved upon the effective date of this Part shall be required to meet only the standards of the Pennsylvania Department of Health as a prerequisite to the issuance of a permit, and all other minimum standards prescribed herein shall be applicable only to those parks which are constructed or expanded after the effective date of this Part.

§ 14-103. Registration. [Ord. 26, 3/15/1972, § 3]

1. It shall be unlawful for any person to operate any mobile home park within the limits of the Township unless he holds a certificate of registration issued annually be the Pennsylvania Department of Health in the name of such person for the specific mobile home park. Proof of such registration shall be furnished to the Zoning Administrator by no later than February 1, of each year.

2. Every person holding a certificate shall file note in writing to the Pennsylvania Department of Health and the Zoning Administrator of the Township within 10 days after having sold, transferred, given away, or otherwise disposed of, interest in or control of any mobile home park. If the certificate of registration is transferred by the Pennsylvania Department of Health, proof of such transfer shall be furnished the Zoning Administrator of the Township forthwith.

3. Whenever, upon inspection of any mobile home park, it is determined that conditions exist which are in violation of any provision of this Part, or of any regulations adopted pursuant thereto, the Zoning Administrator shall give notice in writing in accordance with § 14-115 of this Part to the person to whom the certificate was issued, advising him that unless such conditions or practices are corrected within a reasonable period of time, specified in the note, the license to operate in the Township shall be suspended. At the end of such period, such mobile home park shall be inspected and, if such conditions or practices have not been corrected and the licensee has not requested a hearing as provided in § 14-115 the Zoning Administrator shall suspend the license and give notice in writing of such suspension to the person to whom the certificate is issued.

§ 14-104. Inspection of Mobile Home Parks. [Ord. 26, 3/15/1972, § 4]

1. A representative of the Township may inspect a mobile home park at reasonable intervals, and at reasonable times, to determine compliance with this Part.

2. The Zoning Administrator hereby designated as the person to make such inspections. Another or additional inspectors may also be authorized to make inspections or additional inspections at the discretion of the Township Supervisors.

3. The Zoning Administrator may, at his discretion, give notice for violations of this Part and issue notice thereof, without express authority from the Township Supervisors in each instance.

§ 14-105. Park Construction Requirements. [Ord. 26, 3/15/1972, § 5]

1. Minimum Park Area. A mobile home park shall have a gross area of at least five acres.

2. Site Drainage Requirements. The ground surface in all parts of every park shall be graded and equipped to drain all surface water in a safe, efficient manner.

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3. Required Setbacks, Buffer Strips and Screening.

   A. All mobile homes shall be located at least 50 feet from any park property boundary line abutting upon a public street or highway and at least 25 feet from other park property boundary lines.

   B. There shall be a minimum distance of 25 feet between an individual mobile home, including accessory structures attached thereto and common parking area or other common areas and structures.

   C. All mobile home parks located adjacent to industrial or commercial land uses shall be required to provide screening such as fences or natural growth along the property boundary line separating park and such adjacent nonresidential use. Maintenance of such screening shall meet the requirements of the Township or Township will engage maintenance man at cost to owner of park.

4. Erection and Placement of Mobile Homes.

   A. Mobile homes shall be separated from each other and from other buildings and structures by at least 25 feet on all sides.

   B. An enclosure of compatible design and material shall be erected around the entire base of each mobile home. Such enclosure shall provide sufficient ventilation to inhibit decay and deterioration of the structure.

5. Park Street System.

   A. A safe and convenient vehicular access shall be provided from abutting public streets and roads.

   B. Access. The entrance road, or area, connecting the park with a public street or road shall have a minimum pavement width of 36 feet with a right-of-way of 50 feet.

   C. Internal Roads. Surfaced roadways shall be of adequate width to accommodate anticipated traffic, and in any case shall meet the following minimum requirements:

      (1) Roads to be deeded to and maintained by the Township shall meet the following requirements:

         (a) Fifty-foot right-of-way.

         (b) Thirty-six-foot cartway.

         (c) Curbs installed according to Township ordinance.

         (d) Grade as set by Township Engineer and base as prescribed by Township Engineer.

      (2) Roads to be retained and maintained by mobile park owner shall meet the following minimum requirements:

         (a) Thirty-six-foot cartway when parking is permitted on both sides.

         (b) Twenty-eight-foot cartway when parking is permitted on one side only.

         (c) Twenty-two-foot cartway when no parking is permitted.

      (3) Dead end streets shall be provided with a turn-around at the closed end having an outside roadway diameter of at least 60 feet.

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(4) Within 100 feet of an intersection streets shall be approximately at right angles. Not more than two streets shall intersect at one point.

(5) Paving shall be required only on streets to be dedicated for Township adoption. All other streets shall meet requirements of inspector.

6. Off-Street Parking. Off-street parking for at least one motor vehicle shall be provided at each mobile home lot. Off-street parking areas for additional vehicles of park occupants and guests shall be provided at the rate of 1.25 cars per mobile home lot when on-street parking is prohibited.

7. Walkways.

A. General Requirements. All parks shall be provided with safe, convenient, all-season pedestrian walks of adequate width for intended use, durable and convenient to maintain, between individual mobile homes, the park streets and all community facilities provided for park residents. Sudden changes in alignment and gradient shall be avoided.

B. Common Walk System. A common walk system shall be provided and maintained between locations where pedestrian traffic is concentrated. Such common walks shall have a minimum width of 3 1/2 feet.

C. Individual Walks. All mobile home lots shall be connected to common walks, to paved streets, or to paved driveways or parking spaces connected to a paved street. Such individual walks shall have a minimum width of two feet.

8. Minimum Lot Requirements.

A. Mobile home lots shall be not less than 50 feet by 100 feet wide at the building line nor less than 5,000 square feet.

B. There shall be a minimum of 15 feet between each mobile home and the right-of-way of the park street which serves the lot.

§ 14-106. Water Supply. [Ord. 26, 3/15/1972, § 6]

An adequate supply of water shall be provided for mobile homes, service buildings and other accessory buildings. Where a public water supply system of satisfactory quantity, quality, and pressure is available, connection shall be made thereto and its supply used exclusively. Where a satisfactory public water supply system is not available, the development of a private water system shall have the complete approval of the Pennsylvania Department of Health or other authorities having jurisdiction.

§ 14-107. Sewerage Disposal. [Ord. 26, 3/15/1972, § 7]

An adequate and safe sewerage system shall be provided for conveying and disposing of sewerage from mobile homes, service buildings, and other accessory facilities. Such system shall be designed, constructed, and maintained in accordance with the Pennsylvania Department of Health or local health regulations and shall have the complete approval of such agencies.

§ 14-108. Electrical Distribution System. [Ord. 26, 3/15/1972, § 8]

Every park shall contain an electrical wiring system consisting of wiring, fixtures, equipment and appurtenances which shall be installed and maintained in accordance with local electric power company's specifications regulating such systems. All electrical lines, telephone lines, and cable TV lines shall be

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placed underground.

§ 14-109. Service Buildings. [Ord. 26, 3/15/1972, § 9]

All service buildings such as management offices, repair shops, storage areas, laundry facilities, indoor recreation areas, etc., shall be properly protected from damage by ordinary use and by decay, corrosion, termites, and other destructive elements. Any regulations of the State of Pennsylvania concerning such structures shall be applied.

§ 14-110. Refuse Handling. [Ord. 26, 3/15/1972, § 10]

The storage, collection, and disposal of refuse in the mobile home park shall be so conducted as to create no health hazards, rodent harborage, insect breeding areas, accident or fire hazards or air pollution and shall comply with the Pennsylvania Department of Health regulations governing mobile home parks. Refuse collection will comply with requirements of any permanent dwelling in the Township.

§ 14-111. Insect and Rodent Control. [Ord. 26, 3/15/1972, § 11]

Grounds, buildings and structures shall be maintained free of rodent and insect harborage and infestation. Extermination methods and other measures to control insects and rodents shall confirm with the requirements of the Pennsylvania Department of Health regulations governing mobile home parks, and shall be under the inspection approved by the Township.

§ 14-112. Required Recreation Areas. [Ord. 26, 3/15/1972, § 12]

1. In all parks accommodating or designed to accommodate 25 or more mobile homes, there shall be one or more recreation areas which shall be easily accessible to all park residents.
2. The size of such recreation areas shall be based upon a minimum of 100 square feet for each lot. No outdoor recreation area shall contain less than 2,500 square feet.
3. Recreation areas shall be so located as to be free of traffic hazards and should, where the topography permits, be centrally located.
4. Recreation areas shall be maintained to the standards of the Township Inspection Officer.

§ 14-113. Fire Protection. [Ord. 26, 3/15/1972, § 13]

1. The mobile home park shall be subject to the rules and regulations of the Township fire prevention authority where provided.
2. Mobile home park areas shall be kept free of litter, rubbish and other flammable materials.
3. Portable fire extinguishers of a type approved by the fire prevention authority shall be kept in public service buildings under park control and a sufficient number shall be maintained throughout the park in readily accessible and well marked positions.

§ 14-114. Other Permits Required. [Ord. 26, 3/15/1972, § 14; as amended by A.O.]

1. No mobile home shall be erected in any mobile home park unless a building permit is first obtained in accordance with Chapter 5, Part 1, "Uniform Construction Code," the Township Board of Supervisors, as amended. Before moving into a mobile home, the resident shall obtain a moving

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permit as required by Chapter 11, Part 2, Moving Permit Ordinance, the Township Board of Supervisors, as amended.

2. No mobile home shall be removed from its lot without first obtaining a permit from the Tax Collector of the Township as required by Act No, 54, 1969, of the Pennsylvania General Assembly. Such permit will be issued upon payment of a fee in an amount as established, from time to time, by resolution of the Board of Supervisors, and real estate taxes assessed against the home and unpaid at time the permit is requested.

3. Residents moving from a mobile home park, whether the mobile home is removed or not, shall first obtain a moving permit as required by Chapter 11, Part 2, the Township Board of Supervisors, as amended.

§ 14-115. Miscellaneous Requirements. [Ord. 26, 3/15/1972, § 15]

1. Responsibilities of the Park Management.

   A. The person to whom a license for a mobile home park is issued shall operate the park in compliance with this Part and shall provide adequate supervision to maintain the park, its facilities and equipment in good repair and in a clean and sanitary condition.

   B. The park management shall supervise the placement of each mobile home on its mobile home lot which includes securing its stability and installing all utility connections.

   C. The park management shall give the health officer free access to all mobile home lots, service buildings and other community service facilities for the purpose of inspection.

   D. The management shall maintain a register containing the names of all park occupants. Such register shall be available to any authorized person inspecting the park.

   E. The park management shall be responsible to see that the provisions of § 14-114 of this Part are carried out.

§ 14-116. Notices, Hearings and Orders. [Ord. 26, 3/15/1972, § 16]

1. Notice of Violation. Whenever the Zoning Administrator determines that there are reasonable grounds to believe that there has been a violation of any provision of this Part, or of any regulation adopted pursuant thereto, such authority shall give notice of such alleged violation to the person to whom the permit or certificate was issued, as hereinafter provided. Such notice shall (A) be in writing; (B) include a statement of the reasons for its issuance; (C) allow a reasonable time for the performance of any act it requires; (D) be served upon the owner or his agent as the case may require; provided however, that such notice or order shall be deemed to have been properly served upon such owner or agent when a copy thereof has been served with such notice by any other method authorized or required by the laws of this state; (E) contain an outline or remedial action which, if taken, will effect compliance with the provisions of this Part, or any part thereof, and with the regulations adopted pursuant thereto. The permittee, who shall not take whatever remedial action necessary to comply with this Part, will be required to pay for any action taken by the Board to correct the deficiencies.

2. Hearing. Any person affected by any notice which has been issued in connection with the enforcement of any provisions of this Part, or of any regulation adopted pursuant thereto, may request and shall be granted a hearing on the matter before the Board of Supervisors of the Township,

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provided that such person shall file in the office of the Secretary of the Board of Supervisors of the Township a written petition requesting such hearing and setting forth a brief statement of the grounds therefore within 10 days after the notice was served. The filing of the request for a hearing shall operate as a stay of the notice and the suspension. Upon receipt of such petition, the Township Secretary shall set a time and place for such hearing and shall give the petitioner written notice thereof. At such hearing the petitioner shall be given the opportunity to be heard and to show why such notice should be modified or withdrawn. The hearing shall be commenced not later than 10 days after the day on which the petition was filed; provided, that upon application of the petitioner, the Township Secretary may postpone the date of the hearing for a reasonable time beyond such ten-day period when in his judgment the petitioner has submitted good and sufficient reason for such postponement.

3. Findings and Order. After such hearing the Board of Supervisors of the Township shall make findings as to compliance with the provisions of this Part and regulations issued thereunder and shall issue and order in writing sustaining, modifying, or withdrawing, the notice which shall be served as provided in Subsection 1. Upon failure to comply with any order sustaining or modifying a notice, the license of the mobile home park affected by the order shall be revoked.

4. Record, Appeal. The proceedings of such a hearing, including the findings and decision of the authority, and together with a copy of every notice and order related thereto shall be entered as a matter of public record in the office of the health or Township authority but the transcript of the proceedings need not be transcribed unless judicial review of the decision is sought as provided by this section. Any person aggrieved by the decision of the health or Township authority may seek relief therefrom in any court of competent jurisdiction, as provided by the laws of this commonwealth.

§ 14-117. Penalties. [Ord. 26, 3/15/1972, § 17; as amended by A.O.]

1. Penalty. Any person, firm or corporation who shall violate any provision of this Part, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not less than $100 nor more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

2. Revocation of Suspension of Permit. Upon repeated violations by the same permittee, his right to the issuance of a permit or to continued operation under a permit may be suspended for a fixed term, or permanently revoked, after notice and hearing by the Board of Supervisors of the Township, subject to the right of appeal to the Northampton County Common Pleas Court in accordance with applicable law.

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Chapter 15

MOTOR VEHICLES AND TRAFFIC

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Part 1
GENERAL REGULATIONS

§ 15-101. Definitions and Interpretation. [A.O.]

1. Words and phrases, when used in this chapter, except for sections or parts to which different or additional definitions apply, shall have the meanings ascribed to them in the Vehicle Code, 75 Pa.C.S.A. § 101 et seq., except that in this chapter the word "street" may be used interchangeably with the word "highway," and shall have the same meaning as the word "highway" as defined in the Vehicle Code.

2. The term "legal holidays" as used in this chapter shall mean and include: New Year's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day and Christmas Day.

3. In this chapter, the singular shall include the plural, the plural shall include the singular, and the masculine shall include the feminine.

§ 15-102. Manner of Adopting Permanent Traffic and Parking Regulations. [A.O.]

All traffic and parking regulations of a permanent nature shall be enacted as ordinances, as parts of ordinances, as amendments to ordinances, or as amendments to this chapter, except where the law specifically authorizes less formal action.

§ 15-103. Provisions to Be Continuation of Existing Regulations. [A.O.]

The provisions of this chapter, so far as they are the same as those of ordinances and regulations in force immediately before the enactment of this chapter, are intended as a continuation of those earlier ordinances and regulations, and not as new enactments. Nothing in this chapter shall affect any act done or liability incurred, or any suit or prosecution pending or to be instituted under any of those repealed or superseded ordinances or regulations.

§ 15-104. Temporary and Emergency Regulations. [A.O.]

1. The Chief of Police shall have the following powers to regulate traffic and parking temporarily and in time of emergency:

   A. In the case of fire, flood, storm or other emergency, to establish temporary traffic and/or parking regulations.

   B. In the case of emergency or to facilitate public works, or in the conduct of parades, processions or public events, to restrict or prohibit traffic and/or parking in limited areas for periods of not more than 72 hours.

2. Such temporary and emergency regulations shall be enforced by the Police Department in the same manner as permanent regulations. Any person who shall operate or park a vehicle or tractor in violation of any such regulation, or who shall, move, remove, destroy, injure or deface any sign or marking erected, posted or made to give notice of any such regulation, upon conviction thereof, shall be subject to the penalty set forth in the law or elsewhere in this chapter for a violation of such nature and, in case of a violation for which no specific penalty is set forth in the law or elsewhere in this chapter, to a fine of not more than $25 together with costs of prosecution.

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§ 15-105. Experimental Regulations. [A.O.]

The Township may, from time to time by resolution, designate places upon and along the highways in the Township where, for a period of not more than 90 days, specific traffic and/or parking regulations, prohibitions and restrictions shall be in force and effect, and shall designate such locations by proper signs and markings. Such regulations, prohibitions and restrictions shall be effective as if they had been specified in this chapter. No person shall operate and no person shall move, remove, destroy or deface any sign or marking erected, posted or made by authority of this section. Any person who shall violate any provision of this section, upon conviction thereof, shall be subject to the penalty set forth in the law or elsewhere in this chapter for a violation of such nature and, in case of a violation for which no specific penalty is set forth in the law or elsewhere in this chapter, to a fine of not more than $25 together with costs of prosecution; provided, the purpose of this section is to allow for test and experimental determination of the feasibility and desirability of permanent changes in the ordinances of the Township relative to traffic and parking.

§ 15-106. Traffic on Streets Closed or Restricted for Construction, Maintenance or Special Events. [A.O.]

1. The Township shall have authority to close any street or specific part of a street to vehicular traffic and to place barriers or station police officers at each end of the closed portion while construction or maintenance work is under way or a special event is being conducted on the closed portion. It shall be unlawful for any person to drive a vehicle upon any such closed portion.

2. The Township shall have authority to establish a restricted traffic area upon any street where construction or maintenance work is under way and to station flagmen at each end of the restricted portion. It shall be unlawful for any person to drive a vehicle upon any such restricted traffic area at any time when the flagman is displaying a sign directing that vehicle to stop, or is signaling that vehicle, by a flag or other device, not to proceed.

3. Any person who violates any provision of this section, upon conviction, shall be sentenced to pay a fine of $25 and costs.

§ 15-107. Use of Streets by Processions and Assemblages. [A.O.]

1. For the purpose of this section, the words "assemblage" and "procession" shall have the following meanings:

   ASSEMBLAGE — A gathering of people without vehicles, which interferes with the movement of pedestrian or vehicular traffic on any street.

   PROCESSION — A group of individuals, vehicles, animals and/or objects moving along a street in a way that interferes with the normal movement of traffic. A procession shall not include a funeral caravan or military convoy.

2. It shall be unlawful for any person to hold or participate in any assemblage unless the person organizing or conducting the assemblage first obtains a permit from the Chief of Police, which shall be issued without fee. Application for the permit shall be made at least one week in advance of the day on which the assemblage is proposed to be held, but in any case where a state-designated highway is proposed to be used, application shall be made at least three weeks in advance of the proposed date. The permit shall state the place where and the date when the assemblage is to be held, the hour when the assemblage may convene and the hour by which it shall have been completely dispersed. It shall be unlawful for any person to hold or to participate in any assemblage unless the permit has been granted, or at any time or place other than that authorized by the permit.

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3. It shall be unlawful for any person to hold or participate in any procession unless the person organizing or conducting the procession first obtains a permit from the Chief of Police, which shall be issued without fee. Application for the permit shall be made at least two weeks in advance of the day when the procession is proposed to be held, but in any case where the state-designated highway is proposed to be used, application shall be made at least three weeks in advance of the proposed date. The permit shall specify the date on which the procession is to be held, the route to be followed by the procession, the hour when and place where participants may commence to assemble and form before the procession is under way, the time when the procession may commence to move along its route, and the time by which the end of the procession shall have been disbanded. It shall be unlawful for any person to hold or to participate in any procession unless the permit shall have been granted, or under any conditions as to time or route or otherwise than those stated in the permit.

4. Any person who violates any provision of this section, upon conviction, shall be sentenced to pay a fine of $25 and costs.

§ 15-108. Authority of Police Officers. [A.O.]

The police officers of the Township are hereby authorized to direct traffic on the highways of the Township and at intersections thereof and to otherwise enforce the provisions of this chapter.

§ 15-109. Authorization for Use of Speed Timing Devices. [A.O.]

1. The Police Department is hereby authorized to use all speed timing devices for the determination of speed of a motor vehicle as are approved or will be approved by the Department of Transportation of the Commonwealth of Pennsylvania, in accordance with 75 Pa.C.S.A. § 3368.

2. This section authorizes the use of said devices upon all highways within the Township be they Township, county or state highways, and does also hereby elect to exercise all powers granted to "local authorities" under the Vehicle Code of the Commonwealth of Pennsylvania, 75 Pa.C.S.A. § 6101 et seq., as hereafter amended, supplemented, modified or reenacted by the General Assembly of Pennsylvania.

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Part 2
TRAFFIC REGULATIONS

§ 15-201. Maximum Speed Limits Established on Certain Streets. [A.O.]

1. Maximum speed limits are established on portions of specified streets, as follows, and it shall be unlawful for any person to drive a vehicle on any part of a street where a maximum speed limit applies at a higher speed than the maximum prescribed for that part of the street:

Street	Maximum Speed Limit (mph)	Between
1st Street	15	
2nd Street	15	
3rd Street	15	
4th Street	15	
5th Street	15	
Allen Street	25	
Alms Alley	15	
Alms House Road	25	
Beil Avenue	25	Rose Inn Avenue West to Broad Street Extension
Beil Avenue East	25	Rose Inn Avenue to Schoeneck Avenue
Beil Avenue West	35	Broad Street Extension to High Street
Birchwood Drive	15	
Blossom Hill Road	35	Tree line to George Town Road
Blossom Hill Road	25	To Gun Club Road, LR 48073 to tree line of Werner Road
Brickyard Road	15	
Cameron Street	25	
Charles Avenue	25	
Christian Springs Road	25	
Christman Avenue	15	
Eley Street	25	
El Reno Avenue	25	North of Pa. TR 191 and South of Pa. TR 191
Friedenstahl Avenue	35	

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Street	Maximum Speed Limit (mph)	Between
Friedenstahl Avenue (T-514) **[Added by Ord. No. 187, 12/15/2021]**	25	East Lawn Road (SR191) to 5th Street (T-580)
Friedenstahl Avenue	25	Tatamy Road (SR 1002) and 5th Street (TR 580)
George Avenue	25	
Georgetown Road	25	From LR 48063 to Pa. Rte 946
Georgetown Road	35	Route 946 North to Township line
Glenside Avenue	25	
Gum Street	15	
Gun Club Road	25	
Henry Avenue	25	
Hill Street	15	
Hillside Avenue	25	
Hock Avenue	25	
Holley Street	25	
Industrial Drive Road	25	
Kessler Street	25	
Levis Street	25	
Liberty Street	25	
Longley Road	25	
Meyers Street	25	
Michael's Road	25	
Mitchell Avenue	25	
Monroe Street	25	
Morris Alley	15	
Morris Street	15	
Mt. Vernon Avenue	25	
Newport Road	25	North of Pa. TR 191
Newport Street	15	South of Pa. TR 191
Parkside Avenue	25	
Penn Allen Road	35	To Longley Road

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Street	Maximum Speed Limit (mph)	Between
Penn Allen Road	25	Longley Road to Route 248
Penn Dixie Road	25	
Pine Alley	15	
Porter Street	15	
Rose Inn Avenue	25	East Lawn Avenue and the Township boundary with Bushkill Township
Rose Inn Avenue	35	North of Pa. TR 191
Rose Inn Avenue	25	South of Pa. TR 191
Schoeneck Avenue	35	
Schoeneck Avenue (T-585) **[Added by Ord. No. 187, 12/15/2021]**	25	Municipal boundary with Bushkill Township (Northampton County) to East Lawn Road (SR191)
Seyfried Avenue	25	
Silver Crest Road	35	
Sterner Road	35	
St. Elmo Street	25	East and west
Sycamore Street	25	
Township Line Road	25	
Wayne Alley	15	
Werner Road	25	
West Highland Avenue	15	
West Street	15	
Willowdale Avenue	25	

2. Any person who violates any provision of this section, upon conviction, shall be sentenced to pay a fine of $35 and costs. Any person exceeding the maximum speed limit by more than five miles per hour shall pay an additional fine of $2 per mile for each mile in excess of five miles per hour over the maximum speed limit.

§ 15-202. Maximum Speed Limits Established on Certain Bridges and Elevated Structures. [A.O.]

1. Maximum speed limits are established, as follows, on certain bridges and elevated structures, and it shall be unlawful for any person to drive a vehicle on any such bridge or elevated structure at a higher speed than the maximum prescribed for that bridge or elevated structure:

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Bridge or Elevated Structure	Location	Maximum Speed Limit
	(Reserved)	

2. Any person who violates any provision of this section, upon conviction, shall be sentenced to pay a fine of $35 and costs. Any person exceeding the maximum speed limit by more than five miles per hour shall pay an additional fine of $2 per mile for each mile in excess of five miles per hour over the maximum speed limit.

§ 15-203. Maximum Speed Limits Established for Certain Vehicles on Hazardous Grades. [A.O.]

1. The following are declared to be hazardous grades and, upon any such hazardous grade, no person shall drive a vehicle, having a gross weight in excess of that referred to for that grade, in the direction stated for that grade, at a speed in excess of that established in this section for that grade, and, if so stated for a particular grade, the driver of every such vehicle shall stop the vehicle before proceeding downhill:

Street	Between	Direction of Travel	Maximum Gross Weight	Maximum Speed Limit	Required to Stop Before Proceeding Downhill
			(Reserved)		

2. Any person who violates any provision of this section, upon conviction, shall be sentenced to pay a fine of $35 and costs. Any person exceeding the maximum speed limit by more than five miles per hour shall pay an additional fine of $2 for each mile in excess of five miles per hour over the maximum speed limit.

§ 15-204. Maximum Speed Limits Established in Parks. [A.O.]

1. A speed limit of 15 miles per hour is established on all streets and roadways in the public parks maintained and operated by the Township, except in the following locations, where the lower maximums, as specified, shall apply:

Park	Street	Location	Maximum Speed Limit
		(Reserved)	

2. Any person who violates any provision of this section, upon conviction, shall be sentenced to pay a fine of $35 and costs. Any person exceeding the maximum speed limit by more than five miles per hour shall pay an additional fine of $2 per mile for each mile in excess of five miles per hour over the maximum speed limit.

§ 15-205. Traffic Signals at Certain Locations. [A.O.]

1. At the following locations traffic signals as indicated below shall be erected (or are ratified if previously erected), and traffic at those locations shall be directed by those signals:

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Location	Type of Signal
(Reserved)	

2. Any driver of a vehicle who disobeys the directions of any traffic signal, upon conviction, shall be sentenced to pay a fine of $25 and costs.

§ 15-206. Intersections Where Turn Prohibited on Red Signal. [A.O.]

1. The following are established as intersections where drivers of vehicles headed in the direction or directions indicated are prohibited from making a right turn (or a left turn from a one-way street into another one-way street) on a steady red signal:

Intersection	Vehicles Traveling On	Facing
(Reserved)		

2. Any driver of a vehicle who violates any provision of this section, upon conviction, shall be sentenced to pay a fine of $25 and costs.

§ 15-207. One-Way Roadways Established. [A.O.]

1. The following are established as one-way roadways, and it shall be unlawful for any person to drive a vehicle on any one-way street other than in the direction established for traffic on that street:

Street	Direction of Travel	From	To
Blossom Hill Road	West	Gun Club Road	Bath and exiting on Newburg Road, PA Route 48063
Hoch Street (Hoch Avenue)	North and east	SR 191	Schoeneck Avenue (T-585)

2. Any person who violates any provision of this section, upon conviction, shall be sentenced to pay a fine of $25 and costs.

§ 15-208. Turning at Certain Intersections Prohibited or Restricted. [A.O.]

1. It shall be unlawful for the driver of any vehicle of the type indicated traveling upon the first-named street at any of the following intersections, in the direction or directions indicated in each case, to make a left turn and/or a right turn into the second-named street, as indicated, at any time when such a turn is prohibited by this section:

Vehicles Traveling On	Direction of Travel	Not to Make Turn	Into	When	Type of Vehicle Applicable To
(Reserved)					

2. Any person who violates any provision of this section, upon conviction, shall be sentenced to pay a

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fine of $25 and costs.

§ 15-209. Right Turns Prohibited at Certain Intersections. [A.O.]

1. It shall be unlawful for the driver of any vehicle traveling upon the first-named street at any of the following intersections, in the direction or directions indicated in each case, to make other than a left turn, at any time stated, both right turns and straight-across traffic being prohibited:

Vehicles Traveling On	Direction of Travel	Times	Not To Make Right Turn Into or Travel Straight Across
(Reserved)			

2. Any person who violates any provision of this section, upon conviction, shall be sentenced to pay a fine of $25 and costs.

§ 15-210. U-turns Prohibited at Certain Locations. [A.O.]

1. It shall be unlawful for the driver of any vehicle traveling upon any of the following portions of streets, in the direction or directions indicated for that street, to make a U-turn:

Street	Portion	Direction of Travel
(Reserved)		

2. Any person who violates any provision of this section, upon conviction, shall be sentenced to pay a fine of $25 and costs.

§ 15-211. No Passing Zones Established. [A.O.]

1. The following are established as no passing zones, and it shall be unlawful for the driver of any vehicle to overtake or pass another vehicle or to drive on the left side of the roadway in any no passing zone:

Street	Direction of Travel	Between
(Reserved)		

2. Any person who violates any provision of this section, upon conviction, shall be sentenced to pay a fine of $25 and costs.

§ 15-212. Through Highways Established. [A.O.]

1. The following highways are established as through highways, thus authorizing stop or yield signs to be erected facing traffic approaching every intersection with the through highway except for those intersections with traffic signals, or with exceptions or modifications as indicated below. Every driver of a vehicle approaching a stop or yield sign authorized by this section shall stop the vehicle or yield right-of-way as required by 75 Pa.C.S.A. §§ 3323(b), 3323(c) of the Vehicle Code, as the case may be, and shall not proceed into or across the through highway until he has followed all applicable requirements of that section of the law:

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Highway	Between
(Reserved)	

2. Any person who violates any provision of this section, upon conviction, shall be sentenced to pay a fine of $25 and costs.

§ 15-213. Stop Intersections Established. [A.O.; Ord. No. 200, 2/5/2025]

1. The following intersections (in addition to intersections with the through highways established by § 15-212) are established as stop intersections, and official stop signs shall be erected (or are ratified if previously erected) in such a position as to face traffic approaching the second-named street (the intersecting or through street) on the first-named street (the stop street) in the direction or directions indicated for that intersection. Every driver of a vehicle approaching the intersection on the first-named or stop street, in the direction indicated in each case, shall stop the vehicle as required by of the Vehicle Code, 75 Pa.C.S.A. § 3323(b), and shall not proceed into or across the second-named or intersecting or through street until he has followed all applicable requirements of that section of the law.

Stop Street	Direction of Travel	Intersecting or Through Street
1st Street	East and west	North Friedenstahl Avenue
1st Street (two-way)	East and west	Mt. Vernon Avenue
2nd Street	East and west	Farmview Road
2nd Street	East and west	Friedenstahl Avenue
2nd Street (T stop)	West	Mt. Vernon Avenue
3rd Street (T stop)	West	Friedenstahl Avenue
4th Street	West	NHS entrance
4th Street	East and west	Farmview Road
4th Street (T stop)	East	Friedenstahl Avenue
4th Street (T stop)	West	Friedenstahl Avenue
5th Street (T stop)	East	Friedenstahl Avenue
5th Street (T stop)	West	Friedenstahl Avenue
Allen Street (T stop)	East	Newport Avenue
Allen Street (T stop)	West	Rose Inn Avenue
Alms Alley	East	Christian Springs
Alms Alley	West	Alms House
Alms House Road (T stop)	North	Bath Pike (SR0248)
Alms House Road (T stop)	South	Christian Springs Road
Aster Street (T stop)	North	West Beil Avenue

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Stop Street	Direction of Travel	Intersecting or Through Street
Aster Street (T stop)	South	West Highland Terrace
Birchwood Circle	East	Birchwood Drive
Birchwood Drive (T stop)	South	West Highland Terrace
Blossom Hill Road (two-way)	East and west	Gun Club Road
Blossom Hill Road (T stop)	East	Georgetown Road
Blossom Hill Road (T stop)	South	Bath-Newburg Hwy (SR3020)
Blossom Hill Road	West	Gun Club Road
Briarwood Lane	North	Penn Allen Road
Briarwood Lane	West	Fieidview Drive
Cameron Street (two-way)	East and west	Monroe Street
Cameron Street (T stop)	East	Hoch Street
Cameron Street (T stop)	West	Newport Avenue
Central Avenue	North	1st Street
Central Street (T stop)	South	Tatamy Road (SR1002)
Charles Avenue (T stop)	East	Seyfried Avenue
Charles Avenue (T stop)	West	North Liberty Street (SR0248)
Chestnut Street (T stop)	East	North Liberty Street
Christian Springs (T stop)	West	Daniels Road (SR0946)
Christian Springs (T stop)	Northeast	Bath Pike (SR0246)
Christian Springs Einfalt's (T stop)	West	Daniels Road (SR0946)
Christiman Avenue (T stop)	West	Friedenstahl Avenue
Christman Avenue (two-way)	East and west	Meyers Street
Christman Avenue (T stop)	East	Eley Street
City View (T stop)	South	East Beil Avenue
Creekside Drive (T stop)	South	West Highland Terrace
Creekside Drive (T stop)	East	Aster Street
Daniels Road	North and south	Georgetown Road
Daniels Road (946)	North and south	Bath Pike (SR0248)
Deerfield Drive (T stop)	North	Holly Street
Deerfield Drive (T stop)	South	East Lawn Road (SR0191)
East Beil Avenue (four-way)	South	Deerfield Drive

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Stop Street	Direction of Travel	Intersecting or Through Street
East Bell Avenue (four-way)	West	Shoeneck Avenue
East Bell Avenue (T stop)	East	Schoeneck Avenue
East Beil Avenue (T stop)	West	Rose Inn Avenue
East St Elmo Street (two-way)	East and west	El Reno Avenue
East St Elmo Street (T stop)	East	Newport Avenue
El Reno Avenue (two-way)	North and south	East Lawn Road (SR0191)
El Reno Avenue (T stop)	North	Allen Street
El Reno Avenue (T stop)	South	Mitchell Avenue
Eley Street (T stop)	North	East Lawn Road
Fairview Street	East	North Liberty Street
Farmview Road	North	5th Street
Farmview Road	South	Tatamy Road
Farmview Road	North and south	1st Street
Farmview Road	South and north	3rd Street
Fieldview Drive	East	Briarwood Lane
Fieldview Drive	East and west	Lynnwood Drive
Fox Road (two-way)	East and west	Penn Dixie Road
Friedenstahl Avenue (two-way)	North	East Lawn Road
Friedenstahl Avenue (T stop)	South	Tatamy Road (SR1002)
Friedenstahl Avenue	North and south	5th Street
Garden Terr (T stop)	East	North Liberty Street
George Street (T stop)	East	El Reno Avenue
George Street (T stop)	West	North Liberty Street
Georgetown Road (two-way)	East and west	Daniels Road (SR0946)
Georgetown Road (T stop)	North	Georgetown Road
Gracedale Avenue (T stop)	South	Bath Pike (SR0248)
Gum Street (T stop)	South	West St Elmo Street
Gun Club Road (T stop)	North	Bath Pike (SR0248)
Gun Club Road	North and south	Blossom Hill Road
Gun Club Road	North and south	Tadmor Drive
Gun Club Road (T stop)	South	Bath/Newburg Hwy (SR3020)
Hemlock Lane (T stop)	West	Sycamore Street

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Stop Street	Direction of Travel	Intersecting or Through Street
Henry Avenue (T stop)	East	El Reno Avenue
Henry Avenue (T stop)	West	North Liberty Street
Hill Avenue (T stop)	West	Porter Street
Hill Avenue (T stop)	East	North Broad Street Ext (SR4025)
Hill Avenue (T stop)	West	Morris Street
Hoch Street (T stop)	South	East Lawn Road (SR0191)
Hoch Street (T stop)	East	Schoeneck Avenue
Holly Street	East	Longview Avenue
Holly Street	East and west	Deerfield Drive
Holly Street	East and west	Hopewell
Holly Street	West	Schoeneck Avenue
Hopewell (T stop)	North	Holly Street
Hopewell Avenue	North	Deerfield Drive
Hopewell Avenue (T stop)	South	East Lawn Road (SR0191)
Indian Tower (T stop)	South	West High Street (SR4021)
Industrial Drive (T stop)	South	Tatamy Road (SR1002)
Kessler Street (two-way)	East and west	Monroe Street
Kessler Street (T stop)	East	Hoch Street
Kessler Street (T stop)	West	Newport Avenue
Kingsbury Court (T stop)	South	Tewksbury Court
Klipple Street (two-way)	East and west	Rose Inn Avenue
Klipple Street (two-way)	East and west	El Reno Avenue
Klipple Street (T stop)	West	North Liberty Street
Klipple Street (T stop)	East	Newport Avenue
Kurt Drive	East and west	Newport Avenue
Kurt Drive (T stop)	East	Schoeneck Avenue
Kurt Drive (T stop)	West	Rose Inn Avenue
Levis Road (T stop)	East	West High Street (5R4021)
Langley Road (T stop)	South	Penn Allen Road
Longview Drive	North	Deerfield Drive
Longview Drive (T stop)	North	Holly Street

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Stop Street	Direction of Travel	Intersecting or Through Street
Longview Drive (T stop)	South	East Lawn Road (SR0191)
Lynn Lane (T stop)	East	Werner
Lynnwood Drive	North	Penn Allen Road
Lynnwood Drive	South	Briarwood Lane
Mallard Court	South	Briarwood Lane
Meyers Street (T stop)	North	East Lawn Road
Michaels School Road (T stop)	South	Bath Pike (SR0248)
Middle School exit	South	Tatamy Road
Middle School Faculty Lot	West	Middle School main lot
Middle School western driveway	Southeast	Middle School exit
Monroe Street (T stop)	South	East Lawn Road (SR0191)
Moravian Street (T stop)	East	North Liberty Street
Morris Alley	North	Hill Avenue
Morris Alley	South	Morris Street
Morris Street (T stop)	East	North Broad Street Ext (SR4025)
Mt. Vernon Avenue (two-way)	North and south	2nd Street
Mt. Vernon Avenue (two-way)	North and south	4th Street
Mt. Vernon Avenue (T stop)	North	5th Street
Mt. Vernon Avenue (T stop)	South	Tatamy Road (SR1002)
Municipal Bldg north entrance	West	Newport Avenue
Municipal Bldg south entrance	West	Newport Avenue
North Liberty Street and Mitchell Avenue (three-way)	West, north and south	
North Liberty Street (T stop)	West	East Lawn Road (SR0191)
Nathaniel Drive	South	Silvercrest Road
Nathaniel Drive	West	Township Line Road
Newport Avenue	South	Kingsbury Court
Newport Avenue (two-way)	North and south	East Lawn Road (SR0191)
Newport Avenue (T stop)	North	Tewksbury Court
Newport Avenue (T stop)	North	Kurt Drive
Newport Avenue (T stop)	North and south	East Beil Avenue

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Stop Street	Direction of Travel	Intersecting or Through Street
NHS entrance driveway	North	4th Street entrance
NHS exit	Southwest	Center and Victory
NHS faculty/student lot	North	4th Street entrance
NHS gym driveway	South	4th Street entrance
Penn Allen Road (two-way)	East and west	Daniels Road (SR0946)
Penn Allen Road (T stop)	South	Bath Pike (SR0248)
Penn Dixie Road (T stop)	South	Bath Pike (SR0248)
Pond Road (T stop)	North	Penn Allen Road
Pond Road (T stop)	South	Gracedale Avenue
Porter Street (T stop)	South	Morris Street
Ridge Lane	East	Deerfield Drive
Ridge Lane	West	Schoeneck Avenue
Rose Inn Avenue (two-way)	North and south	East Lawn Road (SR0191)
Rose Inn Avenue (T stop)	South	Henry Avenue
Sarah	South	Stoneybrook
Schoeneck Avenue (two-way)	South	East Lawn Road
Seyfried Avenue (T stop)	North	George Street
Seyfried Avenue (T stop)	South	Mitchell Avenue
Silo Circle (E)	South	5th Street
Silo Circle (W)	South	5th Street
Silvercrest (T stop)	Northeast	Bath/Newburg Hwy (SR3020)
Sterner Road (T stop)	East	Michael's School Road
Sterner Road (T stop)	West	Penn Dixie Road
Stoneybrook Road	West	Longview Drive
Sycamore and West Highland Terrace (four-way)		
Sycamore Street (T stop)	North	West Beil Avenue
Sycamore Street (T stop)	South	West St Elmo Street
Tadmor Drive	West	Gun Club Road
Tewksbury Circle	North	Tewksbury Court
Tewksbury Court	East	Schoeneck Avenue
Tewksbury Court (T stop)	West	Kingsburt Court

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Stop Street	Direction of Travel	Intersecting or Through Street
Tewksbury Court	West	Rose Inn Avenue
Township Line Road and Silvercrest (four-way)		
Township Line Road (T stop)	North	Bath/Newburg Hwy (SR3020)
West Beil Avenue (T stop)	East	Rose Inn Avenue
West Beil Avenue (two-way)	East and west	North Broad Street Ext (SR4025)
West Beil Avenue (T stop)	West	West High Street (SR4021)
West Highland Terrace (T stop)	West	Gum Street
West St Elmo Street (two-way)	East and west	Rose Inn Avenue
West St Elmo Street (T stop)	West	North Broad Street Ext (SR4025)
West Allen Street	East	Rose Inn Avenue
West Allen Street	West	Willowdale Avenue
West Highland Terrace (T stop)	East	Rose Inn Avenue
Wayne Street (two-way)	East and west	El Reno Avenue
Wayne Street (two-way)	East and west	Monroe Street
Wayne Street (T stop)	East	Hoch Street
Wayne Street (T stop)	West	Newport Avenue
Wayne Street (T stop)	West	Rose Inn Avenue
Wayne Street (T stop)	East	Newport Avenue
Werner Road (T stop)	West	Bath-Newburg Hwy(SR3020)
West Street (T stop)	South	Tatamy Road (SR1002)
White Fence (T stop) (2 stop signs)	West	Township Line Road
Willowdale Avenue and West St Elmo (four-way)		
Willowdale Avenue (T stop)	North	West Highland Terrace

2. Any person who violates any provision of this section, upon conviction, shall be sentenced to pay a fine of $25 and costs.

§ 15-214. Yield Intersections Established. [A.O.]

1. The following intersections (in addition to intersections with the through highways established by § 15-212) are established as yield intersections, and official yield signs shall be erected (or are ratified if previously erected) in such a position as to face traffic approaching the second-named street (the

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through street) on the first-named street (the yield street) in the direction or directions indicated for that intersection. Every driver of a vehicle approaching the intersection on the first-named or yield street, in the direction indicated in each case, shall slow down or stop the vehicle as required by 75 Pa.C.S.A. § 3323(c) of the Vehicle Code, and then yield the right-of-way as required by that subsection of the Vehicle Code.

Yield Street	Through Street	Direction of Travel
(Reserved)		

2. Any person who violates any provision of this section, upon conviction, shall be sentenced to pay a fine of $25 and costs.

§ 15-215. Operation of Motor Vehicles Restricted on Public Lands. [A.O.]

1. No motor vehicle including a motorcycle, pedalcycle or minibike shall be operated on any property owned by the Township or any other public agency or instrumentality within the Township without the permission of the property owner and a permit from the Chief of Police of the Township.

2. Any person who violates an provision of this section, upon conviction, shall be sentenced to pay a fine of $25 and costs.

§ 15-216. Rotary Traffic Islands Established. [A.O.]

1. The following locations are designated as rotary traffic islands, and every vehicle passing around a rotary traffic island shall be driven only to the right of the island:

Location
(Reserved)

2. Any person who drives a vehicle otherwise than to the right of any rotary traffic island shall be guilty of a violation of this section, and, upon conviction, shall be sentenced to pay a fine of $25 and costs.

§ 15-217. Snowmobile Roads Designated. [A.O.]

1. The following roads and streets within the Township are designated as special snowmobile roads:

Street or Road	Between	Used by Snow-mobiles Only When Closed to Vehicular Traffic	Shared With Vehicular Traffic
(Reserved)			

2. It shall be unlawful for any person to operate a snowmobile on any highway, street or road in the Township other than as provided above. Provided, nothing in this section shall prohibit any person from operating a snowmobile on any other street in the Township:

   A. As authorized by the Vehicle Code, 75 Pa.C.S.A. § 7721, for emergency and bridge crossings and for direct crossing of streets or two-lane highways.

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B. For special snowmobile events where authorized in advance and the street is blocked off as provided in the Vehicle Code, 75 Pa.C.S.A. § 7723. Any person who violates any provision of this section shall be subject to the penalties prescribed in § 7752(a) of the Vehicle Code, 75 Pa.C.S.A. § 7752(a).

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Part 3
RESTRICTIONS ON SIZE, WEIGHT AND TYPE OF VEHICLE AND LOAD

§ 15-301. Vehicle Weight Limits Established on Certain Streets and Bridges. [Ord. No. 181, 3/6/2019; as amended by Ord. No. 188, 4/6/2022]

1. On the following bridges and streets or parts of streets, by authority granted by § 4902(a) of the Vehicle Code, 75 Pa.C.S.A. § 4902(a), it shall be unlawful for any person or persons to drive any vehicle or combination having a gross weight in excess of the maximum prescribed below for that bridge or street or part of street, as the case may be:

Street or Bridge	Between	Maximum Gross Weight
Beil Avenue	North Broad Street Extension and Schoeneck Avenue	10,000 pounds
Friedenstahl Avenue Bridge	East Lawn Road and Tatamy Road	10,000 pounds or 5 tons
Gun Club Road (T-506)	Newburg Road (SR3020) northward a distance of 3,880 feet (driveway for 3363 Gun Club Road)	14,000 pounds
Klipple Street		5 tons
Lehigh Lane (T-596)	Bath Pike (SR248) and New England Drive (T-597)	14,000 pounds
New England Drive (T-597)	Bath Pike (SR248) and Lehigh Lane (T-596)	14,000 pounds
Rose Inn Avenue	Bell Avenue and East Lawn Road	10,000 pounds
Schoeneck Avenue	Township line north of Beil Avenue and East Lawn Road	10,000 pounds
Silvercrest Road	At the intersection with Newburg Road and continuing west to the Township border in the direction toward Township Line Road	7 tons
Willowdale Avenue	East Lawn Road and Highland Terrace	10,000 pounds

Provided, nothing in this section shall prohibit any person from driving an emergency vehicle or school bus on any of these streets or parts of streets, or from driving on any of these streets or parts of streets a truck or other commercial vehicle making local deliveries to or pickups from premises located along that street or part of a street.

2. Any person who violates any provision of this section shall be prosecuted under §§ 4902(a) and 4902(g-1) of the Vehicle Code, 75 Pa.C.S.A. §§ 4902(a), 4902(g-1) and, upon conviction, shall be sentenced to pay a fine of $150 plus $150 for each 500 pounds, or part thereof, in excess of 3,000

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pounds over the maximum allowable weight, and costs.

§ 15-302. Restrictions on Size of Vehicles on Certain Streets and Bridges. [Ord. No. 181, 3/6/2019; as amended by Ord. No. 188, 4/6/2022]

1. On the following bridges and streets or parts of streets, by authority granted by § 4902(a) of the Vehicle Code, 75 Pa.C.S.A. § 4902(a), it shall be unlawful for any person to drive any vehicle or combination in violation of the size restrictions prescribed below for that bridge or street or part of street:

Street or Bridge	Between	Restrictions
Gun Club Road (T-506)	Newburg Road (SR3020) northward a distance of 3,880 feet (driveway for 3363 Gun Club Road)	Maximum vehicle length 40 feet

2. Any person who violates any provision of this section shall be prosecuted under §§ 4902(a) and 4902(g)(1) of the Vehicle Code, 75 Pa.C.S.A. §§ 4902(a), 4902(g)(1) and, upon conviction, shall be sentenced to pay a fine of $75 and costs.

§ 15-303. Restrictions as to Weight and Size of Vehicles on Certain Streets and Bridges. [A.O.]

1. By reason of hazardous traffic conditions and other safety factors, by authority granted by § 4902(b) of the Vehicle Code 75 Pa.C.S.A. § 4902(b), it shall be unlawful for any person to drive any vehicle or combination in violation of the restriction prescribed below for that bridge or street or part of street.

Street or Bridge	Between	Restrictions
	(Reserved)	

2. Any person who violates any provision of this section shall be prosecuted under §§ 4902(b) and 4902(g)(2) of the Vehicle Code, 75 Pa.C.S.A. §§ 4902(b), 4902(g)(2), and, upon conviction, shall be sentenced to pay a fine of not more than $500 and costs.

§ 15-304. Truck Traffic Restricted on Certain Streets. [A.O.]

1. It shall be unlawful for any person to drive a vehicle other than a passenger car on any of the following streets or parts of streets:

Street	Between
Alms House Road	Christian Springs Road and Bath Pike (PA Route 248)
Christian Springs Road	Daniels Road (PA Route 946) and Bath Pike (PA Route 248)
Penn Allen Road	Daniels Road (PA Route 946) and Bath Pike (PA Route 248)

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Street	Between
Silvercrest Road	Upper Nazareth/Lower Nazareth boundary and Newburg Road, approximately 3,300 feet in length
Township Line Road	
Werner Road	
West St. Elmo Street	North Broad Street Extension to Rose Inn Avenue

Provided, nothing in this section shall prohibit any person from driving an emergency vehicle on any of those streets or parts of streets, or from driving on any of those streets or parts of streets a truck or other commercial vehicle making local deliveries to or pickups from premises located along that street or part of a street.

2. Any person who violates any provision of this section, upon conviction, shall be sentenced to pay a fine of $25 and costs.

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Part 4
GENERAL PARKING REGULATIONS

§ 15-401. Definitions. [Ord. No. 184, 6/3/2020[14]]

1. Words and phrases when used in this Part shall be the meanings ascribed to them under the Pennsylvania Vehicle Code, 75 Pa.C.S.A. § 101 et seq., as now in force, or as hereinafter amended, enacted or reenacted, except in those instances where the context clearly indicates a different meaning. The singular shall include the plural, and the masculine shall include the feminine.

2. The term "nonmotorized vehicle" is defined as every device in, upon or by which any person or property is or may be transported or drawn upon a highway, of a non-self-propelled nature, and shall include, but not be limited to, trailers, nonmotorized recreational vehicles, nonmotorized commercial vehicles, nonmotorized off-road construction equipment, or nonmotorized agricultural equipment.

§ 15-402. Parking Prohibited. [Ord. No. 184, 6/3/2020]

No person shall park, store, or leave standing any nonmotorized vehicle, tractor, trailer, motorized or nonmotorized recreational vehicle, motorized or nonmotorized commercial vehicle, boat trailer, off-road construction equipment, agricultural equipment, dumpsters, or storage units upon the paved or improved portion of any highway, Township road, street or alley within the Township of Upper Nazareth.

§ 15-403. Removal by or at Direction of Police. [Ord. No. 184, 6/3/2020]

Any police officer may remove or cause to be removed to the place of business of the operator of a wrecker or to a nearby garage or other place of safety any motorized or nonmotorized vehicle violating the provisions of § 15-402 herein, if, in the opinion of the police officer, removal is necessary for the immediate protection of the health, safety, and welfare of the public.

§ 15-404. Parking Prohibited in Mailbox Zone. [Ord. No. 184, 6/3/2020]

Parking of motor vehicles along the curb or edge of a roadway within 10 feet of a mailbox is prohibited.

§ 15-405. Designated No-Parking Zones. [Ord. No. 184, 6/3/2020]

Parking of motor vehicles is prohibited at the following locations:

Street	Side	Location
4th Street	North	From the entrance to Nazareth Area High School eastwardly 114 feet to driveway of 54 West 4th Street
4th Street	South	From the entrance to Nazareth Area High School eastwardly 98 feet to the driveway of 55 West 4th Street

14. Editor's Note: This ordinance superseded former Part 4, General Parking Regulations, adopted 3/6/2019 by Ord. No. 181.

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Street	Side	Location
Alley between North Broad Street Extension and Morris Street (Frank's Alley)	West	From Morris Street to Hill Avenue
Beil Avenue	South	From Sycamore Street to C.F. Martin property line
Briarwood Lane	North	From Penn Allen Road to Blue Jay Drive
Briarwood Lane	South	From Penn Allen Road to Fieldview Drive
Cameron Street	South	From Newport Avenue to Hoch Street
Christian Springs Road (T503)	Both	From SR 248 to SR 946 (Daniels Road)
East Lawn Road (SR 191)	South	From 310 East Lawn Road to 330 East Lawn Road
El Reno Avenue	East	From Klipple Street to East Lawn Road
Georgetown Road (T483)	Both	From eastern boundary with Lower Nazareth Township to SR 946 (Daniels Road)
Hill Avenue	South	From Morris Street to Porter Street
Industrial Drive	East	Entire length
Industrial Drive	West	From Haas Packaging (300 Industrial Drive) to Tatamy Road
Klipple Street	North	From North Liberty Street to Newport Avenue
Klipple Street	South	From North Liberty Street to Newport Avenue
Lynnwood Drive	North	From Penn Allen Road to Fieldview Drive
Lynnwood Drive	South	From Penn Allen Road to Fieldview Drive
Mount Vernon Avenue	East	From Tatamy Road to 5th Street
Mount Vernon Avenue	West	From Tatamy Road to 5th Street
Newport Avenue	East	From East Lawn Road to Wayne Street
Newport Avenue	West	From Klipple Street to end

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Street	Side	Location
North Liberty Street	East	From Mitchell Avenue to Township boundary line
SR 248	Both	From eastern boundary with Nazareth Borough to Christian Springs Road
Schoeneck Avenue	East	From East Lawn Road to Holly Street
Sycamore Street	East	In front of C.F. Martin Co.
Sycamore Street	West	No parking between signs

§ 15-406. Parking Time Limited in Certain Locations Certain Days and Hours. [Ord. No. 184, 6/3/2020; Ord. No. 201, 2/2/2025]

No person shall park a vehicle, or allow it to remain parked, for longer than the time indicated, in any of the following locations, at any time on the days and between the hours indicated:

Street	Side	Hours	Days	Between
1st Street*	North and South	7:00 a.m. to 5:00 p.m.	School days	Entire length
2nd Street*	North and South	7:00 a.m. to 5:00 p.m.	School days	Entire length
3rd Street*	North and South	7:00 a.m. to 5:00 p.m.	School days	Entire length
4th Street*	North and South	7:00 a.m. to 5:00 p.m.	School days	Entire length
5th Street*	North and South	7:00 a.m. to 5:00 p.m.	School days	Entire length
Farmview Drive*	East and West	7:00 a.m. to 5:00 p.m.	School days	Entire length
Friedenstahl Avenue*	East and West	7:00 a.m. to 5:00 p.m.	School days	From 5th Street to Tatamy Road
Mt. Vernon Avenue*	East and West	7:00 a.m. to 5:00 p.m.	School days	Entire length
Silo Circle*	East and West	7:00 a.m. to 5:00 p.m.	School days	Entire length

* Vehicles whose registration reflects ownership by residents on this street are exempt from this regulation.

§ 15-407. Signs. [Ord. No. 184, 6/3/2020]

There shall be erected official "no parking" signs identifying the location of the designated no-parking

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zones as set forth in §§ 15-405 and 15-406 set forth above. Said signs shall conform and be erected in accordance with Pennsylvania Department of Transportation regulations.

§ 15-408. Storage of Motor Vehicles Prohibited. [Ord. No. 184, 6/3/2020]

1. No vehicle shall be stored upon any road, street or alley within the Township of Upper Nazareth. As used herein, "stored" shall mean the parking of a motor vehicle in any one place upon a road, street or alley continuously for over 24 hours.

2. No person shall park a motor vehicle upon any road, street or alley in Upper Nazareth Township for any of the following purposes:

   A. Displaying the same for sale;

   B. Greasing or repairing.

3. No person shall park any motor vehicle on any road, street or alley or on private property where same is in public view, which:

   A. Does not display a current license plate; or

   B. Does not display a current inspection sticker; or

   C. Is not in operating condition; or

   D. Is a junk vehicle.

§ 15-409. Penalty. [Ord. No. 184, 6/3/2020]

Any person violating any provisions of this Part shall, upon summary conviction, be sentenced to pay a fine of not more than $50 and costs of prosecution, for each twenty-four-hour period the provisions of this Part are violated.

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Part 5
REMOVAL AND IMPOUNDMENT OF ILLEGALLY PARKED VEHICLES

§ 15-501. Applicability and Scope. [A.O.]

This Part is enacted under authority of § 6109(a)(22) of the Vehicle Code, 75 Pa.C.S.A. § 6109(a)(22), and gives authority to the Township to remove and impound those vehicles which are parked in a tow-away zone and in violation of parking regulations of this chapter. Vehicles which have been abandoned (as defined by the Vehicle Code) or which are parked in such a manner as to interfere with traffic or pose a hazard to others may be towed under the provisions of the Pennsylvania Vehicle Code.

§ 15-502. Authority to Remove and Impound. [A.O.]

The Township shall have authority to remove and impound, or to order the removal and impounding, of any vehicle parked overtime or otherwise illegally; provided that the circumstances of its parking were within the conditions stated in § 15-501. Provided, no such vehicle shall be removed or impounded except in strict adherence to the provisions of this Part or the provisions of the Vehicle Code.

§ 15-503. Tow Away Zones Designated. [A.O.]

The following designated streets and/or parking lots are hereby established as tow-away zones. Signs shall be posted to place the public on notice that their vehicles may be towed for violation of Township parking regulations:

Street	Side	Between	Parking Lot
(Reserved)			

§ 15-504. Designation of Approved Storage Garages; Bonding; Towing and Storage. [A.O.]

Removal and impounding of vehicles under this Part shall be done only by "approved storage garages" that shall be designated from time to time by the Township. Every such garage shall submit evidence to the Township that it is bonded or has acquired liability insurance in an amount satisfactory to the Township as sufficient to indemnify owners of impounded vehicles against loss or damage to those vehicles while in the custody of the garage keeper for the purpose of towing or storage. The approved storage garage shall submit to the Township its schedule of charges for towing and storage of vehicles under this Part and, when the schedule is approved by the Township, those charges shall be adhered to by the approved storage garage; no different schedule of charges shall be demanded of or collected from any person whose vehicle is removed or impounded under this Part by any approved storage garage. The Township shall delete from its list of approved storage garages any garage that makes any unapproved charge in connection with any vehicle removed or impounded under this Part.

§ 15-505. Payment of Towing and Storage Charges. [A.O.]

The payment of towing and storage charges shall not relieve the owner or driver of any vehicle from liability for any fine or penalty for the violation of the provision of this Part for which the vehicle was removed or impounded.

§ 15-506. Reclamation Costs. [A.O.]

In order to reclaim his vehicle, the owner shall pay towing and storage costs plus a $50 fee, of which $25

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shall be transferred to the Pennsylvania Department of Transportation by the garage to which the vehicle was taken.

§ 15-507. Records of Vehicles Removed and Impounded. [A.O.]

The Township shall cause a record to be kept of all vehicles impounded under this Part and shall be able at all reasonable times to furnish the owners or the agents of the owners of those vehicles with information as to the place of storage of the vehicle.

§ 15-508. Restrictions upon Removal of Vehicles. [A.O.]

No vehicle shall be removed under the authority of this Part or the Vehicle Code if, at the time of the intended removal, the owner or the person for the time being in charge of the vehicle is present and expresses a willingness and intention to remove the vehicle immediately.

§ 15-509. Penalty for Violation. [A.O.]

Any person who shall violate any provision of this Part, upon conviction thereof, shall be sentenced to pay a fine of $50 together with all costs of disposing of the vehicle under the provisions of the Vehicle Code, 75 P.S. § 7301 et seq.

§ 15-510. Reports and Disposition of Unclaimed Vehicles. [A.O.]

If after a period of 15 days the vehicle in storage remains unclaimed, a report shall be filed with PennDOT in accordance with § 7311 of The Vehicle Code, 75 Pa.C.S.A. § 7311 by the person having legal custody of the vehicle. If the vehicle has not been claimed after 30 days, the vehicle may be transferred to a licensed salvor who will then be responsible for filing the proper reports and disposing of the vehicle in accordance with the provisions of Chapter 73 of the Vehicle Code (75 Pa C.S.A. § 7301 et seq.).

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Part 6
SNOW AND ICE EMERGENCY

§ 15-601. Words and Phrases. [A.O.]

Words and phrases, when used in this Part 6 shall have the meanings ascribed to them in the Vehicle Code of the Commonwealth of Pennsylvania, 75 Pa.C.S.A. § 101 et seq., as now in force or as hereafter amended, enacted or reenacted, except in those instances where the context clearly indicates a different meaning. The singular shall include the plural, and the masculine shall include the feminine.

§ 15-602. Regulating, Restricting and Prohibiting Traffic and Parking. [A.O.]

The Board of Supervisors is hereby granted power to regulate, restrict and prohibit traffic and parking for limited times on the rights-of-way of any state highway or Township road within the Township in the event of a snow emergency.

§ 15-603. Definitions. [A.O.]

As used in this section, certain terms are defined as follows:

SNOW — Any precipitation depositing any accumulation on the streets and highways, including snow, sleet, hail, ice and freezing rain.

SNOW EMERGENCY — A state of highway condition that is hazardous and dangerous to vehicular and pedestrian traffic and is so declared by the Chief of Police of the Township, or his designee.

§ 15-604. Declaring a Snow and Ice Emergency. [A.O.]

In order to facilitate the movement of traffic and to combat the hazards of snow and ice on the streets, roads, and highways of the Township, the Chief of Police, in his discretion, may declare a snow and ice emergency, designated in this Part 6 as "snow emergency." Information on the existence of a snow emergency may be given by the Township through radio, newspaper or other available media, and information on the termination or modification of the emergency may be given by use of the same media.

§ 15-605. Snow Emergency Regulations. [A.O.]

1. Upon declaration of a "snow emergency" it shall be unlawful, at any time during the continuance of the snow emergency, for any person:

   A. To park or leave unattended a motor vehicle or to allow that vehicle to remain parked or unattended anywhere on the following roadways, streets, highways, or rights-of-way:

      (1) Snow Emergency Routes.

Beil Avenue	From Rose Inn Avenue to North Broad Street
Friedenstahl Avenue	From Tatamy Road to Route 191
Newport Avenue	From Route 191 to Tewksbury Court
Penn Allen Road	From Route 946 (SR 946) to Route 248 (SR 248)

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Rose Inn Avenue	From Route 191 to Bushkill Municipal Line
Schoeneck Road	From Route 191 to Bushkill Municipal Line
St. Elmo Street	From Willowdale Avenue to North Broad Street
Sycamore Street	From St. Elmo Street to West Beil Avenue
Willowdale Avenue	From Route 191 to St. Elmo Street

B. To blow snow or deposit snow on the roadways, streets, highways, or rights-of-way of any state or Township road.

§ 15-606. Removal of Vehicles During a Snow Emergency. [A.O.]

Any vehicle parked, stalled, incapable of moving under its own power or left unattended upon any roadway, street, highway, or right-of-way of any state or Township road during a snow emergency may be removed or towed to any other location upon order of the Township Police Department at the owner's expense.

§ 15-607. Penalties. [A.O.]

Any person, firm or corporation who shall violate any provision of this Part 6, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not less than $50 nor more than $1,000 plus costs for every violation, for the use of the Township, and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

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Part 7
REGULATION OF PEDALCYCLES AND NONMOTORIZED VEHICLES

§ 15-701. Riding and Parking of Pedalcycles on Sidewalks Along Certain Streets Prohibited. [A.O.]

1. It shall be unlawful for any person to ride or to park a pedalcycle on the sidewalk along the following portions of the streets in the Township:

Street	Side	Between
	(Reserved)	

2. Any person who violates any provision of this section, upon conviction, shall be sentenced to pay a fine of $5 and costs.

§ 15-702. Restrictions on Use of Pushcarts. [A.O.]

1. The word "pushcart," as used in this section, shall mean a vehicle, including a pedalcycle, propelled solely by human power, and used or intended for use for the display, transport, exhibit or sale of goods, wares or merchandise.

2. It shall be unlawful for any person to propel a pushcart upon any sidewalk in any business district except as necessary to move the pushcart to a location from which it is to be loaded or unloaded or from which goods, wares or merchandise are to be sold or dispensed under permit from the Township as provided in Subsection 3 of this section.

3. It shall be unlawful for any person to park a pushcart upon any sidewalk except for the purpose of selling or dispensing from that pushcart goods, wares or merchandise to passersby under permit from the Township. Every such permit shall be issued to the person making application for the permit, upon payment of a fee, which shall be for the use of the Township set by the Township by resolution. The permit shall be granted to the applicant, upon payment of the fee, and upon the applicant signing an agreement with the Township that he shall be bound by the conditions imposed by Township and made a part of the permit, dealing with the following matters:

   A. Restricting or limiting the parking of the pushcart to one or more stated locations upon the sidewalk and to stated days and hours at each location.

   B. Stating requirements to be adhered to in connection with the disposal of garbage and refuse resulting from the operations carried on.

   C. Requiring that there be no violation of any law, ordinance or regulation pertaining to health, sanitation and the handling of food or drink.

4. Any person who violates any provision of this section, or any condition of any permit granted under this section, upon conviction, shall be sentenced to pay a fine of $25 and costs.

§ 15-703. Skates, Skateboards, Coasters, Sleds and Other Toy Vehicles. [A.O.]

1. It shall be unlawful for any person to ride on a sled upon any sidewalk in the Township, or upon any roadway unless that roadway is on a portion of a street blocked off for sledding by authority of § 15-105. Provided, nothing in this subsection shall prevent a pedestrian from pulling a sled, with or without a rider, upon a sidewalk.

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2. It shall be unlawful for any person to engage in roller-skating, skateboarding or to ride upon or propel any coaster or other toy vehicle upon:

   A. Any street except in order to cross the roadway.

   B. Any sidewalk located in a business district, except that nothing in this subsection shall prevent a pedestrian from pulling a coaster or other toy vehicle, with or without a rider, upon a sidewalk.

3. Any person who violates any provision of this section, upon conviction, shall be sentenced to pay a fine of $5 and costs.

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Part 8
PEDESTRIAN REGULATIONS

§ 15-801. Pedestrians to Obey Traffic-Control Signs. [A.O.]

1. At all locations in the Township where official traffic-control signals are installed, pedestrians, except where directed otherwise by pedestrian-control signals installed under § 15-802 of this Part, shall obey the directions of those traffic-control signals, as follows:

   A. When facing a green signal, a pedestrian may proceed across the roadway within a crosswalk.

   B. When facing a steady yellow signal, a pedestrian shall not start to cross the roadway.

   C. When facing a steady red signal, a pedestrian shall not enter the roadway.

§ 15-802. Pedestrian-Control Signal Locations Established. [A.O.]

1. At the following locations, official pedestrian-control signals shall be erected (or are ratified if previously erected):

Location
(Reserved)

2. Every pedestrian facing a steady or flashing "Don't Walk" signal shall obey the directions of that signal, as follows:

   A. When facing a steady "Don't Walk" signal, a pedestrian shall not start to cross the roadway in the direction of the signal, but any pedestrian who has partially completed his crossing on the "Walk" signal should proceed to a sidewalk or safety zone while the "Don't Walk" signal is showing.

   B. When facing a flashing "Don't Walk" signal a pedestrian shall not start to cross the roadway in the direction of the indication, but any pedestrian who has partly completed crossing during the "Walk" indication should proceed to a sidewalk or safety zone.

   Any pedestrian who fails to obey the directions of a "Don't Walk" signal, as indicated above, shall be guilty of an offense and a violation of this Part.

§ 15-803. Locations Where Pedestrian Crossing in Unmarked Crosswalks Restricted. [A.O.]

Except when authorized by a police officer or other appropriately attired person authorized to direct, control or regulate traffic, it shall be unlawful for any pedestrian to cross the roadway at any of the following streets, at the intersection with that street indicated.

Street	Intersection	Direction of Travel
	(Reserved)	

§ 15-804. Locations Where Pedestrians May Cross Only in Crosswalk. [A.O.]

1. It shall be unlawful for any pedestrian:

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A. To cross any roadway in a business district within the Township except in a crosswalk.

B. To cross the roadway, in any of the following portions of streets in the Township, except in a crosswalk.

Street	Between
(Reserved)	

Provided, nothing in this section shall permit any pedestrian to cross in a crosswalk at any location where that crossing is prohibited by § 15-802 of this Part.

§ 15-805. Penalty for Violation. [A.O.]

Any pedestrian who violates any provision of this Part shall be guilty of a summary offense and, upon conviction, shall be sentenced to pay a fine of $5 and costs.

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Chapter 16

PARKS AND RECREATION

Part 1
RULES AND REGULATIONS

§ 16-101. Definitions.
§ 16-102. Park Hours.
§ 16-103. Prohibited Conduct.
§ 16-104. Fishing.
§ 16-105. Reservation for Specific Uses.
§ 16-106. Authorization to Promulgate Additional Rules.
§ 16-107. Authority to Close Areas.
§ 16-108. Enforcement.
§ 16-109. Penalties.

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Part 1
RULES AND REGULATIONS

§ 16-101. Definitions. [Ord. 85, 3/12/2003, § 1]

As used in this Part, the following terms shall have the meanings indicated, unless a different meaning clearly appears from the context:

PARK or PARKS — Unless specifically limited, shall be deemed to include all parks, playgrounds, recreation areas, tennis courts, beaches, recreation structures and facilities, and also entrances and approaches thereto, and all other land or property or structures under the jurisdiction of the Board of Supervisors or its designee, now or hereafter owned or acquired by the Township for park or recreational purposes.

PERSON — Any natural person, corporation, organization of persons, company, association or partnership.

RULES AND REGULATIONS — Any rules and regulations hereby or hereafter promulgated by the Board of Supervisors or its designee under the authority herein conferred.

§ 16-102. Park Hours. [Ord. 85, 3/12/2003, § 2]

All parks shall be opened daily to the public at such hours as the Board of Supervisors or its designee may from time to time designate, but in no event shall any person be permitted to be in attendance in any park between 9:00 p.m., and sunrise, unless special permission be granted by the Board of Supervisors or its designee.

§ 16-103. Prohibited Conduct. [Ord. 85, 3/12/2003, § 3]

1. No person in attendance at a park shall:

   A. Injure, deface, remove, cut or damage any of the trees, plants, shrubs, turf, buildings, structures, signs or fixtures, or any other property of the Township located within the park.

   B. Litter any area of the park with garbage, paper, bottles, cans or other waste material; nor dispose of the same in any way except in receptacles designated for such purpose.

   C. Kindle or maintain any fire in the park except in fireplaces or areas specially designated for that purpose and located by authority of the Board of Supervisors or its designee.

   D. Remove any bench, seat, table or other appliance without permission of the Board of Supervisors or its designee.

   E. Injure, deface, destroy or remove any notice, rule or regulation posted at any place within the park by authority of the Board of Supervisors or its designee; nor shall any notice or placard be posted within the park other than by authority of said Board.

   F. Set up any booth, table or stand for the sale of any article or service whatsoever within the limits of the park without permission of the Board of Supervisors or its designee; distribute, sell, service or rent any services or commodity or solicit for any purpose without permission of the Board of Supervisors or its designee.

   G. Operate, stop or park any vehicle, bicycle or other means of conveyance except in areas where permitted or designated by proper authority of the Board of Supervisors or its designee, or

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operate the same in a reckless or negligent manner or in excess of any posted speed limit or in such a manner as to become a nuisance to other area users.

H. Operate commercial vehicles, unless providing authorized services.

I. Bring onto the premises, possess or consume any alcoholic beverage or illegal drugs of any kind; no person shall enter the park in an intoxicated state or otherwise be under the influence of alcohol or illegal drugs.

J. Play ball, swim, golf, pitch horseshoes, engage in archery, camp, engage in finding buried objects with special detectors, or participate in any other form of recreation, sporting endeavor or pastime, except in those areas which may be designated from time to time for that purpose by the Board of Supervisors or its designee.

K. Disrobe or change clothing except in buildings or facilities made available for that purpose.

L. Disturb the peace by any conduct so as to annoy any other person using the park for recreational purposes.

M. Operate a snowmobile, minibike, motorcycle, or any vehicle, recreational or otherwise, except on designated roads, traits, or areas set aside for their use.

N. Use threatening, abusive, insulting, profane or obscene language or words.

O. Commit any disorderly or immoral acts.

P. Hold any public meeting or rally with more than five persons or engage in any marching or driving as members of a military, political or other organization without permission of the Board of Supervisors or its designee, which requires a statement of information, including the name of the organization, its purpose, number of persons expected to be invited, expected duration and name(s) of person(s) in charge.

Q. Disobey a proper order of a police officer or Board of Supervisors or its designee member, or disobey or disregard or fail to comply with any rule or regulation, warning, prohibition, instruction or direction given by an authorized person and posted or displayed by sign, notice, bulletin, card, poster, or when notified or informed as to its existence by the Board of Supervisors or its designee or an authorized person.

R. Hunt for, capture or kill, or attempt to capture or kill, or aid or assist in the capturing or killing of in any manner, any wild bird or wild animal of any description, either game or otherwise, and to that end, it is unlawful for any person to carry onto or possess in any park, a shotgun or rifle or pistol or firearm of any make or kind unless specific permission is granted for a designated area by authority of the Board of Supervisors or its designee.

S. Allow pets to run at large out of control.

§ 16-104. Fishing. [Ord. 85, 3/12/2003, § 4]

All laws pertaining to fishing in the commonwealth shall apply to fishing in parks and recreation areas, and provisions thereof are hereby incorporated by reference.

§ 16-105. Reservation for Specific Uses. [Ord. 85, 3/12/2003, § 5]

1. The use of all parks shall be on a first come, first served basis unless otherwise reserved:

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A. By annual permission granted by the Board of Supervisors or its designee for the scheduling of various league games, etc.

B. Township recreation programs.

C. By permission granted by the Board of Supervisors or its designee for a specific requested use.

§ 16-106. Authorization to Promulgate Additional Rules. [Ord. 85, 3/12/2003, § 6]

The Board of Supervisors or its designee is authorized to establish additional rules and regulations as deemed necessary which shall be approved by the Board of Supervisors before becoming effective.

§ 16-107. Authority to Close Areas. [Ord. 85, 3/12/2003, § 7]

Recreation facilities which become hazardous for public use due to weather, water, fire or unforeseeable conditions may be closed only at the discretion of the Board of Supervisors.

§ 16-108. Enforcement. [Ord. 85, 3/12/2003, § 8]

The police officers of Upper Nazareth Township are charged with enforcement of the provisions of this Part and of rules and regulations promulgated by the Board of Supervisors or its designee.

§ 16-109. Penalties. [Ord. 85, 3/12/2003, § 9; as amended by A.O.]

Any person, firm or corporation who shall violate any provision of this Part, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

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Chapter 17

(RESERVED)

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UPPER NAZARETH CODE

Chapter 18

SEWERS AND SEWAGE DISPOSAL

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Part 1
SEWER DISTRICTS

ARTICLE A.
Sewer District No. 1.

§ 18-101. Creation and Establishment. [Ord. 12, 6/22/1966, § 1]

The following described area shall constitute the Schoeneck Park View Sewer District:

Being all of the lands as shown on Plan of "Schoeneck Park View," dated June 25, 1946, and traced by B.H. Freestone, November 29, 1949, and recorded in the Office for the Recording of Deeds in and for Northampton County, at Easton, Pennsylvania, Lin Map Book 14, Page 2.

Beginning at the intersection of L.R. 48043 with Park View Avenue, Township Road 562: thence northerly along L.R. 48043 1,300 feet more or less, to the intersection of L.R. 48043 with Hill Avenue, Township Road 563; thence westwardly along Hill Avenue, Township Road 563, 300 feet, more or less, to the intersection of Hill Avenue, Township Road 563, with Morris Street, Township Road 564; thence along a curve to the left northwestwardly and southwestwardly, respectively, 400 feet, more or less, to the west limit of Hill Avenue, Township Road 563, and the northern limit of Porter Street, Township Road 562; thence southerly along said Porter Street, Township Road 562, 400 feet, more or less, to the northerly limit of Park View Avenue; hence along Park View Avenue southeasterly 600 feet, more or less, to the point and place of beginning. Also, beginning at the aforesaid west limit of Hill Avenue, Township Road 563; thence north 250 feet, more or less, to the northern boundary of land, being the northern extension of Porter Street as adopted by the Township Board of Supervisors July, 1964.

Said District shall consist of all lands adjacent to the west side of aforementioned L.R. 48043, and adjacent to and encompassed by the aforementioned roadways as described above.

§ 18-102. Proceeding with the Construction of Sewers. [Ord. 12, 6/22/1966, § 2]

The Township Supervisors are hereby authorized to proceed with the construction of sewers within said Sewer District as expeditiously as possible and to finance and pay for the same in any of the ways and means provided by the Second Class Township Code of the Commonwealth of Pennsylvania, 53 P.S. § 65101 et seq., or other statutes of the commonwealth applicable to municipal corporations for such purposes.

§ 18-103. Requiring Adjacent Property Owners to Make Connection. [Ord. 12, 6/22/1966, § 3]

The Township Supervisors are hereby empowered to require adjoining and adjacent property owners to make connection therewith and use such sewer system in such manner as they may order.

§ 18-104. Neglecting or Refusing to Connect. [Ord. 12, 6/22/1966, § 4]

In case any owner of property adjoining or adjacent to the sewer line or district shall neglect or refuse to connect with or use said sewer for a period of 60 days after notice to do so has been served upon him by the Township Supervisors either by personal service or registered mail, said Supervisors or their agents may enter upon such property and construct such connection. In such case, the Supervisors shall forthwith, upon completion of the work, send an itemized bill of the costs of construction of such connection to the owner of the property to which said connection has been so made, which bill shall be payable forthwith.

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§ 18-105. Penalties. [Ord. 12, 6/22/1966, § 5; as amended by A.O.]

Any person, firm or corporation who shall violate any provision of this Part, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense. Said fine or penalty to be for the use of the Township.

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ARTICLE B.
Sewer District No. 2.

§ 18-111. Creation and Establishment. [Ord. 13, 11/22/1966, § 1]

The following described area shall constitute Sewer District No. 2:

All those parcels or tracts of land situate wholly or partly within the following boundary:

> Beginning at a point lying distant, 400 feet southerly from the intersection of West Street with Tatamy Road, (L.R. 48025); thence northwardly 2,500 feet more or less to a point, lying 400 feet north of Fifth Street; thence parallel to and 400 feet north of said Fifth Street, eastwardly 800 feet more or less; thence southerly, 2,500 feet more or less to a point lying 400 feet south of the first mentioned Tatamy Road, (L.R. 48025); thence 400 feet south and parallel to said Tatamy Road, westwardly 1,200 feet more or less to the point and place of beginning.

§ 18-112. Proceeding with the Construction of Sewers. [Ord. 13, 11/22/1966, § 2]

The Township Supervisors are hereby authorized to proceed with the construction of sewers within said Sewer District No. 2 as expeditiously as possible and to finance and pay for the same in any of the ways and means provided by the Second Class Township Code, 53 P.S. § 65101 et seq., of the Commonwealth of Pennsylvania or law of the Commonwealth of Pennsylvania relating to such purposes, etc.

§ 18-113. Requiring Adjacent Property Owners to Make Connection. [Ord. 13, 11/22/1966, § 3]

The Township Supervisors are hereby empowered to require adjoining and adjacent property owners to make connection therewith and use such sewer system in such manner as they may order.

§ 18-114. Neglecting or Refusing to Connect. [Ord. 13, 11/22/1966, § 4]

In case any owner of property adjoining or adjacent to the sewer line or district shall neglect or refuse to connect with or use said sewer for a period of 60 days after notice to do so has been served upon him by the Township Supervisors either by personal service or registered mail, said Supervisors or their agents may enter upon such property and construct such connection. In such case, the Supervisors shall forthwith, upon completion of the work, send an itemized bill of the costs of construction of such connection to the owner of the property to which said connection has been so made, which bill shall be payable forthwith.

§ 18-115. Penalties. [Ord. 13, 11/22/1966, § 5; as amended by A.O.]

Any person, firm or corporation who shall violate any provision of this Part, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense. Said fine or penalty to be for the use of the Township.

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ARTICLE C.
Sewer District No. 3.

§ 18-121. Description. [Ord. 14, 11/22/1966, § 1]

All those parcels or tracts of land situate wholly or partly within the following boundary:

> Beginning at a point lying distant, 400 feet southerly from the intersection of West Street with Tatamy Road, (L.R. 48025): thence northwardly 2,500 feet more or less to a point, lying 400 feet north of Fifth Street: thence parallel to and 400 feet north of said Fifth Street, eastwardly 800 feet more or less; thence southerly, 2,500 feet more or less to a point lying 400 feet south of the first mentioned Tatamy Road, (L.R. 40025); thence 400 feet south and parallel to said Tatamy Road, westwardly 1200 feet more or less to the point and place of beginning.

The foregoing is shown on a map or plan which will constitute a part of the ordinance and map or plan shall be available for inspection at the office of the Township Secretary.

§ 18-122. Incurring all Proper and Necessary Expenses. [Ord. 14, 11/22/1966, § 2]

1. The Supervisors and officers are hereby authorized and empowered to incur all proper and necessary expenses to:

   A. Obtain more complete information concerning the Water District and, if necessary, divide said Water District and to better locate and define the Water District or Districts hereby created.

   B. Negotiate with the Blue Mountain Water Company for the purpose of furnishing and supplying water to the said District and to enter into a contract or contracts with the Blue Mountain Water Company or with any other, corporation, partnership, person or persona for the purpose of purchasing materials and providing labor for the laying of water lines and providing for a supply of water for public or private uses in said Water District.

   C. Determine the frontage of the various property owners on the various roads and streets within the said Water District and to make assessments against said property owners according to law.

   D. Borrow such sum or sums of money within the legal borrowing capacity of the Township as is necessary to finance the providing for a supply of water in said Water District, all sums so borrowed and expended in said Water District, including the financing costs, as well as all other expenses are to be charged to the cost of providing the supply of water in said Water District which costs will be assessed as aforestated.

   E. Fully and effectively furnish water or water service to tho property owners within said District or Districts according to law.

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Part 2
NAZARETH BOROUGH MUNICIPAL AUTHORITY

§ 18-201. Definitions. [Ord. 49, 11/11/1987, § 1]

For the purpose of this Part, unless otherwise expressly used, the following terms shall have the meanings herein respectively indicated:

AUTHORITY — Nazareth Borough Municipal Authority, a Pennsylvania municipality authority.

BOARD — The Board of Supervisors of Upper Nazareth Township.

BUILDING SEWER — The extension from the sewage drainage system of any structure to the lateral of a sewer.

IMPROVED PROPERTY — Any property located within the Township upon which there is erected a structure intended for continuous or periodic habitation, occupancy or use by human beings or animals and from which structure sanitary sewage and/or industrial waste shall be or may be discharged.

INDUSTRIAL ESTABLISHMENT — Any room, group of rooms, building or other enclosure used or intended for use, in whole or in part, in the operation of a business enterprise for the manufacturing, fabricating, processing, cleaning, laundering or assembling of any product, commodity or article, or from which any process waste, as distinct from sanitary sewage, shall be discharged.

INDUSTRIAL WASTES — Any solid, liquid or gaseous substance or waterborne wastes or form of energy rejected or escaping in the course of any industrial, manufacturing, trade or business process or in the course of the development, recovery or processing of natural resources, as distinct from sanitary sewage.

LATERAL — That part of the sewer system extending from sewer to the curbline, or, if there shall be no curbline to the property line, or, if no such lateral shall be provided, then "lateral" shall mean that portion of, or place in, a sewer which is provided for connection of any building sewer.

OWNER — Any person vested with ownership, legal or equitable, sole or partial, of any improved property.

PERSON — Any individual, firm, partnership, company, association, society, trust, corporation or other group or entity of any kind.

SANITARY SEWAGE — Normal water-carried household and toilet wastes discharged from any improved property.

SEWER — Any pipe, main or conduit constituting a part of the sewer system used or usable for sewage collection purposes.

SEWER SYSTEM — All facilities, as of any particular time, for collecting, transporting, pumping, treating and disposing of sanitary sewage and industrial wastes, situate in or adjacent to this Borough, owned and operated by the Authority.

STREET — Any street, alley, public way and public place as now laid out, whether opened or unopened, dedicated to public use, and all extensions or additions thereof as may now or hereafter be made.

TOWNSHIP — The Township of Upper Nazareth, Northampton County, Pennsylvania, a municipality of the Commonwealth of Pennsylvania, acting by and through its Board of Supervisors, or, in appropriate cases, acting by and through its authorized representatives.

§ 18-202. Entering into an Agreement. [Ord. 49, 11/11/1987, § 2]

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1. The Township, by and through its Board of Supervisors, shall enter into an agreement with the Authority which agreement shall provide that:

   A. The Board shall appoint a voting representative to be a member of the Authority.

   B. Said agreement shall provide, inter alia, for the following:

      (1) Convey to the Authority all of Township's right, title and interest in the sewer lines presently installed within the Township, owned by the Township, and known as Sewer Districts No. 1 and No. 2, and for the Authority to be responsible for the payment of the balance of the of debt existing for said Sewer Districts.

      (2) Granting to the Authority the right and privilege of constructing, maintaining and operating within the Township, a collection system for sanitary sewage which sewage will be transported by said system to the expanded plant of the Authority.

      (3) To authorize the Authority in the operation of the construction, maintenance and operation of the collection system to provide for the payment of the necessary costs of construction, maintenance and operation in accordance with the terms of this Part, laws of the Commonwealth of Pennsylvania, and rules and regulations which may be promulgated by the Authority and the Township.

      (4) The Authority's construction and maintenance of the system shall be performed so as not to endanger or interfere with the lives of persons, or to interfere with new improvements the Township may deem proper to make, or to unnecessarily hinder or obstruct the free use of the streets, alleys, bridges, or other public property.

      (5) The Authority shall interfere as little as possible with the travel and use of the streets in the Township during the construction, repair and maintenance of the system.

      (6) The Authority shall be responsible to restore the streets in accordance with the reasonable rules, regulations and conditions as shall be adopted and specified from time to time, by resolution or ordinance of this Township; and, this Township does reserve the right to adopt and specify, from time to time, such reasonable rules, regulations and conditions in connection with exercise by the Authority of such rights and privileges.

      (7) In the event that a change is made in the grade of public streets, alleys, avenues and ground by the Township, which may necessitate a change in the system to conform to the change of grade, Authority shall make necessary changes to the system at its own expense upon due notice from the Board.

      (8) Authority will provide service of system without any installation, monthly service charge or any charge whatsoever to the Township Fire Department, Township Municipal Buildings, Township Police and Fire Stations within the area to be served by this Part.

§ 18-203. Connection. [Ord. 49, 11/11/1987, § 3]

1. The owner of any property benefitted, improved or accommodated by a sewer shall connect such property with such sewer, in such manner as the Authority may require, within 45 days after notice to such owner from the Authority to make such connection, for the purpose of discharge of all sanitary sewage and industrial wastes from such property, subject to the rules and regulations as shall be established by the Authority from time to time.

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2. All sanitary sewage and industrial wastes from any property, after connection of such property with a sewer, shall be required to be conducted into a sewer, subject to the rules and regulations as shall be established herein or as otherwise shall be established by the Authority from time to time.

3. No person shall place or deposit or permit to be placed or deposited upon public or private property within this Township any sanitary sewage or industrial wastes in violation of Subsection 1. No person shall discharge or permit to be discharged to any natural outlet within this Township any sanitary sewage or industrial wastes in violation of Subsection 1, except where suitable treatment has been provided which is satisfactory to the Authority.

4. No privy vault, cesspool, sinkhole, septic tank or similar receptacle shall be used or maintained at any time upon any property which has been connected to a sewer or which shall be required under Subsection 1 to be connected to a sewer. Every such privy vault, cesspool, sinkhole, septic tank or similar receptacle in existence shall be abandoned, and, at the discretion of the Township, shall be cleaned and filled at the expense of the owner of such property and under the direction and supervision of the Authority; and any such privy vault, cesspool, sinkhole, septic tank or similar receptacle not so abandoned, and if required by this Township, cleansed and filled, shall constitute a nuisance and such nuisance may be abated as provided by law, at the expense of the owner of such improved property.

5. No privy vault, cesspool, sinkhole, septic tank or similar receptacle at any time shall be connected with a sewer.

6. The notice by the Authority to make a connection to a sewer, referred to in Subsection 1, shall consist of a copy of this Part, including any amendments and/or supplements at the time in effect, or a summary of each section hereof, and a written or printed document requiring the connection in accordance with the provisions of this Part and specifying that such connection be made within 45 days from the date such notice is given. Such notice may be given at any time after a sewer is in place which can receive and convey sanitary sewage and industrial waste for treatment and disposal from the particular improved property. Such notice shall be served upon the owner either by personal service by registered mail or by such other method as at the time may be provided by law.

7. If the owner of any property benefitted, improved or accommodated by a sewer, after 45 days' notice from the Authority requiring the connection of such property with a sewer, in accordance with Subsection 3, shall fail to connect such property, as required, the Authority may make such connection and may collect from such owner the cost and expenses thereof by a municipal claim, an action in assumpsit or such other legal proceeding as may be permitted by law.

§ 18-204. Obtaining a Permit. [Ord. 49, 11/11/1987, § 4]

1. No person shall uncover, connect with, make any opening into or use, alter or disturb in any manner any sewer or any part of the sewer system without first obtaining a permit, in writing, from the Authority.

2. Application for a permit required under Subsection 1 of this section shall be made by the owner of the improved property served or to be served.

3. No person shall make or cause to be made a connection or any property with a sewer until such person shall have fulfilled each of the following conditions:

   A. Such person shall have notified the Authority of the desire and intention to connect such improved property to a sewer.

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B. Such person shall have applied for and obtained a permit as required by Subsection 1 of this section.

C. Such person shall have given the Authority at least 24 hours' notice of the time when such connection will be made so that the Authority may supervise and inspect the work of connection and necessary testing.

D. Such person shall have furnished satisfactory evidence to the Authority that any tapping fee charged and imposed by the Authority against the owner of each property who connects such property to a sewer has been paid.

4. Except as otherwise provided in this subsection each improved property shall be connected separately and independently with a sewer through a building sewer. Grouping of more than one improved property on one building sewer shall not be permitted except under special circumstances and for good sanitary reasons or other good cause shown and then only after special permission of the Authority, in writing, shall have been secured and subject to such rules, regulations and conditions as may be prescribed by the Authority.

5. All costs and expenses of construction of a building sewer and all costs and expenses of connection of a building sewer to a sewer, including testing, shall be borne by the owner of the property to be connected; and such owner shall indemnify and save harmless the Authority from all loss or damage that may be occasioned, directly or indirectly, as a result of connection of a building sewer to a sewer.

6. A building sewer shall be connected to a sewer at the place designated by the Authority and where the lateral is provided. The invert of a building sewer at the point of connection shall be at the same or a higher elevation than the invert of the sewer. A smooth, neat joint shall be made and the connection of a building sewer to the lateral shall be made secure and watertight.

7. If the owner of any property benefitted, improved or accommodated by a sewer, after 45 days' notice from the Authority requiring the connection of such property with a sewer, in accordance with § 18-203, shall fail to connect such property, as required, the Authority may make such connection and may collect from such owner the cost and expenses thereof by a municipal claim, an action in assumpsit or such other legal proceeding as may be permitted by law.

§ 18-205. Building Sewer. [Ord. 49, 11/11/1987, § 5]

1. Where a property, at the time connection to a sewer is required, shall be served by its own sewage disposal system or device, the existing house sewer line shall be broken on the structure side of such sewage disposal system or device and attachment shall be made, with proper fittings, to continue such house sewer line as a building sewer.

2. No building sewer shall be covered until it has been inspected and approved by the Authority. If any part of a building sewer is covered before so being inspected and approved, it shall be uncovered for inspection at the cost and expense of the owner of the improved property to be connected to a sewer.

3. Every building sewer of any improved property shall be maintained in a sanitary and safe operating condition by the owner of such property.

4. Every excavation for a building sewer shall be guarded adequately with barricades and lights to protect all persons from damage and injury. Streets, sidewalks and all other public property disturbed in the course of installation of a building sewer shall be restored, at the cost and expense of the owner of the improved property being connected, in a manner satisfactory to the Authority.

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5. If any person shall fail or refuse, upon receipt of a notice from the Authority, in writing, to remedy any unsatisfactory conditions with respect to a building sewer, within 45 days of receipt of such notice, the Authority may refuse to permit such person to discharge sanitary sewage and/or industrial wastes into the sewer system until such unsatisfactory conditions shall have been remedied to the satisfaction of the Authority.

6. This Township authorizes the Authority to adopt, from time to time, additional rules and regulations as it shall deem necessary and proper relating to connections with a sewer and the sewer system, which additional rules and regulations to the extent appropriate, shall be construed as a part of this Part.

§ 18-206. Enforcement. [Ord. 49, 11/11/1987, § 6; as amended by A.O.]

1. Any person, firm or corporation who shall violate any provision of this Part, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days or such penalties and fines as may be prescribed by the statutes of the Commonwealth of Pennsylvania from time to time. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

2. Fines and costs imposed under provisions of this Part shall be enforceable and recoverable in the manner at the time provided by applicable law.

§ 18-207. Declaration of Purpose. [Ord. 49, 11/11/1987, § 8]

It is hereby declared that the enactment of this Part is necessary for the protection, benefit and preservation of the health, safety and welfare of the inhabitants of this Township.

§ 18-208. Indemnification of Township. [Ord. 49, 11/11/1987, § 9]

1. Authority shall, at all times, keep in effect the following types of minimum insurance coverage:

   A. Workmen's compensation upon its employees engaged in any manner in the installation or servicing of its plant and equipment within the Township.

   B. Property damage liability insurance to the extent of $500,000 per accident with up to $1,000,000 personal injury liability insurance. This insurance shall be placed with a good and reliable company and proof of insurance shall be submitted to the Township at the time of acceptance of this Part by the Authority, and periodically thereafter as often as such policy or policies shall be replaced or reissued. Authority shall indemnify, protect and save harmless the Township from and against losses and physical damage to property, or in bodily injury or death to persons, including payments made under any Workmen's Compensation Law, which may arise out of or be caused by the construction, maintenance, and operation of sewage system, within the Township, or by any act of Authority, its agents or employees. Authority shall carry insurance in the above-described minimum amounts to protect the parties hereto from and against all claims, damages, actions, judgments, costs, expenses and liabilities which may arise or result, directly or indirectly, from or by reason of such loss, injury or damage. All insurance required shall be and remain in full force and effect for the entire life of the rights granted hereunder.

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§ 18-209. Supervision and Inspection. [Ord. 49, 11/11/1987, § 10]

The Township shall have the right to supervise all construction, installation, or excavation work performed on the streets subject to the provisions of this Part and to make such inspection as it shall find necessary to insure compliance with governing ordinances.

§ 18-210. Requirements.

Authority is subject to all requirements of the Township ordinances, rules and regulations and specifications of the Township heretofore or hereafter enacted or established, including, but not limited to, those concerning street work, street excavation, use, removal and relocation of property within a street and other street work.

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Part 3
BATH BOROUGH AUTHORITY

§ 18-301. Definitions. [Ord. 88, 7/9/2003, § 1]

For the purpose of this Part, unless otherwise expressly used, the following terms shall have the meanings herein respectively indicated:

AUTHORITY — Bath Borough Municipal Authority, a Pennsylvania municipality authority.

BOARD — The Board of Supervisors of Upper Nazareth Township.

BUILDING SEWER — The extension from the sewer drainage system of any structure to the lateral of a sewer.

IMPROVED PROPERTY — Any property located within the Township upon which there is erected a structure intended for continuous or periodic habitation, occupancy or use by human beings or animals and from which structure sanitary sewage and/or industrial waste shall be or may be discharged.

LATERAL — That part of the sewer system extending from sewer to the curbline, or, if there shall be no curbline to the property line, or, if no such lateral shall be provided, then "lateral" shall mean that portion of, or place in, a sewer which is provided for connection of any building sewer.

OWNER — Any person vested with ownership, legal or equitable, sole or partial, of any improved property or real estate.

PERSON — Any individual, firm, partnership, company, association, society, trust, corporation or other group or entity of any kind.

SANITARY SEWAGE — Normal water-carried household and toilet wastes discharged from any improved property.

SEWAGE SYSTEM — All facilities, as of any particular time, for collecting, transporting, pumping, treating and disposing of sanitary sewage and industrial waster, situated in or adjacent to this Borough, owned and operated by the Authority.

SEWER — Any pipe, main or conduit constituting a part of the sewer system used or usable for sewage collection purposes.

STREET — Any street, alley, public way and public place as now laid out, whether opened or unopened, dedicated to public use, and all extensions or additions thereof as may now or hereafter be made.

TOWNSHIP — The Township of Upper Nazareth, Northampton County, Pennsylvania, a municipality of the Commonwealth of Pennsylvania, acting by and through its Board of Supervisors, or, in appropriate cases, acting by and through its authorized representatives.

WATER DISTRIBUTION CENTER — All facilities for distribution of water services owned by Bath Authority as of any particular time for processing distribution of and providing water owned by Bath Authority or provided to the Township which is part of the Bath Authority systems.

§ 18-302. Entering into Agreement. [Ord. 88, 7/9/2003, § 2]

1. The Township, by and through its Board of Supervisors, shall enter into an agreement with the Authority which agreement shall, inter alia:

   A. Grant to the authority the right and privilege of constructing, maintaining and operating within the Township a collection system for sanitary sewage, which sewage will be transported by said

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system to the expanded plan of the Authority and a distribution system for the providing of water service to the several residents of a western portion of the Township.

(1) Authorize the Authority to enter into agreements and contracts with developers in the Township to construct said sewage plants and water distribution system in accordance with the requirements and specifications of the Authority and to transfer title and interest in those sewer and water lines and collection and distribution systems to the Authority.

(2) Authorize the Authority in the operation of the construction, maintenance and operation of the collection and distribution system, to provide for the payment of the necessary costs of construction, maintenance and operation in accordance with the terms of this Part, laws of the Commonwealth of Pennsylvania and rules and regulations which may be promulgated by the Authority and the Township.

B. The Authority's construction and maintenance of the systems shall be performed so as not to endanger or interfere with the lives of persons, or to interfere with new improvements the Township may deem proper to make, or to unnecessarily hinder or obstruct the free use of the streets, alleys, bridges, or other public property.

C. The Authority shall interfere as little as possible with the travel and use of the streets in the Township during the construction, repair and maintenance of the systems.

D. The Authority shall be responsible to restore the streets in accordance with the reasonable rules, regulations and conditions as shall be adopted and specified from time to time, by resolution or ordinance of this Township; and this Township does reserve the right to adopt and specify, from time to time, such reasonable rules, regulations and conditions in connection with exercise by the Authority of such rights and privileges.

E. In the event that a change is made in the grade of public streets, alleys, avenues and ground by the Township, which may necessitate a change in the system to conform to the change of grade, Authority shall make necessary changes to the system at its own expense upon due notice from the Board.

F. Authority will provide service of system without any installation, monthly service charge or any charge whatsoever to the Township Fire Department, Township Municipal Buildings, Township Police and Fire Stations within the area to be served by this Part, or as this Part may be in the future be amended.

§ 18-303. Rules and Regulations. [Ord. 88, 7/9/2003, § 3]

1. All sanitary sewage and industrial wastes from any property, after connection of such property with a sewer, shall be required to be conducted into a sewer, subject to the rules and regulations as shall be established herein or as otherwise shall be established by the Authority from time to time.

2. No person shall place or deposit or permit to be placed or deposited upon public or private property within this Township any sanitary sewage or industrial wastes in violation of Subsection 1. No person shall discharge or permit to be discharged to any natural outlet within this Township any sanitary sewage or industrial wastes in violation of Subsection 1, except where suitable treatment has been provided which is satisfactory to the Authority.

3. No privy vault, cesspool, sinkhole, septic tank or similar receptacle shall be used or maintained at any time upon any property which has been connected to a sewer or which shall be required under

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Subsection 1 to be connected to a sewer. Every such privy vault, cesspool, sinkhole, septic tank or similar receptacle in existence shall be abandoned, and, at the discretion of the Township, shall be cleaned and filled at the expense of the owner of such property and under the direction and supervision of the Authority; and any such privy vault, cesspool, sinkhole, septic tank or similar receptacle not so abandoned, and if required by this Township, cleansed and filled, shall constitute a nuisance and such nuisance may be abated as provided by law, at the expense of the owner of such improved property.

§ 18-304. Obtaining a Permit. [Ord. 88, 7/9/2003, § 4]

1. No person shall uncover, connect with, make any opening into or use, alter or disturb in any manner any sewer or any part of the sewer system, any water line or part of the water distribution system without first obtaining a permit, in writing from the Authority.

2. Application for a permit required under Subsection 1 of this section shall be made by the owner of the improved property served or to be served.

3. No person shall make or cause to be made a connection to any improved property with a sewer or water hook-up until such person shall have fulfilled each of the following conditions:

   A. Such person shall have notified the Authority of the desire and intention to connect such improved property to sewer and water.

   B. Such person shall have applied for and obtained a permit as required by Subsection 1 of this section.

   C. Such person shall have given the Authority at least 24 hours' notice of the time when such connection will be made so that this Township and the Authority may supervise and inspect the work of connection and necessary testing.

   D. Such person shall have furnished satisfactory evidence to the Authority that any tapping fee charged and imposed by the Authority against the owner of each property who connects such property to sewer and water has been paid.

4. All costs and expenses of construction of a building sewer and all costs and expenses of connection of a building sewer to a sewer, including testing, shall be borne by the owner of the improved property to be connected; and such owner shall indemnify and save harmless the Authority from all loss or damage that may be occasioned, directly or indirectly, as a result of connection of a building sewer to a sewer.

5. A building sewer shall be connected to a sewer at the place designated by the Authority and where the lateral is provided. The invert of a building sewer at the point of connection shall be at the same or a higher elevation than the invert of the sewer. A smooth, neat joint shall be made and the connection of a building sewer to the lateral shall be made secure and watertight.

§ 18-305. Building Sewer. [Ord. 88, 7/9/2003, § 5]

1. No building sewer shall be covered until it has been inspected and approved by the Authority. If any part of a building sewer is covered before so being inspected and approved, it shall be uncovered for inspection at the cost and expense of the owner of the improved property to be connected to a sewer.

2. Every building sewer of any improved property shall be maintained in a sanitary and safe operating condition by the owner of such improved property.

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3. Every excavation for a building sewer shall be guarded adequately with barricades and lights to protect all persons from damage and injury. Streets, sidewalks and all other public property disturbed in the course of installation of a building sewer shall be restored, at the cost and expense of the owner of the improved property being connected, in a manner satisfactory to the Authority.

4. If any person shall fail or refuse, upon receipt of a notice from the Authority, in writing, to remedy and unsatisfactory conditions with respect to a building sewer, within 45 days of receipt of such notice, this Township may refuse to permit such person to discharge sanitary sewage and/or industrial wastes into the sewer system until such unsatisfactory conditions shall have been remedied to the satisfaction of the Authority.

5. This Township authorizes the Authority to adopt, from time to time, additional rules and regulations as it shall deem necessary and proper relating to connections to the sewer system and the water system, which additional rules and regulations to the extent appropriate, shall be construed as a part of this Part.

§ 18-306. Enforcement. [Ord. 88, 7/9/2003, § 6; as amended by A.O.]

1. Any person, firm or corporation who shall violate any provision of this Part, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

2. Fines and costs imposed under provisions of this Part shall be enforceable and recoverable in the manner at the time provided by applicable law.

§ 18-307. Declaration of Purpose. [Ord. 88, 7/9/2003, § 8]

It is hereby declared that the enactment of this Part is necessary for the protection, benefit and preservation of the health, safety and welfare of the inhabitants of this Township.

§ 18-308. Indemnification of Township. [Ord. 88, 7/9/2003, § 9]

1. Authority shall, at all times, keep in effect the following types of minimum insurance coverage:

   A. Workmen's compensation upon its employees engaged in any manner in the installation or servicing of its plant and equipment within the Township.

   B. Property damage liability insurance to the extent of $500,000 per accident with up to $1,000,000 personal injury liability insurance. This insurance shall be placed with a food and reliable company and proof of insurance shall be submitted to the Township at the time of acceptance of this Part by the Authority, and periodically thereafter as often as such policy or policies shall be replaced or reissued. Authority shall indemnify, protect and save harmless the Township from and against losses and physical damages to property, or in bodily injury or death to persons, including payments made under any Workmen's Compensation Law, which may arise out of or be caused by the construction, maintenance, and operation of sewage system, within the Township, or by any act of Authority, its agents or employees. Authority shall carry insurance in the above-described minimum amounts to protect the parties hereto from and against all claims, damages, actions, judgments, costs, expenses and liabilities which may arise or result, directly or indirectly, from or by reason of such loss, injury or damage. All insurance

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required shall be and remain in full force and effect for the entire life of the rights granted hereunder.

§ 18-309. Supervision and Inspection. [Ord. 88, 7/9/2003, § 10]

The Township shall have the right to supervise all construction, installation, or excavation work performed on the streets subject to the provisions of this Part and to make such inspection as it shall find necessary to insure compliance with governing ordinances.

§ 18-310. Requirements. [Ord. 88, 7/9/2003, § 11]

Authority is subject to all requirements of the Township ordinances, rules and regulations and specifications of the Township heretofore or hereafter enacted or established including, but not limited to, those concerning street work, street excavation, use, removal and relocation of property within a street and other street work.

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Part 4
ON-LOT SEWAGE DISPOSAL

§ 18-401. Title. [Ord. 113, 4/6/2005, § 1]

The name of this Part shall be the "Upper Nazareth Township On-Lot Sewage Disposal Ordinance."

§ 18-402. Definitions. [Ord. 113, 4/6/2005, § 2]

The words and terms, when used in this Part, have the identical meanings as those found in the Pennsylvania Sewage Facilities Act, 35 P.S. §§ 750.1 — 750.20, and the rules and regulations promulgated thereunder unless the context clearly indicates otherwise.

§ 18-403. Designation of Township Sewage Enforcement Officer. [Ord. 113, 4/6/2005, § 3]

1. The Board of Supervisors of the Township shall annually appoint a primary and alternate Sewage Enforcement Officer(s) it deems necessary to administer Act 537 and the regulations promulgated thereunder.

2. All Township Sewage Enforcement Officers shall abide by the standards of conduct specified in 25 Pa. Code, Chapters 71, 72 and 73, of the Department's regulations. Violation of any of these standards shall be grounds for dismissal by the Board.

§ 18-404. General Requirements. [Ord. 113, 4/6/2005, § 4]

1. The installation of any treatment tank, subsurface absorption area or any holding tank constitutes either the installation of an individual or a community sewage system and requires a permit prior to beginning the installation of the system or beginning the construction, installation or occupancy of any building or buildings for which such a system will be installed. The installation of an individual or community sewage system shall include the repair, replacement or enlargement of any treatment tank, subsurface absorption area, or holding tank, or any piping connecting the same. A permit shall be required regardless of the acreage of the tract on which the individual or community sewage system is to be installed or repaired.

2. The Board will issue, deny and revoke permits only by and through its Township Sewage Enforcement Officer(s).

3. If construction or installation of an individual or community sewage system and of any building or structure for which such system is to be installed has not commenced within three years after the issuance of a permit for such system, the said permit shall expire. A new permit shall be obtained prior to the commencement of said construction or installation.

4. Construction of a new sewage system for a newly occupied building will be known as a "new sewage system" for the purposes of this Part. The repair or replacement of an existing on-lot sewage disposal system for a structure which is occupied at the time of the application for permit issuance shall be known as a "repair sewage system" for the purposes of this Part.

5. The minimum isolation distances prescribed in this Part shall be the same as those indicated in the Department regulations.

6. All on-lot sewage disposal systems shall be constructed and/or installed in strict accordance with the requirements in 25 Pa. Code, Chapter 71, 72 and 73 of the Pennsylvania Department of

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Environmental Protection Rules and Regulations, and the requirements of this Part, whichever are more restrictive.

§ 18-405. Application Procedures and Permit Issuance. [Ord. 113, 4/6/2005, § 5]

1. Application for a permit shall be made by the property owner to the Township Sewage Enforcement Officer, or Township Secretary and forwarded to the Sewage Enforcement Officer, prior to the commencement of construction of any such system or of any building for which such system is to be installed.

2. The application shall contain the following:

   A. The information found on the application form ER-BWQ-290 prescribed by the Department.

   B. Such further information as may be required by the Township Sewage Enforcement Officer to insure that the proposed action complies with the regulations promulgated by the Department.

   Application forms may be obtained from the Township Sewage Enforcement Officer or Township Secretary.

3. When the Township Sewage Enforcement Officer has found an application incomplete, or the Township Sewage Enforcement Officer is unable to verify the information submitted, the applicant shall be notified in writing within seven days, and the time for acting thereon shall be extended to 15 days beyond the date of receipt of adequate supplementary or amendatory data.

4. Applications for permits for new sewage systems, which are not consistent with the Official Plan of Upper Nazareth Township, shall be denied.

5. New Sewage Systems.

   A. For new systems, the application and review process consists of the following four stages:

      (1) Preliminary stage.

      (2) Site evaluation stage.

      (3) System design stage.

      (4) Final inspection stage.

   B. In the preliminary stage, the applicant obtains a copy of form ER-BWQ-290 from the Township Sewage Enforcement Officer or Township Secretary, completes Part 1 of the form, and submits it along with the appropriate permit fee to the Township Sewage Enforcement Officer or the Township Secretary. The Township Sewage Enforcement Officer reviews Part 1 and an on-site evaluation is scheduled at a mutually agreed time.

   C. In the site evaluation stage, the Township Sewage Enforcement Officer observes the soil test pit, percolation test and slope measurements and completes Part IV of the application. It shall be the responsibility of the applicant to prepare the site for inspection, including the digging of a minimum of one soil test pit, or in accordance with current DEP policy, at a maximum depth of seven feet, in accordance with 25 Pa. Code § 73.14, any general clearing of the site necessary to make slope measurements, and arranging for the preparation and testing of a minimum of one percolation test for both primary and secondary absorption areas, as appropriate, in accordance

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with 25 Pa. Code § 73.15. After the site evaluation stage, the applicant will be notified if the site is suitable, or receive a letter of permit denial if it is not. The applicant may request the Township Sewage Enforcement Officer to conduct the required percolation test. In this case, permit fee shall be in accordance with the Township Fee Schedule.

D. The system design stage involves the completion of Parts II and III of the application form by the applicant. All application information and designs must be to scale and locate all the key components with respect to two intervisable markers in a neat and legible manner and must show the following:

(1) All information required under Part III of application.

(2) All test pits and percolation tests (pass or fail).

(3) Alternate absorption area location, as appropriate.

(4) Location and width of all rights-of-way, easements, building restriction lines, including any limitations on their use.

(5) Existing and proposed contour lines at two-foot intervals derived from a field survey or taken from an approved subdivision plan. Contours taken from U.S.G.S. mapping are unacceptable.

(6) Spot elevations for the following:

(a) First floor elevation of any structure.

(b) Elevation at each corner and high point of the proposed absorption area. If an elevated sand, or an at-grade absorption area is required, the existing grades of each corner of the toe of berm shall also be shown.

(c) Elevation of existing grade at the proposed septic tank, and pump tank or lift station, if required.

(7) The location of all items required in Subsection 5D(6)(b) and (c) and dimensions to two intervisable permanent markers.

(8) All above items shall be staked in the field prior to permit issuance, and shall remain undisturbed and protected until a final certificate of occupancy is issued.

The Township Sewage Enforcement Officer may provide advice and assistance, but the system design shall be the responsibility of the applicant.

E. When the Township Sewage Enforcement Officer has determined that the application is complete and meets the requirements of 25 Pa. Code, Chapters 71, 72 and 73 of the Department's regulations and this Part, a permit shall be issued.

F. Permits shall be issued or denied by the Township Sewage Enforcement Officer in writing within seven days after receiving a complete application for permit, except as shown in Subsection 3. Permits may be denied at any stage during the application and review process. Reasons for denial shall be stated in the letter.

6. Repair Sewage Systems.

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A. For repair sewage systems, the application and review process consists of the following four stages:

(1) Preliminary stage.

(2) Site evaluation stage.

(3) System design stage.

(4) Final inspection stage.

B. Preliminary Stage. See Subsection 5B.

C. In the site evaluation stage, the Township Sewage Enforcement Officer may require and observe soil test pits, percolation tests and/or slope measurements, and shall complete Part IV of the application. For repair sewage systems, this soils evaluation is not always required, but will be required if additional absorption area is required. If percolation tests are performed, the procedure may follow the procedure outlined in Subsection 5C.

D. System Design Stage - See Subsection 5D.

E. See Subsection 5E.

F. Permits shall be issued or denied by the Township Sewage Enforcement Officer in writing within seven days after receiving a complete application for permit, except as shown in Subsection 5D. Permits may be denied at any stage during the application and review process. Reasons for denial shall be stated in the letter.

7. General Department Requirements.

A. Any application for a permit for an individual or community sewage system where a license, certificate or registration or permit is required from the Department under its regulations shall receive the concurrence of the Department in writing prior to its issuance by the Township Sewage Enforcement Officer.

B. Any application for a permit for an experimental individual or community sewage system shall receive the concurrence of the Department in writing prior to its issuance by the Township Sewage Enforcement Officer. Experimental sewage systems shall be subject to the requirements specified in Chapter 73 of the Department's Regulations.

8. Inspections.

A. Prior to any earth disturbance for the installation of the permitted on-lot sewage disposal system, the applicant and/or contractor for the applicant must contact the Sewage Enforcement Officer to arrange for a preconstruction meeting at the site. The location of all items required in Subsection 5D(6)(b) and (c) and the replacement absorption area shall be staked at the time of the meeting. Any changes in the physical conditions of the lands of either the primary or replacement absorption area may result in revocation of the permit, or the requirement to conduct additional soil testing.

B. In the final inspection stage, the applicant notifies the Township Sewage Enforcement Officer when the installation is complete and ready for inspection or reinspection. The applicant may request additional inspections required to facilitate construction at the site. Fees for the additional inspections shall be in accordance with the approved fee schedule.

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C. No part of any installation shall be covered nor, in the case of new systems, shall the building for which it is intended be occupied, until it is inspected and given final written approval by the Township Sewage Enforcement Officer. The exception is that the applicant may cover the installation in absence of written approval or disapproval, at the expiration of 72 hours, excepting weekends and holidays, from the date the Township Sewage Enforcement Officer receives the notice to inspect. For purposes of determining the above time limit, the request shall be made in writing and validated by the Township Secretary. The Township Sewage Enforcement Officer may by order require an installation to be uncovered at the expense of the applicant, if the installation was covered contrary to the provisions of this section.

D. Elevated Sand Beds and Elevated Sand Trenches.

(1) First notification upon completion of scarification of system site.

(2) Second notification upon completion of placement of sand.

(3) Final inspection upon completion of all piping and permanent installation of pump and alarm.

§ 18-406. Application and Review Fees. [Ord. 113, 4/6/2005, § 6]

1. All fees paid under this section shall be made payable to the Township, and shall be in the form of either checks or money orders. These fees shall be submitted to the Township Secretary. The application fee portion of the individual permit shall be non-refundable after being paid.

2. New system fees and repair system fees as well as any other fees made or required pursuant to this Part shall be as set forth in a resolution passed by separate action of the Board of Supervisors of the Township as amended which is attached hereto and made a part of this Part and marked Exhibit 18-4-A. The Township may adjust these fees and charges from time to time by amending resolutions. No increases in rates, charges or fees may be made except as authorized by the Township after a public notice for such increase is given and interested parties have been afforded an opportunity to comment thereon. All rates, fees and charges shall be reasonable, compensatory and nondiscriminatory.

§ 18-407. Revocations and Reinstatement of Permits. [Ord. 113, 4/6/2005, § 7]

1. A permit shall be revoked by the Township Sewage Enforcement Officer at any time for any one or more of the following reasons, which shall be incorporated into the notice of revocation:

A. When any change which has occurred in the physical conditions of any lands which will materially affect the operations of any individual or community sewage disposal system covered by any permit issued by the Township Sewage Enforcement Officer under the provisions of 25 Pa. Code, Chapter 72, of the Department's regulations.

B. When one or more tests material to the issuance of the permit has not been properly conducted.

C. When information material to the issuance of the permit has been falsified.

D. When the original decision of the Township Sewage Enforcement Officer otherwise failed to conform with the provisions of the Act and the Department's regulations.

E. When the permittee has violated the provisions of 25 Pa. Code, Chapter 71, 72 or 73 of the Department's regulations, or any provisions of this Part.

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F. When the inspection reveals that the installation of the system, water supply location or the underlying soil or geologic conditions differ from those stated in the application.

2. Revocation of a permit becomes effective after the applicant receives written notice and the ten-day opportunity to request a hearing under the terms of § 18-408, Subsection 2, has elapsed.

3. Upon receipt of written notice of revocation, no further construction of either the system or the building for which it is intended shall take place until the permit has been reinstated in writing.

4. A permit, which has been revoked under this section, will not be reinstated. A "new permit" must be applied for and all regulations in place at the time of the application must be addressed prior to receiving a permit to utilize the currently unpermitted existing system.

§ 18-408. Review of Revocations and Denials. [Ord. 113, 4/6/2005, § 8]

1. Upon receipt by the applicant of a notice of denial of a permit, the applicant may request, in writing within 10 days of receipt of said notice, a hearing before the Township Board of Supervisors. The Board shall hold a hearing within 30 days after receipt of such a request. The Department shall be notified of the hearing by the Board.

2. Revocation of permits shall occur only after written notice and 10 days opportunity to request a hearing have been granted to the permittee. The Board shall hold a hearing within 30 days after receipt of such a request. The Department shall be notified of the hearing by the Board.

§ 18-409. Waiver of Liability. [Ord. 113, 4/6/2005, § 9]

Although this Part is intended to provide guidelines for the proper installation of on-lot sewage disposal systems, nothing contained herein should be interpreted as a guarantee to the applicants that systems installed under the provisions of this Part will function as intended. Uncontrollable variables such as undefined soil characteristics, actual water usage and material or construction inadequacies, may cause a system malfunction, even though the general guidelines of the State Department of Environmental Protection and this Part are followed.

§ 18-410. Nuisances and Penalties. [Ord. 113, 4/6/2005, § 10; as amended by A.O.]

1. Any person who shall be found to be discharging untreated or partially treated sewage to the surface of the ground, or to waters of the commonwealth, shall be deemed to be creating a nuisance, and upon written notice, shall be required to repair his or her sewage system to eliminate such nuisance. A thirty-day limitation for the satisfactory repair of the system shall be respected.

2. Any person who shall violate any of the provisions of this Part, or the rules and regulations of standards promulgated hereunder, or who resists or interferes with any officer, agent or employee of the Township, shall, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not less than $100 nor more than $1,000 plus costs to be paid to the Township and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days, and shall be required to rectify the violation if such violation is causing or could cause pollution of a health hazard. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

§ 18-411. Requirements for Official Sewer Plan Revisions (For Subdivisions and Land Development). [Ord. 113, 4/6/2005, § 11]

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1. Testing shall be conducted in accordance with the requirements of § 18-405, Subsection 3, of this Part for all subdivisions and land developments proposing on-lot sewage disposal as part of the official plan revision planning process.

2. For nonresidential uses and subdivisions involving more than 10 residential lots or dwelling units, the developer shall contact the Department of Environmental Protection via Sewage Facilities Planning Module Application Mailer, (DEP postcard) which may be obtained from the Sewage Enforcement Officer.

3. Prior to initiating testing, the developer shall provide a sketch plan indicating proposed lot layout, and shall have adequate field survey points set to conduct testing respecting appropriate isolation distances from lot lines, easements, etc. Any additional testing shall be marked in the same manner.

4. The developer shall set up appropriate escrows, prior to testing.

5. Plans must be provided as supporting documentation to a request for approval of an official plan revision, and these plans shall show all data required by the Department and shall show among other things:

   A. Proposed and existing building structures.

   B. Location of soil probes and percolation tests, whether passing or failing.

   C. Proposed or existing water supplies or wells.

   D. Location of all existing and proposed street and right-of-way lines.

   E. Existing and proposed lot lines.

   F. Existing and proposed primary on-lot absorption areas and alternate locations (as appropriate).

   G. All information as prescribed in the Sewage Facilities Planning Module Plot Plan requirements.

6. The plans shall show all tested primary and alternate absorption areas sufficient to illustrate that such systems can be placed while maintaining required isolation distances.

7. The applicant requesting that the Township consider an official plan revision shall be responsible for completion of the appropriate components of the Department Sewage Facilities Planning Module and for providing the required testing, supporting plans and other data. The Module will be reviewed and approved or denied in accordance with the procedures specified in 25 Pa. Code, Chapter 71, of the Department's Regulations.

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Part 5
HOLDING TANKS

ARTICLE A.
Temporary Holding or Retention Tank Ordinance.

§ 18-501. Short Title. [Ord. 67, 9/14/1995, § 1]

This Part 5A shall be known and may be cited as the "Upper Nazareth Township Temporary Holding or Retention Tank Ordinance."

§ 18-502. Definitions. [Ord. 67, 9/14/1995, § 2]

The following words and phrases when used in this Part 5A shall have the meanings ascribed to them in this section except in those instances where the context clearly indicates a different meaning:

BOARD OF SUPERVISORS — The Board of Supervisors of the Township of Upper Nazareth, Northampton County, Pennsylvania.

HOLDING OR RETENTION TANK — A water tight receptacle which receives and retains sewage conveyed to it by a water carrying system and which is designed and constructed to facilitate ultimate disposal of the sewage at another site.

HOLDING TANK CLEANER — A person who removes the contents of a holding tank for purposes of disposing of the sewage to another site.

PERSON — Every natural person, association, partnership or corporation. Whenever used in any clause prescribing or imposing a fine, or penalty of imprisonment in default thereof, the term as applied to associations shall mean any member thereof; as applied to partnerships shall mean any partner thereof; as applied to corporations shall mean the President, treasurer or secretary thereof.

SEWAGE — Any substance that contains any of the waste products or excrement or other discharge from the bodies of human beings or animals, and any noxious or deleterious substances being harmful or inimical to the public health, or to animal or aquatic life, or to the use of water for domestic water supply or for recreation or which constitutes pollution under the Act of June 22, 1937, P.L. 1937, No. 394, 35 P.S. § 691.1 et seq., known as the "Clean Streams Law."

SEWAGE ENFORCEMENT OFFICER — The official of the Township who has been delegated to issue and review permit applications and conduct such investigations and inspections as are necessary to implement the Sewage Facilities Act, 35 P.S. § 691.1 et seq., and the rules and regulations thereunder.

TOWNSHIP — The Township of Upper Nazareth, Northampton County, Pennsylvania.

§ 18-503. Unlawful Temporary Use of Holding or Retention Tanks. [Ord. 67, 9/14/1995, § 3]

It shall be unlawful for any person to erect, construct, maintain or use any holding or retention tank for the disposal of sewage within the Township of Upper Nazareth, Northampton County, Pennsylvania, unless all laws of the Commonwealth of Pennsylvania and regulations issued by the Department of Environmental Protection relating to holding and retention tanks have been met by the applicant, and all terms and conditions of this Part 5A have been complied with and a valid sewage permit has been issued by the Township Sewage Enforcement Officer.

§ 18-504. General Requirements for All Holding or Retention Tanks. [Ord. 67, 9/14/1995, § 4]

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1. Capacity. A retention or holding tank shall be large enough to hold a minimum of three days sewage waste or 1,000 gallons, whichever is larger.
2. Construction. A retention tank shall be constructed of durable material and shall be water tight.
3. Warning Device. A retention tank shall be equipped with a warning device to indicate when the unit is within 75% of capacity. Such warning device shall create an audible or visible signal at a location frequented by the homeowner or responsible individual.
4. Maintenance disposal of waste from a retention or holding tank must be at a site approved by the Department of Environmental Protection.
5. Holding tanks shall receive regular service and maintenance by the applicant applying for the permit in order to prevent their malfunction and overflow.

§ 18-505. Disposal of Contents. [Ord. 67, 9/14/1995, § 5; as amended by A.O.]

Each applicant shall submit to the Township a contract between the applicant and the holding tank cleaner covering collection and disposal of the holding or retention tank's contents, which contract must be approved by the Township. In the event that the applicant fails in any regard to follow each and every term and provision of the regulations of the Department of Environmental Protection or the terms and provisions of this Part 5A, in regard to the disposal of the holding tank's contents, the ultimate responsibility for the proper collection and disposal of such contents shall be with the Township. The holding tank cleaner and the disposal site shall be approved by the Department of Environmental Protection prior to the disposal of contents of holding or retention tanks.

§ 18-506. Permits. [Ord. 67, 9/14/1995, § 6]

All permits shall be issued by the Sewage Enforcement Officer of the Township, after compliance with the provisions of this Part 5A and the existing state laws of the Commonwealth of Pennsylvania and regulations of the Department of Environmental Protection, pertaining to holding or retention tanks.

§ 18-507. Term of Permits. [Ord. 67, 9/14/1995, § 8]

All permits for the temporary use of holding or retention tanks within the Township shall be for the period of one year. Each user of a holding tank must reapply annually for a permit at which time an evaluation shall be made as to full compliance with existing regulations of the Department of Environmental Protection, the provisions of this Subpart, including the deposit of required security as hereinafter noted, and any and all statutes of the Commonwealth of Pennsylvania relating to sewage disposal within the Commonwealth of Pennsylvania. All permits issued shall be under and subject to the right of the Department of Environmental Protection and the Township to impose such other conditions for operation and maintenance of said retention or holding tanks as the Department or Township deems necessary to prevent a nuisance or a public health hazard.

§ 18-508. Security for Compliance by Applicant. [Ord. 67, 9/14/1995, § 8]

Each applicant for a holding or retention tank shall deposit with the Township a security deposit equal to one years cost for the disposal of the contents of the holding or retention tank by the holding tank cleaner and cost of proper disposal of said sewage with an authorized disposal site operator, which sums shall be estimates by the holding tank cleaner and disposal site operator given to the Township prior to the issuance of a permit for the year for which the permit is given.

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§ 18-509. Violations. [Ord. 67, 9/14/1995, § 9; as amended by A.O.]

Any person, firm or corporation who or which shall violate any provision of this Part 5A, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not less than $100 nor more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

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ARTICLE B.
Holding Tank Ordinance.

§ 18-511. Title. [Ord. 106, 2/2/2005, § 1]

This Part 5B shall be known as the "Upper Nazareth Township Holding Tank Ordinance."

§ 18-512. Authorization. [Ord. 106, 2/2/2005, § 2]

This Part 5B is authorized by Pennsylvania Clean Streams Law Act of 1937, June 22, P.L. 1987, amended by Act of 1965, August 23, P.L. 372, 35 P.S. § 691A et seq., the "Pennsylvania Sewage Facilities Act," Act of 1966, January 24, P.L. (1965) 1535, as amended, 35 P.S. § 750.1 et seq., and by the applicable regulations of the Department of Environmental Protection dealing with sewage facility systems specifically 25 Pa. Code, § 71.63.

§ 18-513. Purpose. [Ord. 106, 2/2/2005, § 3]

The purpose of this Subpart is to provide for the installation, maintenance, and removal of holding tanks; and to provide a means of assuring that proper security is provided to enable the Township to properly remove such tanks should the owner thereof default on his responsibilities and to establish penalties for violations of said Part 5B.

§ 18-514. Definitions. [Ord. 106, 2/2/2005, § 4]

When used in this Part 5B, the following words shall have the meanings ascribed to them herein:

ACT 537 — The Act of January 24, 1966, P.L. 1535, as amended, 35 P.S. § 750.1 et seq., also known as the "Pennsylvania Sewage Facilities Act."

BOARD — The Board of Supervisors of Upper Nazareth Township, Northampton County, Pennsylvania.

DEP — The Department of Environmental Protection of the Commonwealth of Pennsylvania.

HOLDING TANK — A retaining tank, either permanent or temporary, to which sewage is conveyed by a water carrying system.

LICENSED SEPTAGE HAULER — Person registered in accordance with 25 Pa. Code § 285.225(c).

OFFICIAL SEWAGE FACILITY PLAN — The Township Act 537 Sewage Facilities Plan as approved by the DEP.

PERSON — Any individual, association, public or private corporation for profit or not for profit, partnership, firm, trust, estate, department, board, bureau, or agency of the commonwealth or other political subdivision, municipality, district, authority, or any other legal entity whatsoever recognized by law. Whenever used in any clause prescribing or imposing a penalty or imposing a fine or imprisonment, the term "person" shall include the members of an association, partnership or firm and the officers of any local agency or municipality, public or private corporation whether for profit or not for profit.

RETAINING TANK — A water tank receptacle which receives and retains sewage and is designed and constructed to facilitate ultimate disposal of the sewage at another site.

SEWAGE — A substance that contains the waste products or excrement or other discharge from the bodies of human beings or animals and noxious or deleterious substances being harmful or inimical to the public health, or to animal or aquatic life, or to the use of water for domestic water supply or for recreation, or which constitutes pollution under the "Pennsylvania Clean Streams Law," 35 P.S. § 691.1 et seq.

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SEWAGE ENFORCEMENT OFFICER (SEO) — The official of the Nazareth Township who issues permits, reviews permit applications and sewage facility planning modules, and conducts investigations and inspections necessary to implement Act 537 and the regulations thereunder.

§ 18-515. Applicability. [Ord. 106, 2/2/2005, § 5]

The provisions of this Part 5B shall apply to all persons owning any property within the Township serviced by a holding tank for the first time after the effective date of this Part 5B and to all persons within the Township installing, repairing, altering, or removing a holding tank. This Part 5B shall not apply to existing holding tanks lawfully in use at the time of the enactment of this Part 5B.

§ 18-516. Reasons for Usage of Holding Tanks. [Ord. 106, 2/2/2005, § 6]

1. The reasons for usage of holding tanks consist of the following:

   A. Limit to repair an existing facility or if a health hazard exists.

   B. As an interim facility prior to public sewer.

   C. To prohibit holding tanks for new residential construction.

§ 18-517. Limitation on Holding Tank Capacity. [Ord. 106, 2/2/2005, § 7]

Permits may be issued only for holding tanks of institutional, recreational, or commercial establishments and which have a sewage flow of 800 gallons per day or less.

§ 18-518. Permit Requirements. [Ord. 106, 2/2/2005, § 8]

1. All permits issued shall meet the following requirements:

   A. No person shall install, construct, or alter a holding tank system without first obtaining a permit indicating that the site and the plans and specifications of such system are in compliance with the provisions and standards adopted pursuant to Act 537.

   B. No holding tank shall be covered from view until approval to cover the same has been given by the SEO. If 72 hours have elapsed, excepting Sundays and holidays, since the SEO issuing the permit received notification of completion of construction, the applicant may cover said system or structure unless permission has been specifically refused by the SEO.

   C. The Board may require applicants for holding tank permits to notify the Township's SEO of the schedule for construction of the holding tank so that inspections in addition to the final inspection required by Act 537 may be scheduled and performed by the SEO.

   D. No zoning permit, building permit, or occupancy permit shall be issued by the Township or its designated Zoning Officer for a building which will contain a holding tank until a valid permit under this Part 5B and Act 537 has been obtained from the SEO.

   E. No zoning, building, or occupancy permit shall be issued and no work shall begin on any alteration or conversion of any existing structure if served by a holding tank if said alteration or conversion will result in an increase or potential increase in sewage flows from the structure until the structure's owner receives from the SEO either a permit for alteration or replacement of the existing holding tank or written notification that such a permit will not be required. The SEO shall determine whether the proposed alteration or conversion of the structure will result

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in increased sewage flows based upon a submission by the applicant.

F. No building or occupancy permit shall be issued for any structure to be served by a holding tank until the owner of said structure has entered into an agreement and provided the security required under this Part 5B.

G. A permit for a holding tank may be issued only when the SEO has certified that an existing system has failed and that the site is unsuitable for any replacement system so that a holding tank is necessary to remedy the existing system failure, or in the alternative that the Board allows such system on the basis that the area where the holding tank will be installed will be connected to a community sewage system within one year of the installation of the holding tank so that said holding tank will be for a temporary measure only.

§ 18-519. Inspections. [Ord. 106, 2/2/2005, § 9]

1. The SEO shall have the right to conduct inspections of holding tanks as follows:

A. The SEO shall conduct, at a minimum, an annual inspection of each holding tank within the Township and prepare a written inspection report; one copy of which shall be delivered to the owner of the property and one copy shall be retained by the SEO.

B. In addition to required yearly inspections, any holding tank may be inspected by the SEO at any reasonable time.

C. All inspections may include a physical tour of the property, the taking of samples from surface water, wells, other ground water sources, the sampling of the contents of the holding tank itself and/or the introduction of a traceable substance into the interior plumbing of the structure served to ascertain the path and ultimate destination of wastewater generated in the structure.

D. The SEO shall have the right to enter upon all land for the purpose of inspections described above.

§ 18-520. Restrictions on Discharge. [Ord. 106, 2/2/2005, § 10]

1. Only normal domestic wastes shall be discharged into any holding tank. The following shall not be discharged into a holding tank system:

A. Industrial waste.

B. Automobile oil and/or other non-domestic oil.

C. Toxic and/or hazardous substances and/or chemicals including, but not limited to, pesticides, disinfectants, acids, paints, paint thinners, herbicides, gasoline and/or other solvents.

D. Surface or ground water, including water from roof and/or cellar drains, springs, basement sump pumps and/or french drains.

§ 18-521. Maintenance Duties. [Ord. 106, 2/2/2005, § 11]

1. Every owner of a lot with a holding tank shall have the following duties of maintenance:

A. Any person owning a lot served by a holding tank shall have said holding tank pumped by a licensed septage hauler at least once every year. The person must submit documentation to the

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Township SEO illustrating that the holding tank has been pumped according to this requirement.

B. This required pumping frequency may be increased at the discretion of the SEO based upon the Officer's inspection of the holding tank.

C. Any person owning a property served by a holding tank shall submit, with each required pumping receipt, a written check list report, from the hauler or from any other qualified individual acceptable to the Township to verify that the tank has been found to be in good working order and/or properly functioning; said verification is hauler's responsibility. Any person whose tank has been determined to require repair or replacement shall first contact the SEO for approval of the necessary repair.

D. In the event that the person who is the property owner of any property containing a holding tank has failed to submit the above required receipts to the SEO evidencing that the tank has been pumped on an annual basis, the Township shall have the ability to have the tank pumped by a licensed hauler with the cost to be billed to the person owning the property upon which the tank is installed. In the event that said person refuses to pay said bill, the Township may draw upon the security provided under this Part 5B to pay for said pumping.

§ 18-522. Security. [Ord. 106, 2/2/2005, § 12]

1. No person shall operate a holding tank system and no building, zoning or occupancy permit shall be issued for the occupancy of any structure if said structure will be served by a holding tank system until said person has posted security as required under this Part 5B.

2. Said security shall consist of an irrevocable letter of credit in an amount sufficient to cover the estimated maintenance and/or pumping costs of a holding tank for a one-year period of time and also sufficient to cover the estimated removal cost of said holding tank both as determined by the Township SEO based upon a submission by the applicant. Said letter of credit must be issued by a bank or savings and loan authorized to do business in the Commonwealth of Pennsylvania and shall be substantially in a form approved by the Township Solicitor.

3. The said security shall also consist of a holding tank improvement and maintenance agreement to be entered into by the person owning and/or installing said tank by the Township and by the financial institution providing the letter referred to in Subsection 2 above. Said agreement shall be prepared by the Township Solicitor.

4. Said improvements agreement and letter of credit shall permit the Township to draw upon said letter of credit in order to undertake required maintenance which the owner of the holding tank has not undertaken including pumping the holding tank, other maintenance and/or repairs, and the removal and/or replacement of said holding tank.

5. Said security fee shall be reviewable annually and adjustments made accordingly by the Township.

§ 18-523. Malfunctioning Systems. [Ord. 106, 2/2/2005, § 13; as amended by A.O.]

1. No person shall operate and maintain a holding tank in such a manner that it malfunctions. All liquid wastes, including kitchen and laundry wastes and water softener backwash, shall be discharged to a tank. No holding tanks shall discharge untreated or partially treated sewage to the surface of the ground or into the waters of the commonwealth unless a permit to discharge has been obtained from the Department.

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2. The Township may issue an initial written notice of violation to any person who is the owner of a property in the Township which is found to be served by a malfunctioning holding tank or which is discharging raw or partially treated sewage without a permit.

3. Within seven days of notification by the Township that a malfunction has been identified, the property owner shall make application to the SEO for a permit to repair or replace the malfunctioning tank. Within 30 days of issuance of permit, weather permitting, construction of the permitted repair or replacement shall commence. Within 60 days of the issuance of a permit by the Township, weather permitting, the construction shall be completed unless the Township shall extend the period.

4. Failure to apply for a permit or to complete the repair or replacement within the times specified in Subsection 3, shall constitute a violation, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part 5B continues or each section of this Part 5B which shall be found to have been violated shall constitute a separate offense.

5. The Township's certified SEO shall have the authority to require the repair of any malfunction by the following methods: cleaning, repair or replacement of components of the existing system, adding capacity or otherwise altering or replacing the system's treatment tank, or other alternatives as appropriate for the specific site.

6. In lieu of, or in combination with, the remedies described in Subsection 5 above, the SEO may require the installation of water conversation equipment and the institution of water conservation practices in structures served. Water using devices and appliances in the structure may be required to be retrofitted with water saving appurtenances or they may be required to be replaced by water conserving devices and appliances. Wastewater generation in the structure may also be reduced by requiring changes in water usage patterns in the structure served.

7. In the event that the rehabilitation measures in Subsections 1 through 6 are not feasible or do not prove effective, the Township may require the owner to apply to the DEP for a permit to install a single residence treatment and discharge system. Upon receipt of said permit the owner shall complete construction of the system within 60 days.

8. Should none of the remedies described above prove totally effective in eliminating the malfunction of an existing holding tank, the property owner is not absolved of responsibility for that malfunction. The Township may require whatever action is necessary to lessen or mitigate the malfunction to the extent that it feels necessary.

9. Failure of the landowner to take the actions required in this section relating to malfunctioning systems shall constitute a public nuisance and a violation of this Part 5B, as well as, a violation of § 27-502 of the Township Zoning Ordinance [Chapter 27] forbidding public nuisances.

10. Should the remedies provided above not prove effective in eliminating the malfunction of an existing holding tank, the Township shall have the remedy of requiring the property owner to remove said system. Should the property owner refuse to remove said system then the Township shall have the ability to accomplish the removal drawing upon the funds provided under the security agreement entered into between the property owner and the Township.

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§ 18-524. Fees. [Ord. 106, 2/2/2005, § 14]

The Board of Supervisors shall establish by resolution a schedule of fees. Costs for the completion of required water quality testing and Township SEO inspections shall be assessed to the property owner. It shall be each individual property owner's responsibility to contract with a licensed septage hauler for the pumping of the owner's septic tank.

§ 18-525. Township May Repair Malfunctioning System. [Ord. 106, 2/2/2005, § 15]

Where a property owner or other person fails to maintain, repair or replace a holding tank system after notice pursuant to the terms of this Part 5B, such failure shall constitute a public nuisance and a violation of this Part 5B. The Township may abate the nuisance by performing the work needed, or by contracting to perform the work needed to abate the nuisance, and may charge the landowner or other responsible person for the cost thereof plus a penalty of 20%. Said cost plus penalty may be collected by an action in assumpsit or by the filing of a Township lien according to law. Such costs plus penalty may also be drawn from the irrevocable letter of credit provided the security agreement.

§ 18-526. Disposal of Contents of Holding Tanks. [Ord. 106, 2/2/2005, § 16]

1. The contents of holding tanks shall be disposed of as follows:

   A. The contents of all holding tanks originating within the Township shall be disposed of at sites or facilities approved and permitted by the DEP. Approved sites or facilities shall include the following: septage treatment facilities, wastewater treatment plants, composting sites, and approved farm lands.

   B. Pumper/haulers operating within the Township shall operate in a manner consistent with the provisions of the Act of July 28, 1988, P.L. 556, No. 101, as amended, 53 P.S. § 4000.101 et seq., known as the "Municipal Waste Planning, Recycling and Waste Reduction Act."

§ 18-527. Administration. [Ord. 106, 2/2/2005, § 17]

The Township shall fully utilize those powers it possesses through enabling statutes and ordinances to effect the purposes of this Part 5B.

§ 18-528. Appeals. [Ord. 106, 2/2/2005, § 18]

Any person aggrieved by any notice, action, or determination may appeal to the Board within 30 days in writing pursuant to the Act of 1978, April 28, P.L. 202, No. 53, as amended, 2 Pa.C.S.A. §§ 105 and 551 et seq., known as the "Local Agency Law."

§ 18-529. Violations. [Ord. 106, 2/2/2005, § 19; as amended by A.O.]

1. Any person who shall violate any of the provisions of this Part 5B, or who shall fail to act upon notice or determination of the SEO or other authorized agent of the Township within the time stated in the notice on determination, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days.

2. It is further provided as follows:

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A. Each day of violation or continuing violation shall constitute a separate offense.

B. Failure to appeal a notice or determination pursuant to § 18-528 and the Local Agency Law, 2 Pa.C.S.A. §§ 105 and 551 et seq., shall constitute an admission of the violation and a failure to utilize administrative remedies.

C. This Part 5B constitutes an ordinance enacted for the purposes of property maintenance, public health and safety, and for water and air pollution violations, for the purposes of § 702, Clause XLI, of the Second Class Township Code, as amended, 53 P.S. § 657541.

D. In addition to all other remedies, the Township may institute suits in equity to restrain or prevent violations of this Part 5B, or to abate public nuisances.

E. The Township may file Township liens for abatement of nuisances in accordance with law.

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(RESERVED)

Chapter 19

(RESERVED)

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Part 1
GENERAL

§ 20-101. Scope. [Ord. 161, 8/6/2014, § 1.01]

This chapter shall provide a mandatory recycling program and govern all aspects of the collection, storage, transportation, processing, and disposal of municipal solid waste and recycling in the Township. It contains regulations applicable to haulers of municipal waste and recyclables, individuals, commercial, municipal, and institutional establishments, and community activities.

§ 20-102. Purpose. [Ord. 161, 8/6/2014, § 1.02]

1. An ordinance to establish a program for mandatory source separation and separate collection of designated recyclable materials from residences and properties receiving municipal waste collection services within the Township, for recycling purposes; to prohibit the disposal of designated recyclable materials into the conventional municipal waste disposal system; to empower the Township to promulgate and adopt reasonable rules and regulations therefore; and, to fix penalties for violation thereof of this chapter.

2. Otherwise promote the purposes and goals set forth in the Act.

§ 20-103. Definitions. [Ord. 161, 8/6/2014, § 1.03; as amended by A.O.]

As used in this chapter, the following terms shall have the meanings indicated:

AGENT — One who performs an act for his immediate family or for another person gratuitously (without any form of monetary or material compensation therefore).

ALUMINUM CANS — Empty, all-aluminum beverage and food containers.

AUTHORIZED COLLECTOR — An individual or corporation authorized by the Commonwealth of Pennsylvania to transport or collect municipal solid waste and/or municipal recyclables.

BI-METALLIC CANS — Empty food or beverage containers consisting of both steel and aluminum.

CHIPBOARD/CARDBOARD — A non-corrugated paperboard used for backing sheets on padded writing paper, partitions within boxes, shoe boxes, cereal boxes and the like.

COLLECTOR/HAULER — Any person who collects municipal waste or recyclables and transports to an authorized disposal site.

COMMERCIAL — Of or pertaining to any wholesale, retail, industrial, manufacturing, transportation, or financial or professional service or office enterprise, business, or establishment.

COMMERCIAL ESTABLISHMENT — Any establishment engaged in a non-manufacturing or non-processing business including, but not limited to, farms, stores, markets, office buildings, restaurants, shopping centers, apartment buildings with four or more units, and private residential developments, theaters, churches, mobile home parks, condominium and townhouses, or a similar type of development.

COMMINGLED RECYCLABLES — Recyclables mingled or blended together placed in the same container.

COMMUNITY ACTIVITIES — Events sponsored in whole or in part by a municipality, or conducted within a municipality and sponsored privately, which include, but are not limited to, fairs, bazaars, socials, picnics and organized sporting events that will be attended by 200 or more individuals per day.

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COMPOSTING — The process by which organic solid waste is biologically decomposed under controlled anaerobic or aerobic conditions to yield a humus-like product.

COMPOSTING FACILITY — A facility using land for processing of municipal waste by composting. The term includes land thereby affected during the lifetime of the operations, including, but not limited to, areas where composting actually occurs, support facilities, borrow areas, offices, equipment sheds, air and water pollution control and treatment systems, access roads, associated on-site or contiguous collection, transportation and storage facilities, closure and post-closure care and maintenance activities and other activities in which the natural land surface has been disturbed as a result of or incidental to operation of the facility. The term does not include a facility for composting residential municipal waste that is located at the site where the waste was generated.

CORRUGATED PAPER — Structural paper material with an inner core shaped in rigid parallel furrows and ridges, of the type normally used to make packaging cartons and boxes.

CURBSIDE COLLECTION — A method of collection of residentially generated municipal waste and/or residentially generated recyclables by which the owners or occupants of certain residential properties may dispose of their recyclables by placing them curbside at times designated by the haulers, for collection and removal by a collector thereof for delivery to a recycling center.

DISPOSAL — The incineration, deposition, injection, dumping, spilling, leaking, or placing of municipal waste into or on the land or water in a manner such that the municipal waste or a constituent thereof, enters the environment, is emitted into the air, or is discharged to the waters of the Commonwealth of Pennsylvania.

DISPOSAL AREA — Any site, location, area, building, structure, transfer station, or premises to be used for municipal waste disposal.

GARBAGE — All putrescible animal and vegetable matter resulting from the handling, preparation, cooking, consumption of food.

GLASS CONTAINERS — All empty food and beverage jars or bottles, the product being transparent or translucent (either clear, green or brown).

INDUSTRIAL ESTABLISHMENT — Any establishment engaged in manufacturing or processing including, but not limited to, factories, foundries, mills, processing plants, refineries and the like.

INSTITUTIONAL — An establishment engaged in service including, but not limited to, hospitals, group homes, nursing homes, schools, universities, churches, and social or fraternal societies and organizations.

LANDLORD — The owner of a residential rental property, or such owner's authorized agent.

LEAF WASTE — Leaves, garden residue, shrubbery and tree trimmings, and similar material, but not including grass clippings.

LICENSED HAULER — Any owner of a waste transportation vehicle licensed under Pennsylvania Act 90.

MAGAZINES — Printed matter, also known as periodicals, containing miscellaneous written pieces published at fixed or varying intervals, printed on glossy or chemically coated paper. Expressly excluded are newspapers and all other paper products of any nature whatsoever.

MULTIFAMILY HOUSING PROPERTIES — A type of residential property either under single ownership or organized as a condominium or cooperative form of housing, which contains four or more dwelling units.

MUNICIPAL ESTABLISHMENTS — Of or pertaining to any office or other property under the control

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of any branch or arm of the federal government of the United States of America, the Commonwealth of Pennsylvania, or any political subdivision of the Commonwealth of Pennsylvania including, but not limited to, the Township, any counties, cities, boroughs, townships, and municipal authorities.

MUNICIPAL WASTE — Any garbage, refuse, industrial lunchroom or office waste and other material, including solid, liquid, semisolid, or contained gaseous material resulting from the operation of residential, municipal, commercial or institutional establishments and from community activities; and, sludge not meeting definition of residual or hazardous waste under this section from a municipal, commercial or institutional water supply treatment plant, wastewater treatment plant or air pollution control facility.

MUNICIPAL WASTE LANDFILL — Any facility that is designed, operated or maintained for the disposal of municipal waste, whether or not such facility possesses a permit from the Department under the Solid Waste Management Act, 35 P.S. § 6018.101 et seq. The term shall not include any facility that is used exclusively for disposal of construction/demolition waste or sludge from sewage treatment plants or water supply treatment plants.

NEWSPAPER — Paper of the type commonly referred to as "newsprint" and distributed at fixed or stated intervals, usually daily or weekly, having printed thereon news and opinions and containing advertisements and other matters of public interest. The term newspaper expressly excludes glossy advertising inserts, magazines, glossy or other chemically treated coated paper, office paper, any other paper products of any nature.

PERSON — An individual, partnership, corporation, association, institution, cooperative enterprise, municipal authority, federal government or agency, state institution and agency, including, but not limit to, the Department of General Services and the State Public School Buildings Authority, or another legal entity which is recognized by law as the subject of rights and duties. In the provisions of this Part pertaining to a fine or penalty, the term includes the officers and directors of a corporation or other legal entity having officers and directors.

PLASTIC CONTAINERS — Empty plastic food and beverage containers, the specific types of which are PET (e.g., soft drink bottles) and HDPE (e.g., milk and water jugs, detergent and shampoo bottles) will be designated by resolution of the Township Supervisors.

RECYCLABLES — Materials designated as recyclable in this chapter, or required by the terms of this chapter (or any amendment hereto) will be designated by resolution of the Township Supervisors.

RECYCLING — The collection, separation, recovery and sale or reuse of metals, glass, paper, plastics and other materials which would otherwise be disposed or processed as municipal waste.

RECYCLING FACILITY — A facility employing a technology that is a process that separates or classifies municipal waste and creates or recovers reusable materials that can be sold to or reused by a manufacturer as a substitute for or a supplement to virgin raw materials. The term recycling facility shall not mean transfer stations or landfills for solid waste nor composting facilities or resource recovery facilities. The term does not include transfer facilities, municipal waste landfills, composting facilities or resource recovery facilities.

RESIDENTIAL — Of or pertaining to any dwelling unit used as a place of human habitation and which is not commercial, municipal, institutional, or a community activity. Home occupations incidental to a residential use within a building are considered residential.

RESIDENTIAL CUSTOMER — Any person generating municipal waste from a Residential Establishment located within the Township.

RESIDENTIAL ESTABLISHMENT — Any premises in the Township utilized primarily as a residential dwelling unit, but excluding apartment buildings containing four or more units, condominiums and

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townhouses or a similar type of development.

RESOURCE RECOVERY FACILITY —

(1) A processing facility that provides for the extraction and utilization of materials or energy from municipal waste.

(2) The term includes a facility that mechanically extracts materials from municipal waste, a combustion facility that converts the organic fraction of municipal waste to usable energy and a chemical and biological process that converts municipal waste into a fuel product.

(3) The term also includes any facility for the combustion of municipal waste that is generated off-site, whether or not the facility is operated to recover energy.

(4) The term includes land affected during the lifetime of operations, including, but not limited to, areas where processing activities actually occur, support facilities, borrow areas, offices, equipment sheds, air and water pollution control and treatment systems, access roads, associated on-site or contiguous collection, transportation and storage facilities, closure and post closure care and maintenance activities and other activities in which the natural land surface has been disturbed as a result of or incidental to operation of the facility.

(5) The term does not include:

(a) Any composting facility.

(b) Methane gas extraction from a municipal waste landfill.

(c) Any separation and collection center, drop-off point or collection center for recycling, or any source separation or collection center for composting leaf waste.

(d) Any facility, including all units in the facility with a total processing capacity of less than 50 tons per day.

RUBBISH — Solid waste (e.g., non-recyclable glass, metal, paper or plastic) exclusive of garbage and noncompostable plant material, wood, or nonputrescible solid waste.

SOURCE SEPARATED RECYCLABLE MATERIALS — Materials that are separated from municipal waste at the point of origin for the purpose of recycling. The term is limited to clear glass, colored glass, aluminum, steel and bimetallic cans, high-grade office paper, newsprint, corrugated paper, plastics and other marketable grades of paper.

STEEL CANS — Empty food or beverage containers made of steel, tin-coated steel, or other ferrous metal food or beverage containers.

STORAGE — The containment of any municipal waste on a temporary basis in such a manner as not to constitute disposal of such municipal waste in excess of one month constitutes disposal. The presumption can only be overcome by clear convincing evidence to the contrary.

TOWNSHIP — Upper Nazareth Township, Northampton County, Pennsylvania.

TRANSPORTATION — The off-site removal of any municipal waste at any time after generation thereof.

WASTE — A material whose original purpose has been completed and which is directed to a disposal or processing facility or is otherwise disposed of, processed or beneficially used. The term does not include source-separated recyclable materials, material approved by the Commonwealth of Pennsylvania, Department of Environmental Protection, for beneficial use under a beneficial use order issued by the

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Department prior to May 27, 1997, or material which is used beneficially in accordance with a general permit issued under Subchapter 1 or Subchapter (relating to beneficial use; and beneficial use of sewage sludge by land application) if a term or condition of the general permit excludes the material from being regulated as a waste.

YARD WASTE — Leaves, garden residue, tree trimmings, chipped shrubbery and other vegetative material.

YARD WASTE COMPOSTING FACILITY — A facility that is used to compost leaf waste, or leaf waste and grass clippings, garden residue, tree trimmings, chipped shrubbery and other vegetative material. The term includes land affected during the lifetime of the operation, including, but not limited to, areas where composting actually occurs, support facilities, borrow areas, offices, equipment sheds, air and water pollution control and treatment systems, access roads, associated on-site or contiguous collection and transportation activities, and other activities in which the natural surface has been disturbed as a result of or incidental to operation of the facility.

§ 20-104. Dumping/Litter. [Ord. 161, 8/6/2014, § 1.04]

1. It shall be unlawful for any person to store, dump, discard, or deposit, or to permit the storage, dumping, discarding, or depositing of, any municipal waste or recyclables upon the surface of the ground or underground within the Township, except in proper containers for purposes of storage or collection, and exempt where the waste or recyclables are of such size or shape as not to permit their being placed in such containers. It shall be unlawful for any person to dump or deposit any municipal waste or recyclables in any stream, body of water or on any public right-of-way within the Township.

2. Every owner of property or occupant thereof responsible for such property's day-to-day operation or maintenance shall pick up and discard in any appropriate receptacle any municipal waste, recyclables or other debris deposited or accumulated on the sidewalk or gutter in front of or adjacent to such property. All owners or operators of commercial, industrial, institutional and municipal establishments in the Township shall take all reasonable precautions to prevent the deposit and accumulation of debris in front of their premises, and in furtherance of that end, may place appropriate waste containers on the sidewalks in front of or adjacent to their premises at a point which will not create a hazard to traffic or pedestrians. Any such receptacles so placed shall be emptied on a regular basis and maintained in a neat and clean appearance.

3. Nothing contained herein shall prohibit a farmer from carrying out the normal activities of his farming operation, including composting and spreading manure or other farm-produced agricultural waste, provided such activities are conducted in accordance with all applicable law, rules and regulations.

4. Bulk containers shall not be permitted to overflow or to have waste strewn or left about them on the ground. A violation of this provision shall be deemed a violation of the chapter by the person on whose property the bulk container is located, if it is located on private property.

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Part 2
RECYCLING

§ 20-201. Separation of Recyclables. [Ord. 161, 8/6/2014, § 1.05]

1. Recyclables shall be kept separate from and stored separately from municipal waste, to the extent required by the following provisions:

   A. Owners and occupants of all residential properties, as described herein, shall separate recyclables from municipal solid waste.

   B. Owners and occupants of all commercial, municipal, and institutional establishments and properties and sponsors or organizers of community activities shall separate recyclables from municipal solid waste.

   C. The Township shall provide residential curbside recycling containers to be used for the storage and collection of recyclables.

   D. Leaf waste, as defined in this chapter, shall be separated from municipal solid waste and recycled as prescribed in § 20-206.

   E. Yard waste may be separated and recycled as prescribed in § 20-207.

§ 20-202. Placement for Removal of Recyclables from Residential (Other than Multifamily Housing of Four Units or Less) Properties. [Ord. 161, 8/6/2014, § 1.06]

1. For residential properties other than multifamily dwellings, all recyclables which are required to be kept separate from municipal waste in residential properties shall be placed at curbside or an appropriate location on the premises to be collected at times designated by the hauler. The frequency of such collection shall not be less than twice per month.

2. The recyclables are to be collected by a hauler once it is placed at curbside.

§ 20-203. Placement for Removal of Recyclables from Multifamily Housing Properties (Greater than Four or More Units). [Ord. 161, 8/6/2014, § 1.07]

1. For multifamily housing properties, all recyclables which are required to be kept separate from municipal waste in residential properties shall be picked up by a hauler separately from municipal waste, in a pre-arranged manner. If any recyclables are picked up, then all recyclables generated at the property shall be made available for collection.

2. The landlord or board of directors of every multifamily dwelling shall require, by a clause in the lease or other enforceable rule or regulation, that the tenants in such property comply with the requirements of this chapter governing separation and disposal or placement for removal of recyclables in multifamily dwellings. Every such landlord shall set up a convenient and practical collection system in such properties for the collection, storage and regular disposal or placement for removal of recyclables generated by the residents of such properties and shall provide suitable containers consistent with § 20-201, Subsection 1E, above.

3. The collection system must include suitable containers for collection and sorting materials, easily accessible locations for the containers and must provide annual written education regarding the Township's recycling ordinance and instructions to the occupants concerning the use and availability

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of the collection system.

4. Owners, landlords and agents of owners or landlords who comply with the aforementioned requirements relative to the multifamily dwellings shall not be liable for the noncompliance of occupants for their building.

§ 20-204. Placement for Removal of Recyclables from Commercial, Municipal, Institutional and Community Activities. [Ord. 161, 8/6/2014, § 1.08]

All recyclables which are required to be kept separate from municipal waste, in commercial, municipal, and institutional establishments and properties and community activities shall either be delivered directly to a recycling center, or shall be picked up by a hauler separately from municipal waste, in a pre-arranged manner. If any recyclables are picked up, then all recyclables generated at the property shall be made available. Commercial, municipal and institutional establishments and community activities shall not place recyclables within the public right-of-way for curbside collection, such curbside collection being intended solely for the placement of recyclables generated in residential properties other than multifamily housing properties.

§ 20-205. Recycling Reports. [Ord. 161, 8/6/2014, § 1.09]

1. The hauler shall submit the recycling report and weigh slips obtained from the facility or facilities to which the recyclables were delivered or taken quarterly. For purposes of submitting such weight slips and recycling reports to the Township, the collector who removed the recyclables from the property shall be responsible for completing and submitting such to the Township. Each such quarterly report shall be submitted on or before the last day of the first month of each quarter, for the preceding quarter. Quarters shall run on a calendar-year basis, thus: January through March; April through June; July through September; and October through December.

2. An approved method of estimation (i.e., percentage) may be used to determine tonnage for recycling reports.

§ 20-206. Placement for Removal of Leaf Waste Materials. [Ord. 161, 8/6/2014, § 1.10]

Leaf waste collections program shall include all residential, commercial, municipal, and institutional properties within the Township. The material shall be deposited along the curb for pickup by the Township or their designated collection contractor. The Township will establish rules and procedures for the collection of leaf waste. These rules and procedures may be amended, by motion of the Board of Supervisors, from time to time.

§ 20-207. Placement for Removal of Yard Waste Materials. [Ord. 161, 8/6/2014, § 1.11]

Recycling of yard waste, as defined in this chapter, is voluntary and is available only to residential property owners or tenants. The Township will establish rules and procedures for the collection of yard waste and may be amended, by motion of the Board of Supervisors, from time to time. This program will consist of a spring yard waste collection, a fall leaf collection and use of a drop-off yard waste recycling center.

§ 20-208. Presumption of Ownership of Municipal Waste and Recyclables. [Ord. 161, 8/6/2014, § 1.12]

The presence of any articles containing a person's name among municipal waste and recyclables shall create a rebuttable presumption, for the purposes of this chapter that said municipal waste or recyclables

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are the property of the person whose name is found therein.

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Part 3
MUNICIPAL WASTE

§ 20-301. Preparation and Storage of Municipal Waste. [Ord. 161, 8/6/2014, § 1.13]

1. Any person accumulating or storing municipal waste on private or public property in the Township for any purpose whatsoever shall place the same, or cause the same to be placed, in sanitary closed or covered containers in accordance with the following standards:

   A. Containers used for the storage of municipal waste shall be made of metal, plastic or fiberglass construction; rust and corrosion resistant, equipped with lids and waterproof.

   B. No person shall place, store, collect, transport or dispose of municipal waste generated at their residence in any container for municipal waste located at a different property than the residence where the municipal waste was first generated. No person shall permit the placement, storage, collection, transport or disposal of municipal waste generated at another location other than at their residence.

§ 20-302. Required Collection and Hours of Collection. [Ord. 161, 8/6/2014, § 1.14; as amended by A.O.]

1. If a person or establishment (being so authorized by the terms hereof) collects and removes their own municipal waste, they shall do so at a minimum of every 30 days or at shorter intervals, in order to prevent odors, vectors or accumulations of refuse or garbage that are unsafe, unsightly, or potentially harmful to the public health. Any municipal waste so removed shall be disposed of in accordance with the requirements of this chapter.

2. In residential areas, collection shall be between 6:00 a.m. and 10:00 p.m., prevailing time. Waste/recycling containers may be put out at curbside no earlier than 5:00 p.m., the day prior to collection and shall not be curbside more than 24 hours.

3. No person other than a contracted hauler shall collect or remove municipal waste from any other person's property. All agreements for collection, transportation and disposition of municipal waste shall be by private contract between the owner or occupant of the property where the waste is generated and the hauler who is to collect such waste.

4. Nothing herein shall limit the right of the Township to implement public collection of solid waste either by entering into contracts or by engaging in any collection practice permitted by law.

5. Nothing in this section shall modify the requirement in this chapter pertaining to separation and disposal of recyclables. Nothing in this section shall impair the ability of the Township to provide a system of placement for removal and public collection of leaf waste, or the Township residents to utilize such a system of public collection of leaf waste, anything herein contained to the contrary notwithstanding.

§ 20-303. Transportation of Municipal Waste. [Ord. 161, 8/6/2014, § 1.15]

1. Any person transporting municipal waste within the Township shall prevent or remedy any spillage or leakage/prevention of leakage from vehicles or containers used in the transport of such municipal waste.

2. All persons collecting municipal waste shall do so in vehicles that are provided with either closed,

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covered containers or which have measures taken to prevent waste from being blown or falling from the vehicle.

3. The transfer of waste from one collection vehicle to another may not take place in the Township, except on private property in those areas of the Township designated for such by the Township, if any. No such transfer may take place on any public right-of-way, and no such transfer operation may block traffic, create litter, or in any other manner constitute a nuisance, create a health hazard, or violate any other ordinance of the Township or provision of statutory law.

§ 20-304. Public Litter Baskets. [Ord. 161, 8/6/2014, § 1.16]

The Township is hereby authorized to collect municipal waste from the Township property, to provide public litter baskets on Township-owned properties and to dispose of such waste in either a receptacle of a hauler or at designated disposal sites.

§ 20-305. Burning Recyclables. [Ord. 161, 8/6/2014, § 1.17]

The burning of recyclables, leaf waste and municipal waste is prohibited.

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Part 4
WASTE AND RECYCLING HAULERS

§ 20-401. Removal by Licensed Haulers. [Ord. 161, 8/6/2014, § 1.18]

1. Every property owner in the Township shall contract with an individual, entity or firm which is a licensed hauler by the Commonwealth of Pennsylvania to have all the municipal waste generated by residents collected curbside and deposited in a permitted landfill and recyclables collected curbside and taken to a recycling vendor on a minimum of a biweekly basis or more often.

   A. Proof of Contract Required. Whenever requested by the Township, the owner of any real estate within the Township shall present proof adequate in the judgment of the Township designee that the owner of said real estate has a current contract with a licensed hauler to collect and dispose of municipal waste and remove and process recyclables generated on the premises on a biweekly basis or more often. The owner of the premises shall have 72 hours to provide proof to the Township designee that he has a current contract with a licensed hauler to provide sufficient service to satisfy the terms and conditions of this chapter.

   B. Duties of Haulers.

      (1) Any hauler picking up municipal waste and recyclables in the Township, shall be required to advise the Township in writing within 72 hours after request from the Township as to whether an owner has a current contract for municipal waste disposal from his premises within the Township. Furthermore, all licensed haulers shall cooperate with the Township designee in providing information in the event that an action is instituted to enforce the terms and conditions of this Part.

      (2) All haulers shall have an affirmative duty to follow and conduct themselves in accordance with the requirements of this chapter, any failure of which shall be a violation of this chapter.

      (3) All haulers shall have an affirmative duty to handle waste/recycling containers in a safe manner and if as a result of their handling cause damage shall have the duty to repair and/or replace damaged containers.

§ 20-402. Haulers to Provide Recyclable Removal Service for Residential, Multifamily Housing, Commercial, Municipal, and Institutional Establishments and Properties. [Ord. 161, 8/6/2014, § 1.19]

Every hauler shall be required to provide to its multifamily residential, commercial, municipal, and institutional establishments recyclable removal service at the curbside or an appropriate location on the premises. Any such recyclables so removed by haulers shall be kept separate from municipal waste, shall be taken to a recycling facility for the purpose of recycling.

§ 20-403. Designation of Recycling Facility. [Ord. 161, 8/6/2014, § 1.20]

The Township reserves the right by resolution to direct recyclables to a designated facility.

§ 20-404. Haulers Not to Accept Unlawfully Disposed Recyclables. [Ord. 161, 8/6/2014, § 1.21]

No hauler shall accept, pick up, or remove any bag or other container of municipal waste which the hauler knows, or has reason to believe, contains recyclables, combined with the municipal waste placed at

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curbside or otherwise placed for pick up, the hauler shall affix a tag or sticker to the container containing the recyclables.

§ 20-405. Complaints. [Ord. 161, 8/6/2014, § 1.22]

All complaints regarding collection of recyclables or municipal waste shall be reported to the collector/hauler.

§ 20-406. Community Oriented Charitable Activities. [Ord. 161, 8/6/2014, § 1.23]

Nothing contained herein shall impair or prohibit any recognized civic, fraternal, charitable or benevolent organization, association or society from undertaking or sponsoring voluntary programs or projects involving the collection of recyclables from the public. Any such collection activity can only occur prior to the recyclables materials being placed at curbside or similar location for collection by an authorized collector. Prior to initiating such activity the organization shall obtain authorization from the Township.

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Part 5
MISCELLANEOUS PROVISIONS

§ 20-501. Placement of Containers for Collection. [Ord. 161, 8/6/2014, § 1.24]

All municipal waste accumulated by the owners or occupants of each residential property or establishment shall be placed in containers for collection. The containers shall be located so as to be accessible to the collector at ground level and at a point of the curbline of the street or within 10 feet of the public street or alley curbline from which collection is to be made. Containers shall be placed out for collection not earlier than 5:00 p.m. on the day prior to the scheduled collection.

§ 20-502. Solid Waste Regulations. [Ord. 161, 8/6/2014, § 1.25]

The Township Board of Supervisors shall have the right to adopt resolutions establishing regulations to effectuate and clarify the municipal waste disposal provisions of this chapter. These regulations shall have the full force and effect as though they were set forth in this chapter.

§ 20-503. Municipal Waste/Recycling Coordinator. [Ord. 161, 8/6/2014, § 1.26]

The Board of Supervisors may from time to time adopt a resolution establishing a Township official to serve as the Municipal Waste and Recycling Coordinator. Said official shall have the responsibility to coordinate the Township municipal waste program. The Coordinator shall also prepare any necessary revisions to the municipal waste and recycling regulations, for review and approval by the Board of Supervisors.

§ 20-504. Unlawful Activities. [Ord. 161, 8/6/2014, § 1.27]

1. It shall be unlawful for any person to violate any provision of this chapter or any provisions of the regulations adopted pursuant to this chapter.

2. No person shall scavenge, remove, take, scatter or disturb municipal waste or recyclables which have been placed by another person at the curbside for collection by hauler pursuant to the curbside collection program.

§ 20-505. Violation and Penalty. [Ord. 161, 8/6/2014, § 1.28; as amended by A.O.]

1. Any person, firm or corporation who shall violate any provision of this Part, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not less than $300 nor more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense. For purposes of this section, the doing of any act or thing as to which any provision of this chapter creates and affirmative duty, shall constitute a violation of this chapter, punishable as herein stated.

2. In addition to other remedies, the Township shall have the right to institute and maintain appropriate actions by law or in equity to restrain, correct or abate any violations of this chapter or regulations adopted pursuant to this chapter.

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§ 20-506. Construction. [Ord. 161, 8/6/2014, § 1.30]

The various headings used throughout this chapter are intended only as an aid in its organization, in order to facilitate ease of reading, and are not to be considered a substantive part of this chapter. In this chapter, unless the context clearly indicates otherwise, the singular shall include the plural; the plural shall include the singular; and the masculine shall include the feminine and neuter.

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UPPER NAZARETH CODE

Chapter 21

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Part 1
SNOW AND ICE REMOVAL

§ 21-101. Responsibility for Removal. [Ord. 159, 2/19/2014, § 1]

The owner, occupant or tenant of every property fronting upon or located alongside any of the streets in the Township is hereby required to remove or cause to be removed from all the sidewalks abutting upon such property all snow or ice thereon fallen or formed, within 24 hours after the same shall have ceased to fall or to be formed. The snow and ice shall be removed so as to clear a path not less than three feet wide and not more than five feet wide and includes ADA ramps which go out to the street. The snow and ice removed from the sidewalk shall not be dumped, shoveled, plowed, thrown or piled onto any public street or alley.

§ 21-102. Penalties. [Ord. 159, 2/19/2014, § 1; as amended by A.O.]

Any person, firm or corporation who shall violate any provision of this Part, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense. Such fines and costs may be in addition to any expenses and additional amounts authorized by law and imposed herein. Each 24 hours shall be deemed a separate offense.

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Part 2
STREET CUTS AND EXCAVATIONS

§ 21-201. Definitions and Interpretation. [Ord. No. 189, 11/16/2022[15]]

1. The following words, when used in this Part, shall have the meanings ascribed to them in this section, except in those instances where the context clearly indicates otherwise:

   EXCAVATION — Any activity within any street which involves cutting, breaking, or disturbing the surface thereof. In this Part, the term "opening" shall have essentially the same meaning as "excavation."

   PERSON — Any natural person, partnership, firm, association, corporation or municipal authority.

   STREET — Any public street, avenue, road, square, alley, cartway, highway, or other public place located in the Township and established for the use of vehicles, but shall not include state highways.

   TOWNSHIP — Any firm or individual designated by the Township to manage, supervise and inspect the street openings or excavations and restorations as set forth in this Part; generally, the Township Public Works Superintendent or the Township Engineer, or their respective designees.

§ 21-202. Permit Required to Make Opening or Excavation. [Ord. No. 189, 11/16/2022]

It shall be unlawful for any person to open or to make any excavation of any kind in any of the streets in the Township of Upper Nazareth without first securing a permit therefor, as hereinafter provided.

§ 21-203. Application for Permit; Information to Be Provided with Permit Application. [Ord. No. 189, 11/16/2022]

1. Any person who shall desire to make any opening or excavation in any of the streets in the Township of Upper Nazareth shall make application to the Township in writing for that purpose. Such application shall be made upon forms to be furnished by the Township and shall set forth the following:

   A. The name of the applicant;

   B. The exact location of the proposed opening or excavation;

   C. The estimated dimensions and area of the proposed opening or excavation;

   D. The dates when the proposed work will occur (if a permit is issued, any subsequent changes to the work dates listed on the permit application must be approved in advance by the Township).

2. The application shall contain an agreement on the part of the applicant that the work shall be done in full compliance with the ordinances of the Township and the laws of the commonwealth in relation thereto, and that the applicant shall well and truly save, defend and keep harmless the Township from and indemnify it against any and all actions, suits, demands, payments, costs and charges for or by reason of the proposed opening or excavation, and all damages to persons or property resulting in any manner therefrom, or occurring in the prosecution of the work connected therewith, or from any other matter, cause or thing relating thereto.

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15. Editor's Note: This ordinance also repealed former Part 2, Street Cuts and Excavations, adopted by Ord. No. 52, 6/8/1988; as amended by Ord. No. 181, 3/6/2019.

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§ 21-204. Permit Fee. [Ord. No. 189, 11/16/2022]

Before any permit shall be issued to open or excavate any roadway in the Township of Upper Nazareth, the applicant shall pay a permit fee in accordance with the Township's Fee Schedule, as amended, to cover the cost of inspection and other incidental services in connection therewith. Permit fees shall be as established by resolution of the Township Board of Supervisors and may include, but shall not be limited to, the following: application fee, inspection fee, and degradation fee.

§ 21-205. Issuance of Permits Restricted. [Ord. No. 189, 11/16/2022]

Permits shall be issued only to persons furnishing public utility services or the owner or owners of the real property adjoining the location where such opening or excavation is to be made, or to the developers of subdivisions who have shown a need to extend utility lines in public streets to its developments.

§ 21-206. Permit Approval/Disapproval. [Ord. No. 189, 11/16/2022]

A permit may be issued to the applicant after all the requirements therefor have been filed. If the application is disapproved, written notice of disapproval together with reasons therefor shall be given to the applicant.

§ 21-207. Responsibility to Contact Utilities. [Ord. No. 189, 11/16/2022]

The work authorized by the permit is subject to all the provisions of the Act of December 10, 1974, P.L. 852, No. 287, § 1 et seq., 73 P.S. § 176 et seq., as amended or supplemented from time to time. It shall be the permittee's responsibility to contact the utilities that have recorded their facilities in compliance with said Act.

§ 21-208. Responsibility of Permit Holder for Certain Work; Right of Township to Do Certain Work; Charges Therefor. [Ord. No. 189, 11/16/2022]

1. The person to whom a permit is issued ("permittee") shall assume all responsibility for any opening or excavation made and for backfilling and restoring the same, and for all damages that may arise by reason of the opening or excavation and backfilling or restoration of same.

2. All work in connection with openings or excavations in any street, including, but not limited to, excavation, maintenance and protection of traffic, refilling, temporary paving, permanent pavement restoration, and repair and replacement of incidentally damaged curb and sidewalk, shall be done by or for the person to whom or which the permit has been issued at their expense.

3. In the event that any work performed by or for a permit holder shall, in the opinion of the Township, be unsatisfactory and the same shall not be corrected in accordance with their instructions within the time fixed by them, or in the event that the work for which the permit was granted is not completed within the time fixed by the Township, the Township may proceed to correct such unsatisfactory work or complete any such work not completed, and charge the cost thereof, plus 20%, to the permittee.

§ 21-209. General Requirements for Work. [Ord. No. 189, 11/16/2022]

1. The permittee shall be solely responsible for the excavation and complete restoration of any street opening or excavation as required by this Part and all other applicable Township codes or regulations.

2. The permittee shall restore the roadway to the same condition as or better than it was before the opening or excavation. Surface restoration shall be completed with like materials, i.e., if the surface

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of the excavated street consists of cement and bituminous concrete, the surface restoration shall be completed with cement and bituminous concrete. As restored, the surface shall conform to the proper grade and be of the same surface covering as the part of the thoroughfare immediately adjoining the opening.

3. Road construction materials shall be in accordance with the standards established in the Upper Nazareth Township Subdivision and Land Development Ordinance and specifications of Pennsylvania Department of Transportation Publication 408 (latest edition) which are hereby adopted as specifications of the Township for the restoration of surfaces of streets in the Township. As applicable, materials shall generally be procured from PennDOT Bulletin 15 (Publication 35, latest edition) listed vendors or from PennDOT-certified facilities. Alternates will be approved at the discretion of the Township.

4. Road construction standards shall be in accordance with the standards established in the Upper Nazareth Township Subdivision and Land Development Ordinance and specifications of Pennsylvania Department of Transportation Publication 408 (latest edition) which are hereby adopted as specifications of the Township for the restoration of surfaces of streets in the Township. Alternates will be approved at the discretion of the Township.

5. The permittee shall contact the Township prior to the start of any excavation work. All excavation work must be in compliance with this Part and all other applicable Township codes or regulations.

6. The permittee shall notify the Township when the opening or excavation is ready for backfilling before any backfilling is done, when backfilling work is completed, and prior to the placement of temporary and permanent pavement restoration so that inspections may be made.

7. Curb and Sidewalk. The permittee shall repair and replace in kind any curb and sidewalk removed or damaged by the work in accordance with the Township construction standards established in the Upper Nazareth Township Subdivision and Land Development Ordinance and specifications of Pennsylvania Department of Transportation Publication 408 (latest edition) which are hereby adopted as specifications of the Township for the restoration of surfaces of streets in the Township.

8. During the making of any excavation in the street, every necessary and reasonable precaution shall be taken by the applicant and the parties making the same to keep the street in a safe and passable condition both day and night by guards, barriers, lanterns and other devices, and all excavating permits granted hereunder are granted under and subject to the express condition that the person to whom the same is issued shall indemnify, save and keep harmless the Township from any loss in time by the said excavation, or by any leak, explosion or other injury from any pipe, apparatus, conduit, or any other matter placed in the said excavation.

§ 21-210. Street Excavation; Backfill; Temporary Restoration. [Ord. No. 189, 11/16/2022]

1. No opening or excavation in any street shall extend from the curbline into the roadway a distance greater than one foot beyond the center line of the street before being refilled and the surface of the highway restored to a condition safe and convenient for travel.

2. No more than 500 feet longitudinally shall be opened in any street at any one time.

3. The work of excavation shall be so conducted as not to interfere with the water mains, sewers or their connections with the houses, or any other subsurface lines or constructions, until permission of the proper authorities in connection with such subsurface lines or constructions shall have been obtained.

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4. Tunneling-Missile Restrictions. Except for missiles of 2.5-inch diameter or less, no part of a trench or excavation shall be tunneled, missiled, or undermined without the express approval of the Township. The backfilling and restoration of any such work shall be completed only in the presence of the Township, or an inspector designated by them, and shall be done only in a method approved by them.

5. All excess excavated material shall be promptly removed from the excavation site by the permittee.

6. Any Permittee who shall open or excavate any street in the Township shall thoroughly and completely refill the opening or excavation in such a manner as to prevent any settling thereafter. All openings or excavations shall be backfilled promptly with modified 2A stones and thoroughly compacted in layers, each of which layers shall not exceed eight inches in depth. Backfilling shall be placed to within a minimum of three inches and a maximum of five inches from the surface.

7. Temporary pavement restoration comprised of bituminous 25 mm Superpave base hot- or warm-mix asphalt shall be installed in accordance with Pennsylvania Department of Transportation Publication 408 (latest edition) specifications to a minimum compacted depth of three inches to be flush with the surface of adjoining pavement. Cold patch shall only be used upon written approval from the Township. Temporary pavement shall be maintained for a period of 90 days before permanent pavement restoration is completed.

§ 21-211. Permanent Pavement Restoration Requirements. [Ord. No. 189, 11/16/2022]

1. After 90 days, as determined by the Township, the permittee shall remove the temporary pavement and the necessary stone as follows:

   A. For all arterial and collector roads, and for local roads subject to regular truck traffic as determined by the Township Engineer: excavate 2A stone to 9.5 inches below the existing street surface.

   B. For local roads not subject to regular truck traffic as determined by the Township Engineer: excavate 6.5 inches below the existing street surface.

   C. For roads with a cement concrete base course, excavate to the bottom of the cement concrete base course or a minimum of six inches, whichever is greater. The minimum size of the opening or excavation shall be 16 square feet.

2. Pavement Base Course.

   A. On a cement concrete base street, such base shall be replaced with concrete, and the minimum size of the opening or excavation shall be 16 square feet. Where the depth from top of concrete base to street surface exceeds two inches, the permittee shall place asphalt cement binder course of type and compacted depth to be determined by the Township on a case-by-case basis.

   B. On all other streets, the permittee shall place a bituminous 25mm Superpave base hot- or warm-mix asphalt as follows:

      (1) For all arterial and collector roads, and for local roads subject to regular truck traffic as determined by the Township: place eight inches compacted in two four-inch lifts.

      (2) For local roads not subject to regular truck traffic as determined by the Township: place five inches compacted.

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3. Pavement Surface Restoration Wearing Course. Pavement surface restoration shall be completed by the permittee in accordance with the following conditions:

   A. When a longitudinal opening of 50 feet or longer has been made in the pavement, the permittee shall mill and overlay the full travel lane in which the opening was made from a point 10 feet prior to the opening and a point 10 feet beyond the opposite edge of the opening. A 1.5-inch mill and overlay with 9.5mm Superpave will be required.

   B. When two or more transverse openings within 100 feet of each other have been made in the pavement, the permittee shall mill and overlay the full travel lane in which the openings were made the full distance between a point 10 feet prior to the first opening and a point 10 feet beyond the opposite edge of the final opening. A 1.5-inch mill and overlay with 9.5mm Superpave will be required.

   C. When work is limited to a single transverse opening made for a service lateral, stub or utility main connection, or where there is no more than one service cut within 100 feet of another service cut, and there is no longitudinal cut, the permittee shall mill and overlay an area from the road center line to the edge of pavement/curbline and that extends five feet to either side of the service lateral trench opening. A 1.5-inch mill and overlay with 9.5mm Superpave will be required.

   D. When work is limited to a longitudinal opening less than 50 feet long, and there is no transverse opening for a service lateral, stub or utility main connection, the permittee shall mill and overlay an area that extends 10 feet beyond the limits of excavation at each end of the opening, and that extends five feet to either side of the trench opening. A 1.5-inch mill and overlay with 9.5mm Superpave will be required.

   E. When work is limited to a longitudinal opening less than 50 feet long and includes one or multiple transverse openings within the limit of longitudinal trench opening, the permittee shall mill and overlay an area that extends 10 feet beyond the limits of excavation at each end of the opening and is a full travel lane in width from the road center line to the edge of pavement/ curbline. A 1.5-inch mill and overlay with 9.5mm Superpave will be required.

   F. The permittee's overlay work shall include, but not be limited to, full width milling or gutter milling along curbs (as approved by the Township), milling for paving notches, the placement of tack coat, sealing all joints and replacing pavement markings. Lids on all utilities shall be raised to the finish grade.

   G. If the excavation extends across multiple travel lanes, then either a lane and one-half or the full width of the street shall be milled and overlayed depending on the limits of excavation at the discretion of the Township.

   H. When a street opening or excavation is made within a street that was resurfaced within the previous five years, the permittee shall be subject to a degradation fee as established in this Part.

§ 21-212. Protective Measures; Road Closure Restrictions. [Ord. No. 189, 11/16/2022]

1. The permittee shall be responsible to ensure that any openings or excavations made in the streets are adequately protected. All traffic control devices, including barricades, traffic cones, signage, flaggers and any other temporary devices, shall be provided by the permittee through the duration of the work. Traffic controls shall be provided in accordance with the following standards:

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A. Commonwealth of Pennsylvania Department of Transportation Publication No. 213, "Temporary Traffic Control Guidelines" (latest edition).

B. Supplemental instructions given by the Township.

2. If any road closures are anticipated during the excavation, backfilling or restoration work, the permittee shall notify the Township and the appropriate Northampton County authorities (so emergency services are notified) in advance of any such closure.

3. Except where specifically authorized in advance by the Township, all closed or partially closed streets shall be fully reopened to traffic at the end of each workday. The use of steel plates as temporary covers for openings or excavations is permitted. Bituminous material must be installed as a transition between the existing paved surface and the steel plate.

4. Days and Hours for Work. Except in the case of an emergency, all work related to excavations or openings shall be restricted to certain days and hours, as follows:

A. Weekdays (Monday through Friday), beginning at 7:00 a.m. and concluding no later than 5:00 p.m. each day.

B. Saturdays, only when authorized in advance by the Township, beginning at 8:00 a.m. and concluding no later than 5:00 p.m. each day.

C. Work is prohibited on Sundays and on any legal holidays recognized by the Township.

§ 21-213. Restrictions Regarding Trees and Shrubbery. [Ord. No. 189, 11/16/2022]

The permission granted by the issuance of a street opening permit does not confer upon the permittee or its contractors the right to cut, remove or destroy trees or shrubbery within the legal right-of-way except under specifications, regulations and conditions as the Township may prescribe.

§ 21-214. Emergency Openings. [Ord. No. 189, 11/16/2022]

In the case of any leak, explosion or other accident in any subsurface pipe, line, construction or apparatus, it shall be lawful for the person owning or responsible for such pipe, line, construction or apparatus to commence an excavation to remedy such condition before securing a permit, provided that application for a permit shall be made immediately and not later than the next business day thereafter, and that all other provisions of this Part are fully complied with. If an emergency condition shall not be immediately attended to by the owner or person responsible for such pipe, line, construction, or apparatus, the Township, after such notice as shall be deemed necessary under the circumstances of the particular case, shall proceed to do the work necessary and required by such emergency, and charge the same on the basis of cost plus 20% to such owner or person.

§ 21-215. Work Necessitating Opening or Excavation to Be Done Prior to Street Improvement and Not Until Five Years Thereafter; Exception; Degradation Fee. [Ord. No. 189, 11/16/2022]

1. The Township shall give timely notice to all persons owning property abutting on any street within the Township about to be paved or improved and to all public utility companies operating in the Township. All such persons and utility companies shall make all water, gas or sewer connections, as well as any repairs thereto which would necessitate excavation of the said street, within 30 days from the giving of such notice, unless such time is extended in writing for cause shown by the Township.

2. New paving shall not be opened or excavated for a period of five years after the completion thereof,

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except in case of emergency, the existence of which emergency and the necessity for the opening or excavating of such paving to be determined by the Township.

3. If any utility or person seeks to excavate upon or open a Township street within five years after the completion of the paving or road improvement, the applicant shall make written application to the Township, and a permit for such opening shall be issued only after express approval of the Township.

4. Degradation Fee.

   A. If a permit applicant seeks to excavate or open a street within five years after completion of new paving for any reason other than an emergency, the applicant, in addition to the permit fees required, shall be subject to a degradation fee as shall be established, from time to time, by resolution by the Township.

   B. The degradation fee shall not apply, or shall be refunded if previously collected, if the permittee completes resurfacing of the roadway with a 1.5-inch mill and overlay of the street with 9.5mm Superpave as follows:

      (1) If the longitudinal opening is less than 50 linear feet and all transverse openings are within 50 linear feet of roadway, then the mill and overlay will extend a minimum of 10 feet past the limits of excavation except as provided for in Subsection B(5) below.

      (2) If the longitudinal opening is 50 linear feet or longer or when two or more transverse openings are within 100 feet of each other, then the mill and overlay will extend for the entire block (the distance between intersecting streets) up to a limit of 500 feet except as provided for in Subsection B(5) below.

      (3) Applicable to the preceding Subsection B(1) and (2), if the excavation is limited to a single travel lane, then only a full travel lane need be milled and overlayed. If the excavation extends across multiple travel lanes, then the full width of the street shall be milled and overlayed.

      (4) Applicable to preceding Subsection B(1) and (2), the minimum length of mill and overlay shall be 50 linear feet, and the mill and overlay shall in all cases extend a minimum of 10 feet past the limit of excavation.

      (5) Applicable to preceding Subsection B(1) and (2), in every case where the limit of excavation is within 50 feet of an intersection, the mill and overlay shall extend to the edge of paving of the intersection cross street.

§ 21-216. Responsibility for Defects Occurring Within Two Years. [Ord. No. 189, 11/16/2022]

If, within two years after the restoration of the surface as herein provided, defects appear therein resulting from defective backfilling by the applicant, the applicant shall reimburse the Township for the cost of all necessary repairs to restore the roadway to acceptable standards.

§ 21-217. Permittee Responsibilities for Future Relocation of Work. [Ord. No. 189, 11/16/2022]

If at any time in the future the roadway is widened or reconstructed or the alignment or grades are changed, the permittee further agrees to change or relocate all or any part of the structures covered by this permit which interfere with the improvement of the roadway at its own cost and expense.

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§ 21-218. Conditions for Laying and Extending Utility Lines. [Ord. No. 189, 11/16/2022]

No new water, sewer, steam or gas main or electric, telephone or other utility line shall hereafter be laid or constructed, and no such existing main or line shall be extended, in any of the streets of the Township until the plan therefor shall have been first filed with the Township and such plan, and the exact location of such main or line, if any such main or line at a depth of less than 30 inches from the surface is impossible or impractical.

§ 21-219. Bond Required. [Ord. No. 189, 11/16/2022]

No company, corporation or association shall dig up any street or alley without first giving to the Township of Upper Nazareth a bond in a form acceptable to the Township, which shall be with some acceptable trust or surety company as surety in the sum of $10,000, conditioned for the faithful performance of these provisions and also for any and all damages, claims, demands, suits, costs and counsel fees occasioned or arising from the digging up, opening or closing of said streets and alleys.

§ 21-220. Payment for Work Done by Township. [Ord. No. 189, 11/16/2022]

Payment for all work done by the Township under the provisions of this Part shall be made by the liable permittee within 30 days after a bill is sent to such person by the Township. Upon failure to pay such charges within such time, the same shall be collectible by the Township by an action in assumpsit or in the manner provided by law for the collection of municipal claims.

§ 21-221. Penalties. [Ord. No. 189, 11/16/2022]

Any person, firm or corporation who shall violate any provision of this Part, upon conviction thereof, in an action brought before a Magisterial District Judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

§ 21-222. Applicability. [Ord. No. 189, 11/16/2022]

The provisions of this Part shall not apply to laying sidewalks or curbs.

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Part 3
DRAINAGE STRUCTURES; INSTALLATION AND CONSTRUCTION

§ 21-301. Providing for the Installation of Drainage Facilities. [Ord. 45, 8/19/1986, § 1]

From and after the adoption of this Part, no private road or driveway which joins any Township road, nor any alley or road intended for public use which joins any Township road shall be constructed without first providing for the installation of drainage facilities at the intersection of such road, driveways or alleys with the Township road in accordance with the specifications adopted by the Supervisors.

§ 21-302. Application for Permit. [Ord. 45, 8/19/1986, § 2]

Application for such permit shall be made by the owner, or occupier, or by his contractor or agent, in writing, on forms provided by the Township and in accordance with such rules and regulations as may be established by the Township. There shall be appended to each application a drawing or plan showing the outlines of the property affected with existing improvements thereon, existing drains, culverts, footwalks, drives and driveways, with the proposed drain, culvert, footwalk, drive or driveway, proposed to be added, and the relationship of the foregoing to the Township road, particularly with relationship to the effect on the drainage of said road.

§ 21-303. Inspection. [Ord. 45, 8/19/1986, § 3]

Upon receipt of such application and the payment of requisite fees and costs, the Supervisors shall direct the Township Engineer or other authorized representative to make an inspection of the place of the proposed construction and ascertain the proper drainage facilities to be provided.

§ 21-304. Issuance of Permit. [Ord. 45, 8/19/1986, § 4]

Upon receipt by the Supervisors of the report of the Inspecting Officer of the Township, the Supervisors shall issue a permit to the applicant approving such construction and directing the type of drainage facilities which must be provided.

§ 21-305. Type of Drainage Facilities. [Ord. 45, 8/19/1986, § 5]

1. The type of drainage facilities to be provided shall be determined in the sole discretion of the Supervisors. The minimum requirement for such drain shall be as follows:

   A. A twelve-inch corrugated iron or cement drain.

   B. An apron of prescribed slope and depth.

   A copy of the complete specifications relating to the foregoing categories shall be available to all interested persons and shall be obtained from the Township Secretary.

§ 21-306. Installation of the Type of Drainage Facilities. [Ord. 45, 8/19/1986, § 6]

The installation of the type of drainage facilities approved in each particular case shall be in accordance with the specifications adopted by the Supervisors.

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§ 21-307. Inspection of the Installation. [Ord. 45, 8/19/1986, § 7]

Upon completion of the installation of the drainage facility, the Inspecting Officer of the Township shall make an inspection of the installation to determine that the same has been completed in accordance with the specifications of the Township and shall make a report of his findings to the Supervisors.

§ 21-308. Maintaining and Keeping Open Such Drainage Facility. [Ord. 45, 8/19/1986, § 8]

It shall be the obligation of the person for whose benefit said roads, driveway or alley were constructed, or his successors and assigns, to maintain and keep open such drainage facility.

§ 21-309. Accepting Roads. [Ord. 45, 8/19/1986, § 9]

No road hereafter presented to the Supervisors for acceptance as part of the Township road system shall be accepted by the Supervisors unless each intersecting private or public road, driveway, or alley shall be equipped with drainage facilities meeting the specifications of the Supervisors as prescribed in this Part.

§ 21-310. Unlawful to Enlarge, Alter or Reconstruct. [Ord. 45, 8/19/1986, § 10]

It shall be unlawful for any person to enlarge, alter or reconstruct any existing private road, driveway, alley, or road intended for public use at its intersection with any Township road without first complying with the terms of this Part.

§ 21-311. Drainage Problems. [Ord. 45, 8/19/1986, § 11]

Whenever the Township Engineer certifies to the Supervisors of the Township that an existing drainage system or facility over or under any private road, driveway or alley creates a drainage problem with the adjoining Township road, the Supervisors shall notify the property owner of such condition, which condition shall be remedied by the property owner by the installation of proper drainage facilities within the terms of this Part within 60 days of receipt of such notice.

§ 21-312. Penalties. [Ord. 45, 8/19/1986, § 12; as amended by A.O.]

Any person who shall violate any terms of this Part or who shall fail to maintain or keep open such drainage facility or who shall stop, fill up, or injure any such drain or shall divert or change the course thereof, without the authority of the Supervisors, or permit the same to become a nuisance to the Township by flooding or blocking the adjoining Township road, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs, together with the cost of restoring such drainage facilities or correcting the defective drainage facility and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense. All fines and costs so recovered shall be paid to the Township Treasurer.

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Part 4
CURBS; INSTALLATION AND CONSTRUCTION

§ 21-401. Application. [Ord. 25, 5/12/1971, § 1]

1. It shall be the duty of every owner of lots or real estate, and they are hereby enjoined and required, previous to the construction or erection of any building setting or resetting of curbs, to make application to the Township Secretary to cause the line and grade for the setting of curbs to be fixed by the Township Engineer.

   A. Exemption from the requirements of all or any part of this Part may be granted by the Supervisors of the Township at a regular meeting of the Board, upon appeal, if in the opinion of the Supervisors, no purpose would be served by strict compliance with the provisions of this Part.

§ 21-402. Certificate. [Ord. 25, 5/12/1971, § 2]

1. The Township Engineer, upon receipt of the written order of the Township Secretary and upon ascertaining that the applicant's property stakes are in position, shall fix the line and grade for the setting or resetting of curbs and shall give to the owner of such property, or contractor, or mechanic, a certificate of such survey, line, and grade, which certificate shall be sufficient authority for such owner, contractor or mechanic, to commence and complete the work as may be described in the certificate and in accordance with the directions therein contained. The Township Engineer shall likewise enter the survey line or grade so given by him in a record book of survey kept by him for that purpose, which book shall remain in the office of the Township Secretary.

   A. This grade shall be given only once at Township expense. If for any reason the grade or the presence of the engineer is required thereafter, the property owner or applicant will be required to pay the engineers charges for same.

§ 21-403. Foundation. [Ord. 25, 5/12/1971, § 3]

1. The foundation for all concrete curbs shall be formed and thoroughly compacted to a firm even surface in both cut and fill areas prior to placing any and all forms. Foundation areas subject to compaction shall be areas within 24 inches of proposed face and back of curb measured at right angles from said curb. All unsuitable materials shall be removed and replaced with acceptable material.

2. In fill areas, the foundation shall be brought up to a grade of not less than 10 inches below and parallel with the finished surface of the proposed curbs. Fill materials shall be spread and compacted in even layers not more than four inches thick.

3. In excavated areas, where rock is encountered, rock shall be removed to a depth of two inches below bottom of proposed curb and crushed stone, gravel or other suitable material shall be placed to form a workable even base.

4. Prior to placing any concrete, all lines and grades on curb forms shall be checked and approved by the Township Engineer. Vertical and horizontal control points when established by persons other than the Township Engineer, including ties or references to proposed or existing rights-of-way, easements, and/or other pertinent data shall be supplied to the Township Engineer to expedite checking of aforesaid forms.

5. All materials, workmanship and/or tolerances where applicable shall conform to the specifications as

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described in PennDOT Form 408 unless otherwise expressly stated in this Part.

§ 21-404. Construction Materials. [Ord. 25, 5/12/1971, § 4]

1. All curbs placed on any public street in the Township, Northampton County, Pennsylvania, shall be subject to the approval of the Township Engineer, and constructed of the following materials, in conformity with a schematic diagram, prepared by the Township Engineer, and entitled "Township Standard Curb Detail," dated February 25, 1965, to Drawing # UN66-1 in the following manner:

   A. Cement. All cement used shall be American Portland Cement of a well known and tried brand, and of such quality as to fulfill the requirements of the standard tests of the American Society for Testing Materials.

   B. Sand. The sand used in concrete shall be clean, hard, and not too fine. It shall not contain more than 5% of loam, clay, dirt or other impurities; and shall consist of grains grades from coarse to fine, passing a 1/4-inch mesh screen.

   C. Stone. The stone used in concrete shall be crushed limestone, granite, trap or other suitable hard stone in graded sizes from 1/2 inch to 1 1/2 inches in the largest dimension. Approved crushed gravel not less than 60% of which shall have fractured edges may be substituted for stone. Care shall be taken that the stone or gravel as used is mixed as to size. All stone or gravel must be screened and shall be subject to the approval and acceptance of the Township Engineer.

   D. Concrete.

      (1) Concrete shall be composed of one part Portland cement, two parts sand and four parts crushed stone or gravel. These proportions shall be determined by volume measurement and all proportions of concrete shall be done by means of a carefully gauged wheelbarrow or other apparatus of capacity which shall be determined by the Township Engineer.

      (2) The mixing of concrete shall be done by an approved batch mixer or ready mix concrete can be used. The quantity of water used shall be sufficient to make the mass plastic, but not so wet as to cause the mortar to separate from the stone. Concrete shall be placed in position immediately after mixing and shall not be mixed in larger quantities than is required for immediate use. Concrete that has developed initial set shall not be retempered or used in any way.

   E. Concrete Curb.

      (1) The concrete curb shall be six inches in width at the top, eight inches in width at the base, and 24 inches in depth, on all streets. It shall be carefully built to lines and grades established and approved by the Township Engineer, in uniform lengths or blocks of not more than 10 feet. These blocks are to be separated during the construction by sheet metal templates 1/8 inch in thickness which are to be removed after the concrete has developed initial set. Care must be taken to insure having all templates set perpendicular between the length of blocks and to have all exposed faces smoothly finished, conforming to the lines and grades given. After the foundation is prepared, proper forms and templates for the curbing shall be securely set to the lines and grades indicated. The plank used for forms shall be dressed on the edges and on the side set next to the concrete, and so securely set, as to allow for the thorough spading and ramming of concrete without displacing the forms. The front face of the curb shall be battered and edged to a 3/4-inch radius and the rear rounded to a 1/4-inch radius. The concrete, conforming to the requirements as

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indicated in these specifications, shall be placed in the forms as herein described.

(2) The forms must be removed within 24 hours after the placing of concrete and the exposed surface rubbed down or floated to a smooth, even surface. If any holes or defects develop, they shall be filled with mortar composed of one part cement and two parts sand and then floated with a wooden float to a smooth, even surface.

(3) When curb is completed, no further work on the street shall be done until the curbing has been approved by the Township Engineer to insure compliance with the provisions hereof.

F. Placing Concrete. After the subgrade and foundation has been prepared, the concrete, conforming to these specifications, shall be laid or placed in the forms and thoroughly tamped and spaded, to insure the filling of all voids and to secure a concrete of maximum density with all corners, full and square. All concrete must be finished with a wooden float and true to the lines and grades given.

§ 21-405. Issuance of Building Permit. [Ord. 25, 5/12/1971, § 5]

No building permit shall be issued by the Township Secretary unless the property owner demonstrates an intention to carry out the provisions of this Part. Further, no "occupancy permit" shall be issued by the Zoning Administrator until the provisions of this Part have been complied with. However, said occupancy permit may be issued by the Zoning Administrator upon the property owner filing bond with the Township Secretary which bond will insure compliance with the provisions of this Part and shall be for an amount of 150% of the estimated cost of curb construction and shall specify that said curb shall be completed within six months of the issuance of the said occupancy permit.

§ 21-406. Penalties. [Ord. 25, 5/12/1971, § 6; as amended by A.O.]

Any person, firm or corporation who shall violate any provision of this Part, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

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UPPER NAZARETH CODE

Chapter 22A

SUBDIVISION AND LAND DEVELOPMENT

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Part 1
GENERAL PROVISIONS

§ 22A-101. Intent. [Ord. 174, 12/20/2017]

This is a chapter providing for the regulation and control of the subdivision of lots and the development of land; the approval of plans, plots or replots of land laid out in building lots; standards for the design of streets, lots, easements, blocks and other improvements; minimum improvements and construction standards on all streets and required dedications; the administration of this chapter and penalties for the violation of this chapter.

§ 22A-102. Title. [Ord. 174, 12/20/2017]

This chapter shall be known and may be cited as the "Upper Nazareth Township Subdivision and Land Development Ordinance of 2017" and may be referred to as "SALDO."

§ 22A-103. Application. [Ord. 174, 12/20/2017]

1. No subdivision or land development of any lot, tract or parcel of land shall be made, and no street, sanitary sewer, storm sewer, water main, gas, or electric transmission line, or other improvements in connection therewith shall be laid out, constructed, opened or dedicated for public use or travel or for the common use of occupants of buildings abutting thereon, except in accordance with this chapter.

2. No lot in a proposed subdivision or land development may be sold, and no final permit to erect any building upon land in a subdivision or land development may be issued unless and until a final plan has been approved and recorded, and either the Township has been assured by means of an improvements agreement acceptable to the Board of Supervisors that the improvements will subsequently be installed or the required improvements in connection therewith have been constructed.

3. This chapter shall apply to all subdivisions and land developments excepting subdivisions which have received preliminary plan approval from the Board of Supervisors between the effective date of this chapter and a date five years prior to the effective date of this chapter. Notwithstanding the provisions of Subsections 1 and 2, the excepted subdivisions shall comply with the requirements of the Subdivision and Land Development Ordinance in effect at the date of the preliminary plan approval for a five-year period commencing at the date of the preliminary plan approval. After the expiration of the five-year period, the provisions of this chapter shall be applicable to said subdivision or land development.

§ 22A-104. When Effective. [Ord. 174, 12/20/2017]

This chapter shall become effective five days after the date of its adoption.

§ 22A-105. Repealer. [Ord. 174, 12/20/2017]

The Upper Nazareth Township Subdivision and Land Development Ordinance No. 116, adopted November 2, 2005, and all amendments thereto, are hereby repealed. This chapter does not repeal provisions of other laws or ordinances except those specifically repealed by this chapter.

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Part 2
TERMINOLOGY

§ 22A-201. Word Usage. [Ord. 174, 12/20/2017]

1. Unless otherwise expressly stated, the following terms shall, for the purpose of these regulations, have the meanings indicated:

   A. Words in the singular include the plural and those in the plural include the singular.

   B. Words in the present tense include the future tense.

   C. The words "person," "developer," "subdivider," and "owner" include a corporation, unincorporated association, a partnership, or other legal entity, as well as an individual.

   D. The word "building" includes "structure" and shall be construed as if followed by the phrase "or part thereof."

   E. The words "should" and "may" are permissive; the words "shall" and "will" are mandatory and directive.

   F. The word "Township" means Upper Nazareth Township, Northampton County, Pennsylvania.

   G. The term "Board of Supervisors" means the Board of Supervisors of Upper Nazareth Township.

   H. The term "Planning Commission" means the Planning Commission of Upper Nazareth Township.

   I. The term "Board" means the Zoning Hearing Board of Upper Nazareth Township.

   J. If a word is not defined in this chapter, but is defined in Chapter 27, Zoning, as amended, the definition in that chapter shall apply. If a word is defined in both this chapter and another Township ordinance, each definition shall apply to the provisions of each applicable ordinance.

   K. Any word or term not defined in this chapter or in Chapter 27, Zoning, as amended, shall have its plain and ordinary meaning within the context of the section. A standard reference dictionary should be consulted.

   L. The words "such as," "includes," "including" and "specifically" shall provide examples. These examples shall not, by themselves, limit a provision to the examples specifically mentioned if other examples would otherwise comply with the provision.

   M. All undefined terms used in this chapter which are defined in the Pennsylvania Storm Water Management Act of 1978,[16] or the Stormwater Management Ordinance of Upper Nazareth Township adopted in 2005, or as amended,[17] shall have the meaning defined in said act or plan. In the event that terms are defined both in this chapter, and in the act or Stormwater Ordinance, the definitions contained in this chapter shall prevail over the definitions contained in the act and the Stormwater Ordinance. Other terms or words used herein shall be interpreted or defined as follows in § 22A-202.

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16. Editor's Note: See 32 P.S. § 680.1 et seq.

17. Editor's Note: See Chapter 23A, Bushkill Creek Watershed Act 167 Stormwater Management, and Chapter 23B, Monocacy Creek Watershed Act 167 Stormwater Management.

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§ 22A-202. Definitions. [Ord. 174, 12/20/2017]

As used in this chapter, the following terms shall have the meanings indicated:

ACCESSORY BUILDING — A building which is subordinate and accessory to a principal building on the same lot and which is used for purposes that are clearly customarily incidental to the uses of the principal building. Any portion of a principal building used for an accessory use shall not be considered to be an accessory building.

ACCESSORY STRUCTURE — A structure, such as a private garage or private swimming pool, serving a purpose customarily incidental to the use of the principal building and located on the same lot as the principal building.

ACCESSORY USE — A use separated from, subordinate to and customarily incidental to the use of the principal building and situate on the same lot.

ALLEY — A public or private thoroughfare which affords only a secondary means of access to abutting property and not intended for general traffic circulation.

APPLICANT — A landowner or developer, as hereinafter defined, who has filed an application for development including his heirs, successors and assigns.

BLOCK — Property bounded on one side by a street, and other three sides by a street, railroad right-of-way, waterway, unsubdivided area, or other definite barrier.

BUILDING — Any structure having a permanent roof and intended for the shelter, work area, housing or enclosure of persons, animals, equipment or materials and that a total area under roof of greater than 16 square feet. "Building" is interpreted as including "or part thereof." See the separate definition of "structure." Any structure involving a permanent roof (such as a covered porch or a carport) that is attached to a principal building shall be considered to be part of that principal building.

BUILDING SETBACK LINE — A line, which designates the minimum distance between any building and the adjacent street right-of-way or property line, whichever is closer. This line shall be measured from a point or points formed by the intersection of a vertical building wall with the ground (or in the case of a cantilevered building, at the vertical plane which coincides with the most projected surface), to the street right-of-way or property line, whichever is closer.

1. FRONT YARD BUILDING SETBACK LINE — The line parallel to the public or private street right-of-way line at a distance equal to the minimum depth of the front yard designated for each district in Chapter 27, Zoning. All yards adjacent to a public or private street right-of-way shall be considered front yards, except in double-frontage lots.

2. SIDE YARD BUILDING SETBACK LINE — The line parallel to the side lot line and equal to the minimum depth of the side yard designated for each district in Chapter 27, Zoning.

3. REAR YARD BUILDING SETBACK LINE — The line parallel to the rear lot line and equal to the minimum depth of the rear yard designated for each district in Chapter 27, Zoning.

CARTWAY — The paved portion of a street designed for vehicular traffic and on-street parking, but not including the shoulder of the street.

CLEAR SIGHT TRIANGLE — An area of unobstructed vision at street intersections defined by the center lines of the streets and by a line of sight between points on their center lines at a predetermined distance from the intersection of the center lines, measured at two feet in height.

CLOSED DEPRESSION — A part of the land surface of a lot, parcel or tract which drains internally, and which generally has sunk to a variable depth and is generally characterized by a downward movement of

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soil into bedrock voids without breaking the ground surface.

COMPREHENSIVE PLAN — The document entitled the "Nazareth Area Multi-Municipal Comprehensive Plan," or any part thereof, adopted by the Board of Supervisors, as amended.

CUT — An excavation. The difference between a point on the original ground a designated point of lower elevation on the final grade. Also, the material removed in excavation.

DESIGN STORM — The magnitude of precipitation from a storm event measured in probability of occurrence (e.g., fifty-year storm) and duration (e.g., 24-hour), and used in computing stormwater management control systems.

DETENTION BASIN — A basin designed, intended or used to retard stormwater runoff by temporarily storing the runoff and releasing it at a predetermined rate.

DEVELOPER — Any landowner, agent of such landowner, or tenant with the permission of such landowner, who makes or causes to be made a subdivision of land or a land development.

DWELLING UNIT — A room or group of rooms located within a residential building and forming a single habitable unit with facilities, which are used or intended to be used for living, sleeping, cooking and eating by one family.

EASEMENTS — A liberty, privilege or advantage which one has in the lands of another for a precise and definite purpose, subordinate to, but not inconsistent with, the owner's general property rights.

ENGINEER — A professional engineer licensed by the Commonwealth of Pennsylvania.

EROSION — The removal of surface materials by the action of natural elements.

FILL — Any act by which earth, sand, gravel, rock or any other material is placed, pushed, dumped, pulled, transported or moved to a new location above the natural surface of the ground or on top of the stripped surface and shall include the conditions resulting therefrom. The difference in elevation between a point on the original ground and a designated point of higher elevation on the final grade. The material used to make a fill.

FLAG LOT — An irregularly shaped lot characterized by an elongated extension from a street to the principal part of the lot. The flag shape of the lot is normally intended to provide for access to an otherwise landlocked interior parcel.

FLOODPLAIN — A relatively flat or low-lying area adjoining a river, stream or watercourse which is subject to partial or complete inundation during a one-hundred-year design frequency storm or an area subject to the accumulation or runoff of surface waters from any source, as more fully defined by the current edition of the Upper Nazareth Township Flood Insurance Rate Map and associated floodplain study.

GRADING — Changing existing topography through cutting or filling by one foot or more in elevation over an area exceeding 1,000 square feet or any land disturbance of 4,000 square feet or greater.

HYDRIC SOILS — Poorly drained soils that can support hydrophytic plants, but may not necessarily do so.

IMPROVEMENTS — Those physical additions and changes to the land that may be necessary to produce usable and desirable lots.

IMPROVEMENTS GUARANTEE — See "performance guarantee."

KARST — A type of topography that is formed over limestone, dolomite, or gypsum by bedrock solution, and that is characterized by closed depressions or sinkholes, caves and underground drainage.

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LAND DEVELOPMENT — Any of the following activities:

1. The improvement of one lot or two or more contiguous lots, tracts or parcels of land for any purpose involving:

   A. A group of two or more residential or nonresidential buildings, whether proposed initially or cumulatively, or a single nonresidential building on a lot or lots, regardless of the number of occupants or tenure; or

   B. The division or allocation of land or space, whether initially or cumulatively, between or among two or more existing or prospective occupants by means of, or for the purpose of streets, common areas, leaseholds, condominiums, building groups or other features.

2. A subdivision of land.

3. Development in accordance with Section 503.1.1 of the Municipalities Planning Code, as amended.[18]

LANDOWNER — The owner of a legal or equitable interest in land, including the holder of a written, signed and active option or contract to purchase or a lessee (if authorized under the lease to exercise the right of the landowner), or authorized officers of a partnership or corporation that is a landowner or other person having a proprietary interest in land. A person who has clearly received formal notarized powers of attorney relating to a landowner may act in the capacity of the landowner, if legally authorized.

LEHIGH VALLEY PLANNING COMMISSION — The Planning Commission of Lehigh and Northampton Counties.

LOT — A separate parcel of land that is recorded or that will be recorded after Township approval in the office of the County Recorder of Deeds. A parcel under common ownership that is completely separated into two parts by a public street shall be considered to be one tract but two lots.

LOT AREA — The horizontal land area contained within the lot lines of a lot (measured in acres or square feet). Lot area shall not include the following:

1. Areas within future or existing street rights-of-way;

2. Areas that are currently or will be dedicated as common open space; or

3. For residential lots only, areas within rights-of-way intended for overhead electrical lines of 35 kilovolts or higher capacity.

MAINTENANCE GUARANTEE — Any security which may be accepted by the Board of Supervisors to insure the structural integrity of accepted improvements as well as the functioning of said improvements in accordance with the design and specifications as depicted on the final plan, for a period of 18 months.

MARKER — A metal pipe or pin of at least 3/4 inch outside diameter and at least 30 inches in length.

MOBILE/MANUFACTURED HOME PARK — A parcel of land under single ownership which has been planned and improved for the placement of two or more mobile/manufactured homes for nontransient residential use. The individual manufactured homes may be individually owned. A development of mobile/manufactured homes that is subdivided into individual lots shall be regulated in the same manner as a subdivision of site-built homes and shall not be considered to be a "mobile home park."

MONUMENT — A stone or concrete monument with a flat top at least four inches in diameter or square. The bottom sides or radius shall be at least two inches greater than the top to minimize movements caused

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18. Editor's Note: See 53 P.S. § 10503.1.1.

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by frost. The monument shall contain a steel dowel and be at least 30 inches in length.

OPEN SPACE — That part of a lot, parcel or tract which is unoccupied and unobstructed by any structure or impervious cover, except recreational and utility structures, which are permitted. The term "open space" shall not include any area designed, maintained or used for streets, roads, highways, driveways or parking areas.

OPEN SPACE, COMMON — A parcel or parcels of land within a tract which meets all of the following standards:

1. Is designed, intended and suitable for active or passive recreation by residents of a development or the general public;
2. Is covered by a system that ensures perpetual maintenance, if not intended to be publicly owned;
3. Will be deeded to the Township and/or deed restricted to permanently prevent uses of land other than "common open space" and noncommercial recreation; and
4. Does not use any of the following areas to meet minimum open space requirements:
   A. Existing or established future street rights-of-way;
   B. Vehicle streets or driveways providing access to other lots;
   C. Land beneath building(s) or land within 20 feet of a building (other than accessory buildings and pools clearly intended for noncommercial recreation and other than agricultural buildings and a farmstead which are permitted within land approved by the Township for agricultural preservation);
   D. Off-street parking (other than that clearly intended for noncommercial recreation);
   E. Area(s) needed to meet a requirement for an individual lot;
   F. Area(s) deeded over to an individual property owner for his/her own exclusive use, except for land approved by the Township for agricultural preservation;
   G. Land beneath or within 50 feet of each side of each of the following:
      (1) Overhead electrical transmission lines of 35 kilovolts or greater capacity;
      (2) The towers/poles supporting such lines.
   H. For land intended to be open to the public that does not have provisions for entry with a twenty-foot minimum width by pedestrians from a street open to the public or from an adjacent common open space area that has access to such a street;
   I. Land that includes a stormwater detention basin, except for a basin or portions of a basin that the applicant proves to the satisfaction of the Board of Supervisors would be reasonably safe and useful for active or passive recreation during the vast majority of weather conditions;
   J. Portions of land that have a width of less than 20 feet;
   K. Land that includes commercial recreation uses, except as may specifically be permitted to be counted towards a common open space requirement by a specific provision of this chapter; and
   L. Land that includes a central sewage treatment plant or a stormwater facility, except as provided

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for above.

PA DEP — The Pennsylvania Department of Environmental Protection, or its successors, and its subparts.

PENNDOT — The Pennsylvania Department of Transportation, or its successor, and its subparts.

PERFORMANCE GUARANTEE — Any security which may be accepted by the Board of Supervisors to guarantee that the proper construction of improvements be made by the developer as a condition for the approval of the plan.

PHASED DEVELOPMENT — Development, usually for large-scale projects, where construction of public and/or private improvements proceeds by section(s) subsequent to approval of a master plan for the entire site.

PLAN, FINAL — A complete and exact plan, with professional engineer's seal and/or professional land surveyor's seal affixed, and prepared for official recording as required by this chapter to define property rights, streets and other proposed improvements.

PLAN, PRELIMINARY — A tentative plan, in lesser detail than a final plan, showing proposed streets and lot layout and such other information as required by this chapter.

PLAN, RECORD — The copy of the final plan which contains the original endorsements of the Lehigh Valley Planning Commission and the Township Planning Commission and which is intended to be recorded with the County Recorder of Deeds.

PLAN, SKETCH — An informal plan, indicating salient existing features of a tract and its surroundings and the general layout of the proposed subdivision. A sketch plan is not mandatory and is not a preliminary plan.

PUBLIC NOTICE — Notice as required by the Municipalities Planning Code.[19]

RECREATION LAND — Land dedicated to the Township or other entity approved by the Township for the use of the Township's residents, which is suitable for active uses such as playing fields. Recreation lands shall not include areas within the one-hundred-year floodplain, power line or pipeline rights-of-way, quarries, road rights-of-way, buffer zones, or stormwater management facilities. Recreation lands shall not include areas characterized by wetlands, hydric soils, slopes in excess of 5%, or woodlands.

REVERSE FRONTAGE LOT — A parcel designed such that individual residential uses abut a street on both the front and the rear, with vehicular access from only one street. A lot will only be deemed a reverse frontage lot if access is from a local street.

RIGHT-OF-WAY — Land reserved for the public or others for use as a street or other purpose. Unless otherwise stated, "right-of-way" shall mean the future street right-of-way line.

RUNOFF — That part of precipitation which flows over the land.

SALDO — The Upper Nazareth Township Subdivision and Land Development Ordinance of 2017.

SANITARY SEWAGE DISPOSAL SYSTEM, PUBLIC — A public or private utility system designed to collect, centrally treat and dispose of sewage from more than one customer, in compliance with Pennsylvania Department of Environmental Protection's regulations or regulations of the Township, whichever may be more stringent.

SANITARY SEWAGE DISPOSAL, ON-LOT — An "on-lot" septic tank disposal system generally providing for disposal of effluent for only one building or a group of buildings on a single lot, and provided in compliance with Pennsylvania Department of Environmental Protection's regulations or regulations of

19. Editor's Note: See 53 P.S. § 10101 et seq.

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the Township, whichever may be more stringent.

SEDIMENTATION — The process by which mineral or organic matter is accumulated or deposited by moving wind, water or gravity. Once this matter is deposited (or remains suspended in water), it is usually referred to as "sediment."

SIGHT DISTANCE — The required length of roadway visible to the driver of a motor vehicle at any given point on the roadway when the view is unobstructed by traffic. Sight distance measurements shall be made between a point 3.5 feet above the center line of the road surface and a point 3.5 feet above the center line of the road surface.

SINKHOLE — A localized sinking of land surface to a variable depth generally characterized by a roughly circular outline and a downward movement of soil into bedrock voids.

SLOPE — The vertical change of an area of land divided by the horizontal change, measured in percent.

SOIL STABILIZATION — Chemical or structural treatment of a mass of soil to increase or maintain its stability or otherwise improve its engineering properties.

STORM SEWER — A system of pipes or other conduits which carries intercepted surface runoff, street water and other wash waters, or drainage, but excludes domestic sewage and industrial wastes.

STORMWATER MANAGEMENT PLAN — The plan for managing stormwater runoff adopted by Northampton County for the Monocacy Creek Watershed and the Bushkill Creek Watershed as required by the Act of October 4, 1978, P.L. 864, (Act 167), and known as the "Storm Water Management Act."[20]

STREET — A strip of land intended for use as a means of vehicular or pedestrian traffic, whether public or private.

1. ARTERIAL STREET — A major regional highway designed to carry heavy vehicular traffic onto, out of, or through the regional area; subject to necessary control of entrances, exits and curb use.

2. COLLECTOR STREET — A street designed to carry a moderate volume of traffic to intercept local streets, to provide routes to arterial roads and to community facilities and to provide a limited amount of access to the abutting properties.

3. CUL-DE-SAC — A local street intersecting another street at one end, and terminating in a vehicular turnaround at the other.

4. DEAD-END STREET — A street with a single connection with the surrounding road network, which fails to meet the definition of "stub street."

5. EXPRESSWAY — A major highway designed for large volumes and high-speed traffic with access limited to grade separated intersections.

6. LOCAL STREET — A street whose function is to provide for local traffic movement with relatively low volumes and direct access to abutting properties.

7. LOOP STREET — A street which intersects only with itself, except for a single connection with the surrounding road network.

8. MARGINAL ACCESS STREET — A local street which is parallel to and adjacent to an expressway, or an arterial road, and which provides access to abutting properties and protection from through traffic.

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20. Editor's Note: See 32 P.S. § 680.1 et seq.

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9. PUBLIC STREET — A street which has been accepted for dedication by Upper Nazareth Township for public use.

10. STUB STREET — A street or road within a subdivision terminating at the subdivision boundary with no permanent vehicular turnaround. Stub streets are provided to permit adjacent undeveloped parcels of land to be developed later with an adequate connecting street system.

STREET RIGHT-OF-WAY LINE — The dividing line between the street and the lot. The street line shall be the same as the legal right-of-way line, provided that:

1. The street right-of-way line shall be not less than 16 1/2 feet from the center line of any existing road or street; and

2. Where a future right-of-way width for a road or street has been officially established, then the street right-of-way shall be the side line of the future right-of-way so established.

STRUCTURE — Any man-made object having an ascertainable stationary location on, below or in land or water, whether or not affixed to the land, subject to the following specific standards:

1. The following specifically shall be considered to be structures: buildings; signs; stadiums; platforms; communications towers; walkways, porches or decks that are structurally raised above the underlying ground level or that are covered by a permanent structure; swimming pools (whether above or below ground); storage sheds; carports; and garages; post- or pier-mounted lights; brick or masonry piers; walls; nonportable basketball backboards; fences and gates.

2. Any structure shall be subject to the principal or accessory setbacks of the Upper Nazareth Chapter 27, Zoning, as applicable, unless specifically exempted or unless a specific setback is established for that particular type of structure by Chapter 27, Zoning.

SUBDIVISION — The division or redivision of a lot, tract, or parcel of land by any means into two or more lots, tracts, parcels, or other divisions of land including changes in existing lot lines for the purpose, whether immediate or future, of lease, partition by the court for distribution to heirs or devisees, transfer of ownership or building, or lot development; provided that the division of land for agricultural purposes into parcels of more than 10 acres, not involving any new street or easement of access, shall be exempted.

SUBDIVISION, MINOR — A subdivision which does not by itself or in combination with previous subdivision plans, involve more than a total of three lots, and does not involve the provision of any new street or easement for access (i.e., one in which all proposed lots will have frontage on an existing public street), or a boundary line adjustment between property owners where no new lots are created.

SURVEYOR — A licensed surveyor registered by the Commonwealth of Pennsylvania.

SWALE — A low-lying stretch of land which gathers or carries surface water runoff.

TOPSOIL — Surface soils and subsurface soils which presumably are fertile soils and soil material, ordinarily rich in organic matter or humus debris. Topsoil is usually found in the uppermost soil layer, called the "A horizon."

TOWNSHIP ENGINEER — A professional engineer licensed as such in the Commonwealth of Pennsylvania, duly appointed as the Township Engineer.

WATER SUPPLY AND DISTRIBUTION SYSTEM, ON-LOT — An "on-lot" water supply system generally providing for an adequate supply of water for one building or a group of buildings on a single lot, and in compliance with the Pennsylvania Department of Environmental Protection, regulations or Township regulations, whichever may be more stringent.

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WATER SUPPLY AND DISTRIBUTION SYSTEM, PUBLIC — A public or private utility system designed to transmit water from a common source to customers in compliance with the Pennsylvania Department of Environmental Protection's regulations or the Township regulations, whichever may be more stringent.

WATERCOURSE — Any channel of conveyance of surface water having defined bed and banks, whether natural or artificial, with perennial or intermittent flow.

WETLANDS — Areas that are inundated or saturated by surface or groundwater at a frequency and duration sufficient to support, and that under normal circumstances do support, a prevalence of vegetation typically adapted for life in saturated soil conditions, or as specifically described under the official federal definition of wetland.

WOODLAND — Areas composed of a grove of trees forming one canopy where 10 or more trees measure at least six inches in diameter, measured at 4 1/2 feet from the ground.

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Part 3
SKETCH PLAN SUBMISSION PROCEDURES AND REQUIREMENTS

§ 22A-301. Sketch Plan Submissions. [Ord. 174, 12/20/2017]

1. Applicants may submit a sketch plan for the review of the Township Planning Commission. The sketch plan may be used to familiarize the Township Planning Commission with the concept of the development. The Township Planning Commission may make informal recommendations with regard to the plans. These recommendations shall not be considered to be binding upon the Township. While a sketch plan is not required, it is strongly recommended as an initial submission for all subdivisions and land developments. It allows the applicant to consult early and informally with the Planning Commission and Supervisors before preparing a preliminary plan and formal application for approval. The sketch plan can also be used to classify the submission as a minor or major subdivision, lot line adjustment or land development.

2. Applicants submitting sketch plans shall provide 14 copies of all maps and other material, plus the appropriate application fees as established by the Township, to the Township.

3. The Township shall provide five sets of plans and material to the Township Planning Commission, one set of plans and material to the Township Engineer, one set of plans and material to Manager, and five sets of plans and material to the Township Supervisors. The Township shall retain one set of the plans and one set of the supplemental material. The Township will determine if additional sets are required for the following: one set of plans and material to the Township Park and Recreation Commission.

4. The applicant shall also submit two reduced copies (8 1/2 inches by 14 inches size) of the sketch plan to the Township. The Township shall provide one copy of the reduced plan to the Township Solicitor and retain one copy for the Township records.

5. Applicants submitting sketch plan shall submit one set of plans, material and fees to the following agencies:

   A. The Lehigh Valley Planning Commission.

   B. PennDOT (where applicable).

   C. The governing water authority (where applicable).

   D. The governing sewer authority (where applicable).

§ 22A-302. Sketch Plan Review. [Ord. 174, 12/20/2017]

1. The Township Planning Commission will consider a sketch plan submission at its next regular meeting, or at another meeting held within 60 days of the next scheduled meeting, provided that the submission is received by the Planning Commission at least 21 days prior to said meeting.

2. The Township Planning Commission shall review the sketch plan data to determine the development potential of the site, as indicated by the natural features analyses presented. The general development concepts of the sketch plan will be reviewed to determine their compatibility with the development potential of the site and the Upper Nazareth Township Comprehensive Plan. Also, the sketch plan stage is designed to offer the developer an opportunity to informally discuss his plans for the proposed subdivision or land development with the Township Planning Commission.

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3. In its review of the sketch plan, the Township Planning Commission shall consider the reports of the Lehigh Valley Planning Commission, Township Engineer and Township Solicitor, where required.

4. The review comments shall be presented at the meeting to the applicant and/or his representatives. In the event that an applicant and/or his representatives are not in attendance at the meeting, the sketch plan review shall be conducted at the next scheduled Township Planning Commission meeting, where the applicant or his representative are in attendance.

5. Upon review by the Planning Commission, the sketch plan may be presented to the Township Board of Supervisors, if requested by the applicant or recommended by the Planning Commission.

6. No official action shall be taken on a sketch plan. Neither the Township nor the applicant shall be bound by comments made or not made as part of a sketch plan review.

§ 22A-303. Sketch Plan Requirements. [Ord. 174, 12/20/2017]

The sketch plan submission should include the following data and be drawn to the following standards:

1. Application review fee of a sketch plan submission.

2. Property boundaries (may be obtained from County Tax Map or similar sources).

3. General topographic contours from available data (may be obtained from United States Geological Surveys).

4. A letter of intent and a deed plot of the proposed subdivision or land development tract, including proposed recreation areas, proposed open space areas, and proposed detention basin sites, explaining and illustrating the developer's general development concepts for the tract. Sketch plans shall be at a minimum scale of one inch equals 100 feet.

5. Site data including:

   A. Acres of entire tract.

   B. Number of lots.

   C. Zoning district of area.

   D. Name of subdivision (name can be the same as the recorded owner).

   E. Approximate acreage of proposed recreation areas and open space areas.

   F. Proposed water source and method of sanitary sewer disposal.

6. Magnetic North point.

7. Appropriate scale.

8. A location map, with a minimum scale of one inch equals 1,000 feet, showing the general location of the subdivision in relation to adjacent properties, roads and streams.

9. A map illustrating an analysis of natural drainage patterns and water resources within the proposed subdivision tract, including delineation of all streams, natural drainage swales, ponds and lakes, wetlands, floodplains subject to a one-hundred-year flood frequency, and permanent and seasonal high water table areas. The map may use USGS quad sheets, County Soil Survey Maps, Wetland

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Inventory Maps, the flood boundary and floodway map from the municipal Flood Insurance Study, the Township Comprehensive Plan, other sources known to the applicant, as well as field inspection as the basis of the information.

10. A map illustrating an analysis of types of soils present within the proposed subdivision tract. The map should include delineation of prime agricultural soil areas, soils with shallow depth to bedrock, soils most susceptible to erosion, hydric soils, soils most suitable for urban development, and soils generally suitable for on-lot sewage disposal. The map may be based on the County Soil Survey among other sources. Sinkholes and closed depressions should be identified on the map.

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Part 4
PRELIMINARY PLAN SUBMISSION PROCEDURES AND REQUIREMENTS

§ 22A-401. Preliminary Plan Submission. [Ord. 174, 12/20/2017]

1. Preliminary plans, and all required supplementary data, for all proposed subdivisions and land developments shall be submitted to the Township.

2. Official submission of a preliminary plan to the Township shall comprise the following:

   A. Submission of one copy of a completed preliminary subdivision or land development application.

   B. Submission of 12 sets of paper prints of the preliminary plan, which shall fully comply with provisions of this chapter as set forth in § 22A-403.

   C. Submission of five copies of all required supplemental information as set forth in § 22A-403, Subsection 5.

   D. The applicant shall also submit two reduced copies (8 1/2 inches by 14 inches size) of the preliminary layout plan to the Township. The Township shall provide one copy of the reduced plan to the Township Solicitor and retain one copy for the Township records.

   E. Notifications.

      (1) The applicant, upon filing his plan shall prepare a list of all property owners located within 200 feet of the subdivision/land development. Applicant shall mail the notification contained in Appendix E of this SALDO[21] to all property owners within 200 feet of any new lots created by the subdivision or within 200 feet of any improvements proposed on the land development plan.

      (2) Notifications to such property owners must be mailed by certified mail, return receipt no later than 21 days before the date of the Planning Commission meeting at which the subdivision/land development is to be considered for the first time.

      (3) Applicant must furnish the Township with a copy of the list of all property owners to whom notifications should be mailed prior or simultaneously with submission. Proof of mailing should be provided by supplying copies of the postmarked certified mail receipts.

      (4) The applicant shall provide the Township with the proofs of notification a minimum of three days prior to the Planning Commission meeting at which the subdivision/land development is to be considered.

   F. All plans submitted to the Township must be folded, where possible, unless the plan is of such size that makes folding impractical, i.e., extra-large sheets or sets over 10 pages.

   G. Two compact discs containing the copies of the preliminary subdivision and land development drawings, in a format suitable to Upper Nazareth Township.

3. The Township shall distribute the plans and other material as follows:

   A. Five sets of the plans and one set of supplemental information to the Township Planning

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21. Editor's Note: Appendix E is included as an attachment to this chapter.

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Commission, one set of plans and one set of supplemental information to the Township Manager, two sets of the plans and two sets of supplemental information to the Township Engineer, one set of plans to the Township Parks and Recreation Commission, one set of plans to the Police Department, and one set of plans to the Volunteer Fire Department.

B. The Township shall retain one set of the plans and one set of the supplemental material.

C. Whenever a proposed subdivision or land development is located adjacent to another municipality, one print of the preliminary plan shall be submitted for each additional or adjacent municipality to the respective municipalities by the applicant, with a copy of the transmitted letter provided to Upper Nazareth Township.

4. The applicant shall submit one set of plans, all supplemental material relevant to said agency, and required fees to the following agencies:

A. Lehigh Valley Planning Commission. If a review of conformity to an Act 167 stormwater management plan is required, the number of plans and calculations should be increased to two.

B. The governing water authority (where applicable)

C. The governing sanitary sewer authority (where public sanitary sewer service is proposed).

D. Northampton County Soil Conservation District.

E. PennDOT (whenever the property being subdivided abuts a state road).

F. United States Army Corps of Engineers (whenever the site analysis maps required by § 22A-403, Subsection 5A, indicate the presence of hydric soils or wetlands on the property).

G. Pennsylvania Department of Environmental Protection (whenever the site analysis maps required by § 22A-403, Subsection 5A, indicate the presence of hydric soils or wetlands on the property).

§ 22A-402. Review of Preliminary Plan. [Ord. 174, 12/20/2017]

1. By the Township Planning Commission.

A. When a preliminary plan has been submitted to the Township, such plan shall be placed on the agenda of the Planning Commission for review at a meeting to be held within 60 days of the submission, provided that such submission has occurred no less than 21 days prior to such meeting (if the 21st day falls on a holiday, it would be the next business day). The Planning Commission may hold a public hearing on the preliminary plan at this time. All submissions must be made by 3:00 p.m. of the cutoff date complete with all supplemental information and required fees. Submissions without the required information will be considered incomplete and not eligible for placement on the agenda until the information is submitted. Submission does not guarantee a spot on the agenda.

B. The Planning Commission shall review the preliminary plan to determine its conformance with the standards contained in this chapter and other applicable municipal ordinances, and shall recommend such changes and modifications as it deems necessary.

C. No action shall be taken by the Township Planning Commission with respect to a preliminary plan until it has received and considered the written report of the Lehigh Valley Planning Commission; provided, however, that if the Lehigh Valley Planning Commission shall fail to

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report thereon within 30 days after receipt of a preliminary plan, then the Township Planning Commission may officially act without having received and considered such report.

D. Within 60 days after the first meeting following the submission of the preliminary plan, providing that such submission has occurred no less than 21 days prior to such meeting, the Planning Commission shall recommend to the Board of Supervisors, in writing, that the preliminary plan be approved or disapproved together with the documented findings upon which the recommendations are based.

2. By the Board of Supervisors. Within 90 days following the date of the regular meeting of the Planning Commission following the date of the application (unless the next meeting does not fall in a thirty-day period following the date of the application, in which case the ninety-day period commences on the 30th day following the date of the application), the Board of Supervisors shall, in accordance with the provisions of relevant ordinances and considering the recommendations of the Planning Commission, take action by approving or disapproving the preliminary plan. This time period may be extended by action of the Board of Supervisors or the Planning Commission upon the receipt of a written request for an extension of time from the applicant. The Board of Supervisors shall document the findings upon which that action is based, and communicate them to the applicant within 15 days from the date that the decision has been made. This communication shall occur within the period provided for a decision in the first sentence of this section. The decision and findings shall be communicated to:

A. The applicant;

B. The Township Planning Commission;

C. The Township Solicitor;

D. The Township Engineer;

E. The Township Manager.

§ 22A-403. Preliminary Plan Requirements. [Ord. 174, 12/20/2017]

1. The preliminary plan of a proposed subdivision shall be clearly and legibly drawn to a minimum scale of one inch equals 50 feet.

2. The original drawing and all submitted prints shall be made on sheets having one of the following sets of dimensions:

A. Twenty-four inches by 36 inches;

B. Thirty inches by 42 inches;

C. Plans containing multiple sheets shall utilize a consistent sheet size.

3. If the subdivision layout requires more than one sheet or if the subdivision involves more than one section or phase, a title sheet shall be provided. The title sheet shall include the road and lot layout plan at a minimum scale of one inch equals 200 feet. The plan shall illustrate the boundaries of the areas covered on the different sheets, sections and phases. If the subdivision is for a section or phase of a subdivision, the relevant section or phase shall be differentiated in pattern from the remaining sections. The plan shall also indicate roads within 200 feet of the site and shall include an index of the plans.

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4. The preliminary plan shall illustrate the following data:

A. Name and mailing address of record owner; name and mailing address of developer, if different from owner; names of all adjoining subdivisions, if any, and the names of owners of all adjacent unplatted land, with the deed book reference, Tax Map, block and lot numbers, where recorded.

B. Name of the proposed subdivision; name of the municipality or municipalities within which subdivision is proposed; total tract boundaries of the property being subdivided, showing bearings and distances, a statement of total acreage of the property, and certified by a registered professional land surveyor.

C. Name, address, license number, and seal of registered engineer or land surveyor responsible for the subdivision plan; magnetic North point, graphic scale, and date including the month, day and year that the original drawing was completed, and the month, day and year that the original drawing was revised, for each revision.

D. A key map, for the purpose of locating the property being subdivided, drawn at a scale not smaller than one inch equals 1,000 feet and showing the relation of the property, differentiated by tone or pattern, to adjoining property and to all streets, streams, municipal boundaries, and recorded subdivision plans existing within 2,000 feet of any part of the property.

E. Tax Map, block, and lot numbers within the proposed subdivision tract; all existing streets, including streets of record (recorded, but not constructed), on or adjoining the tract, including names, right-of-way widths, cartway (pavement) widths, and approximate grades.

F. All existing buildings or other structures within the proposed subdivision tract; all existing streets, and streets proposed in the Comprehensive Plan, including streets of record (recorded, but not constructed), on or adjoining the tract, including names; existing and future right-of-way widths, cartway (pavement) widths, and approximate grades.

G. All existing sewer lines, water lines, fire hydrants, utility transmission lines, storm sewer structures, including materials, sizes and inverts, stormwater facilities, on-lot septic systems, wells, bridges, railroads, sidewalks, or other man-made features within the proposed subdivision tract and within 200 feet of the boundaries of the proposed subdivision tract; location, width, and purpose of existing easements and utility rights-of-way within 200 feet of the proposed subdivision tract.

H. Contour lines at vertical intervals of not more than two feet. Location and elevation of the data to which contour elevations refer shall be the closest United States Coast and Geodetic Survey established benchmark, where available; spot elevations for all low and high points, plus elevation for all closed contour lines.

I. The full plan of proposed development, including the following:

(1) Location and width of all streets and rights-of way, with a statement of any conditions governing their use; suggested street names and utility easement locations; all applicable design criteria under Part 7.

(2) Front, side, and rear building setback lines for each lot, including distances measured from lot lines and ultimate right-of-way lines, as applicable.

(3) Lot lines, with computed dimensions and lot sizes (in both acres and square feet).

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(4) A statement of the intended use of all nonresidential lots and parcels.

(5) Zoning district(s) in which the subject property is located, lot numbers and a statement of the total number of lots, parcels, dwelling units and density.

(6) Water, sanitary sewer and storm sewer plan and profile drawings (and other drainage facilities) with the size and material of each indicated and any proposed connections with existing facilities.

(7) Parks, playgrounds and other areas dedicated or reserved for public or common use, with any conditions governing such use and any proposed improvements.

(8) Signed certificate of ownership or equitable ownership, plus a copy of the current deed of record for the property being subdivided or developed.

(9) Copies of the proposed deed restrictions, protective and restrictive covenants, referenced to the preliminary plan map.

(10) Reference to any previously recorded plans involving the subject property, including any applicable covenants or easements.

J. The plan shall include a zoning district data table containing the following information:

(1) Zoning district(s) in which the subject property or properties are located.

(2) Required and proposed minimum lot areas (minimum lot area excludes lands within Township and/or state rights-of-way, whether offered for dedication or not).

(3) Required and proposed minimum lot widths (measured at the required minimum front yard building setback).

(4) Required and proposed building setbacks.

(5) Maximum allowable and proposed building and impervious coverage ratios (coverage calculations exclude lands to be dedicated for public use).

(6) Maximum allowable and proposed building heights (in feet and stories).

5. The preliminary plan shall be accompanied by the following supplementary data:

A. Site analysis maps. [Where feasible and legible, the analysis involved in Subsection 5A(1) through (4)may be illustrated on one or a combination of composite maps. The combined impact of the natural characteristics of the tract upon the development potential of the tract shall be clearly illustrated on the map or maps.]

(1) A map illustrating an analysis of natural drainage patterns and water resources within the proposed subdivision tract, including delineation of streams, natural drainage swales, ponds and lakes, floodplains, permanent and seasonal high water table areas, and closed depressions, plus a metes-and-bounds delineation of any on-site wetlands.

(2) A map illustrating an analysis of types of soils present within the proposed subdivision tract, based on the Northampton County Soil Survey, the Nazareth Area Multi-Municipal Comprehensive Plan and other sources. The map should include delineation of prime agricultural soil areas, hydric soils, aquifer recharge areas, unstable soils, soils most susceptible to erosion, soils most suitable for urban development, and soils suitable for

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on-lot sewage disposal.

(3) A map illustrating the characteristics of rock formations underlying the tract, including a delineation of aquifers (specifically those locally subject to pollution) and shallow bedrock areas.

(4) A map delineating additional significant physical features within the proposed subdivision tract, such as woodland areas, large trees, rock outcroppings, sinkholes, closed depressions, historical sites and features and scenic views.

(5) A map delineating areas of existing steep slopes ranging from 15% to 25%, 25% to 35% and greater than 35% within the boundaries of the subject property.

B. A contour grading plan and a plan for minimizing erosion and sedimentation, in accordance with erosion and sediment control standards as set forth in § 22A-711, Subsection 1; a landscape plan, according to standards as set forth in § 22A-711, Subsection 2B. A letter shall be provided from the Northampton County Conservation District which indicates that the soil erosion and sedimentation control plan conforms to the Pennsylvania Department of Environmental Protection rules and regulations.

C. Proposed layout plan content, including:

(1) Typical cross sections for proposed streets, sanitary sewer, storm drainage and water system improvements.

(2) Street and utility plan and profile drawings. The street plan view and corresponding profile drawing shall be provided on the same plan sheet.

(3) Typical or design building footprints and driveways for each proposed building lot.

(4) Approximate locations of on-lot water supply wells, if applicable.

(5) Primary and secondary septic system absorption areas, including soil probe and percolation test locations, if applicable.

(6) Infiltration facilities for proposed buildings and driveways and any other required storm drainage facilities, including soil probe locations.

D. A storm drainage plan for the proposed subdivision or land development, which conforms to design requirements for storm drainage as set forth in § 22A-708. If the site of the subdivision or land development is within a watershed with an approved stormwater management plan enacted pursuant to Act 167, the criteria in the applicable plan shall be used.

E. In the case of subdivision or land development plans to be developed in phases or sections over a period of time, a plan of the subdivision or land development shall be provided which shows the phasing of the development. The phased sections shall be consecutively numbered with a schedule indicating the approximate time for which applications for final approval of each phase is intended to be filed.

(1) The overall plan of a proposed phased subdivision or land development shall be prepared and submitted in accordance with the preliminary plan requirements in Part 4 of this chapter. Preliminary approval of the overall plan will be required prior to submission of the individual phases or sections.

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(2) Upon preliminary approval of the overall master plan of development, individual phases can be submitted for final approval. These phases shall be designed for compliance with the final plan requirements in Part 5 of this chapter. Recording of the individual phases cannot take place until all final plan provisions of this chapter are complete, including the execution of all required agreements and financial security.

(3) Future phases cannot proceed for construction until they obtain final approval and have complied with all final plan requirements in Part 5.

(4) If the design and layout of subsequent phases deviates from the approved master plan, a new overall plan of the subdivision or land development shall be submitted for preliminary approval.

F. Preliminary designs of any bridges or culverts which may be required. Such designs shall meet all applicable requirements of the Pennsylvania Department of Environmental Protection, the Pennsylvania Department of Transportation and the Act 167 Stormwater Management Plan, if implemented.

G. Copies of the subdivision sewage disposal report, when required according to standards as set forth in § 22A-706.

H. Certification of water supply systems.

(1) When water service to the proposed subdivision is to be provided by an existing public system, the developer shall submit two copies of a letter from the agency, authority, or utility which agrees to extend water service, subject to the execution of a service agreement.

(2) When water service to the proposed subdivision is to be provided by an on-lot well, the developer shall submit two copies of a letter from the applicable water authority that service to the site is not feasible.

I. Certification of sewage disposal systems.

(1) When sewage disposal service is to be provided by an existing public system or extension thereof, the developer shall contact the controlling sewer authority regarding connections into their sewer system. Copies of all correspondence between the developer and sewer authority shall be provided to the Township. All negotiations, designs, reviews, approvals and construction will be handled by the controlling sewer authority in accordance with their current regulations. Additionally, all subdivisions and land developments proposing public sanitary sewer service will be required to obtain sewage facility planning approval from the Pennsylvania Department of Environmental Protection.

(2) When sewage disposal service for the proposed subdivision or land development is to be by individual sewage disposal systems, the following requirements must be followed:

(a) Prior to submission of a preliminary subdivision or land development plan, the applicant or developer shall submit to the Pennsylvania Department of Environmental Protection (Department), Form ER-BWQ-359, "Application for Planning Module for Land Development," commonly known as the "postcard" submission, whereby the Department will indicate to the developer which module components to complete and make other guiding recommendations, as well as establishing a Department of Environmental Protection's code number for the

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project.

(b) The developer shall then meet with a representative from the Department and the Township Sewage Enforcement Officer (SEO) to discuss the subdivision or land development with relationship to the Sewage Facilities Act "Official Plan."

(c) The developer shall provide all information as required by the Planning Module for Land Development (PMLD). The developer shall submit the completed PMLD to the Township as part of the supporting data of the preliminary plan submission.

(d) The Township shall review the PMLD and take municipal action within 60 days of receipt of the completed module.

(e) Preliminary plan shall not be approved by the municipality until written approval of the PMLD is received from the Department of Environmental Protection. Modules will be reviewed for completeness and conformance to the requirements of the Sewage Facilities Act[22] and regulations promulgated thereunder, Chapters 71, 72, and 73 of Pa. Code Title 25. Incomplete module submissions will be returned to the applicant and will not be considered for review until complete.

(f) The number and spacing of soil profile studies and percolation tests required for module preparation shall be sufficient to justify adequate sewage facility planning for the proposed subdivision or land development and shall contain general site suitability and soil mapping designations.

(g) All soil testing information shall be indicated and clearly represented on plans and supporting documents, for evaluation.

(h) The developer shall retain a soil scientist, hydrogeologist, or other competent professional to perform soil evaluations, percolation tests, and additional studies if required by the Department or Township SEO. The Township SEO will only observe the soil tests and review submitted material in accordance with this chapter.

(i) Prior to plan approval, the developer shall test and locate, on each lot, a suitable primary and secondary absorption area. These areas shall be staked in the field and protected until such time as the system(s) are constructed and final grading completed on the lot. No permit will be issued until the site is adequately marked. Any disturbance to the site by grading, equipment traffic, or material storage may be cause for permit denial.

J. Whenever a proposed public improvement, on-lot septic system, stormwater infiltration/water quality facility or detention pond encroaches upon a utility line or easement, the applicant shall provide a letter from the utility verifying that the development will comply with all reasonable design criteria set by the utility.

K. Whenever a modification is requested pursuant to the provisions of § 22A-1006, the applicant shall provide a written request conforming to the requirements of § 22A-1006, Subsection 2.

L. The applicant shall provide a copy of the opinion of title as issued by a title insurance company or an attorney, which shall set forth the names of all owners of property included in the plat and shall include a list of mortgages, judgments, liens, easements, contracts and agreements of

22. Editor's Note: See 35 P.S. § 750.1 et seq.

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record in the Recorder of Deeds office in Northampton County, Pennsylvania, which shall affect the property covered by such plats.

M. If the subdivision/land development involves a proposed drainage structure located on state highway rights-of-way, the applicant shall submit plans and calculations to the Pennsylvania Department of Transportation (PennDOT) for their review and approval. The applicant shall supply the Township with copies of the PennDOT highway occupancy permit for these proposed drainage structures.

N. The applicant shall address the karst hazard requirements and performance standards in § 22A-711, Subsection 4.

O. Traffic impact fees will be required as established by the Upper Nazareth Township Traffic Impact Ordinance.

P. Traffic Impact Studies.

(1) Any application for any of the following uses shall be required to complete a traffic study and include the findings in a written report:

(a) Residential: 30 or more dwelling units.

(b) Commercial: 10,000 square feet or more of total floor area.

(c) Office: 20,000 square feet or more of total floor area.

(d) Industrial: 30,000 square feet or more of total floor area or any truck terminal.

(e) Institutional: 20,000 square feet or more of total floor area.

(f) Any use or combination of uses that would generally result in greater than 300 trips per day.

(2) Any required traffic study shall be submitted at the same time as any preliminary plan, special exception, conditional use or construction permit application, whichever is submitted earliest.

(3) The full costs of completing the study and of a review by the Township Engineer or other Township representative shall be borne by the applicant.

(4) Prior to initiation of the traffic study, the traffic engineer or planner shall meet with the Township Engineer to establish the area to be studied. This area shall be limited to streets and intersections within a maximum of one mile of the proposed project boundaries, except for a use projected to generate more than 3,000 trips per day, which shall have a maximum study area of two miles from the project boundaries.

(5) Joint traffic studies between different applicants are strongly encouraged.

(6) Any study shall include a description of the proposed development, its proposed access and the surrounding street system. If a development is proposed to occur in stages, each stage shall be described and taken into account in the study. If the applicant owns other lands within the study area, reasonable assumptions shall be made about how that land can be expected to be developed and shall be taken into account.

(7) The traffic volumes and service levels during the a.m. and p.m. peak hours shall be

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presented for all streets and intersections in the study area that can reasonably be expected to be significantly impacted. Traffic volumes shall be based upon actual counts that occurred within the prior two years, and not upon PennDOT estimates. The locations of all accidents reportable to the state police within the study area during a recent two-year period shall be noted.

(8) The study shall include an estimate of the number of trips expected to be generated by the use and any future stages during the a.m. and p.m. peak hours. Such estimates shall be based upon the latest published estimates of the Institute of Transportation Engineers, or its successor entity, unless the applicant provides the Township with estimates and supporting documentation based upon actual traffic counts of closely similar developments in Pennsylvania or New Jersey.

(9) The study shall take into account not only the use proposed by the applicant, but also other uses and developments that have received building permits or preliminary subdivision or land development approval from a municipality. The study shall project a.m. and p.m. peak-hour traffic volumes and levels of service on intersections and streets within the study area. If the traffic generation by the development would be more than 50% greater during any hour other than the a.m. or p.m. peak hour on adjacent streets, the study shall analyze both the peak hours for the development and for adjacent streets. The study shall project what directions the traffic generated will head towards.

(10) The study shall estimate the levels of service (A, B, C, D, E and F), for key traffic movements, including turning movements, following the standards of the United States Department of Transportation.

(11) Heavily traveled intersections at entrances to the development and other major unsignalized intersections in the study area shall be studied to determine whether a traffic signal is warranted by PennDOT criteria. Existing traffic signals that are significantly impacted shall be studied to determine whether they are in need of upgrading.

(12) The study may take into account traffic improvements which are clearly funded and will occur within the next two years. The study shall include suggestions for how each congested or hazardous intersection in the study area should be improved to reduce the hazard or congestion, and a rough estimate of the cost of that improvement.

(13) The applicant shall respond to the traffic study with proposals on what traffic improvements, right-of-way dedications or commitments of financing for specific projects the applicant proposes to commit to resolve the negative traffic impacts of the proposed development. Such improvements or financing may be staged in relation to the stages of the development. The applicant may also agree to commit towards the long-term support of a program to reduce peak-hour traffic by private vehicles, through programs such as van-pooling, support of mass transit or staggered work hours, in place of certain structural improvements.

(14) Any traffic improvements that are required as a condition of any approval under this chapter shall be in place or sufficient funds committed in escrow acceptable to the Township prior to the issuance of any needed occupancy permit or within a staged process agreed to at the time of approval.

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Part 5
FINAL PLAN SUBMISSION PROCEDURES AND REQUIREMENTS

§ 22A-501. Final Plan Submission. [Ord. 174, 12/20/2017]

1. Unless the final plan submission is made within five years of the date of the preliminary plan approval or unless the Board of Supervisors grant an extension, in response to a written request which is submitted within five years of the date of the preliminary plan approval, the preliminary plan approval shall be considered void. A new preliminary plan submission will be required if the previous approval is void. The new plans shall conform to current regulations.

2. The final plan shall conform in all significant respects to the preliminary plan as previously approved, but shall incorporate all modifications required by the Board of Supervisors. The Township Planning Commission may, or may not, accept a final plan modified so as to reflect any substantial changes which have occurred on the site of the proposed subdivision, or in its surroundings, since the time of the preliminary plan approval.

3. Official submission of the final plan to the Township shall comprise the following:

   A. Submission of one copy of a completed final subdivision and land development application.

   B. Submission of 11 sets of paper prints of the final plan, which shall fully comply with provisions of this chapter as set forth in § 22A-504.

   C. Submission of four copies of all required supplemental information as set forth in § 22A-403, Subsection 5.

   D. The applicant shall also submit three reduced copies (8 1/2 inches by 14 inches size) of the final layout plan to the Township. The Township shall provide two copies of the reduced plan to the Township Solicitor and retain one copy for the Township records.

   E. All plans submitted to the Township must be folded, where possible, unless the plan is of such a size that makes folding impractical, i.e., extra-large sheets or sets over 10 pages.

   F. Three compact discs containing the copies of the final subdivision and land development drawings, in a format suitable to Upper Nazareth Township. The Township shall provide one copy of the disc to the Solicitor and retain two copies for the Township records.

4. The Township shall distribute the plans and other material as follows:

   A. Five sets of the plans and one set of the supplemental information to the Township Planning Commission, two sets of plans and two sets of supplemental information to the Township Engineer, one set of plans to the Township Solicitor, one set of plans to the governing water authority and one set of plans and one set of supplemental information to the Township Manager.

   B. The Township shall retain one set of the plans and one set of the supplemental information.

5. Whenever a proposed subdivision or land development is located adjacent to another municipality, one print of the final plan shall be submitted for each additional or adjacent municipality to the respective municipalities by the applicant, with a copy of the transmittal letter provided to Upper Nazareth Township.

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6. The applicant shall submit plans, all supplemental material relevant to said agency, and required fees to the agencies set forth in § 22A-401, Subsection 4, if revisions were required by said agencies.

§ 22A-502. Review of Final Plan. [Ord. 174, 12/20/2017]

1. By the Township Planning Commission.

   A. When a final plan has been submitted to the Township, such plan shall be placed on the agenda of the Planning Commission for review at a meeting to be held within 60 days of the submission, provided that such submission has occurred no less then 21 days prior to such meeting (if the 21st day falls on a holiday, the next business day). The Planning Commission may hold a public hearing on the final plan at this time. All submissions must be made by 3:00 p.m. of the cutoff date, complete with all supplemental information and required fees. Submissions without the required information will be considered incomplete and not eligible for placement on the agenda until the information is submitted. Submission does not guarantee a spot on the agenda.

   B. The Planning Commission shall review the final plan to determine its conformance with the standards contained in this chapter and other applicable municipal ordinances, and shall recommend such changes and modifications as it deems necessary.

   C. No action shall be taken by the Township Planning Commission with respect to a final plan until it has received and considered the written report of the Lehigh Valley Planning Commission; provided, however, that if the Lehigh Valley Planning Commission shall fail to report thereon within 30 days after receipt of a final plan, the Township Planning Commission may officially act without having received and considered such report.

   D. Within 60 days after the first meeting following the submission of the final plan, providing that such submission has occurred no less than 21 days prior to such meeting, the Planning Commission shall recommend to the Board of Supervisors, in writing, that the final plan be approved or disapproved together with the documented findings upon which the recommendations are based. With the recommendations, the Planning Commission shall forward one Mylar of the record plan and three paper prints of the record plan to the Board of Supervisors. The plans shall bear the signatures of the Planning Commission if the Planning Commission has voted to recommend that the plans be approved by the Board of Supervisors. One complete set of plans and one set of all supplemental material shall also be forwarded to the Board of Supervisors.

2. By the Township Board of Supervisors.

   A. Action by Board.

      (1) Within 90 days following the date of the regular meeting of the Planning Commission following the date of the application (unless the next meeting does not fall in a thirty-day period following the date of the application, in which case the ninety-day period commences on the 30th day following the date of the application), the Board of Supervisors shall, in accordance with the provisions of relevant ordinances and considering the recommendations of the Planning Commission, take action by approving or disapproving the final plan. This time period may be extended by action of the Board of Supervisors or the Planning Commission upon the receipt of a written request for an extension of time from the applicant. The Board of Supervisors shall document the findings upon which that action is based, and communicate them to the applicant within 15 days from the date that the decision has been made. This communication shall occur

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within the period provided for a decision in the first sentence of this section. The decision and findings shall be communicated to:

(a) The applicant;

(b) The Township Planning Commission;

(c) The Township Engineer.

(2) Action by the Board of Supervisors to approve the final plan shall be made in the form of a resolution which is duly passed by the Board. The resolution shall include stipulations as to the terms of approval including the improvements agreement if one is called for. No subdivision plan shall be approved unless the review fees, recreation fees, and other fees required under the terms of this Subdivision and Land Development Ordinance have been paid in full, and unless the improvements agreement, if one is called for, has been executed.

(3) The applicant shall sign the resolution agreeing to the stipulations as to the terms of approval not less than five days before the end of the statutory review period. Failure to sign the resolution by the applicant shall void the resolution forthwith. The Board of Supervisors shall than act to disapprove the application.

B. Action by the Board of Supervisors to approve or disapprove the final plan shall be made in the form of a motion which is duly passed by the Board.

C. If approved, the motion passed by the Board shall include stipulations as to the terms of approval, including the improvements agreement if one is called for. The conditions for approval shall be made in writing and conveyed to the applicant.

D. If disapproved, the motion passed by the Board shall include the reason(s) for disapproval and shall be conveyed, in writing, to the applicant.

E. No final subdivision plan shall be signed and processed for recording unless the review fees, and other fees required under the terms of this chapter have been paid in full, and unless the improvements agreement, if one is called for, has been executed.

§ 22A-503. Final Plan Recording. [Ord. 174, 12/20/2017]

1. Within 30 days of the execution of the resolution approving the subdivision, the applicant shall supply two Mylar reproducible print and four paper prints of each plan in the set of final plans to the Township.

2. The Township shall distribute the plans for signature by the Board of Supervisors, the Township Planning Commission, and the Lehigh Valley Planning Commission.

3. Upon the placement of the signatures on the plan as required by Subsection 2 and within 90 days of the approval of the subdivision or land development, the applicant shall file the plan at the Northampton County Recorder of Deeds office in the form prescribed by the Recorder of Deeds. Proof of recording shall be furnished to the Township.

4. The Township shall retain the Mylar set of plans and shall distribute one set of the approved plans each to the Township Planning Commission, the Board of Supervisors, and the Township Engineer.

5. A completed and executed copy of the subdivision and/or land development improvements agreement

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shall be supplied prior to plan recording.

§ 22A-504. Final Plan Requirements. [Ord. 174, 12/20/2017]

1. The final plans shall conform to standards and data requirements as set forth for preliminary plans in § 22A-403 of this chapter.

2. It shall not be necessary to resubmit supporting maps and data submitted with the preliminary plan, provided there has been no change.

3. The following additional data shall be illustrated on the final plan:

   A. The latest source of title to the land, as shown by the deed, page number, and book of the Northampton County Recorder of Deeds.

   B. The total tract boundary lines of the area being subdivided, with accurate distances to hundredth of a foot and bearings to the nearest second. These boundaries shall be determined by accurate survey in the field, to an error of closure not to exceed one foot in 10,000 feet. The tract boundary shall be subsequently closed and balanced. However, the boundary or boundaries adjoining additional unplotted land of the subdivider (for example, between separately submitted final plan sections) are not required to be based upon field survey and may be calculated. The location of all boundary line (perimeter) monuments shall be indicated, along with a statement of the total area of the property being subdivided. In addition, the surveyor shall certify to the accuracy of the survey, the drawn plan, and the placement of the perimeter monuments.

   C. The following data for all proposed and existing streets:

      (1) The name, proposed name, or number of the street;

      (2) The cartway width and center line stationing of the street;

      (3) The right-of-way width and right-of-way lines of the street;

      (4) Locations of all required street and traffic signs.

   D. Block and lot numbers, and a statement of the total number of lots; all lot lines shall be completely dimensioned in feet if straight, and if curved by designating length of arc and radius (in feet), delta angle of curve and chord bearing and distance. All internal angles within the lots shall be designated to within the nearest second. The proposed front, side and rear building setback lines, and the proposed placement of each building and driveway shall be shown. The area of each lot shall be noted in both square feet and acres.

   E. Officially established house/building numbers for street addresses as assigned by the Township Engineer.

   F. All easements or rights-of-way and any limitations on such easements or rights-of-way. Rights-of-way shall be shown and accurately identified on the plan, and easements shall either be shown or specifically described on the plan, including geometric location on the plan. Easements should be located in cooperation with the appropriate public utilities; the exact location of all utility line installations also shall be shown. The terms of all easements or rights-of-way shall be stated in notes on the plan.

   G. Such covenants, conditions and deed restrictions as may be imposed upon the grantees, their

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heirs, executors and assigns, together with a statement of any restrictions previously imposed which may affect the title to the land being subdivided or developed. All such covenants and restrictions shall be summarized in notes on the record plan and shall include, as a minimum, the following:

(1) After their construction, grantees shall repair and be responsible for maintaining all swales and detention ponds. Once established and approved, the extent and grades of all swales and detention ponds shall be maintained in perpetuity. Maintenance shall include, but not be limited to, regular lawn mowing, removal of trash/debris, plus repair of all sinkholes.

(2) All drainage swales within street rights-of-way and drainage/utility easements shall be maintained in a grassed or otherwise improved conditions in accordance with the grades and designs shown on the approved plans. All these easements and roadside drainage swales shall be kept free of all obstructions, including but not limited to such obstructions such as fill, temporary or permanent structures, and landscaping materials (other than grass).

(3) All electric, telephone, and cable TV utility distribution lines shall be installed underground.

(4) All storm sewer lines shall be televised by the developer prior to final acceptance of the improvements. A compact disc containing the televising information shall be furnished to the Township.

H. A statement of the intended use of all nonresidential lots or parcels, with reference to restrictions of any type which exist or will exist as covenants in the deed for the lots or parcels contained in the subdivision, and if covenants are recorded, including the book and page number of the Northampton County Recorder of Deeds.

I. If the subdivision fronts on a state route, a note reading as follows shall be placed on the plan: "A highway occupancy permit is required pursuant to Section 420 of the Act of June 1, 1945 (P.L. 1242, No 428), known as the 'State Highway Law,'[23] before driveway or roadway access to a state highway is permitted."

J. The location of all existing and proposed street monuments, as required by § 22A-902, Subsection 5; a certification of ownership, acknowledgment of plan, and offer of dedication and an acceptance clause for the Board of Supervisors shall be lettered on the plan, duly acknowledged and signed by the owner of the property, and notarized; a certificate indicating review of the plan by the Township Engineer shall be provided; a certificate for approval of the plan by the Township Board of Supervisors shall be provided; a certificate for the recommendation for approval by the Township Planning Commission shall be provided; a certificate indicating review of the plan by the Lehigh Valley Planning Commission shall be provided; space shall be left along the lower edge of the sheet, in order that the Northampton County Recorder of Deeds may acknowledge receipt and recording of the plan when it is presented; if the final plan requires more than one sheet, a key diagram showing the relative location of the several sections shall be drawn on each sheet.

K. The final subdivision or land development plan shall contain the following legend:

(1) Prior to the issuance of a building permit or commencement of construction for any

23. Editor's Note: See 36 P.S. § 670-420.

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individual lot or parcel shown hereon, the applicant shall submit to the Township Engineer for review and approval, three copies of a final grading plan drawn at a scale of one inch equals 20 feet. The grading plan shall be sealed by the professional engineer or land surveyor responsible for the preparation of the plan. The plan shall contain the following information:

(a) Lot lines with bearings and distances, lot area, locations of all existing and proposed lot corner monumentation, and tax parcel identification number for the subject property.

(b) Existing and proposed contour elevations at intervals of two feet, including the subject lot, adjoining street(s) and 50 feet beyond the subject property, as approved on the final grading plan. If the average slope of the property is less than 3%, contour elevations at intervals of one foot shall be provided.

(c) Spot elevations for the first floor level of any structure, primary on-lot sewage disposal systems (where applicable), finished road elevations at point of entry, and any other area as deemed necessary by the Township Engineer.

(d) North reference, building restriction lines, easements and rights-of-way within or adjacent to the subject property.

(e) Location, size and elevations of all existing or proposed storm drainage structures within or adjacent to the subject property.

(f) All property adjoiners and names of adjoining street(s).

(g) Locations of all percolation test holes and soil probes and the locations and dimensions of primary and secondary on-lot sewage disposal systems, where applicable.

(h) The exact location and dimensions of any proposed structure, appurtenant structure, road or driveway, with tie-in dimensions to property line.

(i) Individual lot soil erosion and sedimentation controls in accordance with the approved subdivision plan or current conservation district standards.

(j) All covenants and conditions from the plan of record, if the subject property is part of an approved and recorded subdivision plan.

L. A covenant shall be added to the final plan that specifically assigns the ownership and perpetual maintenance responsibilities for any required permanent stormwater drainage facility.

4. The final plan shall be accompanied by the following:

A. A plan showing the following information:

(1) Location, size and invert elevation of storm drainage systems, and the location of all manholes, inlets and culverts, and where applicable, all sanitary sewer and water distribution systems.

(2) Final plan and profile drawings, typical sections and specifications for proposed streets, storm drainage systems, and where applicable, sanitary sewers and water distribution systems each shown on one or more separate sheets.

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(3) A contour grading plan and a plan for minimizing erosion and sedimentation, in accordance with erosion and sediment control standards as set forth in § 22A-711, Subsection 1; a landscape plan, according to standards as set forth in § 22A-711, Subsection 2B.

B. A completed and executed copy of the subdivision and/or land development improvements agreement shall be in place before recording of the plan.

C. Financial security to cover the costs set forth in the improvements agreement. The financial security shall conform in all respects to the requirements of § 22A-904.

D. A copy of the PennDOT highway occupancy permit for any road or driveway requiring access to a state route which is appropriate for the type of access required.

E. The original deed for any areas proposed for dedication in relation to the subdivision or land development.

F. An analysis establishing traffic signing and speed limits for any roads created by the subdivision. All traffic and street signage shall be shown on the final plan.

G. Copies of the design approval letter from the governing public water and public sewer providers, as applicable.

5. In the case of a subdivision or land development proposed to be built in stages or sections over a period of years, final plan requirements as listed in § 22A-504, Subsection 4A through D, shall apply only to the stage or section for which final approval is being sought. However, the final plan presented for the stage or section must be considered as it relates to information presented for the entire subdivision or land development in the application for preliminary approval.

6. Prior to the commencement of construction, there shall be a preconstruction conference with all necessary agencies, including but not limited to the Upper Nazareth Township, Northampton County Soil Conservation District, all applicable utilities, governing water authority, contractors, subcontractors, PennDOT, PADEP, and engineers to discuss the construction process/schedule. The Township reserves the right to add or delete attendees and to waive this requirement.

7. The final plan shall contain a note indicating that prior to final acceptance of improvements, the developer shall furnish the Township with Record Utility Plans ("as-builts") for the project. The requirements and content of these "as-built" plans shall be as specified in Appendix F[24] of this chapter.

24. Editor's Note: Appendix F is included as an attachment to this chapter.

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Part 6
MINOR SUBDIVISIONS AND BOUNDARY LINES

§ 22A-601. Adjustment Submission Procedures and Requirements. [Ord. 174, 12/20/2017]

In the case of any proposed residential subdivision which does not, by itself, or in combination with previous subdivision plans, involve more than a total of three lots, and does not involve the provision of any new street or easement for access (i.e., one in which all proposed lots will have frontage on an existing public street), or in the case of boundary line adjustments between property owners where no additional lots are created, the following procedures will apply:

1. The plan submission procedures of § 22A-501 will apply.
2. The plan review procedures of § 22A-502 shall apply.
3. The plan recording procedures of § 22A-503 shall apply.
4. The submission shall comply with the drawing requirements and the applicable submission requirements of §§ 22A-403 and 22A-504 and Part 7, except as is noted in Subsection 4A.

   A. The boundaries of any residual tract which is greater than 10 acres may be determined by deed. The boundaries of any residual tract which is 10 acres or less shall be determined by accurate field survey.

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Part 7
DESIGN STANDARDS

§ 22A-701. Application. [Ord. 174, 12/20/2017]

1. The design standards and requirements outlined in this Part will be utilized in determining the adequacy of all plans for proposed subdivisions and land developments.

2. Development shall be planned, reviewed and carried out in conformance with all Township, county, state, federal and other applicable laws and regulations.

3. Whenever other ordinances and regulations impose more restrictive standards and requirements than those contained herein, the more restrictive standards and regulations shall apply. Whenever the standards and requirements contained herein are more restrictive than those imposed in other ordinances and regulations, the more restrictive standards and regulations herein shall apply.

§ 22A-702. General Standards. [Ord. 174, 12/20/2017]

1. Land shall be suited for the purpose for which it is to be subdivided. Land with unsafe, environmentally sensitive, or hazardous conditions such as may have been identified in the Nazareth Area Multi-Municipal Comprehensive Plan, though not limited to those features or mapping therein shall not be subdivided unless adequate mitigation measures eliminate or protect against these conditions.

2. Consideration shall be given to applicable provisions of the Nazareth Area Multi-Municipal Comprehensive Plan, emphasizing future school sites, recreation sites, water supply and sewage treatment systems, highway alignments, and other public facilities. However, consideration must be given to the need for the facilities and utilities mentioned above, whether or not they are proposed as part of a Comprehensive Plan.

3. Lands intended for subdivision and/or land development shall take into account the planning objectives of the Township's Official Map(s) including, but not limited to, future parks and open space, trails, bikeways, road realignments or future street networks.

§ 22A-703. Block Design Standards. [Ord. 174, 12/20/2017]

1. Block Layout.

   A. The length, width and shape of blocks shall be determined with due regard to:

      (1) Provision of adequate sites for buildings of the type proposed.

      (2) Township zoning requirements.

      (3) Topography.

      (4) Requirements for safe and convenient vehicular and pedestrian circulation, including the reduction of intersections with arterial streets.

2. Block Length.

   A. Residential blocks shall be no less than 500 feet in length or no more than 1,600 feet in length.

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B. Blocks along arterial and collector streets shall not be less than 1,000 feet in length.

3. Block Depth.

A. Residential blocks shall be of sufficient depth to accommodate two tiers of lots, except:

(1) Where reverse frontage lots are required; or

(2) Where prevented by the size, topographical conditions or other inherent conditions of the property.

4. Commercial, Industrial and Planned Industrial Commercial Development Blocks.

A. Blocks in commercial, industrial and planned industrial commercial developments may vary from the elements of design detailed above if required by the nature of the use. In all cases, however, adequate provision shall be made for traffic circulation, off-street parking and loading area.

§ 22A-704. Lot Design Standards. [Ord. 174, 12/20/2017]

1. General Standards.

A. Within the requirements of Chapter 27, Zoning, the size, shape and orientation of lots shall be appropriate for the type of development and use contemplated. Lot widths shall be as specified in Chapter 27, Zoning. Flag lots are not permitted.

B. Side lot lines shall be at right angles to street lines or radial to curved street lines.

C. Lot lines shall follow municipal boundaries rather than cross them, in order to avoid jurisdictional problems.

D. The depth of residential lots shall be not less than one nor more than three times their width, except as otherwise required by Chapter 27, Zoning.

E. Depth and width of parcels intended for nonresidential uses shall be adequate for the use proposed and sufficient to provide satisfactory space for on-site parking, loading and unloading, setbacks, landscaping, etc.

F. If, after subdividing, there exists remnants of land, they shall be either:

(1) Incorporated in existing or proposed lots; or

(2) Legally dedicated to public use, if acceptable to the Township.

2. Lot Frontage.

A. All lots shall have direct access to a public street or to a private street. All streets shall be built to the street standards of this chapter.

B. Double- or reverse-frontage lots may be required to provide separation of residential development from collector or arterial streets or to overcome specific disadvantages of topography or other natural features of the proposed subdivision tract.

C. All residential reverse frontage lots (and all corner lots with a lot line along a street where reverse frontage is required) shall have a rear yard with a minimum depth of 75 feet, measured

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along the shortest distance from the proposed dwelling unit to the ultimate right-of-way and shall, with such rear yard and immediately adjacent to the right-of-way, have a planting screen easement of at least 10 feet in width, across which there shall be no right of access. A landscape plan, showing a double row of mixed evergreen plantings within this easement, shall be prepared and submitted for all reverse frontage lots. The landscape plantings shall be in accordance with the buffer requirements of Chapter 27, Zoning.

3. Lot Access (other than PennDOT roadways).

A. Where direct access to an arterial or collector street cannot be avoided, adequate turnaround space shall be provided behind the right-of-way line.

B. Driveways or access roads shall intersect streets at right angles, where practicable, and in no case less than 75°.

C. Widths of private access roads or driveways as measured within the public right-of-way shall be in accordance with the following standards:

(1) All private access roads or driveways intended for one-way use shall have a minimum width of 12 feet and a maximum width of 20 feet.

(2) Single-family residential driveways intended for two-way use shall have a minimum width of 12 feet and a maximum width of 20 feet.

(3) Two-way access roads and driveways for multifamily residential and all nonresidential uses shall have a minimum width of 24 feet. A maximum width of 30 feet is permitted in multifamily residential developments and a maximum width of 36 feet is permitted for all nonresidential uses.

D. To provide safe and convenient ingress and egress, access road and driveway entrances shall be constructed as follows:

(1) Access road entrances for multifamily residential developments, mobile home parks, and all nonresidential subdivisions and land developments shall be rounded at a minimum radius of 10 feet.

(2) Single-family residential driveway entrances shall be rounded at a minimum radius of five feet.

E. Access road grades and driveway grades shall not exceed 12% between the future street right-of-way line and any other point within the confines of the lot area being served. However, the initial 20 feet from the edge of the street cartway shall not exceed 6%.

F. The center line of an access road or driveway, at the point of access to a street, shall not be located closer to the center line of a street intersection than the following distances, unless the lot is entirely within the prescribed distances (in which case, the driveway shall be separated from the intersection by the greatest distance possible).

(1) For single-family dwellings:

(a) One hundred fifty feet, if either intersection street is an arterial street.

(b) One hundred feet, if either street is a collector street.

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(c) Seventy-five feet, if both streets are local streets.

(2) For all other development:

(a) Three hundred feet, if either street is an arterial street.

(b) Two hundred feet, if either street is a collector street.

(c) One hundred fifty feet, if both streets are local streets.

G. On corner lots that have frontage on streets of different classifications, the access to such lots shall be from the street of lower classification.

4. Access on PennDOT Roadways.

A. All lot driveways accessing onto state roadways shall designed in accordance with Pennsylvania Department of Transportation standards.

B. PennDOT highway occupancy permits will be required for all lot driveways accessing onto state roadways.

§ 22A-705. Street Design Standards. [Ord. 174, 12/20/2017]

1. General Requirements.

A. Proposed streets shall be properly related to the road and highway plans of PennDOT and the Township Comprehensive Plan. Streets shall be designed to provide adequate vehicular access to all lots or parcels and with regard for topographic conditions, projected volumes of traffic, and further subdivision possibilities in the area.

B. The street system of a proposed subdivision or land development shall be designed to create a hierarchy of street functions which includes collector and local streets.

C. The street system of a proposed subdivision or land development shall be designed so as to minimize street intersections and pedestrian-vehicular conflict points.

D. Proposed local streets shall be designed so as to discourage through traffic and excessive speeds. However, the developer shall give adequate consideration to provision for the extension and continuation of arterial and collector streets into and from adjoining properties.

E. Where it is desirable to provide for street access to adjoining property, streets shall be extended by dedication to the boundary of such property. The streets shall meet the requirements of § 22A-705, Subsection 7B.

F. Where a subdivision or land development abuts an existing road with a right-of-way and/or cartway width not meeting the requirements of § 22A-705, Subsection 2A, sufficient right-of-way should be dedicated so that the distance between the edge of the right-of-way and the road center line equals 1/2 of the required width, and/or the cartway will be widened as per the specifications of this chapter so that the distance between the edge of the cartway and road center line equals 1/2 of the required width. Where a subdivision or land development abuts an existing road not meeting the requirements of §§ 22A-705, Subsection 3 or 6, sufficient right-of-way to correct the alignment deficiency should be dedicated. A deed covering the land to be dedicated shall be provided along with an opinion of title from a title insurance company or an attorney which indicates that clear title exists for the land being dedicated.

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G. Where a subdivision or land development abuts or contains an arterial road, the use of marginal access streets, reverse frontage lots, or other such treatment as will provide protection for abutting properties, reduction in number of intersections with the arterial street, and separation of local and through traffic shall be required.

H. Private streets (streets not to be offered for dedication) shall meet the street design and improvement standards set forth in this chapter. In addition, when a private street is proposed, the developer shall indicate on the plan of record the proposed deed covenants obliging the owners of all lots to be served by the street to provide, at their expense, perpetual street maintenance including timely snow removal. Covenants and/or homeowners' association agreements relating to private streets shall be submitted to the Township Solicitor for review and approval.

I. If the lots in the development are large enough for resubdivision, or if a portion of the tract is not subdivided, suitable access and street openings for such an eventuality shall be provided. The openings shall be at intervals consistent with the block length standards of § 22A-703, Subsection 2.

J. Where a subdivision or land development abuts an existing collector, arterial or expressway classified street, the applicant will be required to install curbing along the street side abutting the subdivision or land development, unless otherwise waived by the Township Board of Supervisors.

2. Street Right-of-Way and Cartway Width.

A. Street right-of-way as per Chapter 27, Zoning, and cartway width in proposed subdivisions shall conform to the standards in the following table:

Type of Road	Local		Collector	Arterials and Express- ways
Land Use	Single-Family Detached Dwellings **(feet)**	All Other Uses **(feet)**	All Uses **(feet)**	All Uses
Lots less than 1 acre				
Cartway width/ ROW	28/50	32/50	36/60	American Association of State Highway Transport- ation Officials (AASHTO) and PennDOT design standards may be required
Lots greater than or equal to 1 acre				

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Type of Road	Local		Collector	Arterials and Express- ways
Land Use	Single-Family Detached Dwellings **(feet)**	All Other Uses **(feet)**	All Uses **(feet)**	All Uses
Cartway width/ ROW	28/50	32/50	36/60	

3. Horizontal Curves.

   A. Street center lines shall not be deflected without the use of horizontal curves.

   B. Horizontal curves shall have the following minimum center line radii:

      (1) Local streets: 200 feet.

      (2) Collector streets: 300 feet.

      (3) Arterial streets and expressways: as per current American Association of State Highway and Transportation Officials (AASHTO) standards.

   C. A minimum tangent of 100 feet shall be required between reverse curves on all streets. A minimum tangent of 100 feet shall separate horizontal curves from intersections, as measured from the point of intersecting center lines.

4. Street Grades.

   A. There shall be a minimum center-line grade on all streets of 1%.

   B. Center-line grades shall not exceed the following:

      (1) Local streets: 12%.

      (2) Collector streets 7%.

      (3) Arterial streets as per current AASHTO standards.

   C. Intersections shall be approached on all sides by leveling areas. Such leveling areas shall have a minimum length of 75 feet (measured from the intersection of the center lines), within which no grade shall exceed a maximum of 4%.

   D. Cross slopes for roadways and parking lanes shall be 2% and cross slopes for paved shoulders shall be 6%.

5. Vertical Curves.

   A. Vertical curves shall be used in changes of grade exceeding 1%.

   B. Vertical curves shall be designed to produce the following minimum sight distances:

      (1) Local streets: 200 feet.

      (2) Collector streets: 400 feet.

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(3) Arterial streets and expressways: as per current AASHTO standards.

6. Street Intersections.

A. Streets shall intersect at right angles whenever practicable. However, in no instances shall the angle of intersection at the street center lines be less than 75°. Streets designed with intersections between 90° and 75° shall be subject to approval by the Township.

B. Intersections involving the junction of more than two streets shall be prohibited.

C. Two streets intersecting a third street from opposite sides shall either intersect with a common center line or their center lines shall be offset according to the following standards:

(1) The two streets shall be separated by a distance of 150 feet between center lines measured along the center line of the street being intersected when all three streets involved are local streets.

(2) The two streets shall be separated by a distance of 400 feet between center lines measured along the center line of the street being intersected when one or more of the streets involved is a collector street.

(3) The two streets shall be separated by a distance of 1,000 feet between center lines measured along the center line of the street being intersected when one or more of the streets is an arterial street.

D. Street intersection pavement shall be rounded by a tangential arc with a minimum radius of:

(1) Thirty-four feet for intersections involving only local streets.

(2) Thirty-seven feet for all intersections involving a collector street.

(3) Forty feet for all intersections involving an arterial street.

E. Street right-of-way lines, whenever possible, shall be parallel to (concentric with) pavement radii at intersections.

(1) Street right-of-way lines at intersections shall be rounded by a tangential arc with a minimum radius of 25 feet.

F. Sight distances at intersections (clear sight triangles) shall be established in accordance with the regulations within Chapter 27, Zoning.

G. Wherever a portion of the line of the clear sight triangles occurs within the proposed building setback line, such portion shall be shown on the final plan of the subdivision, and shall be considered a building setback line. Signs and landscaping which would obscure vision shall not be placed within the clear sight triangle area.

H. The record plan shall contain a note stating that nothing shall be erected, placed or planted within a clear sight triangle that will impede vision between a height of two feet to 10 feet above the center line grades of the intersecting streets.

7. Culs-De-Sac, Dead-End Streets and Stub Streets.

A. Dead-end streets are prohibited except those meeting the standards of Subsection 7B.

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B. Stub streets may be constructed for future access to an adjoining property or a subsequent section of the development. Stub streets shall be built to the standards of Subsection 2A. The length of stub streets shall not exceed the depth of one lot. No more than one lot shall front on each side of the stub street. These lots shall also have full frontage along another public street.

C. Culs-de-sac (temporary and permanent), loop roads, and other street networks which have a single point of access to the surrounding road network shall not serve more than 25 dwelling units and shall have a minimum length of 300 feet and shall not exceed a total length of more than 600 feet as measured from the center line of the intersection at the single point of access to the farthest point served.

D. All cul-de-sac streets and stub streets greater than 200 feet in length, whether permanently or temporarily designed as such, shall be provided at the closed end with a fully paved turnaround. The turnaround may be concentric or offset to the left, but turnarounds offset to the right shall be prohibited.

(1) The minimum radius to the pavement edge or curbline shall be 50 feet, and the minimum radius of the right-of-way line shall be 60 feet.

(2) The maximum radius to the pavement edge or curbline shall be 55 feet and the maximum radius of the right-of-way line shall be 65 feet.

(3) The radius of the right-of-way line return between the bulb and stem of culs-de-sac shall be a minimum of 150 feet. The curbline or pavement edge radius shall be a minimum of 160 feet.

E. Islands, whether containing plantings or not, shall be prohibited within the bulb of the cul-de-sac.

F. The grade of the cul-de-sac bulb shall not exceed 5% as measured from the center of the cul-de-sac bulb to any perimeter point of the bulb. The minimum cross slope shall be 2%.

G. There shall be a minimum center line grade on all cul-de-sac streets of 2%.

H. All cul-de-sac streets intended for dedication to the Township shall be provided with an easement at the end of the bulb and designated for snow-plowing use. The easement beginning at the edge of cartway shall have a minimum width of 30 feet (measured 15 feet on either side of the street center line extended). The easement shall extend radially from the edge of pavement to a depth of 30 feet. The record plan shall contain a note stating that no driveways, landscaping, mailboxes or other structures shall be placed within the limits of this easement.

I. Temporary culs-de-sac may be permitted to allow connection to an adjoining property or a subsequent section. Temporary culs-de-sac shall meet the following standards:

(1) The lots along the bulb of the cul-de-sac shall meet the lot width and lot size requirements of Chapter 27, Zoning, after the bulb has been removed and the road has been extended.

(2) The temporary cul-de-sac shall extend to the edge of the adjoining property to which future access is to be provided.

8. Street Names.

A. Proposed streets which are in alignment with others already existing and named shall bear the names of existing streets.

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B. In no case shall the name of a proposed street duplicate an existing street name in the municipality and in the postal district, irrespective of the use of a suffix such as street, road, avenue, boulevard, driveway, place, court, lane, etc.

C. All street names shall be subject to the approval of the Township Supervisors and local post office. The developer shall be responsible for the submission of proposed street names to the local post office for their approval. A copy of the local post office's approval of the proposed names shall be provided to the Township prior to recording of the plan.

9. Curb and Sidewalks.

A. Curbing.

(1) In all subdivisions or land developments where public streets or private streets are proposed, curbing shall be required. Curbing shall be provided on both sides of all streets and shall be required for all parking lot access drives and nonresidential driveways.

(2) Curbing is also required to delineate the limits of all off-street parking facilities for multifamily residential developments and all commercial, industrial and institutional developments.

(3) Curbing shall be constructed per the standards in Appendix F.[25]

B. Sidewalks.

(1) Sidewalks shall be located within the street right-of-way, no closer than one foot from the right-of-way line, and shall be a minimum of 4 1/2 feet wide, except along collector and arterial streets, and adjacent to shopping centers, schools, recreation areas, and other community facilities, where they shall be a minimum of five feet wide. Sidewalks shall be installed along both sides of all streets within the development and along the frontage of all existing streets.

(2) Concrete sidewalk ramps shall be installed at all intersections and crosswalks and shall conform to the current accessibility requirements.

(3) Generally, a grass planting strip a minimum of four feet in width should be provided between curb and sidewalk.

(4) Sidewalk shall be constructed per the standards in Appendix F.[26]

§ 22A-706. Sanitary Sewer Disposal Standards. [Ord. 174, 12/20/2017]

Each proposed building lot or proposed land development shall be provided with sanitary sewage disposal in accordance with the following requirements:

1. Public Sanitary Sewage Systems.

A. Existing Public Sanitary Sewage Systems.

(1) Each subdivision, not a minor subdivision, any portion of which is within 1,000 feet of an existing public sanitary sewage system, shall be connected by the developer to such

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25. Editor's Note: Appendix F is included as an attachment to this chapter.

26. Editor's Note: Appendix F is included as an attachment to this chapter.

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system, unless such connection is not technically feasible, or the subdivision is located in an area not designated for public sanitary sewer service in the Township's Sewage Facility Plan.

(2) Any such connection shall be in accordance with the provisions of the controlling Sewer Authority, and the sanitary sewer disposal regulations of the Pennsylvania Department of Environmental Protection.

(3) In the event a public sewer connection is not required under Subsection 1A(1), each proposed building lot shall instead be provided with an on-lot sewage disposal system in accordance with Subsection 2 of this section.

B. Proposed Public Sanitary Sewage Systems.

(1) Each proposed subdivision, not a minor subdivision, or proposed land development any portion of which is within 1,000 feet of:

(a) Any proposed public sanitary sewage system for which the controlling sewer authority has indicated in writing to the developer its intention to extend any portion thereof to within 1,000 feet of any lot or portion thereof within five years;

(b) Any portion of any proposed public sanitary sewage system in the Upper Nazareth Township Sewage Facility Plan; or

(c) Any portion of any other public sanitary sewage system proposed by the Upper Nazareth Township Board of Supervisors to be constructed within five years;

(2) Shall, unless ultimate connection to the proposed public sanitary sewage system would be technically unfeasible, be connected to a "dry" sanitary sewage system, including lateral connectors as will be necessary to provide service to each lot, suitably capped until connection to the public sanitary sewage system can be made.

(3) Any such connection shall be in accordance with the standards of:

(a) The Subdivision Improvements Agreement (see Part 9 of this chapter).

(b) Section 22A-403, Subsection 5I,of this chapter.

(c) The sanitary sewage disposal regulations of the Pennsylvania Department of Environmental Protection.

(4) In the event a "dry" sewer connection is required under Subsection 1B(2), each proposed building lot shall, until ultimate public sewer connection, be provided with an on-lot sewage disposal system in accordance with Subsection 2 of this section.

2. On-Lot Sewage Disposal Systems.

A. An on-lot sewage disposal system shall be provided for each lot that:

(1) Is not required to be connected to an existing public sanitary sewage system under Subsection 1A(1)or to a proposed sanitary sewage system under Subsection 1B(2).

(2) Will be connected to a "dry capped" sanitary sewage system under Subsection 1B(2), but only until connection to the public sanitary sewage system can be made.

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B. Any such on-site sewage disposal system shall be in accordance with the standards of:

(1) The Subdivision Improvements Agreement (see Part 9 of this chapter).

(2) Section 22A-403, Subsection 5I, of this chapter.

(3) The sanitary sewage disposal regulations of the Pennsylvania Department of Environmental Protection.

C. Certification of a percolation test for each proposed building lot, satisfying the requirements of the Pennsylvania Department of Environmental Protection for the on-lot sewage disposal system, shall be submitted as part of the preliminary plan. (See also § 22A-403, Subsection 5I.)

D. Each preliminary and final plan shall include an annotation expressly imposing a covenant running with the land, respecting each proposed building lot for which an on-lot sewage disposal system is proposed, stating that:

(1) Upper Nazareth Township makes no warranty or representation that on-lot sewage disposal will be available for such lots.

(2) No construction upon the property or occupancy of the property shall be permitted until sewage disposal facilities complying with Subsection 1 or 2 of this section and Chapter 18, Part 4, On-Lot Sewage Disposal, as amended, are provided to such lots.

§ 22A-707. Water Supply Systems. [Ord. 174, 12/20/2017]

Each proposed building lot or proposed land development shall be provided with water supply in accordance with the following requirements:

1. Public Water Supply Systems.

A. Each subdivision, not a minor subdivision, any portion of which is within 1,000 feet of an existing public water supply system, shall be connected by the developer to such system.

B. Any such connection shall be in accordance with the provisions of:

(1) Applicable conditions of the governing water authority or other governing authority;

(2) Section 22A-403, Subsection 5H,of this chapter;

(3) The water quality regulations of the Pennsylvania Department of Environmental Protection.

C. In the event a public water supply connection is not required under Subsection 1B of this chapter, each proposed building lot shall instead by provided with an on-lot water supply system in accordance with Subsection 2 of this section.

D. Fire hydrants with water supply for fire protection, within 300 feet of all structures and on the same side of the road if a collector or arterial road, shall be provided in all subdivisions and land developments connected to a public water supply system. The connecting threads used on the hydrants shall be compatible with the equipment of the Upper Nazareth Fire Department.

E. All development plans proposing an extension of the public water system shall submit plans to the Upper Nazareth Township Fire Department for their review and comment.

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F. All proposed building lots for all multifamily residential, commercial and industrial uses shall be provided, by the developer, with an adequate public water supply.

2. On-Lot Water Supply Systems (Wells).

A. An on-lot water supply system (well) shall be provided only for each lot that cannot feasibly be connected to an existing public water supply system under Subsection 1A.

B. Any such on-site water supply system shall be in accordance with the standards of:

(1) The Subdivision Improvements Agreement (see Part 9 of this chapter);

(2) Section 22A-403, Subsection 5H, of this chapter; and

(3) Any water quality regulations of the Pennsylvania Department of Environmental Protection.

C. Each preliminary and final plan shall include an annotation expressly imposing a covenant running with the land, respecting each proposed building lot for which an on-lot water supply system is proposed, stating that:

(1) Upper Nazareth Township makes no warranty or representation that on-lot water supply will be available for such lots; and

(2) Occupancy of the property shall not be permitted until water supply facilities complying with Subsection 2 of this section are provided to such lots.

§ 22A-708. Storm Drainage Systems. [Ord. 174, 12/20/2017]

1. Storm drainage systems shall be provided in order to:

A. Permit unimpeded flow of natural watercourses, except as may be modified by stormwater detention pond requirements in Subsection 4 of this section or open channels pursuant to Subsection 2G.

B. Ensure adequate drainage of all low points along the line of streets.

C. Intercept stormwater runoff along streets at intervals related to the extent and grade of the area drained.

D. Provide positive drainage away from on-site sewage disposal systems.

E. Take surface water from the bottom of vertical grades, to lead water from springs and to avoid excessive use of cross gutters at street intersections and elsewhere.

F. Prevent overloading of downstream drainage systems, closed depressions, and watercourses as a result of increased rate of runoff caused by the proposed development.

G. Ensure that the extent of ponded water is not increased within downstream closed depressions as a result of additional runoff volume.

H. Accommodate, receive and convey all runoff from adjacent upstream properties.

2. General Requirements.

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A. A site drainage plan for the proposed subdivision or land development tract shall be prepared which illustrates the following information:

(1) Mapping of the watershed area or areas in which the proposed subdivision or land development is located.

(2) Calculations of runoff for all points of runoff concentration.

(3) Complete drainage systems for the subdivision or land development. All existing drainage features which are to be incorporated in the design shall be so identified. If the subdivision or land development is to be developed in stages, a general drainage plan for the entire subdivision shall be presented with the first stage and appropriate development stages for the drainage system shall be indicated.

(4) Sufficient mapping of existing off-site drainage features located downstream from the proposed subdivision or land development points of runoff discharge. Mapping features shall include closed depressions, streams, watercourses and storm sewer systems on the downstream properties.

B. The existing points of natural drainage discharge and the mode of drainage conduct onto adjacent property shall not be altered, unless:

(1) Written consent of affected landowner is obtained by the applicant; or

(2) The applicant demonstrates that no damage to any adjacent landowner or infringement of the public safety for conditions up to and including a one-hundred-year storm event will result.

C. No stormwater runoff or natural drainage shall be so diverted as to overload existing drainage systems, or create flooding or the need for additional drainage structures on other private properties or public lands, without safe and adequate provisions being made by the developer for properly handling such conditions, and the applicant obtaining the written consent of the downstream landowners.

D. Where a subdivision is traversed by watercourses other than permanent streams, there shall be provided on the subdivision plan, a drainage easement conforming substantially with the line of such watercourse which shall be offered to the Township for dedication. The width of the easement shall be adequate to provide for unimpeded flow of storm runoff based on calculations made in conformance with Subsection 3 and to provide a freeboard allowance of 0.5 foot above the design water surface level.

E. Drainage structures that are located on state highway rights-of-way shall be approved by the Pennsylvania Department of Transportation and a letter from that office indicating such approval shall be obtained prior to final plan approval.

F. All streets shall be so designed as to provide for the discharge of surface water from their rights-of-way.

G. When natural drainage swales on the site cannot adequately provide for drainage, open channels may be constructed conforming substantially to the line and grade of such natural drainage swales. Capacities shall be calculated using the Manning equation as explained in Appendix A.[27]

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H. Storm drainage facilities and appurtenances shall be so designed and provided as to minimize erosion in watercourse channels and at all points of discharge as per the requirements of the Pennsylvania Department of Environmental Protection and the Northampton County Conservation District.

I. Stormwater management plans and calculations for any development located within an Act 167 watershed shall be submitted to the Lehigh Valley Planning Commission for their review and comment.

J. A subdivision or land development proposing alterations or relocations of existing watercourses may be required to obtain permit approval from the Pennsylvania Department of Environmental Protection in accordance with their current applicable rules and regulations.

3. Calculation of Storm Runoff and Design Storm Frequency.

A. Storm drainage systems required by this chapter shall be designed to provide protection from a two- to one-hundred-year storm as determined by the Township. If the site of the subdivision or land development is within a watershed with an approved Stormwater Management Plan enacted pursuant to Act 167, the criteria in the applicable plan shall be used.

(1) A twenty-five-year design storm is appropriate where a storm in excess of the design storm will cause major inconvenience to people and traffic in high-use areas such as business districts and along local collector or arterial roads.

(2) A one-hundred-year design storm is appropriate where a storm in excess of the design storm will cause damage to existing or future structures or their contents.

(3) The design or analysis of all major natural or man-made overland drainage systems shall have adequate capacity for the twenty-five to one-hundred-year return storm, and shall further consider the two-year storm event for velocity. Permissible velocities are as indicated in NRCS criteria.

B. Stormwater runoff from watersheds of 200 or less acres shall be calculated by the Rational Method as described in Manual Number 37 of the American Society of Civil Engineers, except as the watershed size criteria may be modified by an approved Act 167 Stormwater Management Plan. The Rational Method of runoff calculation is explained in Appendix A.[28]

C. Stormwater runoff from watersheds of more than 200 acres shall be calculated using the Soil-Cover-Complex Method developed by the Natural Resources Conservation Service or other appropriate method acceptable to the Township Engineer.

D. The design of any detention facility shall be verified by routing the proposed post-development hydrograph through the basin using a storage-indication technique.

E. The Manning equation explained in Appendix A shall be used in calculating capacities of watercourses and storm sewers, except culverts which shall be designed using methods acceptable to the Township Engineer.

F. Complete detailed drainage calculations and applicable charts and nomographs certified by the design engineer shall be submitted to the Township Engineer.

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27. Editor's Note: Appendix A is included as an attachment to this chapter.

28. Editor's Note: Appendix A is included as an attachment to this chapter.

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4. Stormwater Detention/Retention/Infiltration.

A. Stormwater shall be governed by the following provisions:

(1) Post-development rates of runoff for the two- through one-hundred-year storm events shall not exceed predevelopment rates.

(2) Within watersheds for which there is an approved Act 167 Stormwater Management Plan, the detention facilities shall at minimum be designed to discharge post-development peak runoff rates consistent with the Plan criteria.

(3) Within watersheds for which there is not an approved Act 167 Stormwater Management Plan, the detention facilities shall be designed to provide that the peak rate of runoff at all points of discharge from the site, when developed, will not exceed the peak rate of runoff at each of those points prior to development.

B. Where detention facilities are included as part of the storm drainage system, the following provisions will apply:

(1) Detention ponds shall be designed so that they return to normal conditions within approximately 24 hours after the termination of the storm, unless the Township Engineer finds that downstream conditions may warrant other design criteria for stormwater release;

(2) The developer shall demonstrate that such ponds are designed, protected and located to assure that public safety is maximized and health problems are prevented. The following minimum criteria shall apply:

(a) Top berm width shall be a minimum of six feet;

(b) On all ponds having a maximum depth of four feet, the side slopes shall be four horizontal to one vertical or flatter. On all ponds having a maximum total depth greater than four feet, the side slopes shall be five horizontal to one vertical or flatter.

(c) All ponds shall incorporate an impervious clay liner having a minimum depth of one foot or an impermeable geosynthetic liner. The design analysis of the required pond liner shall be incorporated into the required geologic/Karst features report.

(d) Ponds shall be designed with a minimum freeboard of one foot above the maximum water elevation.

(e) All ponds shall be designed with a minimum bottom slope of 1%.

(f) In all detention ponds having surface discharge, the outfall end section and outside toe of berm shall be located a minimum of 20 feet from the adjoining downstream property line.

(3) The developer shall verify that the operation of the detention facilities will not aggravate potential downstream peaking conditions;

(4) Emergency overflow facilities shall be provided for detention facilities to handle runoff in excess of design flows;

(5) A drainage easement, described by bearings and distances, shall be provided around all detention basins. The easement shall encompass the limits of the pond berm and the one-

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hundred-year water surface elevation plus the basin outflow to the point of off-site discharge.

(6) Since the detention pond will remain in common ownership, the developer shall provide an annotation on the record plan imposing a covenant running with the land requiring perpetual maintenance and repair of the detention pond and all appurtenances, by the respective lot owner(s). The covenant shall also state that no structures, fences, trees or other landscaping materials (other than grass) shall be placed or planted within the detention pond.

C. Where stormwater retention facilities are included as part of the drainage system, the following provisions will apply:

(1) Surface retention ponds shall comply with the following minimum standards:

(a) Ponds shall incorporate an impervious clay or geosynthetic liner. The clay liner shall have a minimum thickness of one foot. The design analysis of the liner shall be incorporated into the required geologic/Karst features report.

(b) Retention ponds designed to hold water at depths of one foot or greater shall be surrounded by a fence with a four-foot minimum height. The fence shall extend around the entire perimeter of the berm and above the maximum design water surface elevation. Fence shall be constructed of vinyl-clad chain link or pressure-treated post and rail with vinyl-clad chain link attached.

(c) All retention ponds shall have side slopes of four horizontal to one vertical or flatter.

(d) Ponds shall be designed with a minimum freeboard of one foot above the maximum water elevation.

(e) The top of berm shall have a minimum width of six feet.

(f) A planting design of native aquatic vegetation shall be provided.

(g) Aeration devices shall be provided for all retention ponds as a means for controlling insects and algae growth. Design of the aeration system shall be included in the stormwater management report.

(2) Subsurface retention facilities shall comply with the following minimum requirements:

(a) Subsurface facilities shall be provided with a sufficient number of access manholes for maintenance and inspection purposes.

(b) Retention facilities located under parking, loading or driveway areas shall include a structural analysis to confirm their design capability under maximum load conditions.

(c) Underground retention facilities shall not be permitted within public street rights-of-way or other lands intended for dedication to the Township.

(3) A drainage easement, described by bearings and distances, shall be provided around the surface or subsurface retention facilities. The easement shall encompass the entire limits of the facility, plus the basin outflow to the point of off-site discharge.

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(4) Since retention facilities will not be accepted for dedication by the Township, the developer shall provide covenants on the Record Plan requiring perpetual maintenance and repair of these facilities and all appurtenances, by the respective lot owner(s), in perpetuity. The covenant shall also state that no structures or trees shall be placed or planted within the easement limits of these facilities.

D. Where stormwater infiltration facilities are included as part of the drainage system, the following provisions shall apply:

(1) Surface infiltration ponds, which are designed with a stormwater detention component, shall comply with the following minimum standards in Subsection 4B(2), except for the following:

(a) Basins can be designed with bottom slopes of less than 1%.

(b) Infiltration basins are exempt from the impervious liner requirements.

(2) Subsurface infiltration facilities shall comply with the following minimum requirements:

(a) Subsurface facilities shall be provided with a sufficient number of access manholes for maintenance and inspection purposes.

(b) Infiltration facilities located under parking, loading or driveway areas shall include a structural analysis to confirm their design capability under maximum load conditions.

(c) Underground infiltration facilities shall not be permitted within public street rights-of-way or other lands intended for dedication to the Township.

(3) A drainage easement, described by bearings and distances, shall be provided around the surface or subsurface infiltration facilities. The easement shall encompass the entire limits of the facility, plus the basin outflow to the point of off-site discharge, where applicable.

(4) Since infiltration facilities will not be accepted for dedication by the Township, the developer shall provide covenants on the record plan requiring perpetual maintenance and repair of these facilities and all appurtenances, by the respective lot owner(s), in perpetuity. The covenant shall also state that no structures or trees shall be placed or planted within the easement limits of these facilities.

(5) The adequacy and location of any areas intended for infiltration shall be evaluated and recommended as part of the required Karst features study.

(6) Infiltration testing shall be conducted in accordance with all applicable local, state or federal guidelines.

5. Stormwater Collection and Conveyance Systems.

A. Inlets. The placement of inlets shall be governed by the following design criteria:

(1) Inlets shall be placed at points of abrupt changes in the horizontal or vertical directions of storm sewer pipes and drainage swales and on both sides of a street at all designed low points.

(2) On streets with center line grades of 2% or less, inlets shall be spaced at a maximum

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distance of 300 feet apart. On streets with center line grades greater than 2%, inlet spacing shall not exceed 500 feet.

(3) Inlets shall be depressed two inches below the grade of the gutter or ground surface, and shall be provided with bicycle-safe grates.

(4) Capacity calculations shall be provided for all inlets. The calculations shall account for all bypass surface runoff from upstream inlets, where applicable.

(5) Storm sewer manholes may be substituted for inlets at locations where inlets are not required to handle surface runoff.

(6) Inlets shall be placed at street intersections to limit the cross-gutter flow from upstream areas.

(7) Storm inlets shall be provided behind the curbline to capture concentrated upstream surface runoff directed toward the street.

B. Roadside Drainage Swales. The construction of roadside drainage swales shall be in accordance with the following requirements:

(1) On all noncurbed streets, drainage swales will required along both sides of the street.

(2) On all local collector and arterial streets, the roadside swales shall be designed to convey the runoff from a twenty-five-year storm event.

(3) As a minimum, the depth of all roadside swales shall be six inches. The swales shall be designed to convey the runoff from the required storm event within the street right-of-way.

(4) Any proposed road or driveway crossing a drainage swale shall be designed with a profile matching the cross section of the swale.

C. Storm Sewer Pipe. The design of storm sewer pipe systems shall be in accordance with the following requirements:

(1) All storm sewer lines shall be designed with a minimum 0.005 feet per foot (0.50%) slope. The minimum diameter of storm sewer pipe shall be 15 inches.

(2) Storm sewer lines within street rights-of-way shall be parallel to the center line as far as practical. A sufficient number of structures (inlets or manholes) shall be provided to eliminate unnecessary crossings of other utility lines and passage beneath curbs.

(3) Storm sewer shall be designed on the basis of inlet or outlet control, as applicable, unless a more detailed backwater analysis is deemed necessary by the Township Engineer.

(4) No storm sewer headwalls or endwalls shall be constructed within any street right-of-way.

(5) Safety grating shall be installed across the openings of all storm sewer pipe inlet headwalls.

(6) Underdrain pipe systems shall be required in all streets per the details in Section 1200[29] of this chapter.

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29. Editor's Note: See Section 1200 of Appendix F; said appendix is included as an attachment to this chapter.

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(7) All storm sewer within street cartway areas shall be reinforced concrete pipe, Class III or better, with O-ring gasket joints. Storm sewer located outside street cartway areas shall be either reinforced concrete pipe, Class III or better, with O-ring gasket joints or high-density polyethylene pipe, smooth interior, with watertight couplings.

(8) When there is a change in pipe size within a storm sewer structure, the elevation for the top of pipes shall be the same, or the top elevation of the inflow pipe(s) can be set higher as necessary.

(9) All storm sewer lines shall be televised after installation. Televising event shall be recorded on a medium acceptable to the Township. Recording shall be labeled and presented to the Township along with documentation clearly identifying location of said lines. All work shall be per Township specifications.

D. Curbed Street Drainage. On streets constructed with curbing, the surface runoff collection system shall be in accordance with the following requirements:

(1) On local streets, the inlet spacing and gutter capacities shall be designed to convey the runoff from a twenty-five-year storm event.

(2) On collector and arterial streets, the inlet spacing and gutter capacities shall be designed to convey the runoff from a fifty-year storm event.

(3) The maximum encroachment of water on the roadway pavement shall not exceed 1/2 of a traffic lane during the design year storm event.

§ 22A-709. Underground Utilities, Easements and Street Lighting. [Ord. 174, 12/20/2017]

1. Electric Utility Easement Lines. In accordance with a Pennsylvania Public Utility Commission order of July 8, 1970, all electric utility distribution lines shall be installed underground in subdivisions or land developments of five or more dwelling units. In addition, the following design standards shall be observed:

A. Telephone and cable TV utilities shall also be installed underground.

B. Underground electric and communication utility lines shall be installed within the same utility trench.

C. All utility lines servicing commercial and industrial developments shall be installed underground.

2. Utility Easements.

A. Utility easements shall be provided for wire, conduits, sanitary and storm sewers, gas and water mains and/or other utility lines intended to service the abutting lots. No structures shall be placed within such easements, except structures associated with the utilities.

B. Utility easements shall be located at all of the following:

(1) Abutting the street right-of-way. In this case, a minimum easement width of 10 feet shall be required.

(2) Along Rear or Side Lot Lines. In this case, a minimum easement width of 20 feet, 10 feet on each side of the lot line, shall be provided. Where the lot line coincides with the

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subdivision or land development boundary, a minimum easement width of 10 feet is required.

3. Petroleum Transmission Lines.

   A. No company intending to install any petroleum, petroleum products or natural gas transmission lines shall be allowed to construct the line on less than a fifty-foot right-of-way, such line to be installed in the center of the right-of-way, and shall comply with the applicable standards imposed by state and federal laws and regulations.

   B. There shall be a minimum distance of 25 feet between any proposed dwelling unit and any petroleum, petroleum products or natural gas transmission right-of-way line which traverses the subdivision, but in no event less than 50 feet from any petroleum or natural gas transmission line.

4. Cable Systems.

   A. Notification to Cable Operators. In extending lines to new subdivisions and/or land developments with the Township, each cable operator shall accept from the developer only those easements which provide nonexclusive rights to operate a cable system within such subdivision and/or land development. No such easement shall prevent any other cable operator authorized to operate within the Township, then or in the future, from using such easement to extend other and further lines to such subdivision and/or land development. In each new subdivision and each new land development, the developer shall, upon notifying public utilities of the opportunity to serve such subdivision or land development, also notify all cable operators licensed to operate a cable system in the Township, of the opportunity to install cable facilities to cable operator's cable system.

   B. Changes Required by Public Improvements. The cable operator shall, upon reasonable notice, and at its reasonable expense, temporary disconnect, relocate and remove from the street or other public place any of its property when required by the Township by reason of traffic conditions, public safety, street vacation, street construction, installation of sewers, drains, water pipes, or any other type of structure or improvements by public agencies.

   C. Requests for Removal or Change. The cable operator shall, on the request of any person holding a building moving permit, temporarily raise or lower its wires to permit the moving of said building. The expense of such temporary removal, raising or lowering of wires shall be paid by the person requesting the same, and the cable operator shall have the authority to require such payment in advance. The cable operator shall be given not less than 15 days' advance written notice of any move contemplated to arrange for temporary wire changes.

5. Easement Maintenance. All surface and subsurface easements required by this chapter or shown on the record plan shall be kept clear of any and all structures and obstructions including, but not limited to, buildings, trees, shrubs, driveways and berms. On surface drainage swale easements, fences shall not be constructed within the limits of the one-hundred-year stormwater surface elevation. Grades, once established on the approved plan, shall not be altered without approval by the Board of Supervisors. A covenant shall be added to the Record Plan which contains the above maintenance note. Please refer to § 22A-504, Subsection 3K(1)(j),for additional requirements for individual lot grading plans.

6. Street Lights. All residential developments shall incorporate a lighting design for internal streets, intersections and common areas. The proposed lighting shall be designed in accordance with the

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following standards:

A. As part of the preliminary plan process, a streetlighting design shall be prepared and submitted to the Township.

B. Design and installation of the streetlights and power supplies shall be in accordance with all current and applicable utility company standards.

C. All poles shall be black straight-fluted fiberglass or cast aluminum having a twelve-foot height above finished grade. The specifications and shop drawings shall be submitted as a final plan requirement and shall be subject to approval by the Township.

D. Light fixtures shall be a four-sided colonial-style LED lamps with a minimum 1,000 lumens with a 4000K color temperature. Lamps shall comply with Dark Sky requirements.

E. Pole locating shall be incorporated in the required lighting and landscaping plan. The plans shall include iso-footcandle distribution patterns for each light.

F. All lights shall be services via underground power sources. Underground wiring shall be placed within nonmetallic conduit conforming to current Utility Supplier and National Electric Code (NEC) standards. Warning tape shall be placed within the entire trench at a depth of 18 inches.

G. The lighting plans shall include the design specifications necessary for the applicable utility company to determine available sources for the streetlight feeds.

H. The applicant shall provide the Township with documentation from the applicable utility company indicating their acceptance of the proposed streetlighting design.

I. As part of the final plan approval, the installation of streetlights shall be included in the developers improvements agreement. This agreement shall specify the responsibilities, in detail, for payment, installation and maintenance of the streetlighting systems. All current and applicable utility supplier-standards shall be incorporated into this agreement. A covenant, reflecting these responsibilities, shall be added to the record plan.

§ 22A-710. Site Lighting Requirements and Standards. [Ord. 174, 12/20/2017]

All developments shall include a detailed lighting design plan that will provide for and control of outdoor lighting where public health, safety and welfare are potential concerns. The lighting shall be designed to limit glare from nonvehicular light sources, protect neighbors, the environment and the night sky from nuisance glare and light trespass and to promote energy-efficient lighting design and operation.

1. All subdivisions and land developments proposing exterior lighting shall submit a detailed lighting plan conforming to the requirements within this section. The lighting design shall be submitted as part of the preliminary plan process. Residential streetlighting shall be designed in accordance with § 22A-709, Subsection 6, of this chapter.

2. Illumination Levels. Lighting, where required by this chapter, or otherwise required or allowed by the municipality, shall have illuminances, uniformities and glare control in accordance with the latest edition of the IES Lighting Handbook or current recommended practices of the Illuminating Engineering Society of North America (IES).

3. Luminaire Design.

   A. Luminaires shall be of a type and design appropriate to the lighting application and shall be

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decorative and aesthetically acceptable to the Township.

B. For the lighting of surfaces such as, but not limited to, parking areas, roadways, vehicular and pedestrian passage areas, storage areas, automotive sales areas, loading docks, active and passive recreational areas, building entrances, sidewalks, luminaires shall be aimed straight down, have no uplight and shall meet IESNA full-cutoff/fully shielded criteria. All lighting proposed shall be certified Dark Sky-compliant. In the case of decorative streetlighting luminaires, the municipality may approve the use of luminaires with an uplight component not exceeding 1%.

C. For the lighting of predominantly nonhorizontal surfaces such as, but not limited to, facades, landscaping, signs, billboards, fountains, displays and statuary, when such lighting is specifically approved by the municipality, it shall be shielded and shall be installed and aimed so as to not project light output into the windows of neighboring residences, adjacent uses, past the object being illuminated, skyward or onto a public roadway.

D. Lamps shall be LED light sources with a correlated color temperature that does not exceed 4000K.

4. Lighting Control.

A. All lighting shall be aimed, located, designed, fitted and maintained so as not to present a hazard to drivers or pedestrians by impairing their ability to safely traverse and so as not to create a nuisance by projecting or reflecting objectionable light onto a neighboring use or property.

B. Directional fixtures, e.g., floodlights and spotlights, shall be shielded around the light source, installed and aimed to prevent exposed light source from being directly visible from abutting streets or lots.

C. The illumination projected from any property onto a residential use shall not exceed 0.1 initial footcandle, measured line-of-sight from any point on the receiving property.

D. The illumination projected from any property to a nonresidential use at no time shall exceed 0.1 initial footcandle, measured line-of-sight from any point on the receiving property.

E. Externally illuminated billboards and signs shall be lighted by fixtures mounted at the top of the billboard or sign and aimed downward. The fixtures shall be designed, shielded and aimed to shield the source from off-site view and to restrict the light output onto and not beyond the sign or billboard. At no point on the face of the sign or billboard shall the illumination exceed 30 initial vertical footcandles.

F. The United States and the state flag shall be permitted to be illuminated from dusk till dawn. All other flags shall not be illuminated past 11:00 p.m. The light source shall have a beam spread no greater than necessary to illuminate the flag and shall be fully shielded.

G. Under-canopy lighting, for such applications as gas/service stations, hotel/theater marquees, and commercial drive-ups, shall be accomplished using flat-lens full-cutoff fixtures aimed straight down and shielded. The illumination in the area directly below the canopy shall not exceed 20 average footcandles and the maximum shall not exceed 30 footcandles.

H. The use of white strobe lighting for tall structures such as smokestacks, chimneys and radio/communications/television towers is prohibited during hours of darkness, except as specifically required by FAA.

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5. Installation.

A. Electrical feeds for lighting poles shall be run underground, bedded and encased in accordance with current National Electric Code (NEC) standards. Warning tape shall be placed within the entire trench length at a depth of 18 inches.

B. Poles supporting luminaires located within parking areas or directly behind parking spaces, or where they could be hit by snow plows or wide-swinging vehicles, shall be suitably protected by being placed a minimum of five feet outside paved area or tire stops, or placed on concrete foundations at least 30 inches high above the pavement.

C. Except for streetlighting and public recreational lighting covered elsewhere in this chapter, fixtures shall be mounted at a maximum height of 25 feet above finished grade.

D. Pole-mounted fixtures for the illumination of horizontal tasks shall be aimed straight down and poles shall be plumb.

E. Pole foundations shall be designed consistent with manufacturer's wind load requirements and local soil conditions involved and shall be approved by a qualified civil/structural engineer and meet all applicable building code requirements.

F. Any employed shielding elements shall be permanently affixed to luminaire.

§ 22A-711. Environmental Protection. [Ord. 174, 12/20/2017]

1. Erosion and Sediment Control.

A. General Standards.

(1) No changes shall be made in the contour of the land; no grading, excavating, removal or destruction of the topsoil, trees or other vegetative cover of the land shall be commenced within a proposed subdivision or land development tract until such time that a plan for sedimentation control and minimizing erosion has been reviewed and found satisfactory by the Northampton County Soil and Water Conservation District and reviewed and approved by the Township, or there has been a determination by the Township, upon recommendation by the Northampton County Soil and Water Conservation District, that such plans are not necessary.

(2) Measures used to control erosion and reduce sedimentation shall meet the standards and specifications of the Pennsylvania Department of Environmental Protection Erosion and Sediment Pollution Control Program Manual, as amended. The Township Engineer, or other officials as designated, shall ensure compliance with the appropriate specifications, copies of which are available from the Northampton County Conservation District.

B. Performance Principles. The following measures are effective in minimizing erosion and sedimentation and shall be included where applicable in the control plan:

(1) Stripping of vegetation and grading shall be kept to a minimum.

(2) Development plans shall preserve significant natural features, keep cut-and-fill operations to a minimum, and ensure conformity with topography so as to create the least erosion potential and adequately handle the volume and velocity of surface water runoff.

(3) Whenever feasible, natural vegetation shall be retained, protected and supplemented.

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(4) The disturbed area and the duration of exposure shall be in accordance with the Pennsylvania Department of Environmental Protection Erosion and Sediment Pollution Control Program Manual.

(5) Disturbed soils shall be stabilized by permanent vegetation and/or by mechanical erosion control and drainage measures as soon as practicable in the development process.

(6) Temporary vegetation and/or mulching shall be used to protect exposed critical areas during development.

(7) Provisions shall be made to effectively accommodate the increased runoff caused by soil and surface conditions during and after development. Where necessary, the rate of surface water runoff will be mechanically retarded.

(8) Sediment in the runoff water shall be trapped until the disturbed area is stabilized by the use of debris basins, sediment basins, silt traps, or similar measures.

C. Grading for Drainage. In order to provide more suitable sites for building and other uses, improve surface drainage and control erosion, the following requirements shall be met:

(1) All lots, tracts or parcels within a proposed subdivision or land development shall provide proper drainage away from buildings and dispose of surface water without ponding, except where an alternative drainage system is approved. Natural drainage patterns shall be preserved wherever possible.

(2) Cut-and-fill slopes shall not be steeper than 3:1 unless stabilized by a retaining wall or cribbing.

(3) Adequate provisions shall be made to prevent surface water from damaging the cut face of excavations of the sloping surfaces of fills.

(4) Cut and fills shall not endanger adjoining property.

(5) Fill shall be placed and compacted so as to minimize sliding or erosion of the soil.

(6) All cuts and fills within one-hundred-year floodplain areas must be in accordance with the Township's Floodplain Ordinance. Fills placed adjacent to constructed channels shall have suitable protection against erosion during periods of flooding.

(7) Grading will not be done in such a way as to divert water onto the property of other landowners without the written consent of the landowners.

(8) During grading operations, necessary measures for dust control will be exercised.

(9) No equipment shall alter or damage the bed and banks of any stream, unless approved by the Pennsylvania Department of Environmental Protection. Equipment shall cross streams only at approved crossings utilizing culverts or bridges.

2. Natural Feature Preservation. The design and development of subdivisions and land developments shall be in harmony with the natural features of the site and shall respect the development limitations of the natural features. Subdivision and land development design shall be integrated with the natural terrain of the site, wooded areas, large trees, natural watercourses, rock outcroppings and scenic views.

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A. Areas with Development Limitations.

(1) The filling or development of wetlands and areas of hydric soils shall conform to the regulations of Chapter 27, Zoning, and shall not proceed until relevant United States Army Corps of Engineers and Pennsylvania Department of Environmental Protection permits have been granted.

B. Tree Preservation and Planting.

(1) Trees six inches or more in diameter (measured at a height of four feet above grade) shall not be removed unless they are located within the proposed cartway, driveway, or sidewalk portion of a street right-of-way, or within 25 feet of the foundation area of a new building. Areas in which trees are retained shall remain at original grade level and undisturbed wherever possible.

(2) All existing trees six inches or more in diameter (measured at a height of four feet above grade) shall be located and identified on the plan. The Township may waive this requirement in densely wooded areas and tree rows.

(3) In all subdivisions and land developments containing property line tree rows, a minimum ten-foot-wide easement shall be established along the lot lines having existing tree rows. A protective covenant shall be added to the plan stating that no trees shall be removed nor grades altered within these easements without approval by the Board of Supervisors.

(4) In subdivisions or land developments where street trees are proposed, they shall be planted outside of street right-of-way lines, with underground utilities being located a minimum of 10 feet from the trees.

(5) In particular, but not in limitation, approved trees for street planting include the following:

(a) Acer rubrum - Red maple.

(b) Acer saccharum - Sugar maple.

(c) Ulmus parvifolia - Lacebark elm.

(d) Fraxinus pennsylvanica lanceolata - Green ash.

(e) Gleditsia tricanthos inermis - Moraine locust.

(f) Ginkgo biloba - Ginkgo (male).

(g) Liquidambar styraciflua rotundiloba - Sweet gum (fruitless).

(h) Liriodendron tulipifera - Tulip tree.

(i) Phellodendron amurense - Amur cork tree.

(j) Quercus alba - White oak.

(k) Quercus borealis - Red oak.

(l) Quercus coccinea - Scarlet oak.

(m) Quercus phellos - Willow oak.

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(n) Tilia Linden - All species hardy to the area.

(o) Zelkova serrata - Japanese zelkova.

(p) Other tree species may be used subject to review and approval by the Township.

(6) For all land developments and for all subdivisions not a minor subdivision, a landscape plan shall be developed. The plan shall show the plant cover which exists, and on the same or separate sheet, that which will exist when the landscaping is completed.

C. Topsoil Protection.

(1) Topsoil shall be removed from the areas of construction and stored separately.

(2) The topsoil shall be stabilized to minimize erosion during storage. Upon completion of the construction, the topsoil must be uniformly redistributed on the site.

D. Stream Frontage Maintenance.

(1) An easement for maintenance purposes, a minimum of 20 feet in width, shall be provided along all stream banks.

(2) Any grading, excavation or other work within these easements shall be in accordance with the Township Floodplain Ordinance or Chapter 27, Zoning, as applicable.

3. Open Space and Recreation Areas. The establishment, maintenance and protection of open space and recreation shall be in accordance with the guidelines contained within "The Comprehensive Plan of Upper Nazareth Township and the Upper Nazareth Township Park, Recreation and Open Space Plan."

A. Recreation and Open Space Areas.

(1) Areas meeting the criteria for recreation lands as set forth in the definitions shall be offered for dedication to the Township, subject to the approval of the Board of Supervisors. The Board of Supervisors shall consider the offer relative to the following factors:

(a) The suitability of the size, shape and landform of the tract for appropriate recreational facilities.

(b) Accessibility.

(c) Conformity with the parks and recreation element of the Comprehensive Plan and Upper Nazareth Township Park, Recreation and Open Space Plan.

(d) Ability of nearby recreation facilities to serve the subdivision.

(e) The Board of Supervisors may accept or reject in whole or in part, any offer of dedicated land.

(2) Access to recreation areas dedicated to the Township pursuant to Subsection 3A(1) shall be as follows:

(a) At least one side of the recreation area shall front on a public street. Frontage on two or more public streets is preferred. The above requirements are not necessary if the area proposed for dedication adjoins lands currently utilized by the Township for

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recreation purposes.

(b) Additional access may be provided by rights-of-way connecting the recreation area with public streets.

(c) Rights-of-way providing access to a recreation area shall have a minimum width of 50 feet. Each right of-way shall be part of the dedicated recreation area and contain at least one, eight-foot-wide macadam path, constructed to Township standards, connecting the recreation area to the public street.

(3) Land Dedication for Single-Family Home Development:

Dwelling Units	Dedicated Land
1 to 10	None: pay fee/unit
11 to 20	2 acres
21 to 40	3 acres
41 to 60	4 acres
61 to 100	6 acres
101 to 150	9 acres
151 to 200	12 acres
201 to 250	15 acres

(4) Land Dedication for Multifamily Dwelling Development:

Dwelling Units	Dedicated Land
2	None: pay fee/unit
4 to 100	5,000 square feet + 2,000 square feet/unit
101 and up	5,000 square feet + 1,000 square feet/unit

(5) Developments designed within the open space development option per Chapter 27, Zoning, Part 3, § 27-311, may be exempt from dedicated land pending approval by the Board of Supervisors.

(6) The recreation fee in lieu of dedicated land shall be set yearly in the Fee Schedule.

4. Karst Hazards.

A. Purpose. The purpose of this section is to recognize the potential for damage to public and private improvements, human injury or death, and the disruption of vital public services which may arise by the potential for sinkholes and/or subsidence within areas of carbonate geology. A further purpose of this section is to minimize the potential for such sinkhole and/or subsidence occurrence and to protect the groundwater resource. Should the regulations of this and other applicable regulations conflict, the most stringent regulations shall apply.

B. Disclaimer of Liability. Whereas the exact occurrence of sinkholes and/or subsidence is not predictable, the administration of these regulations shall create no liability on behalf of the

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Township, the Township Engineer, Township employees, or Township agencies as to damages which may be associated with the formation of sinkholes or subsidence. That is, compliance with these regulations represents no warranty, finding, guarantee, or assurance that a sinkhole and/or subsidence will not occur on an approved property. The municipality, its agencies, consultants and employees assume no liability for any financial or other damages which may result from sinkhole activity.

C. Procedures.

(1) As part of the preliminary plan requirements for all subdivisions and land developments, the applicant shall engage a qualified professional to review the existing aerial photos, soils geological and related data available to him as it may pertain to the subject inspection of the property.

(2) A site inspection by the applicant's professional, using all available data and with such assistance as is needed, shall determine the presence or absence of Karst surface features of the site, and locate the same if present on a site plan at a scale no smaller than one inch equals 100 feet. In particular, the following features shall be located, if present, on the site:

(a) Closed depressions;

(b) Open sinkholes;

(c) Seasonal high water table indicators;

(d) Unplowed areas in plowed field;

(e) Surface drainage into ground;

(f) Quarries or borrow pits;

(g) Rock outcrops and other Karst features.

(3) The applicant must provide the Township with a map at a scale of one inch equals 100 feet that show the Karst features listed in Subsection 4C(2).

(4) Based upon the site inspection, the applicant's professional shall determine what further testing should be done by the applicant to ensure compliance with the performance standards set forth in Subsection 4D. Testing methodology shall be reasonable under the circumstances, including: the scale of the proposed development; and the hazard revealed by examination of available data and site inspection.

(5) The applicant shall cause the additional testing, if any, to be effected and shall submit test results to the Township Engineer.

(6) The Township Engineer shall report to the Planning Commission, with a copy to the applicant, his opinion concerning the adequacy of the report submitted based upon the scale of the development and the hazards revealed by the report, and shall make recommendations to the Planning Commission based upon the report submitted concerning site development, including stormwater management, the layout of utility lines, and building location. The Township Engineer may require the applicant to perform such additional testing as may be appropriate.

D. Performance Standards.

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(1) All applicants for subdivisions or land developments shall comply with the requirements of this chapter regarding Karst hazards.

(2) No stormwater detention facility shall be placed within 100 feet of the features listed in Subsection 4C(2), unless a detailed geotechnical solution to the subsidence, pollution and safety problems of the Karst feature has been presented by a competent professional in carbonate geology.

(3) No stormwater swale with design flows in excess of 10 cubic feet per second for the ten-year flood may be constructed within 100 feet of the features listed in Subsection 4C(2), unless a detailed geotechnical solution to the subsidence, pollution and safety problems of the Karst feature has been presented by a competent professional in carbonate geology.

(4) No storm sewer pipe shall be constructed within 100 feet of the features listed in Subsection 4C(2) unless it is concrete pipe utilizing O-ring joints.

(5) No principal or accessory building, no structure, and no impervious surface shall be located closer than 100 feet from the edge of the features listed in Subsection 4C(2), unless a detailed geotechnical solution of the subsidence, pollution and safety problems of the Karst feature has been presented by a competent professional in carbonate geology.

(6) No septic system or tile field, no swimming pool, no solid waste disposal area, transfer area or facility, no oil, gasoline, salt or chemical storage area, and no blasting for quarrying or well enhancement activities shall occur within 100 feet of the features listed in Subsection 4C(2), unless a detailed geotechnical solution to the subsidence, pollution and safety problems of the Karst feature has been presented by a competent professional in carbonate geology.

(7) Soil erosion and sedimentation control plans filed with the Northampton County Conservation District shall detail safeguards to protect identified Karst features.

(8) All storm sewer lines located in a Karst area shall be so constructed as to not permit the flow of water along the utility line trench, and shall be imperviously diked at thirty-foot intervals.

(9) When a proposed public water or sanitary sewer line is located in an identified Karst area, the applicant shall demonstrate to the Township that the appropriate utility authority has been notified of this fact and that the applicant will comply with the authority's recommendations concerning provisions to prevent the flow of water along the utility line trench.

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Part 8
MOBILE HOME PARK REQUIREMENTS

§ 22A-801. Applicability. [Ord. 174, 12/20/2017]

1. The requirements in this article shall apply to a mobile home park which is on a tract held in single ownership and provides for two or more mobile/manufactured homes for residential use. The manufactured homes may be individually owned.

2. Mobile home parks proposed to be developed for sale of lots shall be designed and regulated in accordance with all requirements as a subdivision of site-built single-family residential dwellings.

3. Every proposed mobile home park shall be submitted, reviewed, approved and recorded as either a land development or major subdivision.

§ 22A-802. Permits. [Ord. 174, 12/20/2017]

1. It shall be unlawful for any person to operate, maintain, construct, alter or extend any mobile home park within the Township unless the person holds a mobile home park permit issued by the Township.

2. Permits for new mobile home parks, or any alterations to or expansion of mobile home parks, shall only be issued after the subdivision or land development plans have been approved subject to the requirements of this chapter. The required plans shall comply with the submission and procedural requirements of this chapter, the design criteria of Part 7, and the improvements requirements of this chapter.

§ 22A-803. Submission Procedures and Design Standards. [Ord. 174, 12/20/2017]

1. All mobile home parks requiring subdivision and/or land development plan submissions shall follow the preliminary submission procedures in Part 4 and the final submission procedures in Part 5 of this chapter.

2. The mobile home park site shall meet the design standards criteria in Part 7 of this chapter.

3. No part of the mobile home park shall be used for nonresidential purposes, excepting such uses necessary for the management and maintenance of the park, recreation facilities, and utility appurtenances.

4. A landscaping plan consistent with the requirements of § 22A-711, Subsection 2B, shall be developed. The following landscaping requirements shall also apply:

   A. Deciduous trees shall be provided along both sides of all internal streets within the mobile home park. Trees shall be planted at a maximum spacing of 50 feet and shall be planted a minimum of five feet behind the edge of paving or curbline.

   B. A buffer yard, having a minimum width of 30 feet, shall be provided along the perimeter of the mobile home park adjoining all Residential or Extractive Industrial Zoning Districts. A landscape plan, including a mix of deciduous and evergreen trees, shall be provided for the required buffer yards, subject to the review and approval by the Township Planning Commission.

5. The private street system shall be designed and built to the Township standards.

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A. The roads shall meet the design standards of § 22A-705 for local roads with the exception that the minimum cartway width of internal streets shall be 24 feet.

B. The roads shall be built to the standards contained in the Township local road construction specifications.

C. Access to individual mobile home spaces shall be from interior parking courts, access drives, or private streets and shall not be from public streets exterior to the development.

6. Off-street parking shall be provided as required by Chapter 27, Zoning, and the following additional requirements:

A. Every mobile home space shall be provided with a minimum of two paved off-street parking spaces. In addition, an average of 0.5 off-street parking space per dwelling unit shall be provided in convenient locations for visitor and overflow parking. These visitor/overflow parking areas shall be provided with site lighting conforming to the standards in § 22A-710 of this chapter.

B. Areas shall be set aside for the parking of recreational vehicles of residents.

7. Pedestrian walkways meeting the following standards shall be provided:

A. All parks shall provide safe, convenient, all-season pedestrian access between individual mobile homes, the park streets, and all community facilities provided for park residents. Sudden changes in alignment and gradient shall be avoided.

B. Where a common walk system is provided and maintained between locations, and where pedestrian traffic is concentrated, such common walks shall have a minimum width of 3 1/2 feet.

C. All mobile home stands shall be connected to common walks, streets, driveways or parking spaces connecting to a paved street. Such individual walks shall have a minimum width of two feet.

D. Perimeter walking paths shall be incorporated into the overall pedestrian access design. The perimeter path system can be installed within the buffer yard area, if required under § 22A-803, Subsection 4B, of this chapter.

8. Mobile homes shall be sited on mobile home stands in conformance with the following provisions:

A. The area of the mobile home stand shall be improved to provide an adequate foundation for the placement of the mobile home.

B. The stand shall be constructed from either concrete or other material sufficient to adequately support the mobile home and to prevent abnormal settling or heaving under the weight of the home. The construction of the stand and the anchoring of the mobile home shall be in accordance with current applicable building codes and subject to code compliance review and approval.

C. After a mobile home has been anchored to the mobile home stand, the hitch which is employed for the transportation of the unit shall be removed, and there shall be a decorative skirt installed around the base of the unit.

§ 22A-804. Water Supply. [Ord. 174, 12/20/2017]

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1. Water service to all mobile home parks shall be supplied by connection to the public water supply system. The adequacy of the distribution system and the availability of service (as per § 22A-403, Subsection 5H) shall be demonstrated.

2. Fire hydrants in accord with the requirements of § 22A-707, Subsection 1, shall be provided.

§ 22A-805. Sewage Disposal. [Ord. 174, 12/20/2017]

1. All mobile home parks shall be connected to the public sanitary sewer system upon construction or expansion. The availability of service and the adequacy of the distribution system shall be certified as required by § 22A-403, Subsection 5I.

2. All materials used for sewer connections shall be in accordance with current building code requirements and the applicable standards of the governing sewer authority providing service.

3. Provisions shall be made for plugging the sewer riser pipe when a mobile home does not occupy the lot. Surface drainage shall be diverted away from the riser. The rim of the riser pipe shall extend at least 1/2 inch above ground elevation.

§ 22A-806. Additional Requirements. [Ord. 174, 12/20/2017]

1. Electrical Distribution System.

   A. General Requirements. Every mobile home park shall contain an electrical wiring system, consisting of wiring, fixtures, equipment and appurtenances which shall be installed in accordance with Pennsylvania Power and Light Company or Metropolitan Edison Company specifications regulating such systems and the National Electric Code.

   B. Power Distribution Lines. All power lines shall be located underground.

2. Refuse Handling. Refuse disposal containers shall be provided in paved areas. The containers shall be enclosed within a decorative fence or wall with a gated access. Design details for the refuse enclosure shall be incorporated into the site landscape plan.

3. All individual or community fuel storage and distribution systems shall be constructed and maintained in accordance with applicable regulations of all authorities having jurisdiction.

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Part 9
IMPROVEMENTS SPECIFICATIONS

§ 22A-901. General Requirements. [Ord. 174, 12/20/2017]

1. All rights-of-way of existing or new streets within the boundaries of a subdivision or land development should be conveyed to the Township free and clear of all liens and encumbrances, with good and marketable title which is insurable by a reputable title company doing business in Pennsylvania. All Township rights-of-way shall be conveyed in "fee simple" and all PennDOT rights-of-way in permanent easements.

2. Physical improvements to the proposed subdivision or land development tract shall be provided, constructed and installed as shown on the final plan and in accordance with the requirements of this chapter.

3. As a condition for the approval of the final plan, the developer shall execute an agreement with the Board of Supervisors as to the installation of all improvements shown on the plan and required by this chapter. Before the final plan may be endorsed by the Board of Supervisors, the subdivision improvements agreement shall be executed by the developer and the Board of Supervisors.

4. All improvements installed by the developer shall be constructed in accordance with the design specifications as may be referenced in Part 9 of this chapter or as may be otherwise approved by the Board of Supervisors, subject to the recommendations of the Township Engineer.

5. The supervision of the installation of the improvements as required by this chapter shall be the responsibility of the Township Engineer, except that the installation of those improvements which are to be dedicated to governmental entities other than the Township shall be supervised by engineers representing those entities.

§ 22A-902. Specification References. [Ord. 174, 12/20/2017]

The following improvements shall be provided, constructed and installed by the developer as shown on the final plan and in accordance with the "Upper Nazareth Township Standards For Improvements Construction," hereinafter to be known as the "Township standards," adopted and amended from time to time by resolution of the Board of Supervisors.

1. Streets, curbs and sidewalks shall be constructed in accord with the Township standards.

2. Sanitary sewers and all related appurtenances shall be constructed in accord with the specifications as may be adopted from time to time by the appropriate authority which are made part of the Township standards by reference.

3. Water supply and distribution related improvements including fire hydrants, shall be constructed in accord with the specifications as may be adopted from time to time by the governing water authority or successors, which are made part of the Township standards by reference.

4. Stormwater management plan related improvements shall be constructed in accord with the Township standards.

5. Monuments and markers shall be placed in accord with the Township standards.

6. Streetlights, where required, shall be installed in accord with the Township standards.

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7. Street and traffic signs shall be installed in accord with the Township standards.

8. Tree planting and landscaping shall be accomplished in accord with the Township standards.

§ 22A-903. Contracts. [Ord. 174, 12/20/2017]

1. Before the Board of Supervisors shall endorse its approval on the final plan of any subdivision or land development involving improvements as may be required by this chapter, the developer shall enter into a written agreement with the Board of Supervisors in the manner and form set by the Township Solicitor, where the developer agrees as follows:

   A. To construct or cause to be constructed at his or her own expense, all streets, curbs, sidewalks, sanitary sewers, water supply and distribution systems, fire hydrants, stormwater management facilities, monuments and markers, streetlights, street signs, tree planting and landscaping, recreation facilities, and any other improvements shown on the final plan as otherwise approved, and in accordance with the requirements of this chapter.

   B. To maintain at his or her own cost, the said streets, curbs, sidewalks, sanitary sewers, water supply and distribution systems, fire hydrants, stormwater management facilities, monuments and markers, street signs, tree planting and landscaping, recreation facilities, and any other improvements shown on the final plan until the same are accepted by resolution of the Township Board of Supervisors and/or public authorities and for a period of 18 months thereafter and to repair the same as directed by the Board of Supervisors and/or public authority for reason of lack of structural integrity or failure to properly function.

   C. To pay the Township's inspection, other engineering and legal fees as related to the creation and enforcement of said agreement.

   D. To obtain any easements or releases from all damages which may be necessary for the construction of any improvement which traverses lands of persons other than the developer. Said releases shall insure to the benefit of the Township and/or public authority as well as to the developer.

   E. Whenever a traffic signal is required for traffic control to a single nonresidential lot or development, the owner of said lot or development will be required to install, operate and maintain the signal(s) in perpetuity, at no cost to the Township. The perpetual operation and maintenance shall include the signal lights, support structures, controllers, pavement markings, payment of electricity costs and other items essential to the traffic signal. All signalization controls shall meet the requirements of all applicable PennDOT publications and Township standards within Appendix F of this chapter.[30]

2. Owner shall provide the Township with an agreement which states that the owner, his heirs, or assigns will be responsible for the operation and maintenance of the traffic signal(s). Additionally, the owner shall provide an agreement indicating that the traffic signal and appurtenances will be maintained by a company qualified and bonded in the maintenance of traffic signals. All agreements required for private ownership and maintenance of traffic signals shall be recorded in the office for the Recorder of Deeds in and for Northampton County.

§ 22A-904. Improvements Guarantee Procedure. [Ord. 174, 12/20/2017]

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30. Editor's Note: Appendix F is included as an attachment to this chapter.

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1. Before the Board of Supervisors approves any final plan and as a prerequisite for approval, the developer shall deliver to the Board of Supervisors, public utility, and/or municipal authority, a performance guarantee in the amount of 110% of the cost of all improvements required by this chapter, plus 5% of the cost of all improvements for engineering/layout plus 5% of the cost for inspection, as determined in accordance with the procedures set forth in the Pennsylvania Municipalities Planning Code (53 P.S. § 10509 et seq.) as amended, and as is in effect at the time of the filing, in a form and with a surety as determined in accordance with the procedures as set forth in the Pennsylvania Municipalities Planning Code, as amended, guaranteeing the construction and installation of all such improvements on or before the date fixed in the formal action of approval or accompanying agreement for completion of the improvements. The terms of the agreement may be extended as provided for in the Pennsylvania Municipalities Planning Code, as amended. If the party posting the financial security requires more than one year from the date of posting of the financial security to complete the required improvements, the amount of financial security may be increased as provided for in the Pennsylvania Municipalities Planning Code, as amended. In the event of default under a performance guarantee, the proceeds of the performance guarantee received by the Townships, public utility, or municipal authority shall be used to construct and install the improvements.

2. Before the Board of Supervisors approves any final plan, and as a prerequisite for approval, the developer shall deliver to the Board of Supervisors, public utility, and/or municipal authority a maintenance guarantee in an amount of not less than 15% of the actual cost of the installation of all improvements required by this chapter, guaranteeing acceptance of all such improvements by the Board of Supervisors, public utility, and/or municipal authority.

§ 22A-905. Approval of Improvements and Release of Performance Guarantee by Board of Supervisors. [Ord. 174, 12/20/2017]

1. The procedure for inspecting and approving the improvements and for the release of the performance guarantee by the Board of Supervisors shall be in accord with the Pennsylvania Municipalities Planning Code, as amended.[31]

2. In the event that any improvements which may be required have not been installed as provided in this chapter or in accord with the approved final plan, the Board of Supervisors is hereby granted the power to enforce any corporate bond, or other security by appropriate legal and equitable remedies. If proceeds of such bond, or other security are insufficient to pay the cost of installing or making repairs or corrections to all the improvements covered by said security, the Board of Supervisors may, at its option, install part of such improvements in all or part of the subdivision or land development and may institute appropriate legal or equitable action to recover the monies necessary to complete the remainder of the improvements. All of the proceeds whether resulting from the security or from any legal or equitable action brought against the developer, or both, shall be used solely for the installation of the improvements covered by such security, and not for any other Township purpose.

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31. Editor's Note: See 53 P.S. § 10101 et seq.

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Part 10
ADMINISTRATION

§ 22A-1001. Amendments. [Ord. 174, 12/20/2017]

Amendments to the Subdivision and Land Development Ordinance shall become effective only after a public hearing held pursuant to public notice in the manner prescribed for enactment of a subdivision and land development ordinance by the Pennsylvania Municipalities Planning Code.[32] In addition, in case of an amendment other than that prepared by the Planning Commission of the Township, the Board of Supervisors shall submit each such amendment to the Township planning agencies for recommendations at least 30 days prior to the date fixed for the public hearing on such proposed amendment.

§ 22A-1002. Appeals. [Ord. 174, 12/20/2017]

The decisions of the Board of Supervisors with respect to the approval or disapproval of subdivision or land development plans may be appealed directly to the Court of Common Pleas as is provided for in the Pennsylvania Municipalities Planning Code.[33]

§ 22A-1003. Remedies. [Ord. 174, 12/20/2017]

The preventative remedies and enforcement remedies as stipulated in the Pennsylvania Municipalities Planning Code shall apply.

§ 22A-1004. Severability and Conflicts. [Ord. 174, 12/20/2017]

1. Should any action or provision of this chapter be declared by the courts to be invalid, such decision shall not affect the validity of the chapter as a whole, nor the validity of any other section or provision of the chapter than the one so declared.

2. Whenever there is a conflict between minimum standards or requirements set forth in this chapter and those contained in other Township ordinances and regulations, or other applicable laws and regulations, the most stringent standard or requirement shall apply.

§ 22A-1005. Fees. [Ord. 174, 12/20/2017]

1. The Township Board of Supervisors shall establish, by resolution, a collection procedure and schedule of fees to be paid by the developer at the time of filing of the sketch, preliminary and final plans. No plan shall be accepted for filing unless the require number of plans have been submitted with the supplemental material required in §§ 22A-403 and 22A-504,as relevant, accompanied by the required review fee.

2. Charges for field inspection as required by Township Supervisors for public improvements shall be based on actual costs incurred for such inspections.

3. No final plan shall be approved unless all accrued fees and charges are paid in full.

4. No plan shall be filed at the Recorder of Deeds Office unless all fees and charges are paid in full.

§ 22A-1006. Modifications. [Ord. 174, 12/20/2017]

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32. Editor's Note: See 53 P.S. § 10101 et seq.

33. Editor's Note: See 53 P.S. § 10101 et seq.

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1. The Board of Supervisors may grant a modification of the requirements of one or more provisions of this chapter if the literal enforcement will exact undue hardship because of peculiar conditions pertaining to the land in question, provided that such modifications will not be contrary to the public interest and that the purpose and intent of this chapter is observed.

2. All requests for a modification shall be in writing and shall accompany and be a part of the preliminary plan application for development. The request shall state in full the grounds and facts of unreasonableness or hardship on which the request is based, the provision or provisions of the chapter involved, and the minimum modifications necessary.

3. The Board of Supervisors, in considering requests for modification, shall consider the recommendations of the Planning Commission in regard thereto.

4. The Board of Supervisors shall keep a written record of all action on all requests for modifications.

5. If the Board of Supervisors grants any waivers from the requirements of this chapter, the plan of record shall list all the sections of this chapter that were waived, plus the date(s) the modifications were approved by the Board of Supervisors.

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Chapter 22B

TRANSPORTATION IMPACT FEES

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§ 22B-102. Purpose.
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Part 1
TITLE, PURPOSES, DEFINITIONS AND SUPPORTING STUDIES

§ 22B-101. Title. [Ord. 144, 1/19/2011, § 1]

This Chapter 22B shall be known as the "Upper Nazareth Township Impact Fee Ordinance."

§ 22B-102. Purpose. [Ord. 144, 1/19/2011, § 2]

The purpose of this Chapter 22B is to establish an Impact Fee Program, including a Transportation Capital Improvements Plan to ensure that the transportation system situate within the Township and servicing its residents and the general public is and continues to be available and adequate to support new growth and development. To advance this objective, there is hereby created an impact fee as hereinafter calculated which shall be payable to the Township at the time of and as a condition precedent to building permit issuance.

§ 22B-103. General Findings and Conditions. [Ord. 144, 1/19/2011, § 3]

1. The Board of Supervisors hereby finds and declares that:

   A. The conditions and standards for the determination and imposition of the impact fee set forth herein are consistent with and comply with those set forth in the Act of December 19, 1990, P.L., No. 209, § 1, 53 P.S. § 10501-A et seq., and any and all amendments thereto (hereinafter the "Act"), and consist of:

      (1) The recitals set forth above.

      (2) The analysis, advice and recommendations of the Upper Nazareth Township Capital Improvements Advisory Committee.

      (3) The Upper Nazareth Township Land Use Assumptions as adopted in a resolution by the Board of Supervisors on June 2, 2010.

      (4) The Upper Nazareth Township Roadway Sufficiency Report as adopted in a resolution by the Board of Supervisors on June 2, 2010.

      (5) The Transportation Capital Improvements Plan, as adopted in a resolution by the Board of Supervisors on November 17, 2010.

      (6) Such other conditions and standards as the Board of Supervisors may by resolution or otherwise identify from time to time as being relevant and material to the imposition of an impact fee and consistent with the provisions of the Act and any amendments thereto.

   B. The collection, disbursement and accounting of impact fees shall be administered by the office of the Township, subject to supervision, review, oversight and control by the Board of Supervisors.

   C. The time, method and procedure for payment of impact fees shall be consistent with the Act and any amendments thereto and are set forth in Part 2, § 22B-201 and Part 3, § 22B-302 of this Chapter 22B.

   D. The procedure for credits against or refunds of impact fees shall be consistent with the Act and any amendments thereto and are set forth in Part 3, §§ 22B-303 and 22B-304, of this Chapter

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22B.

E. Exemptions, if any, shall be at the discretion of the Board of Supervisors and such exemptions as the Board shall choose to enact shall be consistent with the Act and any amendments thereto and are set forth in Part 2, § 22B-202, of this Chapter 22B.

§ 22B-104. Definitions. [Ord. 144, 1/19/2011, § 4]

The terms and definitions set forth in 53 P.S. and § 10502-A of the Act are hereby adopted and incorporated, as though more fully set forth in this Chapter 22B by reference.

§ 22B-105. Imposition. [Ord. 144, 1/19/2011, § 5]

There is hereby enacted an impact fee to be imposed upon any subdivision, land development or construction for the purpose of off-site transportation capital improvements as may be authorized by the Act and as described in the Transportation Capital Improvements Plan adopted by the Board of Supervisors. Said impact fee shall apply to all subdivisions, developments and construction within the transportation service area identified herein and shall be a condition precedent to final approval of a land development plan, a subdivision plan or issuance of a building permit or use and occupancy permit as may be necessary.

§ 22B-106. Uses. [Ord. 144, 1/19/2011, § 6]

Impact fees collected pursuant to this Chapter 22B shall be expended for such costs, fees and expenses as may be incurred for improvements attributable to subdivision, land development and construction within the Transportation Service Area and designated in the Transportation Capital Improvements Plan adopted by the Board of Supervisors in a resolution. Additionally, such fees may be used for the acquisition of land and rights-of-way, engineering, legal and planning costs, and all other costs, including debt service related to road improvements within the designated service area, and including such proportionate amount of the Roadway Sufficiency Analysis as is allowed under the provisions of the Act.

§ 22B-107. Documents Adopted by the Board of Supervisors. [Ord. 144, 1/19/2011, § 7]

1. The following documents, previously adopted by the Board of Supervisors, are hereby incorporated by reference in this Chapter 22B:

   A. Land Use Assumptions as adopted by the Township in a resolution, as may be amended from time to time.

   B. Roadway Sufficiency Analysis as adopted by the Township in a resolution, as may be amended from time to time.

   C. The Transportation Capital Improvements Plan as adopted by the Township in a resolution, as may be amended from time to time.

   D. The Impact Fee Schedule as established by Township resolution.

   E. Designation of transportation district as set forth in the Transportation Service Area Map identified as Transportation Service Areas and incorporated as though more fully depicted herein by reference.

§ 22B-108. Special Traffic Studies. [Ord. 144, 1/19/2011, § 8]

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1. Where necessary and intended to assist in determining the appropriate amount of traffic impact fees, the Township at the discretion of the Board of Supervisors may require the preparation of special transportation studies to determine the traffic generation or circulation patterns in nonresidential developments only that will generate 500 or more p.m. Peak Hour Trips; provided, however, that studies may be waived as part of the planning procedure where the proposed development will not require deviation from the land use assumptions approved by the Township as the basis of the program.

2. Any such studies required by the Township shall be submitted prior to the imposition of the impact fee and shall be considered in the determination of the fee.

§ 22B-109. Applicability of Impact Fee. [Ord. 144, 1/19/2011, § 9]

This Chapter 22B shall, except to the extent provided herein, be uniformly applicable to all subdivision, development and construction that occurs within the designated Transportation Service Area.

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Part 2
IMPOSITION OF FEE, CALCULATION OF FEE, EXEMPTIONS

§ 22B-201. Imposition of Impact Fee. [Ord. 144, 1/19/2011, § 10]

No building permit or use and occupancy permit shall be issued for a development or construction in a designated transportation service area, as herein defined, unless the applicant therefor has paid the "impact fee" imposed by and calculated pursuant to this Chapter 22B.

§ 22B-202. Exemptions, Waivers. [Ord. 144, 1/19/2011, § 11]

1. Exemptions or waivers, if any, shall be determined at the sole discretion of the Board of Supervisors consistent with the terms of the Act and this Chapter 22B.

2. This Chapter 22B is intended to apply to all growth and development within the Upper Nazareth Township Transportation Service Area after the effective date of this Chapter 22B. In the event that there is an unanticipated hardship not of the developer's/applicant's own making as a result of the enactment of this Chapter 22B, which results in a manifest injustice, the affected party may request a waiver in writing which requests shall accompany the plan review at all stages. The Planning Commission shall have the opportunity to review such request for waiver and make recommendations to the Board of Supervisors.

§ 22B-203. Calculation of Impact Fees. [Ord. 144, 1/19/2011, § 13]

1. The impact fee for transportation capital improvements shall be based upon the total costs of the road improvements included in the adopted Transportation Capital Improvements Plan with the transportation service area attributable to and necessitated by a subdivision development or construction within the service area as defined, divided by the number of anticipated p.m. peak-hour trips generated by the subdivision development or construction consistent with the adopted land use assumptions and calculated in accordance with the Trip Generation Manual published by the Institute of Transportation Engineers, 8th or subsequent editions, which is hereby adopted as though more fully set forth herein at length by the Township, to equal a per-trip cost for transportation improvements within the service area. The transportation impact fee based upon the Land Use Assumption Report, Roadway Sufficiency Report and Transportation Capital Improvements Plan as approved by the Board of Supervisors is hereby imposed at the rate of $1,080 per p.m. peak hour trip.

2. The specific impact fee for a subdivision, development or construction within the service area for road improvements shall be determined as of the date of preliminary land development, subdivision or construction plan approval by multiplying the per-trip cost established for the service area by the estimated number of trips to be generated by the subdivision, development or construction using generally accepted traffic engineering standards.

3. The Board of Supervisors may at their discretion, authorize or require the preparation of a transportation study to determine traffic generation or circulation for a nonresidential development or construction to assist in the determination of the amount of the fee of such subdivision, development or construction.

§ 22B-204. Establishment of Transportation Service Areas. [Ord. 144, 1/19/2011, § 13]

1. The transportation service areas are established as shown on the "Transportation Service Area Map" (attached hereto as Exhibit 22B-A and incorporated herein by reference). Additional transportation

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service areas or designation of transportation service areas may be designated by the Board of Supervisors from time to time consistent with the procedure set forth in the Act and this Chapter 22B and in consideration of the following factors:

A. The Comprehensive Plan.

B. Any standards for adequate public facilities incorporated in the program.

C. The projected build-out and timing of subdivision, development and construction within the transportation service area.

D. The need for the cost of unprogrammed transportation improvement as may be determined necessary by special traffic studies or changed physical condition which support projected subdivision, development and construction.

E. Such other factors as the Board of Supervisors may deem relevant. Fees collected from development in the transportation service area will be used exclusively to fund transportation improvement projects scheduled within this area.

§ 22B-205. Non-Binding Impact Fee Estimate. [Ord. 144, 1/19/2011, § 14]

Prior to making an application for a building permit or use and occupancy permit, an applicant may request a non-binding impact fee estimate from the Township, which will be based upon the maximum development potential of the site pursuant to existing zoning regulations, unless the application specifies and documents a lesser use or development within said zoning regulations.

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Part 3
ADMINISTRATION, METHOD OF PAYMENT, CREDITS AND REFUNDS

§ 22B-301. Administration of Impact Fee. [Ord. 144, 1/19/2011, § 15]

1. Impact fees due pursuant to this Chapter 22B shall be collected by the Township in the manner or manners prescribed herein or as modified by action of the Board of Supervisors prior to and as a precondition for the issuance of the building permit or use and occupancy permit, whichever first occurs.

2. Upon receipt of impact fees, the Township designee shall be responsible for the separate and proper accounting of such fees. All such fees shall be deposited in an interest bearing account in a bank authorized to receive deposits of the Township funds. Interest earned by such account shall be credited to the account and shall be used solely for the purpose specified for funds of such account.

3. The Township designee shall establish appropriate fund accounts and shall maintain records whereby impact fees collected can be segregated for each transportation service area.

4. The Township Manager or his/her designee shall maintain and keep adequate financial records for such accounts as will show the source and disbursement of all revenues, which shall account for all monies received, and which shall ensure that the disbursement of the funds from each account shall be used solely and exclusively for the provision of projects specified in the Intersection Improvement Program.

§ 22B-302. Method of Payment. [Ord. 144, 1/19/2011, § 16]

Payment of the transportation capital improvements impact fee shall be made by the traffic generator prior to and as a precondition for the issuance of a building permit or use and occupancy permit by the Township for development or construction on the applicable site.

§ 22B-303. Credit. [Ord. 144, 1/19/2011, § 17]

1. Any applicant who shall perform, at applicants own expense and with the consent and agreement of the Board of Supervisors which shall be within the sole discretion of the Board, off-site traffic improvements, as herein defined, shall be eligible for a credit from the impact fee otherwise due in the amount of the actual cost of such off-site traffic improvements as approved by the Township Engineer. Such credit shall not exceed the amount of the impact fee.

    A. If the applicant makes such improvements, he must enter into a prior written agreement with the Board of Supervisors in advance of the issuance of any building permit or use and occupancy permit. The agreement must establish the estimated cost of the improvement, the schedule of initiation and completion of the improvement, the financial security for the said improvement, a requirement that the improvement be completed to Township and Pennsylvania Department of Transportation standards and design criteria and such other terms and conditions as deemed necessary by the Board of Supervisors. The Board of Supervisors must review the improvement plan, verify costs and time schedules, determine if the improvement is an eligible improvement and determine the amount of the applicable credit for such improvement to be applied to the otherwise applicable impact fee prior to issuance of any building permit or use and occupancy permit. In no event shall the Board of Supervisors provide a credit which is greater than the applicable impact fee. Provided, any such applicant shall be required to supply financial security, in the form of a letter of credit or cash, sufficient in the discretion of the Township, to

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cover the cost of any such improvement to be installed by the applicant for which credit is sought.

B. Any applicant shall be entitled to credit against impact fees an amount equal to the agreed upon fair market value of land dedicated by the applicant and accepted by the Township in its discretion for future off-site right-of-way, realignment or widening of existing roadways within intersections that were studied as part of the capital improvements plan.

C. An applicant shall be entitled to credit against impact fees an amount equal to the value of any road improvement construction which is contained in the Transportation Capital Improvements Plan and which was performed at the applicant's expense and with the consent and approval of the Board of Supervisors.

§ 22B-304. Refunds. [Ord. 144, 1/19/2011, § 18]

1. Impact fees collected pursuant to this Chapter 22B shall be refunded, together with interest earned thereon, to the payor of the fees under the following circumstances:

A. In the event the Township completes or terminates the capital improvements plan without adoption of a new or amended capital improvement plan and there remain undisbursed funds, the respective payors shall be entitled to a share of the fund balance in the same portion as the payor's impact fee payment plus interest earned bears to the total impact fees collected plus interest.

B. In the event any road improvement project within the transportation service area not the subject of additional improvement plans is completed at a cost to the Township less than 95% of the budgeted cost of the road project, the Township shall refund an amount equal to the excess budgeted cost over actual cost to the payors, pro rata, plus accumulated interest at the same pro rata value.

C. In the event that the Township fails to commence construction within three years of the scheduled construction date of the project as set forth in the Transportation Capital Improvements Plan, without revision of said plan and construction date, the Township shall refund the portion of the fee paid by any payor making written request therefor, with accumulated interest, provided no refund shall be paid with respect to any project actually begun prior to the receipt of such refund request even if said initiation date shall be more than three years beyond the scheduled construction date.

With respect to refunds arising out of the Subsections 1A or B, hereof, any funds unclaimed within one year after notice as required by law shall be transferred to the general fund account of the Township, and the payor's entitlement to said refund shall lapse. It is the responsibility of the payor to provide the Township with payor's current address at all times.

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Part 4
EFFECT OF ZONING AND SUBDIVISION REGULATIONS, CONSTRUCTION

§ 22B-401. Effect of Impact Fee on Zoning and Subdivision Regulations. [Ord. 144, 1/19/2011, § 19]

This Chapter 22B shall not affect, in any manner, the permissible use of property, density of development, previously adopted design and improvement standards and requirements or any other aspect of the development of land or provision of public improvements which remain subject to applicable zoning, and subdivision regulations of the Township, which shall continue to be operative and remain in full force and effect without limitation with respect to all such development.

§ 22B-402. Impact Fee as Additional and Supplemental Requirement. [Ord. 144, 1/19/2011, § 20]

The impact fee is additional and supplemental to, and not in substitution of, any other requirements imposed by the Township on the development of land or the issuance of building permits or use and occupancy permits. Nothing herein contained shall be deemed to alter or affect the Township's existing ordinances and regulations regarding on-site improvements. In no event shall a property owner by obligated to pay for transportation capital improvements in an amount in excess of the amount calculated pursuant to this Chapter 22B, provided, however, that a property owner may be required to pay, pursuant to the Township ordinances, regulations or policies for other public facilities, fees or charges in addition to the impact fee as provided.

§ 22B-403. Liberal Construction. [Ord. 144, 1/19/2011, § 21]

The provisions of this Chapter 22B shall be liberally construed to effectively carry out its purposes which are hereby found and declared to be in furtherance of the public health, safety and welfare and convenience.

§ 22B-404. Retroactive Application. [Ord. 144, 1/19/2011, § 25]

Notwithstanding anything herein to the contrary, impact fees imposed on those projects involving subdivisions, developments and construction for which an application was filed following the first publication of notice of the Township's intent to adopt this Chapter 22B shall be subject to retroactive application of this Chapter 22B for a term not to exceed 18 months prior to adoption of the resolution that created the Advisory Committee in connection herewith.

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Chapter 23

STORMWATER MANAGEMENT

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Part 1
GENERAL PROVISIONS

§ 23-101. Short Title. [Ord. No. 196, 8/21/2024]

This chapter shall be known and may be cited as the "Stormwater Management Ordinance" which satisfies regulatory requirements of the NPDES MS4 program as well as Act 167 requirements for the Bushkill Creek and the Monocacy Creek.

§ 23-102. Statement of Findings. [Ord. No. 196, 8/21/2024]

The governing body of the Municipality finds that:

1. Inadequate management of accelerated runoff of stormwater resulting from development throughout a watershed increases runoff volumes, flows and velocities, contributes to erosion and sedimentation, overtaxes the carrying capacity of streams and storm sewers, greatly increases the cost of public facilities to carry and control stormwater, undermines flood plain management and flood control efforts in downstream communities, reduces groundwater recharge, threatens public health and safety, and increases nonpoint source pollution of water resources.

2. A comprehensive program of stormwater management (SWM), including reasonable regulation of development and activities causing accelerated runoff, is fundamental to the public health, safety, and welfare and the protection of people of the Commonwealth, their resources, and the environment.

3. Stormwater is an important water resource that provides groundwater recharge for water supplies and supports the base flow of streams.

4. The use of green infrastructure and low impact development (LID) are intended to address the root cause of water quality impairment by using systems and practices which use or mimic natural processes to: 1) infiltrate and recharge; 2) evapotranspire; and/or 3) harvest and use precipitation near where it falls to earth. Green infrastructure practices and LID contribute to the restoration or maintenance of pre-development hydrology.

5. Federal and state regulations require certain municipalities to implement a program of stormwater controls. These municipalities are required to obtain a permit for stormwater discharges from their separate storm sewer systems under the National Pollutant Discharge Elimination System (NPDES) program.

6. Non-stormwater discharges to municipal separate storm sewer systems can contribute to pollution of waters of the Commonwealth by the Municipality.

§ 23-103. Purpose. [Ord. No. 196, 8/21/2024]

The purpose of this chapter is to promote health, safety, and welfare within Upper Nazareth Township and the watersheds by minimizing the harms and maximizing the benefits described in § 23-102 of this chapter, through provisions designed to:

1. Meet legal water quality requirements under state law, including regulations at 25 Pa. Code Chapter 93 to protect, maintain, reclaim, and restore the existing and designated uses of the waters of this Commonwealth.

2. Preserve natural drainage systems.

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3. Manage stormwater runoff close to the source, reduce runoff volumes and mimic predevelopment hydrology.

4. Provide procedures and performance standards for stormwater planning and management.

5. Maintain groundwater recharge to prevent degradation of surface and groundwater quality and to otherwise protect water resources.

6. Prevent scour and erosion of stream banks and streambeds.

7. Provide proper operation and maintenance of all stormwater management facilities that are implemented within the Municipality.

8. Provide standards to meet NPDES permit requirements.

§ 23-104. Statutory Authority. [Ord. No. 196, 8/21/2024]

The Municipality is empowered to regulate land use activities that affect runoff by the authority of the Act of July 31, 1968, P.L. 805, No. 247, the Pennsylvania Municipalities Planning Code, as amended,[34] and/or the Act of October 4, 1978, P.L. 864 (Act 167), 32 P.S. Section 680.1, et seq., as amended, the Storm Water Management Act, and the Township Code, as amended.

§ 23-105. Applicability. [Ord. No. 196, 8/21/2024]

All regulated activities and all activities that may affect stormwater runoff, including land development and earth disturbance activity, are subject to regulation by this chapter in accordance with provisions specific to one of the two specific Stormwater Management Districts the Township is partitioned into — the Bushkill Creek Watershed and the Monocacy Creek Watershed. A map illustrating the boundaries of each watershed is provided in Attachment 3.[35] More detailed mapping of each watershed can be found in the respective Act 167 Stormwater Management Plans as prepared by the Lehigh Valley Planning Commission. (See References.)[36]

Where necessary, NPDES Phase II regulations ensure that all of the chapter provisions required to meet the MS4 NPDES requirements apply across the entire municipality. The following activities are defined as regulated activities and shall be governed by this chapter:

1. Land development.

2. Subdivision.

3. Construction of new or additional impervious surfaces (driveways, parking lots, swimming pools, etc.).

4. Construction of new buildings or additions to existing buildings.

5. Diversion or piping of any natural or man-made stream channel.

6. Installation of stormwater systems or appurtenances thereto.

7. Regulated earth disturbance activities.

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34. Editor's Note: See 53 P.S. § 10101 et seq.

35. Editor's Note: See attachment to this chapter.

36. Editor's Note: See Part 11 of this chapter.

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8. Other than that included in Subsections 1 through 7, any earth disturbance activities or any activities that include the alteration or development of land in a manner that may affect stormwater runoff onto adjacent property.

§ 23-106. Exemptions. [Ord. No. 196, 8/21/2024]

1. Impervious Cover. Any proposed regulated activity, except those defined in § 23-105, Subsection 5 and 8, which would create 10,000 square feet or less of additional impervious cover is exempt from the drainage plan preparation provisions of this chapter. All impervious cover added incrementally to a site above the initial 10,000 square feet shall be subject to the drainage plan preparation provisions of this chapter. If a site has previously received an exemption and is proposing additional development such that the total impervious cover on the site exceeds 10,000 square feet, the total impervious cover on the site proposed since the original ordinance date must meet the provisions of this chapter.

   A. The date of the municipal ordinance adoption of the original Bushkill and Monocacy Creek Act 167 Stormwater Management Ordinance, March 1989, shall be the starting point from which to consider tracts as "parent tracts" in which future subdivisions and respective impervious area computations shall be cumulatively considered.

   B. For development taking place in stages, the entire development plan must be used in determining conformance with these criteria.

   C. Additional impervious cover shall include, but not be limited to, additional indoor living spaces, decks, patios, garages, driveways, storage sheds and similar structures, any roof, parking or driveway areas and any new streets and sidewalks constructed as part of or for the proposed regulated activity.

   D. Any additional areas proposed to initially be gravel, crushed stone, porous pavement, etc., shall be assumed to be impervious for the purposes of comparison to the exemption criteria. Any existing gravel, crushed stone or hard packed soil areas on a site shall be considered as pervious cover for the purpose of exemption evaluation.

   If a drainage plan is required, the pre- and post-development calculations should be based on actual cover conditions regardless of any assumptions made for purposes of exemption evaluation.

2. Prior Drainage Plan Approval. Any regulated activity for which a drainage plan was previously prepared as part of a subdivision or land development proposal that received preliminary plan approval from the Municipality prior to the effective date of this chapter is exempt from the drainage plan preparation provisions of this chapter, except as cited in § 23-106, Subsection 1C, provided that the approved drainage plan included design of stormwater facilities to control runoff from the site currently proposed for regulated activities consistent with ordinance provisions in effect at the time of approval and the approval has not lapsed under the Municipalities Planning Code. If significant revisions are made to the drainage plan after both the preliminary plan approval and the effective date of this chapter, preparation of a new drainage plan, subject to the provisions of this chapter, shall be required. Significant revisions would include a change in control methods or techniques, relocation or redesign of control measures or changes necessary because soil or other conditions are not as stated on the original drainage plan.

3. These exemptions shall not relieve the applicant from implementing such measures as are necessary to protect health, safety, property, and state water quality requirements. These measures include adequate and safe conveyance of stormwater on the site and as it leaves the site. These exemptions

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do not relieve the applicant from the responsibility to secure required permits or approvals for activities regulated by any other applicable code, rule, act or ordinance.

4. No exemptions shall be provided for regulated activities as defined in § 23-105, Subsections 5 and 7.

5. Agricultural plowing or tilling activity is exempt from the rate control and drainage plan preparation requirements of this chapter provided the activities are performed according to the requirements of 25 Pa. Code Chapter 102.

6. Timber harvesting activities are exempt from the rate control and drainage plan preparation requirements of this chapter provided activities are performed according to the requirements of 25 Pa. Code Chapter 102.

7. Exemptions from any provisions of this chapter shall not relieve the applicant from the requirements in § 23-301, Subsections 4 through 11.

8. The Municipality may deny or revoke any exemption pursuant to this Section at any time for any project that the Municipality believes may pose a threat to public health, safety, property, or the environment.

§ 23-107. Repealer. [Ord. No. 196, 8/21/2024]

Any other chapter provision(s) or regulation of the Municipality inconsistent with any of the provisions of this chapter is hereby repealed to the extent of the inconsistency only.

§ 23-108. Severability. [Ord. No. 196, 8/21/2024]

In the event that a court of competent jurisdiction declares any section or provision of this chapter invalid, such decision shall not affect the validity of any of the remaining provisions of this chapter.

§ 23-109. Compatibility with Other Ordinance Requirements. [Ord. No. 196, 8/21/2024]

Approvals issued and actions taken under this chapter do not relieve the applicant of the responsibility to secure required permits or approvals for activities regulated by any other code, law, regulation or ordinance.

§ 23-110. Duty of Persons Engaged in Development of Land. [Ord. No. 196, 8/21/2024]

Notwithstanding any provisions of this chapter, including exemption and waiver provisions, any landowner and any person engaged in the alteration or development of land which may affect stormwater runoff characteristics shall implement such measures as are reasonably necessary to prevent injury to health, safety or other property. Such measures shall include such actions as are required to manage the rate, volume, direction and quality of resulting stormwater runoff in a manner which otherwise adequately protects health and property from possible injury.

§ 23-111. Erroneous Permit. [Ord. No. 196, 8/21/2024]

Any permit or authorization issued or approved based on false, misleading or erroneous information provided by an applicant is void without the necessity of any proceedings for revocation. Any work undertaken or use established pursuant to such permit or other authorization is unlawful. No action may be taken by a board, agency or employee of the Municipality purporting to validate such a violation.

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§ 23-112. Waivers. [Ord. No. 196, 8/21/2024]

1. If the Municipality determines that any requirement under this chapter cannot be achieved for a particular regulated activity, the Municipality may, after an evaluation of alternatives, approve measures other than those in this chapter, subject to and § 23-112, Subsections 2 and 3.

2. Waivers or modifications of the requirements of this chapter may be approved by the Municipality if enforcement will exact undue hardship because of peculiar conditions pertaining to the land in question, provided that the modifications will not be contrary to the public interest and that the purpose of the chapter is preserved. Cost or financial burden shall not be considered a hardship. Modification may be considered if an alternative standard or approach will provide equal or better achievement of the purpose of the chapter. A request for modifications shall be in writing and accompany the stormwater management site plan submission. The request shall provide the facts on which the request is based, the provision(s) of the chapter involved and the proposed modification.

3. No waiver or modification of any regulated stormwater activity involving earth disturbance greater than or equal to one acre may be granted by the Municipality unless that action is approved in advance by the Department of Environmental Protection (DEP) or the delegated county conservation district.

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Part 2
DEFINITIONS

§ 23-201. Definitions. [Ord. No. 196, 8/21/2024]

These definitions do not necessarily reflect the definitions contained in pertinent regulations or statutes and are intended for this chapter only.

For the purposes of this chapter, certain terms and words used herein shall be interpreted as follows:

1. Words used in the present tense include the future tense; the singular number includes the plural, and the plural number includes the singular; words of masculine gender include feminine gender; and words of feminine gender include masculine gender.

2. The word "includes" or "including" shall not limit the term to the specific example but is intended to extend its meaning to all other instances of like kind and character.

3. The words "shall" and "must" are mandatory; the words "may" and "should" are permissive.

ACCELERATED EROSION — The removal of the surface of the land through the combined action of human activities and natural processes, at a rate greater than would occur because of the natural processes alone.

AGRICULTURAL ACTIVITY — Activities associated with agriculture such as agricultural cultivation, agricultural operation, and animal heavy use areas. This includes the work of producing crops including tillage, land clearing, plowing, disking, harrowing, planting, harvesting crops or pasturing and raising of livestock and installation of conservation measures. Construction of new buildings or impervious areas is not considered an agricultural activity.

APPLICANT — A landowner, developer, or other person who has filed an application to the Municipality for approval to engage in any regulated activity at a project site in the Municipality.

BEST MANAGEMENT PRACTICE (BMP) — Activities, facilities, designs, measures, or procedures used to manage stormwater impacts from regulated activities listed in § 23-105, to meet state water quality requirements, to promote groundwater recharge, and to otherwise meet the purposes of this chapter. Stormwater BMPs are commonly grouped into one of two broad categories or measures: "structural" or "non-structural." In this chapter, non-structural BMPs or measures refer to operational and/or behavior-related practices that attempt to minimize the contact of pollutants with stormwater runoff, whereas structural BMPs or measures are those that consist of a physical device or practice that is installed to capture and treat stormwater runoff. Structural BMPs include, but are not limited to, a wide variety of practices and devices, from large-scale retention ponds and constructed wetlands to small-scale underground treatment systems, infiltration facilities, filter strips, low impact design, bioretention, wet ponds, permeable paving, grassed swales, riparian or forested buffers, sand filters, detention basins, and manufactured devices. Structural stormwater BMPs are permanent appurtenances to the project site. The terms "Best Management Practice" and "BMP" shall, for purposes of this chapter, be synonymous with "Stormwater Control Measure" and "SCM."

BEST MANAGEMENT PRACTICE OPERATIONS AND MAINTENANCE PLAN — See Stormwater Management Facilities Operations and Maintenance Plan.

BIORETENTION — Densely vegetated, depressed features that store stormwater and filter it through vegetation, mulch, planting soil, etc. Ultimately stormwater is evapotranspirated, infiltrated, or discharged. Optimal bioretention areas mimic natural ecosystems in terms of species diversity, density, distribution, use of native plants, etc.

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BUFFER —

A. STREAMSIDE BUFFER — A zone of variable width located along a stream that is vegetated and is designed to filter pollutants from runoff.

B. SPECIAL GEOLOGIC FEATURE BUFFER — A required isolation distance from a special geologic feature to a proposed BMP needed to reduce the risk of sinkhole formation due to stormwater management activities.

CAPTURE/REUSE — Stormwater management techniques such as cisterns and rain barrels which direct runoff into storage devices, surface or subsurface, for later reuse, such as for irrigation of gardens and other planted areas. Because this stormwater is utilized and no pollutant discharge results, water quality performance is superior to other non-infiltration BMPs.

CARBONATE BEDROCK — Rock consisting chiefly of carbonate minerals, such as limestone and dolomite; specifically, a sedimentary rock composed of more than 50% by weight of carbonate minerals that underlies soil or other unconsolidated, superficial material.

CISTERN — An underground reservoir or tank for storing rainwater.

CLOSED DEPRESSION — A distinctive bowl-shaped depression in the land surface. It is characterized by internal drainage, varying magnitude, and an unbroken ground surface.

CONCENTRATED DRAINAGE DISCHARGE — Stormwater runoff leaving a property via a point source.

CONSERVATION DISTRICT — The Northampton County Conservation District, as applicable and as defined in Section 3(c) of the Conservation District Law (3 P.S. Section 851(c)) that has the authority under a delegation agreement executed with DEP to administer and enforce all or a portion of the regulations promulgated under 25 Pa. Code Chapter 102.

CONSTRUCTED WETLANDS — Constructed wetlands are similar to wet ponds (see below) and consist of a basin which provides for necessary stormwater storage as well as a permanent pool or water level, planted with wetland vegetation. To be successful, constructed wetlands must have adequate natural hydrology (both runoff inputs as well as soils and water table which allow for maintenance of a permanent pool of water). In these cases, the permanent pool must be designed carefully, usually with shallow edge benches, so that water levels are appropriate to support carefully selected wetland vegetation.

CULVERT — A pipe, conduit or similar structure including appurtenant works which carries surface water.

DAM — An artificial barrier, together with its appurtenant works, constructed for the purpose of impounding or storing water or another fluid or semifluid or a refuse bank, fill or structure for highway, railroad or other purposes which does or may impound water or another fluid or semifluid.

DEP — The Pennsylvania Department of Environmental Protection.

DESIGN STORM — The magnitude and temporal distribution of precipitation from a storm event measured in probability of occurrence (e.g., a 5-year storm) and duration (e.g., 24 hours) used in the design and evaluation of stormwater management systems. Also see Return Period.

DETENTION BASIN — A basin designed to retard stormwater runoff by temporarily storing the runoff and releasing it at the appropriate release rate.

DETENTION VOLUME — The volume of runoff that is captured and released into the waters of the Commonwealth at a controlled rate.

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DEVELOPER — A person, partnership, association, corporation, limited liability company or partnership, or other entity, or any responsible person therein or agent thereof, that undertakes any regulated activity of this chapter.

DEVELOPMENT SITE (SITE) — The specific tract of land for which a regulated activity is proposed. See Project Site.

DIFFUSED DRAINAGE — See Sheet Flow.

DIRECT RECHARGE/SUBSURFACE BMP — A BMP designed to direct runoff to groundwater recharge without providing for vegetative uptake. Examples include infiltration trenches, seepage beds, drywells and stormwater drainage wells such that nearly all runoff becomes recharge to groundwater.

DISTURBED AREA — An unstabilized land area where an earth disturbance activity is occurring or has occurred.

DRAINAGE EASEMENT — A right granted by a landowner to a grantee, allowing the use of private land for stormwater management purposes.

DRAINAGE PLAN — The documentation of the proposed stormwater quantity and quality management controls to be used for a given development site, including a BMP operations and maintenance plan, the contents of which are established in § 23-403.

EARTH DISTURBANCE ACTIVITY — A construction or other human activity which disturbs the surface of the land, including, but not limited to, clearing and grubbing, grading, excavations, embankments, road maintenance, building construction and the moving, depositing, stockpiling or storing of soil, rock or earth materials.

EROSION — The natural process by which the surface of the land is worn away by water, wind, or chemical action.

EXISTING USES — Those uses actually attained in the water body on or after November 28, 1975, whether or not they are included in the water quality standards (25 Pa. Code Section 93.1).

FEMA — Federal Emergency Management Agency.

FILL — Man-made deposits of natural soils or rock products and waste materials.

FILTER STRIPS — See Vegetated Buffers.

FLOODPLAIN — Any land area susceptible to inundation by water from any natural source or delineated by applicable FEMA maps and studies as being a special flood hazard area. Also includes areas that comprise Group 13 Soils, as listed in Appendix A of the Pennsylvania DEP Technical Manual for Sewage Enforcement Officers (as amended or replaced from time to time by DEP).

FLOODWAY — The channel of the watercourse and those portions of the adjoining floodplains that are reasonably required to carry and discharge the 100-year flood. Unless otherwise specified, the boundary of the floodway is as indicated on maps and flood insurance studies provided by FEMA. In an area where no FEMA maps or studies have defined the boundary of the 100-year floodway, it is assumed—absent evidence to the contrary—that the floodway extends from the stream to 50 feet from the top of the bank of the stream.

FOREST MANAGEMENT/TIMBER OPERATIONS — Planning and activities necessary for the management of forestland. These include conducting a timber inventory, preparation of forest management plans, silvicultural treatment, cutting budgets, logging road design and construction, timber harvesting, site preparation, and reforestation.

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FREEBOARD — The incremental depth in a stormwater management structure, provided as a safety factor of design, above that required to convey the design runoff event.

GREEN INFRASTRUCTURE — Systems and practices that use or mimic natural processes to infiltrate, evapotranspire, or reuse stormwater on the site where it is generated.

GROUNDWATER RECHARGE — Replenishment of existing natural underground water supplies.

HARDSHIP WAIVER REQUEST — A written request for a waiver alleging that the provisions of this chapter inflict unnecessary hardship upon the applicant. A hardship waiver does not apply to and is not available from the water quality provisions of this chapter and should not be granted.

HOT SPOT LAND USES — A land use or activity that generates higher concentrations of hydrocarbons, trace metals or other toxic substances than typically found in stormwater runoff. These land uses are listed in § 4101.17 for the Bushkill Creek Watershed District and Monocacy Creek Act 167 Stormwater Management Plan (2017) Appendix H.[37]

HYDROLOGIC ENGINEERING CENTER-HYDROLOGIC MODELING SYSTEM (HEC-HMS) — The computer-based hydrologic modeling technique developed by the U.S. Army Corps of Engineers and adapted to the Monocacy Creek Watershed for the Act 167 Plan Update. The model was "calibrated" to reflect actual flow values by adjusting key model input parameters.

HYDROLOGIC SOIL GROUP (HSG) — Infiltration rates of soils vary widely and are affected by subsurface permeability as well as surface intake rates. Soils are classified into four HSGs (A, B, C, and D) according to their minimum infiltration rate, which is obtained for bare soil after prolonged wetting. The NRCS defines the four groups and provides a list of most of the soils in the United States and their group classification. The soils in the area of the development site may be identified from a soil survey report that can be obtained from local NRCS offices or conservation district offices. Soils become less pervious as the HSG varies from A to D (NRCS). The soils in the area of the development site may be identified from a web soil survey report that can be accessed at www.websoilsurvey.sc.egov.usda.gov/app/HomePage.htm.

IMPERVIOUS SURFACE (IMPERVIOUS COVER) — A surface that prevents the infiltration of water into the ground.

INFILTRATION PRACTICE — A practice designed to direct runoff into the ground, e.g., French drain, seepage pit, seepage trench or bioretention area.

KARST — A type of topography or landscape characterized by surface depressions, sinkholes, rock pinnacles/uneven bedrock surface, underground drainage, and caves. Karst is formed on carbonate rocks, such as limestone or dolomite.

LAND DEVELOPMENT (DEVELOPMENT) — Inclusive of any or all of the following meanings: (i) the improvement of one lot or two or more contiguous lots, tracts, or parcels of land for any purpose involving (a) a group of two or more buildings, or (b) the division or allocation of land or space between or among two or more existing or prospective occupants by means of, or for the purpose of streets, common areas, leaseholds, condominiums, building groups, or other features; (ii) any subdivision of land; (iii) development in accordance with Section 503(1.1) of the PA Municipalities Planning Code, including any of the following activities:

A. The improvement of one lot or two or more contiguous lots, tracts or parcels of land for any purpose involving:

37. **Editor's Note: See Attachment 4 to this chapter.**

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(1) A group of two or more residential or nonresidential buildings, whether proposed initially or cumulatively, or a single nonresidential building on a lot or lots regardless of the number of occupants or tenure; or

(2) The division or allocation of land or space, whether initially or cumulatively, between or among two or more existing or prospective occupants by means of, or for the purpose of streets, common areas, leaseholds, condominiums, building groups or other features.

B. A subdivision of land.

C. Development in accordance with Section 503(1.1) of the Pennsylvania Municipalities Planning Code. (see 53 P.S. Section 10503(1.1).)

LOADING RATE — The ratio of the land area draining to the system, as modified by the weighting factors in § 4105.2. for the Bushkill Creek Watershed District and § 6105.5. for the Monocacy Creek Watershed District,[38] compared to the base area of the infiltration system.

LOCAL RUNOFF CONVEYANCE FACILITIES — Any natural channel or man-made conveyance system which has the purpose of transporting runoff from the site to the mainstem.

LOW-IMPACT DEVELOPMENT (LID) — Site design approaches and small-scale stormwater management practices that promote the use of natural systems for infiltration, evapotranspiration, and reuse of rainwater. LID can be applied to new development, urban retrofits, and revitalization projects. LID utilizes design techniques that infiltrate, filter, evaporate, and store runoff close to its source. Rather than rely on costly large-scale conveyance and treatment systems, LID addresses stormwater through a variety of small, cost-effective landscape features located on site.

MAINSTEM (MAIN CHANNEL) — Any stream segment or other conveyance used as a reach in the Bushkill and Monocacy Creek hydrologic model.

MANNING EQUATION (MANNING FORMULA) — A method for calculation of velocity of flow (e.g., feet per second) and flow rate (e.g., cubic feet per second) in open channels based upon channel shape, roughness, depth of flow and slope. "Open channels" may include closed conduits so long as the flow is not under pressure.

MARYLAND STORMWATER DESIGN MANUAL — A stormwater design manual written by the Maryland Department of the Environment and the Center for Watershed Protection. As of January 2004, the Manual can be obtained through the following website: www.mde.state.md.us.

MINIMUM DISTURBANCE/MINIMUM MAINTENANCE PRACTICES (MD/MM) — Site design practices in which careful limits are placed on site clearance prior to development allowing for maximum retention of existing vegetation (woodlands and other), minimum disturbance and compaction of existing soil mantle and minimum site application of chemicals post-development. Typically, MD/MM includes disturbance setback criteria from buildings as well as related site improvements such as walkways, driveways, roadways, and any other improvements. These criteria may vary by community context as well as by type of development being proposed. Additionally, MD/MM also shall include provisions (e.g., deed restrictions, conservation easements) to protect these areas from future disturbance and from application of fertilizers, pesticides, and herbicides.

MUNICIPALITY — Upper Nazareth Township, Northampton County, Pennsylvania.

NO HARM OPTION — The option of using a less restrictive runoff quantity control if it can be shown that adequate and safe runoff conveyance exists and that the less restrictive control would not

38. Editor's Note: See Attachments 4 and 6 to this chapter.

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adversely affect health, safety and property.

NPDES — National Pollutant Discharge Elimination System.

NRCS or NATURAL RESOURCES CONSERVATION SERVICE — USDA Natural Resources Conservation Service (previously SCS).

OIL/WATER SEPARATOR — A structural mechanism designed to remove free oil and grease (and possibly solids) from stormwater runoff.

OUTFALL — "Point source" as described in 40 CFR 122.2 at the point where the Municipality's storm sewer system discharges to surface waters of the commonwealth.

OWNER — One with an interest in and often dominion over a property.

PEAK DISCHARGE — The maximum rate of stormwater runoff from a specific storm event.

PENN STATE RUNOFF MODEL (PSRM) — The computer-based hydrologic modeling technique adapted to each watershed for the Act 167 Plans. The model was calibrated to reflect actual flow values by adjusting key model input parameters.

PERSON — An individual, partnership, public or private association or corporation, firm, trust, estate, municipality, governmental unit, public utility or any other legal entity whatsoever which is recognized by law as the subject of rights and duties.

PERVIOUS AREA — Any area not defined as impervious.

PLAN — Any drawing depicting a subdivision, land development, grading, building permit, or drainage plan for a project regulated under this chapter.

POINT SOURCE — Any discernible, confined and discrete conveyance, including, but not limited to, any pipe, ditch, channel, tunnel or conduit from which stormwater is or may be discharged, as defined in state regulations at 25 Pa. Code Section 92a.2.

PRE-TREATMENT — Measures implemented for hot spot land uses designed to reduce the concentration of hydrocarbons, trace metals and other toxic substances to levels typically found in stormwater runoff.

PRELIMINARY SITE INVESTIGATION — The determination of the depth to bedrock, the depth to the seasonal high water table and the soil permeability for a possible infiltration location on a site through the use of published data and on-site surveys. In carbonate bedrock areas, the location of special geologic features must also be determined along with the associated buffer distance to the possible infiltration area. See Attachment 2.

PROJECT — General name referring to any regulated activity as defined in this chapter.

PROJECT SITE — The specific area of land where any regulated activities in the Municipality are planned, conducted, or maintained.

PUBLIC WATER SUPPLIER — A person who owns or operates a public water system.

PUBLIC WATER SYSTEM — A system which provides water to the public for human consumption which has at least 15 service connections or regularly serves an average of at least 25 individuals daily at least 60 days out of the year. (See 25 Pa. Code Chapter 109.)

QUALIFIED GEOTECHNICAL PROFESSIONAL — A licensed professional geologist or a licensed professional engineer who has a background or expertise in geology or hydrogeology.

QUALIFIED PROFESSIONAL — Any person licensed by the Pennsylvania Department of State or otherwise qualified by law to perform the work required by this chapter.

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RATIONAL METHOD — A method of peak runoff calculation using a standardized runoff coefficient (rational 'c'), acreage of tract and rainfall intensity determined by return period and by the time necessary for the entire tract to contribute runoff. The rational method formula is stated as follows: Q = ciA, where "Q" is the calculated peak flow rate in cubic feet per second, "c" is the dimensionless runoff coefficient (for the Bushkill Creek Watershed, see Bushkill Creek Act 167 Stormwater Management Plan Appendix C-4;[39] for the Monocacy Creek Watershed, see Monocacy Creek Act 167 Stormwater Management Plan Appendix C),[40] "i" is the rainfall intensity in inches per hour, and "A" is the area of the tract in acres. The rational method formula for runoff volume calculation is as follows: V = cPA/12 where "c" and "A" areas noted above, "P" is the total depth of precipitation for the design event in inches, and "V" is the total runoff volume in acre-feet.

REACH — Any of the natural or man-made runoff conveyance channels used for watershed runoff modeling purposes to connect the subareas and transport flows downstream.

RECHARGE VOLUME (REV) — The portion of the water quality volume (WQv) used to maintain groundwater recharge rates at development sites. (See § 4101.11. for the Bushkill Creek Watershed District and §§ 6101 through 6102 for the Monocacy Creek Watershed District.)[41]

REGULATED ACTIVITIES — Any earth disturbance activities or any activities that involve the alteration or development of land in a manner that may affect stormwater runoff, which are subject to regulation by this chapter. This includes any subdivision, land development or building/construction permit projects involving regulated earth disturbance activities.

REGULATED EARTH DISTURBANCE ACTIVITIES — Activity involving earth disturbance subject to regulation under 25 Pa. Code Chapter 92, 25 Pa. Code Chapter 102, or the Clean Streams Law.[42]

RELEASE RATE — The percentage of the predevelopment peak rate of runoff for a development site to which the post-development peak rate of runoff must be controlled to avoid peak flow increases throughout the watershed.

RETENTION VOLUME/REMOVED RUNOFF — The volume of runoff that is captured and not released directly into the surface waters of this Commonwealth during or after a storm event.

RETURN PERIOD — The average interval, in years, within which a storm event of a given magnitude can be expected to occur one time. For example, the 25-year return period rainfall would be expected to occur on average once every 25 years; or stated in another way, the probability of a 25-year storm occurring in any one year is 0.04 (i.e., a 4% chance).

RIPARIAN BUFFER — A permanent area of trees and shrubs located adjacent to streams, lakes, ponds and wetlands.

ROAD MAINTENANCE — Earth disturbance activities within the existing road cross section such as grading and repairing existing unpaved road surfaces, cutting road banks, cleaning or clearing drainage ditches and other similar activities.

RUNOFF — Any part of precipitation that flows over the land.

RUNOFF BMP — A BMP designed for essentially the full volume of runoff entering the BMP to be discharged off site.

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39. Editor's Note: See Attachment 4 to this chapter.

40. Editor's Note: See Attachment 6 to this chapter.

41. Editor's Note: See Attachments 4 and 6 to this chapter.

42. Editor's Note: See 35 P.S. § 691.1 et seq.

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SEDIMENT — Soils or other materials transported by surface water as a product of erosion.

SEDIMENT TRAPS/CATCH BASIN SUMPS — Chambers which provide storage below the outlet in a storm inlet to collect sediment, debris and associated pollutants, typically requiring periodic cleanout.

SEEPAGE PIT/SEEPAGE TRENCH — An area of excavated earth filled with loose stone or similar material and into which surface water is directed for infiltration into the ground.

SEPARATE STORM SEWER SYSTEM — A conveyance or system of conveyances (including roads with drainage systems, municipal streets, catch basins, curbs, gutters, ditches, man-made channels or storm drains) primarily used for collecting and conveying stormwater runoff.

SHEET FLOW — Stormwater runoff flowing in a thin layer over the ground surface.

SOIL-COVER-COMPLEX METHOD — A method of runoff computation developed by NRCS which is based upon relating soil type and land use/cover to a runoff parameter called a "curve number."

SPECIAL GEOLOGIC FEATURES — Carbonate bedrock features, including but not limited to closed depressions, existing sinkholes, fracture traces, lineaments, joints, faults, caves, pinnacles, and geologic contacts between carbonate and noncarbonate bedrock which may exist and must be identified on a site when stormwater management BMPs are being considered.

SPILL PREVENTION AND RESPONSE PROGRAM — A program that identifies procedures for preventing and as needed, cleaning up potential spills and makes such procedures known and the necessary equipment available to appropriate personnel.

STATE WATER QUALITY REQUIREMENTS — The regulatory requirements to protect, maintain, reclaim, and restore water quality under Title 25 of the Pennsylvania Code (Chapters 93 and 96) and the Clean Streams Law, including:

A. Each stream segment in Pennsylvania has a designated use, such as "cold water fishes" or "potable water supply," which is listed in Chapter 93. These uses must be protected and maintained, under state regulations.

B. "Existing uses" are those attained as of November 1975, regardless of whether they have been designated in Chapter 93. Regulated earth disturbance activities must be designed to protect and maintain existing uses and maintain the level of water quality necessary to protect those uses in all streams, and to protect and maintain water quality in special protection streams.

C. Water quality involves the chemical, biological and physical characteristics of surface water bodies. After regulated earth disturbance activities are complete, these characteristics can be impacted by addition of pollutants such as sediment, and changes in habitat through increased flow volumes and/or rates as a result of changes in land surface area from those activities. Therefore, permanent discharges to surface waters must be managed to protect the stream bank, streambed and structural integrity of the waterway, to prevent these impacts.

STORAGE INDICATION METHOD — A method of routing or moving an inflow hydrograph through a reservoir or detention structure. The method solves the mass conservation equation to determine an outflow hydrograph as it leaves the storage facility.

STORM DRAINAGE PROBLEM AREAS — Areas which lack adequate stormwater collection and/or conveyance facilities and which present a hazard to persons or property. These areas are either documented in Attachment 3[43] or identified by the Municipality or Municipal Engineer.

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STORM SEWER — A system of pipes or other conduits which carries intercepted surface runoff, street water and other wash waters, or drainage, but excludes domestic sewage and industrial wastes.

STORMWATER — Drainage runoff from the surface of the land resulting from precipitation or snow or ice melt.

STORMWATER CONTROL MEASURE (SCM) — See Best Management Practice (BMP).

STORMWATER DRAINAGE WELLS — Wells for injection of stormwater to the subsurface that are regulated by the U.S. Environmental Protection Agency to protect underground sources of drinking water.

STORMWATER FILTERS — Any number of structural mechanisms such as multichambered catch basins, sand/peat filters, sand filters, and so forth which are installed to intercept stormwater flow and remove pollutants prior to discharge. Typically, these systems require periodic maintenance and cleanout.

STORMWATER MANAGEMENT FACILITIES OPERATIONS AND MAINTENANCE PLAN — Documentation, included as part of a drainage plan, detailing the proposed BMPs/SCMs, how they will be operated and maintained and who will be responsible.

STORMWATER MANAGEMENT FACILITY — Any structure, natural or man-made, that, due to its condition, design, or construction, conveys, stores, or otherwise affects stormwater runoff. Typical stormwater management facilities include, but are not limited to: detention and retention basins; open channels; storm sewers; pipes; and infiltration facilities.

STORMWATER MANAGEMENT SITE PLAN — The plan prepared by the applicant or his representative indicating how stormwater runoff will be managed at the development site in accordance with this chapter, adopted by Lehigh and/or Northampton County for the watersheds as required by the Act of October 4, 1978, P.L. 864, (Act 167), as amended, and known as the "Storm Water Management Act."[44] Stormwater management site plan will be designated as SWM site plan throughout this chapter.

STREAM — A watercourse.

SUBAREA — The smallest unit of watershed breakdown for hydrologic modeling purposes for which the runoff control criteria have been established in the stormwater management plan.

SUBDIVISION — As defined in the Pennsylvania Municipalities Planning Code, Act of July 31, 1968, P.L. 805, No. 247,[45] the division or redivision of a lot, tract or parcel of land by any means into two or more lots, tracts, parcels or other divisions of land including changes in existing lot lines for the purpose, whether immediate or future, of lease, partition by the court for distribution to heirs or devisees, transfer of ownership or building or lot development; provided, however, that the subdivision by lease of land for agricultural purposes into parcels of more than 10 acres, not involving any new street or easement of access or any residential dwelling, shall be exempted.

SURFACE WATERS — Perennial and intermittent streams, rivers, lakes, reservoirs, ponds, wetlands, springs, natural seeps and estuaries, excluding water at facilities approved for wastewater treatment such as wastewater treatment impoundments, cooling water ponds and constructed wetlands used as part of a wastewater treatment process.

SWALE — A low-lying stretch of land which gathers or carries surface water runoff. See also

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43. Editor's Note: See attachment to this chapter.

44. Editor's Note: See 32 P.S. § 680.1 et seq.

45. Editor's Note: See 53 P.S. § 10101 et seq.

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Vegetated Swales.

TECHNICAL BEST MANAGEMENT PRACTICE MANUAL AND INFILTRATION FEASIBILITY REPORT, NOVEMBER 2002 — The report written by Cahill Associates that addresses the feasibility of infiltration in carbonate bedrock areas in the Little Lehigh Creek Watershed. The report is available at the Lehigh Valley Planning Commission offices.

TIMBER HARVESTING ACTIVITIES — Earth disturbance activities, including the construction of skid trails, logging roads, landing areas and other similar logging or silvicultural practices.

TRASH/DEBRIS COLLECTORS — Racks, screens or other similar devices installed in a storm drainage system to capture coarse pollutants (trash, leaves, etc.).

USDA — United States Department of Agriculture.

VEGETATED BUFFERS — Gently sloping areas that convey stormwater as sheet flow over a broad, densely vegetated earthen area, possibly coupled with the use of level spreading devices. Vegetated buffers should be situated on minimally disturbed soils, have low-flow velocities and extended residence times.

VEGETATED ROOFS — Vegetated systems installed on roofs that generally consist of a waterproof layer, a root-barrier, drainage layer (optional), growth media, and suitable vegetation. Vegetated roofs store and eventually evapotranspirate the collected rooftop rainfall; overflows may be provided for larger storms.

VEGETATED SWALES —

A. Vegetated earthen channels designed to convey stormwater. These swales are not considered to be water quality BMPs.

B. Broad, shallow, densely vegetated, earthen channels designed to treat stormwater while slowly infiltrating, evapotranspirating, and conveying it. Swales should be gently sloping with low flow velocities to prevent erosion. Check dams may be added to enhance performance.

VEGETATED/SURFACE BMP — A BMP designed to provide vegetative uptake and soil renovation or surface infiltration of runoff. Capture/reuse BMPs are included if the captured runoff is applied to vegetated areas. Examples include bioretention and surface infiltration basins.

WATER QUALITY INSERTS — Any number of commercially available devices that are inserted into storm inlets to capture sediment, oil, grease, metals, trash, debris, etc.

WATER QUALITY VOLUME (WQV) — The increase in runoff volume on a development site associated with a 2-year, 24-hour storm event.

WATERCOURSE — Any channel of conveyance of surface water having defined bed and banks, whether natural or artificial, with perennial or intermittent flow.

WATERS OF THIS COMMONWEALTH — Any and all rivers, streams, creeks, rivulets, impoundments, ditches, watercourses, storm sewers, lakes, dammed water, wetlands, ponds, springs, and all other bodies or channels of conveyance of surface and underground water, or parts thereof, whether natural or artificial, within or on the boundaries of this Commonwealth.

WATERSHED — Region or area drained by a river, watercourse, or other surface water of this Commonwealth.

WET DETENTION PONDS — Basins that provide for necessary stormwater storage as well as a permanent pool of water. To be successful, wet ponds must have adequate natural hydrology (both runoff inputs as well as soils and water table which allow for maintenance of a permanent pool of

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water) and must be able to support a healthy aquatic community so as to avoid creation of mosquito and other health and nuisance problems.

WETLAND — Areas that are inundated or saturated by surface or groundwater at a frequency and duration sufficient to support, and that under normal circumstances do support, a prevalence of vegetation typically adapted for life in saturated soil conditions, including swamps, marshes, bogs, and similar areas.

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Part 3
STORMWATER MANAGMENT REQUIREMENTS

§ 23-301. General Requirements. [Ord. No. 196, 8/21/2024]

1. For all regulated activities, unless preparation of an SWM site plan is specifically exempted in § 23-106:

   A. Preparation and implementation of an approved SWM site plan is required.

   B. No regulated activities shall commence until the Municipality issues written approval of an SWM site plan, which demonstrates compliance with the requirements of this chapter.

2. SWM site plans approved by the Municipality, in accordance with § 23-409, shall be on site throughout the duration of the regulated activity.

3. The Municipality may, after consultation with DEP, approve measures for meeting the state water quality requirements other than those in this chapter, provided that they meet the minimum requirements of, and do not conflict with, state law, including, but not limited to, the Clean Streams Law.

4. For all regulated earth disturbance activities, erosion and sediment control BMPs shall be designed, implemented, operated, and maintained during the regulated earth disturbance activities (e.g., during construction) to meet the purposes and requirements of this chapter and to meet all requirements under Title 25 of the Pennsylvania Code and the Clean Streams Law. Various BMPs and their design standards are listed in the Erosion and Sediment Pollution Control Program Manual (E&S Manual), No. 363-2134-008, as amended or replaced from time to time.[46]

5. Impervious Areas.

   A. The measurement of impervious areas shall include all of the impervious areas in the total proposed development even if development is to take place in stages.

   B. For development taking place in stages, the entire development plan must be used in determining conformance with this chapter.

   C. For projects that add impervious area to a parcel, the total impervious area on the parcel is subject to the requirements of this chapter; except that the volume controls in § 23-309 and the peak rate controls of § 23-310 do not need to be retrofitted to existing impervious areas that are not being altered by the proposed regulated activity.

6. Stormwater flows onto adjacent property shall not be created, increased, decreased, relocated, or otherwise altered without written notification to the effected property owner(s). Such stormwater flows shall be subject to the requirements of this chapter.

7. All regulated activities shall include such measures as necessary to:

   A. Protect health, safety, and property.

   B. Meet the water quality goals of this chapter by implementing measures to:

      (1) Minimize disturbance to floodplains, wetlands, and wooded areas.

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46. Editor's Note: See § 23-1101.

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(2) Maintain or extend riparian buffers.

(3) Avoid erosive flow conditions in natural flow pathways.

(4) Minimize thermal impacts to waters of this Commonwealth.

(5) Disconnect impervious surfaces by directing runoff to pervious areas, wherever possible.

C. Incorporate methods described in the Pennsylvania Stormwater Best Management Practices Manual (BMP Manual), as amended or replaced from time to time.[47] If methods other than green infrastructure and LID methods are proposed to achieve the volume and rate controls required under this chapter, the SWM site plan must include a detailed justification demonstrating that the use of LID and green infrastructure is not practicable.

8. Infiltration BMPs should be spread out, made as shallow as practicable, and located to maximize use of natural on-site infiltration features while still meeting the other requirements of this chapter.

9. The design of all facilities over karst shall include an evaluation of measures to minimize adverse effects. The provisions of the Monocacy Creek Watershed Act 167 Plan, Appendix D,[48] with respect to the Recommendation Chart for Infiltration Stormwater Management BMPs in Carbonate Bedrock shall apply to all stormwater management districts. (See References.)[49]

10. Normally dry, open top, storage facilities should completely drain both the volume control and rate control capacities over a period of time not less than 24 and not more than 72 hours from the end of the design storm.

11. The design storm volumes to be used in the analysis of peak rates of discharge should be obtained from the latest version of the Precipitation-Frequency Atlas of the United States, National Oceanic and Atmospheric Administration (NOAA), National Weather Service, Hydrometeorological Design Studies Center, Silver Spring, Maryland.

    NOAA's Atlas 145 can be accessed at: http://hdsc.nws.noaa.gov/hdsc/pfds/

12. For all regulated activities, SWM BMPs shall be designed, implemented, operated, and maintained to meet the purposes and requirements of this chapter and to meet all requirements under Title 25 of the Pennsylvania Code, the Clean Streams Law, and the Storm Water Management Act.

13. Various BMPs and their design standards are listed in the Pennsylvania Stormwater BMP Manual, as amended or replaced from time to time.

14. Where a site is traversed by watercourses other than those for which a 100-year floodplain is defined by the Municipality, there shall be provided drainage easements conforming substantially with the line of such watercourses. The width of any easement shall be adequate to provide for unobstructed flow of storm runoff based on calculations made in conformance with § 4105 for the Bushkill Creek Watershed District and § 6105 for the Monocacy Creek Watershed District[50] for the 100-year return period runoff and to provide a freeboard allowance of 0.5 foot above the design water surface level. The terms of the easement shall prohibit excavation, the placing of fill or structures, and any alterations which may adversely affect the flow of stormwater within any portion of the easement.

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47. Editor's Note: See § 23-1101.

48. Editor's Note: See Attachment 6 to this chapter.

49. Editor's Note: See § 23-1101.

50. Editor's Note: See Attachments 4 and 6 to this chapter.

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Also, periodic maintenance of the easement to ensure proper runoff conveyance shall be required. Watercourses for which the 100-year floodplain is formally defined are subject to the applicable municipal floodplain regulations.

15. When it can be shown that, due to topographic conditions, natural drainage swales on the site cannot adequately provide for drainage, open channels may be constructed conforming substantially to the line and grade of such natural drainage swales. Capacities of open channels shall be calculated using the Manning Equation.

16. Techniques described in Attachment 8 to this chapter regarding low-impact development practices are encouraged because they reduce the costs of complying with the requirements of this chapter and the state water quality requirements.

17. Infiltration for stormwater management is encouraged where soils and geology permit, consistent with the provisions of this chapter and, where appropriate, the Recommendation Chart for Infiltration Stormwater Management BMPs in Carbonate Bedrock in Monocacy Creek Watershed Act 167 Plan, Appendix D. Infiltration is encouraged for capturing and treating the water quality volume (as calculated in § 4101 for the Bushkill Creek Watershed District, and in § 6101 and 6102 for the Monocacy Creek Watershed District) any part of the water quality volume or for otherwise meeting the purposes of this chapter.

§ 23-302. Permit Requirements by Other Government Entities. [Ord. No. 196, 8/21/2024]

The following permit requirements apply to certain regulated and earth disturbance activities and must be met prior to commencement of regulated and earth disturbance activities, as applicable:

1. All regulated and earth disturbance activities subject to permit requirements by DEP under regulations at 25 Pa. Code Chapter 102.

2. Work within natural drainageways subject to permit by DEP under 25 Pa. Code Chapter 102 and Chapter 105.

3. Any stormwater management facility that would be located in or adjacent to surface waters of the commonwealth, including wetlands, subject to permit by DEP under 25 Pa. Code Chapter 105.

4. Any stormwater management facility that would be located on a state highway right-of-way or require access from a state highway shall be subject to approval by the Pennsylvania Department of Transportation (PennDOT).

5. Culverts, bridges, storm sewers or any other facilities which must pass or convey flows from the tributary area and any facility which may constitute a dam subject to permit by DEP under 25 Pa. Code Chapter 105.

§ 23-303. Erosion and Sediment Control During Regulated Earth Disturbance Activities. [Ord. No. 196, 8/21/2024]

1. General Standards.

   A. No regulated earth disturbance activities within the Municipality shall commence until approval by the Municipality of an erosion and sediment control plan for construction activities. Written approval by DEP or a delegated County Conservation District shall satisfy this requirement.

   B. An erosion and sediment control plan is required by DEP regulations for any earth disturbance

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activity of 5,000 square feet or more under 25 Pa. Code Section 102.4(b).

C. A DEP NPDES stormwater discharges associated with construction activities permit is required for regulated earth disturbance activities under 25 Pa. Code Chapter 92a.

D. Evidence of any necessary permit(s) for regulated earth disturbance activities from the appropriate DEP regional office or County Conservation District must be provided to the Municipality before the commencement of an earth disturbance activity.

E. A copy of the erosion and sediment control plan and any permit, as required by DEP regulations, shall be available at the project site at all times.

2. Performance Principles.

A. Measures used to control erosion and reduce sedimentation shall meet the standards and specifications of the Pennsylvania Department of Environmental Protection Erosion and Sediment Pollution Control Program Manual, as amended. The Township Engineer, or other officials as designated, shall ensure compliance with the appropriate specifications, copies of which are available from the Northampton County Conservation District.

B. The following measures are effective in minimizing erosion and sedimentation and shall be included where applicable in the control plan:

(1) Stripping of vegetation and grading shall be kept to a minimum.

(2) Development plans shall preserve significant natural features, keep cut-and-fill operations to a minimum, and ensure conformity with topography so as to create the least erosion potential and adequately handle the volume and velocity of surface water runoff.

(3) Whenever feasible, natural vegetation shall be retained, protected and supplemented.

(4) The disturbed area and the duration of exposure shall be in accordance with the Pennsylvania Department of Environmental Protection Erosion and Sediment Pollution Control Program Manual.[51]

(5) Disturbed soils shall be stabilized by permanent vegetation and/or by mechanical erosion control and drainage measures as soon as practicable in the development process.

(6) Temporary vegetation and/or mulching shall be used to protect exposed critical areas during development.

(7) Provisions shall be made to effectively accommodate the increased runoff caused by soil and surface conditions during and after development. Where necessary, the rate of surface water runoff will be mechanically retarded.

(8) Sediment in the runoff water shall be trapped until the disturbed area is stabilized by the use of debris basins, sediment basins, silt traps, or similar measures.

3. Grading for Drainage. To provide more suitable sites for building and other uses, improve surface drainage and control erosion, the following requirements shall be met:

A. All lots, tracts or parcels within a proposed project shall provide proper drainage away from

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51. Editor's Note: See Part 11 of this chapter.

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buildings and dispose of surface water without ponding, except where an alternative drainage system is approved. Natural drainage patterns shall be preserved wherever possible.

B. Cut-and-fill slopes shall not be steeper than 3:1 unless stabilized by a retaining wall or cribbing.

C. Adequate provisions shall be made to prevent surface water from damaging the cut face of excavations of the sloping surfaces of fills.

D. Cut and fills shall not endanger adjoining property.

E. Fill shall be placed and compacted so as to minimize sliding or erosion of the soil.

F. All cuts and fills within 100-year floodplain areas must be in accordance with the Township's Floodplain Ordinance.[52] Fills placed adjacent to constructed channels shall have suitable protection against erosion during periods of flooding.

G. Grading will not be done in such a way as to divert water onto the property of other landowners without the written consent of the landowners.

H. During grading operations, necessary measures for dust control will be exercised.

I. No equipment shall alter or damage the bed and banks of any stream, unless approved by the Pennsylvania Department of Environmental Protection. Equipment shall cross streams only at approved crossings utilizing culverts or bridges.

§ 23-304. (Reserved)

§ 23-305. (Reserved)

§ 23-306. (Reserved)

§ 23-307. (Reserved)

§ 23-308. (Reserved)

§ 23-309. Volume Controls. [Ord. No. 196, 8/21/2024]

The green infrastructure and low impact development practices provided in the Pennsylvania Department of Environmental Protection's Pennsylvania Stormwater Best Management Practices Manual (December 2006), as amended or replaced from time to time, shall be utilized for all regulated activities wherever possible. Water volume controls shall be implemented using the Design Storm Method in Subsection 1 or the Simplified Method in Subsection 2 below. For regulated activity areas equal or less than one acre that do not require hydrologic routing to design the stormwater facilities, this chapter establishes no preference for either methodology; therefore, the applicant may select either methodology on the basis of economic considerations, the intrinsic limitations on applicability of the analytical procedures associated with each methodology and other factors.

1. The Design Storm Method [CG-1 in the Pennsylvania Department of Environmental Protection's Pennsylvania Stormwater Best Management Practices Manual (December 2006), as amended or replaced from time to time] is applicable to any size of regulated activity. This method requires

52. Editor's Note: See Ch. 27, § 27-504, FP Floodplain District (Flood-Prone Area).

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detailed modeling based on site conditions.

A. Do not increase the post-development total runoff volume for all storms equal to or less than the 2-year, 24-hour duration precipitation.

B. For modeling purposes:

(1) Existing (predevelopment) non-forested pervious areas must be considered meadow in good condition.

(2) 20% of existing impervious area, when present, shall be considered meadow in good condition in the model for existing conditions.

2. The Simplified Method [CG-2 in the Pennsylvania Department of Environmental Protection's Pennsylvania Stormwater Best Management Practices Manual (December 2006), as amended or replaced from time to time] provided below is independent of site conditions and should be used if the Design Storm Method is not followed. This method is not applicable to regulated activities greater than one acre or for projects that require design of stormwater storage facilities. For new impervious surfaces:

A. Stormwater facilities shall capture at least the first two inches of runoff from all new impervious surfaces.

B. At least the first one inch of runoff from new impervious surfaces shall be permanently removed from the runoff flow, i.e., it shall not be released into the surface waters of this Commonwealth. Removal options include reuse, evaporation, transpiration, and infiltration.

C. Wherever possible, infiltration facilities should be designed to accommodate infiltration of the entire permanently removed runoff; however, in all cases at least the first 0.5 inch of the permanently removed runoff should be infiltrated.

D. This method is exempt from the requirements of § 4105 for the Bushkill Creek Watershed District and § 6105 for the Monocacy Creek Watershed District.[53]

§ 23-310. Rate Controls. [Ord. No. 196, 8/21/2024]

1. For areas not covered by a release rate map from an approved Act 167 Stormwater Management Plan:

Post-development discharge rates shall not exceed the pre-development discharge rates for the 1-, 2-, 5-, 10-, 25-, 50-, and 100-year, 24-hour storm events. If it is shown that the peak rates of discharge indicated by the post-development analysis are less than or equal to the peak rates of discharge indicated by the predevelopment analysis for 1-, 2-, 5-, 10-, 25-, 50-, and 100-year, 24-hour storms, then the requirements of this section have been met. Otherwise, the applicant shall provide additional controls as necessary to satisfy the peak rate of discharge requirement.

2. For areas covered by a release rate map from an approved Act 167 Stormwater Management Plan:

For the 1-, 2-, 5-, 10-, 25-, 50-, and 100-year, 24-hour storm events, the post-development peak discharge rates will follow the applicable approved release rate maps. For any areas not shown on the release rate maps, the post-development discharge rates shall not exceed the pre-development discharge rates.

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53. Editor's Note: See Attachments 4 and 6 to this chapter.

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§ 23-311. Riparian Buffers. [Ord. No. 196, 8/21/2024]

1. In order to protect and improve water quality, a riparian buffer easement shall be created and recorded as part of any project that encompasses a riparian buffer.

2. Except as required by Pa. Code Chapter 102, the riparian buffer easement shall be measured to be the greater of the limit of the 100-year floodplain or a minimum of 50 feet from the top of the streambank (on each side).

3. Minimum Management Requirements for Riparian Buffers.

   A. Existing native vegetation shall be protected and maintained within the riparian buffer easement.

   B. Whenever practicable invasive vegetation shall be actively removed and the riparian buffer easement shall be planted with native trees, shrubs and other vegetation to create a diverse native plant community appropriate to the intended ecological context of the site.

4. The riparian buffer easement shall be enforceable by the Municipality and shall be recorded in the appropriate County Recorder of Deeds office, so that it shall run with the land and shall limit the use of the property located therein. The easement shall allow for continued private ownership and shall count toward the minimum lot area as required by zoning, unless otherwise specified in the municipal Zoning Ordinance.

5. Any permitted use within the riparian buffer easement shall be conducted in a manner that will maintain the extent of the existing 100-year floodplain, improve or maintain the stream stability, and preserve and protect the ecological function of the floodplain.

6. The following conditions shall apply when public and/or private recreation trails are permitted within riparian buffers:

   A. Trails shall be for non-motorized use only.

   B. Trails shall be designed to have the least impact on native plant species and other sensitive environmental features.

7. Septic system drainfields and sewage disposal systems shall not be permitted within the riparian buffer easement and shall comply with setback requirements established under 25 Pa. Code Chapter 73.

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Part 4
DRAINAGE PLAN REQUIREMENTS
[Ord. No. 196, 8/21/2024]

§ 23-401. General Requirements. [Ord. No. 196, 8/21/2024]

For any of the activities regulated under this chapter, prior to the final approval of any proposed project plans or the issuance of any permit or the commencement of any regulated earth disturbance activity, the owner, subdivider, applicant or his agent shall submit a drainage plan and receive municipal approval of the plan.

§ 23-402. Exemptions. [Ord. No. 196, 8/21/2024]

Exemptions from the drainage plan requirements are as specified in § 23-106.

§ 23-403. Drainage Plan Contents. [Ord. No. 196, 8/21/2024]

The following items shall be included in the drainage plan:

1. General.
   - A. General description of project.
   - B. General description of proposed permanent stormwater controls.
   - C. The name and address of the project site, the name and address of the owner of the property and the name of the individual or firm preparing the drainage plan.
2. Map(s) of the project area showing:
   - A. The location of the project relative to highways, municipalities or other identifiable landmarks.
   - B. Existing contours at intervals of two feet. In areas of steep slopes (greater than 15%), five-foot contour intervals may be used. Off-site drainage areas impacting the project including topographic detail.
   - C. Streams, lakes, ponds or other bodies of water within the project area.
   - D. Other features including flood hazard boundaries, existing drainage swales, wetlands, closed depressions, sinkholes and areas of natural vegetation to be preserved.
   - E. Locations of proposed underground utilities, sewers and water lines. The locations of all existing and proposed utilities, sanitary sewers and water lines within 50 feet of property lines of the project site.
   - F. An overlay showing soil types and boundaries based on the Lehigh or Northampton County Soil Survey, as applicable, latest edition. Any hydric soils present on the site should be identified as such.
   - G. An overlay showing geologic types, boundaries and any special geologic features present on the site.
   - H. Proposed changes to land surface and vegetative cover.

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I. Proposed structures, roads, paved areas and buildings.

J. Final contours at intervals of two feet. In areas of steep slopes (greater than 15%), five-foot contour intervals may be used.

K. Stormwater management district boundaries applicable to the site.

L. Clear identification of the location and nature of permanent stormwater BMPs.

M. An adequate access easement around all stormwater BMPs that would provide municipal ingress to and egress from a public right-of-way.

N. A schematic showing all tributaries contributing flow to the site and all existing man-made features beyond the property boundary that would be affected by the project.

O. The location of all public water supply wells within 400 feet of the project and all private water supply wells within 100 feet of the project.

3. Stormwater Management Controls and BMPs.

A. All stormwater management controls and BMPs shall be shown on a map and described, including:

(1) Groundwater recharge methods such as seepage pits, beds or trenches. When these structures are used, the locations of septic tank infiltration areas and wells shall be shown.

(2) Other control devices or methods such as rooftop storage, semipervious paving materials, grass swales, parking lot ponding, vegetated strips, detention or retention ponds, storm sewers, etc.

B. All calculations, assumptions and criteria used in the design of the BMPs shall be shown.

C. All site testing data used to determine the feasibility of infiltration on a site.

D. All details and specifications for the construction of the stormwater management controls and BMPs.

4. The stormwater management facilities operations and management plan, as required in Part 6, describing how each permanent stormwater BMP will be operated and maintained and the identity of the person(s) responsible for operations and maintenance. A statement must be included, signed by the landowner, acknowledging that the stormwater BMPs are fixtures that cannot be altered or removed without approval by the Municipality.

5. Act 167 Compliance Information.

A. All drainage plans shall record existing impervious area and proposed maximum impervious area for the subject property and for each parcel that is part of a subdivision plan. Parcels related to subdivision plans that are on the same starting deed shall also be documented even if no physical subdivision/consolidation is proposed.

B. Based on Northampton County Tax Parcel and Recording records, it shall be determined what the parent tract is as of the start date of the applicable watershed district's Act 167 stormwater management plan and how many parcels have been subdivided to date.

C. Historical aerial photography available from the internet-based Pennsylvania Spatial Data

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Access resource shall be used to verify what impervious area may have existed before the Act 167 management plan for each watershed district in the Township. Pursuant to Act 167 regulations, impervious area predating the start date for the stormwater management plan for each stormwater management district is exempt from the requirements of this chapter. This shall be done for all parcels related to the parent tract since the start date of applicable watershed district's Act 167 stormwater management plan.

D. Based on historical aerial photography, or other records deemed authoritative by the Township, the applicant shall record all impervious area to date added to all parent tract-related parcels after the Act 167 start date. Applicant then can determine if any of the 10,000 square feet of impervious area allowable by the Act 167 plan can be assigned to new and existing parcels. As applicable, the applicant shall assign and record the allowable increase in impervious area for each parcel associated with the subdivision before Act 167 stormwater management requirements must be met.

E. A note shall be added to the drainage plan stating that Act 167 stormwater management requirements must be met for all impervious area added since the start date of the applicable Act 167 stormwater management plan after the first 1,000 square feet of impervious area is added beyond the calculated allowable increase for each parcel.

F. For all projects, a table shall be provided that enumerates the maximum allowable impervious area for each lot/property for which the stormwater management facilities are designed.

G. In the case of subdivision and land development projects, all pertinent Act 167 compliance information, including the aforementioned table of maximum allowable impervious areas, shall be included on the record plans. For subsequent development of individual lots/properties, maximum allowable impervious areas, shall also be noted on the plot/grading plan.

6. Environmental Resources Site Design Assessment.

A. An environmental resources site design assessment that describes the following:

(1) The extent to which the proposed grading and impervious cover avoid disturbance of significant environmental resources and preserve existing site hydrology.

(2) An assessment of whether alternative grading and impervious cover site design could lessen the disturbance of significant environmental resources and/or make better use of the site hydrologic resources.

(3) A description of how the proposed stormwater management controls and BMPs serve to mitigate any adverse impacts on environmental resources on the site.

B. Significant environmental resources considered in the site design assessment include, but are not limited to, steep slopes, ponds, lakes, streams, wetlands, hydric soils, floodplains, riparian vegetation, native vegetation and special geologic features.

§ 23-404. Plan Submission. [Ord. No. 196, 8/21/2024]

1. For regulated activities specified in § 23-105, Subsections 1 and 2:

A. The drainage plan shall be submitted by the applicant to the Township as part of the application for any regulated activity.

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B. Two paper copies of the drainage plan shall be submitted along with a digital copy of all submitted documents in PDF format. The digital copies may be submitted by flash drive, email, or emailed file share link.

C. Distribution of the drainage plan will be as follows:

(1) One copy will be retained by the Township.

(2) One copy will be forwarded to the Municipal Engineer.

D. Drainage plans involving more than 10,000 square feet of additional impervious cover shall be submitted by the applicant to the LVPC as part of the preliminary plan submission. The LVPC will conduct an advisory review of the drainage plan for consistency with the Bushkill Creek or Monocacy Creek Watershed Stormwater Management Plan. The LVPC will not review details of the erosion and sedimentation plan or the BMP operations and maintenance plan.

The LVPC will provide written comments to the applicant and the Municipality, within a time frame consistent with established procedures under the Municipalities Planning Code, as to whether the drainage plan has been found to be consistent with the stormwater management plan.

2. For regulated activities specified in § 23-105, Subsections 3 and 4, the drainage plan shall be submitted by the applicant to the Zoning and/or Code Enforcement Officer as part of the building permit application.

3. For regulated activities specified in § 23-105, Subsections 5, 6 and 7, the drainage plan shall be submitted by the applicant to the Lehigh Valley Planning Commission for coordination with the DEP permit application process under Chapter 105 (Dam Safety and Waterway Management), Chapter 106 (Floodplain Management) of DEP's rules and regulations and the NPDES regulations.

4. Earthmoving for all regulated activities under § 23-105 shall be conducted in accordance with the current federal and state regulations relative to the NPDES and DEP Chapter 102 regulations.

§ 23-405. Drainage Plan Review. [Ord. No. 196, 8/21/2024]

1. The Municipality shall review the drainage plan, including the BMP operations and maintenance plan, for consistency with the provisions of this chapter and with any permits issued by DEP. The Municipality shall also review the drainage plan against any additional storm drainage provisions contained in the municipal subdivision and land development or Zoning Ordinance, as applicable.

2. The Municipality shall notify the applicant in writing within 45 days whether the SWM site plan is approved or disapproved. If the SWM site plan involves a Subdivision and Land Development Plan, the notification shall occur within the time period allowed by the Municipalities Planning Code (90 days). If a longer notification period is provided by other statute, regulation, or ordinance, the applicant will be so notified by the Municipality.

3. The Municipality shall not approve any subdivision or land development (regulated activities § 23-105, Subsections 1 and 2) or building permit application (regulated activities § 23-105, Subsections 3 and 4) if the drainage plan has been found to be inconsistent with the stormwater management plan.

4. The Municipality may require an as-built survey of all stormwater BMPs and an explanation of any discrepancies with the drainage plan.

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5. For any SWM site plan that proposes to use any BMPs other than green infrastructure and LID practices to achieve the volume and rate controls required under this chapter, the Municipality will not approve the SWM site plan unless it determines that green infrastructure and LID practices are not practicable.

6. If the Municipality disapproves the SWM site plan, the Municipality will state the reasons for the disapproval in writing. The Municipality also may approve the SWM site plan with conditions and, if so, shall provide the acceptable conditions for approval in writing.

§ 23-406. Modification of Plans. [Ord. No. 196, 8/21/2024]

A modification to a submitted drainage plan for a proposed development site which involves a change in control methods or techniques, or which involves the relocation or redesign of control measures, or which is necessary because soil or other conditions are not as stated on the drainage plan (as determined by the Municipality) shall require a resubmission of the modified drainage plan consistent with § 23-404 subject to review per § 23-405 of this chapter.

§ 23-407. Hardship Waiver Procedure. [Ord. No. 196, 8/21/2024]

1. The Municipality may hear requests for waivers where it is alleged that the provisions of this chapter inflict unnecessary hardship upon the applicant. The waiver request shall be in writing and accompanied by the requisite fee based upon a fee schedule adopted by the Municipality. A copy of the waiver request shall be provided to each of the following: Municipality, Municipal Engineer, Municipal Solicitor and Lehigh Valley Planning Commission. The request shall fully document the nature of the alleged hardship.

2. The Municipality may grant a waiver, provided that all of the following findings are made in a given case:

   A. That there are unique physical circumstances or conditions, including irregularity of lot size or shape, or exceptional topographical or other physical conditions peculiar to the particular property, and that the unnecessary hardship is due to such conditions, and not the circumstances or conditions generally created by the provisions of this chapter in the stormwater management district in which the property is located;

   B. That because of such physical circumstances or conditions, there is no possibility that the property can be developed in strict conformity with the provisions of this chapter, including the no harm provisions, and that the authorization of a waiver is therefore necessary to enable the reasonable use of the property;

   C. No waiver or modification of any regulated stormwater activity involving earth disturbance greater than or equal to one acre may be granted by the Municipality unless that action is approved in advance by the Department of Environment Protection (DEP) or the delegated county conservation district;

   D. That such unnecessary hardship has not been created by the applicant;

   E. That the waiver, if authorized, will represent the minimum waiver that will afford relief and will represent the least modification possible of the regulation in issue; and

   F. That financial hardship is not the criteria for granting of a hardship waiver.

3. In granting any waiver, the Municipality may attach such conditions and safeguards as it may deem

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necessary to implement the purposes of this chapter. If a hardship waiver is granted, the applicant must still manage the quantity, velocity, direction and quality of resulting storm runoff as is necessary to prevent injury to health, safety or other property.

4. For regulated activities described in § 23-105, Subsection 1 and 2, the Upper Nazareth Township Board of Supervisors shall hear requests for and decide on hardship waiver requests on behalf of the Municipality.

5. For regulated activities in § 23-105, Subsections 3 through 7, the Upper Nazareth Township Board of Supervisors shall hear requests for and decide on hardship waiver requests on behalf of the Municipality.

6. The Municipality shall not waive the water quality provisions of this chapter.

§ 23-408. Resubmission of Disapproved SWM Site Plans. [Ord. No. 196, 8/21/2024]

A modification to a submitted SWM site plan that involves a change in SWM BMPs or techniques, or that involves the relocation or redesign of SWM BMPs, or that is necessary because soil or other conditions are not as stated on the SWM site plan as determined by the Municipality shall require a resubmission of the modified SWM site plan in accordance with this chapter.

§ 23-409. Authorization to Construct and Term of Validity. [Ord. No. 196, 8/21/2024]

The Municipality's approval of an SWM site plan authorizes the regulated activities contained in the SWM site plan for a maximum term of validity of five years following the date of approval. The Municipality may specify a term of validity shorter than five years in the approval for any specific SWM site plan. Terms of validity shall commence on the date the Municipality signs the approval for an SWM site plan. If an approved SWM site plan is not completed according to § 23-410 within the term of validity, then the Municipality may consider the SWM site plan disapproved and may revoke any and all permits. SWM site plans that are considered disapproved by the Municipality shall be resubmitted in accordance with § 23-408 of this chapter.

§ 23-410. As-Built Plans, Completion Certificate, and Final Inspection. [Ord. No. 196, 8/21/2024]

1. The applicant shall be responsible for providing as-built plans of all SWM BMPs included in the approved SWM site plan. The as-built plans and an explanation of any discrepancies with the construction plans shall be submitted to the Municipality.

2. The as-built submission shall include a certification of completion signed by a qualified professional verifying that all permanent SWM BMPs have been constructed according to the approved plans and specifications. The latitude and longitude coordinates for all permanent SWM BMPs must also be submitted, at the central location of the BMPs. If any licensed qualified professionals contributed to the construction plans, then a licensed qualified professional must sign the completion certificate.

3. After receipt by the Municipality of the certification of completion, the Municipality will conduct a final inspection.

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Part 5
FEES AND EXPENSES

§ 23-501. General Provisions. [Ord. No. 196, 8/21/2024]

The Municipality may charge a reasonable fee for review of the drainage plan, including the BMP operations and maintenance plan, to defray review costs incurred by the Municipality. The applicant shall pay all such fees.

§ 23-502. Expenses Covered by Fees. [Ord. No. 196, 8/21/2024]

The fees required by this chapter shall at a minimum cover:

1. The review of the drainage plan, including the BMP operations and maintenance plan, by the Municipality.
2. The site inspection.
3. The inspection of required controls and improvements during construction.
4. The final inspection upon completion of the controls and improvements required in the plan.
5. Any additional work required to monitor and enforce any permit provisions, regulated by this chapter, correct violations, and assure the completion of stipulated remedial actions.
6. Administrative and clerical costs.

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Part 6
STORMWATER BMP OPERATIONS AND MAINTENANCE PLAN REQUIREMENTS

§ 23-601. General Requirements. [Ord. No. 196, 8/21/2024]

No regulated earth disturbance activities within the Municipality shall commence until approval by the Municipality of the BMP operations and maintenance plan which describes how the permanent (e.g., post-construction) stormwater BMPs will be properly operated and maintained.

§ 23-602. Responsibilities of Developers and Landowners. [Ord. No. 196, 8/21/2024]

1. The Municipality shall make the final determination on the continuing maintenance responsibilities prior to final approval of the SWM site plan. The Municipality may require a dedication of such facilities as part of the requirements for approval of the SWM site plan. Such a requirement is not an indication that the Municipality will accept the facilities. The Municipality reserves the right to accept or reject the ownership and operating responsibility for any portion of the stormwater management controls.

2. The facilities, areas, or structures used as SWM BMPs shall be enumerated as permanent real estate appurtenances and recorded as deed restrictions or conservation easements that run with the land.

3. The O&M plan shall be recorded as a restrictive deed covenant that runs with the land.

4. The Municipality may take enforcement actions against an owner for any failure to satisfy the provisions of this chapter.

§ 23-603. Adherence to Approved Stormwater Management Facilities Operations and Maintenance Plan. [Ord. No. 196, 8/21/2024]

It shall be unlawful to alter or remove any permanent stormwater BMP required by an approved stormwater management facilities operations and maintenance plan or to allow the property to remain in a condition which does not conform to an approved stormwater management facilities operations and maintenance plan unless an exception is granted, in writing, by the Municipality.

§ 23-604. Operations and Maintenance (O&M) Agreement for Privately Owned Stormwater Management Facilities. [Ord. No. 196, 8/21/2024]

1. The property owner shall sign an operations and maintenance agreement with the Municipality covering all stormwater management facilities that are to be privately owned. The agreement shall include the terms of the format agreement referenced in Attachment 1 of this chapter.[54]

2. The owner, successor and assigns shall maintain all facilities in accordance with the approved maintenance schedule in the O&M agreement.

3. The owner shall convey to the Municipality conservation easements to assure access for periodic inspections by the Municipality and maintenance, as necessary.

4. The owner shall keep on file with the Municipality the name, address, and telephone number of the person or company responsible for maintenance activities; in the event of a change, new information shall be submitted by the owner to the Municipality within 10 working days of the change.

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54. Editor's Note: See attachment to this chapter.

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5. Other items may be included in the agreement where determined by the Municipality to be reasonable or necessary to guarantee the satisfactory operation and maintenance of all permanent stormwater management facilities. The agreement shall be subject to the review and approval of the Municipality.

6. The owner is responsible for operation and maintenance of the SWM BMPs/SCMs. If the owner fails to adhere to the O&M agreement, the Municipality may perform the services required and charge the owner appropriate fees. Nonpayment of fees may result in a lien against the property.

§ 23-605. Stormwater Management Easements. [Ord. No. 196, 8/21/2024]

Stormwater management easements shall be provided by the property owner if necessary for access for inspections and maintenance or for preservation of stormwater conveyance, infiltration, detention areas and other stormwater management facilities by persons other than the property owner. The purpose of the easement shall be specified in any agreement under § 23-604.

§ 23-606. Recording of Approved Stormwater Management Facilities Operations and Maintenance Plan and Related Agreements. [Ord. No. 196, 8/21/2024]

1. The owner of any land upon which permanent stormwater management facilities will be placed, constructed or implemented, as described in the stormwater management facilities operations and maintenance plan, shall record the following documents in the office of the Recorder of Deeds for Northampton County within 90 days of approval of the stormwater management facilities operations and maintenance plan by the Municipality:

   A. The operations and maintenance plan or a summary thereof.

   B. Operations and maintenance agreements under § 23-604.

   C. Easements under § 23-605.

2. The Municipality may suspend or revoke any approvals granted for the project site upon discovery of the failure of the owner to comply with this section.

§ 23-607. Municipal Stormwater Management Facilities Operations and Maintenance Fund. [Ord. No. 196, 8/21/2024]

1. If stormwater management facilities are accepted by the Municipality for dedication, the Municipality may require the applicant to pay a specified amount to the municipal stormwater BMP operations and maintenance fund to help defray costs of operations and maintenance activities. The amount may be determined as follows:

   A. If the stormwater management facilities are to be owned and maintained by the Municipality, the amount shall cover the estimated costs for operation and maintenance in perpetuity, as determined by the Municipality.

   B. The amount shall then be converted to present worth of the annual series values.

2. If a stormwater management facility is proposed that also serves as a recreation facility (e.g., ball field, lake), the Municipality may adjust the amount due accordingly.

§ 23-608. Performance Guarantee. [Ord. No. 196, 8/21/2024]

For SWM site plans that involve subdivision and land development, the applicant shall provide a financial

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guarantee to the Municipality for the timely installation and proper construction of all stormwater management controls as required by the approved SWM site plan and this chapter in accordance with the provisions of Sections 509, 510, and 511 of the Pennsylvania Municipalities Planning Code.[55]

55. Editor's Note: See 53 P.S. §§ 10509, 10510 and 10511.

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Part 7
PROHIBITIONS

§ 23-701. Prohibited Discharges. [Ord. No. 196, 8/21/2024]

1. Any drain or conveyance, whether on the surface or subsurface, that allows any non-stormwater discharge including sewage, process wastewater, and wash water to enter a regulated small MS4 or to enter the surface waters of this Commonwealth is prohibited.

2. No person in the Municipality shall allow or cause to allow stormwater discharges into the Municipality's separate storm sewer system which are not composed entirely of stormwater except as provided in Subsection 4, below, or as allowed under a state or federal permit.

3. No person in the Municipality shall deposit, discharge, or stockpile leaves, grass clippings, trash, or other debris at a location, whether on private or public property, or in a manner that will allow or cause to allow same to enter the Municipality's separate storm sewer system.

4. Discharges that may be allowed based on the Municipality finding that the discharge(s) do not significantly contribute pollution to surface waters of the commonwealth are listed below.

   A. Discharges or flows from firefighting activities.

   B. Discharges from potable water sources including water line flushing and fire hydrant flushing, if such discharges do not contain detectable concentrations of total residual chlorine (TRC).

   C. Non-contaminated irrigation drainage, water, water from lawn maintenance, landscape drainage and flows from riparian habitats and wetlands.

   D. Routine external building washdown which does not use detergents or other compounds.

   E. Non-contaminated HVAC condensation and water from geothermal systems.

   F. Water from individual residential (i.e., not commercial) vehicle wash water where cleaning agents are not utilized.

   G. Diverted stream flows and springs.

   H. Dechlorinated swimming pool discharges.

   I. Non-contaminated hydrostatic test water discharges, if such discharges do not contain detectable concentrations of TRC.

5. In the event that the Municipality or DEP determines that any of the discharges identified in Subsection 4, above, significantly contribute pollutants to a regulated small MS4 or to the waters of the Commonwealth, the Municipality or DEP will notify the responsible person(s)/party(s) to cease the discharge.

6. Nothing in this Part shall affect a discharger's responsibilities under state law.

§ 23-702. Prohibited Connections. [Ord. No. 196, 8/21/2024]

The following connections are prohibited, except as provided in § 23-701, Subsection 4, above:

1. Any drain or conveyance, whether on the surface or subsurface, which allows any non-stormwater

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discharge including sewage, process wastewater and wash water to enter the separate storm sewer system and any connections to the storm drain system from indoor drains and sinks.

2. Any drain or conveyance connected from a commercial or industrial land use to the separate storm sewer system which has not been documented in plans, maps or equivalent records and approved by the Municipality.

§ 23-703. Roof Drains and Sump Pumps. [Ord. No. 196, 8/21/2024]

1. Roof drains and sump pumps shall discharge to infiltration areas or vegetative BMPs to the maximum extent practicable.

2. Roof drains shall not be connected to streets, sanitary or storm sewers or roadside ditches, except as provided in, Subsection 3, below.

3. When it is more advantageous to connect directly to streets or storm sewers, connections of roof drains to streets or roadside ditches may be permitted by the Municipality.

§ 23-704. Alteration of BMPs. [Ord. No. 196, 8/21/2024]

1. No person shall modify, remove, fill, landscape or alter any existing stormwater BMP without the written approval of the Municipality unless it is part of an approved maintenance program.

2. No person shall place any structure, fill, landscaping or vegetation into a stormwater BMP or within a drainage easement, which would limit or alter the functioning of the BMP, without the written approval of the Municipality.

§ 23-705. Animal Waste. [Ord. No. 196, 8/21/2024]

Animal waste shall be handled and disposed of in accordance with Chapter 2, Animals, of the Upper Nazareth Township Codified Ordinances, and in accordance with all applicable state and federal regulations.

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Part 8
RIGHT OF ENTRY, NOTIFICATION AND ENFORCEMENT

§ 23-801. Right of Entry. [Ord. No. 196, 8/21/2024]

1. Upon presentation of proper credentials and with the consent of the landowner, duly authorized representatives of the Municipality may enter at reasonable times upon any property within the Municipality to inspect the implementation, condition or operation and maintenance of the stormwater management facilities or to investigate or ascertain the condition of the subject property in regard to any aspect regulated by this chapter.

2. In the event that the landowner refuses admission to the property, duly authorized representatives of the Municipality may seek an administrative search warrant issued by a Magisterial District Judge to gain access to the property.

3. Persons working on behalf of the Municipality shall have the right to temporarily locate on any stormwater management facilities in the Municipality such devices as are necessary to conduct monitoring and/or sampling of the discharges from such facilities.

4. Unreasonable delay in allowing the Municipality access to a stormwater management facility is a violation of this chapter.

§ 23-802. Notification. [Ord. No. 196, 8/21/2024]

1. Whenever the Municipality finds that a person has violated a prohibition or failed to meet a requirement of this chapter, the Municipality may order compliance by written notice to the responsible person. Such notice may require, without limitation:

   A. The name of the owner of record and any other person against whom the Municipality intends to take action.

   B. The location of the property in violation.

   C. The performance of monitoring, analyses and reporting.

   D. The elimination of prohibited connections or discharges.

   E. Cessation of any violating discharges, practices or operations.

   F. The abatement or remediation of stormwater pollution or contamination hazards and the restoration of any affected property.

   G. Payment of a fine to cover administrative and remediation costs.

   H. The implementation of stormwater BMPs.

   I. Operation and maintenance of stormwater BMPs.

2. Such notification shall set forth the nature of the violation(s) and establish a time limit for correction of the violation(s). Said notice may further advise that should the violator fail to take the required action within the established deadline, the work will be done by the Municipality or designee and the expense thereof, together with all related lien and enforcement fees, charges and expenses, shall be charged to the violator.

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3. Failure to comply within the time specified shall also subject such person to the penalty provisions of this chapter. All such penalties shall be deemed cumulative and shall not prevent the Municipality from pursuing any and all other remedies available in law or equity.

§ 23-803. Inspection. [Ord. No. 196, 8/21/2024]

1. The landowner or the owner's designee (including the Municipality for dedicated and owned facilities) shall inspect SWM BMPs/SCMs, facilities and/or structures regulated under this chapter according to the following frequencies, at a minimum, to ensure the BMPs/SCMs, facilities and/or structures continue to function as intended:

   A. Annually for the first five years.

   B. Once every three years thereafter.

   C. During or immediately after the cessation of a 10-year or greater storm.

   A written inspection report shall be created to document each inspection. The inspection report shall contain the date and time of the inspection, the individual(s) who completed the inspection, the location of the BMP/SCM, facility or structure inspected, observations on performance, and recommendations for improving performance, if applicable. Inspection reports shall be submitted to the Municipality within 30 days following completion of the inspection.

2. The landowner or the owner's designee (including the Municipality for dedicated and owned facilities) responsible for SWM BMPs/SCMs, facilities and/or structures regulated under this chapter shall be responsible for reporting any known or observable failure or damage to the approved facility to the Township within five business days.

3. DEP or its designees (e.g., County Conservation District) normally ensure compliance with any permits issued, including those for stormwater management. In addition to DEP compliance programs, the Municipality or its designee may inspect all phases of the construction, operations, maintenance and any other implementation of stormwater BMPs/SCMs.

4. During any stage of the regulated earth disturbance activities, if the Municipality or its designee determines that any BMPs/SCMs are not being implemented in accordance with this chapter, the Municipality may suspend or revoke any existing permits issued by the Municipality or other approvals issued by the Municipality until the deficiencies are corrected.

§ 23-804. Enforcement. [Ord. No. 196, 8/21/2024]

1. It shall be unlawful for a person to undertake any regulated activity except as provided in an approved SWM site plan, unless specifically exempted in § 23-106.

2. It shall be unlawful to violate § 23-704 of this chapter.

3. Inspections regarding compliance with the SWM site plan are a responsibility of the Municipality.

4. In the event that the landowner fails to operate and maintain the stormwater improvements in good working order acceptable to the Township, the Township shall send written notice to the landowner specifying the areas of noncompliance and the steps that shall be taken to cure the noncompliance. In the event that the landowner does not cure the noncompliance within the time period set forth in the notice or diligently pursue compliance in circumstances where compliance is not possible within the time period set forth in the notice due to weather conditions or where otherwise determined by the Township in an emergency situation that notice is not practical or expedient, the landowner shall be

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in violation of this agreement, and the landowner agrees that the Township or its representatives may, in addition to and not in derogation or diminution of any remedies available to it under the Stormwater Ordinance or other statutes, codes, rules or regulations, or this agreement, enter upon the property and take whatever action is deemed necessary to maintain the stormwater improvements. It is expressly understood and agreed that the Township is under no obligation to maintain or repair the stormwater improvements, and in no event shall this agreement be construed to impose any such obligation on the Township.

5. In the event that the Township, pursuant to this agreement, performs work of any nature or expends any funds in performance of said work for labor, use of equipment, supplies, materials, and the like, the landowner shall reimburse the Township for all expanses (direct and indirect including, but not limited to, reasonable attorneys' fees, reasonable engineering fees, and inspection costs and a 20% surcharge for administration expenses) incurred within 30 days of delivery of an invoice from the Township.

§ 23-805. Public Nuisance. [Ord. No. 196, 8/21/2024]

1. The violation of any provision of this chapter is hereby deemed a public nuisance.

2. Each day that an offense continues shall constitute a separate violation.

§ 23-806. Suspension and Revocation of Permits and Approvals. [Ord. No. 196, 8/21/2024]

1. Any building, land development or other permit or approval issued by the Municipality may be suspended or revoked by the Municipality for:

   A. Noncompliance with or failure to implement any provision of the approved SWM site plan or O&M agreement.

   B. A violation of any provision of this chapter or any other applicable law, ordinance, rule, or regulation relating to the regulated activity.

   C. The creation of any condition or the commission of any act during the regulated activity which constitutes or creates a hazard or nuisance, pollution or which endangers the life or property of others.

2. A suspended permit or approval shall be reinstated by the Municipality when:

   A. The Municipality or designee has inspected and approved the corrections to the stormwater BMPs or the elimination of the hazard or nuisance that caused the suspension.

   B. The Municipality is satisfied that the violation of the chapter, law or rule and regulation has been corrected.

   C. Payment of all municipal fees, costs and expenses related to or arising from the violation has been made.

3. A permit or approval which has been revoked by the Municipality cannot be reinstated. The applicant may apply for a new permit under the procedures outlined in this chapter.

4. If a violation causes no immediate danger to life, public health, or property, at its sole discretion, the Municipality may provide a limited time period for the owner to correct the violation. In these cases, the Municipality will provide the owner, or the owner's designee, with a written notice of the violation

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and the time period allowed for the owner to correct the violation. If the owner does not correct the violation within the allowed time period, the Municipality may revoke or suspend any, or all, applicable approvals and permits pertaining to any provision of this chapter.

§ 23-807. Penalties. [Ord. No. 196, 8/21/2024]

1. Any person, partnership or corporation who or which has violated the provisions of this chapter shall be guilty of a summary offense and, upon conviction, shall be subject to a fine of not more than $1,000 plus court costs, including reasonable attorney's fees incurred by the Municipality as a result thereof, for each violation, recoverable with costs, or imprisonment to the extent allowed by law for the punishment of summary offense, or both. Each day that the violation continues shall be a separate offense and penalties shall be cumulative. No judgment shall commence or be imposed, levied or payable until the date of the determination of a violation by the Magisterial District Judge. If the defendant neither pays nor timely appeals the judgment, the Municipality may enforce the judgment pursuant to a separate violation, unless the Magisterial District Judge determining that there has been a violation further determines that there was a good-faith basis for the person, partnership, or corporation violating this chapter to have believed that there was no such violation, in which event there shall be deemed to have been only one such violation until the fifth day following the date of the determination of a violation by the Magisterial District Judge and, thereafter, each day that a violation continues shall constitute a separate violation.

2. In addition, the Municipality, through its Solicitor, may institute injunctive, mandamus or any other appropriate action or proceeding at law or in equity for the enforcement of this chapter. Any court of competent jurisdiction shall have the right to issue restraining orders, temporary or permanent injunctions, mandamus or other appropriate forms of remedy or relief.

3. The court of common pleas, upon petition, may grant an order of stay upon cause shown, tolling the per diem judgment pending a final adjudication of the violation and judgment.

4. Nothing contained in this section shall be construed or interpreted to grant to any person or entity other than the Municipality the right to commence any action for enforcement pursuant to this section.

5. Magisterial District Judges shall have initial jurisdiction in proceedings brought under this section.

6. In addition, the Municipality, through its solicitor, may institute injunctive, mandamus or any other appropriate action or proceeding at law or in equity for the enforcement of this chapter. Any court of competent jurisdiction shall have the right to issue restraining orders, temporary or permanent injunctions, mandamus or other appropriate forms of remedy or relief.

§ 23-808. Appeals. [Ord. No. 196, 8/21/2024]

Any person aggrieved by any action of the Municipality or its designee relevant to the provisions of this chapter may appeal using the appeal procedures established in the Pennsylvania Municipalities Planning Code.

1. Any person aggrieved by any action of the Municipality or its designee, relevant to the provisions of the chapter, may appeal to the Municipality within 30 days of that action.

2. Any person aggrieved by any decision of the Municipality, relevant to the provisions of this chapter, may appeal to the County Court of Common Pleas in the county where the activity has taken place within 30 days of the Municipality' decision.

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Part 9
(RESERVED)

The Township Board of Supervisors reserves the right, by the authority granted by the General Assembly of the Commonwealth of Pennsylvania, to establish a stormwater fee to be assessed against impervious surface areas on properties within the Township for the purpose of offsetting the cost of installation and ongoing operation and maintenance of municipal stormwater management facilities.

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Part 10
ENACTMENT OF ORDINANCE.

§ 23-1001. Effective Date. [Ord. No. 196, 8/21/2024]

This chapter shall become effective five days from the date of its adoption (August 26, 2024).

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Part 11
REFERENCES

§ 23-1101. References. [Ord. No. 196, 8/21/2024]

1. U.S. Department of Agriculture, National Resources Conservation Service (NRCS). National Engineering Handbook. Part 630: Hydrology, 1969-2001. Originally published as the National Engineering Handbook, Section 4: Hydrology. Available from the NRCS online at: http://www.nrcs.usda.gov/.

2. U.S. Department of Agriculture, Natural Resources Conservation Service. 1986. Technical Release 55: Urban Hydrology for Small Watersheds, 2nd Edition. Washington, D.C.

3. Pennsylvania Department of Environmental Protection. No. 363-0300-002 (December 2006), as amended and updated. Pennsylvania Stormwater Best Management Practices Manual. Harrisburg, PA.

4. Pennsylvania Department of Environmental Protection. No. 363-2134-008 (March 31, 2012), as amended and updated. Erosion and Sediment Pollution Control Program Manual. Harrisburg, PA.

5. U.S. Department of Commerce, National Oceanic and Atmospheric Administration, National Weather Service, Hydrometeorological Design Studies Center. 2004-2006. Precipitation-Frequency Atlas of the United States, Atlas 14, Volume 2, Version 3.0, Silver Spring, Maryland. Internet address: http://hdsc.nws.noaa.gov/hdsc/pfds/.

6. Bushkill Creek Act 167 Stormwater Management Plan (2006).

7. Monocacy Creek Act 167 Stormwater Management Plan (2017).

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Chapter 23A

(RESERVED)

Prior history: Former Chapter 23A, Bushkill Creek Watershed Act 167 Stormwater Management, adopted by Ord. 124, 4/18/2007; was superseded by Ord. No. 196, 8/21/2024. See now Ch. 23, Stormwater Management.

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(RESERVED)

Chapter 23B

(RESERVED)

Prior history: Former Chapter 23B, Monocacy Creek Watershed Act 167 Stormwater Management, adopted by Ord. 179, 11/7/2018; was superseded by Ord. No. 196, 8/21/2024. See now Ch. 23, Stormwater Management.

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UPPER NAZARETH CODE

Chapter 24

TAXATION; SPECIAL

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ARTICLE A.
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§ 24-501. **Fees.**

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Part 1
EARNED INCOME TAX

§ 24-101. Definitions. [Ord. 149, 10/5/2011, § 1]

For purposes of this Part, all terms defined in the Local Tax Enabling Act, 53 P.S. § 6924.101 et seq., shall have the meanings set forth therein. In addition, the following terms shall have the meanings set forth herein, unless the context shall clearly indicate otherwise:

EFFECTIVE DATE — January 1, 2012.

LOCAL TAX ENABLING ACT — The Local Tax Enabling Act, 53 P.S. § 6924.101 et seq., and as amended in the future, including any regulations adopted by the Department of Community and Economic Development thereunder.

TAX — The tax on earned income and net profits imposed by this Part.

TAX OFFICER — The person or entity appointed as tax officer pursuant to the Local Tax Enabling Act to collect the tax in the TCD.

TAX RETURN — A form or forms prescribed by the Department of Community and Economic Development, or by the Tax Officer with the approval of the TCC, for reporting the amount of tax or other amount owed or required to be withheld, remitted, or reported under this Part or the Local Tax Enabling Act.

TAX YEAR — The period from January 1 to December 31 in a single calender year.

TAXPAYER — A person or business required under this Part or the Local Tax Enabling Act to file a tax return or to pay tax.

TCC — The tax collection committee established to govern and oversee the collection of income tax within the TCD under the Local Tax Enabling Act.

TCD — The Northampton Tax Collection District, or any future tax collection district, to which the Township or any part of the Township is assigned under the Local Tax Enabling Act.

§ 24-102. Imposition of Tax. [Ord. 149, 10/5/2011, § 2; as amended by Res. No. 24-21, 12/4/2024]

1. General Purpose Resident Tax. The Township hereby imposes a tax for general revenue purposes at the rate of 0.5% on earned income and net profits of residents of the Township.

2. General Purpose Municipal Nonresident Tax. The Township also imposes a tax for general revenue purposes at the rate of 1% on earned income and net profits derived by a nonresident from any work, business, profession, or activity, of any kind engaged in within the boundaries of Township.

3. Ongoing Tax. The tax shall continue at the above rates during the current tax year and each tax year thereafter, without annual re-enactment, until this Part is repealed or the rate is changed.

4. Local Tax Enabling Act Applicable. The tax is imposed under authority of the Local Tax Enabling Act, and all provisions thereof that relate to a tax on earned income or net profits are incorporated into this Part. Any future amendments to the Local Tax Enabling Act that are required to be applied to the tax will automatically become part of this Part upon the effective date of such amendment, without the need for formal amendment of this Part, to the maximum extent allowed by 1 Pa.C.S.A. § 1937.

5. Applicable Laws, Regulations, Policies, and Procedures. The tax shall be collected and administered

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in accordance with (A) all applicable laws and regulations; and (B) rules, regulations, policies and procedures adopted by the TCC or by the Tax Officer in conformity with the Local Tax Enabling Act. This includes any regulations, policies, and procedures adopted in the future to the maximum extent allowed by 1 Pa.C.S.A. § 1937.

§ 24-103. No Exemption from Tax. [Ord. 149, 10/5/2011, § 3]

Although credits and deductions against tax are permitted under certain circumstances as provided in applicable law and regulations, no individuals are exempt from tax based on age, income, or other factors.

§ 24-104. Taxpayer Tax Returns, Declarations and Payments. [Ord. 149, 10/5/2011, § 4]

Every taxpayer receiving earned income or earning net profits in any tax year shall make and file tax returns and declarations and pay tax in accordance with the Local Tax Enabling Act and the rules, regulations, policies and procedures of the TCC and Tax Officer. A taxpayer is required to file timely an annual tax return even if no tax payment is due and owing. In addition, even though a resident of the Township did not have earned income or net profits in the prior tax year, the resident must file an annual tax return, when requested to do so by the Tax Officer, stating the reason why there was no income or net profits to report.

§ 24-105. Employer Withholding, Remittance, and Tax Returns. [Ord. 149, 10/5/2011, § 5]

Every employer shall register, require employee residency certificates, withhold and remit tax, and file tax returns and withholding statements in accordance with the Local Tax Enabling Act and the rules, regulations, policies and procedures of the TCC and Tax Officer.

§ 24-106. Tax Officer. [Ord. 149, 10/5/2011, § 6]

1. Collection of Tax. The tax will be collected from taxpayers and employers by the Tax Officer. The Tax Officer is authorized to file an action in the name of the Township for the recovery of the tax due to the Township and unpaid. Nothing in this section shall affect the authority of the Township to file an action in its own name for collection of the tax under the Local Tax Enabling Act.

2. Criminal Complaints for Violations. The Tax Officer is authorized to file criminal complaints on behalf of the Township for violation of this Part or the Local Tax Enabling Act. Nothing in this section shall affect the authority of the Township to file a criminal complaint on its own behalf for violation of this Part or the Local Tax Enabling Act.

§ 24-107. Interest, Penalties, Costs and Fines. [Ord. 149, 10/5/2011, § 7]

In the event of violation of this Part or the Local Tax Enabling Act, or non-payment of tax, taxpayers and employers are subject to interest, penalties, costs, and fines in accordance with the Local Tax Enabling Act, including costs of collection imposed by the Tax Officer in accordance with authorization by the TCC. The Tax Officer may retain reasonable costs of collection in accordance with Local Tax Enabling Act and as approved by the TCC.

§ 24-108. Purpose/Repeal. [Ord. 149, 10/5/2011, § 9]

The primary purpose of this Part is to conform the Township's currently existing earned income and net profits tax to the Local Tax Enabling Act, as amended and restated by Act 32 of 2008, and to do so within the time frame required by Act 32. Any prior ordinance or part of any prior ordinance conflicting with

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the provisions of this Part is rescinded insofar as the conflict exists. To the extent the provisions of this Part are the same as any ordinance in force immediately prior to adoption of this Part, the provisions of this Part are intended as a continuation of such prior ordinance and not as a new ordinance. If this Part is declared invalid, any prior ordinance levying a similar tax shall remain in full force and effect and shall not be affected in any manner by adoption of this Part. The provisions of this Part shall not affect any act done or liability incurred, nor shall such provisions affect any suit or prosecution pending or to be initiated to enforce any right or penalty or to punish any offense under the authority of any ordinance in force prior to adoption of this Part. Subject to the foregoing provisions of this section, this Part shall supersede and repeal on the effective date any ordinance levying a tax on earned income or net profits in force immediately prior to the effective date. The tax imposed by this Part shall not apply to any person as to whom it is beyond the legal power of the Township to impose the tax herein provided under the Constitution of the United States and the Constitution and laws of the Commonwealth of Pennsylvania.

§ 24-109. Construction. [Ord. 149, 10/5/2011, § 10]

This Part is intended to be consistent with the Local Tax Enabling Act. The Part is intended to include all necessary authorizations to permit the Tax Officer to take all actions for the collection, administration, disbursement, and enforcement of the tax and all other actions on behalf of the political subdivisions of the TCD as authorized by the Local Tax Enabling Act, subject to the policies and procedures of the TCC. To give full force and effect to this Part, the authority of the Tax Officer shall be interpreted in the broadest permissible sense for the benefit of the Tax Officer's ability to perform his/her duties.

§ 24-110. Effective Date. [Ord. 149, 10/5/2011, § 11]

The provisions of this Part shall become effective on January 1, 2012, and shall apply to earned income received or earned and net profits earned or made by a taxpayer during calendar year 2012, and each year thereafter without annual re-enactment unless the rate of tax is subsequently changed. Changes in the rate of tax shall become effective on the date specified in the ordinance imposing such change.

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Part 2
LOCAL SERVICES TAX

§ 24-201. Title. [Ord. 128, 11/7/2007, § 1]

This Part shall be known and may be cited as the "Upper Nazareth Township Local Services Tax Ordinance."

§ 24-202. Authority. [Ord. 128, 11/7/2007, § 2]

This Part is enacted under the authority of the Local Tax Enabling Act, 53 P.S. § 6924.101 et seq., as amended by Act No. 7 of 2007.

§ 24-203. Purpose. [Ord. 128, 11/7/2007, § 3]

The purpose of this Part is to provide revenue for police, fire and emergency services; road construction and maintenance; the reduction of property taxes and for such other purposes as may be specified for such tax from time to time by the laws of he Commonwealth of Pennsylvania.

§ 24-204. Definitions. [Ord. 128, 11/7/2007, § 4]

The following words and phrases when used in this Part shall have the meanings ascribed to them in this section except where the context clearly indicates or requires a different meaning:

BOARD OF SUPERVISORS — The governing body of the Township of Upper Nazareth.

COLLECTOR — The person or firm, from time to time, designated by motion of the Board of Supervisors of the Township to collect and administer the provision of this Part and collect the tax levied by this Part. Until changed by subsequent motion, the collector shall be the same person or firm last designated to collect the emergency and municipal services tax for the Township.

EARNED INCOME — "Compensation" as determined under § 303 of the Act of March 4, 1971 (PL. 6, No. 2), known as the "Tax Reform Code of 1971," and regulations in 61 Paced, Pt. I, Subst. B, Art. V (relating to personal income tax), not including, however, wages or compensation paid to individuals on active military service. Employee business expenses are allowable deductions as determined under Article III of the "Tax Reform Code of 1971." Any housing allowance provided to a member of the clergy shall not be taxable as earned income.

EMPLOYER — An individual, partnership, association, corporation, governmental body, agency or other entity employing one or more persons on a salary, wage, commission, fee or other compensation basis, including a self-employed person.

HE, HIS OR HIM — Includes singular and plural number and male, female and neuter gender.

INDIVIDUAL — Any person engaged in any occupation, trade or profession within the jurisdictional limits of the Township whose total earned income and net profits within the Township are $12,000 or greater per calendar year.

NET PROFITS — The net income from the operation of a business, profession, or other activity, (except from corporations), determined under § 303 of the Act of March 4, 1971 (PL. 6, No. 2), known as the "Tax Reform Code of 1971," and regulations in 61 Pa. Code, Pt. 1, Subst. B, Art. V (relating to personal income tax). The term does not include income which is not paid for services provided and which is in the nature of earnings from an investment. For taxpayers engaged in the business, profession or activity of farming the term shall not include:

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(1) Any interest generated from monetary accounts or investment instruments of the farming business.

(2) Any gain on the sale of farming machinery.

(3) Any gain on the sale of livestock held 12 months or more for draft, breeding or dairy purposes.

(4) Any gain on the sale of other capital assets of the farm.

OCCUPATION — Any trade, profession, business or undertaking of any type, kind or character including services, domestic or other, carried on or performed within the jurisdictional limits of the Township for which compensation is charged and/or received, whether by salary, wages, commissions, fees or net profits for services rendered.

RESERVE COMPONENT OF THE ARMED FORCES — The United States Army Reserve, United States Navy Reserve, United States Marine Corps Reserve, United States Coast Guard Reserve, United States Air Force Reserve, the Pennsylvania Army National Guard or the Pennsylvania Air National Guard.

TAX — The local services tax levied in this Part.

YEAR — A calendar year.

§ 24-205. Levy. [Ord. 128, 11/7/2007, § 5]

The Township hereby levies and imposes on every individual engaging in an occupation within the jurisdictional limits of the Township a tax in the amount of $52 per annum, beginning the first day of January, 2008, and continuing on a calendar basis annual thereafter, until modified or repealed by subsequent ordinance. This tax is in addition to all other taxes of any kind or nature heretofore levied by the Township.

§ 24-206. Restricted Use. [Ord. 128, 11/7/2007, § 6]

1. The Township shall use the revenue derived from this tax for the following purposes:

   A. Emergency services, which shall include emergency medical services, police services and/or fire services.

   B. Road construction and/or maintenance.

   C. Reduction of property taxes.

   D. Property tax relief through implementation of a homestead and farmstead exclusion in accordance with 53 Pa.C.S.A., Ch. 85, Subch. F. (relating to homestead property exclusion).

   The Township shall use no less than 25% of the funds derived from the local services tax for emergency services.

§ 24-207. Duty of Employer. [Ord. 128, 11/7/2007, § 7]

1. Each employer within the Township and each employer situate outside the Township who engages in business within the Township, is hereby charged with the duty of collecting the tax from each of the employees engaged by the employer and performing work for the employer within the Township. Each person subject to the tax shall be assessed a pro rata share of the tax for each payroll period in which the person is engaging in an occupation.

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2. The pro rata share of the tax assessed on the person for a payroll period shall be determined by dividing the combined rate of the local services tax levied for the calendar year by the number of payroll periods established by the employer for the calendar year. For purposes of determining the pro rata share, an employer shall found down the amount of the tax collected each payroll period to the nearest 1/100 of a dollar.

3. Employer collections of the local services tax shall be made on a payroll period basis for each payroll period, beginning with the first payroll period in which the person is engaging in an occupation.

4. No employer shall be held liable for failure to withhold the local services tax or for the payment of the withheld tax money to a political subdivision if the failure to withhold taxes arises from incorrect information submitted by the employee as to the employee's place or places of employment, the employee's principal office or where the employee is principally employed.

§ 24-208. Returns. [Ord. 128, 11/7/2007, § 8]

Employers are required to make and file a local services tax quarterly return 30 days after the end of each quarter of a calendar year. The local services tax quarterly return shall list the name, address, Social Security number of the employee; the physical address of the employee's place of employment; the number of payroll periods for which the local services tax was withheld and the amount of local services tax being remitted for each employee.

§ 24-209. Dates for Determining Tax Liability and Payment. [Ord. 128, 11/7/2007, § 9]

Each employer shall use his employment and payroll records from the first day of January to March 31 each year for determining the number of employees from whom said tax shall be deducted and paid over to the collector on or before April 30 of the same calendar year. Supplemental reports shall be made by each employer on July 30, October 30 and January 31 for new employees as reflected on his employment and payroll records from April 1 to June 30, July 1 to September 30 and October 1 to December 31, and payments on these supplemental reports shall be made on July 30, October 30 and January 30, respectively.

§ 24-210. Individuals Engaged in More than One Occupation. [Ord. 128, 11/7/2007, § 10]

1. In the event a person is engaged in more than one occupation, that is, concurrent employment, or an occupation which requires the person working in more than one political subdivision during the payroll period, the priority of claim to collect the local services tax shall be in the following order:

   A. The political subdivision in which a person maintains his or her principal office or is principally employed.

   B. The political subdivision in which the person resides and works, if the tax is levied by that political subdivision.

   C. The political subdivision in which a person is employed and which imposes the tax nearest in miles to the person's home.

2. In the case of concurrent employment, an employer shall refrain from withholding the local services tax, if the employee provides:

   A. A recent pay statement from a principal employer that includes the name of the employer, the length of the payroll period and the amount of local services tax withheld.

   B. A statement from the employee that the pay statement is from the employee's principal employer

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and the employee will notify other employers of a change in principal place of employment within two weeks of its occurrence.

3. The situs of the tax shall be the place of employment on the first day the person becomes subject to the tax during each payroll period. It is the intent of this section that no person shall be subject to the payment of the local services tax by more than one political subdivision during each payroll period.

§ 24-211. Exemptions to the Local Services Tax. [Ord. 128, 11/7/2007, § 11]

1. The local services tax shall be no more than $52 on each person for each calendar year, irrespective of the number of political subdivision within which a person may be employed.

2. The law requires municipalities and school districts who levy the local services tax at a combined rate exceeding $10 to exempt any person from the local services tax whose total earned income and net profits from all sources within the political subdivision is less than $12,000 for the calendar year in which the local services tax is levied.

3. Each political subdivision levying the local services tax shall exempt the following persons from the local services tax:

   A. Any person who served in any war or armed conflict in which the United States was engaged and is honorably discharged or released under honorable circumstances from active service if, as a result of military service, the person is blind, paraplegic or a double or quadruple amputee or has a service connected disability declared by the United States Veterans' Administration or its successor to be a total 100% permanent disability.

   B. Any person who serves as a member of a Reserve Component of the Armed Forces and is called to active duty at any time during the taxable year. A "Reserve Component of the Armed Forces" shall mean the United States Army Reserve, United States Navy Reserve, United States Marine Corps Reserve, United States Coast Guard Reserve, United States Air Force Reserve, The Pennsylvania Army National Guard or The Pennsylvania Air National Guard.

4. A person seeking to claim an exemption from the local services tax may annually file an exemption certificate with the collector of the tax for the political subdivision levying the tax and file a copy of the certificate with the person's employer affirming that the person reasonably expects to receive earned income and net profits from all sources within the political subdivision of less than $12,000 in the calendar year for which the exemption certificate is filed.

5. The exemption certificate shall have attached to it a copy of all of the employee's last pay stubs or W-2 forms from employment within the political subdivision for the year prior to the fiscal year for which the employee is requesting to be exempted from the local services tax.

6. Upon receipt of the exemption certificate and until otherwise instructed by the collector of the tax for the political subdivision levying the tax the employer shall not withhold the tax from the person during the calendar year or remainder of the calendar year for which the exemption certificate applies. With respect to a person who claimed an exemption from the local services tax, upon notification to an employer by the person or by the collector of the tax for the political subdivision, that the person has received earned income and net profits from all sources within that political subdivision equal to or in excess of $12,000 in that calendar year or that the person is otherwise ineligible for the tax exemption for that calendar year, or upon an employer's payment to the person of earned income within that political subdivision in an amount equal to or in excess of $12,000 in that calendar year, an employer shall withhold the local services tax from the person as follows:

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A. If a person who claimed an exemption for a given calendar year from the local services tax becomes subject to the tax for the calendar year the employer shall withhold the tax for the remainder of that calendar year.

B. The employer shall withhold from the person, for the first payroll period after receipt of the notification under the above paragraph, a lump sum equal to the amount of the tax that was not withheld from the person due to the exemption certificate filed by the person, plus the per payroll amount due for that first payroll period.

C. The amount of tax withheld per payroll period for the remaining payroll periods in that calendar year shall be the same amount withheld for other employees.

D. In the event the employment of a person subject to withholding of the Local Services Tax under this exception is severed in that calendar year, the person shall be liable for any outstanding balance of tax due and the political subdivision levying the tax may pursue collection under this act.

7. Employers shall not be responsible for investigating exemption certificates, monitoring tax exemption eligibility or exempting any employee from a local services tax.

8. Employers shall be responsible for retaining a copy of all exemption certificates filed by employees within a given calendar year for a minimum of three years. Employers who have failed to withhold the local services tax from an employee or employees, and do not have copies of the employee exemption certificate or certificates, will be held responsible for the payment of the local services tax as if the tax had been originally levied against the employer.

§ 24-212. Self-Employed Individuals. [Ord. 128, 11/7/2007, § 12]

All self-employed individuals and individuals whose employer is not required to withhold local taxes will be billed quarterly for the local services tax. The full amount of tax must be paid by the date indicated on such billing. If such taxpayer qualifies for a low-income exemption, the taxpayer may complete the required exemption certificate or make application for a refund of the tax paid.

§ 24-213. Employees and Self-employed Individuals Residing Beyond the Limits of Township. [Ord. 128, 11/7/2007, § 13]

All employers and self-employed individuals residing or having their place of business outside the Township but who engage in any occupation within the Township, do by virtue thereof agree to be bound by and subject themselves to the provisions, penalties and regulations promulgated under this Pat with the same force and effect as though they were residents of the Township. Further, any individual engaged in an occupation within the Township and an employee of a nonresident employer may for the purpose of this Part be considered a self-employed person and in the event this tax is not paid, the collection shall have the option of proceeding against either the employer or employee for collection of this tax as hereinafter provided.

§ 24-214. Administration of Tax. [Ord. 128, 11/7/2007, § 14]

1. It shall be the duty of the collector to accept and receive payments of this tax and keep a record thereof showing the amount received by him from each employer or self employed person, together with the date the tax was received. It shall be the duty of the collector to accept and keep a record of the information submitted by employers relating to the number of employees subject to the tax, the number of employees exempt from the tax, the employee exemption certificates and refunds of the

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tax paid to individuals and employers.

2. The collector is hereby charged with the administration and enforcement of this Part and is hereby empowered to prescribe, adopt, promulgate and enforce rules and regulations relating to any matter pertaining to the administration and enforcement of this Part, including provisions for the examination of the payroll records of any employer subject to this Part; the examination and correction of any return made in compliance with this Part; and any payment alleged or found to be incorrect or as to which overpayment is claimed or found to have occurred. Any person aggrieved by any decision of the collector shall have the right to appeal to the Court of Common Pleas of Northampton County as in other cases provided.

3. The collector is hereby authorized to examine the books and payroll records of any employer in order to verify the accuracy of any return made by an employer; or, if no return was made, to ascertain the tax due. Each employer is hereby directed and required to give the collector the means, facilities and opportunity for such examination.

§ 24-215. Suit for Collection. [Ord. 128, 11/7/2007, § 15]

1. In the event any of the tax under this Part remains due or unpaid 30 days after the due date set forth above, the collector may sue for the recovery of such tax due or unpaid together with interest and penalty.

2. If for any reason the tax is not paid when due, interest at the rate of 6% per annum on the amount of said tax, and an additional penalty of 10% shall be added to the flat rate of said tax for non-payment thereof. Where suit is brought for the recovery of this tax, the individual liable therefor shall, in addition, be responsible and liable for the costs of collection, including but not limited to attorney's fees.

§ 24-216. Fine and Penalty. [Ord. 128, 11/7/2007, § 16; as amended by A.O.]

Whoever makes any false or untrue statement on any return required by this Part, or who refuses inspection of his books, records or accounts in his custody and control in order to determine the number of employees subject to this tax who are in his employment, or who fails or refuses to file any return required by this Part, or fails or refuses to pay the tax herein levied shall, upon being found liable therefor in a civil enforcement proceeding commenced by the Township, shall pay a judgment of not more than $600 plus all court costs. No judgment shall commence or be imposed, levied or payable until the date of the determination of a violation by a magisterial district judge. If the defendant neither pays nor timely appeals the judgment, the Township may enforce the judgment pursuant to the applicable rules of civil procedure, at which time, in addition to any penalties, the violator shall be liable for any attorney's fees and costs incurred by the Township. Each day that a violation continues or each section of this Part which shall be found to have been violated shall constitute a separate violation. It is further provided that the action to enforce the fine and penalty herein provided may be instituted against any person in charge of the business of any employer who has failed or refused to file a return required by this Part.

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Part 3
REALTY TRANSFER TAX

§ 24-301. Imposition of Tax. [Ord. 127, 9/19/2007, § 1]

The Township adopts the provisions of Article XI-D of the Tax Reform Code of 1971 and imposes a realty transfer tax as authorized under that Article subject to the rate limitations therein. The tax imposed under this section shall be at the rate of 1%.

§ 24-302. Administration. [Ord. 127, 9/19/2007, § 2]

The tax imposed under § 24-301 and all applicable interest and penalties shall be administered, collected and enforced under the Act of December 31, 1965 (PL. 1257, No. 511, as amended, known as the "Local Tax Enabling Act"; provided, that if the correct amount of the tax is not paid by the last date prescribed for timely payment, the Township, pursuant to § 1102-D of the Tax Reform Code of 1971, 72 P.S. § 8102-D, authorizes and directs the Department of Revenue of the Commonwealth of Pennsylvania to determine, collect and enforce the tax, interest and penalties.

§ 24-303. Interest. [Ord. 127, 9/19/2007, § 3]

Any tax imposed under § 24-301 that is not paid by the date the tax is due shall bear interest as prescribed for interest on delinquent municipal claims under the Act of May 16, 1923 (PL. 207, No. 153), 53 P.S. § 7101 et seq., as amended, known as the "Municipal Claims and Tax Liens Act." The interest rate shall be the lesser of the interest rate imposed upon delinquent commonwealth taxes as provided in § 806 of the Act of April 9, 1929 (PL. 343, No. 176), 72 P.S. § 806, as amended, known as the "Fiscal Code," or the maximum interest rate permitted under the Municipal Claims and Tax Liens Act for tax claims.

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Part 4
LOCAL TAXPAYERS BILL OF RIGHTS

§ 24-401. Rules and Regulations. [Ord. 94, 12/10/2003, § 2.201]

The Rules and Regulations attached hereto as Schedule 24-4-1 and incorporated herein are hereby approved and adopted.

§ 24-402. Disclosure Statement. [Ord. 94, 12/10/2003, § 2.202]

The Disclosure Statement, substantially in the form set forth attached hereto and incorporated herein, is hereby approved and adopted.

§ 24-403. Petition for Appeal and Refund. [Ord. 94, 12/10/2003, § 2.203]

The form of Petition for Appeal and Refund, substantially in the form set forth attached hereto and incorporated herein, is hereby approved and adopted.

§ 24-404. Administrative Appeal Procedures Relating to Petitions for Appeal and Refund. [Ord. 94, 12/10/2003, § 2.204]

The Board of Supervisors hereby determines that Administrative Appeal Procedures relating to Petitions for Appeal and Refund submitted by taxpayers in connection with the assessment, determination or refund of an eligible tax under the LTBR shall be undertaken by at least three of the Township Board of Supervisors Executive Session only or a hearing officer to be appointed by the Board of Supervisors.

§ 24-405. Appointing a Hearing Officer. [Ord. 94, 12/10/2003, § 2.205]

The Board of Supervisors may appoint a hearing officer to serve a term of one year, commencing January 1, said appointment shall occur at the reorganization meeting of the Board of Supervisors or as soon thereafter as may be practically possible.

§ 24-406. Approval and Adoption of Administrative Appeal Procedures. [Ord. 94, 12/10/2003, § 2.206]

The Administrative Appeal Procedures set forth in the Rules and Regulations and substantially in the form set forth attached hereto and incorporated herein, are hereby approved and adopted.

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Part 5
TAX COLLECTOR

ARTICLE A.
Fees for Collection of Taxes.

§ 24-501. Fees. [Ord. 148, 10/5/2011; as amended by A.O.]

Pursuant to the authority granted it by the Second Class Township Code and Local Tax Collection Law, the Township hereby appoints the duly elected or appointed real estate Tax Collector, and his/her designee, as the municipal officer authorized to provide tax certifications and duplicate tax bills upon request by the public and hereby authorizes said Tax Collector to assess, collect and retain, as compensation for providing such additional service, a fee in an amount as established, from time to time, by resolution of the Board of Supervisors.

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UPPER NAZARETH CODE

Chapter 25

TREES

Part 1
TREE AND SHRUBBERY REGULATIONS

§ 25-101. **Definitions.**

§ 25-102. **Restrictions on Planting and Growing of Certain Trees.**

§ 25-103. **Clearance Above Street and Sidewalk.**

§ 25-104. **Removal and Trimming of Trees.**

§ 25-105. **Penalties.**

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Part 1
TREE AND SHRUBBERY REGULATIONS

§ 25-101. Definitions. [Ord. 92, 12/10/2003, § 1]

The word "person," as used in this Part, shall mean and include any natural person partnership, association, firm or corporation. The singular shall include the plural; the plural shall include the singular; and the masculine shall include the feminine and neuter.

§ 25-102. Restrictions on Planting and Growing of Certain Trees. [Ord. 92, 12/10/2003, § 2]

It shall be unlawful for any person to plant, maintain or allow to grow any type of tree, ornamental shrubbery or bushes within the right-of-way lines of any street, alley or sidewalk in the Township. (Legal right-of-way line, where there is no curbing, is 33 feet or 16 1/2 feet from the center line of the right-of-way.

§ 25-103. Clearance Above Street and Sidewalk. [Ord. 92, 12/10/2003, § 3]

Every owner of property in the Township shall be required to keep limbs and branches of all trees growing upon property or along the street, sidewalk, curb or alley abutting upon such property trimmed so that no part of such limbs, branches or of the foliage growing thereupon, shall have a clearance of less than eight feet above the surface of the right-of-way or of less than 14 feet above the surface of the roadway of any street or alley.

§ 25-104. Removal and Trimming of Trees. [Ord. 92, 12/10/2003, § 4]

It shall be the responsibility of property owners in the Township to conform to the requirements of this Part as to trees, ornamental shrubbery or bushes upon property owned by them, or along streets, alleys and sidewalks abutting upon such property, and upon notice from the Township Zoning Officer, to remove any tree or trees growing in violation of § 25-102 of this Part, and to trim or cut the branches or limbs of trees, shrubbery or bushes as required by § 25-103 hereof. Any person failing to comply with any ordinance and, following the expiration of such time limits, the Township Zoning Officer shall have authority to cause the work required by such notice to be done by the Township or under contract therewith, and to collect the cost of such work, with an additional amount of 10% from such property owner in default, plus the costs of collection and legal fees.

§ 25-105. Penalties. [Ord. 92, 12/10/2003, § 5; as amended by A.O.]

Any person, firm or corporation who shall violate any provision of this Part, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

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Chapter 26

WATER

Part 1
WATER CONSERVATION

§ 26-101. General Policy.
§ 26-102. Water Conservation Performance Standards for Plumbing Fixtures and Fittings.
§ 26-103. Special Provisions.
§ 26-104. Official Review and Modification.
§ 26-105. Penalties.

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Part 1
WATER CONSERVATION

§ 26-101. General Policy. [Ord. 65, 12/17/1994, § 1]

No water shall be provided for internal or external use to any residential, commercial, industrial, agricultural, recreational, governmental, or public building or structure of any kind which is constructed or remodeled and in which plumbing, water piping or water fixtures are to be installed, extended or altered in any way, and for which construction a permit is required to be obtained from the Township (or would be required but for an exemption for public or governmental agencies) unless the new, extended or altered plumbing, water piping or other water using fixtures therein conform to the requirements and standards of § 26-102 of this Part. The provisions of this Part shall apply to any such building or structure for which such a building permit is issued, or would otherwise be required to be issued but for such an exemption, on or after December 19, 1994.

§ 26-102. Water Conservation Performance Standards for Plumbing Fixtures and Fittings. [Ord. 65, 12/17/1994, § 2]

1. Water Closets and Associated Flushing Mechanisms. The water consumption of water closets shall not exceed an average of 1.6 gallons per flush cycle over a range of test pressures from 20 to 80 psi. The fixture shall perform in accordance with the test requirements of the ANSI A112.19.2M and ANSI A112.19.6M.

2. Urinals and Associated Flushing Mechanisms. Urinal water consumption shall not exceed an average of 1.5 gallons per flush cycle over a range of test pressures from 20 to 80 psi. The fixtures shall perform in accordance with the test requirements of the ANSI A112.19.2M and ANSI A112.19.6M.

3. Showerheads. Showerhead discharge rates shall not exceed 3.0 gallons of water per minute over a range of test pressures from 20 to 80 psi. The fixture shall perform in accordance with the test requirements of the ANSI A112.18.1M.

4. Faucets. Sink and lavatory faucet discharge rates shall not exceed 3.0 gallons of water per minute over a range of test pressures from 20 to 80 psi. The fixture shall perform in accordance with the test requirements of ANSI A112.18.1M.

§ 26-103. Special Provisions. [Ord. 65, 12/17/1994, § 3]

1. Special Purpose Equipment. The performance standards of § 26-102 shall not apply to fixtures and fittings such as emergency showers, aspirator faucets, and blowout fixtures that, in order to perform a specialized function, cannot meet the specified standards.

2. Exemptions. Any person(s) may apply to the Township for an exemption from the terms of this Part, which may be granted by the Board of Supervisors upon proof that some other device, system or procedure will save as much or more water as those set forth herein, or that compliance with those standards set forth herein will result in undue hardship.

§ 26-104. Official Review and Modification. [Ord. 65, 12/17/1994, § 4]

The Board of Supervisors may, from time to time, modify, add to, or remove from the standards and restrictions herein.

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§ 26-105. Penalties. [Ord. 65, 12/17/1994, § 5; as amended by A.O.]

Any person, firm or corporation who shall violate any provision of this Part, upon conviction thereof in an action brought before a magisterial district judge in the manner provided for the enforcement of summary offenses under the Pennsylvania Rules of Criminal Procedure, shall be sentenced to pay a fine of not more than $1,000 plus costs and, in default of payment of said fine and costs, to a term of imprisonment not to exceed 90 days. Each day that a violation of this Part continues or each section of this Part which shall be found to have been violated shall constitute a separate offense.

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Chapter 27

ZONING

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ADMINISTRATION

§ 27-101. Short Title.
§ 27-102. Applicability of This Chapter.
§ 27-103. Purposes and Community Development Objectives.
§ 27-104. Permits and Certificates.
§ 27-105. General Procedure for Permits.
§ 27-106. Interpretation and Uses Not Regulated.
§ 27-107. Enforcement, Violations and Penalties.
§ 27-108. Fees.
§ 27-109. Amendments to This Chapter.
§ 27-110. Curative Amendments.
§ 27-111. Zoning Officer.
§ 27-112. Zoning Hearing Board Actions and Variances.
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§ 27-114. Appeals to Court.
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§ 27-119. Liability.
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§ 27-201. General Interpretation.
§ 27-202. Terms Defined.

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§ 27-302. Application of District Regulations.
§ 27-303. Zoning Map.
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§ 27-306. Zoning District Land Uses and Dimensions.
§ 27-307. Additional Dimensional Requirements.
§ 27-308. Wetlands and Lakes.
§ 27-309. Sewage and Water Services.
§ 27-310. Steep Slopes.
§ 27-311. Increased Density Development Option.
§ 27-312. Conservation Along Streams.
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§ 27-502. Nuisances and Hazards to Public Safety.
§ 27-503. Wetlands.
§ 27-504. FP Floodplain District (Flood-Prone Areas).
§ 27-505. Noise.
§ 27-506. Odors and Dust.

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§ 27-507. Control of Light and Glare.
§ 27-508. Radioactivity and Electrical Disturbances.

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§ 27-603. Design Standards for Off-Street Parking.
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§ 27-702. Location of Signs.
§ 27-703. Nonconforming Signs.
§ 27-704. Miscellaneous Signs Not Requiring Permits.
§ 27-705. Freestanding, Wall and Window Signs (On-Premises Signs).
§ 27-706. Abandoned or Outdated Signs.
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§ 27-708. Vehicles Functioning as Signs.
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§ 27-710. Construction of Signs.
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§ 27-802. Height Exceptions.
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§ 27-909. Enforcement and Termination of Ordinance.
§ 27-910. Compliance with Applicable Laws and Ordinances.

[Chapter 27, Zoning, adopted by Ord. 125, 7/18/2007; as amended by A.O.; Ord. 137, 4/15/2009; Ord. 140, 9/16/2009; Res. 13-7, 4/17/2013; Ord. 157, 11/6/2013; Ord. 160, 6/4/2014; Ord. 173, 9/7/2016, was superseded by Ord. No. 199, 1/15/2025.]

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Part 1
ADMINISTRATION

§ 27-101. Short Title. [Ord. No. 199, 1/15/2025]

This chapter shall be known and be cited as the "Upper Nazareth Township Zoning Ordinance of 2024."

§ 27-102. Applicability of This Chapter. [Ord. No. 199, 1/15/2025]

This chapter, as amended, shall apply throughout the Township. Any activity regulated by this chapter shall only occur in such a way that conforms with the regulations of this chapter, as amended. See § 27-104, Subsection 1.

§ 27-103. Purposes and Community Development Objectives. [Ord. No. 199, 1/15/2025]

1. This chapter, as amended, is hereby adopted:

   A. In accordance with the requirements and purposes (including §§ 604 and 605 or their successor section(s), which are included by reference) of the Pennsylvania Municipalities Planning Code, 53 P.S. §§ 10604, 10605, as amended.

   B. In accordance with goals, objectives, and recommendations of the Nazareth Area Multi-Municipal Comprehensive Plan preservation priority and natural resources, which are hereby included by reference.

   C. To carry out the following major community development objectives:

      (1) To make sure that development carefully relates to natural features, and to avoid overly intense development of environmentally sensitive land.

      (2) To minimize disturbance of waterbodies and steep woodlands.

      (3) To avoid overextending groundwater supplies, and to encourage groundwater recharge.

      (4) To protect the quality of groundwater and surface waters.

      (5) To promote traditional styles of development.

      (6) To promote compatibility between land uses.

      (7) To seek coordinated development and roads across municipal borders.

      (8) To provide for a variety of residential densities and meet legal obligations to provide opportunities for all housing types.

      (9) To promote development that retains the established rural character of the Township.

      (10) To align the permitted scale, massing, and heights of future land uses to existing conditions within the Township.

      (11) To encourage rehabilitation and avoid demolition of historic buildings.

      (12) To direct higher density development to areas accessible by major roads and that have the potential of central water and sewage services.

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(13) To coordinate development with future central water and sewage service areas.

(14) To direct industrial development to locations that will minimize conflicts with homes.

(15) To direct commercial businesses to existing commercial areas, while avoiding new strip commercial areas that would cause traffic congestion and safety problems and conflicts with homes.

(16) To promote new business development in appropriate areas that will provide additional tax revenue and job opportunities.

(17) To promote public health, safety and general welfare.

2. Upper Nazareth Township identifies that land uses are assigned within a Municipality. As part of its Multi-Municipal Planning efforts, whenever a use clearly is not permitted by right, by condition, or by special exception by this chapter, an applicant shall consult the Chapman Borough or Lower Nazareth Township Ordinances.

§ 27-104. Permits and Certificates. [Ord. No. 199, 1/15/2025]

1. Applicability.

A. Any of the following activities or any other activity regulated by this chapter, as amended, shall only be carried out in conformity with this chapter.

(1) Erection, construction, movement, placement or extension of a structure, building or sign.

(2) Change of the type of use or expansion of the use of a structure or area of land.

(3) Creation of a lot or alteration of lot lines.

(4) Creation of a new use.

B. Zoning Permit. A zoning permit indicates that a zoning application complies with this chapter, as amended, to the best knowledge of the applicable Township staff.

(1) A zoning permit is required to be issued prior to the start of any of the following activities:

(a) Erection, construction, movement, placement, relocation or expansion of a structure, building or sign.

(b) Change of the type of use or expansion of the use of a structure or area of land.

(c) Creation of a new use.

(d) Demolition of a building, or partial demolition of the exterior of a building.

(e) Site alterations or mineral extraction as defined by § 27-202.

(f) Excavation or grading in preparation for the construction of a building or a change in use of a property. Construction or installation of any animal waste impoundment, lake, pond, dam or other water retention basin.

(2) The Township may, at its option, issue combined or separate building permits and zoning permits and/or may utilize single or separate applications for the permits.

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C. Certificate of Occupancy.

(1) It shall be unlawful to use and/or occupy any new principal building or establish any new or replacement principal nonresidential use until a certificate of occupancy for such building or use has been issued by the Township staff. (Note: a certificate of occupancy may also be required in additional situations under the construction codes.)

(2) The Zoning Officer may require that the issuance of the certificate of occupancy be delayed if the Zoning Officer believes that the activity, structure or use is not in compliance with this chapter, as amended, and associated zoning approvals, until such time as compliance is achieved.

(3) The applicant shall keep a copy of the certificate of occupancy available for inspection.

(4) Upon the request of an applicant, the Zoning Officer may in writing allow a temporary occupancy or activity to occur before all zoning requirements have been met where the following conditions are met:

(a) The applicant shall prove to the Township that the activity or occupancy can occur safely without endangering public health or safety.

(b) The temporary approval shall establish in writing a maximum time period under which it is valid. A six-month maximum time period shall apply if not otherwise specified.

(c) Failure to receive a permanent certificate of occupancy within such time period shall be a violation of this chapter.

(d) The temporary approval may be conditioned upon compliance with certain specific requirements within certain time periods.

(e) See § 27-104, Subsection 7.

2. Repairs and Maintenance. Ordinary repairs and maintenance to existing structures that do not involve an expansion or change of a use or structure shall not by itself be regulated by this chapter. Examples of such work include replacement of a roof or porch that does not involve enclosure of space. (However, a construction permit under any Township Building Code may be needed for such work.)

3. Types of Uses.

A. Permitted by Right Uses. The Zoning Officer shall issue a permit under this chapter, as amended, in response to an application for a use that is "permitted by right" if it meets all of the requirements of this chapter.

B. Special Exception Use or Application Requiring a Variance. A permit under this chapter, as amended, for a use requiring a special exception or variance shall be issued by the Zoning Officer only in response to a written approval by the Zoning Hearing Board following a hearing.

C. Conditional Use. A use requiring zoning approval by the Board of Supervisors under § 27-118.

4. Applications.

A. Submittal. All applications for a zoning permit or a decision by the Zoning Hearing Board shall be made in writing on a form provided by the Township or digitally in .pdf format. Such

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completed application, with required fees, shall be submitted to a designated Township staff-person.

B. Site Plan. The applicant shall submit a minimum of two copies of a site plan with the application if the application involves a new building, expansion of a building or addition of three or more parking spaces. The site plan shall be drawn to scale and show the following:

(1) Locations, dimensions and uses of existing and proposed structures, parking and loading areas, and locations of existing and proposed uses of areas of land, with existing features clearly distinguished from proposed features.

(2) Notes showing the dimensions of all buildings from lot lines and street rights-of-way.

(3) Locations of any watercourses and any 100-year floodplain.

(4) Proposed lot areas, lot widths and other applicable dimensional requirements.

(5) Locations and widths of existing and proposed sidewalks.

(6) A north arrow and scale.

(7) Well and primary and alternate septic system locations, if applicable.

C. Additional Information. Any application under this chapter, as amended, shall include the following information, unless the Zoning Officer determines such information is unnecessary to determine compliance with this chapter:

(1) The address of the lot.

(2) Name and address of the applicant, and of the owner of the property if different from the applicant.

(3) If the applicant is not the landowner of record, information shall be presented with the application, such as an agreement of sale or lease, to demonstrate that the applicant has the legal right to make the application.

(4) A current deed for the property.

(5) A description of the existing and proposed use(s) of the property, with the proposed use described in sufficient detail for the Zoning Officer to determine compliance with this chapter.

(6) All other applicable information listed on the official Township application form.

(7) If the applicant is incorporated, the legal names and day telephone numbers of officers of the organization/corporation.

(8) Such additional information that the Zoning Officer may determine is reasonably necessary to determine compliance with this chapter.

(9) A listing of all conditional uses, special exception approvals and/or variances which the applicant is requesting and/or a description with a date of any such approvals that were previously granted for this property that relate to this application.

D. Submittals to the Board. In addition to the information listed above, an application requiring a

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site plan and action by the Zoning Hearing Board shall also include the following information, unless the Zoning Officer determines that such information is unnecessary to determine compliance with this chapter:

(1) The present zoning district and major applicable lot requirements.

(2) For a nonresidential use:

(a) A description of the proposed nonresidential operations and storage in sufficient detail to indicate potential nuisances and hazards regarding noise, large truck traffic, glare, odors, dust, fire or toxic or explosive hazards or other significant public health and safety hazards.

(b) A list of the maximum hours of operation.

(3) The existing directions of stormwater flow (and any proposed revisions), and any proposed methods of stormwater management.

(4) A listing of any sections of this chapter, as amended, being appealed, with the reasons for any appeal.

(5) Approximate locations of principal buildings and locations of streets and alleys and zoning district boundaries within 100 feet of the boundaries of the tract, and description of uses of adjoining properties (such as "drugstore" or "single-family detached dwelling").

(6) Heights, locations, methods of illumination and intensity of exterior lighting and sign lighting.

(7) Name and address of person who prepared the site plan.

(8) Signed acknowledgment of the application by the applicant.

(9) Such additional information required under applicable sections of this chapter.

E. Ownership. No person other than a landowner or their specifically authorized agent or a tenant or lessee with written permission of the landowner shall submit a zoning application.

5. Issuance of Permits.

A. At least one copy of each permit application and any other zoning approval shall be retained in Township files.

B. PennDOT Permit. Where necessary for access onto a state road, a Township zoning or building permit shall be automatically conditioned upon issuance of a PennDOT highway occupancy permit.

6. Revocation of Permits; Appeal of Permit or Approval.

A. Revocation. The Zoning Officer shall revoke, withhold or suspend a permit or approval issued under the provisions of this chapter, as amended, in case of one or more of the following:

(1) Any false statement or misrepresentation of fact in the application or on the plans on which the permit or approval was based. (Note: the Pennsylvania Crimes Code, Title 18 Pa.C.S.A., provides for penalties for providing false information to a municipal employee in the carrying out of his/her duties.)

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(2) Upon violation of any condition lawfully imposed by the Zoning Hearing Board upon a special exception use or variance.

(3) Any work being accomplished or use of land or structures in such a way that does not comply with this chapter, as amended, or an approved site plan or approved permit application.

(4) For any other just cause set forth in this chapter.

B. Appeals. A party with legitimate standing, or as otherwise provided by state law, may appeal decisions under this chapter, as amended, within the provisions of the Pennsylvania Municipalities Planning Code, 53 P.S. § 10101 et seq. Any such appeal shall occur within the time period established in the Pennsylvania Municipalities Planning Code (as of the adoption date of this chapter, such provisions were in §§ 914.1 and 1002.A. 53 P.S. §§ 10914.1 11002.A).

7. Zoning Permit for Temporary Uses and Structures.

A. A zoning permit for a temporary use or structure may be issued by the Zoning Officer for any of the following:

(1) A temporary permit may be issued for customary, routine, and accessory short-term special events, provided that:

(a) Only a well-established nonprofit organization or a permitted place of worship proposing a temporary use that clearly primarily serves a charitable, public service, or religious purpose shall be eligible to receive approval for commercial-type activities in a district where a commercial use would not otherwise be permitted.

(b) Such total events shall be limited to a maximum of 10 total days per calendar year.

(c) The applicant shall prove to the Zoning Officer that sufficient parking and traffic control will be available for the special event, without obstructing parking that is required to serve other uses on the site.

(2) A temporary permit may be issued for temporary storage and office trailers that are necessary to serve on-site construction, while such construction is actively underway under a valid Township permit.

(3) In addition, Christmas tree sales shall be allowed by right in all districts during the months of November and December.

B. Time Period. The Zoning Officer shall state a reasonable maximum time period on the temporary permit. If no time limit is stated, then a seven-day maximum period shall apply. A temporary permit may be renewed for just cause.

C. Temporary Retail Sales. Except as provided for above, and except for agricultural sales allowed, a lot shall only be used for temporary retail sales if all of the following conditions are met:

(1) The property shall be located within a zoning district that allows retail sales.

(2) The operator shall have received any business permits required by the Township.

(3) No off-street parking spaces shall be obstructed that are required to serve permanent uses on the lot.

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(4) Any signs visible from a public street shall comply with this chapter.

(5) If food or beverages are sold that are not pre-packaged, the applicant shall prove compliance with state health regulations, including having on-site facilities for workers to wash their hands. Proper bathroom facilities shall also be available for workers.

(6) Any structure shall meet applicable minimum setbacks.

(7) A permit under this chapter, as amended, shall be required from the Township, which shall be displayed while the activity is open for business.

(8) The application may be rejected if the Zoning Officer has reason to believe that the activity would obstruct safe sight distances.

(9) Applicable state highway occupancy permit requirements shall be met.

(10) A plan shall be submitted showing the location of the use on the site.

8. Compliance with Township Subdivision and Land Development Ordinanc e[Ordinance 174, as amended]. If an application under this chapter, as amended, would also be regulated by the Township Subdivision and Land Development Ordinance ("SALDO"), then any permit or approval under this chapter, as amended, shall automatically be conditioned upon compliance with the SALDO. See the definitions of "land development" and "subdivision" in the SALDO.

   A. For example, if an applicant applies for a single-family detached dwelling on a proposed new lot, the construction permit for such dwelling shall not be valid until after the lot is granted final subdivision approval and the lot is officially recorded by the County Recorder of Deeds.

§ 27-105. General Procedure for Permits. [Ord. No. 199, 1/15/2025]

1. After receiving a proper application, the Zoning Officer shall either: (A) issue the applicable permit(s); or (B) deny the application(s) as submitted, indicating one or more reasons.

2. After the permit under this chapter, as amended, has been issued, the applicant may undertake the action specified by the permit, in compliance with other Township ordinances. However, it is recommended that applicants wait 30 days to begin construction if there is a possibility of an appeal by another party to have the permit revoked. Any commencement of construction or use within this 30-day appeal period shall be at the risk of the applicant.

§ 27-106. Interpretation and Uses Not Regulated. [Ord. No. 199, 1/15/2025]

1. Minimum Requirements. Where more than one provision of this chapter, as amended, controls a particular matter, the provision that is more restrictive upon uses and structures shall apply. The provisions of this chapter, as amended, are in addition to any other applicable Township ordinance.

2. Uses Not Specifically Regulated. Whenever a use clearly is not permitted by right, by condition, or by special exception by this chapter, as amended, anywhere in Upper Nazareth Township or by the Zoning Ordinance applicable to land within the Chapman Borough Zoning Ordinance, as in effect, or by the Zoning Ordinance applicable to land within the Lower Nazareth Township Ordinance, as in effect, the use is prohibited in the Township, except that the applicant may apply to the Board of Supervisors for a conditional use. The Board of Supervisors may permit such a use if the applicant proves the following conditions would be met:

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A. The proposed use would be no more intensive with respect to external impacts and nuisances than uses that are permitted in the district.

B. The proposed use would be closely similar in impacts and character to uses permitted in that district, considering the standards in § 27-805, Subsection 6.

C. The use would meet the standards that would apply under § 27-118 to a conditional use.

D. That the use is not "specifically prohibited" in the District, in Chapman Borough, and/or Lower Nazareth Township.

3. Interpretation of Ordinance Text and Boundaries.

A. The Zoning Officer shall literally apply the wording of this chapter, as amended, and the location of all district boundaries to particular applications. In any case, the Zoning Officer may also request an advisory opinion from the Township Solicitor to aid in the Zoning Officer's determination.

B. If an applicant disagrees with the Zoning Officer's determination and believes that the Ordinance, as amended, should be interpreted in the applicant's favor, the applicant may appeal to the Zoning Hearing Board. See § 27-112.

C. See § 27-304.

4. Undefined Terms/Interpretation of Definitions. See § 27-201.

§ 27-107. Enforcement, Violations and Penalties. [Ord. No. 199, 1/15/2025]

1. All of the enforcement, violations and penalty provisions of the Pennsylvania Municipalities Planning Code, 53 P.S. § 10101 et seq., as amended, are hereby incorporated into this chapter, as amended, by reference. (Note: as of the adoption date of this chapter, these provisions were primarily in §§ 616.1, 617 and 617.2 of such Act, 53 P.S. §§ 10616.1, 10617, 10617.2.)

A. Violations. Any person who shall commit or who shall permit any of the following actions violates this chapter:

(1) Failure to secure a zoning permit prior to any of the following: a change in use of land or structure, or the erection, construction or alteration of any structure or portion thereof, or the placement of a sign, or a change in the area of a use or the land coverage or setback of a use, or the excavation or grading of land to prepare for the erection, construction or alteration of any structure or portion thereof.

(2) Placement of false statements on or omitting relevant information from an application for a zoning permit.

(3) Undertaking any action in a manner which does not comply with a zoning permit.

(4) Violation of any condition imposed by a decision of the Zoning Hearing Board in granting a variance or special exception or other approval.

(5) Violation of any condition imposed by a decision of the Board of Supervisors in granting a conditional use or other approval.

(6) Violation of any condition imposed by a decision of a court of competent jurisdiction,

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where such court has granted zoning approval with conditions.

B. Enforcement Notice. If the Township has reason to believe that a violation of a provision of this chapter, as amended, has occurred, the Township shall initiate enforcement proceedings by sending an enforcement notice as provided in § 616.1 of the Pennsylvania Municipalities Planning Code, 53 P.S. § 10616.1. Prior to sending an official enforcement notice, the Zoning Officer may at his/her option informally request compliance.

C. Time Limits. An official enforcement notice shall state the deadline to complete bringing the property into compliance with this chapter, as amended, and shall state that the applicant has 30 days from the receipt of the notice to appeal to the Zoning Hearing Board.

D. Enforcement, Penalties and Remedies. The causes of action and enforcement remedies provisions of the Pennsylvania Municipalities Planning Code, as amended, are hereby incorporated by reference. (Note: as of the adoption date of this chapter, such provisions were primarily in §§ 617 and 617.2 of such law, 53 P.S. §§ 10617, 10617.2.)

(1) Violations and Penalties. Any person, partnership, corporation or other entity who has violated or permitted the violation of the provisions of this chapter, as amended, shall, upon being found liable therefor in a civil enforcement proceeding commenced by the Township, pay a judgment of not more than $500 plus all court costs, including the reasonable attorney's fees incurred by the Township as a result thereof. No judgment shall commence or be imposed, levied or be payable until the date of the determination of a violation by the magisterial district judge. If the defendant neither pays nor timely appeals the judgment, the Township may enforce the judgment pursuant to the applicable rules of civil procedure. Each day that a violation continues shall constitute a separate violation, unless a magisterial district judge determining that there has been a violation further determines that there was a good faith basis for the person violating this chapter, as amended, to have believed that there was no such violation, in which event there shall be deemed to have been only one such violation until the 5th day following the date of the determination of a violation by the magisterial district judge, and thereafter each day that a violation continues shall constitute a separate violation. All judgments, costs and reasonable attorney's fees collected for the violation of this chapter, as amended, shall be paid over to the Township for the general use of the Township. Imprisonment is not authorized under this chapter.

(2) Remedies. In case any building, structure, sign or landscaping is erected, constructed, reconstructed, altered, repaired, converted, maintained or used or any land is used or activity conducted in violation of this chapter, as amended, or any of the permits issued under this chapter, as amended, or any conditions imposed upon the grant of a special exception or variance by the Zoning Hearing Board or upon the grant of a conditional use, then, in addition to any other remedies provided by law, the Board of Supervisors may institute any appropriate action or proceeding to prevent, restrain, correct or abate such building, structure, landscaping, use or activity or to prevent, in and about such premises, any act, conduct, business or use constituting a violation.

E. Enforcement Evidence. In any appeal of an enforcement notice to the Zoning Hearing Board, the Township shall have the responsibility of presenting its evidence first.

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§ 27-108. Fees. [Ord. No. 199, 1/15/2025]

A Township fee schedule for permits and applications may be established and amended by written resolution of the Board of Supervisors. No application or appeal shall be considered filed until all fees are paid.

§ 27-109. Amendments to This Chapter. [Ord. No. 199, 1/15/2025]

1. Within the requirements of the multi-municipal planning agreements with Chapman Borough and Lower Nazareth Township and of the Pennsylvania Municipalities Planning Code, 53 P.S. § 10101 et seq., the Board of Supervisors may amend, or repeal any or all portions of this chapter, as amended, on: (A) its own motion; or (B) after agreeing to hear a written request of any person, entity, landowner, or the Planning Commission.

2. The following shall be submitted by an applicant for amendment to this chapter, as amended, and/or Zoning Map, subject to supplement as requested by the Board of Supervisors, as it from time to time shall deem necessary:

   A. Statement of specific Zoning Ordinance amendment, including specific proposed Zoning Ordinance language, citing section and subsection.

   B. In the case of a Zoning Map amendment, a map showing the proposed boundaries of any proposed map changes, metes and bounds description, existing and adjacent zoning and adjacent land uses, copies of deeds and tax parcel numbers of properties subject to requested Zoning Map change.

   C. A statement of why the change would be in the best interests of the Township.

   D. A statement of how the proposal would relate to the Township Comprehensive Plan with specific reference to the Nazareth Area Multi-Municipal Comprehensive Plan detailing the provisions of the Comprehensive Plan applicable to the subject change or Zoning Map amendment.

   E. A statement addressing any adverse effects on adjacent land uses.

   F. A statement addressing any major traffic access or congestion concerns. It is noted that pursuant to this section of this chapter, the Planning Commission or the Board of Supervisors may require an applicant to fund a traffic impact study.

   G. A statement explaining proposed extensions and major improvements needed of public water and sewer systems to serve the land area.

   H. A sketch plan in compliance with the Township Subdivision and Land Development Ordinance, as amended, reflecting the applicant's proposed land development and/or subdivision reflecting proposed land uses in the case of a Zoning Ordinance or Zoning Map amendment.

   I. Applicant shall schedule a pre-submission conference with the Township Manager to review the application and supporting documentation.

   J. Applicant shall pay the designated filing fee per the Township Fee Schedule.[56]

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56. Editor's Note: Said Fee Schedule is on file in the Township offices.

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§ 27-110. Curative Amendments. [Ord. No. 199, 1/15/2025]

The applicable provisions of the Pennsylvania Municipalities Planning Code, 53 P.S. § 10101 et seq., shall apply. (Note: as of the adoption date of this chapter, these provisions were primarily in §§ 609.1, 609.2 and 916.1 of such Act, 53 P.S. §§ 10609.1, 10609.2, 10916.1.)

§ 27-111. Zoning Officer. [Ord. No. 199, 1/15/2025]

1. Appointment. The Zoning Officer(s) shall be appointed by the Board of Supervisors. The Board of Supervisors may designate other Township staff persons to serve as Assistant Zoning Officer(s). Assistant Zoning Officers may serve with the same authority and duties as the Zoning Officer. The Zoning Officer shall not hold any elective office within the Township but may hold other appointed offices.

2. Duties and Powers. The Zoning Officer's duties and powers shall include the following:

   A. Administer this chapter, as amended, in accordance with its literal terms, including to receive and examine all applications required under the terms of this chapter, and issue or refuse permits within the provisions of this chapter.

   B. Conduct inspections to determine compliance and receive complaints of violation of this chapter.

   C. Keep records of applications, permits, certificates, written decisions, and variances granted by the Zoning Hearing Board, and of enforcement orders, with all such records being the property of the Township and being available for public inspection.

   D. Review proposed subdivisions and land developments for compliance with this chapter.

   E. Take enforcement actions as provided by the Pennsylvania Municipalities Planning Code, 53 P.S. § 10101 et seq., as amended.

   F. Maintain available records concerning nonconformities, provided that the Township is not required to document every nonconformity.

   G. Serve such other functions as are provided in this chapter.

§ 27-112. Zoning Hearing Board Actions and Variances. [Ord. No. 199, 1/15/2025]

1. Membership of Board. The Zoning Hearing Board shall consist of three residents of the Township appointed by the Board of Supervisors. The existing terms of office shall continue, with terms of office being three years, and with the terms being so fixed that the term of office of one member shall expire each year. Members of the Board shall hold no other office in the Township.

   A. Alternate Members. The Board of Supervisors may appoint alternate members of the Zoning Hearing Board within the applicable provisions of the Pennsylvania Municipalities Planning Code, 53 P.S. § 10101 et seq. (Note: as of the adoption date of this chapter, such provisions were in § 903(b) of such Act, 53 P.S. § 10903(b).)

   B. Expenditures. Within the maximum amount of funds appropriated by the Board of Supervisors, the Zoning Hearing Board may employ or contract for secretaries, legal counsel, and other technical and clerical services. Members and alternate members may receive compensation, within limits established by the Board of Supervisors, for the performance of their duties.

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2. Vacancies. Appointments to fill vacancies shall be only for the unexpired portion of a term.

3. Organization. The applicable provisions of the Pennsylvania Municipalities Planning Code, 53 P.S. § 10101 et seq., as amended, shall apply. (As of the adoption date of this chapter, these provisions were in § 906(a), (b) and (c) of such Act, 53 P.S. § 10906(a), (b), (c).)

4. Zoning Hearing Board Jurisdiction and Functions. The Zoning Hearing Board shall be responsible for the following:

   A. Appeal of a Decision by the Zoning Officer.

      (1) The Board shall hear and decide appeals where it is alleged by an affected person, entity or the Board of Supervisors that the Zoning Officer has improperly acted under the requirements and procedures of this chapter.

      (2) See time limitations for appeals in Subsection 6.

   B. Challenge to the Validity of the Ordinance or Map. The applicable provisions of the Pennsylvania Municipalities Planning Code, 53 P.S. § 10101 et seq., as amended, shall apply. (Note: as of the adoption date of this chapter, these provisions were primarily in §§ 909.1 and 916 of such Act, 53 P.S. §§ 10909.1, 10916.)

   C. Variance.

      (1) The Board shall hear requests for variances filed with the Township staff in writing.

      (2) Standards. The Board may grant a variance only within the limitations of state law. (Note: as of the adoption date of this chapter, the Municipalities Planning Code, 53 P.S. § 10101 et seq., provided that all of the following findings must be made, where relevant:

         (a) There are unique physical circumstances or conditions (including irregularity, narrowness, or shallowness of lot size or shape, or exceptional topographical or other physical conditions peculiar to the particular property) and that the unnecessary hardship is due to such conditions and not the circumstances or conditions generally created by the provisions of this chapter, as amended, in the neighborhood or district in which the property is located.

         (b) Because of such physical circumstances or conditions, there is no possibility that the property can be developed in strict conformity with the provisions of this chapter, as amended, and a variance is therefore necessary to enable the reasonable use of the property.

         (c) Such unnecessary hardship has not been created by the appellant.

         (d) The variance, if authorized, will not alter the essential character of the neighborhood or district in which the property is located, nor substantially or permanently impair the appropriate use or development of adjacent property, nor be detrimental to the public welfare.

         (e) The variance, if authorized, will represent the minimum variance that will afford relief and will represent the least modification possible of the regulation in issue.)

      (3) In granting any variance, the Board may attach such reasonable conditions and safeguards as it may deem necessary to implement the purposes of this chapter.

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D. Special Exception.

(1) The Board shall hear and decide requests for all special exceptions filed with the Township staff in writing. The Board shall only permit a special exception that is authorized by this chapter. See § 27-117.

(2) Conditions. In granting a special exception, the Zoning Hearing Board may attach such reasonable conditions and safeguards, in addition to those expressed in this chapter, as it may deem necessary to implement the purposes and intent of this chapter.

E. Persons With Disabilities. After the Zoning Officer receives a complete written application, the Zoning Hearing Board shall grant a special exception allowing modifications to specific requirements of this chapter, as amended, that the applicant proves to the satisfaction of the Zoning Hearing Board are required under applicable federal law to provide a "reasonable accommodation" to serve persons who the applicant proves have "disabilities" as defined in and protected by such laws.

(1) Such reasonable accommodations shall be requested in accordance with the U.S. Fair Housing Amendments Act[57] and/or the Americans with Disabilities Act, 42 U.S.C.A. § 12101 et seq., as amended.

(2) If the applicant is requesting a reasonable accommodation under the United States Fair Housing Amendments Act of 1988, or the Americans with Disabilities Act, 42 U.S.C.A. § 12101 et seq., the applicant shall identify the disability which is protected by such statutes, the extent of the modification of the provisions of this chapter, as amended, necessary for a reasonable accommodation, and the manner by which the reasonable accommodation requested may be removed when such person(s) with a protected disability no longer will be present on the property.

(3) Any modification approved under this section may be limited to the time period during which the persons with disabilities occupy or utilize the premises.

F. The Zoning Hearing Board shall also hear any other matters as set forth in the Pennsylvania Municipalities Planning Code, 53 P.S. § 10101 et seq., as amended. (Note: as of the adoption date of this chapter, such provisions were primarily within § 909.1 of such law, 53 P.S. § 10909.1.) The Zoning Hearing Board also may hear appeals of other matters if authorized under a separate Township ordinance. (Note: as of the adoption date of this chapter, the Zoning Hearing Board also heard appeals of the Property Maintenance Ordinance [Ordinance 54, as amended]).[58]

5. Time Limits for Appeals. The applicable provisions of the Pennsylvania Municipalities Planning Code, 53 P.S. § 10101 et seq., as amended, shall apply. (Note: as of the adoption date of this chapter, these provisions were in § 914.1 of such Act, 53 P.S. 10914.1.)

6. Stay of Proceedings. The stay of proceedings provisions of the Pennsylvania Municipalities Planning Code, 53 P.S. § 10101 et seq., as amended, shall apply. (Note: as of the adoption date of this chapter, such provisions were in § 915.1 of such Act, 53 P.S. § 10915.1.)

7. Time Limits on Permits and Approvals.

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57. Editor's Note: See 42 U.S.C.A. § 3604 et seq.

58. Editor's Note: See Ch. 5, Part 2, Property Maintenance Standards.

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A. After a variance is approved or other zoning approval (such as special exception or conditional use approval) is officially authorized, then any applicable zoning and building permits shall be secured by the applicant within 12 months after the date of such approval or authorization. The work authorized by zoning permits shall then be completed within 12 months after the issuance of the permits.

(1) However, if a variance is approved to address a violation of this chapter, then the permit shall be acquired and the work completed within six months after the variance is approved, with no further time extension.

B. Extension. In response to an applicant stating good cause in writing, the Zoning Officer may extend in writing the time limit for completion of work to a maximum total of 24 months after permits are issued.

C. If an applicant fails to obtain the necessary permits or begin construction within the above time periods, or allows interruptions in substantial construction of longer than 12 months, the Zoning Officer shall conclusively presume that the applicant has waived, withdrawn or abandoned approvals, variances and permits under this chapter, as amended, and all such approvals, variances and permits shall be deemed automatically rescinded by the Township.

8. Multiple Applications. No more than one application for the same property shall be pending before the Zoning Hearing Board for special exception approval at any time.

§ 27-113. Zoning Hearing Board Hearings and Decisions. [Ord. No. 199, 1/15/2025]

1. The following requirements shall apply to procedures, hearings and decisions of the Zoning Hearing Board.

A. Notice of Hearings. Notice of all hearings of the Board shall be given as follows:

(1) Ad. Public notice shall be published, as defined by § 107 of the Pennsylvania Municipalities Planning Code, 53 P.S. § 10107. The notice shall state the time and place of the hearing and the particular nature of the matter to be considered.

(2) Posting. Notice of such hearing shall be conspicuously posted on the affected tract of land at least one week prior to the hearing. The Township staff shall post the property. It is the responsibility of the applicant to make sure that such notice remains posted until the hearing.

(3) Persons Given Notice. The Township shall provide written notice to the applicant of the time and place of the hearing. The Township should also provide notice to the Chairpersons of the Board of Supervisors and Planning Commission. The Township should also provide notice to the last known primary owners of record of property that is within a 200-foot radius of the subject site. Also, such notice shall be given to any other person or group (including civic or community organizations) who has made a written timely request for such notice. Any such notices should be mailed or delivered to the last known address.

B. Initiation of Hearings. A hearing required under this chapter, as amended, shall be initiated within 60 days of the date of an applicant's request for a hearing, unless the applicant has agreed in writing to an extension of time.

C. Decision/Findings.

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(1) The Board shall render a written decision on each application within 45 days after the last hearing on that application before the Board, unless the applicant has agreed in writing to an extension of time.

(2) Where the application is contested or denied, the decision shall be accompanied by findings of fact and conclusions based thereon, together with the reasons for such conclusions.

(3) References shall be provided to the most pertinent section(s) of this chapter, as amended, and/or the Pennsylvania Municipalities Planning Code, 53 P.S. § 10101 et seq.

D. Notice of Decision. A copy of the final decision shall be delivered or mailed to the applicant or his/her representative at their last known address not later than the time limit established by the Pennsylvania Municipalities Planning Code, 53 P.S. § 10101 et seq., as amended. (Note: as of the adoption date of this chapter, such provisions were within §§ 908(9) and 908(10) of such Act, including provisions regarding notice to other parties, 53 P.S. §§ 10908(9), 10908(10).)

E. See also § 908 of the Pennsylvania Municipalities Planning Code, 53 P.S. § 10908.

§ 27-114. Appeals to Court. [Ord. No. 199, 1/15/2025]

The provisions for appeals to court that are stated in the Pennsylvania Municipalities Planning Code, 53 P.S. § 10101 et seq., as amended, shall apply. (Note: as of the adoption date of this chapter, these provisions were in §§ 1001-A, 1002-A, 1003-A, 1004-A, 1005-A and 1006-A of such Act, 53 P.S. §§ 11001-A, 11002-A, 11003-A, 11004-A, 11005-A, 11006-A.)

§ 27-115. Limited Public Utility Exemptions. [Ord. No. 199, 1/15/2025]

See the provisions of the Pennsylvania Municipalities Planning Code, as amended. (Note: as of the adoption date of this chapter, such provisions were within § 619 of such Act.)

§ 27-116. Township and Municipal Authority Exemption. [Ord. No. 199, 1/15/2025]

This chapter, as amended, shall not apply to uses or structures owned by the Township or by a municipal authority created solely by the Township for uses and structures that are intended for a public utility, stormwater, public works, recycling, municipal administrative, public recreation or public health and safety purpose.

§ 27-117. Special Exception Use Process. [Ord. No. 199, 1/15/2025]

1. Purpose. The special exception process is designed to allow careful review of uses that have some potential of conflicts with adjacent uses or areas.

2. Special Exception Procedure.

A. A site plan shall be submitted, which shall contain the information required in § 27-104. If a fully engineered subdivision or land development plan will be required, it may be submitted separately, such as after a special exception is approved.

B. The Zoning Officer should provide a review to the Zoning Hearing Board regarding the compliance of the application with this chapter.

C. The Zoning Hearing Board shall follow the procedures provided in § 27-113.

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D. The Township staff should offer a special exception application to the Township Planning Commission for any advisory review that the Commission may wish to provide. However, the Zoning Hearing Board shall meet the time limits of state law for a decision, regardless of whether the Township Planning Commission has provided comments.

E. Time Limits. See § 908 of the Pennsylvania Municipalities Planning Code.

3. Consideration of Special Exception Applications. When special exceptions are allowed by this chapter, the Zoning Hearing Board shall hear and decide requests for such special exceptions in accordance with standards established by this chapter, including the following:

A. Compliance with this chapter. The applicant shall establish by credible evidence that the application complies with all applicable requirements of this chapter. The applicant shall provide the Board with sufficient plans, studies or other data to demonstrate this compliance.

B. Compliance with Other Laws. The approval may be conditioned upon the applicant later showing proof of compliance with other specific applicable Township, state and federal laws, regulations and permits. Required permits or other proof of compliance may be required to be presented to the Township prior to the issuance of any zoning permit, building permit, certification of occupancy and/or recording of an approved plan.

C. Traffic. The applicant shall establish that the traffic from the proposed use will be accommodated in a safe and efficient manner that will minimize hazards and congestion, after considering any improvements proposed to be made by the applicant as a condition on approval.

D. Site Planning. The application shall include proper site layout, internal circulation, parking, buffering, and all other elements of proper design as specified in this chapter.

E. Neighborhood. The proposed use shall not substantially change the character of any surrounding residential neighborhood, after considering any proposed conditions upon approval such as limits upon hours of operation.

F. Safety. The proposed use shall not create a significant hazard to the public health and safety, such as fire, toxic or explosive hazards.

G. Natural Features. The proposed use shall be suitable for the site, considering the disturbance of steep slopes, mature woodland, wetlands, floodplains, springs and other important natural features.

4. Conditions. In granting a special exception, the Board may require such reasonable conditions and safeguards (in addition to those expressed in this chapter) as it determines are necessary to implement the purposes of this chapter. Conditions imposed by the Zoning Hearing Board shall automatically become conditions of the building permit issued pursuant thereto, and any failure to comply with said conditions shall be a violation of this chapter.

§ 27-118. Conditional Use Process. [Ord. No. 199, 1/15/2025]

1. Purpose. The conditional use approval process is designed to allow the Board of Supervisors to review and approve certain uses that could have significant impacts upon the community and the environment.

2. Procedure. The Board of Supervisors shall consider the conditional use application and render its decision in accordance with the requirements of the Pennsylvania Municipalities Planning Code.

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A. Submittal. A site plan shall be submitted, which shall contain the information listed in § 27-104, and additional information as may be required by the Board of Supervisors. Detailed site engineering (such as stormwater calculations and profiles) is not required at the conditional use stage. If a fully engineered subdivision or land development plan will be required, it may be submitted separately, such as after a conditional use is approved, or, an applicant may voluntarily choose to submit a subdivision or land development plan for review at the same time as a conditional use application.

B. Reviews.

(1) The Zoning Officer should provide a review to the Board regarding the compliance of the application with this chapter.

(2) The Township staff shall submit a conditional use application to the Planning Commission for any review that the Commission may wish to provide. However, the Board of Supervisors shall meet the time limits for a decision, regardless of whether the Planning Commission has provided comments.

(3) The only uses that shall be approved as conditional uses shall be those listed as conditional uses in Part 3.

(4) Time Limit. See § 913.2 of the Pennsylvania Municipalities Planning Code.

3. Consideration of Conditional Use Application. The Board of Supervisors shall determine whether the proposed conditional use would meet the applicable requirements of this chapter.

A. The Township Supervisors shall approve any proposed conditional use if they find adequate evidence that the proposed use will meet:

(1) All of the standards listed in Subsection 4 and as associated with Subsection 5.

(2) Any specific standards for the proposed use listed.

(3) All other applicable sections of this chapter.

(4) Be capable of meeting all applicable sections of the Subdivision and Land Development Ordinance and all other applicable Township Ordinances.

4. Standard for Decisions. Each conditional or special exception use shall comply with all of the following standards:

A. Other Laws. Not clearly in conflict with other Township Ordinances or state or federal laws or regulations known to the Township.

B. Comprehensive Plan. Not significantly incompatible with the adopted Comprehensive Plan, as amended.

C. Traffic. Will not result in or significantly create a substantial traffic hazard or significant traffic congestion based upon the results of analyses as required by the Township.

D. Safety. Will not create a public safety hazard, including fire, toxic or explosive hazards.

E. Storm Water Management. Will follow adequate and professionally accepted engineering methods to manage storm water. This shall not be a criteria of a decision under this chapter if the application clearly would be subject to a separate engineering review and an approval of

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storm water management by the Board of Supervisors under another Township Ordinance.

F. Neighborhood. Will not negatively affect the desirable character of an existing residential neighborhood.

G. Design. Will involve adequate site design methods, including screening, setbacks and traffic control, to avoid significant negative influences on adjacent uses; line of sight profiles shall be provided for any use which abuts a residential property.

H. Performance Standards. Will not have a serious threat of future inability to comply with the performance standards of this chapter.

5. Conditions. In granting a conditional use, the Board of Supervisors may require such reasonable conditions and safeguards (in addition to those expressed in this chapter) as it determines is necessary to implement the purposes of this chapter. In approving conditional use applications, the Board of Supervisors may attach conditions they consider necessary to protect the public welfare and meet the standards of this chapter. These conditions shall be enforceable by the Zoning Officer and failure to comply with such conditions shall constitute a violation of this chapter, as amended, and be subject to the penalties described in this chapter.

§ 27-119. Liability. [Ord. No. 199, 1/15/2025]

1. Any review of activity within the floodplain, site plan review, subdivision or land development approval, erosion control review, wetland delineation review, stormwater runoff review, review of activity on steep slopes, or any other review, approval or permit under this chapter, as amended, by an officer, employee, board, commission, solicitor, consultant or agency of the Township shall not constitute a representation, guarantee or warranty of any kind by the Township, or its employees, officials, boards, solicitor(s), consultants or agencies of the practicality or safety of any structure, use or subdivision, and shall create no liability upon nor a cause of action against such entity or person for any damage that may result pursuant thereto.

2. If the Zoning Officer mistakenly issues a permit under this chapter, the Township shall not be liable for any later lawful withdrawal of such permit.

§ 27-120. Plot/Grading Plan Requirement. [Ord. No. 199, 1/15/2025]

1. Prior to the issuance of a building permit or commencement of use for a nonresidential principal structure or addition of a nonresidential principal use, the applicant shall submit to the Zoning Officer for review and approval four copies of a final plot, grading and erosion and sedimentation control plan drawn at a scale of one inch equals 20 feet. The plan shall contain the information listed below along with any other appropriate data.

A. A grading plan to divert surface runoff away from principal buildings, driveways, walkways, in-ground pools, professionally installed above-ground pools, and on-lot sewage disposal systems without directing increased runoff onto sensitive neighboring parcels. In the case where basic grading provisions have been defined during site plan or subdivision plan approval, the lot specific grading plan shall conform to said basic grading provisions insofar as practicable.

B. A required plot/grading plan shall include the following information, unless the Zoning Officer determines in advance that such information is not relevant:

(1) All lot lines defined by bearings and distances or curve data.

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(2) Existing and proposed contour elevation lines at maximum intervals of two feet.

(3) Spot elevations for the first-floor level of any structure, adjacent to any door, window opening to grade or Bilco-style basement door, primary and secondary on-lot sewage disposal systems, finished street elevations at point of entry. Finish drive elevations at point of intersection of center lines, intersection with gutters and a maximum of 50 feet intervals (and any other area as deemed necessary by the Township Engineer).

(4) Benchmark.

(5) North reference, easements, and rights-of-way within or adjacent to the subject property.

(6) Location, size, and elevations of all existing or proposed storm drainage structures or swales within or adjacent to the subject property.

(7) Lot numbers of all adjoining lots and names of adjoining street(s).

(8) Locations of all percolation test holes, soil probes and wells, and the location and dimension of primary and secondary on-lot sewage disposal systems with isolation distances.

(9) The exact location and dimensions of any proposed structure, appurtenant structure, road, or driveway, with tie-in dimensions to lot lines.

(10) Building footprint with all wall dimensions necessary to lay out the shape of the building. Street cartway and right-of-way lines shall be shown and dimensioned. For corner lots, a dimension shall be given from the center line of the proposed driveway to the center line of the parallel street and the clear sight triangle easement shall be shown.

(11) Location, size and detailed calculations of dry wells, leach areas or other stormwater control measures.

(12) Erosion and sedimentation control measures and sequence of operations.

(13) Engineer's or surveyor's seal.

(14) Provide existing and proposed impervious cover calculations for all existing and proposed structures, driveway, sidewalks, patios and all other impervious surfaces.

(15) No permanent structures shall be placed within the property line setbacks. This includes, but is not limited to, sheds, patios, concrete pool decks, and pool equipment pads.

C. Any type of basement pump or foundation drainage system shall be noted on the plan. Any such system shall be designed to drain in a way that avoids erosion of shoulders of roads, prevents increased drainage onto public roads and avoids drainage problems for neighboring properties. Four copies of any calculations, designs and methods for handling any such discharged water shall be submitted with the plot and lot grading plan.

D. Any application for an accessory structure or use shall include the applicable information on Township application forms, unless determined by the Zoning Officer to be unnecessary to determine compliance with this chapter.

E. In addition to the information listed above, an application requiring a site plan and action by the Zoning Hearing Board shall also include the following information, unless the Zoning Officer

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determines that such information is unnecessary for determination of whether the proposal complies with this chapter.

(1) The present zoning district and major applicable lot requirements.

(2) A description of the proposed nonresidential operations and storage in sufficient detail to indicate potential nuisances and hazards regarding noise, traffic (including description of any traffic by large trucks), glare, odors, dust, fire or toxic or explosive hazards or other significant public health and safety hazards.

(3) If a nonresidential use is proposed within 100 feet of a dwelling, a description of hours of operation.

(4) A listing of any sections of this chapter, as amended, being appealed, with the reasons for any appeal.

F. The Zoning Officer may delay the issuance of a permit under this chapter, as amended, if he/she has reason to believe that such a use would violate another Township, state or federal law or regulation until such compliance is proven by the applicant.

G. No person other than a landowner or their agent (with specific written authorization) or a tenant or lessee with written permission of the landowner shall submit a zoning application.

H. The Zoning Officer may submit a copy of any plan and application to any appropriate agencies and/or individuals (such as the Planning Commission, the County Conservation District, utilities, or Township Engineer) for review and comment, with costs of such review being paid by the applicant.

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Part 2
DEFINITIONS

§ 27-201. General Interpretation. [Ord. No. 199, 1/15/2025]

1. For the purposes of this chapter, words and terms used herein shall be interpreted as follows:

   A. Words in the present tense shall include the future tense.

   B. "Used" or "occupied" as applied to any land or building include the words "intended, arranged, or designed to be used or occupied."

   C. "Should" means that it is strongly encouraged but is not mandatory. "Shall" is always mandatory.

   D. "Sale" shall also include rental.

   E. Unless stated otherwise, the singular shall also regulate the plural, and the masculine shall include the feminine, and vice-versa.

   F. If a word or term is not defined by this chapter, as amended, but is defined in the Subdivision and Land Development Ordinance (SALDO) [Ordinance 174],[59] then the definition in the SALDO shall also apply to this chapter. If a word or term is not defined in this chapter or the SALDO, then the word or term shall have its plain and ordinary meaning within the context of the section. In such case, in case of a dispute, the word's definition in accordance with the latest publication of the Merriam-Webster dictionary shall apply.

   G. The words "such as," "includes," "including" and "specifically" shall provide examples. These examples shall not, by themselves, limit a provision to the examples specifically mentioned if other examples would otherwise comply with the provision.

   H. The word "person" includes a firm, company, corporation, partnership, trust, organization, or association, as well as an individual.

   I. See also related Township Ordinances and Chapters of the Upper Nazareth Township Municipal Code, as amended for applicable definitions and terminology.

§ 27-202. Terms Defined. [Ord. No. 199, 1/15/2025]

When used in this chapter, as amended, the following words, terms, and phrases shall have the following meanings, unless expressly stated otherwise or unless the context clearly indicates otherwise:

100-YEAR FLOOD — See "base flood."

ABUT OR ABUTTING — Areas of contiguous or adjoining lots that share a common lot line, except not including lots entirely separated by a street, public alley open to traffic, or a perennial waterway. See definition of "adjacent."

ACCESSORY STRUCTURE (INCLUDES ACCESSORY BUILDING) — A structure serving a purpose customarily incidental to and subordinate to the use of the principal use and located on the same lot as the principal use. Accessory structures include, but are not limited to, a household garage, household storage shed, detached carport, a household swimming pool, or an accessory storage building to a business use.

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59. Editor's Note: See Ch. 22A, Subdivision and Land Development.

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An "accessory building" is any accessory structure that meets the definition of a "building." A portion of a principal building used for an accessory use shall not be considered an accessory building.

ACCESSORY USE — Unless otherwise specifically assigned, a use on the same lot with and customarily incidental to any permitted principal use within the zoning district that the subject lot is located.

ADJACENT — Two or more lots that share a common lot line or that are separated only by a street or waterway from each other.

ADULT USE — This use shall include only the following:

1. ADULT BOOKSTORE — An establishment having a significant portion of the value of its stock in trade or of the number of total items of its stock in trade (whichever is more inclusive) in books, films, magazines, video tapes, novelties, or other periodicals, which are distinguished or characterized by their emphasis on matter depicting, describing, or relating to "specified sexual activities" or "specified anatomical areas." This shall include, but not be limited to, materials that would be illegal to sell to minors under Pennsylvania State law.

2. ADULT CABARET — A nightclub, bar, restaurant, or similar establishment that regularly features live performances that are characterized by the exposure of specified anatomical areas or by specified sexual activities, or films, motion pictures, video cassettes, slides, or other photographic reproductions in which more than 10% of the total presentation time is devoted to the showing of material that is characterized by any emphasis upon the depiction of specified sexual activities or specified anatomical areas.

3. ADULT RETAIL ESTABLISHMENT — Any retail establishment which, for money or any other form of consideration either: (A) has as one of its principal purposes to sell, exchange, rent, loan, trade, transfer, or provide for viewing, off the premises, any adult oriented merchandise; or (B) provides, as its substantial stock-in-trade, for the sale, exchange, rental, loan, trade, transfer, for viewing or use, off the premises, any adult-oriented merchandise.

4. ADULT MODELING STUDIO — An establishment whose primary business is the provision to customers of figure models who are so provided with the intent of providing sexual stimulation to such customers and who engage in specified sexual activities or display specified anatomical areas while being observed, painted, painted upon, sketched, drawn, sculptured, photographed, or otherwise depicted by such customers.

5. ADULT MOVIE THEATER — A building, a portion or all of which is used for presenting motion pictures, slides or video tapes or similarly reproduced images distinguished or characterized by an emphasis on matter depicting, describing, or relating to sexual activities for observation by patrons therein. This shall include, but not be limited to, any theater that shows any one or multiple motion pictures that have received a rating of "X" over a total of more than 14 days in any calendar year.

6. MASSAGE PARLOR — A type of "adult use" that is an establishment that meets all of the following criteria:

   A. Massages are conducted involving one person using their hands and/or a mechanical device on another person, in return for monetary compensation, and which does not involve persons who are related to each other.

   B. The use does not involve a person licensed or certified by the state as a health care professional.

   C. The massages are not conducted within a licensed hospital or nursing home or an office of a medical doctor or chiropractor or as an incidental accessory use to a permitted exercise club or

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high school or college athletic program.

D. The massages are conducted within private or semi-private rooms.

AEU (ANIMAL EQUIVALENT UNIT) — 1,000 pounds live weight of livestock or poultry animals, regardless of the actual number of individual animals comprising the unit, as defined in 3 Pa.C.S.A. § 503.

AGE-RESTRICTED RESIDENTIAL DEVELOPMENT — A residential complex in accordance with the requirements of § 27-313 and Part 4.

AGRICULTURE OPERATION — The management and use of farming resources for the production of crops, livestock or poultry as defined in 3 Pa.C.S.A. § 27-503.

AGRICULTURE SUPPORTIVE INDUSTRY/SERVICE — Any agricultural-oriented commercial uses accessory to an Agriculture Operation, including but not limited to agritourism activities like tree farms, agritourism, pumpkin patches, corn mazes, petting and feeding zoos, hayrides, orchards, and gardens. This use does not include any use specifically assigned within the same zoning district.

AGRITOURISM — The practice of visiting an agribusiness or agricultural operation for the purpose of recreation, education, purchase, or involvement in the operation. These operations include those that are for-profit and those that are provided free of charge.

ALLEY — A public thoroughfare which affords only a secondary means of access to abutting property and is not intended for general traffic circulation.

ANIMAL FEED MILL — Premises in which animal feed or grain intended for livestock is stored or packaged for shipment and in which animal feeds may be prepared.

ANIMAL HOSPITAL, LARGE — A building routinely used for the treatment, housing or boarding of animals. A "large animal hospital" includes treatment of all types of animals including horses, cows, and pigs.

ANIMAL HOSPITAL, SMALL — A building routinely used for the treatment, housing or boarding of animals. A "small animal hospital" involves treatment of only small domestic animals typically seen at veterinarian offices, including, but not limited to, dogs, cats, rabbits, birds, or fowl.

ANIMAL, DOMESTICATED — Any non-exotic animal that has been bred or raised to live in or about the habitation of humans and is dependent on people for food and shelter.

ANTENNA — An exterior device or apparatus designed for cellular, digital, telephone, radio, pager, commercial mobile radio, television, microwave, or any other wireless communications through sending and/or receiving of electromagnetic waves including, without limitation, omnidirectional or whip antennas and directional or panel antennas. Unless otherwise stated, this term shall not include "standard antenna."

ANTENNA HEIGHT — The vertical distance from the base of the antenna support structure at grade to the highest point of the structure, including any antennas attached thereto or forming a part thereof. If the support structure is on a sloped grade, then the average between the highest and lowest grades shall be used in calculating the antenna height.

ANTENNA, STANDARD — A device, partially or wholly exterior to a building, which is used for receiving television or radio signals for use on-site, or for transmitting short-wave or citizens band radio signals. See also "commercial communications antenna."

ANY RESIDENTIAL LAND USE NOT ASSIGNED OTHERWISE — If a residential land use is not specifically assigned herein or within the Zoning Ordinances, as amended, of Lower Nazareth Township and Chapman Borough, it is categorized as "Any Other Residential Land Use Not Assigned Otherwise" and shall comply with the regulations specified within this chapter, as amended.

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APPLICANT — The definition in the Pennsylvania Municipalities Planning Code, 53 P.S. § 10101 et seq., as amended, shall apply.

AUDITORIUM, COMMERCIAL — A commercial area or structure involving indoor or outdoor space for exhibits, meetings, live performances, or sports events, but not a use that meets the definition of an "indoor movie theater, adult use," or "sit-down restaurant."

AUTO DETAILING SHOP — A facility that does not meet the definition of an auto service/repair station, which provides automobile-related services such as applying paint protectors, interior and exterior cleaning and polishing as well as installation of after-market accessories such as tinting, auto alarms, spoilers, sunroofs, headlight covers, and similar items.

AUTO SALVAGE YARD — The dismantling or wrecking of used motor vehicles or trailers, or the storage, sale, or dumping of dismantled or wrecked vehicles or their parts.

AUTO SERVICE/REPAIR STATION — A building and/or land where work is conducted that is closely similar in character to the following: sale and installation of oil, lubricants, batteries, brakes, tires, belts and similar accessories, and safety and emission inspections. This use may include any activities as defined under "auto detailing shop."

AUTO, BOAT, OR MOBILEHOME SALES — A building or area, other than a street, used for the outdoor or indoor display, sale, or rental of one or more of the following: motor vehicles, recreation vehicles, boat trailers, farm equipment, motorcycles, trucks, utility trailers, construction vehicles or boats in an operable condition, or transportable mobilehomes in a livable condition. This use may include an "auto/truck/body collision/repair center" as an accessory use provided that all requirements of such use are complied with. This use shall not include a mobilehome park or a junkyard.

AUTO/TRUCK/BODY COLLISION/REPAIR CENTER — A building and/or land where repairs and installation of parts and accessories for motor vehicles and/or boats are conducted that involves work that is more intense in character than work permitted under the definition of "auto service/repair station." An "auto/truck/body collision/repair center" shall include, but not be limited to, any use that involves any of the following work: major mechanical or body work, straightening of body parts, painting, welding, or rebuilding of transmissions. This use may also include any use described in the definition of "auto service/repair station."

BAKERY — An establishment that produces and sells baked goods such as, but not limited to, bread, cakes, doughnuts, pies, cookies, and pastries.

BANK — A government regulated, chartered establishment for the custody, loan, exchange, or issue of money, for the extension of credit, and for facilitating the transmission of funds.

BASE FLOOD — A flood which has a 1% chance of being equaled or exceeded in any given year (also called the "100-year flood" or 1% annual chance flood).

BASE FLOOD DISCHARGE — The volume of water resulting from a base flood as it passes a given location within a given time, usually expressed in cubic feet per second (CFS).

BASE FLOOD ELEVATION (BFE) — The elevation shown on the Flood Insurance Rate Map and all such successors (FIRM) for Zones AE, AH, A1-30 that indicates the water surface elevation resulting from a flood that has a 1% or greater chance of being equaled or exceeded in any given year.

BASEMENT — An enclosed level of a building that is not a "story" and that is partly underground.

BED AND BREAKFAST — An operation in which a minimum of two and a maximum of 10 rooms, all without cooking facilities, are rented to guests on a daily basis in which breakfast may be served to the guests by the proprietor of the facility.

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BERM (or EARTH BERM) — A mound or ridge of landscaped earth designed to act as a screen, buffer, or any similar purpose.

BETTING USE — A place used for lawful gambling activities, including, but not limited to, off-track pari-mutual betting and any use of electronic gambling devices. This term shall not regulate state lottery sales or lawful "small games of chance."

BEVERAGE DISTRIBUTION — For all related activities as defined and regulated by Chapter 47, § 102 of the Pennsylvania Liquor Code, as amended.

BILLBOARD — A type of off-premises sign. See Part 7.

BLAST or BLASTING — The explosion of dynamite, black powder, fuse, blasting cap, detonators, electric squibs, or other explosives.

BOARDING HOUSE — A residential use in which: (1) room(s) that do not meet the definition of a lawful dwelling unit are rented for habitation; or (2) a dwelling unit includes greater than the permitted maximum number of unrelated persons. A boarding house shall not include a use that meets the definition of a hotel, dormitory, motel, life care center, personal care center, bed and breakfast inn, group home or nursing home. A college fraternity or sorority house used as a residence shall be considered a type of boarding house. A boarding house may either involve or not involve the providing of meals to residents but shall not include a restaurant open to the public unless the use also meets the requirements for a restaurant. A boarding house shall primarily serve persons residing on-site for five or more consecutive days.

BREWERY — A facility which holds a license to manufacture, store and distribute brewed or malt beverages and which may include a brewery pub or tap room, as regulated by Chapter 47, the Pennsylvania Liquor Code, as amended.

1. MICRO BREWERY — A brewery of 1,000 barrels (U.S. barrels) or less per year.

2. LARGE BREWERY — A brewery of greater than 1,000 barrels (U.S. barrels) per year.

3. BREWER/TAP ROOM — A portion of an establishment which holds a brewery license as regulated by the Pennsylvania Liquor Control Board, which is open to the public for the sale of brewed and malt beverages for on-site and/or off-site consumption and which also offers food to patrons, as regulated by Chapter 47, the Pennsylvania Liquor Control Board, as amended.

4. STORAGE FACILITY — A portion of a warehouse or a separate structure, owned and maintained by a person or entity which holds a license that permits the temporary storage of brewed or malt beverages and which may also include a brewery pub or tap room, as regulated by Chapter 47, the Pennsylvania Liquor Code, as amended.

5. DISTRIBUTOR — As defined by Chapter 47, § 102 of the Pennsylvania Liquor Code, as amended.

6. IMPORTING DISTRIBUTOR — As defined by Chapter 47, § 102 of the Pennsylvania Liquor Code, as amended.

7. LIMITED DISTILLERY — An establishment licensed by the Pennsylvania Liquor Control Board to operate a distillery that shall not exceed production of 100,000 gallons of distilled liquor per year, or as otherwise defined by Chapter 47, § 102 of the Pennsylvania Liquor Code, as amended.

8. LIMITED WINERY — An establishment licensed by the Pennsylvania Liquor Control Board to operate a winery that shall not exceed production of 200,000 gallons per year, or as otherwise defined by Chapter 47, § 102 of the Pennsylvania Liquor Code, as amended.

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9. BREWED BEVERAGE MANUFACTURER — An establishment which produces brewed and/or malt beverages of on-site or off-site sale and distribution, and which may include a brewery pub or tap room on the premises, or as otherwise defined by Chapter 47, § 102 of the Pennsylvania Liquor Code, as amended. See Brewery.

BUFFER YARD — A strip of land that (1) separates one use from another use or feature; and (2) is not occupied by any building, parking, outdoor storage, or any use other than open space or approved pedestrian pathways. A buffer yard may be a part of the minimum setback distance, but land within an existing or future street right-of-way shall not be used to meet a buffer yard requirement. See § 27-803.

BUILDING — Any structure having a permanent roof and walls and that is intended for the shelter, work area, housing or enclosure of persons, animals, vehicles, equipment, or materials and that has a total area under roof of greater than 50 cubic feet. "Building" is interpreted as including "or part thereof." See the separate definition of "structure." Any structure involving a permanent roof (such as a covered porch or a carport) that is attached to a principal building shall be considered to be part of that principal building.

BUILDING COVERAGE — The percentage obtained by dividing the total horizontal area covered by all buildings on a lot by the total lot area of a lot. For the purposes of this definition, building coverage shall include all buildings that are under a roof.

BUILDING FACE — The vertical area of a particular side of a building, but not including the area of any slanted roof.

BUILDING HEIGHT — The vertical distance from the average of the finished ground level adjoining a building at all exterior walls to the average height of the highest roof surface. The finished ground level shall not slope away from a building wall in such a manner that it is not possible to position a ladder for fire rescue.

BUILDING WIDTH — The horizontal measurement between two vertical structural walls that are generally parallel of one building, measured in one direction that is most closely parallel to the required lot width. For attached housing, this width shall be the width of each dwelling unit, measured from the center of each interior party wall and from the outside of any exterior wall. For detached buildings, this width shall be measured from the outside of exterior walls.

BUILDING, PRINCIPAL — A building used for the conduct of the principal use of a lot, and which is not an accessory building.

BUS STATION OR TAXI TERMINAL — Any premises for the non-permanent parking of motor driven buses, and/or taxis with the associated loading and unloading of passengers.

CABLE — Facilities consisting of a set of closed transmission paths and associated signal generation, reception, and control equipment that is designed to provide service which includes video programming, and which is provided to multiple subscribers within the Township; but such term does not include:

1. A facility that serves only to retransmit the television signals of one or more television broadcast stations;

2. A facility that serves subscribers without using any right-of-way;

3. A facility of a common carrier which is subject, in whole or in part, to the provisions of Title II of the Communications Act of 1934, as amended, except that such facility shall be considered a cable system [other than for purposes of 47 U.S.C. § 541(c)] to the extent such facility is used in the transmission of video programming directly to subscribers, unless the extent of such use is solely to provide interactive on-demand services;

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4. An open video system that complies with 47 U.S.C. § 573; or

5. Any facilities of any electric utility used solely for operating its electric utility system.

CAMPGROUND — A development under single ownership of the land where tents and/or recreational vehicle sites are temporarily situated for transient visitors to the area, and which may include associated recreational facilities.

CAR WASH — A building designed or used primarily for the washing, waxing, and drying of automobiles. This use may include the use of automatic, hand washing, and/or manual automobile washing modules.

CARE CENTER, ADULT — A licensed care facility as identified in accordance with applicable criteria of the Pennsylvania Department of Human Services or its successor in which adults who are not related to the operator receive care for time periods of less than 24 hours.

CARE CENTER, CHILD — A licensed care facility as identified in accordance with applicable criteria of the Pennsylvania Department of Human Services or its successor in which children who are not related to the operator receive childcare for time periods of less than 24 hours.

CARTWAY — The paved portion of a street designed for vehicular traffic and on-street parking, but not including the shoulder of the street.

CEMENT PLANT — An industrial structure, installation, plant, or building primarily engaged in manufacturing Portland, natural, masonry, pozzolanic, and other hydraulic cements, and typically identified by NAICS Code 327310.

CENTER LINE — A line equidistant from and parallel to the existing rights-of-way lines on each side of the street.

CHANNEL — A natural or artificial watercourse with a definite bed and banks which confine and conduct continuously or periodically flowing water.

CHANNEL FLOW — That water which is flowing within the limits of a defined channel.

CHARITABLE DONATION COLLECTION BIN — Any outdoor receptacle made of metal, steel, or a similar product, designed with a door, slot, or other opening that is intended to accept and store donated items such as books, clothing or other nonperishable goods and materials. Charitable donation collection bins shall not exceed 20 square feet and seven feet in height.

CLEAR CUTTING — A logging method that removes all trees or the vast majority of trees from a mostly wooded area.

CO-LOCATION — The mounting or installation of transmission equipment on an eligible support structure for the purpose of transmitting and/or receiving radio frequency signals (or other transmissions developed in the future) for communications purposes.

COMMERCIAL COMMUNICATIONS TOWER — A structure, partially or wholly exterior to a building, used for transmitting or re-transmitting electronic signals through the air, and that does not meet the definition of a "standard antenna." Commercial communications antennas shall include, but are not limited to, antennas used for transmitting commercial radio or television signals, or to receive such signals for a cable system, or to re-transmit wireless telecommunications. A commercial communications tower shall be a structure over 30 feet in height that is primarily intended to support one or more antenna. See standards in § 27-402. This term shall not include a "standard antenna."

1. LATTICE TOWER — A commercial communications tower that is guyed or self-supporting with an open steel-frame structure.

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2. MONOPOLE TOWER — A commercial communications tower that involves a single shaft as its structural support.

COMMERCIAL CROP STORAGE — The temporary or seasonal storage of harvested materials.

COMMERCIAL DISTRICT — The TD6 Village Mixed Use Zoning District.

COMMERCIAL INDOOR RECREATION — A type of "commercial recreation" use that: (1) does not meet the definition of Commercial Outdoor Recreation; and (2) is used principally for active or passive recreation, such as a bowling alley, roller skating, ice skating, commercial batting cages, and similar uses. This term shall not include any use defined herein.

COMMERCIAL OUTDOOR RECREATION — A type of "commercial recreation" use that: (1) has a total building coverage of less than 15%; and (2) is used principally for active or passive recreation, such as a golf driving range, miniature golf course, amusement park, outdoor ice skating and similar uses. This term shall not include any use listed and defined separately as a land use by this chapter, as amended.

COMMERCIAL STABLE — A building having stalls or compartments where horses are sheltered and fed.

COMMERCIAL USE — For profit or not-for-profit business activity, including, but not limited to, retail sales, offices, personal services, auto sales, auto/truck/body collision/repair centers, and other uses of a similar profit-making nonindustrial nature. The sale of goods or services from a vehicle on a lot shall also be considered to be a commercial use.

COMMUNICATIONS ACT — The Communications Act of 1934,[60] as amended as of the time of enactment of this Part.

COMPOSTING — The controlled processing of vegetative material to allow it to biologically decompose under controlled anaerobic or aerobic conditions to yield a humus-like product.

COMPREHENSIVE PLAN — The Nazareth Area Comprehensive Plan as adopted by the Board of Supervisors of the Township, as may be amended.

CONCENTRATED ANIMAL FEEDING OPERATION (CAFO) — A Concentrated Animal Operation (CAO) with greater than 300 AEUs, any agricultural operation with greater than 1,000 AEUs, or any agricultural operation defined as a large CAFO under 40 CFR 122.23(b)(4), as amended.

CONCENTRATED ANIMAL OPERATION (CAO) — An agricultural operation with eight or more animal equivalent units [AEUs] where the animal density exceeds two AEUs per acre on an annualized basis.

CONDITIONAL USE — A use permitted in a particular Zoning District by the Board of Supervisors pursuant to the provisions associated with Conditional Use review and approval as contained and referenced as part of the Pennsylvania Municipalities Planning Code, 53 P.S. § 10601 et seq.

CONDOMINIUM — A set of individual dwelling units or other areas of buildings each owned by an individual person(s) in fee simple, with such owners assigned a proportionate interest in the remainder of the real estate which is designated for common ownership, and which is created under the Pennsylvania Uniform Condominium Act of 1980, 68 Pa.C.S.A. § 3101 et seq., or Uniform Planned Community Act of 1996, 68 Pa.C.S.A. § 5101 et seq., as amended.

CONSERVATION EASEMENT — A legal agreement granted by a property owner that strictly limits the types and amounts of development that may take place on such property. Such easement shall restrict the original and all subsequent property-owners, lessees, and all other users of the land.

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60. Editor's Note: See 47 U.S.C.A. § 151 et seq.

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CONSERVATION PLAN — A plan including a map(s) and narrative that, at the very least, outlines an erosion and sedimentation control plan for an identified parcel of land.

CONTIGUOUS LOTS — Adjacent parcels of land, including parcels separated by a waterbody or road.

CONTRACTOR OFFICE/YARD — An enclosed structure used for conducting business affairs and internal storage, which may also include a Storage Yard as accessory to the principal building.

CONVENIENCE STORE — An establishment that is designed and stocked to sell primarily food, beverages, and general household supplies to customers.

CONVENIENCE STORE WITH FUEL/ENERGY RECHARGE — A retail store designed and stocked to sell primarily food, beverages, and general household supplies to customers, and includes the sale and pumping of gasoline and/or accessory electric vehicle charging stations.

CONVENTIONAL DEVELOPMENT — Development that is not approved under the increased density development provisions of this chapter, as amended. (Note this type of development typically does not involve the preservation of significant open space.)

CRAFTSMAN/ARTISAN STUDIO — An establishment for the preparation, display, and sale of individually crafted artwork, jewelry, furniture, carpentry, sculpture, pottery, leathercraft, hand-woven articles, and related items by artisans and/or craftsmen.

CREMATORIUM — A facility accessory to a funeral home or mortuary containing properly installed, certified equipment intended for reducing deceased humans or animals to ashes by burning (cremation).

CULTURAL/COMMUNITY CENTER — A building and/or land open to the public which contains exhibits of clearly artistic or cultural interest, such as a museum, art gallery or indoor nature study area. This shall not include uses that are primarily operating for profit.

CURATIVE AMENDMENT — A process provided in the Pennsylvania Municipalities Planning Code, 53 P.S. § 10101 et seq., which authorizes certain types of challenges to a zoning ordinance.

DAY CARE — An establishment that provides care, protection, and supervision for children and/or adults on a regular basis away from their primary residence for less than 24 hours per day.

DENSITY — The total number of dwelling units proposed on a lot divided by the "lot area," unless otherwise stated.

DEP — The Pennsylvania Department of Environmental Protection and its relevant bureaus.

DETACHED BUILDING — A building that is surrounded on all sides by open yards and that is not attached to any other building.

DEVELOPMENT — Any man-made change to improved or unimproved real estate, including, but not limited to, the construction, reconstruction, renovation, repair, expansion, or alteration of buildings or other structures; the placement of manufactured homes; streets, and other paving; utilities; filling, grading, and excavation; mining; dredging; drilling operations; storage of equipment or materials; and the subdivision of land.

DIAMETER AT BREAST HEIGHT (DBH) — The diameter of a tree trunk measured at a point four feet above ground level.

DISTRIBUTION CENTER, TYPE 1 — An enclosed facility used for the storage of merchandise or commodities for a short period of time, not to exceed 30 days, with additional operations such as cross-docking, order fulfillment, returned goods processing, packaging, repackaging, and labeling. This use may include the use of automated storage and retrieval systems.

DISTRIBUTION CENTER, TYPE 2 — An enclosed facility used for the storage of merchandise or

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commodities for a short period of time, not to exceed 30 days, with additional operations such as order fulfillment, returned goods processing, packaging, repackaging, and labeling, but which does not include cross-docking or operations commonly referred to as "just-in-time" delivery.

DISTRICT (or ZONING DISTRICT) — A land area within the Township within which certain uniform regulations and requirements apply under the provisions of this chapter, as amended.

DISTURBANCE — Any physical activity which results in the modification of topography by cutting or filling, stripping of topsoil, and/or placing of physical structures or improvements thereon.

DORMITORY — A building used as living quarters for the exclusive use of bona-fide full-time faculty or students at an accredited Post-Secondary School or Primary and Secondary School, and which is owned by such a school.

DRIP LINE — An imaginary circular line on the soil around a tree that mirrors the circumference of the tree's canopy. The tree's roots usually extend well beyond this line.

DRIVE THROUGH FACILITIES — An accessory commercial facility which provides or dispenses products or services through an attendant, window or automated machine to persons remaining in motorized vehicles that are in a designated stacking lane.

DRIVE-IN THEATER — An outdoor area devoted primarily to the showing of movies to patrons seated in motor vehicles or outdoors.

DUMP — Any area used for solid waste disposal that does not operate under a valid solid waste permit issued by DEP and that is not a permitted junkyard under this chapter, as amended.

DWELLING — A building, structure, or part thereof, permanently affixed to the ground by a foundation and includes no more than one family. A dwelling does not include a hotel, boarding/rooming house, or other accommodations used for transient occupancy.

DWELLING TYPES —

1. DWELLING, MULTIFAMILY (APARTMENTS) — More than two dwelling units on one lot, whether within a single principal building or up to two buildings on the same lot.

2. DWELLING, SINGLE-FAMILY DETACHED — One dwelling unit in one principal building and which accommodates only one family on one lot.

3. DWELLING, TOWNHOUSE — One dwelling unit in one principal building on one lot, where the following applies:

   A. The dwelling unit is situated in the middle of a row of such dwelling units, and shares two party walls; or

   B. The dwelling unit shares one party wall and is located at the end of a row of such dwellings.

4. DWELLING, TWIN — One dwelling unit in one principal building on one lot, which is attached by a shared party wall to no more than one additional dwelling unit within one principal building on a separate lot.

DWELLING UNIT — The quantity equal to one dwelling.

EARTHMOVING AND/OR GRADING — For the purposes of this chapter, as amended "earthmoving" as defined in applicable DEP regulations (Chapter 102 - Erosion and Sediment Control of 25 Pa. Code of Regulations), and also shall include any one or more of the following activities:

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1. Cutting down of trees or clearing of brush, other than clearing of grass and weeds;
2. Excavation of the ground, filling of the ground;
3. Grading, re-grading, any change in the ground surface elevation greater than one foot, disturbance of topsoil or vegetative cover of the land;
4. For the purposes of this definition, the term "earthmoving" shall apply to any soil, clay, overburden, sediment, dredge spoils or similar material;
5. Removal of tree stumps or brush with earthmoving equipment.

ELECTRIC VEHICLE CHARGING STATION — A set of standard parking spaces with electric vehicle charging facilities situated in front of each parking space.

ELECTRIC VEHICLE CHARGING STATION, RESIDENTIAL — Charging facilities for an electric vehicle, which is located within a residential building or accessory structure on the same lot.

EMERGENCY SERVICES — A building for the housing of fire, emergency medical or police equipment and vehicles, and for any related activities. This use may include housing for emergency personnel while on-call.

EMPLOYEES — The highest number of workers (including both part-time and full-time, both compensated and volunteer and both employees and contractors) present on a lot at any one time, other than clearly temporary and occasional persons working on physical improvements to the site.

ENGINEERING/TESTING FACILITY OR LABORATORY — A use engaged in research and development, testing, assembly, repair, and manufacturing in the following industries: biotechnology, pharmaceuticals, medical instruments or supplies, communications and information technology, electronics and instrumentation, and computer hardware and software. Any office, warehousing, wholesaling, and distribution of finished products produced on-site are allowed as part of this use.

ESSENTIAL SERVICES — Municipal or utility facilities that do not require enclosure in a building which are necessary for the public health and safety and which are routine, customary and appropriate to the character of the area in which proposed, including such facilities as poles, towers, wires, mains, drains, sewers, pipes, conduits, cables, fire alarms, police call boxes, traffic signals, hydrants, and other similar equipment. Building, sewage treatment plants, solid waste disposal facilities, utility company offices, storage of trucks or equipment and bulk storage, commercial communication towers, and any commercial commutations devices and/or facilities not specifically regulated by the Pennsylvania Public Utility Commission shall not be considered essential services.

FAMILY — An individual, or two or more persons related by blood, marriage, adoption or foster childcare, including domestic employees or gratuitous guests thereof; or a group of not more than three unrelated persons living together without supervision in a dwelling unit, or not more than 12 persons living together in a group living arrangement with supervision, provided that the group living arrangement meets all of the following criteria:

1. It provides non-routine support services, including supervision, personal care, social or counseling services, and transportation, to persons who need such assistance in order to use and enjoy a dwelling or to avoid being placed within an institution, because of physical disability, aging, mental retardation, or other handicap or disability, as defined by the Fair Housing Amendments Act or the Americans with Disabilities Act.
2. It provides for the joint occupancy of a dwelling unit where the residents maintain a common household and practice, on a permanent or long-term basis, a joint economic, social, and cultural life.

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3. It does not involve the housing of persons on a transient basis.

4. It does not involve the housing or treatment of persons accepted for residence in the group living arrangement on the basis of their status as criminal offenders, juvenile offenders or delinquents, or who would otherwise qualify for residence by virtue of having been found by any governmental tribunal, court or agency to be a danger to society or are on release or under the jurisdiction of the criminal justice system, a government bureau of corrections or similar institution.

5. Family shall not include persons living together in a group care facility, personal-care boarding home, or nursing home, as defined herein, or any other supervised group living arrangement for persons not protected by the Fair Housing Act or for any persons who constitute a direct threat to others or their physical property.

FARM PRODUCTS — Items sold at a farmers' market from a producer. Farm products shall include, but are not limited to, agricultural products such as fruits, vegetables, mushrooms, herbs, nuts, eggs, honey or other bee products, flowers, nursery stock, livestock food products (including meat, milk, cheese, and other dairy products), and seafood.

FARMERS' MARKET* — A retail sales use operated by a governmental agency, a nonprofit organization, or one or more producers that primarily sells farm products and value-added farm products directly to consumers. Farmers' markets can include indoor and outdoor display and sales. A farmers' market may be a principal or accessory use of a site.

* In Pennsylvania, the term "farmers' market" is not defined by law and can be used by anyone. Generally, ordinances require most of the items sold to be farm products. The temporary and seasonal nature of some farmers' markets allows it to be located on the same lot as a principal use; generally, with an institutional, public, or commercial use.

FENCE — A man-made barrier placed or arranged as a line of demarcation, an enclosure or a visual barrier that is constructed of wood, chain-link metal, vinyl, or aluminum and/or plastic inserts. Man-made barriers constructed principally of masonry, concrete, cinder block or similar materials shall be considered a "wall."

FILL — Material placed or deposited so as to form an embankment or raise the surface elevation of the land including, but not limited to, levees, bulkheads, dikes, jetties, embankments, and causeways.

FINANCIAL INSTITUTION — An establishment for the custody, loan, exchange, or issue of money, for the extension of credit, and for facilitating the transmission of funds, but does not otherwise meet the definition of a bank.

FLOOD — A temporary inundation of normally dry land areas.

FLOOD INSURANCE RATE MAP (FIRM) — The Official Map on which the Federal Emergency Management Agency has delineated both the areas of special flood hazards and the risk premium zones applicable to the community.

FLOOD INSURANCE STUDY (FIS) — The official report provided by the Federal Emergency Management Agency that includes flood profiles, the Flood Insurance Rate Map, the Flood Boundary and Floodway Map, and the water surface elevation of the base flood.

FLOODPLAIN — See definitions of this term and related terms in the Township floodplain regulations.[61]

FLOODPLAIN AREA — A flat or low land area which is subject to partial or complete inundation from an adjoining or nearby stream, river or watercourse; and/or any area subject to the unusual and rapid

61. Editor's Note: See § 27-504, FP Floodplain District (Flood-Prone Areas).

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accumulation of surface waters from any source.

FLOODPROOFING — Any combination of structural and nonstructural additions, changes, or adjustments to structures which reduce or eliminate flood damage to real estate or improved real property, water and sanitary facilities, structures, and their contents.

FLOODWAY — The channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation by more than one foot.

FLOOR AREA, TOTAL — The total floor space within a building(s) measured from the exterior faces of exterior walls or from the center lines of walls separating buildings. Floor area shall specifically include, but not be limited to: (1) fully enclosed porches and (2) basement or cellar or attic space that is potentially habitable and has a minimum head clearance of at least 6.5 feet. Floor area shall not include unenclosed structures.

FORESTRY — The management of forests and timberlands when practiced in accordance with accepted silvicultural principles, through developing, cultivating, harvesting, transporting, and selling trees for commercial purposes, which does not involve any land development. This term shall not apply to Christmas tree farms.

GARAGE SALE — The accessory use of any lot for the occasional sale or auction of only common household goods and furniture and items of a closely similar character.

GLARE — A sensation of brightness within the visual field which causes annoyance, discomfort or loss in visual performance, visibility and/or ability to focus.

GRADE — The mean curb level, unless otherwise noted. When a curb level has not been established, grade shall mean the average finished ground elevation adjoining the buildings.

GRANTEE — A person who enjoys a nonexclusive privilege to occupy or use a public right-of-way to provide nonexempt service under this chapter and who is in continuous compliance with this chapter.

GROCERY STORE — Establishments, not exceeding 10,000 gross square feet, where most of the floor area is devoted to the sale of food products for home preparation and consumption, which typically also offer other home care, personal care, and prescription pharmaceutical products.

GROUP HOME — Unless otherwise defined and/or regulated by the Commonwealth of Pennsylvania, a "group home" shall be defined as the use of any lawful dwelling unit which meets all of the following criteria:

1. A maximum number of 8 persons shall reside in a group home, including the maximum number of employees/supervisors and/or care providers routinely in the group home at any point in time.

2. Involves persons functioning as a common household.

3. Involves providing non-routine support services and oversight to persons who need such assistance to avoid being placed within an institution, because of physical disability, age, intellectually disabled, or other "handicap"* as defined by applicable federal law. *NOTE: The Federal Fair Housing Act definition, as amended, of "handicap" shall apply.

4. Does not meet the definition of a "Treatment Center."

5. Does not involve the housing or treatment of persons who could reasonably be considered a threat to the physical safety of others.

HABITABLE CONDITION — Where a dwelling unit is fit for human occupancy and is free of serious

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defects that might pose a risk to one's health and safety. Any dwelling unit that fails to provide heat, hot water, and/or plumbing shall not be considered habitable.

HAZARDOUS SUBSTANCES — A product or waste, or combination of substances that because of the quantity, concentration, physical or infectious characteristics, if not properly treated, stored, transported, used or disposed of, or otherwise managed, would create a potential threat to public health through direct or indirect introduction into ground water resources and the subsurface environment which includes the soil and all subsequent materials located below. Such hazardous substances include, but are not limited to, materials which are included on the latest edition of one or more of the following lists:

1. "Hazardous substances" as defined pursuant to § 311 of the Federal Clean Water Act, or its successor provisions.

2. "Hazardous substances" as defined pursuant to the Federal Comprehensive Environmental Response, Compensation and Liability Act, or its successor provisions.[62]

HAZARDOUS SUBSTANCES, EXTREMELY — Hazardous substances included on the list of "Extremely Hazardous Substances" in 29 Code of Federal Regulations, Part 355, or its successor provisions and that are stored or used in quantities above the threshold reportable limits in such regulations.

HEIGHT — See "building height." To measure the height of any structure that is not a building, it shall be the total vertical distance from the average elevation of the proposed ground level to the highest point of a structure. For height of signs, see Part 7 entitled "Signs."

HIGHEST ADJACENT GRADE — The highest natural elevation of the ground surface prior to construction next to the proposed walls of a structure.

HISTORIC STRUCTURES — Any structure that is:

1. Listed individually in the National Register of Historic Places (a listing maintained by the Department of Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register.

2. Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district.

3. Individually listed on a state inventory of historic places in states which have been approved by the Secretary of the Interior.

4. Individually listed on a local inventory of historic places in communities with historic preservation that have been certified either:

   A. By an approved state program as determined by the Secretary of the Interior.

   B. Directly by the Secretary of the Interior in states without approved programs.

HOME IMPROVEMENT/BUILDING SUPPLY, SMALL SCALE — A facility, not exceeding 10,000 gross square feet, engaged in the retail sale of various basic hardware lines, such as tools, builders' hardware, paint and glass, housewares and household appliances, garden supplies, and cutlery.

HOME OCCUPATION — A use conducted entirely within or administered from a dwelling or its accessory building that does not meet the criteria of a no-impact or a low-impact home-based business, and that is clearly incidental and secondary to the principal residential use. A dwelling that fulfills the

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62. Editor's Note: See 42 U.S.C.A. § 9601.

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regulations of this chapter, as amended, and only receives business mail at the address and does not involve the conduct of any other nonresidential use shall not be considered a home occupation or a home office and shall not by itself require a permit under this chapter, as amended, for such activity.

HOME-BASED BUSINESS, LOW-IMPACT — A business or commercial activity administered or conducted as an accessory use which is clearly secondary to the use as a residential dwelling and which fulfills the regulations of this chapter, as amended, geared toward involving minimal customer, client or patient traffic, whether vehicular or pedestrian, pickup, delivery or removal functions to or from the premises, in excess of those normally associated with residential use.

HOME-BASED BUSINESS, NO IMPACT — A business or commercial activity administered or conducted as an accessory use which is clearly secondary to the use as a residential dwelling which fulfills the regulations of this chapter, as amended, geared toward involving no customer, client or patient traffic, whether vehicular or pedestrian, pickup, delivery or removal functions to or from the premises, in excess of those normally associated with residential use.

HONEYBEE APIARY — A place where bee colonies are kept.

HOTEL/MOTEL — A building or buildings including rooms rented out to persons as clearly transient and temporary living quarters. Any such use that customarily involves the housing of persons for periods of time longer than 90 days shall be considered a "boarding house" and shall meet the requirements of that use. See also "bed and breakfast" use. A hotel or motel may also include a restaurant, meeting rooms, nightclub, newsstand, amusement arcade, gift shop, swim club, exercise facilities, tavern and similar customary accessory amenities, and provided and such use shall only be allowed as a principal use of the property if such use is allowed by the applicable district regulations.

HUMAN OCCUPANCY — The residing of an individual overnight in a dwelling unit or living quarters.

IMPERVIOUS COVERAGE — Unless otherwise defined by the Upper Nazareth Township Municipal Code, the percentage that results from dividing the land area on a lot covered by all "impervious surfaces" by the total land area of the lot. For a townhouse development, the maximum impervious coverage may be measured as a maximum for the entire development after completion, after the deletion of street rights-of-way (or cartway where a street right-of-way where not exist), as opposed to regulating each individual townhouse lot. For major subdivisions that include public roadways, sidewalks, public recreation facilities, and other public improvements, the maximum allowable coverage ratios apply to the individual lot.

IMPERVIOUS SURFACE — Unless otherwise defined by the Upper Nazareth Township Municipal Code, any man-made surface that prevents or limits water soaking into the ground.

INCREASED DENSITY OPTION — An optional type of residential development that involves the permanent preservation of preserved open space, and that places dwellings on the most suitable portions of a tract, on lots that are typically smaller than would otherwise be allowed with conventional development. See § 27-311.

JUNK — Any discarded, unusable, scrap or abandoned man-made or man-processed material or articles stored outside of a completely enclosed building and which covers over 200 square feet of land area. Examples of junk include scrap metal, used furniture, used appliances, used motor vehicle parts, worn-out machinery and equipment, used containers and scrap building materials. Junk shall not include: (1) solid waste temporarily stored in an appropriate container that is routinely awaiting imminent collection and proper disposal; (2) toxic substances; (3) yard waste or tree trunks; (4) items clearly awaiting imminent recycling at an appropriate location; (5) building materials awaiting imminent use at an ongoing building; or (6) "clean fill" as defined by state environmental regulations.

JUNK VEHICLE — Includes any vehicle or trailer that meets any of the following conditions:

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1. Cannot be moved under its own power, in regard to a vehicle designed to move under its own power, other than a vehicle clearly needing only minor repairs.

2. Cannot be towed, in regard to a trailer designed to be towed.

3. Has been demolished beyond repair.

4. Has been separated from its axles, engine, body, or chassis.

5. Includes only the axle, engine, body parts and/or chassis, separated from the remainder of the vehicle. See also the definition of "unregistered vehicle."

JUNKYARD —

1. Land or a structure used for the collection, storage, dismantling, processing and/or sale, other than within a completely enclosed building, of material of one or more of the following types:

   A. Junk-(see definition) covering more than 1% of the lot area.

   B. Two or more "junk vehicles" that are partly or fully visible from an exterior lot line, dwelling and/or public street. This shall not apply to such vehicles stored as part of an auto/truck/body collision/repair center or auto service/repair station.

   C. One or more mobilehomes that are not in a habitable condition.

2. A junkyard specifically shall include, but not be limited to, a metal scrap yard or auto salvage yard. See also the Township Property Maintenance Code [Ordinance 54, as amended] that regulates unlicensed and inoperable vehicles on lots and the State Vehicle Code, 75 Pa.C.S.A. § 101 et seq., for unlicensed vehicles parked on a street.

KENNEL/CATTERY — The keeping of, breeding and/or raising of dogs or cats in accordance with the provisions of the Commonwealth of Pennsylvania Department of Agriculture. A nonprofit animal shelter is a type of kennel.

LAND DISTURBING ACTIVITY — Any change of the land surface including removing vegetative cover, excavating, filling, grading, and the construction of any structure. An agricultural activity such as the planting, growing, cultivating, and harvesting of crops is exempt from this definition.

LANDOWNER — The owner of a legal or equitable interest in land, including the holder of a written, signed, and active option or contract to purchase or a person leasing the property (if authorized under the lease to exercise the right of the landowner) or authorized officers of a partnership or corporation that is a "landowner."

LIGHTING, DIFFUSED — Illumination that passes from the source through a translucent cover or shade.

LIVESTOCK OR POULTRY, RAISING OF — The raising and keeping of livestock, poultry, or insects beyond the number and type allowed under the "keeping of pets" section of this chapter, as amended,[63] but at an intensity less than eight animal equivalent units (AEUs) and where the animal density does not exceed two AEUs per acre on an annualized basis.

LOT — A designated parcel, tract or area of land established by a plat or otherwise as permitted by law and to be used, developed, or built upon.

LOT AREA — The horizontal land area contained within the lot lines of a lot (measured in acres or

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63. Editor's Note: See § 27-402, Additional Requirements for Specific Principle Uses and/or Accessory Uses.

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square feet). For the purposes of determining compliance with the minimum lot area, the following shall be excluded:

1. Areas within the "existing" legal rights-of-way of: (a) any proposed or existing public streets or alleys; or (b) any proposed or existing commonly maintained private streets that serve more than one lot. (Note: other sections of this chapter, as amended, such as townhouse development, may specifically permit proposed streets to be included in determining density for a specific use.)

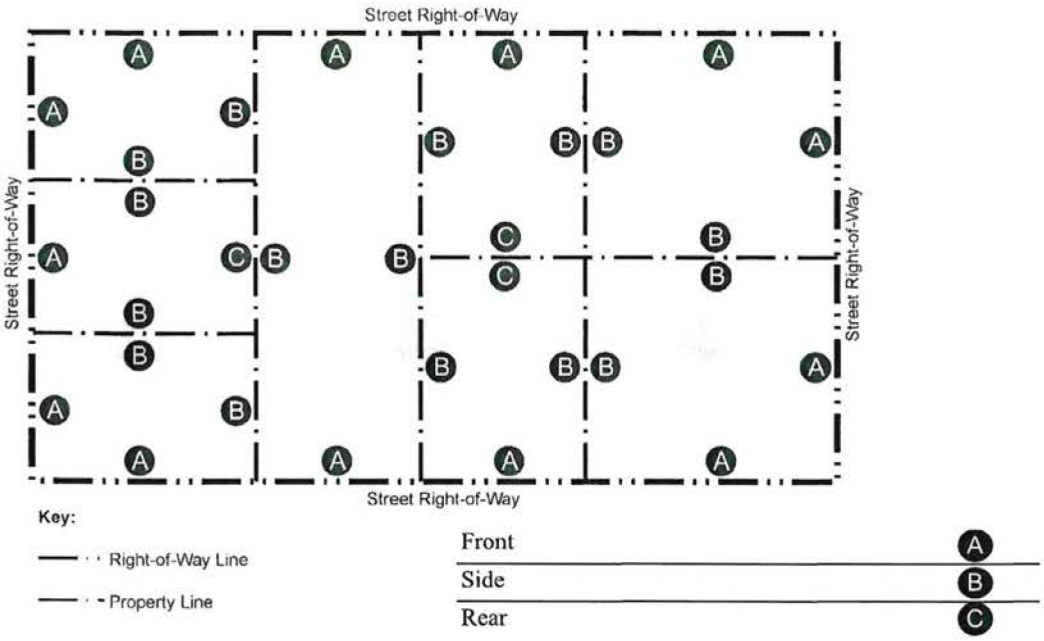
2. Areas that are currently or will be required to be dedicated as common or preserved open space on a separate lot. (Note: other sections of this chapter, as amended, such as increased density development, may specifically permit proposed common open spaces to be included in determining density for a specific use.)

LOT LINES — The property lines bounding the lot. Wherever a property line borders a public street, for the purposes of determining setbacks, the lot line shall be considered to be the street right-of-way line that will exist at the time of completion of a subdivision or development.

1. FRONT LOT LINE (street line) — A lot line immediately adjacent to the street right-of-way or any future street right-of-way.

2. REAR LOT LINE — A lot line opposite and most distant from the front lot line. (The rear lot line of any three-sided lot shall be established such that it will be at least 10 feet long.)

3. SIDE LOT LINE — Any lot line other than a front or rear lot line. A "side street lot line" is a side lot line separating a lot from a street.



LOT WIDTH — The horizontal distance between the side lot lines measured at the minimum prescribed front yard setback line, unless otherwise stated. In the event of a curved lot line, such lot width at the minimum prescribed front yard setback line shall be measured along the curve. Where buildings are permitted to be attached, the lot width shall be measured from the center of the party wall.

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LOT, CORNER — A lot which has an interior angle of less than 135 degrees at the intersection of two street lines. A lot abutting upon a curved street or streets shall be considered a "corner lot" if the tangent to the curve at the points beginning within the lot or at the points of intersection of the side lot lines with the street lines intersect at an angle of less than 135 degrees.

LOWEST FLOOR — The lowest floor of the lowest fully enclosed area (including basement). An unfinished, flood-resistant partially enclosed area, used solely for parking of vehicles, building access, and incidental storage, in an area other than a basement area is not considered the lowest floor of a building, provided that such space is not designed and built for inhabitation.

MANUFACTURING, HEAVY — Any facility involving: (1) processes resulting in the generation of hazardous waste products at a scale permitted as a large quantity generator (LQG) or any future equivalent adopted metric in accordance with the Pennsylvania Department of Environmental Protection; and/or (2) the production of raw materials into refined materials by mechanical or chemical transformation; and/or (3) manufacturing processes that do not meet the definition of light industry. Heavy industry includes, but is not limited to, steel production, coke production, oil and gas production and refining, ethylene production, cracking of ethane or propane, gravel and limestone mining, pharmaceuticals, motor vehicle assembly, aerospace manufacturing, and shipbuilding.

MANUFACTURING, LIGHT — Any facility involving: (1) generally unobtrusive processes resulting in the generation of hazardous waste products at a scale no greater than permitted as a small quantity generator (SQG) or any future equivalent adopted metric in accordance with the Pennsylvania Department of Environmental Protection; and/or (2) the manufacturing of small finished goods, by which less potential exists for air, water, soil, noise, and light pollution than with heavy industry. Light industry includes, but is not limited to, culinary production kitchens, the manufacture or processing of: food and beverage products, electronic devices, precision instruments, household appliances, machine tools, optical goods, personal care products, non-toxic commercial products, wood and paper products, home and office furnishings, printed materials, ceramics, glass products, jewelry and personal accessories, apparel, lightweight non-ferrous metal casts and dies, light sheet metal products, film, games and toys, and plastic goods.

MEDICAL MARIJUANA GROWER OR PROCESSOR FACILITY — Any building or structure used to grow medical marijuana by a licensed grower/processor that has a current and valid license from the Commonwealth of Pennsylvania.

MEMBERSHIP CLUB — An area of land or building routinely used by a recreational, civic, social, fraternal, religious, political or labor union association of persons for meetings and routine socializing and recreation that is limited to members and their occasional guests, and persons specifically invited to special celebrations, but which is not routinely open to members of the general public and which is not primarily operated as a for-profit business:

1. This use shall not include a target range for outdoor shooting of firearms, boarding house, tavern, restaurant, or retail sales unless that particular use is permitted in that district and the requirements of that use are met.

MINERAL EXTRACTION — The removal from the surface or beneath the surface of the land of bulk mineral resources. This use also includes accessory stockpiling and processing of mineral resources. "Mineral extraction" includes, but is not limited to, the extraction of sand, gravel, topsoil, limestone, sandstone, oil, coal, clay, shale, and iron ore. The routine movement of and replacement of topsoil during construction shall not by itself be considered to be mineral extraction. This definition is intended to be consistent with and include the definition of "surface mining" provided in Section 3 of the Noncoal Surface Mining Conservation and Reclamation Act, 52 P.S. § 3303.

MINOR REPAIR — The replacement of existing materials for the purpose of its routine maintenance and

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upkeep, but not including the cutting away of any wall, partition or portion thereof, the removal or cutting of any structural beam or bearing support, or the removal or change of any required means of egress, or rearrangement of parts of a structure affecting the exit way requirements; nor shall minor repairs include addition to, alteration of, replacement or relocation of any standpipe, water supply, sewer, drainage, drain leader, gas, oil, waste, vent, or similar piping, electric wiring, mechanical or other work affecting public health or general safety.

MOBILEHOME PARK — A parcel or contiguous parcels of land which has been so designated and improved that it contains two or more mobilehome lots for the placement thereon of mobilehomes.

MOTOR VEHICLE — An automobile, recreational vehicle, truck, bus, motorcycle, all-terrain vehicle, or similar means of transportation designed to operate carry persons or cargo on roads and that is powered by mechanized means.

MUNICIPAL USE, NON-UTILITY — Any buildings or facilities owned and/or operated by the municipality, which do not meet the definitions of "public utility facility" or "essential services."

MUNICIPALITIES PLANNING CODE — The Pennsylvania Municipalities Planning Code, 53 P.S. § 10101 et seq., as reenacted and amended.

NEW CONSTRUCTION — Structures for which the start of construction commenced on or after the effective start date of this section and includes any subsequent improvements to such structures. Any construction started before the effective start date of this chapter, as amended, is subject to the ordinance in effect at the time the permit was issued, provided the start of construction was within 180 days of permit issuance.

NON-TOWER COMMERCIAL COMMUNICATIONS FACILITY (NON-TOWER CCF) — All non-tower wireless communications facilities, including but not limited to, antennas and related equipment. Non-tower CCF shall not include support structures for antennas and related equipment.

NONCONFORMING LOT — A lot which does not conform with the minimum lot width or area dimensions specified for the district where such lot is situated but was lawfully in existence prior to the effective date of this chapter, or amendments hereinafter enacted.

NONCONFORMING STRUCTURE — A structure or part of a structure that does not comply with the applicable lot coverage, dimensional and other provisions in this chapter, as amended, where such structure lawfully existed prior to the enactment of such ordinance or applicable amendment(s). Such nonconforming structures include, but are not limited to, signs.

NONCONFORMING USE — A use, whether of land or of a structure, which does not comply with the applicable use provisions in this chapter or amendment(s), where such use was lawfully in existence prior to the enactment of this chapter or applicable amendment(s). A use granted by variance is not a nonconforming use.

NURSING HOME — A business or an institution, licensed by the Commonwealth of Pennsylvania, for the care of human patients requiring skilled or intermediate nursing care as defined in Chapter 201, Section 201.3, of the Pennsylvania Code, Applicability, Definitions, Ownership, and General Operation of Long-Term Care Nursing Facilities, but not including facilities for care and treatment of drug or alcohol addiction.

OBSTRUCTION — Any dam, wall, wharf, embankment, levee, dike, pile, abutment, projection, excavation, channel rectification, bridge, conduit, culvert, building, wire, fence, rock, gravel, refuse, fill, structure, or other matter in, along, across, or projecting into any channel, watercourse, or floodplain, which may impede, retard, or change the direction of the flow of water, either in itself or by catching or collecting debris carried by such water, or that is placed where the flow of water might carry the same downstream to

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cause damage to life or property.

OFFICE, MEDICAL OR DENTAL — A facility operated by one or more physicians, dentists, chiropractors, or other licensed practitioners of the healing practices for the examination and treatment of persons solely on an outpatient basis. Medical and dental offices do not include veterinary services or animal hospitals.

OFFICE, PROFESSIONAL — A use that involves activities including, but not limited to, administrative, clerical, financial, governmental, or professional services and/or operations.

OPEN SPACE — An area of land or water, or a combination of land and water on a parcel of land that is free of improvement and impervious surfaces.

OPEN SPACE, COMMON — A parcel or parcels of land within a tract which meets all of the following standards:

1. Is designed, intended and suitable for active or passive recreation by residents of a development or the general public.
2. Is covered by a system that ensures perpetual maintenance, if not intended to be publicly owned.
3. Will be deeded to the Township and/or preserved by a deed restriction or conservation easement to permanently prevent uses of land other than "preserved open space" and noncommercial recreation or a golf course open to the public.
4. Does not use any of the following areas to meet minimum preserved open space requirements: Each square foot of preserved open space that is of 25% or greater slopes and each square foot within the 100-year floodplain shall only count as 1/2 square foot for the purposes of determining the amount of preserved open space.

ORDINANCE, THIS — The Upper Nazareth Township Zoning Ordinance, including the Official Zoning Map, as amended.

OUTDOOR DISPLAY OF MERCHANDISE — The display and/or storage of goods for sale on-site by the nonresidential principal use.

OUTDOOR STORAGE, DOMESTIC — The outdoor storage of domestic items incidental to the function of the principal residential use, including but not limited to building materials used for home improvement, lawn-care machinery, firewood, and/or compost piles.

OUTDOOR STORAGE, VEHICULAR — The outdoor storage of operable, motorized vehicles, whether for sale or not, for a period greater than 72 consecutive hours and not located on the driveway of the principal use.

PA — The Commonwealth of Pennsylvania.

PACKAGE DELIVERY SERVICES — An accessory facility that contains service windows for mailing packages and letters, post office boxes, offices, and sorting and distribution facilities for correspondence.

PARKING — Off-street parking and aisles for vehicle movement unless otherwise stated.

PENNDOT — The Pennsylvania Department of Transportation, or its successor, and its subparts.

PERMITTED BY RIGHT USES — Allowed uses in which zoning matters may be approved by the Zoning Officer, provided the application complies with all requirements of this chapter, as amended. A "nonconforming use" shall not be considered to be a permitted by right use, a special exception use or a conditional use.

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PERSON — An individual, partnership, public or private association or corporation, firm, trust, estate, municipality, governmental unit, public utility, or any other legal entity whatsoever, which is recognized by law as the subject of rights and duties.

PERSONAL CARE BOARDING HOME — A premises in which food, shelter and personal assistance or supervision are provided for a period exceeding 24 hours, for four or more adults who are not relatives of the operator, who do not require the services in or of a licensed long-term care facility, but who do require assistance or supervision in activities of daily living or instrumental activities of daily living. This use shall not meet the definition of "treatment center."

PERSONAL SERVICES — An establishment that provides a service oriented to personal needs to the general public and which does not involve primarily retail or wholesale sales or services to businesses. Personal services include, but are not limited to, barber and beauty shops, shoe repair shops, tattoo parlors, household appliance repair shops, and other similar establishments.

PESTICIDE — Any substance or mixture of substances intended for use in preventing, destroying, repelling, sterilizing, or mitigating any insects, rodents, nematodes, predatory animals, fungi, weeds, or other forms of plant or animal life.

PETROLEUM PRODUCT — Oil or petroleum of any kind and in any form, including crude oil and derivatives of crude oil. It may be alone, as a sludge, as oil refuse, or mixed with other wastes.

PETS, KEEPING OF — The keeping of domesticated animals of types that are normally considered to be kept in conjunction with a dwelling for the pleasures of the resident family. This shall include dogs, cats, small birds, gerbils, rabbits, and other animals commonly sold in retail pet shops.

PHARMACY — An establishment engaged in the retail sale of prescription drugs, nonprescription medicine, cosmetics, and related supplies.

PLACE OF ASSEMBLY — A land use where people congregate for religious or cultural activities, entertainment, or meetings.

PLACE OF WORSHIP — A land use for religious activities taking place in buildings, synagogues, churches, religious retreats, monasteries, seminaries, and shrines used primarily for religious and/or spiritual worship and that are operated for non-profit and noncommercial purposes.

POST-FIRM STRUCTURE — A structure for which construction or substantial improvement occurred on or after the community's Flood Insurance Rate Map (FIRM) in effect.

PRE-FIRM STRUCTURE — A structure for which construction or substantial improvement occurred before the community's Flood Insurance Rate Map (FIRM) in effect.

PRINCIPAL BUILDING — A "principal structure" which is also a "building."

PRINCIPAL STRUCTURE — The structure in which the principal use of a lot is conducted. Any structure that is physically attached to a principal structure shall be considered part of that principal structure.

PRINCIPAL USE — A dominant use(s) or main use on a lot, as opposed to an accessory use.

PRISON OR SIMILAR CORRECTIONAL INSTITUTION — A correctional institution within which persons are confined based upon criminal court actions or as the result of a criminal arrest.

PRODUCER — The person or entity that: (1) raises or produces farm products on the land that the person or entity farms and owns, rents, or leases; or (2) a person or entity that creates (by cooking, canning, baking, preserving, roasting, etc.) value-added farm products.

PROPERTY LINE — See "lot lines."

PROPERTY, RECEIVING — A lot(s) that is approved to permit a higher density than would otherwise be

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permitted as a condition of the restriction of development on sending property.

PROPERTY, SENDING — A lot(s) or portion of a lot that is restricted by a conservation easement or farmland preservation easement as a condition of approval of a higher density on the "receiving property" than would otherwise be permitted.

PUBLIC NOTICE — Notice required by the Pennsylvania Municipalities Planning Code, 53 P.S. § 10101 et seq. (See definition in § 107 of such law, 53 P.S. § 10107.)

PUBLIC RECREATION — Parks, swimming pools, playgrounds, tennis courts, and other recreational facilities owned and operated by a municipality, county, school district, state, or federal government.

RADIOACTIVE MATERIAL — Any natural or artificially produced substance which emits radiation spontaneously.

RECREATIONAL VEHICLE — A vehicle defined as such by Pennsylvania Motor Vehicle Code, as amended.[64]

RECYCLING COLLECTION CENTER — A use for collection and temporary storage of more than 500 pounds of common household materials for recycling, but that does not involve processing or recycling other than routine sorting, baling, and weighing of materials. This term shall not include the indoor storage of less than 500 pounds of household recyclables and their customary collection, which is a permitted by right accessory use in all zoning districts, without additional regulations. A recycling collection center is also a permitted by right accessory use to a public or private primary or secondary school, a place of worship, a municipal-owned use or an emergency services station.

REGULATORY FLOOD ELEVATION (RFE) — The base flood elevation (BFE) or estimated flood elevation as determined using simplified methods plus a freeboard safety factor of 1 1/2 feet.

RELATED ENTITY — An entity, such as a business, corporation, partnership, or limited liability company, is a "related entity" of another entity if either entity controls the other entity, or the two entities are under common control. For this purpose, control includes direct or indirect ownership of most of the interests in the entity.

RELATED or RELATIVE — Persons who are related by blood, marriage, adoption or formal foster relationship to result in one of the following relationships: spouse, brother, sister, parent, child, grandparent, great-grandparent, grandchild, great-grandchild, uncle, aunt, niece, nephew, sister-in-law, brother-in-law, parent-in-law or first cousin. This term specifically shall not include relationships such as second, third or more distant cousins. See definition of "dwelling unit."

REPETITIVE LOSS — Flood-related damages sustained by a structure on two separate occasions during a 10-year period for which the cost of repairs at the time of each such flood event, on average, equals or exceeds 25% of the market value of the structure before the damages occurred.

RESIDENTIAL ACCESSORY STRUCTURE (INCLUDES "BUILDING") OR USE — A use or structure that is clearly accessory, customary and incidental to a principal residential use on a lot, including the following uses and uses that are very similar in nature: garage (household), carport, tennis court, basketball backboard, household swimming pool, gazebo, storage shed, greenhouse, children's playhouse or children's play equipment. No business shall be conducted in a household garage or storage shed that is accessory to a dwelling, except as may be allowed as a home occupation.

RESIDENTIAL DISTRICT(S) — For the purposes of distinguishing residential and nonresidential districts in this chapter, as amended, TD1, TD2, TD4, and TD6 shall be considered residential zoning districts.

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64. Editor's Note: See 75 Pa.C.S.A. § 102.

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RESTAURANT, CAFE — A restaurant primarily offering coffee, tea, and other beverages, and where light refreshments and limited menu meals may also be sold.

RESTAURANT, QUICK-SERVE — A structure which is maintained, operated, or advertised or held out to the public as a place where food, beverage, or desserts are served in disposable containers or wrappers from a serving counter for consumption exclusively off the premises.

RESTAURANT, SIT-DOWN — An establishment that sells ready-to-consume food or drink and that routinely involves the consumption of at least a portion of such food on the premises. A sit-down restaurant may include the sale of alcoholic beverages. However, if such sale is a primary or substantial portion of the total trade, the requirements of a "tavern" must be met as defined herein.

RETAIL, SMALL-SCALE — A use within a building no greater than 3,000 square feet of gross floor area in which non-food related merchandise is sold or rented to the general public, but not including the following: sales of motor vehicles or boats, adult movie theater, adult bookstore, manufacturing, tavern, car wash, auto service/repair station, auto/truck/body collision/repair center, convenience store or any restaurant defined herein.

RIGHT-OF-WAY — An area or strip of land which is reserved for use by or as a street or by one or more utilities or by the public or by others. The term "right-of-way" by itself shall mean the street right-of-way, unless another meaning is otherwise stated or clearly implied from the context in which it is used.

SALES AND RENTAL OF INDUSTRIAL EQUIPMENT — Facilities used for the sales, rental, and/or storing of industrial equipment, heavy machinery, and construction-related equipment.

SCHOOL, POST-SECONDARY — An accredited or licensed educational institution recognized by the Pennsylvania Department of Education, having regular sessions with employed instructors, and providing general education above the level of the secondary school.

SCHOOL, PRIMARY AND SECONDARY — A public or private academic institution offering instruction at the elementary, junior, and/or senior high school levels in the branches of learning and study required by the Pennsylvania Department of Education.

SCREENING — Year-round plant material of substantial height and density designed to provide a buffer.

SELF STORAGE FACILITY — A building or group of buildings divided into individual separate access units which are rented or leased for the storage of personal and small business property.

SERVICE(S) — Any telecommunications service, cable service, video programming service, information service, utility service (including, but not limited to, electric, gas, water, or steam service), or other form of service provided by means of facilities located in the right-of-way.

SETBACK LINE — A line separating a "yard" from the area within which a building or use is allowed.

SEWAGE SERVICE, CENTRAL — Sanitary sewage service to a building by a Township-approved sewage collection and disposal system that serves five or more lots, and which includes an appropriate mechanism to ensure long-term professional operation and maintenance of the system.

SEWAGE, ON-LOT — Sanitary sewage service to a building that does not meet the definition of central sewage service, such as but not limited to, an individual on-lot septic system.

SEWAGE, PUBLIC — Central sanitary sewage service by a system owned and/or operated by a municipality or a municipal authority.

SIGHT TRIANGLE — An area required to be kept free of certain visual obstructions to traffic.

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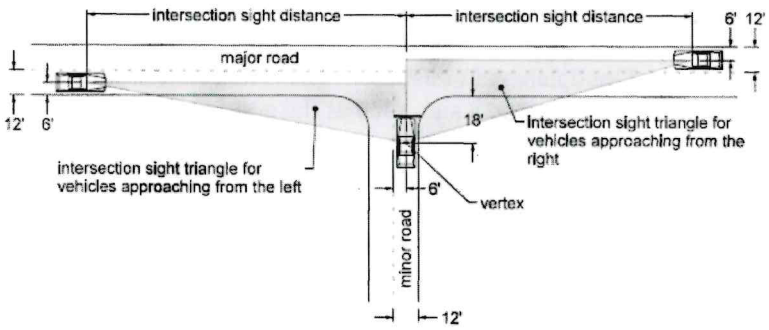

SIGN — See Part 7.

SINGLE AND SEPARATE OWNERSHIP — The ownership of a lot by one or more persons, partnerships or corporations, which ownership is separate and distinct from that of any abutting or adjoining lot.

SITE ALTERATIONS — This term shall include one or more of the following activities:

1. Filling of lakes, ponds, marshes or floodplains or alteration of watercourses.
2. Clearing and regrading of more than 1/2 acre, other than selective thinning of existing vegetation or trees.

SITE PLAN — A drawing (to scale) showing uses and structures proposed for a parcel of land as required by the regulations within this chapter, as amended.

SLOPE — The vertical change of an area of land divided by the horizontal change, measured in percent.

SOLAR ENERGY — Radiant energy (direct, diffuse, and reflected) received from the sun.

SOLAR ENERGY SYSTEM — Any solar collector or other solar energy device, or any structural design feature, mounted on a building or on the ground, and whose primary purpose is to provide for the collection, storage, and distribution of solar energy for space heating or cooling, for water heating or for electricity.

SOLAR ENERGY SYSTEM, SMALL — An area of land or other area used for a solar collection system used to capture solar energy, convert it to electrical energy or thermal power and supply electrical or thermal power primarily for on-site use. A small solar energy system consists of one or more freestanding ground, or roof mounted solar arrays or modules, or solar related equipment and is intended to primarily reduce on-site consumption of utility power or fuels.

SOLAR PHOTOVOLTAIC (PV) SYSTEM — A system, structure, or device accessory to a principal use which is used to collect, store, and distribute energy derived from the sun for the purpose of heating or cooling the interior spaces of buildings or for heating domestic hot water. Small solar energy systems may include, but are not limited to, solar collectors, solar reflectors, heat storage tanks, south facing double glazed window walls, attached south facing greenhouses utilizing double glazing, and architectural overhangs for blocking sunlight on south facing windows.

SOLAR, UTILITY-SCALE — An area of land or other area used for a solar collection system principally used to capture solar energy, convert it to electrical energy or thermal power and supply electrical or thermal power primarily for off-site use. Commercial solar energy systems consist of one or more freestanding ground- or roof-mounted, solar collector devices, solar-related equipment and other accessory structures and buildings including light reflectors, concentrators, and heat exchangers; substations; electrical infrastructure; transmission lines and other appurtenant structures.

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SOLID WASTE DISPOSAL FACILITY — Land or structures where solid waste is received and temporarily stored, at a location other than the site where it was generated, and which facilitates the bulk transfer of accumulated solid waste to a facility for further processing or disposal. Such facility may or may not involve the separation of recyclables from solid waste. Such facility shall not include a junkyard, leaf composting, clean fill or septage or sludge application.

SPECIAL EXCEPTION — A use permitted in a particular zoning district by the Zoning Hearing Board pursuant to the provisions associated with special exception review and approval as contained and referenced as part of the Pennsylvania Municipalities Planning Code, 53 P.S. § 10601 et seq.

SPECIAL FLOOD HAZARD AREA (SFHA) — An area in the floodplain subject to a 1% or greater chance of flooding in any given year. It is shown on the FIRM as Zone A, AO, A1-A30, AE, A99, or AH.

START OF CONSTRUCTION — Includes substantial improvement and other proposed new development and means the date the permit was issued, provided the actual start of construction, repair, reconstruction, rehabilitation, addition, placement, or other improvement was within 180 days after the date of the permit and shall be completed within 12 months after the date of issuance of the permit unless a time extension is granted, in writing, by the Floodplain Administrator. The actual start means either the first placement of permanent construction of a structure on a site, such as the pouring of slab or footings, the installation of piles, the construction of columns, or any work beyond the stage of excavation; or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading, and filling; nor does it include the installation of streets and walkways; nor does it include excavation for a basement, footings, piers, or foundations or the erection of temporary folios, nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main structure. For a substantial improvement, the actual start of construction means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of the building.

STATE — The Commonwealth of Pennsylvania and its agencies.

STORY — A level of a building routinely accessible to humans having an average vertical clearance from floor to ceiling of 6.5 feet or greater shall be considered a full story, except as follows: If the floor of a basement level is more than six feet below the finished grade level for more than 50% of the total building perimeter, it shall not be regulated as a story. Any level of a building having an average vertical clearance from floor to ceiling of less than 6.5 feet shall be considered a "half-story."

STREAM — A watercourse, unless otherwise defined by the Township Stormwater Management Ordinance.

STREET — A public or private thoroughfare which provides the principal means of vehicle access to three or more lots or that is an expressway, but not including an alley or a driveway. The terms "street," "highway" and "road" have the same meaning and are used interchangeably.

STRUCTURE — Any man-made object having a stationary location on, below or in land or water, whether or not affixed to the land. Any structure shall be subject to the principal or accessory setbacks of this chapter, as applicable, unless specifically exempted or unless a specific setback is established for that particular type of structure by this chapter. For the purposes of this chapter, utility poles, stormwater basins, wells, and septic systems shall not be considered structures, and shall not be subject to minimum zoning setback requirements unless stated otherwise.

SUBDIVISION — The definition in the Subdivision and Land Development Ordinance, as amended, shall apply.

SUBDIVISION ORDINANCE or SUBDIVISION AND LAND DEVELOPMENT — See Upper Nazareth Township Ordinance 174, as amended.[65]

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SUBSTANTIAL DAMAGE — Damage from any cause sustained by a structure whereby the cost of restoring the structure to its before-damaged condition would equal or exceed 50% or more of the market value of the structure before the damage occurred.

SUBSTANTIAL IMPROVEMENT — Any reconstruction, rehabilitation, addition, or other improvement of a structure, of which the cost equals or exceeds 50% of the market value of the structure before the "start of construction" of the improvement. This term includes structures which have incurred "substantial damage" or "repetitive loss" regardless of the actual repair work performed. The term does not, however, include any project for improvement of a structure to correct existing violations of state or local health, sanitary, or safety code specifications which have been identified by the local code enforcement official and which are the minimum necessary to assure safe living conditions. Historic structures undergoing repair or rehabilitation that would constitute a substantial improvement as defined in this section must comply with all section requirements that do not preclude the structure's continued designation as a historic structure. Documentation that a specific section requirement will cause removal of the structure from the National Register of Historic Places or the State Inventory of Historic places must be obtained from the Secretary of the Interior or the State Historic Preservation Officer. Any exemption from section requirements will be the minimum necessary to preserve the historic character and design.

SWIMMING POOL, ACCESSORY — A man-made area, above or below ground, with walls of man-made materials intended to enclose water at least 24 inches deep and that is intended to serve the residents and occasional guests of only one dwelling unit.

SYSTEM — Any telecommunications system or integral part thereof of the telecommunications structure.

TAVERN — A business establishment which provides on-site alcoholic beverage sales for drinking on the premises, where food is served, where live entertainment (not including adult entertainment) may also be provided, and where minors are not admitted unless accompanied by a parent or guardian.

TELECOMMUNICATIONS — The transmission, between or among points specified by the user, of information of the user's choosing, without change in the form or content of the information as sent and received.

TIMBER HARVESTING — The process of cutting down trees and removing logs from the forest for the primary purpose of sale or commercial processing into wood products.

TOWER-BASED COMMERCIAL COMMUNICATIONS FACILITY (TOWER-BASED CCF) — Any structure that is used for the purpose of supporting one or more antennas including, but not limited to, self-supporting lattice towers, guy goers and monopoles, utility poles and light poles and hub facilities for distributed antenna systems.

TOWNSHIP — Upper Nazareth Township, Northampton County, Pennsylvania.

TOWNSHIP CODE or CODE — The ordinances, as amended, of the Township of Upper Nazareth, Northampton County, Pennsylvania.

TOWNSHIP ENGINEER — The person engaged by the Township to perform engineering services on behalf of the Township.

TOWNSHIP PROPERTY — All real property now or hereafter owned by the Township, whether in fee ownership or other interest.

TOWNSHIP WORK — All construction work performed by the Township or any of its departments, either with its own personnel or under contract, including repair, alteration, replacement, or maintenance of facilities owned, operated, maintained, or controlled by the Township or for which the Township is

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65. Editor's Note: See Ch. 22A, Subdivision and Land Development.

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responsible.

TRADESPERSON — A person involved with building trades, such as, but not limited to, plumbing, electrical work, building construction, building remodeling, and roofing.

TRANSIENT COMMERCIAL ENTERPRISE VEHICLE — Any vehicle which is:

1. Built on a single chassis or part of an articulated trailer.
2. Designed to be self-propelled or permanently towable by a truck.
3. Designed for use to conduct mobile, semi-permanent or permanent enterprise such as, but not limited to, the sale of food, goods, or services.

TREATMENT CENTER — A use (other than a prison or a hospital) providing housing for three or more unrelated persons who need specialized housing, treatment and/or counseling because of:

1. Criminal rehabilitation, such as a criminal halfway house.
2. Current addiction to a controlled substance that was used in an illegal manner or alcohol.
3. A type of mental illness or other behavior that causes a person to be a threat to the physical safety of other.

In addition, a group home that exceeds the number of residents allowed by this chapter, as amended, within a group home shall be regulated as a treatment center, unless approved otherwise.

TRUCK DEPOT/TERMINAL — A use involving either a single or a large variety of materials, including materials owned by numerous corporations, being transported to a site to be unloaded primarily from and reloaded onto tractor-trailer trucks.

1. A use that primarily involves loading materials from tractor-trailers onto smaller trucks or smaller trucks onto tractor-trailers shall be considered a "distribution" use.
2. A truck depot/terminal may include an auto/truck/body collision/repair center as an incidental accessory use.
3. Storage or parking of two or more empty trailers on a single lot that are not associated with any type of specific warehouse or distribution structure on that lot shall also be defined as operating a ducking terminal.

UNDERGROUND FACILITIES — Utility and telecommunications facilities located under the surface of the ground, excluding the underground foundations or supports for tower-based facilities.

UNIFORM CONSTRUCTION CODE (UCC) — The statewide building code adopted by the Pennsylvania General Assembly in 1999, applicable to new construction in all municipalities whether administered by the municipality, a third party or the Department of Labor and Industry. Applicable to residential and commercial buildings, the Code adopted the International Residential Code (IRC) and the International Building Code (IBC), by reference, as the construction standard applicable with the state floodplain construction. For coordination purposes, references to the above are made specifically to various sections of the IRC and the IBC.

UNREGISTERED VEHICLE — Any motor vehicle or trailer that does not possess a valid registration and does not have a valid state safety inspection. This term shall not apply to vehicles (such as licensed antique cars) for which state regulations do not require an inspection sticker. The term also shall not include motor vehicles displaying a license and inspection stickers that have each expired less than 90 days previously.

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URBAN AGRICULTURE — The accessory use of a developed lot for the cultivation of food and/or horticultural crops not for sale on-site, which may also include composting, aquaponics, aquaculture and/or hydroponics, and the raising of livestock or poultry.

USE — The purpose, activity, occupation, business or operation for which land or a structure is designed, arranged, intended, occupied, or maintained. Uses specifically include, but are not limited to, the following: activity within a structure, activity outside of a structure, any structure, recreational vehicle storage or parking of commercial vehicles on a lot.

VALUE-ADDED FARM PRODUCT — A product processed by a producer from a farm product, including, but not limited to, baked goods, jams and jellies, canned vegetables, dried fruit, syrups, salsas, salad dressings, flours, coffee, and other beverages, smoked or canned meats or fish, sausages, or prepared foods.

VARIANCE — The granting of specific permission by the Zoning Hearing Board to use, construct, expand or alter land or structures in such a way that compliance is not required with a specific requirement of this chapter, as amended. Any variance shall only be granted within the limitations of the Pennsylvania Municipalities Planning Code, 53 P.S. § 10101 et seq.

WALL — See "fence."

WAREHOUSE — An enclosed structure used for the storage of merchandise or commodities for an extended period of time, typically over 30 days and which does not include cross-docking operations or retail sales. Office space associated with each warehouse unit may be included.

1. WAREHOUSE, HIGH-CUBE (HCW) TRANSLOAD — A transload facility that has the primary function of consolidation and distribution of pallet loads (or larger) for manufacturers, wholesalers, or retailers. A transload facility typically has little storage duration, high throughput, and its operations are high efficiency.

2. WAREHOUSE, HIGH-CUBE (HCW) SHORT-TERM — A short-term HCW is a distribution facility often with custom features built into the structure for the movement of large volumes of freight with only short-term storage of products. Some limited assembly and repackaging may occur within the facility.

3. WAREHOUSE, HIGH-CUBE (HCW) COLD STORAGE — A cold store warehouse with substantial temperature-controlled environments for frozen food and other perishable products.

4. WAREHOUSE, HIGH-CUBE (HCW) PARCEL HUB — Typically serves as a regional and local freight-forwarder facility for time sensitive shipments via airfreight and ground carriers. A site can also include truck maintenance, wash, or fueling facilities. Some limited assembly and repackaging may occur within the facility.

5. WAREHOUSE, HIGH-CUBE (HCW) FULFILLMENT CENTER (SORT and NON-SORT) — A sort facility is a fulfillment center that ships out smaller items, requiring extensive sorting, typically by manual means. A non-sort facility is a fulfillment center that ships large box items that are processed primarily with automation rather than through manual means.

6. LOGISTICS CENTER, TYPE 1 — An enclosed facility used for the storage of merchandise or commodities for a short period of time, not to exceed 30 days, with additional operations such as cross-docking, order fulfillment, returned goods processing, packaging, repackaging, and labeling This use may include the use of automated storage and retrieval systems.

7. LOGISTICS CENTER, TYPE 2 — An enclosed facility used for the storage of merchandise or

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commodities for a short period of time, not to exceed 30 days, with additional operations such as order fulfillment, returned goods processing, packaging, repackaging, and labeling, but which does not include cross-docking or operations commonly referred to as "just-in-time" delivery.

WATER SERVICE, CENTRAL — Water supply service to a building by a Township-approved water supply system that serves 20 or more lots, and which includes an appropriate mechanism to ensure long-term professional operation and maintenance of the system.

WATER SERVICE, ON-LOT — Water supply service to a building that does not meet the definition of central water service, such as, but not limited to, an individual on-lot well.

WATER SERVICE, PUBLIC — Central water service by a system owned and/or operated by a municipality or a municipal authority, or by a Public Utility Commission regulated utility company that serves more than 500 lots or dwellings.

WATERCOURSE — Any channel of conveyance of surface water having defined bed and banks, whether natural or artificial, with perennial or intermittent flow, unless otherwise defined by the Township Stormwater Management Ordinance.[66]

WATERSHED — All the land from which water drains into a particular watercourse.

WETLANDS — An area of land and/or water meeting one or more definitions of a "wetland" under federal and/or Pennsylvania law and/or regulations.

WHOLESALE SALES — An establishment or place of business primarily engaged in selling and/or distributing merchandise to retailers; to industrial, commercial, institutional, or professional business users, or to other wholesalers; or acting as agents or brokers and buying merchandise for, or selling merchandise to, such individuals or companies. This is not considered a general commercial use.

WILDLIFE SANCTUARY — A noncommercial preservation of land for providing wildlife habitats, forests or scenic natural features that involves no buildings other than a nature education and/or study center and customary maintenance buildings.

WIND ENERGY SYSTEM — A facility where one or more windmills are located and are used for the generation of electricity which is used on-site for commercial purposes or which is sold on the open market. A windmill accessory to a principal structure which is sized and intended to be used to generate electricity primarily for the principal structure to which it is accessory shall not be considered a commercial wind farm.

WIND ENERGY SYSTEM, SMALL — An aggregation of parts including the base, tower, generator, rotor, blades, etc., in such configuration as necessary to convert the power of wind into mechanical or electrical energy and used as an accessory to a residential use.

WIRELESS SUPPORT STRUCTURE — A freestanding structure, such as a tower-based CCF or any other support structure that could support the placement or installation of a commercial communications facility.

WOODLAND — A plant community where tree species are dominant or co- dominant and the branches of the trees form a complete or nearly complete aerial canopy. Any area, grove or stand of mature or largely mature trees (larger than six inches DBH) covering an area of 1/4 acre or more or consisting of 10 individual trees larger than six inches DBH, shall be considered a woodland. The extent of any woodland shall be measured from the outermost drip line of all the trees in the community.

WORKING LANDS — Land area characterized by modification through agricultural and/or managed

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66. Editor's Note: See Ch. 23, Stormwater Management.

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woodland activities.

YARD — An open area unobstructed from the ground to the sky that is not permitted to be covered by buildings and principal structures and that is on the same lot as the subject structure or use. A minimum yard is also known as a minimum setback. Each required yard shall be measured inward from the abutting "lot line," existing street right-of-way or setback required from a street, whichever is most restrictive. Regulations of each district prohibit principal and accessory structures within the specified minimum yards.

YARD, FRONT or FRONT SETBACK — A "yard" measured a distance measured from and running parallel to the front lot line, street right-of-way line or setback required, whichever is most restrictive. Such yard shall extend the full width of the lot from side lot line to side lot line. The front yard shall be on a side that faces towards a public street, whenever one public street abuts the lot. If a lot abuts two streets, the front yard shall be whichever side is the predominant front yard for neighboring properties. If no side is predominant, then the applicant may choose which is the front yard.

YARD, REAR or REAR SETBACK — A "yard" extending the full width of the lot and which is measured from along the rear line and which establishes the minimum setback for the subject structure, and which stretches between the side lot lines parallel to the rear lot line.

YARD, SIDE or SIDE SETBACK — A "yard" which establishes the minimum setback for the closest portion of the subject structure, and which is measured from along the entire length of the side lot line, and which extends from the front setback line to the rear lot line.

YIELD PLAN — A plan required to be submitted to the Township by the applicant under certain provisions of this chapter, as amended. The yield plan shall accurately show the maximum number of dwelling units that would be possible under current Township ordinances, as amended, if certain optional development provisions would not be used, and instead the provisions for conventional development under the current zoning district would be used. A yield plan shall be completed to an accurate scale, including accurately showing the existing feature map information. The yield plan shall show potential lots, streets, and retention/detention pond locations.

ZONING MAP — The Official Zoning Map of Upper Nazareth Township, Northampton County, Pennsylvania.

ZONING OFFICER — The person charged with the duty of enforcing the provisions of this chapter, as amended, and any officially designated assistant.

ZONING ORDINANCE — The Upper Nazareth Township Zoning Ordinance, as amended [Ord. No. 199].

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Part 3
DISTRICTS

§ 27-301. Designation of Base Zoning Districts and Purposes. [Ord. No. 199, 1/15/2025]

1. For the purpose of this chapter,, as amended, the Township is hereby divided into the following base zoning districts, with the following abbreviations:

   A. TD1 Field and Wood.

   B. TD2 Estate Residential.

   C. TD4 Village Residential.

   D. TD5 Town Residential.

   E. TD6 Village Mixed Use.

   F. TD9 Contracting, Craftsman and Artisan.

   G. TD10 Assembly and Distribution.

   H. TD11 Manufacturing, Extraction and Processing.

2. For the purposes of this chapter, as amended, the zoning districts named in Subsection 1, shall be shown on the "Official Zoning Map."[67]

3. Overlay Districts. The floodplain area, as defined by Part 5, shall serve as an overlay district to the applicable underlying districts.

4. Purposes of Each District. In addition to serving the overall purposes and objectives of this chapter, as amended, and the Comprehensive Plan, each zoning district is intended to serve the following purposes:

   A. TD1 Field and Wood. To preserve agricultural lands and woodlands, to encourage conservation of open space and rural landscapes, and to allow for limited low-density residential uses and limited business uses compatible with working lands.

   B. TD2 Estate Residential. To accommodate low-density single-family detached dwellings on larger lots which may not be serviced by public sewer and water, and in conjunction with rural agriculture activities.

   C. TD4 Village Residential. To accommodate medium-density neighborhoods of single-family attached and detached dwellings typically along local streets with a more, walkable grid-like pattern.

   D. TD5 Town Residential. To provide for neighborhoods that are medium to high density and accommodate a mix of single and multifamily dwellings, typically along local streets with a more walkable grid-like pattern.

   E. TD6 Village Mixed Use. To accommodate medium-density clusters of low-impact, neighborhood-oriented residential and nonresidential land uses in rural communities, ranging

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67. Editor's Note: Said map is an attachment to this chapter.

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from single-family dwellings to professional offices to small institutional buildings.

F. TD9 Contracting, Craftsman and Artisan. To accommodate low-intensity uses that involve producing, repairing and/or selling products involving primarily handmade workmanship, which may be conducted on the premises or within a residential dwelling and which does not detrimentally impact the residential character of surrounding properties.

G. TD10 Assembly and Distribution. To provide for locations accommodating less intense industrial land uses such as light manufacturing, warehousing and distribution, research/testing facilities, and supporting offices.

H. TD11 Manufacturing, Extraction and Processing. To provide locations for high intensity production, fabrication, and similar industrial uses and activities and to make appropriate provisions for the extraction and processing of mineral deposits from the earth that support the protection of health, safety, and welfare for the region's citizens.

§ 27-302. Application of District Regulations. [Ord. No. 199, 1/15/2025]

1. The regulations set by this chapter, as amended, shall apply uniformly to each class or kind of structure or land, except as provided for in this chapter, as amended.

2. No structure shall hereafter be erected, used, constructed, reconstructed, structurally altered or occupied and no land shall hereafter be used, developed or occupied unless it is in conformity with the regulations herein specified for the use and district in which it is located.

3. No yard or lot existing at the time of passage of this chapter, as amended, shall be reduced in dimension or area below the minimum requirements set forth herein. Yards or lots created after the effective date of this chapter shall meet at least the minimum requirements established by this chapter.

4. Boundary Change. Any territory which may hereafter become part of the Township through annexation or a boundary adjustment shall be classified as the TD2 Estate Residential district of the Township until or unless such territory is otherwise classified by Board of Supervisors.

§ 27-303. Zoning Map. [Ord. No. 199, 1/15/2025]

1. A map entitled "Upper Nazareth Township Zoning Map" accompanies this chapter, as amended, and is declared a part of this chapter. The Official Zoning Map, which should bear the adoption date of this chapter and the words "Official Zoning Map," shall be retained in the Township Building.

2. Map Changes. Changes to the boundaries and districts of the Official Zoning Map shall only be made in conformity with the amendment procedures specified in the Pennsylvania Municipalities Planning Code, 53 P.S. § 10101 et seq. All changes should be noted by date with a brief description of the nature of the change, either on the map or within an appendix to this chapter.

§ 27-304. District Boundaries. [Ord. No. 199, 1/15/2025]

1. The following rules shall apply where uncertainty exists as to boundaries of any district as shown on the Zoning Map:

   A. District boundary lines are intended to follow or be parallel to the center line of street rights-of-way, waterbodies and railroads, and lot lines as they existed on a recorded deed or plan of record in the County Recorder of Deeds' office at the time of the adoption of this chapter, unless such district boundary lines are fixed by dimensions as shown on the Official Zoning Map.

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B. Where a district boundary is not fixed by dimensions and where it approximately follows lot lines, such boundary shall be construed to follow such lot lines unless specifically shown otherwise.

C. The location of a district boundary on un-subdivided land or where a district boundary divides a lot shall be determined by the use of the scale appearing on the Zoning Map unless indicated otherwise by dimensions.

D. Where a municipal boundary divides a lot, the minimum lot area shall be regulated by the Township in which the principal use(s) are located, unless otherwise provided by applicable case law. The land area within each municipality shall be regulated by the use regulations and other applicable regulations of each municipality.

§ 27-305. Setbacks Across Municipal Boundaries. [Ord. No. 199, 1/15/2025]

1. Intent. To continue the objective of compatible land uses across municipal boundaries.

2. This chapter, as amended, requires additional setbacks and the provision of buffer yards when certain uses would abut an existing dwelling or a residential zoning district. These same additional setback and buffer yard provisions shall be provided by uses proposed within the Township regardless of whether such abutting existing dwelling or principally residential zoning district is located in an abutting municipality and/or in the Township.

§ 27-306. Zoning District Land Uses and Dimensions. [Ord. No. 199, 1/15/2025; Ord. No. 202, 6/18/2025]

1. General.

A. Zoning District Quick Views identify the principal and accessory uses permissible within each of the Township's zoning districts.

B. Unless otherwise provided by state or federal law or specifically stated in this chapter, as amended, (including § 27-106, Subsection 2), any land or structure shall only be used or occupied for a use specifically listed in this chapter, as amended, as permitted in the zoning district where the land or structure is located. Such uses shall only be permitted if the use complies with all other requirements of this chapter.

C. In accordance with Article VIII-A of the Pennsylvania Municipalities Planning Code (MPC), the Township shares some land uses with Lower Nazareth Township and Chapman Borough. See the Zoning Ordinances of Lower Nazareth Township and/or Chapman Borough for any land uses and corresponding definitions not permissible in any zoning district of Upper Nazareth Township. See also the definition for "Any Residential Land Uses Not Assigned Otherwise."

D. For uses permitted as a conditional use or special exception, see additional requirements in Part 4.

E. For temporary uses, see § 27-104, Subsection 7.

F. When an applicant uses the increased density development option, the lot sizes may be revised.

2. Permitted Accessory Uses in All Districts. An accessory use of a dwelling is only permitted if such use is customarily incidental to the residential use and is specifically permitted by this chapter. The following accessory uses are permitted by right as accessory uses to a lawful principal use in all

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districts, within the requirements of this chapter:

A. Standard antennas, including antennas used by contractors to communicate with their own vehicles.

B. Fence or wall.

C. Garage, household.

D. Garage sale.

E. Pets, keeping of.

F. Parking or loading, off-street, only to serve a use that is permitted in that district.

G. Recreational facilities, limited to use by residents of a development or students at a primary or secondary school or center for the care and treatment of youth, and their occasional invited guests.

H. Residential accessory structure.

I. Signs, as permitted by Part 7.

J. Swimming pool, accessory.

K. Such other accessory use or structure that the applicant proves to the satisfaction of the Zoning Officer is clearly customary and incidental to a permitted by right, special exception or conditional principal use.

3. Permitted Accessory Uses to Business and Institutional Uses. The following are permitted by right accessory uses to a lawful commercial, industrial or institutional principal use, provided that all requirements of this chapter, as amended, are met:

A. Storage of fuels for on-site use or to fuel company vehicles.

B. The following accessory uses, provided that the use is clearly limited to employees, patients, residents and families of employees of the use and their occasional invited guests:

(1) Internal cafeteria without drive-through service.

(2) Accessory child care center.

(3) Recreational facilities.

C. Bus shelters.

D. Automatic transaction machine.

E. Storage sheds.

F. Charitable donation collection bins located in the following districts: TD1, TD6, TD9, TD10, and TD11.

4. Commercial Uses in Residential Developments of 200 or More Dwelling Units.

A. If a new residential subdivision or land development is submitted to the Township that will

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include 200 or more dwelling units, then as a conditional use, certain commercial uses and the parking areas that serve them shall be allowed on a maximum of 5% of the land area of that subdivision or land development. This provision may apply in any district where such dwellings would be allowed. Such commercial uses shall not be occupied until a minimum of 150 of the dwelling units have been occupied.

(1) Such commercial uses shall be limited to retail sales, personal services, offices and business services. The commercial uses shall be clustered in one portion of the tract. Adult uses and drive-through uses shall be prohibited.

(2) As part of the conditional use approval, the applicant shall prove to the satisfaction of the Board of Supervisors that the commercial uses will be located and designed to minimize conflicts with existing and planned dwellings and to provide for proper traffic access onto public streets.

5. Condominiums. Uses may be developed in condominium ownership without each dwelling required to be on its fee simple lot; provided:

A. The applicant complies with the State Uniform Condominium Act, 68 Pa.C.S.A. § 3101 et seq., and/or Planned Communities Act, 68 Pa.C.S.A. § 5101 et seq., as applicable.

B. The applicant proves to the Township that the site layout of the dwellings would have been able to meet all of the dimensional requirements if a condominium arrangement had not been used. For example, for single-family detached dwellings, the applicant is required to show that each dwelling could have been placed as proposed and still meet the minimum lot area, minimum yards and all other requirements.

6. Quickviews. The following Quick Views are associated with base zoning district requirements.

TD-1 FIELD AND WOOD
Purpose Statement: To preserve agricultural lands and woodlands, to encourage conservation of open space and rural landscapes, and to allow for limited low-density residential uses and limited business uses compatible with working lands.

Lot Dimensional Standards				
Dimensional Criteria	**Rasing of Livestock or Poultry (See also § 27-402, which may establish stricter requirements for certain types of uses)**	**Single-Family Detached Dwelling**	**Increased Density Development Option (§ 27-311 shall also apply)**	**Other Uses as Permitted**
Max. Structure Coverage	10%	10%	15%	10%
Max. Impervious Coverage	20%	20%	20%	20%
Minimum Lot Area	5 acres	5 acres	1 acre	5 acres

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Lot Dimensional Standards				
Dimensional Criteria	**Rasing of Livestock or Poultry (See also § 27-402, which may establish stricter requirements for certain types of uses)**	**Single-Family Detached Dwelling**	**Increased Density Development Option (§ 27-311 shall also apply)**	**Other Uses as Permitted**
Min. Lot Width at Min. Structure Setback Line (feet)	300	200	135	200
Max. Structure Height* (feet)	35	35	35	35
Min. Yards Front/ Side/Rear (feet)	150/100/150	50/20/60	40/15/45	100/50/100

* Or three stories, whichever is more restrictive. See exceptions for agricultural buildings in Part 8.

Permitted Uses	
Principal Uses	
Residential	
Dwelling, Single-Family Detached	P
Group Home	C
Nonresidential	
Agriculture Operation	P
Animal Feed Mill	P
Campground	P
Commercial Communications Tower	C
Commercial Crop Storage	P
Commercial Outdoor Recreation	C
Commercial Stable	P
Concentrated Animal Feeding Operation (CAFO)	SE
Concentrated Animal Operation (CAFO)	SE
Essential Services	P
Forestry	P
Kennel	P
Mineral Extraction	C

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Permitted Uses	
Municipal Use, Non-Utility	P
Public Recreation	P
School, Primary and Secondary	C
Wildlife Sanctuary	P
Accessory Uses	
Accessory Use Customarily Incidental to a Principal Use	A
Agriculture Supportive Industry/Service	A
Child Day Care	A
Home Occupation	A
Home-Based Business, Low Impact	A
Home-Based Business, No Impact	A
Keeping of Bees	A
Outdoor Storage, Domestic	A
Outdoor Storage, Vehicular	A
Solar Photovoltaic (PV) System	A
Swimming Pool, Accessory	A
Unit of Care	SE
Urban Agriculture	A

P = Use By Right
C = Conditional Use
SE = Use by Special Exception
A = Accessory Use

TD-2 ESTATE RESIDENTIAL

Purpose Statement:
To accommodate low-density single-family detached dwellings on larger lots which may not be serviced by public sewer and water, and in conjunction with rural agriculture activities.

Lot Dimensions Standards		
Dimensional Criteria	**Permitted Uses**	**Increased Density Development Option (§ 27-311 shall also apply)**
Max. Structure Coverage	10%	30%
Max. Impervious Coverage	20%	40%

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Lot Dimensions Standards		
Dimensional Criteria	**Permitted Uses**	**Increased Density Development Option (§ 27-311 shall also apply)**
Minimum Lot Area	1 acre	15,000 SF
Min. Lot Width at Min. Structure Setback Line (feet)	135	75
Max. Principal Structure Height* (feet)	35	35
Max. Accessory Structure Height (feet)	20	20
Min. Yards Front/Side/Rear (feet)	50/20/50	20/15/30

* Or three stories, whichever is more restrictive. See exceptions for agricultural buildings in Part 8.

Permitted Uses	
Principal Uses	
Residential	
Dwelling, Single-Family Detached	P
Group Home	C
Nonresidential	
Commercial Communications Tower	C
Essential Services	P
Forestry	P
Municipal Use, Non-Utility	P
Place of Worship	P
Public Recreation	P
School, Primary and Secondary	P
Accessory Uses	
Accessory Use Customarily Incidental to a Principal Use	A
Child Care Center (in a Place of Worship)	A
Child Day Care	A
Home Occupation	A
Home-Based Business, Low-Impact	A
Home-Based Business, No-Impact	A

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Permitted Uses	
Keeping of Bees	A
Outdoor Storage, Domestic	A
Outdoor Storage, Vehicular	A
Solar Photovoltaic (PV) System	A
Swimming Pool, Accessory	A
Unit of Care	SE

P = Use By Right
C = Conditional Use
SE = Use by Special Exception
A = Accessory Use

TD-4 VILLAGE RESIDENTIAL

Purpose Statement:
To accommodate medium-density neighborhoods of single-family attached and detached dwellings typically along local streets with a more, walkable grid-like pattern.

Lot Dimensions Standards		
Dimensional Criteria	**Permitted Uses**	**Increased Density Development Option (§ 27-311 shall also apply)**
Max. Structure Coverage	20%	40%
Max. Impervious Coverage	40%	50%
Minimum Lot Area	12,000 SF	9,000 SF
Min. Lot Width at Min. Structure Setback Line (feet)	90	70
Max. Principal Structure Height* (feet)	35	35
Max. Accessory Structure Height (feet)	20	20
Min. Yards Front/Side/Rear (feet)	25/15/40	15/10/25

* Or three stories, whichever is more restrictive. See exceptions for agricultural buildings in Part 8.

Permitted Uses	
Principal Uses	
Residential	
Age-Restricted Residential Development	SE

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Permitted Uses	
Any Residential Land Use Not Assigned Otherwise	SE
Apartment, Conversion	C
Bed and Breakfast	SE
Dwelling, Single-Family Attached	P
Dwelling, Single-Family Detached	P
Group Home	P
Mobilehome Park	C
Nonresidential	
Child Care Center	C
Essential Services	P
Forestry	P
Membership Club	C
Municipal Use, Non-Utility	P
Nursing Home	SE
Place of Assembly	C
Place of Worship	P
Public Recreation	P
School, Primary and Secondary	P
Accessory Uses	
Accessory Use Customarily Incidental to a Principal Use	A
Child Care Center (in a Place of Worship)	A
Child Day Care	A
Home Occupation	A
Home-Based Business, Low Impact	A
Home-Based Business, No Impact	A
Outdoor Storage, Domestic	A
Solar Photovoltaic (PV) System	A
Swimming Pool, Accessory	A
Unit of Care	SE
Urban Agriculture	A

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P = Use By Right
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SE = Use by Special Exception
A = Accessory Use

TD-5 TOWN RESIDENTIAL

Purpose Statement:
To provide for neighborhoods that are medium to high density and accommodate a mix of single and multifamily dwellings, typically along local streets with a more walkable grid-like pattern.

Lot Dimensions Standards

Dimensional Criteria	Detached	Attached	Increased Density Development Option (§ 27-311 shall also apply)
Max. Structure Coverage	25%	40%	40%
Max. Impervious Coverage	40%	50%	50%
Minimum Lot Area	7,200 SF	2,600 SF	6,000 SF
Min. Lot Width at Min. Structure Setback Line (feet)	80	20	70
Max. Principal Structure Height* (feet)	35	35	35
Max. Accessory Structure Height (feet)	20	20	20
Min. Yards Front/Side/ Rear (feet)	25/10/30	25/10 end units/30	15/10/25

* Or three stories, whichever is more restrictive. See exceptions for agricultural buildings in Part 8.

Permitted Uses

Principal Uses	
Residential	
Dwelling, Single-Family Attached	P
Dwelling, Single-Family Detached	P
Dwelling, Townhouse	P
Personal Care Boarding Home	C
Nonresidential	

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Permitted Uses	
Animal Hospital, Large	SE
Animal Hospital, Small	SE
Auto Service/Repair Station	C
Auto/Truck/Body Collision Center	C
Child Care Center	C
Dormitory	SE
Essential Services	P
Forestry	P
Municipal Use, Non-Utility	P
Nursing Home	SE
Office, Medical or Dental	P
Office, Professional	P
Personal Services	P
Place of Assembly	C
Place of Worship	P
Public Recreation	P
School, Primary and Secondary	P
Accessory Uses	
Accessory Use Customarily Incidental to a Principal Use	A
Child Care Center (in a Place of Worship)	A
Child Day Care	A
Home-Based Business, Low Impact	A
Home-Based Business, No Impact	A
Outdoor Storage, Domestic	A
Solar Photovoltaic (PV) System	A
Unit of Care	SE
Urban Agriculture	A

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P = Use By Right
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A = Accessory Use

TD-6 VILLAGE MIXED USE

Purpose Statement:
To accommodate medium-density clusters of low-impact, neighborhood-oriented residential and nonresidential land uses in rural communities, ranging from single-family dwellings to professional offices to small institutional buildings.

Lot Dimensions Standards

Dimensional Criteria	All Nonresidential Land Uses*	Residential - Detached	Residential - Attached**	Increased Density Development Option (§ 27-311 shall also apply)**
Max. Structure Coverage	30%	25%	40%	40%
Max. Impervious Coverage	60%	40%	50%	50%
Minimum Lot Area	35,000 SF	7,200 SF	2,600 SF	6,000 SF
Min. Lot Width of Min. Structure Setback Line (feet)	130	80	20	70
Max. Principal Structure Height* (feet)	35	35	35	35
Max. Accessory Structure Height (feet)	20	20	20	20
Min. Yards Front/Side/ Rear (feet)	25/20/25	25/10/30	25/10 and units/30	15/10/25

* Or three stories, whichever is more restrictive. See exceptions for agricultural buildings in Part 8.
** Apartments shall be limited to a maximum of four dwelling units per lot and shall be limited to being in the same building as a principal commercial use that is on the street level.

Permitted Uses	
Principal Uses	
Residential	
Age-Restricted Residential Development	SE
Apartment, Conversion	C
Bed and Breakfast	SE
Dwelling, Multifamily (Apartments)**	P

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Permitted Uses	
Dwelling, Single-Family Attached	P
Dwelling, Single-Family Detached	P
Dwelling, Townhouse	P
Group Home	P
Personal Care Boarding Home	C
Nonresidential	
Adult Day Care	SE
Auto Service/Repair Station	C
Auto/Truck/Body Collision Center	C
Bakery	P
Betting Use	C
Beverage Distribution	SE
Car Wash	SE
Child Care Center	SE
Commercial Communications Tower	C
Commercial Indoor Recreation	P
Commercial Outdoor Recreation	C
Convenience Store	P
Convenience Store with Fuel/Energy Recharge	P
Craftsmen/Artisan Studio	P
Cultural/Community Center	C
Dormitory	SE
Essential Services	P
Financial Institution	P
Forestry	P
Grocery Store	P
Home Improvement/Building Supply, Small Scale	P
Membership Club	P
Municipal Use, Non-Utility	P
Nursing Home	C
Office, Medical or Dental	P
Office, Professional	P
Personal Services	P

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Permitted Uses	
Pharmacy	P
Place of Assembly	C
Place of Worship	P
Public Recreation	P
Restaurant, Cafe	P
Restaurant, Quick Serve	P
Restaurant, Sit-down	P
Retail, Small-Scale	P
School, Primary and Secondary	P
Accessory Uses	
Accessory Use Customarily Incidental to a Principal Use	A
Child Care Center (in a Place of Worship)	A
Child Day Care	A
Electric Vehicle Charging Station	A
Home Occupation	A
Home-Based Business, Low Impact	A
Home-Based Business, No Impact	A
Outdoor Display of Merchandise	A
Outdoor Storage, Domestic	A
Solar Photovoltaic (PV) System	A
Unit of Care	SE
Urban Agriculture	A

P = Use By Right
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TD-9 CONTRACTING, CRAFTSMAN AND ARTISAN

Purpose Statement:
To accommodate low-intensity uses that involve producing, repairing and/or selling products involving primarily handmade workmanship, which may be conducted on the premises or within a residential dwelling and which does not detrimentally impact the residential character of surrounding properties.

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Lot Dimensions Standards		
Dimensional Criteria	**All Nonresidential Land Uses***	**Residential - Detached**
Max. Structure Coverage	40%	25%
Max. Impervious Coverage	70%	40%
Minimum Lot Area	1 Acre	7,200 SF
Min. Lot Width at Min. Structure Setback Line (feet)	250	80
Max. Principal Structure Height* (feet)	50	35
Max. Accessory Structure Height* (feet)	50	20
Min. Yards Front/Side/Rear (feet)	50/25/25	25/10/30

*Or three stories, whichever is more restrictive. See exceptions for agricultural buildings in Part 8.
** All dimensional criteria for residential uses within the TD-9 Contracting, Craftsman and Artisan district shall be equivalent to the general dimensional criteria listed for the TD5 Town Residential district, unless otherwise specified as a specific land use criteria in Part 4 Additional Requirements for Specific Uses.

Permitted Uses	
Principal Uses	
Residential	
Apartment, Conversion	C
Dwelling, Multifamily (Apartments)	C
Personal Care Boarding Home	C
Nonresidential	
Adult Day Care	C
Animal Feed Mill	P
Animal Hospital, large	P
Animal Hospital, small	P
Auto, Boat, or Mobilehome Sales	P
Auto Service/Repair Station	P
Auto/Truck/Body Collision Center	P
Bakery	P
Beverage Distribution	SE
Car Wash	SE

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Permitted Uses	
Child Care Center	P
Commercial Communications Tower	C
Commercial Indoor Recreation	P
Contractor Office/Yard	P
Convenience Store	P
Convenience Store with Fuel/Energy Recharge	P
Craftsman/Artisan Studio	P
Cultural/Community Center	C
Dormitory	SE
Engineering/Testing Facility or Laboratory	C
Essential Services	P
Forestry	P
Grocery Store	P
Home Improvement/Building Supply, Small Scale	P
Kennel	P
Manufacturing, Light	P
Membership Club	P
Municipal Use, Non-Utility	P
Nursing Home	C
Office, Medical or Dental	P
Office, Professional	P
Personal Services	P
Place of Assembly	C
Place of Worship	P
Public Recreation	P
School, Primary and Secondary	P
School, Post-Secondary	P
Wholesale Sales	P
Accessory Uses	
Accessory Use Customarily Incidental to a Principal Use	A
Child Care Center (in a Place of Worship)	A
Outdoor Display of Merchandise	A

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Permitted Uses	
Solar Photovoltaic (PV) System	A

P = Use By Right
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A = Accessory Use

TD-10 ASSEMBLY AND DISTRIBUTION

Purpose Statement:
To provide for locations accommodating less intense industrial land uses such as light manufacturing, warehousing and distribution, research/testing facilities, and supporting offices.

Lot Dimensions Standards		
Dimensional Criteria	**All Nonresidential Land Uses***	**Residential - Detached**
Max. Structure Coverage	40%	25%
Max. Impervious Coverage	70%	40%
Minimum Lot Area	1 Acre	7,200 SF
Min. Lot Width of Min. Structure Setback Line (feet)	250	80
Max. Principal Structure Height* (feet)	50	35
Max. Accessory Structure Height* (feet)	50	20
Min. Yards Front/Side/Rear (feet)	50/25/25	25/10/30

* Or three stories, whichever is more restrictive. See exceptions for agricultural buildings in Part 8.
** All dimensional criteria for residential uses within the TD-10 Assembly and Distribution district shall be equivalent to the general dimensional criteria listed for the TD5 Town Residential district, unless otherwise specified as a specific land use criteria in Part 4 Additional Requirements for Specific Uses.

Permitted Uses	
Principal Uses	
Residential	
Personal Care Boarding Home	C
Nonresidential	
Animal Feed Mill	P
Animal Hospital, large	P
Animal Hospital, small	P

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Permitted Uses	
Bakery	P
Beverage Distribution	P
Bus Station or Taxi Terminal	C
Commercial Communications Tower	C
Commercial Indoor Recreation	P
Commercial Outdoor Recreation	C
Commercial Stable	P
Contractor Office/Yard	P
Convenience Store	P
Convenience Store with Fuel/Energy Recharge	P
Drive-in Theater	C
Engineering/Testing Facility or Laboratory	P
Essential Services	P
Forestry	P
Grocery Store	P
Home Improvement/Building Supply, Small Scale	P
Kennel	P
Manufacturing, Heavy	C
Manufacturing, Light	P
Medical Marijuana Grower or Processor Facility	SE
Municipal Use, Non-Utility	P
Nursing Home	P
Office, Professional	P
Personal Services	P
Place of Worship	P
Prison or similar correctional institution	C
Public Recreation	P
Sales and Rental of Industrial Equipment	P
School, Primary and Secondary	P
School, Post-Secondary	P
Solar, Utility-Scale	P
Warehouse	C
Wholesale Sales	P

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Permitted Uses	
Wind Energy System	P
Accessory Uses	
Accessory Use Customarily Incidental to a Principal Use	A
Child Care Center (in a Place of Worship)	A
Outdoor Display of Merchandise	A
Package Delivery Services	A
Solar Photovoltaic (PV) System	A
Wind Energy System, Small	A

P = Use By Right
C = Conditional Use
SE = Use by Special Exception
A = Accessory Use

TD-11 MANUFACTURING, EXTRACTION AND PROCESSING

Purpose Statement:
To provide locations for high-intensity production, fabrication, and similar industrial uses and activities and to make appropriate provisions for the extraction and processing of mineral deposits from the earth that support the protection of health, safety, and welfare for the region's citizens.

Lot Dimensions Standards	
Dimensional Criteria	**All Nonresidential Land Uses**
Max. Structure Coverage	40%
Max. Impervious Coverage	70%
Minimum Lot Area	1 Acre
Min. Lot Width at Min. Structure Setback Line (feet)	250
Max. Structure Height* (feet)	50
Min. Yards Front/Side/Rear (feet)	50/25/25

Permitted Uses	
Principal Uses	
Nonresidential	
Animal Feed Mill	P
Auto, Boat, or Mobilehome Sales	P
Auto Service/Repair Station	P

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Permitted Uses	
Auto/Truck/Body Collision Center	P
Beverage Distribution	P
Bus Station or Taxi Terminal	P
Car Wash	P
Cement Plant	P
Commercial Communications Tower	C
Commercial Crop Storage	P
Contractor Office/Yard	P
Convenience Store	P
Convenience Store with Fuel/Energy Recharge	P
Emergency Services	P
Engineering/Testing Facility or Laboratory	P
Essential Services	P
Forestry	P
Grocery Store	P
Home Improvement/Building Supply, Small Scale	P
Junkyard	SE
Kennel	P
Manufacturing, Heavy	P
Manufacturing, Light	P
Medical Marijuana Grower or Processor Facility	SE
Mineral Extraction	P
Municipal Use, Non-Utility	P
Prison or similar correctional institution	P
Public Recreation	P
Recycling Collection Center	P
Sales and Rental of Industrial Equipment	P
School, Primary and Secondary	P
Solar, Utility-Scale	P
Solid Waste Disposal Facility	C
Warehouse	C
Wholesale Sales	P
Wind Energy System	P

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Permitted Uses	
Accessory Uses	
Accessory Use Customarily Incidental to a Principal Use	A
Crematorium	A
Cement Plant	A
Outdoor Display of Merchandise	A

P = Use By Right
C = Conditional Use
SE = Use by Special Exception
A = Accessory Use

§ 27-307. Additional Dimensional Requirements. [Ord. No. 199, 1/15/2025]

1. The requirements within the Zoning Quick Views shall apply for the specified zoning district, unless a more restrictive requirement for a specific use is required by another section of this chapter. All measurements shall be in feet unless otherwise stated.

2. Accessory Structures and Uses.

   A. Accessory structures and uses shall meet the minimum yard setbacks provided for herein, unless otherwise provided for in this chapter, including this subsection.

   B. The minimum side and rear yard setback for a permitted detached structure that is accessory to a dwelling shall be 10 feet, except in the following cases:

      (1) The minimum rear setback shall be reduced to three feet for a residential accessory storage shed having a total floor area of less than 150 square feet.

         (a) A side yard setback is not required for a structure from a lot line along which two dwellings are attached (such as a lot line shared by twin dwellings). However, such structure shall still meet the minimum side yard on a lot line where the dwellings are not attached.

         (b) If any accessory building or pool is constructed adjacent to a street (such as a rear yard on a lot that is adjacent to a street), then the building or pool shall be separated from such street by a buffer yard required by Part 8.

   C. No accessory building and no swimming pool shall be allowed in the minimum front yard.

   D. See also standards for swimming pools and for residential accessory structures.

§ 27-308. Wetlands and Lakes. [Ord. No. 199, 1/15/2025]

1. Lot Area. Wetlands (as officially defined under federal and/or state regulations) shall not count towards more than 50% of the required minimum lot area of any lot. The Township may require an applicant to prove that a lot will contain sufficient contiguous buildable land area that is outside of wetlands. The land area within the average water level of a natural lake or pond shall not count

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towards the required minimum lot area of a lot. This subsection shall only apply to a lot within a subdivision or land development submitted for approval after the adoption of this chapter.

2. Wetland Studies. It shall be the responsibility of each applicant to determine whether land areas proposed for alteration meet the federal or state definition of a wetland prior to submittal of development plans to the Township. If the Zoning Officer has reason to believe that wetlands may be present on a site proposed for development or subdivision, the Zoning Officer may require that the applicant provide a wetland delineation study prepared by a qualified professional.

3. Wetland Setbacks. A minimum setback of 20 feet shall be required between any new principal building for which a building permit is issued after the effective date of this chapter, as amended, and any "wetland."

§ 27-309. Sewage and Water Services. [Ord. No. 199, 1/15/2025]

1. Central Water Service. If central water service will be provided by a system that is not "public water service," then the applicant shall prove to the satisfaction of the Township that:

   A. There will be an appropriate system in place to guarantee and properly fund the long-term operation and maintenance of the system by a qualified professional operator.

   B. Based upon review of the Township Engineer, that the system will include adequate supply, transmission capacity and pressure to serve the development.

2. Central Sewage Service. If central sewage service will be provided by a system that is not "public sewage service," then the applicant shall prove to the satisfaction of the Township that:

   A. There will be an appropriate system in place to guarantee and properly fund the long-term operation and maintenance of the system by a qualified professional operator.

   B. Based upon review of the Township Engineer that the system will include adequate treatment capacity and conveyance capacity to serve the development.

3. Connection to a Larger System. Any nonpublic central water or central sewage system developed after the adoption of this chapter, as amended, shall be engineered and constructed in such a manner as to allow its efficient interconnection in the future into a larger regional system. Such a system shall include appropriate utility easements and/or rights-of-way within property controlled by the developer extending to the borders of the development to allow future interconnections at logical points.

4. Expansion of Septic Use. If the Zoning Officer has reason to believe that a proposed increase in the number of dwelling units or expansion or change of a nonresidential use would result in increased flow to a septic system, then the application shall be referred to the Sewage Enforcement Officer. The Sewage Enforcement Officer shall require modification, expansion or replacement of the septic system if necessary to handle the proposed flow.

§ 27-310. Steep Slopes. [Ord. No. 199, 1/15/2025]

1. Purpose. The purpose of this Part is to provide for the reasonable use of steep slopes while ensuring development will not induce soil erosion, require excessive grading, increase slope instability, or create sewage disposal problems and shall be in conformance with the following objectives:

   A. Guard against property damage and personal injury, and minimize the potential for erosion,

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slope failure, stream siltation, increased runoff, flooding and contamination of surface waters caused by the adverse effects of site preparation and construction on steep slopes.

B. Conserve existing woodlands for air and water quality benefits.

C. Permit land uses by right that are compatible with protection of steep slope areas and encourage the use of steep slope areas for open space and conservation uses.

D. Require development to avoid steep slope areas wherever possible, and require all land use, clearing, grading, and construction to satisfy development standards.

E. Regulate expansion of land use or development that existed on steep slope areas prior to enactment of these requirements.

F. Protect adjoining properties from harmful consequences of development permitted under these requirements.

2. Identification and Establishment of Steep Slope Areas.

A. Naturally occurring steep slopes are defined as areas having naturally occurring slopes of 15% or greater as delineated on the Natural Features Map of Upper Nazareth Township. Man-made steep slopes shall be those graded to a slope of 15% or greater following the adoption date of this chapter.

B. The boundaries shown on the Map may be supplemented or modified by examination of one or more of the following sources by the Township whenever a subdivision or land development plan is submitted for review:

(1) Soil Survey of Lehigh/Northampton Counties, Pennsylvania, USDA Natural Resources Conservation Service.

(2) Contour maps prepared from aerial photography.

(3) On-site survey prepared by a registered professional engineer or surveyor.

C. Steep slopes shall be further divided into the following two categories:

(1) Slopes of 15% but Less Than 20%. Slopes of 15% or greater slope (e.g., sloping 15 feet or more vertical per 100 feet horizontal) when there are five adjacent contour intervals of two feet each such that, in aggregate, they delineate a slope of at least 15%.

(2) Slopes of 20% or More. Slopes of 20% or greater slope (e.g., sloping 20 feet or more vertical per 100 feet horizontal) when there are five adjacent contour intervals of two feet each such that, in aggregate, they delineate a slope of at least 20%.

D. The Township Engineer shall decide whether or not the steep slope areas have been shown with sufficient accuracy on the applicant's plans. Based on the Township Engineer's advice, the Township may require applicants to revise the boundaries shown on the plans.

E. The burden of proving the correct boundary shall be on the applicant, supported by engineering and/or surveying data or mapping, testimony of a soil scientist, or other acceptable evidence.

3. General Provisions.

A. For any lot or portion thereof lying within a steep slope area, the regulations of this section shall

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take precedence over the regulations of the underlying district.

B. These regulations apply to all lots where the proposed earth disturbing activity within steep slope areas is greater than 1,000 square feet.

C. All uses, activities and development occurring within any steep slope area shall be undertaken only in strict compliance with the provisions of this Part, with all federal and state laws, and with all other applicable Township codes and ordinances.

D. No building lot shall be created unless it contains at least one acre of area with slopes less than 25%. If it is infeasible to provide this area in accordance with the setbacks required by the underlying district, the lot area shall be increased as necessary to provide a minimum area equal to one acre of area with slopes less than 25%.

E. Finished slopes of all cuts and fills shall not exceed 33%, unless stabilized by retaining walls or cribbing.

F. The maximum height of a retaining wall shall be in accordance with current Building Code standards. All retaining walls require a certification by a professional engineer that the wall was constructed in accordance with approved plans and applicable building codes.

G. Any disturbance of steep slopes shall be completed within one construction season, and disturbed areas shall not be left bare and exposed during the winter and spring thaw periods. Permanent vegetative cover shall be planted within three days after completion of grading.

H. No trees with a diameter at breast height (DBH) of six inches or more shall be removed from steep slope areas unless in accordance with the Township Subdivision and Land Development Ordinance.

I. The alignment of roads and driveways shall follow the natural topography and comply with design standards set forth in the Township Subdivision and Land Development Ordinance.

J. The degree of steep slope protection sought by the provisions of this Part is considered reasonable for regulatory purposes. This Part does not imply that lands outside the steep slope areas or permitted uses within the zoning district will be free from erosion or slope instability. This Part shall not create liability on the part of the Township or any officer or employee thereof for any damages that result from reliance on this Part or any administrative decision lawfully made hereunder.

4. Permitted Uses and Development on Slopes of 15% but Less Than 20%.

A. Open space and conservation uses are permitted by right on steep slopes, provided that they shall not include any structures, roads, driveways, parking areas, construction, or other development, or grading, or clearing of vegetation.

(1) Wildlife sanctuary, woodland preserve, arboretum, and passive park and recreation areas.

(2) Pasture and grazing land in accordance with recognized natural resource and soil conservation practices.

(3) Outdoor plant nursery or orchard in accordance with recognized natural resource and soil conservation practices.

(4) Cultivation and harvesting of crops in accordance with recognized natural resource and

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soil conservation practices.

(5) Front, side, or rear yards, and required lot area for any underlying zoning district, subject to the requirements of Subsection 3, General Provisions, herein, and provided such yards shall not be used for any use prohibited under Subsection 5, herein.

(6) Nonstructural accessory uses necessary to the operation and maintenance of the above permitted uses.

5. Prohibited Uses and Development on Slopes of 15% but Less Than 20%.

A. The following uses are specifically prohibited on slopes of 15% but less than 20%:

(1) Removal of topsoil except when related to an approved conditional use.

(2) Solid waste disposal, recycling uses, junkyards, or other outdoor storage uses.

6. Development of Slopes Less Than 20%.

A. The following activities may be permitted by right, with review by the Zoning Officer and Township Engineer, provided that they are in compliance with the provisions of the underlying district and are not prohibited by any other ordinance:

(1) Structures, roads, driveways, parking areas, construction or other development.

(2) Clearing of vegetation or grading, including the addition of fill.

(3) Sealed public water supply wells with approval of the Pennsylvania Department of Environmental Protection.

(4) Sanitary or storm sewers and stormwater detention basins with the approval of the Township Engineer and the Department of Environmental Protection.

(5) On-lot sewage disposal systems, when approved by the Township Sewage Enforcement Officer and/or the Pennsylvania Department of Environmental Protection.

(6) Utility transmission lines and above-ground utility line structures unless upon petition of a public utility corporation, the Pennsylvania Public Utility Commission shall, after a public hearing, decide that the present or proposed situation of the lines or structures in question is reasonably necessary for the convenience or welfare of the public.

B. The following uses may be permitted by right, with review by the Zoning Officer and Township Engineer, provided that they are in compliance with the provisions of the underlying district and are not prohibited by any other ordinance:

(1) Extractive uses in accordance with recognized conservation practices and regulations of the State Department of Environmental Protection.

(2) Forestry and reforestation in accordance with recognized natural resource and soil conservation practices, and as permitted by municipal and state regulations.

7. Conditional Use and Development of Slopes of 20% and Greater.

A. The following uses and activities may be permitted by conditional use provided that they are in compliance with the provisions of the underlying district and are not prohibited by any other

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ordinance:

(1) Structures, roads, driveways, parking areas, construction or other development.

(2) Clearing of vegetation or grading, including the addition of fill.

(3) Sealed public water supply wells with approval of the Pennsylvania Department of Environmental Protection.

(4) Sanitary or storm sewers and stormwater detention basins with the approval of the Township Engineer and the Department of Environmental Protection.

(5) On-lot sewage disposal systems, when approved by the Township Sewage Enforcement Officer and/or the Pennsylvania Department of Environmental Protection.

(6) Utility transmission lines and above-ground utility line structures unless upon petition of a public utility corporation, the Pennsylvania Public Utility Commission shall, after a public hearing, decide that the present or proposed situation of the lines or structures in question is reasonably necessary for the convenience or welfare of the public.

(7) Extractive uses in accordance with recognized conservation practices and regulations of the State Department of Environmental Protection.

(8) Forestry and reforestation in accordance with recognized natural resource and soil conservation practices, and as permitted by municipal and state regulations.

8. Applications for conditional uses shall provide the following information and documentation:

A. A plan by a registered professional engineer or surveyor which accurately locates the proposed use with respect to the Steep Slope Overlay District boundaries, with all pertinent information describing the proposal, and a topographical survey with contour elevations at no greater than two-foot intervals, based on USGS established benchmark datum.

B. A plan or proposed development or use of the site, confirming to the preliminary plan requirements of the Subdivision and Land Development Ordinance, with contours shown on two-foot intervals throughout, the steep slope areas proposed for development or use. Contours shall be accurately drawn from on-site survey or aerial photographic sources.

C. Proposed modifications to the existing topography and vegetative cover, as well as the means of accommodating stormwater runoff.

D. Detailed design for all proposed site improvements including streets, driveways, structures and stormwater management facilities.

E. Specifications for building construction and materials, including filling, grading, storage of materials, and water supply and sewerage facilities.

F. Documentation of any additional engineering and/or conservation techniques designed to alleviate environmental problems that may be created by the proposed activities, in compliance with Township sedimentation and erosion control regulations.

G. Written confirmation from (specific name of local fire department) that emergency access is satisfactory to provide adequate fire protection.

9. Permitted Uses and Development on Slopes of 20% or Greater.

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A. Open space and conservation uses are permitted by right on slopes of 20% or more, provided that they shall not include any structures, roads, driveways, parking areas, construction, or other development, or grading, or clearing of vegetation.

(1) Wildlife sanctuary, woodland preserve, arboretum, and passive park and recreation areas.

(2) Pasture and grazing land in accordance with recognized natural resource and soil conservation practices, and as permitted by Township and state regulations.

(3) Outdoor plant nursery or orchard in accordance with recognized natural resource and soil conservation practices.

(4) Cultivation and harvesting of crops in accordance with recognized natural resource and soil conservation practices.

(5) Front, side, or rear yards, and required lot area for any underlying zoning district, subject to the requirements of Subsection 3, "General Provisions," herein, and provided such yards shall not be used for any use prohibited under Subsection 5, herein.

10. Prohibited Uses on Slopes of 20% or Greater.

A. The following uses are specifically prohibited on slopes of 20% or more:

(1) Removal of topsoil.

(2) Solid waste disposal, recycling uses, junkyards, or other outdoor storage uses.

(3) Structures, roads, driveways, parking areas, construction or other development.

(4) Clearing of vegetation or grading, including the addition of fill.

(5) Sealed public water supply wells.

(6) Sanitary or storm sewers and stormwater detention basins.

(7) On-lot sewage disposal systems.

(8) Utility transmission lines and above-ground utility line structures.

11. Conditional Use Standards and Criteria.

A. In considering a conditional use application, the Board of Supervisors shall consider the following:

(1) Relationship of the proposed use to the objectives set forth in this section.

(2) Adverse effects on abutting properties.

(3) The need for a woodland management plan on wooded steep slope areas.

(4) Proposed roads, driveways and parking areas are designed so that land clearing and/or grading will not cause accelerated erosion. Both vertical and horizontal alignment for such facilities shall be so designed that hazardous conditions are not created.

(5) Alternative placements on non-steep slope areas were carefully evaluated for structures, including buildings, retaining walls, swimming pools, roads, access driveways, parking

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facilities and other development, and can be shown to be inappropriate or infeasible to the satisfaction of the Township.

(6) Proposed on-lot sewage disposal facilities are properly designed and constructed in conformity with applicable regulations.

(7) Proposed nonagricultural displacement of soil is for purposes consistent with the intent of this Part and will be executed in a manner that will not cause erosion or other unstable conditions. The applicant shall provide an erosion and sediment control plan and supporting evidence.

(8) Surface runoff of water will not create unstable conditions, including erosion, and appropriate stormwater management facilities will be constructed as necessary.

§ 27-311. Increased Density Development Option. [Ord. No. 199, 1/15/2025]

1. Purposes. To allow reasonable amounts of flexibility in site planning of residential development to:

   A. Protect environmentally sensitive areas and avoid severe soil erosion and sedimentation.

   B. Avoid severely increased stormwater flows and speeds.

   C. Preserve areas of prime farmland.

   D. Provide additional recreation land.

   E. Direct development to those areas that are more physically suited for it.

   F. Conserve forested areas that are an important part of the ecological cycle, providing for groundwater recharge, air pollution reduction and wildlife habitats.

   G. Reduce municipal maintenance costs.

   H. Provide for transitional forms of development between residential and agricultural or industrial areas or highways, with increased density serving as a buffer.

   I. Allow each property owner a reasonable use of their land, related directly to the features and location and accessibility of the land. This option will encourage the establishment of significant areas of preserved open area.

2. Applicability. This section allows an applicant the option to reduce the minimum lot areas on tracts of land if the applicant proves compliance with all of the requirements of this section to the satisfaction of the Township.

   A. An "increased density development" is a residential development that meets the requirements of this section and is granted approval by the Township as an increased density development. An increased density development shall only be allowed in zoning districts where the use is listed as allowed in Part 3.

   B. Uses. An increased density development shall only include the following uses: dwelling types listed as allowed in that district by this subsection, nature preserves, Township-owned recreation, recreation uses that the Township approves to be within the common open area, crop farming, raising and keeping of horses, golf courses, customary keeping of livestock as accessory to crop farming, utilities necessary to serve the development, and customary

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permitted accessory uses. No accessory dwelling units shall be permitted or calculated as part of the increased density development. A mobile-home park shall not qualify as an increased density development. The Township may also approve other types of livestock and poultry operations on a principal agricultural lot.

C. A tract shall be eligible for approval for an increased density development if it includes a minimum of four acres of lot area in common ownership. Such land area shall be contiguous, except that portions of the tract may be separated only by existing or proposed streets or waterbodies.

(1) The amount of common open area shall be based upon the total lot area of all lots within the development, prior to subdivision, and prior to deletion of rights-of-way of future streets and before deleting the area of any environmental features. Land area of future/ ultimate rights-of-way along existing streets may be deleted from the total lot area before calculating the required amount of common open area.

(a) Areas that were preserved by a conservation or agricultural preservation easement or deed restriction prior to the submittal of the subdivision plan shall not be counted towards the area of the tract in calculating common open area or allowed density.

(b) See the definition of "open space, common" in § 27-202.

(2) Areas used for a principal nonresidential use (other than uses approved by the Township to be part of the common open area, such as a golf course or an agricultural use) shall not be included within the land area used to calculate residential density.

(3) Conservation easements or deed restrictions shall be established on lots as necessary to ensure that the maximum density requirement is held over time. Such conservation easements shall prevent the re-subdivision of lots in a manner that would violate this section.

D. An increased density development shall be designed as a unified, coordinated residential development, and shall be approved with a single development plan proposed by a single development entity. After final subdivision approval and within an approved development agreement(s) and phasing plan, portions of the development may be transferred to different entities, if there is compliance with the approved development plan and this section.

3. Procedures.

A. Applicants are strongly encouraged to first submit a layout plan for review by the Township for zoning compliance, before completing detailed fully engineered preliminary subdivision plans. This two-step process will allow the Township and the applicant to mutually agree upon the increased density and development layout before large sums of money are spent by the applicant on detailed engineering.

B. Detailed grading, utility, profile and erosion control plans shall not be required at the zoning compliance review stage if such matters are submitted as part of the subdivision or land development approval process.

4. Lot Dimensional Standards. Subdivided lots as part of an increased density development option shall comply with the requirements contained within the ordinance Quick Views.

5. Additional Dimensional Requirements. In addition to Subsection 4, the following dimensional

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requirements shall apply, provided that the total maximum density for the tract is not exceeded:

A. TD1.

(1) To minimize land disturbance, if the development tract prior to subdivision includes more than 10 acres, then a minimum lot area of two acres shall apply. This maximum lot area within such a development tract shall not apply in any of the following situations:

(a) For a subdivided lot within the development tract that includes an easement or other dedication of increased density dedication that permanently prevents the subdivided lot's use for a dwelling.

(b) For a new lot that includes more than 10 acres of lot area.

(c) For a development tract if the applicant can demonstrate by credible evidence that the area proposed for the subdividing of lots does not include more than two acres of Class I, II and/or III soils, as identified in official federal soils mapping or a more accurate professional study.

(d) For a subdivided lot where additional lot area is needed to improve septic or water supply facilities for the subdivided lot, in the determination of the Sewage Enforcement Officer.

(e) For a development tract if designated as an agricultural subdivided lot. The largest amount of Class I, II and III agricultural soils that is feasible shall be included on one lot.

(2) A minimum of 40% of the total area of the development tract prior to subdivision shall be preserved as common open area.

B. TD2 and TD4.

(1) A minimum of 30% of the total area of the development tract (prior to subdivision) shall be preserved as common open area.

C. TD5 and TD6.

(1) A minimum of 25% of the total lot area of the tract (prior to subdivision) shall be preserved as common open area.

D. See definitions of the areas that may count towards "open space, common" in § 27-202.

6. Utilities. Any lot with an area of less than one acre per dwelling unit shall be served by Township-approved centralized sewer service and a Township-approved centralized water system. If the water or sewage systems are not publicly owned, the applicant shall provide evidence that there will be adequate safeguards to ensure proper long-term operation, maintenance and financing.

7. Subdivision of Part of a Tract. This subsection addresses a situation in which only part of a lot is proposed to be subdivided, and the applicant at the present time does not intend to subdivide for the maximum number of dwellings allowed by this section. In such case, the applicant shall establish a permanent conservation easement covering common open area to comply with this section. Because only part of the tract is being subdivided, it may not be necessary to meet the common open area requirement based upon the area of the entire tract.

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A. The land under the conservation easement shall be a logical shape that is subject to approval by the Township and shall be located where it could adjoin land that would be added as common open area in the future if the total allowed number of dwellings would be developed.

B. A minimum of 50% of the required common open area shall be in one contiguous lot, except that the common open area may be separated by streams, creeks, water bodies, and a maximum of one street.

(1) As part of an optional conditional use approval, the Board of Supervisors may approve the following, if the applicant proves to the satisfaction of the Board of Supervisors that such configuration would serve the purposes of this section and be in the best interests of the Township, considering the unique circumstances of the tract:

(a) A reduction of the percentage of the common open area that is in one lot.

(b) The crossing of the common open area by two or more streets.

(2) An accessway limited to emergency vehicles may also cross the common open area.

8. The Board of Supervisors may require that most of the required common open area be placed:

A. Adjacent to an existing or planned public or homeowner association- owned recreation area.

B. On a lot that can be efficiently farmed.

C. Adjacent to existing farmland.

D. At the edge of a neighboring undeveloped lot, where the common open area could be connected in the future to increased density on that neighboring lot.

E. Adjacent to an arterial street or expressway where the increased density open area will serve to buffer homes from the traffic.

9. Conditional Use. An application for an increased density development shall be a conditional use. The following conditions shall apply:

A. The increased density development would clearly serve a valid public purpose that would result in a development that would be superior to what would result if the land were developed as a conventional development. Such valid public purposes include, but are not limited to, the following:

(1) The permanent preservation of dense forests, steep slopes, wetlands, stream valleys, important wildlife corridors/habitats, highly scenic areas or other sensitive natural features.

(2) The permanent preservation of a substantial area of land in agricultural use, in a tract of proper size and configuration that allows for efficient agricultural use and that properly considers the issue of compatibility between the agricultural use and homes. In such a case, new dwellings shall be concentrated adjacent to existing dwellings and residential zoning districts.

(3) The dedication of recreation land at a site deemed appropriate by the Board of Supervisors and that involves land that is clearly suitable for active and/or passive recreation.

(4) The provision of common increased density in a location that will allow homes to be

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buffered from highly noxious, nuisance-generating uses, such as a heavily traveled street or industrial uses. In such a case, intensive landscaping and/or planting for eventual re-forestation shall be provided.

B. The applicant shall prove that the proposed increased density development has been designed in full consideration of important natural features, including mature woodlands, stream valleys, steep slopes and wetlands.

(1) At a minimum, the applicant shall prove that areas along perennial streams shall be preserved in their natural state, except for landscaping, erosion control improvements, public recreation improvements and needed utility, street and driveway crossings. Low-maintenance landscaping is encouraged along streams and other areas where maintenance would otherwise be difficult.

(2) The natural features of the site shall be a major factor in determining the location of dwelling units and streets.

C. The Township may require the use of conservation easements within an increased density development to limit the disturbance of natural slopes over 15%, wetlands, mature forests, stream valleys and other important natural features.

10. Common Open Area.

A. Common Open Area. The minimum amount of "common open area" shall be provided, which shall meet the requirements of this chapter and the definition in § 27-202 of "open space, common."

(1) The common open area requirements of this section shall be in addition to the recreation land or fee-in-lieu of land requirements of the Township Subdivision and Land Development Ordinance (SALDO) [Ordinance 174, as amended], unless the applicant proves to the satisfaction of the Board of Supervisors that the proposed common open area would include suitably improved land that will meet the intent of the recreation land requirements of the SALDO Ordinance 174, as amended].

B. Open Area Standards. Required common open area shall meet all of the following requirements:

(1) Common open area shall be permanently deed-restricted or protected by an appropriate conservation easement to prevent the construction of buildings or the use for any nonagricultural commercial purposes. Logging shall meet Township requirements and removal of healthy mature trees shall be limited to selective cutting following a Township approved forest management plan that follows best management practices. Land approved as required common open area shall only be used for noncommercial active or passive recreation, a noncommercial community center for meetings and recreation, a Christmas tree farm, a nature preserve, a horse farm, a wholesale plant nursery, crop farming and/or another Township approved agricultural use.

(2) Improvements to Open Area. Where common open area is proposed to be used for recreation and/or dedicated to the Township, the application shall include a detailed and legally binding (if approved) description of what improvements the applicant will make to any land to make it suitable for its intended purpose.

(a) Examples of such improvements include preservation and planting of trees, development of trails, stabilization of stream banks, removal of undesirable

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vegetation, and grading of land for recreation (such as an informal open play field for youth).

(b) Type of Maintenance. The final subdivision plan shall state the intended type of maintenance of the increased density area, such as lawn areas that are regularly mowed, or natural areas for passive recreation that are intended for minimal maintenance.

(3) All proposed common open areas shall be cleared of construction debris, materials from illegal dumping and any rocks that were not naturally on the land, unless those rocks are incorporated into landscaping improvements.

(a) The applicant shall prove that all required common open area would be suitable for its intended and Township approved purposes. The Township may require the provision of a trail easement and/or the construction of a recreation trail through common open areas. If a developer installs a trail, it shall be completed prior to the final sale of any adjacent residential lots.

(b) Lots and common open areas shall be located to promote pedestrian and visual access to common open areas whenever possible.

(c) Sufficient access points from each common open area shall be provided to streets for pedestrian access and maintenance access. The Board of Supervisors may require that maintenance and/or pedestrian access points be paved and be up to eight feet in width, meeting Township standards for a bike path. Maintenance access points shall be of a slope that is suitable for access by vehicles and equipment.

C. Open Area Ownership. The method(s) to be used to own, preserve and maintain any common open area shall be acceptable to the Township. The Township shall only approve an increased density development if the applicant proves there will be an acceptable method to ensure permanent open area ownership, preservation and maintenance of land that will not be included in individual home lots.

(1) The method of ownership and use of any required common open area shall be determined prior to preliminary subdivision or land development approval. The Township should be given the right of first refusal at the time of such review to accept proposed common open area as public area. The Township shall only accept ownership of common open area if the Board of Supervisors has agreed in writing in advance to accept such ownership. If the common area will not be owned by the Township, then the common open area shall be permanently preserved by one or a combination of the following methods that are found to be acceptable to the Board of Supervisors:

(a) Dedication to the county as public common open area, if the County Commissioners agree in writing to such dedication.

(b) Dedication to the school district if such Board of Education agrees in writing to accept such dedication and to use and maintain the land for school recreation, public recreation, environmental education.

(c) Dedication to a homeowners' association as common open area, with the homeowners legally bound to pay fees for the maintenance and other expenses of owning such land, and with such homeowners' association being incorporated with

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covenants and bylaws providing for the filing of assessments and/or municipal liens for the nonpayment of maintenance costs for common open area that is not publicly owned.

1) Such responsibilities shall be specified as part of each deed prior to sale of each lot or dwelling unit. The Township may delay the dedication of maintenance responsibilities by a developer to a homeowners' association until such association is incorporated and able to maintain such land.

(d) Dedication of the land to an established nature conservation organization acceptable to the Board of Supervisors for maintenance as a nature preserve or passive recreation area.

(e) Dedication of a permanent conservation easement that results in the land being used for a Township-approved agricultural use, such as crop farming, a tree farm, or a horse farm, and which may include one of the allowed dwelling units on the lot.

(f) Dedication to the State Game Commission, State Fish and Boat Commission or similar public agency, if such agency agrees in writing in advance to accept the dedication and to maintain the land for public recreation.

(g) Preservation of the common open area as part of one privately-owned lot that is restricted against subdivision by a conservation easement, if the applicant proves that none of the other alternatives are feasible. In such case, the common increased density area shall be in addition to the land area that would need to meet the requirements for any dwelling on the lot. The conservation easement shall control alteration of natural features on the lot and shall limit nonresidential use/ nonagricultural use of the lot.

(2) Legal documents providing for ownership and/or maintenance of the required common increased density area shall be reviewed by the Township Solicitor and be subject to approval by the Board of Supervisors prior to recording of the final plan.

(3) A legally binding system shall be established to oversee and maintain land that will not be publicly owned. The applicant shall prove compliance with state law governing homeowner associations. Proper notations shall be required on the recorded plan. For example, if the common increased density area is intended to be owned by a homeowner association as recreation land, a statement should be included that the designated common open area "shall not be further subdivided and shall not be used for the construction of any non-recreation buildings.

D. Changes in Increased Density Area Uses. If the required common open area is proposed to be used for purposes that were not authorized in the Township approval, then a revised approval shall be required for the change of use.

11. Phasing. The development shall include a phasing system that shall be approved by the Board of Supervisors. Such phases shall ensure that the requirements of this Part will be met after the completion of any one phase, and that the development could properly function without the construction of additional phases.

12. Landscaping Plan. An application for an increased density development involving over 10 acres shall include a landscape planting and preservation plan prepared by a registered landscape architect.

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A. Such a plan shall show the locations, general species and initial sizes of landscaping to be planted within the common open area and throughout the tract.

B. Such a plan shall also show that existing substantial healthy trees will be preserved to the maximum extent reasonable. The methods to ensure preservation during construction shall be described.

C. Landscaping shall also be used as appropriate to filter views of denser housing from any adjacent housing that is less dense.

§ 27-312. Conservation Along Streams. [Ord. No. 199, 1/15/2025]

1. Setbacks. No new building (except an accessory storage shed with a floor area of 150 square feet or less), new or expanded vehicle parking, or business outdoor storage shall be located 50 feet from top of bank of a perennial stream. A perennial stream shall be defined as a waterway shown as a perennial stream on the U.S. Geological Survey quadrangle maps.

   A. Standards. To the maximum extent feasible:

      (1) Any street or driveway crossing of a perennial stream shall be approximately perpendicular to the stream.

      (2) Existing healthy natural vegetation adjacent to a stream should be preserved.

      (3) Areas within the setback established by this section shall be preserved in their natural state, except for planting of trees and shrubs, erosion control improvements, public recreation improvements and necessary utility, street and driveway crossings. Low-maintenance landscaping is encouraged along streams and other areas where maintenance would otherwise prove difficult.

2. Vegetation. Where the majority of the existing trees and/or shrubs are removed from areas within the setback distance, then new trees and shrubs shall be planted and maintained that will have the same or better impact upon controlling erosion and filtering pollutants from runoff as the trees and/or shrubs that were removed.

   A. Publications of the Pennsylvania Department of Conservation and Natural Resources (including "Stream ReLeaf") and/or other governmental agencies or established environmental organizations shall be used as standards for the planting of the buffer. These publications include recommended species. If trees and plants do not survive, they shall be replaced within 100 days afterwards by the current owner of the property.

§ 27-313. Age-Restricted Residential Development. [Ord. No. 199, 1/15/2025]

1. This section provides a density bonus for a residential development that is age-restricted in compliance with the federal requirements for "housing for older persons" as specified in the United States Code. (Note: As of 2007, such provisions were in 42 U.S.C.A. § 3607.) This provision shall not change the allowed dwelling types in the district. This option is available as a by right bonus in any zoning district where the proposed dwelling types are allowed.

2. In order to be approved by the Township as age-restricted residential development, every dwelling unit (except one dwelling unit for one manager) on a tract of land shall be permanently restricted by deed, by any lease and by notes on the recorded plan to the following occupancy limitations: (A) a minimum of one head of household of each dwelling unit shall be age 55 years or older or who is

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physically disabled as defined by Social Security disability regulations; and (B) no person under age 18 shall live in the dwelling unit for more than 30 days in any calendar year, unless such person has a disability as defined under federal fair housing regulations. Any violation of such age restrictions shall be a violation of this chapter.

A. In addition, in order to be approved as age-restricted development, the applicant shall establish an appropriate legal entity, such as a property-owner association that has the duty, authority and responsibility to enforce such age restrictions over time. If a household met this requirement at the time of initial occupancy, it shall not be required to move in case of death, divorce or separation of a resident of that same household.

3. If an entire residential development is approved under this section, then the minimum lot area or the minimum average lot area per dwelling unit, as applicable, shall be reduced by 20%. Alternatively, where density is stated in terms of a maximum number of dwelling units per acre, the maximum density may be increased by 20% under this section. The minimum side yards may also be reduced by 20%. A greater bonus may be provided in the regulations of the applicable zoning district.

A. An age-restricted residential development shall meet all other requirements of Township ordinances, including limitations on the housing types allowed in that zoning district.

4. This density bonus shall only be approved if the development includes an appropriate system of sidewalks or pathways that is accessible under the Americans With Disabilities Act.

§ 27-314. ADA Regulations. [Ord. No. 199, 1/15/2025]

1. Building permit/grading plan construction shall comply with ADA regulations as is required for projects subject to SALDO.

2. For construction/grading plan permit projects, these include:

A. Requirement to replace existing sidewalk, driveway apron crossings, and curb ramps if noncompliant with current regulations.

B. Requirement to install ADA-compliant sidewalk, driveway apron crossings, and curb ramps as part of any building permit for properties that do not have existing sidewalk but adjoin a property that does.

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Part 4
ADDITIONAL REQUIREMENTS FOR SPECIFIC USES

§ 27-401. Applicability. [Ord. No. 199, 1/15/2025]

1. This Part establishes additional specific requirements for certain specific uses, in addition to the sign, parking, environmental and other general requirements of this chapter, as amended, and the requirements of each district. Wherever two requirements conflict, the stricter requirement shall apply.

   A. For uses allowed within a specific zoning district as "special exception" or "conditional" uses, see also the procedures and standards for said processes.

   B. For the purpose of this Part, "Township" shall refer to the applicable body (Planning Commission, elected officials, and/or Zoning Hearing Board) associated with review of the particular use and its assignment as a permitted use by right, conditional use, and/or use by special exception.

§ 27-402. Additional Requirements for Specific Principal Uses and/or Accessory Uses. [Ord. No. 199, 1/15/2025]

1. General. Accessory buildings, structures or uses that are clearly customary and incidental to a permitted by right, special exception or conditional use are permitted by right, except as is provided for in this chapter. A business shall only be conducted as an accessory to a dwelling if specifically permitted by this chapter.

2. Accessory Setbacks. The accessory setback requirements of the applicable district shall apply to every accessory building, structure, or use unless a standard that is clearly meant to be more restrictive or less restrictive is specifically stated in this Part for a particular accessory use. Accessory structure setback requirements shall not apply to fences or permitted accessory signs.

3. Front Yard Setback. No accessory structure, use or building shall be permitted in a required front yard in any district, unless specifically permitted by this chapter.

4. Adult Day Care Center.

   A. The use shall comply with any applicable state and federal regulations, including having a Pennsylvania Department of Public Welfare (or its successor agency) registration certificate or license if required by such agency.

   B. The use shall include constant supervision during all hours of operation.

   C. The use shall not meet the definition of a "treatment center."

5. Age-Restricted Residential Development.

   A. A minimum of one lot is required when units are in a condominium or planned community and where individual fee simple ownership is limited to the physical dwelling unit and common areas are owned by a condominium or homeowners' association.

   B. An age-restricted residential development may be constructed using the increased density development criteria of this chapter.

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6. Agriculture Supportive Industry/Service.

A. Agriculture supportive industry/services are only permitted on a lawfully existing lot with a minimum lot area of 25 acres in the TDI Field and Wood District and shall be accessory to an agriculture operation.

B. Agriculture supportive industry/services shall be conducted by a resident or owner of the property, his/her immediate family, and a maximum total of four other employees working on-site at one time, in addition to employees of the agricultural use. In addition, a barn that was constructed for agricultural purposes prior to the adoption of this section may be leased to a nonresident for a use meeting these standards.

C. To the maximum extent feasible, an agriculture supportive industry/services should use an existing building. Buildings that existed prior to the effective date of this section may be used for a farm-related business. Any new building constructed for a farm-related business and any new parking area for trucks shall be set back a minimum of 100 feet from any lot line of an existing dwelling, unless a larger setback is required by another section of this chapter. The total floor areas of all buildings used for a farm-related business shall not exceed 6,000 square feet. This 6,000 square foot limit shall only apply to buildings constructed after the effective date of this chapter. A farm-related business may also use buildings of any size that existed prior to the effective date of this chapter. The total area used by the farm-related business, including parking, shall not exceed three acres.

D. An agriculture supportive industry/service may include the following activities:

(1) Tree farms;

(2) Pumpkin patches;

(3) Corn mazes;

(4) Petting and feeding zoos;

(5) Hayrides;

(6) Orchards;

(7) Gardens;

(8) Farm equipment or farm vehicle repair;

(9) Occasional repair of one motor vehicle at a time, beyond those vehicles owned or leased by a resident of the property or his/her relative, but not including a junkyard, auto body shop or spray painting;

(10) Welding and custom machining of parts;

(11) Sale, processing, or mixing of seeds, feed, chemical fertilizers, or wood/leaves/bark compost;

(12) Construction tradesperson's headquarters;

(13) Small engine repair;

(14) Custom woodworking or wood refinishing;

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(15) Custom blacksmithing or sharpening services;

(16) Rental storage of household items, vehicles, boats and building materials;

(17) Boarding of animals, not including a kennel or a stable (which are separate uses);

(18) Custom butchering, not including a commercial slaughterhouse or stockyard;

(19) Processing and storage of agricultural products;

(20) Sawmill;

(21) Commercial farm tourism and special events, such as farm tours and Halloween activities;

(22) See also "stable, non-household" and "retail sales of agricultural products," which are treated as separate uses; and/or

(23) Any similar activity, provided the Applicant can provide evidence to the Township that the related impacts are equal to or less than any activities listed above.

E. Applicants must identify in a sketch plan the location of the proposed activities, all farm-related buildings in support of the Agriculture Operation, all dwellings, existing and proposed driveways, access drives, parking areas, vehicle turnaround areas, location of applicable sanitary facilities (if required) and buffering and landscaping in accordance with Part 8.

F. A driveway occupancy permit must be approved by the township for access to township roads and must be reviewed by the Township for access to state roads.

G. Parking. Adequate off-street parking is provided, parking areas and driveways are treated as necessary to control dust and parking areas are screened from neighboring properties. No vehicles may be parked on adjacent shoulders of roads and, design of driveways and adequate sight distance to accommodate expected traffic must be provided.

H. Sanitary facilities shall be provided in accordance with PA DEP requirements.

I. All prepared food available for sale must be prepared in accordance with applicable federal, state, or local regulations.

J. The Applicant shall submit evidence that all state and federal requirements have been met prior to the issuance of a final occupancy permit. Applicants must consult with the Township to determine if a building permit is required for any building proposed as part of the agriculture supportive industry/service.

K. This subsection shall not regulate agricultural uses that are permitted under other provisions of this chapter.

L. All existing and new buildings shall maintain a residential or agricultural appearance, as viewed from a public street.

M. The use shall not involve the storage or use of highly hazardous, toxic, radioactive, flammable or explosive substances, other than types typically used in agriculture or a household.

N. The lot shall have provisions for trucks to turn around on the site without backing onto a public street. When special exception approval is required, the Township shall consider the suitability of the adjacent roads for the amount and weights of truck traffic that will be generated.

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7. Animal Hospital.

   A. Minimum lot area: One acre.

   B. Any structure in which animals are treated or housed shall be a minimum of 30 feet from any residential lot line. Buildings shall be adequately soundproofed so that sounds generated within the buildings cannot routinely be perceived within any adjacent dwellings.

   C. Accommodations for animals undergoing treatment may occur as an accessory use. A kennel shall only be allowed if a kennel is permitted in that district and if the applicable requirements are met.

8. Antenna, Standard (includes amateur radio antenna).

   A. Height. No standard antenna, including its supporting structure, shall have a total height above the average surrounding ground level of greater than 75 feet.

   B. Anchoring. An antenna shall be properly anchored to resist high winds.

9. Any Residential Land Use Not Assigned Otherwise.

   A. The impact of the proposed use on the adjacent properties, surrounding neighborhood, and/or environment shall remain equal to or less than any use specifically listed in the same Base Zoning District.

   B. Any use shall be in conformance to the dimensional standards of the TD4 District.

10. Apartments. See "Townhouse and Multifamily (Apartments) Dwellings" in this section.

11. Assisted Living Facility/Personal Care Center. The standards for nursing homes in this section shall apply.

12. Auto Service/Repair Station.

    A. All service and/or repair activities shall be conducted within an enclosed building.

    B. All exterior off-street parking and storage areas shall be screened from adjoining residential uses and districts.

    C. Service bay doors shall not face directly towards an abutting dwelling (not including a dwelling separated from the garage by a street).

    D. Outside storage of more than one unlicensed vehicle is prohibited.

    E. Any ventilation equipment outlets associated with the service/repair work area(s) shall not be directed toward any adjoining residential uses or districts.

    F. All vehicles and machinery shall be repaired and removed from the premises within 60 days of repair completion.

    G. The demolition or junking of vehicles and machinery is prohibited.

    H. The applicant shall furnish evidence that the storage and disposal of materials will be accomplished in a manner that complies with state and federal regulations.

13. Auto, Boat or Mobilehome Sales.

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A. No vehicle, boat or home on display shall occupy any part of the existing or future street right-of-way or required customer parking area. See buffer yard provisions in this chapter.

B. Any mobilehomes on a sales site shall meet the required principal building setbacks from the perimeter lot lines.

14. Auto/Truck/Body Collision Center/Repair Station.

A. All paint work shall be performed within a building, with a fume collection and ventilation system that directs fumes away from any adjacent dwellings. Outdoor major repairs (such as body work and grinding) and outdoor welding shall not occur within 250 feet of a "residential lot line."

B. All reasonable efforts shall be made to prevent or minimize noise, odor, vibration, light or electrical interference to adjacent lots. See standards in Part 5. See buffer yard requirements in this chapter.

C. Outdoor storage of motor vehicles shall not be within any required buffer yard or street right-of-way.

D. Overnight outdoor storage of "junk" other than permitted junk vehicles shall be prohibited within view of a public street or a dwelling.

E. Any "junk vehicle" (as defined by Part 2) shall not be stored for more than 20 days within view of a public street or a dwelling. A maximum of six junk vehicles may be parked on a lot outside of an enclosed building at any one time. Any junk vehicle stored outside overnight shall be screened from view of adjacent dwellings.

F. Service bay doors shall not face directly towards an abutting dwelling (not including a dwelling separated from the garage by a street) if another reasonable alternative exits.

15. Bed and Breakfast.

A. Bed and Breakfast as a Principal Use in TD4 Village Residential and TD6 Village Mixed Use.

(1) A maximum of six rental units shall be provided and no more than three adults may occupy one rental unit. Only one bed and breakfast shall be permitted per lot.

(2) One off-street parking space shall be provided for each bedroom, plus one off-street parking space for each employee at peak hour. To the maximum extent feasible, off-street parking spaces for the bed and breakfast shall be: (a) located either to the side or rear of the principal building and (b) screened from the street and abutting dwellings by landscaping. Off-street parking spaces shall be set back a minimum of 10 feet from lot lines.

(3) There shall not be any signs, show windows or any type of display or advertising visible from outside the premises, except for a single sign with a maximum sign area of eight square feet on each of two sides and with a maximum height of eight feet. No internal lighting of the sign shall be permitted.

(4) Within a residential district, the use shall have a residential appearance and character.

(5) The use shall be owned, operated or managed by permanent residents of the lot.

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(6) There shall not be separate cooking facilities in any guest room. Food shall only be served to guests who are staying overnight, unless a restaurant is also permitted.

(7) No guest shall stay for more than 14 days in any month.

16. Betting Use.

A. Shall be located abutting an arterial or collector street.

B. Minimum building setback from the lot line of any place of worship/place of assembly or residential zoning district: 250 feet.

17. Beverage Distribution.

A. Parking and traffic flow associated with deliveries shall be positioned so as to minimize any conflicts between customer and business operations on site and any adjacent right-of-way.

B. Any site development, no matter if indoor or outdoor, shall ensure the following be designed, placed and positioned so as to uphold the continued health, safety and general welfare of any surrounding land uses, including but not limited to residential land uses:

(1) Hours of operations;

(2) Dumpsters;

(3) Outdoor seating;

(4) Areas designated for the serving and/or entertainment of customers;

(5) Parking shall include one space per 200 square feet of customer sales area and one space per peak hour employee.

18. Bus Station or Taxi Terminal.

A. A Circulation and Parking Plan shall be submitted for Township review and approval.

19. Campground.

A. Within a residential district, for each acre of total lot area, there shall be a maximum average of: (a) five recreational vehicle sites (where allowed); (b) 10 tent sites; or (c) cabin sleeping capacity for 20 persons. Such sites may be clustered in portions of the tract.

B. Retail sales shall be allowed as an accessory use. Within a residential district, any store shall be limited to sales of recreational, household, food, gift, and camping items. Within a residential district, any store shall be primarily intended to serve persons camping on the site.

C. All campsites, recreational vehicle sites, and principal commercial buildings shall be set back a minimum of 75 feet from any contiguous lot line of an existing dwelling that is not part of the campground or camp. Within this buffer, the applicant shall prove to the maximum extent feasible that any existing healthy trees will be maintained and preserved. Where healthy mature trees do not exist within this buffer, and if practical considering soil and topographic conditions, new trees shall be planted within this buffer.

(1) The screening of evergreens provided between business and residential uses is not required if the tree buffer would essentially serve the same purpose, or if removal of mature trees

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would be needed to plant the shrubs.

(2) Removal of trees within this buffer shall be only allowed for a necessary crossing of a street (which shall be generally perpendicular to the buffer), stormwater channel, driveway, and utility and to provide safe sight distance.

D. Buildings used for sleeping quarters shall not be within the 100-year floodplain.

E. No person other than a bona-fide resident manager/caretaker shall reside on the site for more than six months in any calendar year. No recreational vehicle shall be occupied on the site for more than six months in any calendar year by any one individual or one family, other than a resident manager/caretaker.

20. Car Wash.

A. Traffic flow and ingress-egress shall not cause traffic hazards on adjacent streets. On-lot traffic circulation channels and parking areas should be clearly marked.

B. Adequate provisions shall be made for the proper and convenient disposal of refuse. The applicant shall provide evidence that adequate measures will be in place to prevent pollutants from being washed into the groundwater or waterways. Any chemicals or polluted runoff that may be hazardous to aquatic life shall be stored within an area that will completely contain any leaks, spills, or polluted runoff.

C. When adjacent to a residential use(s), all equipment related to the operation of the car wash shall be screened with a bufferyard a minimum of 15 feet wide and including a combination of deciduous and evergreen trees, shrubs, and groundcover.

D. Water from the car wash operation shall not flow onto sidewalks or streets.

E. Any car wash that is located within 250 feet of an existing dwelling shall not operate between the hours of 10:00 p.m. and 7:00 a.m.

F. No portion of a car wash shall be located within 100 feet from the center line of a perennial waterway.

G. Minimum lot area: five acres, which shall be reduced to one acre if the applicant proves that water used in the operation will be recycled on site.

21. Child Care Center as a Principal Use.

A. The use shall comply with any applicable state and federal regulations, including having an appropriate Pennsylvania Department of Public Welfare (or its successor agency) registration certificate or license.

B. Convenient parking spaces within the requirements of Part 6 shall be provided for persons delivering and waiting for children.

C. In residential districts, where permitted as a principal use, a day care use shall have a minimum lot area of 30,000 square feet and a minimum setback for buildings and outdoor play areas of 25 feet from an abutting "residential lot line."

D. Fencing of at least four feet in height shall be placed around outdoor play areas.

E. In residential districts, any permitted day care use shall maintain an exterior appearance that

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resembles and is compatible with any existing dwellings in the neighborhood.

F. A child care center may occur in a building that also includes permitted or nonconforming dwelling units.

G. See also the standards for a "place of worship" in this section, which allows a child care center as an adjunct use.

22. Child Day Care, as Accessory to a Dwelling.

A. The dwelling shall retain a residential appearance with no change to the exterior of the dwelling to accommodate the use, other than cosmetic improvements.

B. The use shall be actively operated by a permanent resident of the dwelling.

C. Exterior play area shall be available and in accordance with the PA Department of Public Welfare.

D. See also "child care center" as a principal use, and day care as accessory to a place of worship.

E. The use shall comply with any applicable state and federal regulations, including having a Pennsylvania Department of Public Welfare (or its successor agency) registration certificate or license if required by such agency.

23. Commercial Communications Antennas/Tower as Principal or Accessory Use.

A. Purposes. These provisions for commercial communications antenna/ towers are primarily designed to serve the following purposes, in addition to the overall objectives of this chapter:

(1) To protect property values.

(2) To minimize the visual impact of antenna/towers, particularly considering the importance of the scenic beauty of the area in attracting visitors for outdoor recreation.

(3) To minimize the number and heights of towers in a manner that still provides for adequate telecommunications services and competition.

B. An accessory commercial communications antenna shall be permitted by right in any district if it meets the following requirements:

(1) In a district other than a commercial or industrial district, the antenna shall extend a maximum of 20 feet beyond the existing structure to which it is attached. The antenna shall be attached to one of the following existing lawful structures:

(a) A principal agricultural building or silo.

(b) An electric high voltage transmission tower.

(c) An existing lawful commercial communications tower.

(d) A fire station or steeple or bell tower of a place of worship.

(e) A water tower.

(2) In a commercial or industrial district, the antennas shall extend a maximum of 40 feet beyond an existing building or structure (other than a dwelling), provided the antenna is

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set back a distance equal to its total height above the ground from any lot line of a dwelling on another lot.

C. Any commercial communications antenna/tower that does not meet requirements above (such as a new freestanding tower) shall only be allowed where specifically authorized and in compliance with the following additional regulations:

(1) Such antenna/tower shall be set back from all lot lines and street rights-of-way a distance that is greater than the total height of the antenna/tower above the surrounding ground level. The Board of Supervisors may permit an easement arrangement to be used without meeting the setback requirement from the edge of the leased area, provided that there are legal safeguards to ensure that the setback will continue to be met over time from a lot line.

(2) A new tower, other than a tower on a lot of an emergency services station, shall be set back the following minimum distance from any existing dwelling-300 feet plus the total height of the tower above the surrounding ground level.

(3) A tower attached to the ground shall be surrounded by a security fence/gate with a minimum height of eight feet and evergreen plantings or preserved vegetation with an initial minimum height of four feet.

(4) The applicant shall provide a written statement sealed by a professional engineer stating that the communications antenna/tower will meet the structural and wind resistance requirements of the Construction Code [Ordinance 98, as amended].[68]

(5) The applicant shall describe in writing the policies that will be used to offer space on a tower to other communications providers, which shall serve to minimize the total number of towers necessary in the region. This policy shall be designed to minimize the total number of towers necessary in the Township.

(6) An applicant for a new commercial communications tower shall provide evidence to the Board of Supervisors that they have investigated co-locating their facilities on an existing tower and other tall structures and have found such alternatives to be unworkable. The reasons shall be provided.

D. A maximum total height of 200 feet above the ground shall apply in a commercial and industrial district and 150 feet in any other district where it may be allowed unless the applicant proves to the Township as a conditional use that a taller height is absolutely necessary and unavoidable.

E. The application shall describe any proposed lighting. The Township may require lighting of an antenna even if it will not be required by the Federal Aviation Administration. Such lighting is intended to provide protection for emergency medical helicopters. Strobe lighting shall not be used, but flashing lights may be used.

F. A new tower shall be designed in a manner that minimizes its visual intrusiveness and environmental impacts to the maximum extent feasible. For example, monopole designs or designs worked into a flagpole are preferred over lattice designs. Self-supporting towers are preferred over towers with guy wires that would require removal of larger numbers of trees.

G. A tower/antenna that is intended to primarily serve emergency communications by a Township-

68. Editor's Note: See Ch. 5, Part 1, Uniform Construction Code.

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recognized police, fire, or ambulance organization, and is on the same lot as an emergency services station, shall be permitted by right. Such towers/antennas may also serve commercial purposes.

H. Any antenna and tower that is no longer in active use shall be completely removed within six months after the discontinuance of use. The operator shall notify the Township in writing after the antenna or tower use is no longer in active use. Any lease shall require such removal by the owner of the antenna/tower. Any lease should provide that the lease shall expire once the antenna/tower is removed. The Township may require that a financial guarantee be posted to pay for removal of the tower if the Township determines such guarantee is needed.

I. All accessory utility buildings or cabinets shall: have a maximum total floor area of 400 square feet, which may be divided among adjacent buildings serving separate companies, have a maximum height of 10 feet and meet principal building setbacks.

J. No new or existing antenna shall cause interference with public safety telecommunications. The Township may require the applicant for a new commercial communications tower to submit a study by a radio frequency engineer or other qualified professional to analyze the threat of interference.

24. Commercial Outdoor Recreation.

A. Exterior lighting shall not pose a navigation hazard and shall comply with United States Federal Aviation Administration (FAA) guidelines or standards.

B. Exterior lighting for parking visible from adjacent residences shall be reduced to 50% of its permitted luminosity between 11:00 p.m. and 6:00 a.m.

C. Service area maintenance areas/facilities and dumpster areas shall be screened from adjacent dwellings with a minimum height of eight feet. Screens shall be constructed as an earth berm, landscaped bufferyard, fence, or wall and shall have a minimum opacity of 80%.

25. Convenience Store with Fuel/Energy Recharge.

A. All activities except those to be performed at the fuel pump, energy recharge unit, or air pumps shall be performed within a building. The use shall not include spray painting.

B. Fuel pumps-shall be at least 25 feet from the existing street right-of-way and shall meet side yard principal building setback requirements.

C. Dumpsters shall be placed behind or on the side of the principal building, if screening is provided.

D. Canopy Structures. A canopy shall be permitted over all fuel pumps with a minimum front yard setback of 20 feet from each street right-of-way line.

(1) A maximum of two canopy structures shall be permitted.

(2) Such canopy may be attached to the principal building. The canopy shall not include any signs, except for the following: (a) a sign may be attached to each of two sides of the canopy in place of an allowed freestanding sign; (b) an allowed wall sign may be placed on a portion of the canopy that is behind the minimum front yard setback line; and (c) necessary warning signs.

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(3) Within the minimum front yard building setback, the distance between the ground level and the bottom of the canopy shall not be greater than 20 feet. Parts of a sloped canopy may have a taller height if the purpose of the taller height is to deflect soot and glare away from the street or neighboring properties.

E. Fuel tanks and dispensers and ventilation equipment shall be setback a minimum of 100 feet from the lot line of any residential or institutional use (such as a school or nursing home). Fuel dispensers shall be set back a minimum of 30 feet from the existing street right-of-way line.

26. Concentrated Animal Feeding Operation (CAFO) or Concentrated Animal Operation (CAO).

A. All concentrated animal operations and concentrated animal feeding operations are subject to regulations enforced by the State Conservation Commission (SCC) and the Pennsylvania Department of Environmental Protection, pursuant to its authority under the Nutrient and Odor Management Act and the Clean Streams Law, respectively,[69] and its regulatory schemes. An applicant shall provide proof of compliance with all applicable state law, pending approval by the Township when such proof has been provided.

27. Contractor Office/Yard.

A. Outdoor Storage Areas.

(1) Access to and from any outdoor storage areas on a lot shall be paved or graveled to prevent any residual dust, dirt, or debris from spilling into public rights-of-way.

(2) Where adjacent to a residential lot, a 25-foot landscape buffer in accordance with § 27-605 shall be placed parallel to the entire adjoining residential lot line.

28. Cultural/Community Center.

A. All parking shall be contained on the lot with the principal building.

29. Dormitory.

A. The facility shall have its principal traffic access to a public street with sufficient capacity to handle the traffic generated by the proposed use or shall provide improvements to meet such capacity.

B. Vehicular circulation on the site shall provide adequate areas for the safe and convenient pick-up and drop-off of residents/guests.

C. The use shall not exceed the density (dwelling units per acre of lot area) of the base zoning district in which it is proposed. Every four bedrooms within the facility shall be considered equivalent to one dwelling unit for the purposes of density calculations.

D. Delivery and service areas shall be obscured from the view of adjacent residential properties by fencing, decorative walls or planted screening, as approved by the Board of Supervisors.

E. Adequate fire lanes shall be provided between structures and approved by the Fire Chief. Building construction shall comply with all applicable health and safety codes of the county, state and federal governments.

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69. Editor's Note: See 3 Pa.C.S.A. § 501 et seq., and 35 P.S. § 691.1 et seq.

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F. Exterior lighting for parking areas shall be reduced to 50% luminosity after 10:00 p.m.

G. Off-street parking shall be screened with an earth berm, landscaped buffer yard, fence or wall with a minimum height of four feet and a minimum opacity of 80%.

H. Dumpsters shall not be located in a front yard and shall be screened with a fence or wall with a minimum height of eight feet and a minimum opacity of 80%.

30. Drive-In Theater.

A. Any structure used for the display of motion pictures shall face the rear of the lot and shall be oriented in a manner that does not create a direct sightline to any oncoming traffic on all roads.

B. The applicant must demonstrate that a structure dedicated to entry ticket sales will be constructed and situated on the lot.

C. The applicant must demonstrate the location of a paved or graveled access drive leading up to the structure dedicated to entry ticket sales, where at least two rows of 10 cars each can line up within the boundaries of the lot.

31. Drive-Through Facilities.

A. The proposed traffic flow and ingress-egress shall not cause traffic hazards on adjacent streets.

B. On-lot traffic circulation and parking areas shall be clearly marked.

C. A drive-through use shall be designed with space for an adequate number of waiting vehicles while avoiding conflicts with traffic onto, around and off of the site. Any drive-through facilities shall be designed to minimize conflicts with pedestrian traffic.

32. Dwelling, Single-Family Detached.

A. To understand the scale of proposed impact on prime agricultural soils within the Agricultural Conservation District, the location(s) of existing prime agricultural soils shall be mapped and submitted as part of any application. A calculation of (existing) pre-development and (proposed) post-development impact, as a percentage basis, shall also be noted on application exhibits.

33. Electric Vehicle Charging Station.

A. All parking spaces dedicated to electric vehicle charging facilities shall comply with the standards within Part 6, Off-Street Parking and Loading.

34. Emergency Services. The following uses shall be allowed as accessory uses to the principal use of a fire company station: a banquet hall, small games of chance allowed under state law, and facilities for periodic special events.

35. Engineering/Testing Facility or Laboratory.

A. Any outdoor storage conducted on the lot shall comply with the regulations for outdoor storage as stipulated by the Ordinance.

B. Hours of operation and activities must be scheduled to protect the operation of the surrounding neighborhood from detrimental noise, dust, odor, vibration, light or other disturbance or interruption.

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C. An inventory of toxic, corrosive, flammable, carcinogenic or explosive materials, chemicals, liquids, gases, or solids shall be updated annually and filed with the local fire department and 911 service.

36. Fences and Walls.

A. Fences and walls are permitted by right in all districts. Any fence or wall shall be durably constructed and well-maintained. Fences that have deteriorated shall be replaced or removed. A fence shall not be required to comply with minimum setbacks for accessory structures.

B. No fence, wall, plantings, or structure shall obstruct the sight distance requirements of the Township.

C. Fences.

(1) Front Yard. Any fence located in the required minimum front yard of a lot in a residential district shall:

(a) Be an open-type of fence (such as picket, wrought iron, vinyl post, chain-link or split rail) with a minimum ratio of 1:1 of open to structural areas.

(b) Not exceed four feet in height. A taller height may be approved by the Township if necessary to contain animals or to address a specific hazard, such as an electric transformer.

(c) Shrubs in the front yard setback, placed in a manner to create a visual barrier, shall not be permitted.

(2) On a corner lot, a fence or wall shall meet the same requirements along both streets as would apply within a minimum front yard. However, a fence that only extends behind the rear of a dwelling may have a maximum height of 6.5 feet along one of the streets, other than the street that is along the front of the dwelling.

(3) Height.

(a) A fence located in a residential district in a location other than a required front yard shall have a maximum height of 6.5 feet, except a maximum of height of 10 feet shall be allowed around a tennis court (provided it is outside of the minimum front yard) and a taller height may be allowed where the applicant proves to the Township that such taller height is necessary to protect public safety around a specific hazard.

(b) A fence in the minimum front yard that is not within a residential district shall have a maximum height of four feet.

(c) A fence located in a nonresidential district shall not exceed eight feet in height.

(4) Setbacks. No fence shall be built within an existing street right-of-way nor within one foot of a side and a rear lot line nor within one foot of any easement line. placement of fence posts transversely crossing said easement may need to bridge existing utilities and are subject to review and approval by the Township Engineer. In such cases, Applicant shall sign an affidavit of understanding that in the event the fence must be removed for access to the easement, the homeowner shall be responsible for the cost of its removal and replacement. Property owners are encouraged to incorporate removable panels or double doors providing a 10-foot-wide opening for fence sections transversally crossing said

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easement. A five-foot minimum setback shall also apply for a fence of a principal nonresidential use that is more than six feet in height and that is adjacent to a principal residential use.

(5) Fence Materials. Barbed-wire shall not be used as part of fences around dwellings in residential districts. Electrically charged fences shall only be used to contain farm animals and shall be of such low intensity that they will not permanently injure humans. No fence or wall shall be constructed out of fabric, junk, junk vehicles, appliances, drums, or barrels.

D. Walls.

(1) Engineered retaining walls necessary to hold back slopes are exempted from setback regulations and the regulations of this section and are permitted by right as needed in all districts. However, if a retaining wall is over eight feet in height, it shall be set back a minimum of 15 feet from a lot line of an existing dwelling.

(2) No wall greater than three feet shall be located in the required front yard in a residential district, except as a backing for a permitted sign as permitted.

(3) A wall in a residential district outside of a required front yard shall have a maximum height of three feet if it is within the minimum accessory structure setback.

(4) Walls that are attached to a building shall be regulated as a part of that building.

(5) Shrubs in the front yard setback exceeding four feet shall constitute a wall.

E. For the purposes of privacy, shrubs may be planted in equivalent dimension, height, and location to the provisions outlined above for fences and walls.

37. Garage Sale (includes yard sale, moving sale and porch sale).

A. See definition in Part 2. A garage sale shall not include wholesale sales, nor sale of new merchandise of a type typically found in retail stores.

B. Each dwelling may have garage sales on a maximum of six total days per calendar year, with no sale lasting more than two days.

C. The use shall be clearly accessory to the principal use.

D. No outdoor storage shall be permitted when the sale is not in operation.

E. No alcoholic beverages shall be offered for sale at a garage sale.

F. Garage sale signs shall have a maximum sign area of two square feet, shall not be placed more than three days before the sale, and shall be removed within 24 hours after the conclusion of the garage sale.

38. Group Home. Unless otherwise regulated by the Commonwealth of Pennsylvania, group homes are permitted within a lawful dwelling unit, provided the following additional requirements are met:

A. A group home shall not include any use meeting the definition of a "treatment center."

B. A small group home shall include the housing of a maximum of six unrelated persons, and a large group home shall include the housing of a maximum of 12 unrelated persons, except:

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(1) If a more restrictive requirement is established by another Township Ordinance.

(2) The number of bona-fide paid professional staff shall not count towards such maximum.

(3) As may be approved by the Township.

C. The facility shall have adequately trained staff supervision for the number and type of residents. If the staffing of the facility has been approved by a state or county human service agency, then this requirement shall have been deemed to be met.

D. The applicant shall provide evidence of any applicable federal, state or county licensing or certification to the Township.

E. The group home shall register in writing its location, general type of treatment/care, maximum number of residents and sponsoring agency with the Township. The applicant shall notify the local ambulance and fire services of the presence of the group home and the type of residents.

F. If a group home is in a residential district, an appearance shall be maintained that is closely similar to nearby dwellings, and no sign shall identify the use.

G. The persons living on site shall function as a common household unit.

H. An off-street parking space shall be provided for the largest vehicle that serves the use.

I. The building shall have lighted exit lights, emergency lighting and inter-connected smoke alarms.

39. Home-Based Business, Low Impact.

A. The business activity shall be compatible with the residential use of the property and surrounding residential uses.

B. No more than one person, other than the occupants of the dwelling unit, shall be employed and work at the low-impact home-based businesses.

C. There shall be no outside appearance of a business use, including, but not limited to, parking, lights, and exterior storage of materials. Signage shall be provided in accordance with the Attachment 2 to this chapter.

D. The production and sale of retail goods shall be limited to value-added products derived from farm products and other natural/organic resources, such as wood or stone.

E. The business activity may not use any equipment or process which creates noise, vibration, glare, fumes, odors, or electrical interference, including interference with radio or television reception, which is detectable in the neighborhood.

F. The business activity may not generate any solid waste or sewage discharge, in volume or type, which is not normally associated with residential use in the neighborhood.

G. A maximum of 25% of the floor area of the dwelling unit may be devoted to a low-impact home-based business.

H. A low-impact home-based business shall be carried on completely within the dwelling unit, or a completely enclosed permitted accessory structure, such as a shed or detached garage.

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I. The business may not involve any illegal activity.

40. Home-Based Business, No Impact.

A. The business activity shall be compatible with the residential use of the property and surrounding residential uses.

B. The business shall employ no employees other than family members residing in the dwelling.

C. There shall be no display or sale of retail goods and no stockpiling or inventory of a substantial nature.

D. There shall be no outside appearance of a business use, including, but not limited to, parking, signs, or lights.

E. The business activity may not use any equipment or process which creates noise, vibration, glare, fumes, odors, or electrical interference, including interference with radio or television reception, which is detectable in the neighborhood.

F. The business activity may not generate any solid waste or sewage discharge, in volume or type, which is not normally associated with residential use in the neighborhood.

G. The business activity shall be conducted only within the dwelling and may not occupy more than 25% of the habitable floor area.

H. The business may not involve any illegal activity.

41. Home Occupations.

A. All home occupations shall meet the following requirements:

(1) The use shall be conducted primarily by a permanent resident of the dwelling and involve a maximum of one person working on site at any one time who does not reside within the dwelling. A maximum of one nonresident employee shall visit the property on a daily basis or operate a vehicle based at the property.

(2) The use shall be conducted indoors. No outdoor storage or display related to the home occupation shall be permitted. No changes shall occur to the exterior of a building that would reduce its residential appearance as viewed from a street.

(3) The use shall occupy an area that is not greater than 25% of the total floor area of the principal dwelling unit. The use shall clearly be secondary to the residential use.

(4) One off-street parking space shall be required per nonresident employee. In addition, for a home occupation, the Township shall require additional off-street parking if the Township determines it is necessary for customer parking.

(5) The use shall not require routine delivery by tractor-trailer trucks.

(6) The regulations regarding parking of trucks shall apply to a home occupation. No excavating equipment shall be parked overnight on a residential lot or an adjacent street as part of a home occupation.

(7) No equipment or machinery shall be permitted that produces noise, noxious odor, vibration, glare, electrical or electronic interference detectable on another property. The

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use shall not involve the storage or use of hazardous, flammable, or explosive substances, other than types and amounts typically found on a residential property. The use shall not involve the storage or use of "toxic" or "highly hazardous" substances.

(8) A home occupation shall not be conducted in a manner that is perceptible to other residents between the hours of 9:00 p.m. and 7:30 a.m.

(9) Any tutoring or instruction shall be limited to a maximum of three students at a time.

(10) A barber or beauty shop shall not include any nonresident employees.

(11) The main office of a medical doctor, chiropractor or dentist shall not be permitted as a home occupation.

(12) A home occupation may include a single one square foot nonilluminated sign, as permitted by Part 7. The sign shall have a maximum height above the ground of six feet and may be attached to a building or a pole. The sign shall not be allowed within the street right-of-way.

(13) The Township shall deny a home occupation application, or limit its intensity through conditions, if the Township determines the use would be too intense for the proposed location. In making such determination, the Township shall review the likely amounts of traffic, the types of deliveries needed, the types of operations involved and related nuisances, the amount of off-street and on-street parking that is available, the density of the neighborhood, whether the use would be adjacent to another dwelling, and setbacks from other dwellings.

(14) The use shall not involve manufacturing, other than of custom crafts and sewing. The use shall not involve commercial repair of motor vehicles.

(15) The use may include sales using telephone, mail order, or electronic methods. On-site retail sales shall be prohibited, except for sales of hair care products as accessory to a barber/beauty shop.

(16) If more than one home occupation is accessory to a dwelling, the total aggregate impact of the home occupations shall be considered in determining compliance with this chapter.

(17) A zoning permit shall be required for a major home occupation.

B. In addition to the requirements listed above, the following additional requirements shall apply to a "minor home occupation:"

(1) The use shall not routinely involve routine visits to the home occupation by customers or more than one nonresident employee at a time.

(2) The use shall only involve the following activities:

(a) Work routinely conducted within an office.

(b) Custom sewing and fabric and basket crafts.

(c) Cooking and baking for off-site sales and use.

(d) Creation of visual arts (such as painting or wood carving).

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(e) Repairs to and assembly of computers and computer peripherals.

(f) A construction tradesperson, provided that no nonresident employees routinely operate from the lot.

42. Junkyard (includes automobile salvage yard).

A. Storage of garbage or biodegradable material is prohibited, other than what is customarily generated on site and routinely awaiting pick-up.

B. Outdoor storage of junk shall be at least: (1) 100 feet from any residential lot line; and (2) 50 feet from any other lot line and the existing right-of-way of any public street.

C. The site shall contain a minimum of two exterior points of access, each of which is not less than 20 feet in width. One of these accesses may be limited to emergency vehicles. Cleared driveways with a minimum width of 15 feet shall be provided throughout the entire use to allow access by emergency vehicles. Adequate off-street parking areas shall be provided for customers.

D. Outdoor storage shall be completely enclosed (except at approved driveway entrances) by a 40-foot-wide buffer yard which complies with § 27-803, unless such storage is not visible from an exterior lot line or street. The initial height of any evergreen planting shall be six feet. Secure fencing with a minimum height of eight feet shall be provided and well-maintained around all outdoor storage areas. Such fencing shall be provided inside of the evergreen screening.

E. Burning or incineration is prohibited.

F. See the noise or dust regulations of Part 5.

G. All gasoline, antifreeze and oil shall be drained from all vehicles and properly disposed of. All batteries shall be removed from vehicles and properly stored in a suitable area on an impervious and properly drained surface.

H. Lot area: five acres minimum; 20 acres maximum.

I. Tires. See the "outdoor storage and display" standards.

J. Any storage of junk shall be maintained a minimum distance of 50 feet from the 100-year floodplain of any waterway and shall be kept out of a drainage swale.

K. Where a junkyard is regulated by both this chapter, as amended, and another ordinance, as amended, and/or chapter of the codified ordinances, as amended, of the Township, the provision that is more restrictive upon the junkyard use shall apply.

43. Kennel/Cattery.

A. All buildings in which animals are housed (other than buildings that are completely soundproofed and air conditioned) and all runs outside of buildings shall be located at least 150 feet from all "residential lot lines." This 150-foot setback shall be increased to 200 feet if more than 20 animals are kept overnight on the lot and be increased to 250 feet if more than 50 animals are kept overnight on the lot.

B. Buildings shall be adequately soundproofed so that sounds generated within the buildings cannot routinely be heard within any principal building on another lot.

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C. No animal shall be permitted to use outdoor runs from 9:00 p.m. to 8:00 a.m. that are within 250 feet of an existing dwelling. Runs for dogs shall be separated from each other by visual barriers a minimum of four feet in height, to minimize dog barking.

D. See Commonwealth of Pennsylvania Department of Agriculture Act 18 (PA Dog Laws), as amended.[70]

E. Minimum lot area: five acres, unless a larger lot area is required by another section of this chapter.

44. Livestock and Poultry, Raising of.

	Raising of Livestock or Poultry
Max. Building Coverage	10%
Max. Impervious Coverage	20%
Minimum Lot Area	5 acres
Min. Lot Width at Min. Building Setback Line (feet)	300
Max. Building Height (feet)	35
Min. Yards (Front/Side/Rear) (feet)	150/100/150

A. Minimum lot area: five acres, except a minimum lot area of 25 acres shall apply for an "intensive raising of livestock or poultry" use.

B. Except for an intensive raising of livestock or poultry use, any building or concentrated feeding areas for the keeping of livestock or poultry shall be located a minimum of: (1) 300 feet from a lot in a residential district; (2) 150 feet from an existing dwelling that is not within a residential district; and (3) 50 feet from all other exterior lot lines. As a special exception use, the Township may approve a smaller setback for the expansion of facilities that existed prior to the adoption of this section where the applicant proves that there is no reasonable and feasible alternative and where the applicant proves that the lesser distance would not be detrimental to public health or safety or create significant hazards or nuisances.

C. For an intensive raising of livestock or poultry use, any building or concentrated feeding areas for the keeping of livestock or poultry shall be located a minimum of: (1) 500 feet from a lot in a residential district; (2) 200 feet from an existing dwelling that is not within a residential district; and (3) 100 feet from all other exterior lot lines. As a special exception use, the may approve a smaller setback for the expansion of facilities that existed prior to the adoption of this section where the applicant proves that there is no reasonable and feasible alternative and where the applicant proves that the lesser distance would not be detrimental to public health or safety or create significant hazards or nuisances.

D. The setbacks from lot lines for this use shall not apply from dwellings or lots owned by: (1) the operator or owner of the livestock use; or (2) affected property owners providing a written notarized letter waiving such setback.

E. Fencing shall be used as necessary and practical to prevent livestock from entering streets or

70. Editor's Note: See 3 P.S. § 459-101 et seq.

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unauthorized property.

F. The keeping of putrescent garbage-fed swine shall meet the setbacks for an intensive raising of livestock or poultry use. See the State Domestic Animal Law[71] provisions regarding garbage-fed animals.

G. For a new or expanded raising of livestock or poultry use, evidence shall be provided by the operator/applicant to the Township to show that there will be compliance with procedures and requirements of the State Nutrient Management Act, 3 Pa.C.S.A. § 501 et seq., and accompanying state regulations.

H. Buildings used for the keeping of livestock or poultry shall:

(1) Meet Township floodplain regulations.

(2) Not be located within 100 feet of a perennial stream, river, spring, lake, pond or reservoir.

(3) Not be located within 100 feet of an active public water supply drinking well or an active intake for a public water supply.

I. For manure storage facilities that are specifically required to have a setback from lot lines under the State Nutrient Management Regulations, that state setback shall apply. For any other manure storage facilities, a 100-foot minimum setback shall apply from all lot lines.

J. The following additional requirements shall apply to an intensive raising of livestock or poultry use:

(1) The applicant shall provide a soil and erosion control plan to the County Conservation District for review and pay their review fees.

(2) The applicant shall describe in writing or on site plans methods that will be used to address water pollution and insect and odor nuisances. The applicant shall provide a written comparison of proposed methods of controlling insect and odor nuisances and avoiding water pollution to applicable sections of the Pennsylvania Soil and Water Conservation Technical Guide as published by the U.S. Department of Agriculture and the State Department of Environmental Protection's Manure Management Manual for Environmental Protection, or their successor publications. The applicant may meet this requirement by providing a cross-reference to certain sections of such manuals or other written industry standards to describe the methods that will be used.

(3) The location of the facility is requested to consider prevailing wind patterns as they may affect the nearest existing dwellings.

(4) An area shall be provided for trucks to turnaround on the property that avoids the need to back out onto a public road.

45. Manufacturing, Light.

A. No long-term (exceeding 120 days) outdoor storage shall be conducted on site.

B. The storage or manufacture of hazardous or potentially hazardous materials shall not be permitted.

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71. Editor's Note: See 3 Pa.C.S.A. § 2301 et seq.

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C. The size of the proposed operation and its relationship to surrounding uses shall be evaluated by the Township to determine the appropriateness of the proposed activity in the location proposed.

D. Adequate public facilities shall be available to meet the requirements of the proposed manufacturing processes.

E. Adjacent public streets shall be adequate to accommodate the traffic volumes and weight limits associated with truck traffic to and from the site.

F. The Township may impose restrictions on access to the facility, storage of vehicles or materials on the premises, hours of operation and other such matters as they deem necessary to ensure that there is no adverse impact upon the functioning and/or purpose of the district or adjacent parcels.

G. Outdoor lighting, if any, shall be shielded and/or reflected away from adjoining properties so that no direct beam of light, but only diffuse or reflected light, enters adjoining properties.

46. Manufacturing, Heavy.

A. The landowner and/or developer shall provide a Lighting Plan illustrating the maximum footcandles associated with proposed lighting on the lot to demonstrate no light spillover, or glare will exist on adjacent lots.

B. Hours of operation and activities, including for truck deliveries, must be appropriately scheduled to protect the surrounding neighborhood from detrimental noise, dust, odor, vibration, light or other disturbance or interruption.

C. An inventory and Material Safety Data Sheets (MSDS) of toxic, corrosive, flammable, carcinogenic or explosive materials, chemical, liquids, gases or solids stored and/or used on site shall be available upon request.

D. No vehicular idling shall be permitted, and all queuing shall occur on the lot.

47. Medical Marijuana Grower or Processor Facility.

A. It is the intent that a grower and processor of medical marijuana shall meet the same municipal zoning and land use requirements as other manufacturing, processing and production facilities that are in the same district to comply with Section 2107(1) of the Pennsylvania Medical Marijuana Act, Act 16 of 2016.[72]

B. Medical marijuana may only be grown and processed in an indoor, enclosed, and secure building which includes electronic locking systems, electronic surveillance and other features required by the Department of Health. Solid or liquid waste byproduct or remnants generated from the operation shall also be stored in the enclosed secured principal building until picked up for transportation to a facility authorized to accept such waste. Storage of medical marijuana waste remnants in an accessory building or waste refuse container located outside of the principal building is prohibited.

C. Loading areas shall be located within the principal building.

D. Growing and processing of medical marijuana shall be limited to wholesale products for sale to another medical marijuana facility. Retail sales of medical marijuana including the operation of

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72. Editor's Note: See 35 P.S. § 10231.2107.

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a medical marijuana dispensary on the same property as the growing and processing operation is prohibited.

E. Location and spacing of said use shall be in accordance with regulations of the Commonwealth of Pennsylvania Act 16, as amended, and any other applicable laws.

F. All outdoor lighting shall comply with this chapter.

G. Off-street parking and loading spaces shall be provided in accordance with this chapter.

H. A screen or buffer as required by this chapter, as amended, where the use adjoins a residential district or use.

I. The use shall obtain a permit and approval from the Pennsylvania Department of Health and the user shall provide a copy of that approval to the Township.

48. Membership Club.

A. Any active outdoor play areas shall be set back at least 30 feet from any abutting "residential lot line."

B. This use shall not include an "after hours club."

49. Mineral Extraction. Unless otherwise regulated by the Commonwealth of Pennsylvania, the following shall apply:

A. If a mineral extraction use involves mining activities over more than two acres of land in any calendar year, then the following additional requirements shall be met:

(1) A copy of all information submitted to state agencies shall also be submitted to the Township at the same time.

(2) A detailed and appropriate land reclamation and reuse plan of the area to be excavated shall be submitted to the Township. Compliance with such plan shall be a condition of Township permits.

(3) After areas are used for mineral extraction, those areas shall be reclaimed in phases to a nonhazardous and environmentally sound state permitting some productive or beneficial future use.

(4) A 50-foot-wide yard covered by natural vegetative ground cover (except at approved driveway crossings) shall be required along all exterior lot lines that are within 200 feet of an area of excavation. The Township may require this yard to include an earth berm with a minimum average height of six feet and an average of one shade tree for each 40 feet of distance along the lot lines. Such shade trees shall be planted outside of any berm and any fence.

(a) New trees shall not be required where preserved trees will serve the same purpose.

(5) The following minimum setbacks from property not owned by and/or not operated by a mineral extraction use shall apply to the excavated area of a mineral extraction use:

(a) 100 feet from the existing right-of-way of public streets and from all exterior lot lines of the property.

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(b) 150 feet from a nonresidential principal building, unless released by the owner thereof.

(c) 400 feet from the lot line of a dwelling.

(d) 150 feet from the lot line of a publicly owned recreation area that existed at time of the application for the use or expansion.

(6) The excavated area of a mineral extraction use shall be set back 150 feet from the average waterline of a perennial watercourse or the edge of a natural wetland of more than two acres.

(7) Truck access to the use shall be located to reasonably minimize hazards on public streets and dust and noise nuisances to residences.

(8) Fencing. The Township may require secure fencing in locations where needed to protect public safety. As an alternative, the Township may approve the use of thorny vegetation to discourage public access. Also, warning signs shall be placed around the outer edge of the use.

(9) Hours of Operation. The Township, as a condition of conditional use approval, may reasonably limit the hours of operation of the use and of related trucking and blasting operations to protect the character of adjacent residential areas.

(10) The activities and residual effects shall not create conditions that are significantly hazardous to the health and safety of neighboring residents.

(11) A plan shall be submitted showing sequential phases of mining activities on the land. Reclamation shall be initiated on one phase before the next phase is opened for mining.

(12) An operational statement must be prepared and submitted to demonstrate, by credible evidence, each of the following:

(a) Mining shall comply with all applicable state and federal laws, rules and regulations, including but not limited to, regulations concerning dust, vibration, noise, heat, glare, vapors, and gases;

(b) No emission of dust, dirt, fly ash, fumes, vapors or gases which could cause any damage to human health, animals, or vegetation or to any other forms of property or which could cause any soiling or staining of persons or property at any point beyond the lit line of the use creating the emissions, will occur;

(c) No mining, processing, or other activity shall produce heat or glare beyond the lot boundary line of the land on which the operation is located.

(13) Within TD1, no cement plant shall be permitted as a principal or accessory use.

(14) The following uses shall be subject to Township review and comment as related to public health, safety, and welfare prior to being permitted as accessory uses to the principal use of mineral extraction, whether on the same lot or an adjacent lot or consecutive adjacent lots, owned by the same entity or a related entity or pursuant to an easement: rail facilities and conveyors, including bins, hoppers, feeders, chutes, or similar structures used in collecting and releasing matter onto conveyor belts for transportation. No setbacks shall be imposed within the lateral movement of any rail facility or conveyor.

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50. Mobilehome Park.

A. Plans and Permits. Plans shall be submitted and reviewed by the Township for all mobilehome parks in compliance with the mobilehome park provisions of the Subdivision and Land Development Ordinance, as amended, and all other provisions of such ordinances that apply to a land development, including the submission, approval, and improvements provisions (other than specific provisions altered by this section).

B. The minimum tract area shall be three contiguous acres, unless a larger tract area is required in a particular zoning district. This minimum tract area shall be under single ownership.

C. Density. The maximum average density of the tract shall be five dwelling units per acre.

D. To calculate this density: (1) land in common open space or proposed streets within the park may be included; but (2) land within the 100-year floodplain, wetlands, and slopes over 25% shall not be included.

E. Landscaped Perimeter. Each mobilehome park shall include a 35-foot-wide landscaped area including substantial attractive evergreen and deciduous trees around the perimeter of the site, except where such landscaping would obstruct safe sight distances for traffic. A planting plan for such area shall be approved by the Township as part of any required conditional use approval. Such landscaped area shall not be required between adjacent mobilehome park developments. The same area of land may count towards both the landscaped area and the building setback requirements.

F. A dwelling, including any attached accessory building, shall be set back a minimum of 25 feet from another dwelling within the mobilehome park, except that unenclosed porches, awnings and decks may be 15 feet from the walls of another dwelling.

G. The minimum separation between homes and edge of interior street cartway or parking court cartway shall be 25 feet.

H. The minimum principal and accessory building setbacks from exterior/boundary lot lines and rights-of-way of preexisting public streets shall be 50 feet.

I. Accessory Structures. A detached accessory structure or garage shall be separated a minimum of 15 feet from any dwelling units which the accessory structure is not accessory to.

J. Common Open Space for a Mobilehome Park. A minimum of 15% of the total lot area of the entire mobilehome park shall be set aside as common open space for the residents. The applicant shall prove that these areas will be suitable for active or passive recreation. If a development will not be restricted to persons over age 55, then the common open space shall at a minimum include a rectangular grass field 100 feet by 200 feet suitable for free play by young persons. If a development will be restricted to persons over age 55, then the common open space shall at a minimum include landscaped paved trails, including segments that are ADA accessible. A recreation building or pool available to all residents of the development may count towards this requirement.

K. Streets.

(1) Access to individual mobilehome spaces shall be from interior parking courts, access drives or private streets and shall not be from public streets exterior to the development.

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(2) Streets within the mobilehome park that provide access to reach 20 or more dwellings shall have a minimum paved cartway of 24 feet, and other local private streets or parking courts serving less than 20 homes shall have a minimum paved cartway of 20 feet.

(3) Curbs and sidewalks are not required on the private streets, but all private streets shall meet all other Township cartway construction standards.

L. Utilities. All units within the mobilehome park shall be connected to a public water and a public sewage system. The system shall meet appropriate minimum water pressure/fire flow and hydrant requirements. The applicant shall prove that adequate provisions are made for solid waste disposal.

M. Along through-streets, a minimum nighttime lighting level of 0.2 footcandles shall be maintained, at no expense to the Township.

N. Other Requirements. A mobilehome park shall comply with all of the same requirements of Township ordinances that apply to a subdivision or land development of site-built single-family detached dwellings. This includes, but is not limited to, submission, approval and improvement requirements of the Township Subdivision and Land Development regulations. Provisions set forth in Township Ordinance 26: Mobile Homes and Mobile Home Parks, as amended, shall also apply.[73]

51. Nursing Home.

A. Licensing. See definition in Part 2.

B. A minimum of 15% of the lot shall be suitable and developed for passive recreation. This area shall include outdoor sitting areas and pedestrian walks.

52. Outdoor Storage and Display—Commercial or Industrial as a Principal or Accessory Use.

A. Location. Outdoor storage or display shall not occupy any part of any of the following: the existing or future street right-of-way, sidewalk, or other area intended or designed for pedestrian use or required parking area.

B. No such storage or display shall occur on areas with a slope in excess of 25% or within the 100-year floodplain.

C. Tire Storage.

(1) For tires not mounted on a motor vehicle, any outdoor storage of more than five tires on a lot in a residential district or more than 50 used tires in a nonresidential district shall only be permitted as part of a Township-approved junkyard.

(2) The outdoor storage of more than 50 used tires shall be limited to the TD11 District.

(3) Where allowed, any storage of used tires shall involve stacks with a maximum height of 15 feet, and that cover a maximum of 400 square feet. Each stack shall be separated from other stacks from all lot lines by a minimum of 75 feet. If the same set of tires is stored on a lot for more than six months, they shall be stored within a building or trailer.

(4) The operator of a lot involving tire storage shall prove that the tires are stored in a manner

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73. Editor's Note: See Ch. 14, Mobile Homes and Mobile Home Parks.

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that minimizes public health hazards from the breeding of vectors in accumulated water and/or that the site is regularly sprayed to minimize vectors.

53. Personal Care Boarding Home or Group Care Facility.

A. This use shall be located only on property which has direct access to an arterial street.

B. Conversion of existing structures into this use must meet the site plan requirements for new construction.

C. Minimum lot size of 10,000 square feet shall be required.

D. A buffer area of 15 feet shall be provided along all adjacent property lines.

E. Parking shall be required as follows: one space for every two employees, plus one space for every three residents.

F. The applicant must supply to the Township (and keep current) the name of a manager and/or other person responsible for responding quickly to a complaint filed by the Township.

54. Pets, Keeping of.

A. This is a permitted by right accessory use in all districts.

B. No use shall involve the keeping of animals and/or fowl in such a manner or of such types of animals that it creates a serious nuisance (including noise or odor), a health hazard, or a public safety hazard. The owner of the animals shall be responsible for collecting and properly disposing of all fecal matter from pets.

C. A maximum combined total of six dogs and cats shall be permitted to be kept by residents of each dwelling unit on their residential premises.

(1) Such limits shall only apply to dogs or cats over six months in age.

(2) Any greater number of dogs and/or cats shall need approval as a "kennel."

D. Any keeping of pets shall only be permitted provided it does not create unsanitary conditions or noxious odors for neighbors.

E. Horses. Minimum lot area: two acres for first horse or similar animal, plus one acre for each horse or similar animal in excess of one. A maximum of 10 horses or similar animals shall be kept, unless the use is approved as a "commercial stable." Any horse barn, manure storage areas or stable shall be a minimum of 75 feet from any residential lot line.

F. See the definition of "animal, domesticated (pets)." Only those pets that are domesticated and are compatible with a residential character shall be permitted as "keeping of pets." Examples of permitted pets include dogs, cats, rabbits, fish, gerbils, and lizards.

(1) The following and similar animals shall only be allowed to be kept as pets if the Township approves a particular number and type of species as a special exception after the applicant proves they will not cause nuisances or hazards: bears, wolves, wolf-dog hybrids, venomous snakes that could be poisonous to humans, monkeys, apes, constrictor snakes that could be dangerous to humans, or any "exotic wildlife" as defined by the Pennsylvania Game and Wildlife Code, 34 Pa.C.S.A. § 101 et seq. Exotic wildlife shall also require an exotic wildlife possession permit from the state.

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G. The keeping of cows, sheep, goats, and hogs shall require a minimum lot area of five acres.

H. Unless otherwise regulated by this chapter, the keeping of non-predatory fowl shall require a minimum lot area of one acre.

I. No predatory birds, also including guinea fowl and roosters, shall be permissible within keeping of pets.

55. Place of Worship/Assembly.

A. Minimum lot area: two acres in a residential district, unless a larger lot area is required by the applicable zoning district. In any other district, a place of worship shall meet the minimum lot area provided in Part 3 for that district.

B. Weekly religious education rooms and meeting rooms are permitted accessory uses provided they are incidental to the place of worship. A primary or secondary school and/or a child or adult care center may be approved on the same lot as a place of worship provided the requirements for such uses are also met. Buses used primarily to transport persons to and from religious services or a permitted school on the lot may be parked on the lot. Other uses shall only be allowed if all of the requirements for such uses are also met, including being permitted in the applicable district.

C. A maximum of one dwelling unit may be accessory to a place of worship on the same lot, to house employees of the place of worship and/or an employee and his/her family. Such dwelling shall meet the maximum number of unrelated persons in the definition of a "family." No other residential use shall be allowed.

D. If within a residential district, any new place of worship shall be adjacent to an existing collector or arterial street that is in public ownership.

E. Minimum building setback from a lot line of an existing dwelling in a residential district: 60 feet.

F. Minimum parking setback from a lot line of an existing dwelling in a residential district: 20 feet.

56. Prison or Similar Correctional Institution.

A. The premises shall be maintained so as to not constitute a nuisance or a nuisance to public health and safety.

B. Air transport operations shall be located to minimize impacts to adjacent development.

C. No correctional facility shall be established or operated within 1,000 feet of an existing school, public park, public playground, hospital, nursing home, place of worship, place of assembly, and/or dwelling.

D. Correctional facilities shall provide a visual screen along all property lines. The screen shall be constructed as an earth berm, landscaped bufferyard, fence, or wall. The screen shall have a minimum height of eight feet and shall have a minimum opacity of 80%. No barbed wire or similar security fencing shall be visible from a public right-of-way or adjacent residential lot.

E. A correctional facility shall be served by public sewer and water.

57. Recreation, Commercial Outdoor.

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A. All buildings, pavilions and areas used for nighttime activities shall be a minimum of 150 feet from an existing dwelling on another lot. All parking areas shall be set back a minimum of 75 feet from any residential lot line.

B. This term shall not include "publicly owned recreation," a "golf course," or a "motor vehicle racetrack."

C. Lighting, noise, and glare control: see Part 5.

D. In a residential district, the minimum lot area shall be 2.5 acres, unless a more restrictive lot area is established by another section of this chapter.

E. Maximum impervious coverage in any residential district: 20%.

F. Maximum building coverage in any residential district: 15%.

G. A site plan meeting the requirements of Part 1 shall be submitted to the Township.

H. Woodland existing adjacent to an exterior lot line of the use adjacent to a residential lot line, such woodland shall be preserved within at least 20 feet of such lot line, except for approved driveway, utility and trail crossings. Where such woodland will not exist, a 20-foot-wide buffer yard shall be required.

I. Hours of Operation. In a residential district, active recreation facilities shall be conducted only between the hours of 6:00 a.m. and 10:00 p.m., unless differing hours are established as a condition of any needed Township approval.

J. Any restaurant open to the public, tavern, firearms target range, camp, campground, or commercial picnic ground use shall only be allowed if those uses are permitted in the applicable district and if all requirements for each such use(s) are also met.

58. Recycling Collection Center.

A. This use shall not be bound by the requirements of a solid waste disposal facility.

B. All materials shall be kept in appropriate containers, with appropriate sanitary measures and frequent enough emptying to prevent the attraction of insects or rodents and to avoid fire hazards.

C. Adequate provision shall be made for movement of trucks if needed and for off-street parking.

D. A 20-foot-wide buffer yard with screening shall be provided between this use and any abutting "residential lot line."

E. This use may be a principal or accessory use, including being an accessory use to a commercial use, an industrial use, a public or private primary or secondary school, a place of worship or a Township-owned use, subject to the limitations of this section.

F. Materials to be collected shall be of the same character as the following materials: paper, fabric, cardboard, plastic, metal, aluminum, and glass. No garbage shall be stored as part of the use, except for that generated on site and that accidentally collected with the recyclables. Only materials clearly being actively collected for recycling may be stored on site.

G. The use shall only include the following operations: collection, sorting, baling, loading, weighing, routine cleaning, and closely similar work. No burning or landfilling shall occur. No

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mechanical operations shall routinely occur at the site other than operations such as baling of cardboard.

H. The use shall not include the collection or processing of pieces of metal that have a weight greater than 50 pounds, except within an industrial district.

I. The use shall include the storage of a maximum of 50 tons of materials on the site if the use is within a residential district and within 500 feet of an existing dwelling.

59. Residential Accessory Structure, Use, or Parking.

A. Accessory structures and uses (other than fences) shall not be located within the required accessory use setback, unless specifically exempted by this chapter. Accessory structures shall not be located within a front yard, nor within any yard required to be equal in width to a front yard along a street on a corner lot.

B. Accessory buildings in a residential district on a lot of less than two acres shall meet the following requirements:

(1) Maximum total floor area of all accessory buildings: 1,500 square feet.

(2) Maximum of two accessory buildings per lot.

C. Repairs. Repairs of a truck with an aggregate gross vehicle weight of over 13,000 pounds aggregate gross vehicle weight shall not occur on a residential lot. Repairs of motor vehicles that are not owned or leased by a resident of the lot or his/her "relative" shall not occur on a residential lot.

D. See also the definition of "junkyard."

E. Recreational Vehicles or Boats. A recreational vehicle or boat with a length of 24 feet or greater shall not be parked in the front yard of a dwelling during more than two days in any seven-day period.

60. Retail Sales of Agricultural Products as an Accessory Use.

A. The use shall be an accessory use incidental to a crop farming, greenhouse, plant nursery, orchard, winery or raising of livestock use.

B. The only retail sales shall be of agricultural products and horticultural products, in addition to any hand-made crafts produced by the operator of the market and/or his/her family. An average of not less than 50% of the products sold on site shall have been produced by the operator or his/her family. This percentage may vary month to month, provided that the average is met.

C. Off-street parking shall be provided in compliance with the provisions of Part 6. No parking shall be permitted in such a way that it creates a safety hazard.

D. Any structure erected for this use that is not clearly permanent in nature shall be disassembled during seasons when products are not offered for sale.

E. Signs. See Part 7.

F. No stand shall be located closer than: 50 feet from a lot line of an existing dwelling, 25 feet from any other lot line or 100 feet from the closest intersecting point of street rights-of-way at a street intersection, unless the sales occur within a dwelling or barn that existed prior to the

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adoption of this chapter.

G. The use may occur within an existing dwelling, a barn, or a separate stand. Any stand shall be maintained in good condition.

H. The retail sales shall be located on land owned by the operator of the market or farm stand or upon a tract of five acres or more which the operator of the market actively farms.

I. The applicant shall prove to the Township that the driveway has adequate sight distance, based upon the PennDOT standards that would apply to a normal commercial establishment along a state road, regardless of whether a PennDOT permit would be needed.

61. School, Primary and Secondary/Post-Secondary.

A. Minimum lot area: two acres in a residential district. In any other district, the use shall meet the standard minimum lot area requirement for that district.

B. No children's play equipment, basketball courts or illuminated recreation facilities shall be within 50 feet of a residential lot line.

C. The use shall not include a dormitory unless specifically permitted in the district.

62. Solid Waste Disposal Facility. The following shall apply unless otherwise permitted by the Pennsylvania Department of Environmental Protection (PA DEP):

A. All solid waste storage, disposal, incineration, or processing shall be at least 200 feet from the following: public street right-of-way, exterior lot line, 100-year floodplain, edge of a surface water body (including a water filled quarry), or wetland of more than 1/2 acre in area.

B. All solid waste storage, disposal, incineration, or processing shall be a minimum of 500 feet from any residential district, designated watercourse, publicly owned park, or any existing dwelling that the applicant does not have an agreement to purchase.

C. The use shall be served by a minimum of two paved access roads, each with a minimum cartway width of 24 feet. One of these roads may be restricted to use by emergency vehicles.

D. No burning or incineration shall occur, except within an approved waste to energy facility.

E. The operation and day-to-day maintenance of the solid waste disposal area shall comply with all applicable state and federal regulations as a condition of the continuance of any permit of the Township.

F. Open dumps and open burning of refuse are prohibited.

G. The applicant shall prove to the satisfaction of the Township that the existing street network can handle the additional truck traffic, especially without bringing extraordinary numbers of trash hauling trucks through or alongside existing residential or residentially zoned areas and especially considering the width and slopes of streets in the Township.

H. The applicant shall prove to the satisfaction of the Township that the use would not routinely create noxious odors off of the tract.

I. The Township shall require fencing, earth berms, evergreen screening, and/or shade trees as needed and shall be used to prevent landfill operations from being visible from an expressway or arterial streets or dwellings.

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J. A minimum lot area of 15 acres shall be required for the first 250 tons per day of capacity to treat or dispose of waste, plus one acre for each additional 100 tons per day of capacity. A solid waste facility shall have a maximum total capacity of 500 tons per day.

K. Health Hazards. Any facility shall be operated in such a manner to prevent the attraction, harborage or breeding of insects, rodents, or vectors.

L. Attendant. An attendant shall be present during all periods of operation or dumping.

M. Gates. Secure gates, fences, earth mounds, and/or dense vegetation shall prevent unauthorized access.

N. Emergency Access. The operator of the use shall cooperate fully with local emergency services. This should include allowing practice exercises on the site and the provision of all information needed by the emergency services to determine potential hazards. Adequate means of emergency access shall be provided.

O. Under authority granted to the Township under PA Act 101 of 1988,[74] the hours of operation shall be limited to between 7:00 a.m. and 9:00 p.m.

P. Tires. See "outdoor storage and display."

Q. Litter. The operator shall regularly police the area of the facility and surrounding streets to collect litter that may escape from the facility or trucks.

R. Dangerous Materials. No radioactive, hazardous, chemotherapeutic, or infectious materials may be stored, processed, disposed, or incinerated. Infectious materials are defined as medical wastes used or created in the treatment of persons or animals with seriously contagious diseases.

S. The applicant shall provide sufficient information for the Township to determine that the requirements of this chapter, as amended, will be met.

T. State Requirements. Nothing in this chapter, as amended, is intended to supersede any state requirements. It is the intent of this chapter, as amended, that when similar issues are regulated on both the Township and state levels, that the stricter requirement shall apply for each aspect, unless it is determined that an individual state regulation preempts Township regulation in a particular aspect. The applicant shall provide the Township with a copy of all written materials and plans that are submitted to PA DEP at the same time as they are submitted to DEP.

U. For a solid-waste-to-energy facility or solid waste transfer facility, all loading and unloading of solid waste shall only occur within an enclosed building, and over an impervious surface that drains to a holding tank that is then adequately treated. All solid waste processing and storage shall occur within enclosed buildings or enclosed containers.

63. Stable, Commercial (includes riding academies; see also "Pets, Keeping of").

A. Minimum lot area: two acres for the first horse or similar animal, plus one acre for each additional horse or similar animal.

B. Any horse barn, manure storage areas, or stable shall be a minimum of 100 feet from any lot line of an existing adjacent dwelling.

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74. Editor's Note: See 53 P.S. § 4000.101 et seq.

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C. Manure shall be regularly collected and disposed of in a sanitary manner that avoids nuisances to neighbors. Manure shall be stored in a manner that prevents it from being carried off by runoff into a watercourse. Manure shall not be stored within 100 feet of a watercourse.

64. Stable, Household. See "Pets, Keeping of" in this section.

65. Swimming Pool or Bodies of Water, Accessory. (Referred hereafter as "pool.")

A. See the requirements of the Construction Code [Ordinance 98, as amended] regarding fencing of pools. In the event such Construction Code Ordinance 98, as amended] does not result in a fence being required, then this chapter, as amended, provision shall apply manmade depression of land capable of holding water, or manmade container intended to hold water of a depth equal to or greater than 24 inches shall include a fence, wall, above-ground pool walls or similar enclosure surrounding the pool. Such enclosure shall extend not less than four feet above the ground. All gates shall be self-closing and self-latching, with latches placed at least four feet above the ground.

B. No such depression or container shall be located in a minimum front yard. The water surface and any raised decking of a swimming pool shall be set back a minimum of 10 feet from side and rear lot lines.

66. Timber Harvesting.

A. Purposes. To promote management of forests for long-term benefits; promote good forest stewardship; protect adjoining property owners; minimize the potential for adverse environmental impacts; and avoid unreasonable restrictions on forestry.

B. Applicability. Timber harvesting shall be permitted by right in all zoning districts, provided it complies with the requirements of this chapter. This section shall regulate all timber harvesting when the total harvesting area is one acre or greater in a calendar year.

(1) These provisions shall not regulate the following:

(a) Cutting of up to 10% of trees with a trunk diameter of six inches or greater (measured 3.5 feet above the ground level) on a lot in any calendar year, provided such cutting does not involve clear cutting but instead involves routine thinning of woods.

(b) Cutting of trees with a trunk diameter of less than six inches (measured 3.5 feet above the ground level).

(c) Cutting of dead trees.

(d) Cutting of trees that the applicant proves to the Township is necessary to accommodate a Township-approved subdivision, land development, street, driveway, building, utility or use.

C. Application Requirements. An application for timber harvesting shall be made a minimum of 10 days prior to the start of work. No forestry shall occur until a permit has been issued by the Township.

(1) The application shall include a written timbering plan, which shall be prepared by a qualified professional. The provisions of the plan shall be followed throughout the operation. The plan shall be available for inspection at the harvest site at all times during the operation.

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(2) The landowner, the applicant and the timber operator shall be jointly and separately responsible for complying with the terms of the timber harvesting plan and permit.

(3) The applicant shall specify, in writing, the land on which harvesting will occur, the expected size of the harvest area, and the anticipated starting and completion date of the operation.

(4) The timber harvesting plan shall include, at a minimum, the following information:

(a) A narrative of proposed cutting practices and/or stand prescription(s) for each stand in the proposed harvest area and the construction, maintenance, and retirement of the access system, including haul roads, skid roads, skid trails and landings.

(b) An erosion and sedimentation control plan approved by the County Conservation District if over one acre will be disturbed.

(c) All timbering activities shall use "best management practices" which shall be shown on the plan.

(d) A narrative of all waterbodies and road crossings, including required permits from the appropriate agency.

(e) All Township and/or PennDOT highway occupancy permits, if applicable.

(f) An application shall be submitted to the Township, with a map showing waterways, drainageways, approximate wetlands, lakes, roads, entirety of the lot which the proposed harvest area is located on, lot lines, and proposed harvest areas.

D. Timber Harvesting Practices.

(1) Timber harvesting is prohibited within 100 feet of the top of the bank on each side of all perennial waterways, except this distance may be reduced to 50 feet if all of the following conditions are met:

(a) The basal area of trees in that area within the 100-foot setback shall not be reduced below 50% of the basal area present before cutting.

(b) Trees to be cut within the 100-foot zone described shall be marked with paint or ribbons prior to the start of timber harvesting.

(c) All earthmoving within this area shall be minimized or fully avoided.

(2) No tops or slash shall be left within a stream channel or floodway. Unless fully delineated, a floodway shall be assumed to be all that area within 50 feet from the center of a waterway.

67. Townhouses and Apartments.

A. Maximum length and width of an attached grouping of townhouses: 180 feet. With the exception of TD-6, maximum number of apartments that shall be within a building: 12, except no maximum shall apply in a building in which all units are permanently age restricted to at least one resident age 55 and older or persons with physical disabilities. Within TD-6, see § 27-306, Subsection 6, TD-6.

B. Paved Area Setback. All off-street parking spaces, except spaces on driveways immediately in

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front of a carport or garage entrance, shall be set back a minimum of 10 feet from any dwelling.

C. Garages. It is strongly recommended that all townhouses be designed so that garages and/or carports are not an overly prominent part of the view from public streets. For this reason, parking courts, common garage or carport structures or garages at the rear of dwellings are encouraged instead of individual garages opening onto the front of the building, especially for narrow townhouse units.

D. Mailboxes. Any mailboxes provided within the street right-of-way should be clustered together in an orderly and attractive arrangement or structure. Individual freestanding mailboxes of noncoordinated types at the curbside are specifically discouraged.

E. Access. Vehicular access points onto all arterial and collector streets shall be minimized to the lowest reasonable number. No townhouse dwelling within a tract of five or more dwelling units shall have its own driveway entering onto an arterial or collector street.

F. Common Open Space. If a lot includes more than two acres, then a minimum of 20% of the total lot area of the development involving townhouses and apartments and their accessory uses shall be set aside as common open space for the residents. The applicant shall prove that these areas will be suitable for active or passive recreation.

(1) If a development includes over 30 dwelling units that will not be restricted to at least one resident age 55 and older, then the common open space shall at a minimum include a rectangular grass field 50 feet by 150 feet that is suitable for free play by young persons. If all dwellings in a development will be restricted to at least one resident age 55 and older, then the common open space shall at a minimum include landscaped trails that are ADA accessible.

(2) A recreation building or pool available to all residents of the development may count towards the open space requirement. Areas with a width of less than 50 feet shall not count towards this requirement. This requirement shall be in place of any requirement for recreation land or fees under the Subdivision and Land Development Ordinance [Chapter 22A].

G. Buffer Yard. A 20-foot-wide buffer yard with screening shall be required, as described in § 27-803, Subsection 4, between any townhouse or garden apartment and any abutting existing single-family detached dwelling that is within 125 feet of the proposed garden apartment or townhouse building. The buffer yard shall be the responsibility of the developer of the townhouses or apartments.

H. Accessory Uses and Structures, The developer of new principal buildings is strongly requested to establish deed restrictions controlling the types and materials of attached decks, fences and accessory structures that may be added or constructed in the future.

I. Homeowner's and/or Condominium Agreements. It is strongly recommended that any such agreement include restrictions requiring any fencing or garages to be compatible with the overall design.

J. Water and Sewer. Public water and public sewer service shall be a requirement for any townhouse or apartment.

K. All dumpsters and/or waste collection areas shall be located, at minimum, 50 feet from the nearest residential unit and shall be enclosed by a solid masonry screen of at least six in height.

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L. Principal Building Separation. All principal buildings shall be separated from any other principal building by a minimum of 30 feet and a minimum average of 40 feet. A building may include multiple dwelling units.

M. Architectural Renderings Required. Architectural renderings shall be required of the front facades of any apartments.

68. Unit for Care of Relative.

A. The accessory unit shall be occupied by a maximum of two persons, who shall be "relatives" of the permanent residents of the principal dwelling unit. At least one resident of the accessory unit shall need such accommodations because of an illness, aging, or disability.

B. The applicant shall prove to the Township that the accessory unit has been designed and constructed so that it can be easily reconverted into part of the principal dwelling unit or is a modular cottage that will be completely removed from the lot after the relative no longer resides within the unit. Such accessory unit may be converted into an additional bedroom(s), permitted home occupation area or similar use. A lawful detached garage may be converted into a unit for care of relative, and then be reconverted to a garage or permitted home occupation area.

C. The applicant shall establish a legally binding mechanism in a form acceptable to the Township that will prohibit the use of the accessory unit as a separate dwelling unit after the relative no longer resides within the unit. Such mechanism shall also be binding upon future owners.

D. The owner of the property shall be required to annually renew the permit for the use. Such renewal shall be conditioned upon the owner proving that a relative of the occupants of the principal dwelling unit continues to reside within the accessory unit.

E. Such accessory unit shall not decrease the one-family residential appearance of a one-family dwelling, as viewed from exterior lot lines. The accessory unit shall be attached to the principal dwelling unit, except a detached dwelling may be specifically approved by the Township as a special exception. If a detached modular dwelling is placed on the property, it shall be completely removed within 90 days after the relative no longer lives within it. A detached accessory dwelling unit shall only be placed on the lot if it meets principal building setbacks and has a maximum total floor area of 900 square feet.

F. Additional parking for the accessory unit is not required if the applicant proves that the resident(s) of the accessory unit will not routinely operate a vehicle.

G. Any on-lot septic system shall be re-certified if the sewage flows will increase.

H. Such unit is not required to meet the minimum floor area for a dwelling unit when it is within a residential district and within 500 feet of an existing dwelling.

69. Warehouses.

A. Conventional Warehouse.

(1) Minimum Queue Length. Provide a queue length that accommodates at least eight trucks or 1.34 trucks per 100,000 square feet of warehouse space, whichever is greater. Use 85 feet per truck to determine the total queue length.

(2) Minimum Rest Parking Spots. Provide at least two rest parking spots outside of secured (fenced or gated) areas.

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B. High-Cube Transload and Short-Term Storage Warehouse.

(1) Minimum Queue Length. Provide a queue length based on a minimum of 12 trucks or 1.5 trucks per 100,000 square feet of warehouse space, whichever is greater. Use 85 feet per truck for calculation.

(2) Minimum Rest Parking Spots. Provide a minimum of four rest parking spots outside of secured areas. Adjust based on specific formulas if available.

C. High-Cube Cold-Storage Warehouse.

(1) Minimum Queue Length. Provide a queue length that accommodates at least 10 trucks or 1.5 trucks per 100,000 square feet of warehouse space, whichever is greater. Use 85 feet per truck to determine the total queue length.

(2) Minimum Rest Parking Spots. Provide at least three rest parking spots outside of secured areas. Adjust based on specific formulas if available.

D. High-Cube Parcel Hub.

(1) Minimum Queue Length. Provide a queue length for a minimum of 15 trucks or two trucks per 100,000 square feet of warehouse space, whichever is greater. Use 85 feet per truck to determine the total queue length.

(2) Minimum Rest Parking Spots. Provide a minimum of six rest parking spots outside of secured areas. Incorporate any available formulas for additional precision.

E. High-Cube Fulfillment Center (Sort).

(1) Minimum Queue Length. Provide a queue length for a minimum of 12 trucks or 1.5 trucks per 100,000 square feet of warehouse space, whichever is greater. Use 85 feet per truck to determine the total queue length.

(2) Minimum Rest Parking Spots. Provide a minimum of four rest parking spots outside of secured areas. Incorporate any available formulas for additional precision.

F. High-Cube Fulfillment Center (Non-Sort).

(1) Minimum Queue Length. Provide a queue length for a minimum of 15 trucks or two trucks per 100,000 square feet of warehouse space, whichever is greater. Use 85 feet per truck to determine the total queue length.

(2) Minimum Rest Parking Spots. Provide a minimum of six rest parking spots outside of secured areas. Incorporate any available formulas for additional precision.

G. Additional Criteria for All Warehouse Types.

(1) Special Dimensional Requirements for Warehouses.

(a) The maximum building height shall be 44 feet.

(b) The total maximum building coverage shall be 44%.

(c) The total maximum impervious coverage shall be 55%.

(d) Where the footprint of the proposed principal warehouse structure is greater than

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100,000 square feet:

1) The minimum lot area shall be 10 acres.

2) All access points shall be a minimum of 250 feet from any dwelling.

3) All drive aisles, loading/unloading areas, and parking areas intended for use by tractor trailers as well as outdoor storage areas shall be a minimum of 250 feet from any dwelling.

(2) Buffer Yards.

(a) A 100-foot-wide buffer yard shall be provided along the entire length of the street frontage of any property upon which a warehouse is located. Further, a 100-foot-wide buffer yard shall be provided along any property line which abuts a residential or agricultural zoning district or an existing residential use.

(b) The buffer yard shall be measured from the property line or street right-of-way line. Where a lot line drainage or utility easement is required, the buffer yard shall be measured from the inside edge of the easement.

(c) The buffer yard shall be a landscaped area free of roads, sidewalks, driveways, parking lots, storage, buildings, and structures of any kind, except for emergency access roads or pathways and/or sidewalks as may be required by Township ordinances or fire or safety regulations and/or as may be required and/or approved by the Board of Supervisors.

(d) The buffer yard shall be landscaped with evergreen trees, deciduous trees, flowering trees, and shrubs of types resistant to diesel exhaust.

(e) All areas of the buffer yard not covered with plantings shall be covered by a well-maintained, all-season vegetative ground cover, such as grass.

(f) Earthen berms shall be constructed within buffer yards in accordance with Berm requirements, herein.

(g) Minimum planting requirements in buffer yards:

1) Trees and shrubs shall be planted in the following minimum quantities per 100 lineal feet of buffer yard, as measured parallel to the buffer yard.

a) 10 evergreen trees.

b) Five deciduous trees.

c) Three flowering trees.

d) 10 shrubs.

2) This landscaping shall be provided in addition to any landscaping required by other Township regulations.

3) Plantings shall be arranged so as to provide a complete visual screen of the waterhouse of at least 14 feet in height (measured in addition to the height of the berm) within three years.

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4) The plantings shall be arranged on the outside (nonwarehouse side) and top of the berm.

5) Evergreen trees shall have a minimum height of eight feet. Deciduous trees shall have a minimum trunk caliper of two inches measured three feet above the top of the root ball and a minimum height of 12 feet. Flowering trees shall have a minimum height of seven feet. Shrubs shall have a minimum height of 30 inches. Minimum heights shall be as measured from finished grade at the time of planting.

(3) Berm Requirements.

(a) A raised earthen berm shall be constructed along the entire length of the street frontage of any property upon which a warehouse is located. Further, a berm shall be constructed along any property line which abuts a residential or agricultural zoning district or an existing residential use.

(b) The berm shall have a minimum average height of 14 feet measured above existing grade on the outside (nonwarehouse side) of the berm. The berm shall not have a completely continuous height but shall vary in height by one or two feet along the length of the berm.

(c) The berm shall have a maximum side slope of three feet horizontal to one foot vertical.

(d) The berm shall have a minimum top width of 10 feet.

(4) The site shall have driver amenities in each building, including showers, food services, sleeping areas, and entertainment and waiting areas. At least one of each amenity shall be provided for every 25 truck loading/unloading docks/doorways of the use. The size of each such amenity shall be proportionate to the number of loading/unloading docks/doorways, with a minimum area to accommodate six seats and one four-person table.

(5) Mechanical scraper systems shall be installed at each truck exit drive for the purpose of removing snow, slush, and ice from trailer and truck rooftops. During winter months, all trucks must pass under these mechanical scrapers prior to exiting the warehouse facility.

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Part 5
ENVIRONMENTAL PROTECTION

§ 27-501. Erosion Control. [Ord. No. 199, 1/15/2025]

1. The landowner, person and/or entity performing any earth disturbance shall utilize sufficient measures to prevent soil erosion and sedimentation of streams and creeks.

   A. The disturbed land area and the duration of exposure shall be kept to a practical minimum.

   B. Except for agricultural activities, any earth disturbance over 5,000 square feet of land area shall require the submission of an adequate erosion and sedimentation control plan to the County Conservation District.

   C. See Pennsylvania erosion control regulations (25 Pa. Code Chapter 102).

§ 27-502. Nuisances and Hazards to Public Safety. [Ord. No. 199, 1/15/2025]

1. No landowner, tenant nor lessee shall use or allow to be used any land or structures in a way that results or threatens to result in any of the following conditions:

   A. Transmission of communicable disease, including conditions that may encourage the breeding of insects or rodents.

   B. A physical hazard to the public, or a physical hazard that could be an attractive nuisance that would be accessible by children.

   C. Pollution to groundwaters or surface waters, other than as authorized by a state or federal permit.

   D. Risks to public health and safety, such as but not limited to unpermitted explosion, fire and biological hazards.

   E. Interference with the reasonable use and enjoyment of property by a neighboring landowner of ordinary sensitivities.

2. Additional Information. If the Zoning Officer has reason to believe that the proposed use may have difficulty complying with the standards of this Part, then the Zoning Officer may require an applicant to provide written descriptions of proposed machinery, hazardous substances, operations and safeguards.

3. For any industrial land use development greater than two acres, pre- and post-development groundwater well testing shall be required.

§ 27-503. Wetlands. [Ord. No. 199, 1/15/2025]

See § 27-308.

§ 27-504. FP Floodplain District (Flood-Prone Areas). [Ord. No. 199, 1/15/2025]

1. Purposes. The Legislature of the Commonwealth of Pennsylvania has, by the passage of the Pennsylvania Floodplain Management Act of 1978, 32 P.S. § 679.101 et seq., delegated the responsibility to local governmental units to adopt floodplain management regulations to promote public health, safety, and the general welfare of its citizenry. The FP District is an overlay district to

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the underlying zoning districts. The FP District includes areas that have been identified by the federal government and the Township as being subject to periodic inundation by floodwaters. This inundation needs to be managed to avoid loss of life and property, health and safety hazards, disruption of commerce and governmental services, extraordinary public expenditures for flood protection and relief, impairment of tax base, and other adverse effects on the public health, safety, and general welfare. The FP District is intended to manage development and alteration of floodplain areas to avoid incompatible or dangerous development. In addition to serving the purposes listed in Part 1, this section is intended to:

A. Promote the general health, welfare, and safety of the community.

B. Encourage the utilization of appropriate construction practices in order to prevent or minimize flood damage in the future.

C. To prevent the erection of structures in areas with a known danger from flooding.

D. Minimize danger to public health by protecting water supply and natural drainage.

E. Control development which, alone or in combination with similar development, could create burdens on the community, governments, emergency service providers and individuals for the costs of flood control works, rescue, relief, emergency preparedness measures, sandbagging, pumping, and temporary dikes or levees, as well as business interruptions, factory closings, disruptions of transportation routes, and interference with utility services, as well as other factors that result in loss of wages, sales, and production and generally adversely affect the economic well-being of the community.

F. Comply with federal and state floodplain management requirements.

G. To maintain a stable tax base that is not threatened by the destruction of properties.

H. To permit certain uses which can appropriately be located in the floodplain as herein defined without impeding the flow of floodwaters or otherwise causing danger or damage to life or property at, above, or below their locations in the floodplain.

I. To permit certain uses in the floodplain in ways that preserve natural conditions conducive to the maintenance of ecological balance, wildlife and productive wildlife habitat, marine life and productive marine habitat, other healthy biotic systems, scenic and natural values, constant rates of water flow throughout the year, and areas for groundwater absorption for sustaining the subsurface water supply.

J. To provide sufficient unimpeded drainage courses and prohibit the restriction of their carrying capacities so as to safely carry abnormal flows of stormwater from periods of heavy precipitation.

K. To prevent the placement of materials which might be swept by floods onto other lands or downstream to the injury of others.

L. To provide for public awareness of flooding potential and to discourage and protect unwary individuals from buying land and structures which are unsuited for intended purposes because of flood hazards.

M. To regulate uses, activities, development, and structures which, acting alone or in combination with existing or future uses, activities, development, or structures, will cause increases in flood

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elevations, velocities, and frequencies.

N. To provide areas for the deposition of sediment.

O. To protect people and property in other municipalities within the same watershed from the impact of improper development in floodplains and the consequent increased potential for flooding.

2. Relationship to Other Parts and Sections. The provisions of this section create an overlay zoning district which is applicable within floodplains in all other zoning districts established by this chapter. If any provisions of this section conflict with other parts and sections of this chapter, and all other ordinances of the Township, then the more restrictive condition shall apply. However, no other part and section of this chapter, as amended, and of other ordinances of the Township shall supersede the intent of this section to limit all activity in the FP District such that no activity will cause any increase in flood elevations, velocities, and frequencies.

3. Applicability.

A. It shall be unlawful for any person, partnership, business or corporation to undertake, or cause to be undertaken, any construction or development anywhere within the FP District of the Township unless a permit has been obtained from the Floodplain Administrator.

B. A permit shall not be required for minor repairs to existing buildings or structures.

4. Abrogation and Greater Restrictions. This section supersedes any other conflicting provisions which may be in effect in identified floodplain areas. However, any other provisions of other ordinances shall remain in full force and effect to the extent that those provisions are more restrictive. If there is any conflict between any of the provisions of this section, the more restrictive shall apply.

5. Warning and Disclaimer of Liability.

A. The degree of flood protection sought by the provisions of this section is considered reasonable for regulatory purposes and is based on accepted engineering methods of study. Larger floods may occur or flood elevations may be increased by man-made or natural causes, such as, but not limited to, ice jams and bridge openings restricted by debris. This section does not imply that areas outside any identified floodplain areas, or that land uses permitted within such areas will be free from flooding or flood damages.

B. This section shall not create liability on the part of the Township or any officer or employee thereof for any flood damages that result from reliance on this section or any administrative decision lawfully made thereunder.

6. Administration.

A. Designation of the Floodplain Administrator.

(1) The Zoning Officer is hereby appointed to administer and enforce this section and is referred to herein as the Floodplain Administrator. The Floodplain Administrator may: (a) fulfill the duties and responsibilities set forth in these regulations; (b) delegate duties and responsibilities set forth in these regulations to qualified technical personnel, plan examiners, inspectors, and other employees; or (c) enter into a written agreement or written contract with another agency or private sector entity to administer specific provisions of these regulations. Administration of any part of these regulations by another

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entity shall not relieve the community of its responsibilities pursuant to the participation requirements of the National Flood Insurance Program as set forth in the Code of Federal Regulations at 44 CFR § 59.22.

(2) In the absence of a designated Floodplain Administrator, the Floodplain Administrator duties are to be fulfilled by the Township Engineer.

B. Permits Required. Within the FP District, building permits shall be required for all proposed development, construction, reconstruction, placement, replacement, expansion, extension; repair, or other improvement of uses or structures, regardless of value, including the placement of manufactured homes and activities such as mining, dredging, filling, grading, logging, paving, excavation, or drilling operations.

C. Duties and Responsibilities of the Floodplain Administrator.

(1) The Floodplain Administrator shall issue a permit only after it has been determined that the proposed work to be undertaken will be in conformance with the requirements of this and all other applicable codes and ordinances, and upon receipt of a report to be prepared by the Township Engineer.

(2) Prior to the issuance of any permit, the Floodplain Administrator and the Township Engineer shall review the permit application to determine if all other necessary government permits required by state and federal laws have been obtained, such as those required by the Pennsylvania Sewage Facilities Act, 35 P.S. § 750.1 et seq.; the Pennsylvania Dam Safety and Encroachments Act 32 P.S. § 693.1 et seq.; the Pennsylvania Clean Streams Act, 35 P.S. § 691.1 et seq.; and the U.S. Clean Water Act, § 404, 33 U.S.C. § 1344. No permit shall be issued until this determination has been made.

(3) In the case of existing structures, prior to the issuance of any development/permit, the Floodplain Administrator shall review the history of repairs to the subject building, so that any repetitive loss issues can be addressed before the permit is issued.

(4) During the construction period, the Floodplain Administrator or other authorized official shall inspect the premises to determine that the work is progressing in compliance with the information provided on the permit application and with all applicable municipal laws and ordinances. He/she shall make as many inspections during and upon completion of the work as are necessary.

(5) In the discharge of his/her duties, the Floodplain Administrator shall have the authority to enter any building, structure, premises or development in the identified floodplain area, upon presentation of proper credentials, at any reasonable hour to enforce the provisions of this section.

(6) In the event the Floodplain Administrator discovers that the work does not comply with the permit application or any applicable laws and ordinances, or that there has been a false statement or misrepresentation by any applicant, the Floodplain Administrator shall revoke the permit and report such fact to the Board of Supervisors for whatever action it considers necessary.

(7) The Floodplain Administrator shall maintain in perpetuity all records associated with the requirements of this section, including, but not limited to, finished construction elevation data, permitting, inspection and enforcement.

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(8) The Floodplain Administrator is the official responsible for submitting a biennial report to the FEMA concerning community participation in the National Flood Insurance Program.

(9) The responsibility, authority and means to implement the commitments of the Floodplain Administrator can be delegated from the person identified. However, the ultimate responsibility lies with the person identified in this section as the Floodplain Administrator.

(10) The Floodplain Administrator shall consider the requirements of 34 Pa. Code and the 2015 IBC and the 2015 IRC or latest revisions thereof the Township has adopted.

D. Application Procedures and Requirements.

(1) Every zoning permit application for work or uses within the Floodplain District shall include or be accompanied by all information necessary for the Zoning Officer to determine that the proposal meets all of the provisions of this section and this chapter.

(2) Application for such a permit shall be made, in writing, to the Floodplain Administrator on forms supplied by the Township. Such application shall contain the following:

(a) Name and address of applicant.

(b) Name and address of owner of land on which proposed construction is to occur.

(c) Name and address of contractor.

(d) Site location including address.

(e) Listing of other permits required.

(f) Brief description of proposed work and estimated cost, including a breakout of flood-related cost and the market value of the building before the flood damage occurred where appropriate.

(g) A plan of the site showing the exact size and location of the proposed construction as well as any existing buildings or structures.

(h) State whether or not the structure includes a basement.

(3) If any proposed construction or development is located entirely or partially within any identified floodplain area, applicants for permits shall provide all the necessary information in sufficient detail and clarity to enable the Floodplain Administrator to determine that:

(a) All such proposals are consistent with the need to minimize flood damage and conform with the requirements of this and all other applicable codes and ordinances.

(b) All utilities and facilities, such as sewer, gas, electrical and water systems are located and constructed to minimize or eliminate flood damage.

(c) Adequate drainage is provided so as to reduce exposure to flood hazards.

(d) Structures will be anchored to prevent flotation, collapse, or lateral movement.

(e) Building materials are flood-resistant.

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(f) Appropriate practices that minimize flood damage have been used.

(g) Electrical, heating, ventilation, plumbing, air conditioning equipment, and other service facilities have been designed and located to prevent water entry or accumulation.

(4) Applicants shall file the following minimum information plus any other pertinent information as may be required by the Floodplain Administrator to make the above determination.

(a) A completed permit application form.

(b) A copy of all plans and applications for proposed construction or other improvements within the FP District to be considered for approval may be submitted by the Zoning Officer to any other appropriate agencies and/or individuals for review and comment.

(c) A plan of the entire site, clearly and legibly drawn at a scale of one inch being equal to 100 feet or less, showing the following:

1) North arrow, scale, and date.

2) Topographic contour lines, if available.

3) All property and lot lines including dimensions, and the size of the site expressed in acres or square feet.

4) The location of all existing and proposed buildings, structures, and other improvements, including the location of any existing or proposed subdivision and development.

5) The location of all existing streets, drives, and other access ways.

6) The location of any existing bodies of water or watercourses, identified floodplain areas, and, if available, information pertaining to the floodway, and the flow of water including direction and velocities.

(d) Plans of all proposed buildings, structures and other improvements, drawn at suitable scale showing the following:

1) The proposed lowest floor elevation of any proposed building based upon North American Vertical Datum of 1988.

2) The elevation of the base flood.

3) If the structure has been flood-proofed, the elevation (in relation to mean sea level) to which the structure was flood-proofed.

4) Supplemental information as may be necessary under 34 Pa. Code, the 2015 IBC or the 2015 IRC.

(e) The following data and documentation:

1) Certification from the applicant that the site upon which the activity or development is proposed is an existing separate and single parcel, owned by the applicant or the client he represents.

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2) If available, information concerning flood depths, pressures, velocities, impact and uplift forces and other factors associated with a base flood.

3) Detailed information concerning any proposed floodproofing measures and corresponding elevations.

4) Documentation, certified by a registered professional engineer, architect, or landscape architect, to show that the cumulative effect of any proposed development within any identified floodplain area (see § 27-504, Subsection 7), when combined with all other existing and anticipated development, will not cause any increase in the base flood elevation.

5) Documentation, certified by a registered professional engineer, architect, or landscape architect, which states that the proposed construction or development has been adequately designed to withstand the pressures, velocities, impact and uplift forces associated with the base flood. Such statement shall include: a description of the type and extent of floodproofing measures which have been incorporated into the design of the structure and/or the development, a certification that they meet the provisions this section; and a certification the floodproofing measures are adequate to withstand the flood depths, pressures, velocities, impact, uplift forces, and other factors associated with the base flood, and indicating the specific elevation (in relation to mean sea level) to which such structure is flood-proofed.

6) Documentation, certified by a registered professional engineer, architect, or landscape architect, which contains a complete and accurate description of the nature and extent of pollution that might possibly occur from the development during the course of a base flood, including a statement concerning the effects such pollution may have on human life, and provides detailed information needed to determine compliance, including:

   a) The amount, location and purpose of any materials or substances referred to in Subsection 8B(14) which are intended to be used, produced, stored or otherwise maintained on site.

   b) A description of the safeguards incorporated into the design of the proposed structure to prevent leaks or spills of the dangerous materials or substances listed in Subsection 8B(14) during a base flood.

7) Documentation, certified by a registered professional engineer, architect, or landscape architect, which contains a complete and accurate description of the kinds and amounts of any loose buoyant materials or debris that may possibly exist or be located on the site below the base flood elevation and the effects such materials and debris may have on base flood elevations and flows.

8) The appropriate component of the Department of Environmental Protection's "Planning Module for Land Development."

9) Where any excavation or grading is proposed, a plan meeting the requirements of the Department of Environmental Protection, to implement and maintain erosion and sedimentation control.

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(5) Applications for permits shall be accompanied by a fee, payable to the Township, prescribed, and from time to time revised, by resolution of the Township Board of Supervisors; said fee shall be based upon actual costs incurred by the Township for engineering, legal, and administrative services rendered by the Township Engineer, Solicitor, Floodplain Administrator, and other Township personnel in the course of review and approval of plans and applications and during the course of development and field inspection.

E. Regulations and Reviews by Others.

(1) A copy of all plans and applications for any proposed construction or development in any identified floodplain area to be considered for approval may be submitted by the Floodplain Administrator or Township Engineer to any other appropriate agencies and/or individuals (e.g., planning commission, conservation district, etc.) for review and comment.

(2) Where applicable and where possible, all necessary permits or other written approvals will be obtained from all other agencies before any approvals of plans, special exceptions, variances, or permits may be granted by the Township or its agencies, officials, or employees.

(3) Where necessary, permits or written approvals from other agencies cannot be obtained prior to action by the Township, any approval of plans, special exceptions, variances, or permits by the Township or its agencies, officials, or employees shall be conditioned upon receiving such other agencies' permits or written approvals.

F. Changes. After the issuance of a permit by the Floodplain Administrator, no changes of any kind shall be made to the application, permit or any of the plans, specifications or other documents submitted with the application without the written consent or approval of the Floodplain Administrator and the Township Engineer. Requests for any such change shall be in writing and shall be submitted by the applicant to Floodplain Administrator and the Township Engineer for consideration.

G. Placards. In addition to the permit, the Floodplain Administrator shall issue a placard which shall be displayed on the premises during the time construction is in progress. This placard shall show the number of the permit, the date of its issuance, and be signed by the Floodplain Administrator.

H. Start of Construction and Time Extensions. Work on the proposed construction or development shall begin and be completed within the time frames defined, "start of construction." Time extensions shall be granted only if a written request is submitted by the applicant, which sets forth sufficient and reasonable cause for the Floodplain Administrator to approve such a request and the original permit is compliant with the section and FIRM/FIS in effect at the time the extension is granted. Time extensions requested for projects started prior to issuance of a permit will be given additional scrutiny.

I. Enforcement, Violations and Penalties. All of the enforcement, violations and penalty provisions of this chapter, as amended, shall apply to the administration of this section.

J. Appeals. Any person aggrieved by any action or decision of the Floodplain Administrator concerning the administration of the provisions of this section may appeal to the Zoning Hearing Board pursuant to the provisions of

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7. Identification of Floodplain Areas.

A. Identification. The identified floodplain area shall be:

(1) Any areas of the Township, classified as special flood hazard areas (SFHAs) in the Flood Insurance Study (FIS) and the accompanying Flood Insurance Rate Maps (FIRMs) dated July 16, 2014, and issued by the Federal Emergency Management Agency (FEMA) or the most recent revision thereof; including all digital data developed as part of the Flood Insurance Study.

(2) Any community identified flood hazard areas. The above-referenced FIS and FIRMs, and any subsequent revisions and amendments are hereby adopted by the Township and declared to be a part of this section.

B. Description and Special Requirements of Identified Floodplain Areas. The FP District is hereby defined to include all of the following specific sub-areas within the Township:

(1) The AE Area without floodway shall be those areas identified as Zone AE on the FIRM included in the FIS prepared by FEMA and for which base flood elevations have been provided in the FIS but no floodway has been delineated.

(a) No permit shall be granted for any construction, development, use, or activity within any AE Area without floodway unless it is demonstrated that the cumulative effect of the proposed development would not, together with all other existing and anticipated development, increase the BFE at any point within the community or adjacent municipalities.

(b) No new construction or development shall be located within the area measured 50 feet landward from the top-of-bank of any watercourse, unless a permit is obtained from the Department of Environmental Protection Regional Office.

(2) The A Area shall be those areas identified as Zone A on the FIRM included in the FIS prepared by FEMA and for which no base flood elevations have been provided. For these areas, elevation and floodway information from other federal, state, or other acceptable source shall be used when available. Where other acceptable information is not available, the elevation shall be determined by using the highest elevation of a point on the boundary of the identified floodplain area which either runs through or is nearest the construction site. In lieu of the above, the Township may require the applicant to determine the elevation with hydrologic and hydraulic engineering techniques. Hydrologic and hydraulic analyses shall be undertaken only by professional engineers, or others of demonstrated qualifications, who shall certify that the technical methods used correctly reflect currently accepted technical concepts. Studies, analyses, computations, etc., shall be submitted in sufficient detail to allow a thorough technical review by the Township.

(3) Community identified flood hazard areas shall be those areas where the Township has identified local flood hazard or ponding areas, as delineated and adopted on a "Local Flood Hazard Map" using best available topographic data and locally derived information such as flood of record, historic high water marks, soils or approximate study methodologies.

C. Changes in Identification of Area. The identified floodplain area may be revised or modified by the Board of Supervisors where studies or information provided by a qualified agency or person documents the need for such revision. However, prior to any such change to the special flood

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hazard area, approval must be obtained from FEMA. Additionally, as soon as practicable, but not later than six months after the date such information becomes available, the Township shall notify FEMA of the changes to the Special Flood Hazard Area by submitting technical or scientific data.

D. Boundary Disputes. Should a dispute concerning any identified floodplain boundary arise, an initial determination shall be made by the Floodplain Administrator and any party aggrieved by this decision or determination may appeal to the Zoning Hearing Board. The burden of proof shall be on the appellant.

E. Jurisdictional Boundary Changes. Prior to development occurring in areas where annexation or other corporate boundary changes are proposed or have occurred, the Township shall review flood hazard data affecting the lands subject to boundary changes. The Township shall adopt and enforce floodplain regulations in areas subject to annexation or corporate boundary changes which meet or exceed those in 44 CFR Part 60.3.

8. Uses.

A. Permitted by Right Uses. The following uses and others are permitted in the FP District, provided they are allowed in the underlying zoning district and provided they do not involve any grading or filling which would cause any increase in flood elevations or frequency, and provided they comply with other sections of this chapter.

(1) Forestry.

(2) Erosion and sedimentation control measures, erosion and sedimentation control facilities, and erosion and sedimentation control structures, provided no increase in flood elevations or frequency, unhealthful ponding, or other unsanitary conditions shall occur.

(3) Public and private recreational uses such as parks, swimming areas (excluding swimming pools), play areas, day camps, campgrounds (excluding camp sites), picnic groves, lawns, gardens, golf courses, driving ranges, archery ranges, game farms, areas or clubs for hunting, fishing, and/or boating (including marker or anchor buoys), paved bicycle paths, and hiking and horseback riding trails, all excluding any structures, and excluding any grading or filling which would cause any increase in flood elevations or frequency.

(4) Crop farming, not including buildings.

(5) Activities related to the preservation of natural amenities, including wildlife sanctuaries, nature preserves, woodland preserves, botanical gardens, or arboreta, excluding any structures, and excluding any grading or filling which would cause any increase in flood elevations or frequency.

(6) Stream improvements whose sole purpose is to improve aquatic life habitat, and which are approved by the Fish and Boat Commission and reviewed by the County Conservation District.

(7) Sign posts, light posts, fences, and temporary protective fences that do not impede floodwaters.

(8) Picnic tables, park benches, fireplaces and grills, and playground equipment, all if anchored to prevent flotation.

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(9) Blinds for the shooting or observation of wildlife, if anchored to prevent flotation.

(10) Farm ponds which are constructed in accordance with a conservation plan reviewed by the County Conservation District and which do not create any increase in flood elevations or frequency.

(11) Floodproofing of lawfully existing nonconforming structures and lawfully existing nonconforming uses within structures.

(12) Public utility facilities (except buildings) under the exclusive jurisdiction of the State Public Utility Commission and specifically exempted from control by this chapter.

(13) Water monitoring devices, docks, piers and boat launching ramps.

(14) Utility lines.

B. Prohibited Uses. The following uses are prohibited in the FP District:

(1) All uses prohibited either expressly or implicitly in the underlying zoning district for the land in question.

(2) All structures and accessory structures, with the exception of those specifically allowed in Subsection 8A(12).

(3) Recreational vehicles and transient commercial enterprise vehicles.

(4) Swimming pools, in-ground and above-ground.

(5) Sanitary landfills, dumps, junk and salvage yards, and outdoor storage of hazardous substances.

(6) Placing, depositing, or dumping any spoil, fill, or solid waste, except such grading or filling necessary to accomplish and carry out those uses permitted in Subsection 8A; provided, however, that no grading or filling is permitted which would cause any increase in flood elevations or frequency.

(7) Grading or filling that could cause any increase in flood elevations or frequency.

(8) Damming or relocation of any watercourse, except as provided for in Subsection 12A.

(9) Fences of a type that could obstruct floodwaters.

(10) Storage of herbicides, pesticides, domestic or industrial waste, radioactive materials, petroleum or other flammable materials, explosives, poisonous materials, hazardous substances, or other materials which, if flooded, would pollute the watercourse or be injurious to human, animal, or plant life.

(11) Cemeteries for humans or animals.

(12) Any development, structure, or use which may, whether alone or in combination with others, and except where specifically authorized elsewhere in this section:

(a) Obstruct, impede, retard, change, or increase the velocity, direction, or flow of floodwaters.

(b) Increase the surface elevation of floods, or the frequency of floods.

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(13) The construction, expansion, or enlargement of any structure or building associated with the following uses:

(a) Hospitals.

(b) Nursing homes.

(c) Jails.

(d) Prisons.

(e) Manufactured homes/manufactured home parks.

(14) Any new structure or building, or any expansion or substantial improvement to an existing structure or building which:

(a) Will be used for the production or storage of any of the following dangerous materials or substances.

(b) Will be used for any activity requiring the maintenance of a supply of more than 550 gallons, or other comparable volume, of any of the following dangerous materials or substances on the premises.

(c) Will involve the production, storage, or use of any amount of radioactive substances.

(d) Shall be subject to the provisions of this section, in addition to all other applicable provisions. The following list of materials and substances are considered dangerous to human life:

1) Acetone.

2) Ammonia.

3) Benzene.

4) Calcium carbide.

5) Carbon disulfide.

6) Celluloid chlorine.

7) Hydrochloric acid.

8) Hydrocyanic acid.

9) Magnesium.

10) Nitric acid and oxides of nitrogen.

11) Petroleum products (gasoline, fuel oil, etc.).

12) Phosphorus.

13) Potassium.

14) Sodium.

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15) Sulfur and sulfur products.

16) Pesticides (including insecticides, fungicides, and rodenticides).

17) Radioactive substances, insofar as such substances are not otherwise regulated.

9. Special Exception Uses.

A. Special Exception Uses. The following uses shall need special exception approval if located within the base flood area, however such uses shall not be allowed if they would violate this chapter:

(1) Any allowed parking lot that will include spaces for four or more motor vehicles.

(2) Any allowed commercial or industrial outdoor storage area.

(3) Any allowed solar energy system.

B. Standards and Criteria for Special Exceptions. Where special exception approval is required for a use within the FP District, the Zoning Hearing Board shall also determine that the following standards and criteria have been complied with:

(1) Danger to life and property due to increased flood elevations, velocities, or frequencies caused by encroachments, is minimized.

(2) The danger that floodwaters or materials may be swept onto other lands or downstream to cause injury to others is minimized.

(3) A possibility of disease, contamination, and unsanitary conditions, is minimized and especially that any proposed water supply or sanitation systems are able to prevent these problems.

(4) The susceptibility of the proposed facility and its contents to flood damage, the effect of such damage on the individual owners, and the need for and effect of floodproofing, are minimized.

(5) The proposed facility and its services are important to the community.

(6) There are no available alternate locations not subject to flooding for the proposed use.

(7) The proposed use is compatible with existing and anticipated development.

(8) The proposed use is consistent with any floodplain management program for the area.

(9) The safety of access to the property in times of flooding for ordinary and emergency vehicles is assured.

(10) The expected area, elevation, depth, velocity, pressure, frequency, duration, rate of rise, seasonality, and sediment, debris, and pollutant load of floodwaters expected at the site is not inconsistent with the proposed use.

(11) The proposed activity will not unduly alter natural water flow or water temperature.

(12) Historic sites and structures and high-quality wildlife habitats will not be degraded or destroyed.

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(13) The natural, scenic, and aesthetic values at the proposed site will be conserved.

(14) The danger, damage, and injury to all adjoining properties on both sides of any watercourse, regardless of municipality, is minimized. In this regard, any proposal affecting an adjacent municipality shall be submitted to that municipality's planning commission and governing body for review and comment.

(15) The granting of the special exception will not result in any of the following:

(a) Increases in flood elevations.

(b) Additional threats to public safety.

(c) Extraordinary public expense.

(d) Creation of nuisances.

(e) Conflict with local laws or ordinances.

(16) With any floodway, the following provisions apply:

(a) No new construction or development shall be allowed, unless a permit is obtained from the Department of Environmental Protection, as applicable.

(b) Any new construction, development, use, activity, or encroachment that would cause any increase in flood elevations shall be prohibited.

C. Application Requirements. In hearing and deciding upon special exceptions to be granted or denied under the provisions of this section, the burden of proof shall be on the applicant. The Zoning Hearing Board may require the applicant to submit such plans, specifications, and other information as it may deem necessary to assist it in arriving at a fair and impartial determination. Such required information may include, but is not limited to, the following:

(1) A written request including a completed special exception application form.

(2) A small-scale map showing the vicinity in which the proposed site is located.

(3) Plans clearly and legibly drawn to scale of one inch being equal to 100 feet or less, showing the nature, location, dimensions, and elevations of the lot, existing or proposed structures, fill, storage of materials, Flood-Proofing measures, and the relationship of the above to the location of the channel. Plan shall include a north arrow, scale and date.

(4) A typical valley cross-section showing the channel of the watercourse, elevations of land area adjoining each side of the channel, cross-sectional areas to be occupied by the proposed development, and high-water information.

(5) A plan (surface view) showing elevations or contours of the ground; pertinent structure, fill, or storage elevations; size, location, and spatial arrangement of all proposed and existing structures on the site; location and elevations of streets, water supply facilities, and sanitary facilities; photographs showing existing land uses and vegetation upstream and downstream; soil types; and other pertinent information.

(6) A profile showing the slope of the bottom of the channel or flow line of the watercourse.

(7) Specifications for building construction and materials, floodproofing, filling, dredging,

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grading, channel improvement, storage of material, water supply facilities, and sanitary facilities.

(8) An evacuation plan which fully explains the manner in which the site will be safely evacuated before or during the course of a base flood.

(9) Approval of a special exception does not guarantee a building permit can be granted. If a special exception is granted, a permit shall be obtained in accordance with § 27-104, Subsection 1B.

D. Referrals. In hearing and deciding upon special exceptions to be granted or denied under the provisions of this section, the Zoning Hearing Board shall solicit the comments and recommendations of the Township Planning Commission, and any other experts or authorities it may deem necessary to assist it in arriving at a fair and impartial determination.

E. Conditions of Approval. In granting any special exception, the Zoning Hearing Board may attach such reasonable conditions and safeguards, in addition to those expressed in this chapter, as it may deem necessary to implement the purposes of this chapter.

F. Fees for Special Exceptions. Any fees assessed to an applicant for a special exception, whether for a hearing, a flood study, or any other purpose, shall not exceed those costs directly associated with the particular application.

10. Variances.

A. Variances shall be applied for to the Zoning Hearing Board in accordance with the requirements of this chapter.

B. Variances from the provisions of this section are discouraged. Where, however, a variance is essential, the following requirements of the National Flood Insurance Program must be complied with in addition to all other variance provisions of this chapter, as amended, and the Pennsylvania Municipalities Planning Code, 53 P.S. § 10101 et seq., as amended. In all variance proceedings the burden of proof shall be on the applicant.

C. No variance shall be granted for any construction, development, use, or activity within any identified floodplain area that would, together with all other existing and anticipated development, cause any increase in the BFE at any point in the Township or adjacent municipalities.

D. No variance shall be granted for any of those prohibited uses listed.

(1) Variances shall only be granted upon:

(a) A showing of good and sufficient cause.

(b) A determination that failure to grant the variance would result in exceptional hardship to the applicant.

(c) A determination that the granting of a variance will not result in increased flood elevations, additional threats to public safety, extraordinary public expense, create nuisances, cause fraud on or victimization of the public, or conflict with any other applicable laws, ordinances, or regulations.

(d) A determination that the variance is the minimum necessary, considering the flood

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hazard, to afford relief.

(2) In granting any variance, the Township shall attach whatever reasonable conditions and safeguards it considers necessary in order to protect the public health, safety, and welfare, and to achieve the objectives of this section.

(3) Whenever a variance is granted, the Zoning Hearing Board shall notify the applicant in writing that:

(a) The granting of the variance may result in increased premium rates for flood insurance.

(b) Such variances may increase the risks to life and property.

(4) A complete record of all variance requests and actions, including justifications for granted variances, shall be maintained by the Zoning Hearing Board. In addition, a report of all variances granted during the year shall be included in the annual report to the FEMA.

(5) Notwithstanding any of the above, however, all structures shall be designed and constructed so as to have the capability of resisting the base flood.

11. Nonconforming Uses and Structures in the FP District.

A. Continuation.

(1) All uses or structures lawfully existing in the FP District as of the effective date of this chapter, as amended, that are not in conformity with the provisions of this section shall be deemed nonconforming uses or structures. Such nonconforming uses or structures may be continued, maintained, repaired and floodproofed, except as otherwise provided for in this section. However, such nonconforming uses or structures may at any time be improved to comply with existing Pennsylvania or Township health, sanitary or safety code specifications which are necessary solely to assure safe living conditions.

(2) The provisions of this chapter, as amended, do not require any changes or improvements to be made to lawfully existing structures. However, when an improvement is made to any existing structure, the provisions of this chapter shall apply.

B. Expansion, Modification and Enlargement.

(1) A nonconforming use or structure may not be expanded or modified in any manner which would:

(a) Increase or aggravate flooding or flood hazards.

(b) Causes it to occupy more ground area within the FP District than was occupied by it on the effective date of this section.

(c) No expansion or enlargement of an existing structure shall be allowed within any flood way area that would cause any increase in the elevation of the base flood.

(d) No expansion or enlargement of an existing structure shall be allowed within any floodplain area outside of the floodway that would, together with all other existing and anticipated development, cause any increase in the BFE.

(e) Any modification, expansion or enlargement of any kind to an existing structure, to

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an extent or amount of 50% or more of its market value, shall constitute a substantial improvement and shall be undertaken only in full compliance with the provisions of this section.

(f) Any modification, expansion or enlargement of any kind to an existing structure, to an extent or amount of less than 50% of its market value, shall be elevated and/or floodproofed to the greatest extent possible to a maximum cost of 15% of a construction cost basis. The construction cost basis shall be calculated based on the cost of construction to make the proposed improvements excluding the cost to elevate and/or floodproof. Applicant shall provide documentation of the construction cost basis as required, which the Township may have reviewed by a qualified architect or engineer. The value of self-performed work will be assessed on material and, as applicable, equipment rental cost only.

(g) The above activity shall also address the requirements of the 34 Pa. Code, as amended, and the 2015 IBC and the 2015 IRC or latest revisions thereof the Township has adopted.

(h) Any modification, alteration, expansion or enlargement of any kind that meets the definition of "repetitive loss" shall be undertaken only in full compliance with the provisions of this section.

C. Replacement and Rebuilding.

(1) A nonconforming use or structure may be replaced, repaired or rebuilt if it is damaged or destroyed by any means, including floods, to the extent of less than 50% of its fair market value at the time of its damage or destruction. In such a case, however, the nonconformity of the new use or structure with respect to requirements as expressed in provisions of this chapter, as amended, shall not exceed that of the original use or structure which was damaged or destroyed. Nothing shall be done which would otherwise violate any of the provisions of this section.

(2) A nonconforming use or structure which has been damaged or destroyed by any means, including floods, to the extent of 50% or more of its fair market value at the time of its damage or destruction may not be replaced, restored, repaired, reconstructed, improved, or rebuilt in any way other than in complete conformity and full compliance with this section, and all other ordinances of the Township.

(3) The Zoning Hearing Board may waive, as a variance, the requirements of this section where it is shown that such requirements could not be met on land owned by the appellant or where such requirements would impose undue hardship to the appellant in the efficient operation of the premises. In such a case, the Zoning Hearing Board shall be authorized to grant only the minimum relief necessary, and the least modification possible of the purposes and intents of this section.

(4) The Zoning Officer shall have the initial responsibility of determining the percent of damage or destruction and the fair market value of the damaged or destroyed use or structure at the time of its damage or destruction, and may call on any experts or authorities he may deem necessary to assist him in arriving at a fair and impartial determination. Appeals of the decision of the Zoning Officer may be made to the Zoning Hearing Board.

(5) Notwithstanding Subsections 11A and 11B, any modification, alteration, reconstruction,

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or improvement of any kind which meets the definition of repetitive loss shall be undertaken only in full compliance with all provisions of this section.

D. Historical Structures. The Zoning Hearing Board shall have the right to grant, as a special exception, any deviations of this chapter for any structure listed on the National Register of Historic Places or the Pennsylvania Register of Historic Sites and Landmarks. Any exemption from section requirements will be the minimum necessary to preserve the historic character and design of the structure.

12. Technical Provisions.

A. General.

(1) Applicability. If two provisions of Township regulations address the same matter, the provision that is more restrictive upon development shall apply.

(2) Alteration or Relocation of Watercourse.

(a) No encroachment, alteration, or improvement of any kind shall be made to any watercourse until all adjacent municipalities which may be affected by such action have been notified by the municipality, and until all required permits or approvals have first been obtained from the Department of Environmental Protection.

(b) No encroachment, alteration, or improvement of any kind shall be made to any watercourse unless it can be shown that the activity will not reduce or impede the flood carrying capacity of the watercourse in any way.

(c) In addition, FEMA and the Pennsylvania Department of Community and Economic Development shall be notified prior to any alteration or relocation of any watercourse within the FP District overlay defined by the FEMA Flood Insurance Rate Map.

(3) When a community or applicant proposes to permit the following encroachments:

(a) Any development that causes a rise in the base flood elevations within the floodway.

(b) Alteration or relocation of a stream and/or creek (including, but not limited to, installing culverts and bridges).

(c) The applicant shall (as per 44 CFR Part 65.12):

1) Apply to FEMA for conditional approval of such action prior to permitting the encroachments to occur.

2) Upon receipt of the administrator's conditional approval of map change and prior to approving the proposed encroachments, the applicant shall provide evidence to FEMA of the adoption of floodplain management ordinances incorporating the increased base flood elevations and/or revised floodway reflecting the post-project condition.

3) Upon completion of the proposed encroachments, the applicant shall provide as-built certifications. FEMA will initiate a final map revision upon receipt of such certifications in accordance with 44 CFR Part 67.

(4) Any new construction, development, uses or activities allowed within any identified

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floodplain area shall be undertaken in strict compliance with the provisions contained in this chapter, as amended, and any other applicable codes, ordinances and regulations.

(5) Within any identified floodplain area, no new construction or development shall be located within the area measured 50 feet landward from the top-of-bank of any watercourse, unless a permit is obtained from the Department of Environmental Protection.

(6) All new construction and substantial improvement shall be constructed with materials and utility equipment resistant to flood damage and shall be constructed by methods and practices that minimize flood damage.

B. All subdivision proposals and land development proposals in identified floodplain areas where base flood elevation data are not available shall be supported by hydrologic and hydraulic engineering analyses that determine base flood elevations and floodway information. The analyses shall be prepared by a licensed professional engineer in a format required by FEMA for a Conditional Letter of Map Revision or Letter of Map Revision. Submittal requirements and processing fees shall be the responsibility of the applicant.

C. Elevation and Floodproofing Requirements.

(1) Residential Structures.

(a) In an AE Zone without floodway, any new construction or substantial improvement shall have the lowest floor (including basement) elevated up to, or above, the RFE.

(b) In A Zones, where there are no base flood elevations specified on the FIRM, any new construction or substantial improvement shall have the lowest floor (including basement) elevated up to, or above, the RFE based on the determined BFE.

(c) The design and construction standards and specifications contained in the 2015 International Building Code (IBC) and in the 2015 International Residential Code (IRC) or the most recent revisions thereof and ASCE 24 and 34 Pa. Code, Chapters 401 through 405, as amended, shall be utilized.

(2) Manufactured Homes.

(a) Where existing manufactured homes are located within identified floodplain areas, all manufactured homes replaced, rebuilt, or otherwise substantially improved, shall be:

1) Placed on a permanent foundation.

2) Elevated so that the lowest floor of the manufactured home is at least 1 1/2 feet above the base flood elevation.

3) Anchored to resist flotation, collapse, or lateral movement.

4) Have all ductwork and utilities including HVAC/heat pump elevated to the RFE.

(b) Installation of manufactured homes shall be done in accordance with the manufacturers' installation instructions as provided by the manufacturer. Where the applicant cannot provide the above information, the requirements of Appendix E of the 2015 "International Residential Building Code" or the "U.S. Department of

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Housing and Urban Development's Permanent Foundations for Manufactured Housing," 1984 Edition, draft or latest revision thereto, shall apply and 34 Pa. Code, Chapters 401 through 405.

(c) Consideration shall be given to the installation requirements of the 2015 IBC, and the 2015 IRC or the most recent revisions thereto the Township has adopted and 34 Pa. Code, as amended, where appropriate and applicable to units where the manufacturers' standards for anchoring cannot be provided or were not established for the proposed unit(s) installation.

(3) Nonresidential Structures.

(a) In Zone AE without floodway, any new construction or substantial improvement of a nonresidential structure shall have the lowest floor (including basement) elevated up to, or above, the RFE, or be designed and constructed so that the space enclosed below the RFE:

1) Is floodproofed so that the structure is watertight with walls substantially impermeable to the passage of water.

2) Has structural components with the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy.

(b) In A Zones, where there are no base flood elevations specified on the FIRM, any new construction or substantial improvement shall have the lowest floor (including basement) elevated up to, or above, the RFE based on a determined BFE.

(c) Any nonresidential structure, or part thereof, made watertight below the RFE shall be floodproofed in accordance with the W1 or W2 space classification standards contained in the publication entitled "Flood-Proofing Regulations" published by the U.S. Army Corps of Engineers (June 1972, as amended March 1992) or with some other equivalent standard. All plans and specifications for such floodproofing shall be accompanied by a statement certified by a registered professional engineer or architect which states that the proposed design and methods of construction are in conformance with the above-referenced standards.

(d) The design and construction standards and specifications contained in the 2015 International Building Code (IBC) and in the 2015 International Residential Code (IRC) or the most recent revisions thereof and ASCE 24 and 34 Pa. Code, Chapters 401 through 405, as amended, shall be utilized.

(4) Space Below the Lowest Floor.

(a) Fully enclosed space below the lowest floor (excluding basements) which will be used solely for the parking of a vehicle, building access, or incidental storage in an area other than a basement, shall be designed and constructed to allow for the automatic entry and exit of flood waters for the purpose of equalizing hydrostatic forces on exterior walls. The term "fully enclosed space" also includes crawl spaces.

(b) Designs for meeting this requirement must either by certified by a registered professional engineer or architect, or meet or exceed the following minimum criteria:

1) A minimum of two openings having a net total area of not less than one square

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inch for every square foot of enclosed space.

2) The bottom of all openings shall be no higher than one-foot above grade.

3) Openings may be equipped with screens, louvers, or other coverings or devices provided that they permit the automatic entry and exit of floodwaters.

D. Design and Construction Standards. The following minimum standards shall apply for all construction and development proposed within any identified floodplain area:

(1) Fill. If fill is used, it shall:

(a) Extend laterally at least 15 feet beyond the building line from all points.

(b) Consist of soil or small rock materials only. Sanitary landfills shall not be permitted.

(c) Be compacted to provide the necessary permeability and resistance to erosion, scouring, or settling.

(d) Be no steeper than one vertical to two horizontal feet unless substantiated data, justifying steeper slopes, are submitted to, and approved by, the Floodplain Administrator.

(e) Be used to the extent to which it does not adversely affect adjacent properties.

(2) Drainage Facilities. Storm drainage facilities shall be designed to convey the flow of stormwater runoff in a safe and efficient manner. The system shall ensure proper drainage along streets and provide positive drainage away from buildings. The system shall also be designed to prevent the discharge of excess runoff onto adjacent properties.

(3) Water and Sanitary Sewer Facilities and Systems.

(a) All new or replacement water supply and sanitary sewer facilities and systems shall be located, designed, and constructed to minimize or eliminate flood damages and the infiltration of flood waters.

(b) Sanitary sewer facilities and systems shall be designed to prevent the discharge of untreated sewage into flood waters.

(c) No part of any on-site sewage system shall be located within any identified floodplain area except in strict compliance with all state and local regulations for such systems. If any such system is permitted, it shall be located so as to avoid impairment to it, or contamination from it, during a flood.

(d) The design and construction provisions of the UCC and FEMA #348, "Protecting Building Utilities from Flood Damages," and the International Private Sewage Disposal Code shall be utilized.

(4) Other Utilities. All other utilities such as gas lines, electrical and telephone systems shall be located, elevated (where possible) and constructed to minimize the chance of impairment during a flood.

(5) Streets. The finished elevation of all new streets shall be no more than one foot below the RFE.

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(6) Storage. All materials that are buoyant, flammable, explosive, or in times of flooding, could be injurious to human, animal, or plant life, and not listed in Subsection 8B, "Prohibited Uses," shall be stored at or above the RFE plus 1 1/2 feet of additional freeboard, a total of three feet above the BFE, or floodproofed to the maximum extent possible.

(7) Placement of Buildings and Structures. All buildings and structures shall be designed, located, and constructed so as to offer the minimum obstruction to the flow of water and shall be designed to have a minimum effect upon the flow and elevation of flood water. Whenever possible, structures shall be constructed with the longitudinal axis parallel to the direction of flood flow, and, so far as is practicable, structures shall be placed approximately on the same flood flow lines as those of nearby structures.

(8) Anchoring.

(a) All buildings and structures shall be firmly anchored in accordance with accepted engineering practices to prevent flotation, collapse, or lateral movement.

(b) All air ducts, large pipes, storage tanks, and other similar objects or components located below the RFE shall be securely anchored or affixed to prevent flotation.

(9) Floors, Walls and Ceilings.

(a) Wood flooring used at or below the RFE shall be installed to accommodate a lateral expansion of the flooring, perpendicular to the flooring grain without causing structural damage to the building.

(b) Plywood used at or below the RFE shall be of a "marine" or "water-resistant" variety.

(c) Walls and ceilings at or below the RFE shall be designed and constructed of materials that are "water-resistant" and will withstand inundation.

(d) Windows, doors, and other components at or below the RFE shall be made of metal or other "water-resistant" material.

(10) Paints and Adhesives.

(a) Paints and other finishes used at or below the RFE shall be of "marine" or "water-resistant" quality.

(b) Adhesives used at or below the RFE shall be of a "marine" or "water-resistant" variety.

(c) All wooden components (doors, trim, cabinets, etc.) used at or below the RFE shall be finished with a "marine" or "water-resistant" paint or other finishing material.

(11) Electrical Components.

(a) Electrical distribution panels shall be at least three feet above the base flood elevation.

(b) Separate electrical circuits shall serve lower levels and shall be dropped from above.

(12) Equipment. Water heaters, furnaces, air conditioning and ventilating units, and other electrical, mechanical or utility equipment or apparatus shall not be located below the

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RFE.

(13) Fuel Supply Systems. All gas and oil supply systems shall be designed to prevent the infiltration of flood waters into the system and discharges from the system into flood waters. Additional provisions shall be made for the drainage of these systems in the event that flood water infiltration occurs.

(14) Uniform Construction Code Coordination. The standards and specifications contained in 34 Pa. Code, Chapters 401 through 405, as amended, and not limited to the following provisions shall apply to the above and other sections and subsections of this section, to the extent that they are more restrictive and supplement the requirements of this section.

International Building Code (IBC) 2015 or the latest edition thereof, §§ 801, 1202, 1403, 1603, 1605, 1612, 3402, and Appendix G.

International Residential Building Code (IRC) 2015 or the latest edition thereof, §§ R104, R105, R109, R323, Appendix AE101, Appendix E and Appendix J.

§ 27-505. Noise. [Ord. No. 199, 1/15/2025]

1. Sound Level Limits. Unless otherwise specified or controlled by the Township Noise Ordinance or regulations of the Commonwealth of Pennsylvania, the following shall apply to all new development and surface and sub-surface land use activity.

Sound Level Limits by Receiving Land Use/District			
Land Use or Zoning District Receiving the Noise		**Hours/Days**	**Maximum Sound Level (dBA) [A = weighted decibels]**
A.	At a lot line of a residential use in a residential district	7:00 a.m. to 10:00 p.m. other than Sundays, Christmas Day, Thanksgiving Day, New Years Day, Labor Day and Memorial Day	62
		10:00 p.m. to 7:00 a.m. plus all of the following days: Sundays, Christmas, Thanksgiving, New Years, Easter Sunday, Labor Day and Memorial Day	55
B.	Lot line of a principal residential use that is not in a residential district	Same as above	65
		Same as above	62
C.	Any lot line other than A or B	All times and days	70

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2. The limits set forth in the above table shall not apply to any of the following noise sources:

   A. Sound needed to alert people about an emergency.

   B. Repair or installation of utilities or construction of structures, sidewalks or streets between the hours of 6:00 a.m. and 9:00 p.m., except for clearly emergency repairs which are not restricted by time.

   C. Lawnmowers, snowblowers, leaf blowers, and household power tools between the hours of 6:00 a.m. and 9:00 p.m.

   D. Agricultural activities, livestock and other animals.

   E. Public celebrations specifically authorized by the Township Supervisors or a county, state or federal government agency or body.

   F. Unamplified human voices.

   G. Routine ringing of bells and chimes by a place of worship or municipal clock.

   H. Vehicles lawfully operating on or off a street, railroads and aircraft.

   I. Noises that continue for less than 15 total minutes per day.

   J. Those preempted by 25 Pa. Code, Chapter 77, as pertaining to mineral extraction uses.

§ 27-506. Odors and Dust. [Ord. No. 199, 1/15/2025]

No use shall generate odors or dust that are offensive to persons of average sensitivities beyond the boundaries of the subject lot. This provision shall not apply to normal farming activities that are exempted under the Pennsylvania Right to Farm Act, 3 P.S. § 951 et seq.

§ 27-507. Control of Light and Glare. [Ord. No. 199, 1/15/2025]

1. This section shall only regulate exterior lighting that spills across lot lines or onto public streets.

   A. Street Lighting Exempted. This section shall not apply to: (1) streetlighting that is owned, financed or maintained by the Township or the state; or (2) an individual porch light of a dwelling (not including a spot light).

   B. Height of Lights. No luminaire, spotlight or other light source that is within 200 feet of a lot line of an existing dwelling or approved residential lot shall be placed at a height exceeding 35 feet above the average surrounding ground level. This limitation shall not apply to lights needed for air safety nor lights intended solely to illuminate an architectural feature of a building, nor lighting of outdoor public recreation facilities or a ski resort.

   C. Diffused Lighting. All light sources, including signs, shall be properly diffused as needed with a translucent or similar cover to prevent exposed bulbs from being directly visible from streets, public sidewalks, dwellings or adjacent lots.

   D. Shielding. All light sources, including signs, shall be shielded around the light source and carefully directed and placed to prevent the lighting from creating a nuisance to reasonable persons in adjacent dwellings, and to prevent the lighting from shining into the eyes of passing motorists.

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E. Flickering. Flashing, flickering or strobe lighting are prohibited, except for nonadvertising seasonal lights between October 1 and January 10.

F. Spillover. Exterior lighting on an institutional, commercial or industrial property shall not cause a spillover of light onto a residential lot that exceeds 0.5 horizontal foot-candle at a distance 10 feet inside the residential lot line.

G. Gasoline Sales Canopies. Any canopy over gasoline pumps shall have light fixtures recessed into the canopy or screened by an extension around the bottom of the canopy so that lighting elements are not visible from another lot or street.

H. Horizontal Surface Lighting. For the lighting of predominantly horizontal surfaces such as, but not limited to, parking areas, streets, driveways, pedestrian walkways, outdoor sales and storage areas, vehicle fueling facilities, vehicle sales areas, loading docks, recreational areas, and building entrances, fixtures shall be aimed downward.

I. Nonhorizontal Lighting. For lighting of predominantly nonhorizontal surfaces such as, but not limited to, facades, signs, and displays, fixtures shall be fully shielded and shall be installed and aimed so as to not project their output into the windows of neighboring residences, adjacent uses, past the object being illuminated, skyward or onto a public roadway.

(1) However, lighting shall be allowed onto the United States flag from dusk to dawn, provided the light source shall have a beam spread no greater than necessary to illuminate the flag.

J. Reduction of on-site lighting shall be 50% between the hours 10:00 pm and 6:00 am.

§ 27-508. Radioactivity and Electrical Disturbances. [Ord. No. 199, 1/15/2025]

1. A. There shall be no activities that emit radioactivity at any point, excepting where strict compliance with the Rules and Regulations of the National Bureau of Standards of the United States Department of Commerce and similar regulations of the Commonwealth of Pennsylvania are adhered to. There shall be no electrical disturbance adversely affecting the operation at any point of any equipment other than that of the creator of the disturbance.

(1) No use shall produce ionizing radiation unless:

(a) If the source of such radiation is a machine or a radioactive substance regulated by the state, then the facility shall be duly registered with the DEP Bureau of Radiation Protection, with a copy of such registration and/or license submitted to the Zoning Officer.

(b) If the source of such radiation consists of nuclear reactor by-product material, the facility shall have been duly licensed with the Nuclear Regulatory Commission, with a copy of such license submitted to the Zoning Officer.

(2) Information Regarding Development Near Power Lines.

(a) Purpose. To encourage but not require "prudent avoidance" of high levels of powerline radiation, until such time as hazards to humans are further studied and until any state or federal regulation may be established.

(b) Where a subdivision or land development would involve new dwelling units, a day-

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care center or a primary or secondary school within approximately 250 feet of existing overhead electrical transmission lines, the Zoning Officer, after considering the input of other Township officials, may require the applicant to formally request that the applicable electrical utility company measure the maximum and minimum levels of electromagnetic forces at the nearest proposed sites of such buildings.

(3) Interference. No use shall routinely cause electrical disturbances that results in radiated noise and/or electrical interference that exceeds maximum standards of the Federal Communications Commission.

(a) X-Ray Machines. Any applicant for a use that will involve an X-ray machine shall provide written evidence to the Township that the applicant has provided written notification and/or a formal application to the applicable state agency for which any applicable state radiological permit or inspection may be needed. Evidence of such notification shall be provided prior to the granting of any required Township occupancy permit for such facility.

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Part 6
OFF-STREET PARKING AND LOADING

§ 27-601. Required Number of Off-Street Parking Spaces. [Ord. No. 199, 1/15/2025]

1. Overall Requirements.

   A. Number of Spaces. Each use that is newly developed, enlarged, significantly changed in type of use, or increased in number of establishments shall provide and maintain off-street parking spaces in accordance with Table 6-1 and the regulations of this Part.

   B. Uses Not Listed. Uses not specifically listed in Table 6-1 shall comply with the requirements for the most similar use listed in Table 6-1, unless the applicant proves to the satisfaction of the Zoning Officer that an alternative standard should be used for that use.

   C. Multiple Uses. Where a proposed lot contains or includes more than one type of use, the number of parking spaces required shall be the sum of the parking requirements for each separate use.

   D. Parking Landscaping. See §§ 803 and 804 of this chapter.

Table 6-1
Off-Street Parking Requirements

Use	Number of Off-Street Parking Spaces Required	Plus 1 Off-Street Parking Space for Each:
Residential Uses		
Any Residential Land Use Not Assigned Otherwise	2 per dwelling unit. If a vehicle must be moved from one space in order to access the second space, then an additional parking space shall be available for each dwelling unit, such as an on-street space in front of the dwelling or an overflow parking lot. Offstreet parking spaces shall not obstruct sidewalks.	
Personal Care Boarding Home	1 per rental unit or bed per adult, whichever is greater	Nonresident employee
Group Home	1 per 2 residents, unless the applicant proves the home will be limited to persons who will not be allowed to drive a vehicle from the property	Employee
Institutional Uses		
Place of Worship/Place of Assembly	1 per 5 seats in room of largest capacity. For pews that are not individual seats, each 48 inches shall count as one seat	Employee

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Table 6-1
Off-Street Parking Requirements

Use	Number of Off-Street Parking Spaces Required	Plus 1 Off-Street Parking Space for Each:
Emergency Services	1 per 3 beds	1 employee
Nursing home	1 per 5 beds	1 employee
Age-Restricted Residential Development	1 per 4 beds, plus 1.5 for each individual dwelling unit	1 employee
Child Care Center	1 per 10 children, with spaces designed for safe and convenient drop-off and pick-up	1 employee
School, Primary and Secondary	1 per 4 students aged 16 or older	1 employee
Solar, Utility-Scale, Solid Waste Disposal Facility, Wind Energy System	1 per vehicle routinely needed to service facility	
School, Post-Secondary	1 per 1.5 students not living on campus who attend class at peak times (plus required spaces for on-campus housing)	1 employee
Cultural/Community Center	1 per 5 seats (or 1 per 250 square feet of floor area accessible to patrons and/or users if seats are not typically provided)	1 employee
Day Care Center, Adult	1 per 2 residents aged 16 years or older plus 1 per nonresident intended to be treated on-site at peak times	Nonresident employee
Swimming Pool, Non-Household	1 per 50 square feet of water surface, other than wading pools	1 employee
Commercial Stable	All commercial uses, as applicable, shall provide additional parking or storage needed for maximum number of vehicles stored, displayed or based at the lot at any point in time. These additional spaces are not required to meet the stall size and parking aisle width requirements of this chapter.	
Auto Service/Repair Station, Auto/Truck/Body Collision Center, Convenience Store with Fuel/Energy Recharge	2 per repair/service bay and 1/4 per fuel nozzle with such spaces separated from accessways to pumps	Employee; plus any parking needed for a convenience store under "retail sales"

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Table 6-1 Off-Street Parking Requirements		
Use	**Number of Off-Street Parking Spaces Required**	**Plus 1 Off-Street Parking Space for Each:**
Auto, Boat, or Mobile Home Sales	1 per 15 vehicles, boats, RVs or homes displayed	Employee
Bed and Breakfast	1 per retail unit plus the 2 per dwelling unit	Nonresident employee
Car Wash	1 per drying unit and wait area unit	1 employee
Office, Medical or Dental	5 per physician or physician's assistant and 4 per dentist	1 employee
Office, Professional	1 per 300 square feet of total floor area	
Personal Services, Craftsman/Artisan Studio, Pharmacy, Membership Club, Betting Use (min. of 2 per establishment)	1 per 200 square feet of floor area accessible to customers/members	1 employee
Commercial Indoor Recreation	1 per 4 persons of maximum capacity of all facilities	1 employee
Commercial Outdoor Recreation, Drive-in Theater, Campground	1 per 4 persons of capacity (50% may be on grass overflow areas with major driveways in gravel), for campgrounds: 1 per campsite	1 employee, no employee for campgrounds
Restaurant: Cafe or Sit-down, or Restaurant Quick Serve	1 per 4 seats, or 3 spaces for a use without customer seats. This parking shall be calculated separately from a shopping center	1 employee
Retail Sales, Small-Scale, Bakery, Convenience Store, Home Improvement/Building Supply (Small Scale)	1 per 200 square feet of floor area of rooms accessible to customers	1 per employee on peak hour shift
Grocery Store	1 per 500 square feet of floor area of rooms accessible to customers	1 per employee on peak hour shift
Animal Hospital	4 per veterinarian	1 employee
Municipal Use, Non-Utility, Public Recreation, Essential Services	1 per 6 seats of largest indoor assembly area	None
Industrial Uses		

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Table 6-1 Off-Street Parking Requirements		
Use	**Number of Off-Street Parking Spaces Required**	**Plus 1 Off-Street Parking Space for Each:**
Beverage Distribution, Manufacturing, Heavy or Light, Warehouse, Wholesale Sales, Medical Marijuana Grower or Processor Facility, Engineering/ Testing Facility or Laboratory, Sales and Rental of Industrial Equipment	In addition to parking or storage needed for maximum number of vehicles stored, displayed or based at the lot at any point in time, which spaces are not required to meet the stall size and aisle width requirements of this chapter 1 per 1 employee, based upon the maximum number of employees onsite at peak period of times	1 visitor space for every 10 managers on the site
Agriculture Operation, Animal Feed Mill, Commercial Crop Storage, Concentrated Animal Feeding Operation (CAFO), Concentrated Animal Operation (CAO), Forestry, Wildlife Sanctuary, Mineral Extraction, Kennel/Cattery	1	None
Commercial Communications Tower	1 per tower	None
Junkyard, Prison or Similar Correctional Institution, Recycling Collection Center, Contractor Office/ Yard, Bus Station or Taxi Terminal	None	1 per employee on peak hour shift

2. An applicant proposing shared parking shall file for a use by special exception.

§ 27-602. General Regulations for Off-Street Parking. [Ord. No. 199, 1/15/2025]

1. General. Parking spaces and accessways shall be laid out to result in safe and orderly use, and to fully take into account all of the following: vehicular access onto and off the site, vehicular movement within the site, loading areas, pedestrian patterns and any drive-through facilities. No parking area shall cause a safety hazard or impediment to traffic off the lot.

2. Existing Parking.

   A. Any parking spaces serving such preexisting structures or uses at the time of adoption of this chapter shall not in the future be reduced in number below the number required by this chapter.

   B. If a new principal nonresidential building is constructed on a lot, then any existing parking on such lot that serves such building shall be reconfigured to comply with this chapter, including, but not limited to, requirements for channelization of traffic from adjacent streets, channelization of traffic within the lot, minimum aisle widths, paving and landscaping.

3. Change in Use or Expansion. A structure or use in existence at the effective date of this chapter, as amended, that expands or changes in use of an existing principal building shall be required to provide

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all of the required parking for the entire size and type of the resulting use, except as follows:

A. If an existing lawful use includes less parking than would be required if the use were newly developed, then that deficit of parking shall be grandfathered for reuses of an existing building. For example, an existing store might include three parking spaces and would have been required to provide seven spaces if it was newly developed. Therefore, there is an existing nonconforming deficit of four spaces. Then, if that store is converted to an office that would need 10 spaces, the office would need to provide a total of six spaces (10 spaces minus the preexisting deficit of four equals six).

B. If a nonresidential use expands by an aggregate total maximum of 5% in the applicable measurement (such as total floor area) beyond what existed at the time of adoption of this chapter, then no additional parking is required. For example, if an existing building included 3,000 square feet, and a single minor addition of 150 square feet was proposed, then additional parking would not be required. This addition without providing new parking shall only be allowed one time per lot.

4. Continuing Obligation of Parking and Loading Spaces. All required numbers of parking spaces and off-street loading spaces shall be available as long as the use or building which the spaces serve still exist, and such spaces shall not be reduced in number below the minimum required by this chapter. No required parking area or off-street loading spaces shall be used for any other use (such as storage or display of materials) that interferes with the area's availability for parking.

5. Location of Parking.

A. Required off-street parking spaces shall be on the same lot or abutting lot with the principal use served, unless an application for a variance is approved whereas the applicant proves to the satisfaction of the Zoning Hearing Board that a method of providing the spaces is guaranteed to be available during all of the years the use is in operation within 300 feet walking distance from the entrance of the principal use being served. Such distance may be increased to 500 feet for employee parking of a nonresidential use. A written and signed lease shall be provided, if applicable.

(1) The Zoning Hearing Board may require that the use be approved for period of time consistent with the lease of the parking, and that a renewal of the permit shall only be approved if the parking lease is renewed.

6. Reduction of Parking Requirements as a Variance.

A. Purposes. To minimize the amount of land covered by paving, while making sure adequate parking is provided. To recognize that unique circumstances may justify a reduction in parking.

B. As a variance, the Zoning Hearing Board may authorize a reduction in the number of off-street parking spaces required to be provided for a use if the applicant proves to the satisfaction of the Zoning Hearing Board that a lesser number of spaces would be sufficient.

(1) The applicant shall provide evidence justifying the proposed reduced number of spaces, such as studies of similar developments during their peak hours. The applicant shall also provide relevant data, such as numbers of employers, peak expected number of customers/ visitors and similar data.

(2) Under this section, an applicant may prove that a reduced number of parking spaces is justified because more than one principal use will share the same parking. In such case,

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the applicant shall prove that the parking has been designed to encourage shared use, and that long-term agreements ensure that the parking will continue to be shared. The amount of the reduction in parking should be determined based upon whether the different uses have different hours of peak demand and/or overlapping customers.

(a) In addition, an applicant may prove that parking needs will be reduced or that off-site parking is feasible because the applicant agrees to make a long-term commitment to a shuttle service for residents or employees.

(3) Reserved Area for Additional Parking. Under this section, the Zoning Hearing Board may require that a portion of the required parking be met through a reservation of an area for future parking. The Board may require the reservation for a certain number of years or an indefinite period corresponding to the years the buildings are in use.

(a) Such reservation shall be in a form acceptable to the Zoning Hearing Board Solicitor that legally binds current and future owners of the land to keep the reserved parking area in open space and then to provide the additional parking if the Township determines it is necessary. A deed restriction is recommended.

(b) If approved under this subparagraph, the applicant shall present a site plan to the Zoning Officer that shows the layout that will be used for the additional parking if the parking is required to be provided in the future. The site plan shall show that the additional parking is integrated with the overall traffic access and pedestrian access for the site, and that the additional parking will be able to meet Township requirements.

(c) The additional parking that is "reserved" under this subsection shall be required to be kept as landscaped open area, until such time as the Zoning Hearing Board decision may authorize the land's release from the restriction, or until the Township may require that the land be developed as parking.

(d) The Zoning Officer shall periodically review the sufficiency of the parking that is provided. If the Zoning Officer in the future determines that the reserved parking is needed to meet actual demand, he/she shall provide written notice to the property owner. The property owner shall then have one year to develop the reserved area into off-street parking in compliance with this chapter.

7. Parking of Commercial Trucks.

A. The overnight outdoor parking of commercial trucks or the trailer from a tractor-trailer combination on a principal residential lot in a residential district is prohibited, except that one of the following shall be permitted if such vehicle(s) is used by residents of the dwelling to travel to and from work:

(1) The parking of a maximum of one vehicle of up to 13,000 pounds aggregate gross vehicle weight.

(2) The parking of one vehicle with an aggregate gross vehicle weight of over 13,000 pounds aggregate gross vehicle weight, provided such vehicle is kept a minimum of 100 feet from any dwelling on another lot and provided a row of evergreen trees meeting §§ 27-803 and 27-804 is planted to buffer views of the vehicle from the street and dwellings on other lots.

(3) Construction equipment that is not primarily intended for on-road use shall not be stored

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overnight in a residential district. A vehicle shall not block a shared driveway or street.

§ 27-603. Design Standards for Off-Street Parking. [Ord. No. 199, 1/15/2025]

1. General Requirements.

   A. Backing onto a Street. No parking area shall be designed to require or encourage parked vehicles to back into a public street in order to leave a parking space, except for a single-family or two-family dwelling with its access onto a local street or parking court. Parking spaces may back onto an alley.

   B. Every required parking space shall be designed so that each motor vehicle may proceed to and from the parking space provided for it without requiring the movement of any other vehicle, unless specifically permitted otherwise.

   C. Parking areas shall not be within a required buffer yard or street right-of-way.

   D. Separation from Street. Except for parking spaces immediately in front of individual dwellings, all areas for off-street parking, off-street loading and unloading and the storage or movement of motor vehicles shall be physically separated from the street by a continuous grass or landscaped planting strip, except for necessary and approved vehicle entrances and exits to the lot.

   E. Stacking and Obstructions. Each lot shall provide adequate area upon the lot to prevent back-up of vehicles on a public street while awaiting entry to the lot, or while waiting for service at a drive-through facility.

2. Size and Marking of Parking Spaces.

   A. Each parking space shall be a rectangle with a minimum width of nine feet and a minimum length of 18 feet, except the minimum sized rectangle shall be eight feet by 22 feet for parallel parking.

   B. For handicapped spaces, see Subsection 7 below.

   C. All spaces shall be marked to indicate their location, except those of a one- or two-family dwelling.

3. Aisles.

   A. Each aisle providing for one-way traffic to access parking stalls shall have the following minimum width:

Angle of Parking	Minimum Aisle Width (feet)
Parallel or 30°	12
45°	14
60°	18
90°	20

   B. Each aisle providing access to stalls for two-way traffic shall be a minimum of 22 feet in width, except a width of 20 feet may be allowed for parking areas with spaces that are parallel or

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involve an angle of parking of 45° or less.

4. Accessways and Driveways.

A. Width of Driveways and Accessways.

Width of Driveway/ Accessway at Entrance Onto a Public Street, at the Edge of the Cartway*	1-way use (feet)	2-way use (feet)
Minimum	12*	24*
Maximum	20*	50*

Notes:
* Unless a different standard is required by PennDOT for an entrance to a state road, or the applicant proves to the satisfaction of the Zoning Officer that a wider width is needed for tractor-trailer trucks.

B. Drainage. Adequate provisions shall be made to maintain uninterrupted parallel drainage along a public street at the point of driveway entry. The Township may require an applicant to install an appropriate type and size of pipe at a driveway crossing.

5. Paving, Grading and Drainage.

A. Parking and loading facilities and including driveways shall be graded and adequately drained to prevent erosion or excessive water flow across streets or adjoining properties.

B. Except for landscaped areas, all portions of required parking, loading facilities and driveways shall be surfaced with asphalt, concrete, paving block, or other low-dust materials pre-approved by the Township.

(1) However, by special exception, the Zoning Hearing Board may allow parking areas with low or seasonal usage to be maintained in stone, grass or other suitable surfaces. For example, the Board may allow parking spaces to be grass, while major aisles are covered by stone.

(2) If the design and material are found acceptable by the Township Engineer, portions of parking areas may be covered with a low-dust porous parking surface that is designed to promote groundwater recharge. This might include porous asphalt or pervious concrete placed over open graded gravel and crushed stone. Porous parking surfaces shall not be allowed in areas routinely used by heavy trucks.

(3) Curbing should not be required in parking areas except where absolutely necessary to control stormwater runoff.

6. Lighting of Parking Areas. See § 27-507, "Control of Light and Glare."

7. Parking for Persons With Disabilities/Handicapped Parking.

A. Number of Spaces. Any lot including four or more off-street parking spaces shall include a minimum of one handicapped space. The following number of handicapped spaces shall be

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provided, unless a different number of spaces is officially required under the Federal Americans with Disabilities Act:

B. Location. Handicapped parking spaces shall be located where they would result in the shortest reasonable accessible distance to a handicapped accessible building entrance. Curb cuts shall be provided as needed to provide access from the handicapped spaces.

C. Minimum Size. Each required handicapped parking space shall be eight feet by 18 feet. In addition, each space shall be adjacent to a five feet wide access aisle. Such access aisle may be shared by two handicapped spaces by being placed between them. However, one out of every eight required handicapped parking spaces shall have an adjacent access aisle of eight feet width instead of five feet.

D. Slope. Handicapped parking spaces shall be located in areas of less than 2% slope in any direction.

E. Marking. All required handicapped spaces shall be well-marked by clearly visible signs and by pavement markings. Such signs and markings shall be maintained over time. Blue paint is recommended. The amount of the fine for violations shall be noted on signs that are visible to persons parking in the space.

F. Paving. Handicapped parking spaces and adjacent areas needed to access them with a wheelchair shall be covered with a smooth surface that is usable with a wheelchair.

8. Paved Area Setbacks (Including Off-Street Parking Setbacks).

A. Intent. To ensure that parked or moving vehicles within a lot do not obstruct sight distance or interfere with pedestrian traffic, to aid in stormwater management along streets and to prevent vehicles from entering or exiting a lot other than at approved driveways.

B. Any new or expanded paved area serving a principal nonresidential use shall be separated from a public street by a planting strip. The planting strip shall have a minimum width of 15 feet and be maintained in grass or other attractive vegetative groundcover. At least 10 feet of the planting strip shall be outside of the existing street right-of-way. This 15 feet width shall be increased to 20 feet for a lot including 100 to 250 parking spaces, and to 25 feet for a lot including more than 250 parking spaces.

(1) The planting strip shall not include heights or locations of plants that would obstruct safe sight distances but may include deciduous trees that motorists can view under the leaf canopy.

(2) The planting strip may be placed inward from the shoulder of an uncurbed street or inward from the curb of a curbed street. The planting strip may overlap the street right-of-way, provided it does not conflict with PennDOT requirements, and provided that the Township and PennDOT as applicable maintain the right to replace planting areas within the right-of-way with future street improvements.

(3) Township-approved sidewalks, recreation paths and approximately perpendicular driveway crossings may be placed within the planting strip. Mostly vegetative stormwater channels may be placed within the planting strip.

(4) The following shall be prohibited within the planting strip:

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(a) Paving, except as allowed by Subsection 8B(3) above, and except for street widenings that may occur after the development is completed.

(b) Fences.

(c) Parking, storage or display of vehicles or items for sale or rent.

(5) Where feasible, where a sidewalk is not installed, this setback should include an unobstructed generally level width running parallel to a street that is suitable for a person to walk.

C. See landscaping requirements in §§ 27-803 and 27-804.

9. Parking Setback from Buildings. Parking spaces serving principal nonresidential buildings and apartment buildings shall be located a minimum of 10 feet from any principal building wall, unless a larger distance is required by another provision. This distance shall not apply at vehicle entrances into or under a building.

10. Speed Bumps. Speed bumps, speed tables and similar raised areas to reduce speeds shall be allowed, provided the raised area is maintained in a highly visible color or pavement markings and a sign warns motorists of the raised pavement.

§ 27-604. Off-Street Loading. [Ord. No. 199, 1/15/2025]

Each use shall provide off-street loading facilities, which meet the requirements of this section, sufficient to accommodate the maximum demand generated by the use and the maximum size vehicle, in a manner that will not routinely obstruct traffic on a public street and traffic entering and exiting the lot. If no other reasonable alternative is feasible, traffic may be obstructed for occasional loading and unloading along an alley, provided traffic has the ability to use another method of access.

1. At the time of review under this chapter, the applicant shall provide evidence to the Zoning Officer on whether the use will have sufficient numbers and sizes of loading facilities. The Planning Commission and/or Board of Supervisors may provide advice to the Zoning Officer on this matter as part of any plan review by such boards. For the purposes of this section, the words "loading" and "unloading" are used interchangeably.

2. Each space and the needed maneuvering room shall not intrude into approved buffer areas and landscaped areas.

§ 27-605. Fire Lanes and Access. [Ord. No. 199, 1/15/2025]

1. Fire lanes shall be provided where required by state or federal regulations or other local ordinances.

2. Access shall be also provided so that fire equipment can reach all sides of principal nonresidential buildings and multifamily/apartment buildings. This access shall be able to support a loaded fire pumper truck but shall not necessarily be paved.

3. The specific locations of fire lanes and fire equipment access are subject to approval by the Township, after review by local fire officials.

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Part 7
SIGNS

§ 27-701. Applicability. [Ord. No. 199, 1/15/2025]

1. Purposes. This Part is intended to: promote and maintain overall community aesthetic quality; establish reasonable time, place and manner of regulations for the exercise of free speech, without regulating content (excepting obscenity that is prohibited by state law or language that incites violence); promote traffic safety by avoiding distractions and sight distance obstructions; and protect property values and ensure compatibility with the character of neighboring uses.

2. Permit Required. A zoning permit shall be required for all signs except for signs meeting the requirements of § 27-704 and nonilluminated window signs constructed of paper, cardboard or similar materials and that are not of a permanent nature. Only types, sizes and heights of signs that are specifically permitted by this chapter, as amended, within the applicable district shall be allowed.

3. Changes on Signs. Any lawfully existing sign (including nonconforming signs) may be painted or repaired or changed in logo or message without a new permit under this chapter, provided that the changes do not increase the sign area or otherwise result in noncompliance or an increased nonconformity with this chapter.

§ 27-702. Location of Signs. [Ord. No. 199, 1/15/2025]

1. The following shall regulate the location of signs:

   A. Setbacks.

      (1) All signs shall be set back a minimum of 10 feet from the existing street right-of-way and shall not be located within the existing street right-of-way. However, a "directional sign" showing entrances and exits may be located without a 10-foot setback.

      (2) A freestanding sign that is illuminated shall not be located within 10 feet from an abutting lot line of principally residential lot.

      (3) These setbacks shall not apply to official signs.

   B. Sight Clearance. No sign shall be so located that it interferes with the sight clearance requirements of § 27-803.

   C. Permission of Owner. No sign shall be posted on any property or sign pole or public utility pole unless permission has been received by the owner.

   D. Utility Poles. No sign shall be attached to a utility pole using metal fasteners, except by a utility or government agency.

§ 27-703. Nonconforming Signs. [Ord. No. 199, 1/15/2025]

1. Signs legally existing at the time of enactment of this chapter, as amended, and which do not conform to the requirements of this Chapter shall be considered nonconforming signs.

2. An existing lawful nonconforming sign that was lawful when it was initially placed may be replaced with a new sign, provided the new sign is not more nonconforming in any manner than the previous sign. A nonconforming sign shall not be expanded in a manner that does not conform to this chapter.

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3. Unlawful Signs. If a sign was placed without a required permit by the Township, and does not comply with this chapter, it shall not be considered lawful, and shall be required to be removed. See the enforcement notice requirements in Part 1.

§ 27-704. Miscellaneous Signs Not Requiring Permits. [Ord. No. 199, 1/15/2025]

1. In addition to temporary signs, the signs shall not require a permit under this Part (see definitions in § 27-202):

   A. Flags.

   B. Historic Sign.

   C. Holiday Decorations.

   D. Not Readable Sign.

   E. Official Sign.

   F. Required Sign.

   G. Right-of-Way Sign.

   H. Political Election Sign.

§ 27-705. Freestanding, Wall and Window Signs (On-Premises Signs). [Ord. No. 199, 1/15/2025]

1. Maximum Height of Wall Signs. The maximum height of wall signs shall be equal to the top of the roof along the wall to which they are attached. However, signs may be attached to a "parapet roof" that vertically extends up to 10 feet above the structural roof, provided the parapet roof appears to be an architectural extension of the building.

2. Wiring of Signs. Signs shall be prohibited that involve electrical cords laying across parking lots, driveways or sidewalks, except on a residential property for seasonal lighting.

3. Signs on Freestanding Walls. A freestanding sign may be attached to a decorative masonry or stone wall with a maximum height of six feet and a maximum length of 12 feet, without being regulated by the wall setback regulations of this chapter, as amended, and with the wall itself not counting towards the maximum sign area.

§ 27-706. Abandoned or Outdated Signs. [Ord. No. 199, 1/15/2025]

Signs advertising a use no longer in existence (other than a sign relating to a building that is clearly temporarily vacant and being offered to new tenants or for purchase) shall be removed within 90 days of the cessation of such use.

§ 27-707. Illumination of Signs. [Ord. No. 199, 1/15/2025]

See § 27-507, "Control of Light and Glare."

§ 27-708. Vehicles Functioning as Signs. [Ord. No. 199, 1/15/2025]

Any stationary vehicular sign on a lot shall be considered a freestanding sign and shall be subject to all of the requirements for freestanding signs in the district in which such vehicle, trailer or structure is located.

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§ 27-709. Prohibited Signs. [Ord. No. 199, 1/15/2025]

1. The following prohibitions on signs shall apply in all zoning districts:

   A. Portable signs.

   B. Any moving objects not defined as a flag or banner.

   C. Flashing, blinking, twinkling, animated scrolling or moving signs of any type are prohibited.

   D. Signs which emit smoke, visible vapors or particles, sound or odor are prohibited.

   E. Signs which contain information that states that a lot may be used for a purpose not otherwise permitted by this chapter, as amended, are prohibited.

   F. Signs that are of such form, shape or color that they resemble an official traffic sign, signal or device or that have any characteristics which are likely to confuse or distract the operator of a motor vehicle on a public street (such as prominent use of the words "danger") are prohibited.

   G. Signs or displays visible from a lot line that include words or images that are obscene or pornographic are prohibited.

   H. Balloons of greater than 50 cubic feet that are tethered to the ground or a structure for periods of over a day and that are primarily intended for advertising purposes are prohibited.

   I. Outdoor lasers are prohibited.

   J. To avoid distractions to motorists, neon lighting of more than 10 square feet per lot shall be prohibited as part of signs and if attached to the outside of a building.

§ 27-710. Construction of Signs. [Ord. No. 199, 1/15/2025]

Every permanent sign permitted in this section shall be constructed of durable materials and shall be kept in good condition and repair. The Zoning Officer shall by written notice require a property owner or lessee to repair or remove a dilapidated or unsafe sign within a specified period of time.

§ 27-711. Measurement and Major Types of Signs. [Ord. No. 199, 1/15/2025]

1. Measurement of Sign Area.

   A. Sign area shall include all lettering, wording and accompanying designs and symbols, together with related background areas on which they are displayed. One "freestanding sign" may include several signs that are all attached to one structure, with the total "sign area" being the area of a common geometric form that could encompass all signs.

   B. The sign area shall not include any structural supports that do not include a message.

   C. Where the sign consists of individual letters or symbols attached to or painted directly on a building or window, other than an illuminated background that is a part of the sign, the sign area shall be the smallest rectangle that includes all of the letters and symbols.

   D. The maximum sign area of sign shall be for each of two sides of a sign, provided that only one side of a sign is readable from any location.

   E. Unless otherwise specified, all square footages in regard to signs are maximum sizes.

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§ 27-712. Off-Premises Signs (Including Billboards). [Ord. No. 199, 1/15/2025]

1. Purposes. Off-premises signs are controlled by this chapter, as amended, for the following purposes, to: ensure that a physical environment is maintained that is attractive to desirable types of development, especially light industrial and office parks; prevent visual pollution in the Township and protect property values, especially in consideration of the fact that most commercial areas of the Township are within close proximity to existing residences; prevent glare on adjacent property and streets; avoid the creation of additional visual distractions to motorists, especially along busy arterial streets that involve complex turning movements and numerous traffic hazards; recognize the numerous alternative forms of free speech available in the Township, including existing nonconforming off-premises signs, on-premises signs and temporary signs and printed and electronic media; carry out the purposes listed in § 27-701.

2. Nonconforming Off-Premises Signs. This section is not intended to require the removal of an existing lawfully-placed off-premises sign that is in structurally sound condition.

3. PennDOT Sign. Signs erected and maintained by PennDOT are permitted by right in all districts.

4. Permitted Off-Premises Signs. Except for other types of signs that are specifically allowed by this section to be off-premises, an off-premises sign is only permitted if it meets the following requirements:

   A. District. An off-premises sign is only permitted in the TD-11 District.

   B. Location. An off-premises sign shall be set back a minimum of 25 feet from all lot lines and street rights-of-way.

   C. Maximum total sign area on each of two sides: 200 square feet. Such size may be composed of two or more sign faces provided the maximum total sign area is met.

   D. Spacing. Any off-premises sign shall be separated by a minimum of 1,000 feet from any other off-premises sign with a sign area greater than 20 square feet, including signs on either side of a street and including existing signs in other municipalities. No lot shall include more than one off-premises sign, except as allowed in Subsection 4F below.

   E. Maximum Height. 35 feet above the elevation of the adjacent street, measured at the street center line.

   F. Attached. No off-premises sign or sign face shall be attached in any way to any other off-premises sign, except that a sign may have two sign faces of 200 square feet each provided the angle between the signs does not exceed 45°.

   G. Control of Lighting and Glare. See standards in § 27-507. Lights shall be directed so they do not shine into the eyes of motorists nor residents of homes. Any lights shall be attached to the top of a sign and point downward. See also § 27-709, Subsection 1B(1).

   H. Residences. No off-premises sign greater than 20 square feet in sign area shall be located within 300 feet of an existing dwelling.

   I. Condition. The sign shall be maintained in a good and safe condition, particularly to avoid hazards in high winds. The area around the sign shall be kept free of debris. If the message of a sign is no longer intact, it shall be replaced with a solid color or a "for lease" sign.

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§ 27-713. Sign Type Permissions. [Ord. No. 199, 1/15/2025]

1. See Attachment 2 associated with:

   A. All signs that require a permit.

   B. The respective districts where specific sign types are allowed, subject to the requirements set forth in this Part.

2. Residential Development Sign. If a subdivision or land development is approved to include over 20 dwelling units, then a major residential development sign shall be permitted at each entrance to the project from exterior public streets. Such sign may have two sign faces on one structure, or one sign face on each structure on each side of the entrance.

   A. Each such sign shall have a maximum sign area of 30 square feet. Such signs shall have a maximum total height of six feet. The sign may be attached to a stone or decorative masonry wall or fence constructed of weather-resistant wood or materials with a similar appearance. In such case, the wall or fence shall have a maximum total height of six feet and a maximum length of 12 feet.

3. The applicant shall prove to the Zoning Officer that the signs will be of durable construction that requires little maintenance. Such sign shall not be illuminated. Attractive low-maintenance landscaping shall surround the sign.

4. Sign Message Changes.

   A. Signs may change their message from time to time provided that each message is visible for at least 10 seconds, except: (1) if the sign includes a sign area of more than 100 square feet, the sign message shall not change more than once per 30 seconds; and (2) time and temperature signs may change more frequently.

      (1) In addition, flashing lights visible from a street shall not be used to attract attention to a business. This restriction specifically includes window signs, but does not prohibit Christmas lighting or displays, within § 27-703.

§ 27-714. Sign-Related Definitions. [Ord. No. 199, 1/15/2025]

ADDRESS — A sign that designates the street number and/or street name for identification purposes, as designated by the United States Postal Service.

AWNING — Signs that are painted on, or affixed to, an awning structure.

BANNER — A sign made of any cloth, bunting, plastic, paper, or similar non-rigid material attached to any structure, staff, pole, rope, wire, or framing which is anchored on two or more edges or at all four corners and that is temporary in nature.

BILLBOARD — A type of off-premises sign.

CANOPY — Signs that are part of, or attached to, a canopy structure.

DIGITAL DISPLAY — The portion of a sign message made up of internally illuminated components capable of changing the message periodically. Digital displays may include but are not limited to LCD, LED, or plasma displays.

DIRECTIONAL — Signs designed to provide direction to pedestrian and vehicular traffic into and out of, or within a site.

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FLAG — Signs printed or painted on cloth, plastic, canvas, or other like material with distinctive colors, patterns, text or symbols, and attached to a pole or staff anchored along only one edge or supported or anchored at only two corners.

FREESTANDING — A sign supported by structures or supports, which may or may not be permanently affixed or anchored to the ground; and that is independent and detached from any building or other structure.

GROUND — A type of permanent freestanding sign supported entirely by a base structure.

HISTORIC — Memorializes an important historic place, event or person and that is specifically authorized by the Township or a county, state or federal agency.

HOLIDAY — Commemorates a holiday recognized by the Township, county, state or federal government and that does not include advertising.

ILLUMINATED — A sign with electrical equipment installed for illumination, either internally illuminated through its sign face by a light source contained inside the sign or externally illuminated by a light source aimed at its surface.

INCIDENTAL — A sign that displays general site information, instructions, directives, or restrictions that are primarily oriented to pedestrians and motor vehicle operators who have entered a property from a public street. These signs shall not contain any commercial advertising.

LANDMARK — A sign and sign structure attached to a building. This type of sign is designed to add interest and ingenuity and must be three-dimensional in construction. It is permitted with or without wording and used for the purposes of identifying a unique feature or distinct element of business operations.

LIMITED DURATION — A type of sign that can be displayed on private property for greater than 60 days but are not intended to be displayed for an indefinite period. Limited duration signs require a sign permit, which is valid for up to one year, and can be renewed annually.

MANUAL CHANGEABLE COPY — A sign or portion thereof on which the copy or symbols are changed manually through placement or drawing of letters or symbols on a sign face.

MARQUEE — Signs attached to a marquee structure. See definition for a "structure, marquee."

MESSAGE CENTER — A type of illuminated, changeable copy sign that consists of electronically changing alphanumeric text often used for gas price display signs and athletic scoreboards.

MURAL — A large picture/image (including, but not limited to, painted art) which is painted, constructed, or affixed directly onto a vertical building wall, which may or may not contain text, logos, and/or symbols.

NON-PERMANENT FREESTANDING — A sign supported by structures or supports not permanently affixed or anchored to the ground; and that is independent and detached from any building or other structure.

NOT READABLE — Not readable from any public street or any exterior lot line.

OFF-PREMISES — An outdoor sign whose message directs attention to a specific business, product, service, event or activity, or other commercial or noncommercial activity, or contains a noncommercial message about something that is not sold, produced, manufactured, furnished, or conducted on the premises upon which the sign is located.

OFFICIAL — Erected by the state, county, Township or other legally constituted governmental body, or specifically authorized by Township Ordinance, as amended, or resolution, and which exists for public purposes and to promote public safety.

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PERMANENT FREESTANDING — A sign supported by structures or supports that are permanently affixed or anchored to the ground; and that is independent and detached from any building or other structure.

PORTABLE — A sign designed to be transported or moved and not permanently attached to the ground, a building, or other structure.

PRIVATE DRIVE — A sign indicating a street or drive which is not publicly owned and maintained and used only for access by the occupants of the development and their guests.

PROJECTING — Signs mounted to a building with two sign faces that are generally perpendicular to the building wall, not to include signs located on a canopy, awning, or marquee.

PUBLIC — A sign erected or required by government agencies or utilities, including traffic, utility, safety, railroad crossing, and identification signs for public facilities.

PYLON — A type of permanent freestanding sign permanently supported by a structure of one or more poles, posts, uprights, or braces from the ground.

REQUIRED — Only includes information required to be posted outdoors by a government agency or the Township.

RIGHT-OF-WAY — Posted within the existing right-of-way of a public street and officially authorized by the Township or PennDOT.

ROOF — Building-mounted signs erected upon, against, or over the roof of a building.

SECURITY — An on-premises sign regulating the use of the premises, such as a "no trespassing," "no hunting," or "no soliciting" sign.

TEMPORARY — A type of non-permanent sign that can be displayed on private property for not more than 60 consecutive days, up to two times per calendar year. Temporary signs do not require a permit.

VEHICULAR — A sign affixed to a vehicle in such a manner that the sign is used primarily as a stationary advertisement for the business on which the vehicle sits or is otherwise not incidental to the vehicle's primary purpose.

WALL — Signs mounted to a building that are attached to or painted on an exterior wall so that the sign faces are generally parallel to the building wall. A sign installed on a false or mansard roof is also considered a wall sign.

WINDOW — Signs applied, painted, or affixed to a window. Signs that are placed inside a window, within three feet of the glass, facing outside the building, and are easily seen from the outside are considered window signs as well. Customary displays of merchandise behind a store window are not considered window signs.

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Part 8
GENERAL REGULATIONS

§ 27-801. Frontage Onto Improved Streets; Number of Uses or Buildings; Minimum Size of Dwellings. [Ord. No. 199, 1/15/2025]

1. Frontage Required Onto Improved Street. Each proposed new lot, each land development and each proposed principal building shall be on a lot which directly abuts a public street, a street proposed to be dedicated to the Township by the subdivision plan which created or creates such lot, or a private street which meets all of the requirements of the Township Subdivision and Land Development Ordinance. In the case of townhouses, mobilehome parks, or apartments, each unit may have access onto a parking court which then has access onto a public or private street meeting Township standards.

2. Number of Principal Uses and Principal Buildings Per Lot.

   A. A lot in a commercial or industrial district may include more than one permitted principal use per lot and/or more than one permitted principal building per lot, provided that all of the requirements are met for each use and each building. If differing dimensional requirements apply for different uses on the lot, then the most restrictive requirement shall apply.

      (1) For example, if use one requires a one acre lot area and use two on the same lot requires a two acre lot area, then the lot shall have a minimum lot area of two acres.

      (2) The applicant shall submit a site plan that demonstrates that each structure would meet the requirements of this chapter.

      (3) The uses and buildings shall be in common ownership. However, a condominium form of ownership of individual buildings, with a legally binding property owners association, may be established if the applicant proves to the satisfaction of the Zoning Officer, based upon review by the Township Solicitor, that there will be appropriate legal mechanisms in place.

   B. A lot within a residential district shall not include more than one principal use and shall not include more than one principal building unless specifically permitted by this chapter.

      (1) A mobilehome park, condominium residential development or apartment development may include more than one principal building per lot, provided all other requirements of this chapter, as amended, are met. A condominium form of ownership of individual dwelling units, with a legally binding homeowners' association, may be established if the applicant proves to the satisfaction of the Zoning Officer, based upon review by the Township Solicitor, that there will be appropriate legal mechanisms in place and compliance with applicable state law.

3. Minimum Size of Dwellings. Each dwelling unit shall include a minimum of 800 square feet of enclosed habitable, indoor, heated floor area, which shall be primarily above the ground level.

4. Maximum Occupancy. No recreational vehicle shall be occupied on a lot for more than 14 days in a 90-day period, except as may be approved within a campground with suitable central water and sewage service. No mobilehome shall be occupied on a lot as a dwelling unless it meets all of the requirements for a dwelling.

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§ 27-802. Height Exceptions. [Ord. No. 199, 1/15/2025]

The maximum structure height specified for each district shall not apply to: antenna that meet the requirements of this chapter, water towers, clock or bell towers, steeples and religious symbols attached to places of worship, electrical transmission lines, elevator shafts, windmills, skylights, chimneys, heating/ventilation/air conditional equipment, industrial mechanical equipment areas that are not occupied by humans, or other appurtenances usually required to be and customarily placed above the roof level and not intended for human occupancy. See also definition of "height" in § 27-202 and provisions in § 27-306, Subsection 5.

§ 27-803. Special Lot and Yard Requirements, Sight Distance and Buffer Yards. [Ord. No. 199, 1/15/2025]

1. In General.

   A. No lot, structure or use shall be created or developed in such a way that it would result in another lot, building or use not being able to meet the requirements of this chapter. This includes, but is not limited to setback areas, non-impervious areas and off-street parking areas.

   B. Emergency Access. All uses and structures shall have adequate provisions for access by emergency vehicles and fire ladders. Such access shall be maintained in a passable condition by the owner of the lot, or where applicable by the property-owner association.

   C. New Lots in TD1 Field and Wood.

      (1) Natural Resource Compatibility. For any proposed new lot that will be occupied by a new dwelling, the applicant shall complete the following evaluation of natural resources identified in Table 27-803.1.

Table 27-803.1

Line #	Existing Land Conditions	Gross Area (acres)		Permitted Disturbance Ratio		Net Buildable Area (acres)
Line 1	Class 1 Agricultural Soils	_____	x	0.1	=	_____
Line 2	Class 2 Agricultural Soils	_____	x	0.15	=	_____
Line 3	All Floodplains, Wetlands, and Hydric Soils	_____	x	0.05	=	_____
Line 4	All Springs and Vernal Pools	_____	x	0	=	_____
Line 5	Other Areas on Slopes 0-15% not calculated as part of Lines 1 through 5 above	_____	x	1	=	_____

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Table 27-803.1

Line #	Existing Land Conditions	Gross Area (acres)		Permitted Disturbance Ratio		Net Buildable Area (acres)
Line 6	Other Areas on Slopes 16-25% not calculated as part of Lines 1 through 5 above	_____	x	0.85	=	_____
Line 7	Other Areas on Slopes >25% not calculated as part of Lines 1 through 5 above	_____	x	0.25	=	_____
Line 8	Other Areas on Slopes >40% not calculated as part of Lines 1 through 5 above	_____	x	0	=	_____
Line 9	Sum of Lines 1 through 8	0.00 _____ (Total Gross Lot/Tract Area)				0.00 _____ (Total Net Buildable Area)

(2) Table 27-803.1 and the associated requirements of § 27-803 shall not be applicable to the following principle uses when situated within the TD1: Agricultural Operations, Farmstead, Concentrated Animal Feeding Operation, Concentrated Animal Operation, Mineral Extraction and Limited Winery.

(a) Any residential land use on a lot zoned TD-1 shall be located within the net buildable area.

(b) To the maximum extent feasible, a new residential lot shall be located to maximize the distance of the new dwelling from any livestock or poultry operations and to place the home upwind from such facilities, considering prevailing winds.

(c) Any new principal dwelling unit shall be set back a minimum of 200 feet from the lot line of another lot that includes a principal livestock or poultry use, unless the owner of such livestock or poultry use provides a written statement stating that they waive such additional setback.

D. No plantings, shrubs, arborvitae, hedges, fences, walls, or other structures shall be placed within the right-of-way or required front yard setback.

2. Exceptions to Minimum Lot Areas, Lot Widths and Yards.

A. Corner Lots. For a corner lot, each yard that abuts a public street shall be considered a front yard and meet the requirements for minimum depth of a front yard. See definition of "lot, corner" in § 27-202.

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B. Projections into Required Yards.

(1) The following may extend or project into a required yard not more than three feet:

(a) Cornices, eaves, roof overhangs, sills or other similar architectural features;

(b) Exterior stairways, unenclosed fire escapes or other required means of egress;

(c) Down spouts or rain leads so long as they shall be diverted to largest possible absorption area or into the street;

(d) Chimneys;

(e) Outside doors for basement access;

(f) Window awnings;

(g) Bay windows;

(h) Chase for heating pipes or other similar structures that do not include space usable by persons, except as may be required within a drainage or utility easement.

(2) Steps, stoops, fire escapes, handicapped ramps, and landings necessary to provide entrance to a building may be located within a required setback area.

C. Porches and Decks. A residential porch or deck that is unenclosed may extend a maximum of 15 feet into the required rear setback. Such porch or deck may be covered by a roof or awning. An unenclosed front porch, stoop or steeps may intrude up to 10 feet into the front yard setback.

D. Lot Widths Around Curves. Around the bulb of a cul-de-sac street or on the outside of the curve of a street with a radius of less than 150 feet, the minimum lot width at the minimum building setback line may be reduced to 60% of the width that would otherwise be required.

3. Sight Clearance at Intersections. At the intersection of two streets, a clear sight triangle shall be provided. Within this triangle, no visual obstructions shall be allowed between the height of three feet and 10 feet above the ground level, except for utility posts, mailboxes, single sign posts and the trunks of canopy trees. The triangle shall be measured along the center line of the right-of-way line of the streets. Each leg of the triangle shall be measured 100 feet from the intersection of the center lines of the streets, except the length shall be increased to 150 feet along the center line of a collector street or an arterial street. A third longer leg shall connect the two legs along the center lines, to form the triangle.

A. However, in place of the above sight triangle, where a local street intersects an arterial or collector street with a stop sign only at the local street, each leg of the triangle along the arterial or collector street shall be increased to 250 feet and the leg along the local street shall be decreased to 15 feet beyond the right-of-way of the arterial or collector street.

B. The clear sight triangle shall be kept free of such obstructions in perpetuity.

C. Where a new driveway enters onto a state road, the Township may require the establishment of a clear sight triangle that is equal in length along the intersecting street to the minimum sight distance that will be required under state regulations and then connected to a leg of a triangle that is measured 15 feet back from the right-of-way of the state road.

D. Where a new driveway enters onto a Township road, the Township may require the

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establishment of a clear sight triangle that is 150 feet in length along the center line of the intersecting street, measured in each direction from the point of intersection of the center line of the driveway and the intersecting street. A third longer leg in each direction shall connect the two legs that run along the center lines, to form the triangle. The leg running along the center line of the driveway shall be measured 10 feet back from the right-of-way of the street.

4. Buffer Yards. Buffer yards and plant screening complying with the following standards shall be required under the following situations, unless a more restrictive provision is established by another section of this chapter:

A. A minimum 20-foot-wide buffer yard with plant screening shall be required along the rear and side lot lines of any nonresidential lot contiguous to a lot occupied by an existing principal dwelling or an undeveloped residentially zoned lot.

(1) If a principal business use will include areas used for manufacturing or will have a loading dock that will be routinely serviced by two or more tractor-trailer trucks or refrigerated trucks, then the minimum buffer yard width along such manufacturing area and/or loading dock shall be increased to 60 feet, and the minimum initial height of plantings shall be increased to six feet.

(2) If a lot will include more than 100,000 square feet of new business total floor area, then the minimum buffer yard width shall be increased to 60 feet and the minimum initial height of plantings shall be increased to six feet.

(3) If a dwelling will be on the same lot as a principal business use, then a buffer yard shall not be required by this section.

(4) A 10-foot minimum buffer yard with landscaped screening shall be required where a subdivision or land development of new dwellings will have rear yards abutting a public street or expressway.

(5) A buffer yard is also required to be provided by the following if they are abutting and visible from a public street:

(a) Along lot lines and street rights-of-way of any newly developed or expanded outdoor industrial storage or loading area.

(b) Along lot lines and street rights-of-way of any newly developed or expanded area routinely used for the overnight parking of two or more tractor-trailer trucks or trailers of tractor-trailers.

B. A required yard may overlap a required buffer yard, provided the requirement for each is met. The buffer yard shall be measured from the district boundary line, street right-of-way line or lot line, whichever is applicable. Required plantings shall not be placed within the right-of-way, except that the Township may allow deciduous canopy trees.

C. The buffer yard shall be a landscaped area free of structures, dumpsters, commercial or industrial storage or display, signs, manufacturing or processing activity, materials, loading and unloading areas or vehicle parking or display.

D. Fence. Any wall or fence in a buffer yard shall be placed on the inside (nonresidential side) of any required plant screening. If a fence in a buffer yard has one side that is more finished or smoother than the other side, the more finished or smoother side shall face the outside of the

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buffer yard.

E. Each planting screen shall meet the following requirements:

(1) Plant materials needed to form the visual screen shall have a minimum height when planted of four feet. In addition, an average of one deciduous shade tree, with a minimum trunk diameter of two inches measured six inches above the finished ground level, shall be placed for each 50 feet of length of the buffer yard. The shade trees may be clustered or spaced unevenly.

(2) Plants needed to form the visual screen shall be of such species, spacing and size as can reasonably be expected to produce within three years a mostly solid year-round visual screen at least six feet in height. Maintenance shall be conducted in perpetuity.

(3) The plant screen shall be placed so that at maturity the plants will not obstruct a street or sidewalk.

(4) The plant visual screen shall extend the full length of the lot line, except for: (a) Township-approved points of approximately perpendicular vehicle or pedestrian ingress and egress to the lot; (b) locations necessary to comply with safe sight distance requirements where the plantings cannot feasibly be moved further back; and (c) locations needed to meet other specific state, Township and utility requirements, such as stormwater swales.

(5) American Arborvitae and similar weak-stem plants shall not be used to meet the buffer yard requirements. A monotonous straight row of the same species is discouraged. A more naturalistic form of planting is encouraged with a mix of species. If more than 20 evergreen plants are proposed, no more than 50% shall be of one species.

(6) Evergreen trees should be planted at diagonal off-sets so that there is room for future growth of the trees.

(7) The plant screening shall primarily use evergreen trees.

(8) If existing healthy trees with a trunk diameter of six inches or greater (measured 4.5 feet above the ground level) exist within the buffer yard, they shall be preserved to the maximum extent feasible. The Zoning Officer may certify that preserving existing mature trees and shrubs within the buffer yard will meet the same purposes as the new plant screening. In such case, part or all of the new plant screening may be waived in writing by the Zoning Officer.

(9) The use of earth berms in combination with landscaping is encouraged within buffer yards to provide additional protection to dwellings and residential areas. An earth berm may be required as a condition of a conditional or special exception use approval.

F. Buffer Yard Plans.

(1) Prior to the issuance of a permit under this chapter, as amended, where a buffer yard would be required, and on any required subdivision or land development plan, the applicant shall submit plans showing:

(a) The location and arrangement of each buffer yard.

(b) The placement, general selection of species and initial size of all plant materials.

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(c) The placement, size, materials, and type of all fences to be placed in such buffer yard.

G. The above standards apply for both zoning and building permit applications.

§ 27-804. Landscaping. [Ord. No. 199, 1/15/2025]

1. Any part of a commercial, industrial, institutional or apartment lot which is not used for structures, loading areas, parking spaces and aisles, sidewalks and designated storage areas shall be provided with an all-season, well-maintained vegetative groundcover, and shall be landscaped with trees and shrubs. Landscaped areas shall be kept free of debris, rubbish, and noxious weeds.

2. See also the buffer yard provisions in § 27-803.

3. Street Trees. As part of the creation of a new lot or the construction of a new principal nonresidential building, or development of parking area for six or more parking spaces, deciduous shade street trees shall be planted between such lot lines, building and/or parking area and any adjacent public street(s). This requirement shall not apply along street segments where existing healthy trees will be preserved and protected during construction that will serve the same purpose.

   A. Number. A minimum average of one such tree shall be planted for each 50 feet of length of street right-of-way around the lot.

   B. Location. Such trees shall be placed immediately outside of the street right-of-way, or an alternative location acceptable to the Board of Supervisors.

   C. Buffer. Where shade trees may be required under the buffer yard provisions, the same tree may be used to count towards both requirements.

   D. The street trees shall meet the requirements of Subsection 4, except that a species may also be used that is on the list of allowed street trees in the Subdivision and Land Development Ordinance.

   E. This requirement for street trees shall not apply for an agricultural or single-family detached residential lot of more than three acres.

   F. The above standards apply for both zoning and building permit applications.

4. Parking Lot Landscaping.

   A. A minimum of one deciduous tree shall be required for every 15 new off-street parking spaces.

   B. If a lot will include 30 or more new parking spaces, landscaped islands shall be provided within auto parking areas. Otherwise, the trees may be planted around the parking area.

   C. Deciduous trees required by this section shall meet the following standards:

      (1) Type of Trees Permitted. Required trees shall be species native to Pennsylvania, unless the applicant proves to the satisfaction of the Township's Assigned Commission, as applicable, or Zoning Officer that another type of tree would shade paved areas, be resistant to disease, road salt and air pollution and be attractive.

      (2) Quality of Trees. Required trees shall be of symmetrical growth and free of insect pests and disease.

      (3) Minimum Size. The trunk diameter (measured at DBH) shall be a minimum of two inches

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or greater.

(4) Planting and Maintenance. Required trees shall be:

(a) Planted in conformance with good landscaping practices, with adequate unpaved surface around each for water and air.

(b) Properly protected by curbs, curb stops, distance or other devices from damage from vehicles.

5. Parking Lot Landscaping. A minimum vegetative area shall be provided that includes at least a four-foot minimum radius around all sides of the trunk of each required deciduous tree within or adjacent to a parking lot.

6. Review and Approval. Where landscaping is required by this chapter, the applicant shall submit a landscaping plan, in addition to a site plan, showing proposed initial sizes, locations and species of plantings.

7. Landscape Maintenance. All shade tree, buffer yard and other landscaping required by this chapter, as amended, shall be perpetually maintained by the property owner. Any landscaping needed to meet an ordinance, as amended, requirement that dies, is removed, or is severely damaged shall be replaced by the current property owner, on a one-to-one basis, as soon as is practical considering growing seasons, within a maximum of 150 days.

8. Stormwater Basin Landscaping. The following requirements shall apply to landscaping within and around stormwater management basins:

A. All areas of stormwater management basins, including basin floors, side slopes, berms, impoundment structures, or other earth structures, shall be planted with suitable vegetation, such as meadow plantings or grasses specifically suited for stormwater basins.

B. Trees and shrubs shall be planted around stormwater basins. However, trees and shrubs shall not be planted in locations that would interfere with the function of the basin, such as within 30 feet from the outlet/drain structure, emergency spillway or dam. A minimum average of two trees and 10 shrubs shall be required to be planted around the basin for every 100 linear feet of basin perimeter. Such perimeter shall be measured at the elevation of the top of the berm. Such trees and shrubs shall be in addition to other Township requirements. Trees shall have an initial trunk diameter of two inches, measured six inches above the ground. Shrubs shall have an initial height of four feet.

C. Natural ground cover plant species shall be planted on the floors and slopes of the basin. These ground covers may include wildflowers, meadows or nonaggressive grasses. Species shall be chosen that are suitable for the expected wetness of various portions of the basin. The plantings shall provide a continuous cover over all earth areas of the basin. The plantings shall not interfere with the proper functioning of the basin, in the determination of the Township Engineer.

D. Lawn grass areas may be sodded or hydroseeded to minimize erosion during the establishment period. Once established, turfgrass areas on non-wet areas of the basin shall be maintained at a height of not more than 12 inches.

E. To the maximum extent feasible, stormwater basins shall be designed with slopes that blend with the surrounding topography. Areas intended to be mowed shall have a maximum slope of

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3:1.

9. The above standards apply for both zoning and building permit applications.

§ 27-805. Nonconformities. [Ord. No. 199, 1/15/2025]

1. Proof and Registration of Nonconformities. It shall be the responsibility of, with the burden of proof upon, a party asserting a nonconformity to provide the evidence that it is lawful. A property owner may request a written statement of nonconformity from the Zoning Officer after providing sufficient evidence.

2. Continuation of Nonconformities.

   A. A lawful nonconforming use, structure or lot as defined by this chapter, as amended, may be continued and may be sold and continued by new owners.

   B. Any expansion of, construction upon or change in use of a nonconformity shall only occur in conformance with this section.

   C. If an existing use was not lawfully established, it shall not have any right to continue as a nonconforming use.

3. Expansion of or Construction upon Nonconformities. The following shall apply, unless the structure is approved under Subsection 4.

   A. Nonconforming Structure.

      (1) The Zoning Officer shall permit a nonconforming structure to be reconstructed or expanded provided:

         (a) Such action will not increase the severity or amount of the nonconformity (such as the area of the building extending into the required yard) or create any new nonconformity.

         (b) Any expanded area will comply with the applicable setbacks in that district and other requirements of this chapter, except as may be allowed under Subsection 3A(3) below.

      (2) In the case of a nonconforming structure which is used by a nonconforming use, any expansion shall also meet the requirements of this section regarding nonconforming uses.

      (3) As a special exception, the Zoning Hearing Board may approve a reduction of up to 50% in a side or rear setback for an existing dwelling if the applicant proves such setback is necessary to allow a customary addition to such a dwelling or a replacement of an existing undersized dwelling with a new dwelling. This subsection shall not allow a reduction in setback to increase the number of dwelling units on the lot, except for a unit for care of relative.

   B. Nonconforming Lots.

      (1) Permitted Construction on a Nonconforming Lot. A single permitted by right principal use and its customary accessory uses may be constructed, reconstructed or expanded on a nonconforming lot provided all of the following additional requirements are met:

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(a) The lot must be a lawful nonconforming lot of record.

(b) Minimum setback requirements shall be met.

(c) State and federal wetland regulations shall be met.

(d) If a septic or well is used, the requirements for such shall be met.

C. Expansion of a Nonconforming Nonresidential Use. A nonconforming use or a building used by a nonconforming use shall not be expanded, except in accordance with the following provisions:

(1) An expansion of more than 5% in total floor area shall require special exception approval from the Zoning Hearing Board under Part 1.

(2) Such reconstruction or expansion shall be only upon the same lot that the nonconforming use was located upon at the time the use became nonconforming.

(3) The (a) total floor area used by a nonconforming use; or the (b) total land area covered by the nonconforming use, whichever is more restrictive, shall not be increased by greater than 50% beyond what existed in the nonconforming use at the time the use first became nonconforming.

(a) The above maximum increase shall be measured in aggregate over the entire life of the nonconformity. All expansions of the nonconforming use and/or building(s) that occurred since the use originally became nonconforming shall count towards the above maximum increase.

(4) Any expansion of a nonconforming use shall meet the required setbacks and other requirements of this chapter, unless the Zoning Hearing Board grants a variance.

D. Expansion of a Nonconforming Residential Use. An existing nonconforming residential use may be expanded as a permitted by right use provided that: (1) the number of dwelling units or rooming house units are not increased; (2) the expansion meets all applicable setbacks; (3) no new types of nonconformities are created; and (4) a nonconformity is not made more severe.

E. Nonconforming Sign. The provisions of this chapter, as amended, shall not provide a right to expand or extend a nonconforming sign. Instead, any expansions or extensions of a nonconforming sign shall comply with this chapter.

4. Damaged or Destroyed Nonconformities. A nonconforming structure or nonconforming use that has been destroyed or damaged may be rebuilt in a nonconforming fashion only if: (1) the application for a building permit is submitted within 18 months after the date of damage or destruction; (2) work begins in earnest within 180 days afterward the building permit is issued and continues; and (3) no nonconformity may be newly created or increased by any reconstruction. The property shall be properly secured during such time in such a way to keep out trespassers and to avoid harm to neighboring properties.

5. Abandonment of a Nonconformity.

A. If a nonconforming use of a building or land is discontinued, razed, removed or abandoned for 12 or more months, subsequent use of such building or land shall conform with the regulations of the district in which it is located, except:

(1) As provided for in the "damaged or destroyed nonconformities" provisions of this section

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in Subsection 4.

B. The applicant shall be responsible for providing clear and convincing evidence that the nonconformity was not abandoned.

C. An existing lawful separate dwelling unit may be unrented for any period of time without being considered "abandoned" under this chapter.

6. Changes from One Nonconforming Use to Another.

A. Once changed to a conforming use, a structure or land shall not revert to a nonconforming use.

B. A nonconforming use may be changed to a different nonconforming use only if approved as a special exception by the Zoning Hearing Board. However, special exception approval is not needed for a simple change within an existing building from one lawful nonconforming retail store use to another retail store use or from one lawful nonconforming personal service use to another personal service use provided that the new use complies with any Zoning Hearing Board conditions that applied to the previous use and is not more objectionable in external effects than the previous use.

C. Where special exception approval is required for a change of a nonconforming use, the Board shall determine whether the applicant has provided sufficient proof to show that the proposed new use will be equal or less objectionable in external effects than the preexisting nonconforming use with regard to:

(1) Traffic safety and generation (especially truck traffic).

(2) Noise, dust, fumes, vapors, gases, odor, glare, vibration, fire, hazardous substances, and explosive hazards.

(3) Amount and character of outdoor storage.

(4) Hours of operation if the use would be close to dwellings.

(5) Compatibility with the character of the surrounding area.

D. A nonconforming use shall not be changed to a nonconforming adult use.

7. District Changes. Any uses, structures or lots that become nonconforming because of a zoning district change shall be regulated under this section on nonconformities.

§ 27-806. Dumpster Screening and Location. [Ord. No. 199, 1/15/2025]

1. Site plans submitted to the Township shall show the proposed location of any garbage dumpsters. The Township may require that such proposed location be modified to provide compatibility with adjacent uses.

2. Garbage dumpsters shall be surrounded on at least three or four sides by a solid fencing, wall, or landscaping if the dumpster would be visible from a street or a residential lot.

§ 27-807. Commercial and/or Industrial Buildings; Master Key Knox-Boxes. [Ord. No. 199, 1/15/2025]

1. Buildings, General. All new commercial and/or industrial buildings constructed after the effective

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date hereof, and all existing commercial and/or industrial buildings which undergo remodeling in excess of $1,000 after the effective date hereof, shall be provided with a master key Knox-Box® at a location approved by the Fire Chief or his designee. Such box shall be provided with master keys necessary for access to all portions of the premises. Such box and keys shall be provided prior to issuance of certificate of occupancy.

2. Application for Approval. Application for approval of compliance with this section shall be made to the Zoning Officer. Fees shall be set by the Board of Supervisors. Approval application shall be executed by the Zoning Officer and Fire Chief prior to issuance of certificate of occupancy.

3. Buildings with Elevators. All buildings equipped with elevators shall be provided with a Master Key Knox-Box as in Subsection 1 above. The building owner/manager shall provide two sets of keys for entry to building and all portions of premises and two sets of elevator control keys if elevators are equipped with Fire Company bypass switches.

4. Other Structures. All new buildings constructed after the effective date that contain four or more residential dwellings with a common secured entrance or which undergo remodeling in excess of $1,000 after the effective date hereof shall be provided with a master key Knox-Box at a location approved by the Fire Chief or his designee. Such box shall be provided with master keys necessary for access to all portions of the premises. Such box and keys shall be provided prior to issuance of certificate of occupancy.

§ 27-808. Solar Energy Systems. [Ord. No. 199, 1/15/2025]

1. Title. This section shall be known as the "Solar Energy Systems Ordinance, as amended, for Upper Nazareth Township."

2. Purpose. The purpose of this section is to promote the use of solar energy and to provide for the land development, installation and construction of solar energy systems in the Township subject to reasonable conditions that will protect the public health, safety and welfare.

3. Classification.

   A. Solar energy systems shall be allowed in any zoning district and may be installed upon receipt of the necessary construction, electrical and/or mechanical permit(s). This section applies to solar energy systems to be installed and constructed for residential or commercial use.

4. Solar energy systems that are the primary use of a lot are governed by other sections of this chapter, as amended, or the Subdivision and Land Development Ordinance.

5. Applicability.

   A. This section applies to solar energy systems to be installed and constructed after the effective date of this section, and all applications for solar energy systems on existing structures or property.

   B. Solar energy systems constructed prior to the effective date of this section shall not be required to meet the requirements of this section.

   C. Any upgrade, modification, or structural change that materially alters the size or placement of an existing solar energy system shall comply with the provisions of this section.

6. Design and Installation.

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A. To the extent applicable, the solar energy system shall comply with the Pennsylvania Uniform Construction Code, Act 45 of 1999, 35 P.S. § 7210.101 et seq., as amended, and the regulations adopted by the Department of Labor and Industry.

B. The design of the solar energy system shall conform to applicable industry standards.

7. Setbacks and Height Restrictions.

A. Residential Zoning District.

(1) A solar energy system, when attached to a building, shall not cause a nuisance from reflective light and shall conform to the applicable zoning district building height requirement.

(2) A solar energy system, when part of a structure, shall comply with the following requirements:

(a) Shall not be classified as a utility pole.

(b) Only one solar energy system shall be permitted on a building lot.

(c) Solar energy system shall have a maximum total square footage of not greater than 1% of the lot size.

(d) Solar energy system setback requirement shall be the greater of the total height of the structure, zoning district building setback requirement to be measured from the outermost edge of the structure, or not greater than the existing building height requirement in the zoning district.

(e) Applicant seeking more than one solar energy system per building lot, more than one solar energy system per structure, or solar energy systems whose square footage is greater than 1% of the lot size shall be deemed a special exception use in the TD1 Field and Wood District.

B. Commercial/Industrial Zoning Districts.

(1) A solar energy system, when attached to a building, shall not cause a nuisance from reflective light and shall conform to the applicable zoning district building height requirement.

(2) A solar energy system, when part of a structure, shall comply with the following requirements:

(a) Shall not be classified as a utility pole.

(b) Only one solar energy system shall be permitted on a building lot.

(c) Solar energy system shall have a maximum total square footage of not greater than 1% of the lot size.

(d) Solar energy system setback requirement shall be the greater of the total height of the structure, zoning district building setback requirement to be measured from the outermost edge of the structure, or not greater than the existing building height requirement in the zoning district.

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(e) Applicant seeking more than one solar energy system per building lot, more than one solar energy system per structure, or solar energy systems whose square footage is greater than 1% of the lot size shall be deemed a special exception use in the TD9, TD10, and TD11 Zoning Districts only.

§ 27-809. Small Wind Energy Systems. [Ord. No. 199, 1/15/2025]

1. Intent. The intent of these regulations is to promote the safe, effective and efficient use of small wind energy systems to reduce the on-site consumption of utility-supplied electricity.

2. Review and Permit Process.

A. A small wind energy system shall be permitted as an accessory use on any lot of at least one acre in size located in the TD1 Field and Wood district, subject to compliance with the following ordinance provisions:

(1) A zoning permit shall be required for the installation of a small wind energy system. No more than one small wind energy system may be placed on any lot.

(2) In addition to any other requirements or application procedures, the zoning permit application shall be accompanied by a plot plan that includes the following:

(a) Lot lines and physical dimensions of the property.

(b) Location, dimensions, and types of existing principal and accessory structures on the property.

(c) Location of the small wind energy system tower.

(d) The right-of-way delineation of any public road that is contiguous with the property.

(e) Any overhead utility lines.

(f) Any easements.

(g) Small wind energy system specifications, including manufacturer and model, rotor diameter, tower height, tower type (freestanding or guyed).

(h) Detailed tower and tower foundation drawings, stamped and sealed by a Pennsylvania licensed professional engineer.

(i) A map of the 200-foot area surrounding the subject property showing all affected lands and structures at a legible scale.

3. Tower Height.

A. Tower heights of not more than 80 feet shall be allowed on parcels between one and two acres. Properties over two and up to five acres may have tower heights up to and including 140 feet. For property sizes of five acres or more, there is no limitation on tower height except as imposed by FAA regulations, provided that evidence is provided that the proposed height does not exceed the height recommended by the manufacturer or distributor of the system.

4. Setbacks.

A. Setbacks for the system tower shall be no closer to the lot line than the height of the system and,

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no part of the system, including guy wires anchors, may extend closer than 10 feet to the property boundary. Additionally, the outer and innermost guy wires must be marked and clearly visible to a height of six feet above the guy wire anchors.

5. Compliance.

   A. Permit applications for small wind energy systems shall be accompanied by a line drawing of the electrical components in sufficient detail to allow for determination that the manner of installation conforms to the National Electrical Code. This information may be supplied by the manufacturer.

   B. Permit applications for small wind energy systems shall be accompanied by standard drawings of the wind turbine structure, including the tower, base, and footings. An engineering analysis of the tower showing compliance with the Uniform Building Code and certified by a licensed professional engineer shall also be submitted. This analysis may be supplied by the manufacturer.

   C. Small wind energy systems shall comply with all applicable FAA regulations, including any necessary approvals for installations close to airports.

   D. Small wind energy systems shall comply with all applicable state construction and electrical codes. The owner/operator of the small wind energy system must also obtain any permits required by other federal, state and local agencies/departments prior to erecting the system.

6. Noise and Interference.

   A. Decibel levels for the system shall not exceed 60 decibels (dBA) measured at the lot line, except during short-term events such as utility outages and severe wind storms.

   B. The small wind energy system shall not cause any radio, television, microwave, or navigation interference. If a signal disturbance problem is identified, the owner shall correct the problem within 90 days of being notified of the problem.

   C. The system owner/operator shall make all reasonable efforts to minimize and/or eliminate shadow flicker to occupied buildings on immediately adjacent properties. The applicant is responsible for identifying problem areas where shadow flicker will interfere with existing or future residences and describe proposed mitigation measures including, but not limited to, a change in siting of the wind energy conversion system, a change in the operation of the wind energy conversion system or grading or landscaping mitigation measures.

7. Appearance and Lighting.

   A. The small wind energy system shall maintain a galvanized neutral finish or be painted to conform to the surrounding environment to minimize adverse effects. No small wind energy system shall have any signage, writing, pictures, or decorations placed on it at any time other than warning, equipment, and ownership information. No small wind energy system shall have any flags, streamers, banners, or other decorative items that extend from any part of the system, placed on it at any time.

   B. A small wind energy system shall not be artificially lit unless such lighting is required by the Federal Aviation Administration.

8. Safety Features.

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A. The small wind energy system shall have an automatic overspeed control to render the system inoperable when winds are blowing in excess of the speeds for which the system is designed, and a manually operable method to render the system inoperable in the event of a structural or mechanical failure of any part of the system.

B. All ground-mounted electrical and control equipment shall be labeled and secured to prevent unauthorized access. The tower shall be designed and installed so as not to provide step bolts, a ladder, rungs, or other publicly accessible means of climbing the tower, for a minimum height of eight feet above the ground elevation.

C. All electrical wires associated with a small wind energy system shall be located underground when practicable. All wires not located underground including, but not limited to, wires necessary to connect the wind generator to the tower wiring, the tower wiring to the disconnect junction box and the grounding wires, shall be contained within an appropriate conduit suitable for same.

D. No portion of the small wind energy system blade shall extend within 20 feet of the ground.

9. Notification.

A. No small wind energy system shall be installed until evidence has been given that the utility company has been informed of the customer's intent to install an inter connected customer-owned generator. Off-grid systems shall be exempt from this requirement.

10. Meteorological Towers.

A. A meteorological tower shall be permitted under the same standards, permit requirements, and procedures as a small wind energy system.

11. Removal.

A. A small wind energy system that is out-of-service for a continuous 12-month period will be deemed to have been abandoned. Non-function or lack of operation may be proven by reports from the interconnected utility. The owner/operator shall make available to the zoning administrator all reports to and from the purchaser of energy from the small wind energy system if requested.

B. If the small wind energy system is determined to be abandoned, the owner of the small wind energy system shall remove the wind generator from the tower at the owner's sole expense within three months of notice of abandonment. The owner is solely responsible for removal of the system and all costs, financial or otherwise, of system removal.

§ 27-810. Non-Tower Based Wireless Communications Facilities (CCF). [Ord. No. 199, 1/15/2025]

1. Regulations.

A. General Requirements for all Non-Tower CCFs and Base Stations.

(1) Standard of Care. Any non-tower CCF that is considered a co-location, modification, or replacement shall be designed, constructed, operated, maintained, repaired, modified and removed in strict compliance with all current applicable technical, safety and safety-related codes, including, but not limited to, the most recent editions of the American National Standards Institute (ANSI) Code, National Electrical Safety Code, and National

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Electrical Code. Any nontower CCF shall at all times be kept and maintained in good condition, order and repair by qualified maintenance and construction personnel, so that the same shall not endanger the life of any person or any property in the Township. The Township shall be notified of the use or storage of external power sources, such as batteries or fuel tanks.

(2) Wind and Load.

(a) Any non-tower CCF that is considered a co-location, modification, or replacement shall be designed to withstand the effects of wind according to the standard designed by the American National Standards Institute as prepared by the engineering departments of the Electronics Industry Association, and Telecommunications Industry Association (ANSI/EIA/TIA 222-G Code, as amended).

(b) The wireless support structure to which the non-tower CCF is attached shall be able to withstand the additional structural load of the co-location, modification, or replacement.

(c) A copy of the structural analysis, signed and sealed by a registered engineer in the State of Pennsylvania, shall be submitted to the Township and reviewed as a portion of the permitting process for co-locations, modifications, or replacements.

(3) Public Safety Communications. No non-tower CCF shall interfere with public safety communications, or the reception of broadband, television, radio or other communication services enjoyed by occupants of nearby properties.

(4) Aviation Safety. Non-tower CCFs shall comply with all federal and state laws and regulations concerning aviation safety.

(5) Radio Frequency Emissions. No non-tower CCF may, by itself or in conjunction with other CCF's, generate radio frequency emissions in excess of the standards and regulations of the FCC, including but not limited to, the FCC Office of Engineering Technology Bulletin 65 entitled "Evaluating Compliance with FCC Guidelines for Human Exposure to Radio Frequency Electromagnetic Fields," as amended.

(6) Historic Buildings. Non-tower CCFs may not be located on a building or structure that is listed on either the National or Pennsylvania Registers of Historic Places or has been designated by the Township as being of historic significance.

B. Non-Tower CCF Development Regulations — No Substantial Change. If the eligible facilities request for a non-tower commercial communication facility or base station is a co-location, modification, or a replacement that does not substantially change the existing wireless support structure, then the requirements contained herein, will be applicable.

(1) Non-tower CCF's are permitted in all zoning districts.

(2) Building Permit.

(a) Zoning Permit Required. Co-locations, modifications, or replacements of non-tower CCF's or transmission equipment on existing wireless support structures or base stations are subject to the initial zoning or land use approvals for the previously approved wireless support structure or nontower CCF, and subject only to the zoning permit review and approval process of the Township.

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(b) No Zoning Permit Required. Replacement of non-tower CCFs or transmission equipment on existing, Township-approved, wireless support structures or base stations, without an increase in wind or structural load, may be performed by the applicant without obtaining a zoning permit.

(3) Removal. In the event that use of a non-tower CCF is discontinued, the owner shall provide written notice to the Township of its intent to discontinue use and the date when the use shall be discontinued. If it remains unused for a period of 12 consecutive months, the Township will provide notice to the owner/operator to remove the tower.

(4) Unused or abandoned non-tower CCFs or portions of non-tower CCFs shall be removed as follows:

(a) All abandoned or unused non-tower CCFs and accessory facilities shall be removed within three months of the cessation of operations at the site, or from the time the municipality provides notice, unless a time extension is approved by the Township.

(b) If the non-tower CCF or accessory facility is not removed within three months of the cessation of operations at a site, or within any longer period approved by the Township, the non-tower CCF and/or associated facilities and equipment may be removed by the Township and the cost of removal assessed against the owner of the non-tower CCF.

(5) Timing of decision. Within 30 calendar days of the date that an application for a co-location, modification, or replacement of a non-tower CCF is filed with the Township, the Township shall notify the applicant in writing of any information that may be required to complete such application. If additional information is requested by the Township to complete an application, the time period for review may be tolled by mutual agreement. Within 60 calendar days of receipt of the application, accounting for tolling, the Township must make a final decision regarding the application and shall advise the applicant in writing of such decision.

(a) A determination of incompleteness must specifically delineate all missing information, and specify the code provision, ordinance, application instructions or otherwise publicly stated procedures that require the information to be submitted.

(b) Following an applicant's resubmission in response to a determination of incompleteness, the Township may reach a subsequent determination of incompleteness based solely on the applicant's failure to supply the specific information that was requested within the first 30 days.

(c) The 60-day review period begins running again when the applicant makes its supplemental resubmission; however, the review period may be tolled, once again, if the Township notifies the applicant within 10 days that the supplemental submission did not provide the specific information identified in the original notice delineating missing information.

C. Non-Tower CCF Development Regulations — Substantial Change. If the eligible facilities request for a non-tower CCF or base station is a co-location, modification, or a replacement that substantially changes the existing wireless support structure, then the requirements contained herein will be applicable.

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(1) Non-tower CCFs are permitted in all zoning districts subject to the initial zoning or land use approvals for the previously approved wireless support structure or non-tower CCF. These CCFs are subject to zoning permit review and approval process of the Township.

(2) Maintenance. The following maintenance requirements shall apply:

(a) Any non-tower CCF shall be fully automated and unattended on a daily basis and shall be visited only for maintenance or emergency repair.

(b) Such maintenance shall be performed to ensure the upkeep of the facility in order to promote the safety and security of the Township's residents.

(c) All maintenance activities shall utilize nothing less than the best available technology for preventing failures and accidents.

(3) Retention of Experts. The Township may hire any consultant(s) and/or expert(s) necessary to assist the Township in reviewing and evaluating the application for approval of the non-tower CCF and, once approved, in reviewing and evaluating any potential violations of the terms and conditions of this section. The applicant and/or owner of the CCF shall reimburse the Township for all costs of the Township's consultant(s) in providing expert evaluation and consultation in connection with these activities.

(4) Timing of Decision. Within 30 calendar days of the date that an application for a non-tower CCF is filed with the Township, the Township shall notify the applicant in writing of any information that may be required to complete such application. Within 90 calendar days of receipt of a complete application, the Township shall make its final decision on whether to approve the application and shall advise the applicant in writing of such decision. If additional information was requested by the Township to complete an application, the time required by the applicant to provide the information shall not be counted toward the Township's 90-day review period.

(5) Removal. In the event that use of a non-tower CCF is discontinued, the owner shall provide written notice to the Township of its intent to discontinue use and the date when the use shall be discontinued. Unused or abandoned non-tower CCFs or portions of non-tower CCFs shall be removed as follows:

(a) All abandoned or unused non-tower CCFs and accessory facilities shall be removed within three months of the cessation of operations at the site unless a time extension is approved by the Township.

(b) If the non-tower CCF or accessory facility is not removed within three months of the cessation of operations at a site, or within any longer period approved by the Township, the non-tower CCF and/or associated facilities and equipment may be removed by the Township and the cost of removal assessed against the owner of the CCF.

(c) Prior to the issuance of a zoning permit, the owner/operator of the non-tower CCF shall post security, in a form acceptable to the Township, favoring the municipality, to assure the faithful performance of the terms and conditions of this section. Security shall be an amount to cover tower and/or antenna removal and site clean-up. The security shall be utilized by the Township in the event the owner or operator of the non-tower CCF does not remove the facility as outlined in Subsections 1C(5)(a) and

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(b) above or to recover any and all compensatory damages incurred by the Township for violations of this section, after reasonable notice and opportunity to cure.

(6) Indemnification. Each person that owns or operates a non-tower CCF shall, at its sole cost and expense, indemnify, defend, and hold harmless the Township, its elected and appointed officials, employees, engineer, solicitor, planner, agents, and other relevant professional consultants, at all times against any and all claims for personal injury, including death, and property damage arising in whole or in part from, caused by or connected with any act or omission of the Person, its officers, agents, employees, or contractors arising out of, but not limited to, the construction, installation, operations, maintenance, or removal of a non-tower CCF. The obligation to indemnify, hold harmless, and defend shall include, but not be limited to, the obligation to pay judgments, injuries, liabilities, damages, reasonable attorney's fees, reasonable expert fees, court costs, and all other costs of indemnification.

D. Non-Tower CCFs Outside the Rights-of-Way. If the eligible facilities request for a nontower commercial communication facility or base station is a co-location, modification, or a replacement that substantially changes the existing wireless support structure AND is located outside the right-of-way, then the requirements contained herein, will be applicable.

(1) Development Regulations. Non-tower CCFs shall be co-located on existing wireless support structures/base stations, subject to the following conditions:

(a) Such non-tower CCF does not exceed the maximum permitted height of the existing wireless support structure.

(b) If the non-tower CCF applicant proposes to locate the communications equipment in a separate building, the building shall comply with the minimum requirements for the applicable zoning district.

(c) A six-foot high security fence shall surround any separate communications equipment building. Vehicular access to the communications equipment building shall not interfere with the parking or vehicular circulations on the site for the principal use.

(2) Design Regulations.

(a) Non-tower CCFs shall be treated to match the supporting structure in order to minimize aesthetic impact.

(b) Non-tower CCFs, which are mounted to a building or similar structure, may not exceed a height of 15 feet above the roof or parapet, whichever is higher.

(c) All non-tower based CCF applicants must submit documentation to the Township justifying the total height of the non-tower structure. Such documentation shall be analyzed in the context of such justification on an individual basis.

(d) Antennae, and their respective accompanying support structures, shall be no greater in diameter than any cross-sectional dimension than is reasonably necessary for their proper functioning.

(3) Inspection. The Township reserves the right to inspect any non-tower CCF to ensure compliance with the provisions of this section and any other provisions found within the

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Township Ordinances or state or federal law. The Township and/or its agents shall have the authority to enter the property upon which a non-tower CCF is located at any time, upon reasonable notice to the operator, to ensure such compliance.

E. Non-Tower CCFs in the Rights-of-Way. If the eligible facilities request for a non-tower commercial communication facility or base station is a co-location, modification, or a replacement that substantially changes the existing wireless support structure AND is located in the right-of-way, then the requirements contained herein, will be applicable.

(1) Co-Location. Non-tower CCFs in the right-of-way shall be located on existing poles/base stations, such as existing utility poles or light poles or other wireless support structures.

(2) Design Requirements.

(a) Non-tower CCF installations located above the surface grade in the public right-of-way, including, but not limited to, those on streetlights and joint utility poles, shall consist of equipment components that are no more than six feet in height and that are compatible in scale and proportion to the structures upon which they are mounted. All equipment shall be the smallest and least visibly intrusive equipment feasible.

(b) Antennae and all support equipment shall be treated to match the supporting structure. Non-tower CCFs and accompanying equipment shall be painted, or otherwise coated, to be visually compatible with the support structure upon which they are mounted.

(3) Equipment Location.

(a) Non-tower CCFs and accessory equipment shall be located so as not to cause any physical or visual obstruction to pedestrian or vehicular traffic, or to otherwise create safety hazards to pedestrians and/or motorists or to otherwise inconvenience public use of the right-of-way as determined by the Township.

(b) In no case shall ground-mounted equipment, walls, or landscaping be located within 18 inches of the face of the curb.

(c) Ground-mounted equipment shall be located underground. In the event an applicant can demonstrate, to the satisfaction of the Township Engineer, that ground-mounted equipment cannot be placed underground, then all such equipment shall be screened, to the fullest extent possible, through the use of landscaping or other decorative features to the satisfaction of the Township.

(d) Required electrical meter cabinets shall be screened to blend in with the surrounding area to the satisfaction of the Township.

(e) Any graffiti on the non-tower CCF or on any accessory equipment shall be removed at the sole expense of the owner within 10 business days of notice of the existence of the graffiti.

(f) Any underground vaults related to non-tower CCFs shall be reviewed and approved by the Township.

(4) Time, Place and Manner. The Township shall determine the time, place and manner of construction, maintenance, repair and/or removal of all non-tower CCFs in the right-of-

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way based on public safety, traffic management, physical burden on the right-of-way, and related considerations. For public utilities, the time, place and manner requirements shall be consistent with the police powers of the Township and the requirements of the Public Utility Code.

(5) Relocation or Removal of Facilities. Within 60 days following written notice from the Township, or such longer period as the Township determines is reasonably necessary or such shorter period in the case of an Emergency, an owner of a non-tower CCF in the right-of-way shall, at its own expense, temporarily or permanently remove, relocate, change or alter the position of any non-tower CCF when the Township, consistent with its police powers and applicable Public Utility Commission regulations, shall have determined that such removal, relocation, change or alteration is reasonably necessary under the following circumstances:

(a) The construction, repair, maintenance or installation of any Township; or

1) Other public improvement in the right-of-way;

(b) The operations of the Township or other governmental entity in the right-of-way;

(c) Vacation of a street or road or the release of a utility easement; or

(d) An emergency as determined by the Township.

(6) Compensation for Right-of-Way Use. In addition to permit fees, every non-tower CCF in the right-of-way is subject to the Township's right to fix annually a fair and reasonable compensation to be paid for use and occupancy of the right-of-way. Such compensation for right-of-way use shall be directly related to the Township's actual right-of-way management costs, including, but not limited to, the costs of the administration and performance of all reviewing, inspecting, permitting, supervising and other right-of-way management activities by the Township. The owner of each non-tower CCF shall pay an annual fee to the Township to compensate the Township for its costs incurred in connection with the activities described above. The annual right-of-way management fee for nontower CCFs shall be determined by the Township and authorized by resolution of Township Board and shall be based on the Township's actual right-of-way management costs as applied to such non-tower CCF.

§ 27-811. Composting. [Ord. No. 199, 1/15/2025]

1. Residential and Commercial. All composting shall be conducted in such a manner that does not create a fire, rodent or disease-carrying insect hazard and does not cause noxious odors off of the subject property.

2. Residential and Commercial. Composting shall be permitted as an accessory use, provided that the composting is limited to biodegradable vegetative material, including trees, shrubs, leaves, bark and vegetable waste. Such composting shall be kept free of other garbage and animal fats.

3. Commercial. Minimum lot area for composting of manure that was not generated on-site shall be 25 acres. Any composting of manure shall comply with the latest edition of the Pennsylvania Manure Management Manual.

4. Commercial — Setbacks. Composting areas of greater than one acre shall be set back 75 feet from lot lines of abutting residential lot lines, except that a 200 feet minimum setback shall apply from all

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lot lines for composting of manure that was not generated on site.

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Part 9
RIGHT-OF-WAY MANAGEMENT

§ 27-901. Short Title. [Ord. No. 199, 1/15/2025]

This Part shall be known as the "Upper Nazareth Township Right-of-Way Management Ordinance."

§ 27-902. Definitions. [Ord. No. 199, 1/15/2025]

Terms used in this Part shall have the following meanings, whether or not the terms are capitalized. Unless otherwise expressly stated, terms not defined in this Part shall be construed consistent with Title 47 of the United States Code, and, if not defined therein, with their common and ordinary meaning.

AFFILIATE — A person that (directly or indirectly) owns or controls, is owned or controlled by, or is under common ownership or control with another person.

ANTENNA — Any device used for the transmission of radio, television, wireless telephone, pager, commercial mobile service, or any other wireless signals.

COMMUNICATIONS ACT — The Communications Act of 1934,[75] as amended as of the time of enactment of this Part.

EQUIPMENT — Any tangible asset used to install, repair, or maintain a facility in the right-of-way.

FACILITY(IES) — Conduit, pipes, cables, wires, lines, towers, optic fiber, poles, associated equipment and appurtenances, and any other facilities located in the right-of-way and designed, constructed, and/or used, by telecommunications providers, public utilities, or other persons for transmitting, transporting, or distributing communications, telecommunications, electricity, natural gas or manufactured gas, oil, gasoline, steam, or any other form of energy, signal or substance. The term "facility" or "facilities" may include "commercial communications facilities."

GROSS REVENUE —

A. All gross revenue of grantee or any affiliate of grantee derived from the use or occupancy of right-of-way for the provision of nonexempt services to persons having a residence or place of business in the Township. "Gross revenue" shall include amounts earned, regardless of:

   (1) Whether the amounts are paid in cash, in trade, or by means of some other benefit to grantee or its affiliates;

   (2) Whether the services with which the revenue is associated are provided at cost or the revenue amount can be matched against an equivalent expenditure; and/or

   (3) How the amounts are initially recorded by grantee or its affiliates.

B. "Gross revenue" shall not be a net of:

   (1) Expense, including, but not limited to, any operating expense; capital expense; sales expense; or commission;

   (2) Any accrual, including, without limitation, any accrual for commissions; or

   (3) Any other expenditure, regardless of whether such expense, deduction, accrual, or expenditure

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75. Editor's Note: See 47 U.S.C.A. § 151 et seq.

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reflects a cash payment.

C. "Gross revenue" shall not be double counted, viz., "gross revenue" which has been included as gross revenue of both grantee and an affiliate but which sum is included in gross revenue due solely to a transfer of funds between grantee and the affiliate shall not be counted for purposes of determining gross revenue.

PERSON — Corporations, companies, associations, joint stock companies, firms, partnerships, limited liability companies, and other entities; municipal, industrial development, housing, redevelopment, and other authorities and corporations established pursuant to statutes of the Commonwealth of Pennsylvania; and individuals, provided that person does not include or apply to the Township or to any department or agency of the Township.

RIGHT-OF-WAY, RIGHTS-OF-WAY or ROW — The surface of and space above and below any real property in the Township in which the Township has a regulatory interest, or interest as a trustee for the public, as such interests now or hereafter exist, including, but not limited to, all streets, highways, avenues, roads, alleys, sidewalks, tunnels, viaducts, bridges, skyways, or any other public place, area or property under the control of the Township, and any unrestricted public or utility easements established, dedicated, platted, improved or devoted for utility purposes but excluding lands other than streets that are owned by the Township. The phrase "in the right(s)-of-way" means "in, on over, along, above and/or under the right(s)-of-way."

STREET — A strip of land or part thereof within the right-of-way, whether dedicated or not, that is intended or used for vehicular and pedestrian traffic. The phrase "in the (a) street(s)" means "in, on, over, along, above and/or under the (a) street(s)."

SYSTEM — Any telecommunications system, or integral part thereof.

TELECOMMUNICATIONS — The transmission, between or among points specified by the user, of information of the user's choosing, without change in the form or content of the information as sent and received.

UNDERGROUND FACILITIES — Utility and telecommunications facilities located under the surface of the ground, excluding the underground foundations or supports for tower-based facilities.

WIRELESS COMMUNICATIONS FACILITY(IES) — The antennas, nodes, control boxes, towers, poles, conduits, ducts, pedestals, electronics and other equipment used for the purpose of transmitting, receiving, distributing, providing or accommodating wireless telecommunications services.

§ 27-903. Registration. [Ord. No. 199, 1/15/2025]

Each person, other than on a transitory basis, who occupies or uses or seeks to occupy or use the right-of-way to provide a nonexempt service to persons, residences or businesses within the Township, or places any equipment or facility in a right-of-way other than on a transitory basis, including persons with installation and maintenance responsibilities by lease, sublease or assignment, must register with the Township. A completed Provider Certification Form[76] and associated documents as outlined on the form shall be submitted to and accepted by the Township.

§ 27-904. Authorization of Use; Exemptions. [Ord. No. 199, 1/15/2025]

1. It shall be unlawful for any person to construct, repair, remove, relocate or perform any work on or use any facilities or any part thereof in a right-of-way unless in compliance with these rights-of-way

76. Editor's Note: Said Form is on file in the Township offices.

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management provisions. Continuous compliance with these right-of-way provisions grants to grantee a nonexclusive privilege to construct, repair, remove, relocate or perform any work on or use any facilities or any part thereof in the rights-of-way within the Township and to occupy or use the rights-of-way for the purpose of providing nonexempt service to persons, residences or businesses within the Township.

2. Exemptions. These right-of-way management provisions shall not apply to the occupation or use of the right-of-way to provide:

   A. The transportation of passengers or property or both as a common carrier by means of elevated street railway, inclined plan railway, railroad, street railway or underground street, railway, tackles-trolley omnibus or by any combination of such means.

   B. The transportation of artificial or natural gas, electricity, petroleum or petroleum products or water or any combination of such substances for the public.

   C. The production, generation, manufacture, transmission, storage, distribution or furnishing of natural or artificial gas, electricity, steam, air conditioning or refrigerating service or any combination thereof to or for the public.

   D. The diverting, developing, pumping, impounding, distributing or furnishing of water from either surface or subsurface sources to or for the public.

   E. The collection, treatment or disposal of sewage for the public.

   F. The conveyance or transmission of messages or communications except as set forth herein, by telephone or telegraph for the public.

   G. The diverting, pumping or impounding of water for the development or furnishing of hydroelectric power to or for the public.

   H. The transportation of oxygen or nitrogen, or both, by pipeline or conduit for the public.

   I. Any ancillary service reasonably necessary or appropriate for the accomplishment of services specified in one through eight above.

   J. Cable service.

3. Commercial Communications Facilities Not Exempt. Wireless telecommunications facilities proposed within rights-of-way are not exempt and are subject to the requirements of this Part. This Part does not exempt any person or corporation who or which furnishes, installs or maintains wireless telecommunication facilities, including the installation of relay stations and facilities, communications facilities, aerials, antennas and aerial masts which are regulated pursuant to other regulations or ordinances of Township, as amended, and as may further be revised in the future.

4. This Part does not authorize a person to provide cable service. A person seeking to provide cable service must obtain permission from the Township under separate legislation of the Township.

5. This Part does not authorize the grantee to attach to any pole or other structure in the right-of-way, devices for the intentional transmission or radiation of radio frequency emissions or energy by any means now known or hereafter developed.

§ 27-905. Location and Regulation of Facilities. [Ord. No. 199, 1/15/2025]

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1. Subsequent to the enactment of these provisions, all new facilities' services shall be installed underground with the exception of those facilities described in Subsections 2 and 3 of this section.

2. Co-Location of Facilities. Facilities may be co-located on wireless support structures and other facilities, including poles that exist on or before the enactment date of this Part, including aboveground facilities.

3. Installation of New Facilities. Tower-based facilities may be installed above-ground subsequent to the enactment of this Part if they are installed within the right-of-way in accordance with this chapter.

4. The authorization of the installation of facilities hereunder shall not exempt an applicant from compliance with the requirements of any other Ordinance, as amended, of the Township.

§ 27-906. Standards of Service. [Ord. No. 199, 1/15/2025]

1. All facilities and equipment installed or erected by the grantee pursuant to the terms hereof shall be located so as to cause a minimum of interference with the proper use of rights-of-way and with the rights and reasonable convenience of property owners who own property that adjoins any said rights-of-way.

2. If during the course of grantee's construction, operation, and/or maintenance of its facilities and equipment there occurs a disturbance of any right-of-way by the grantee, the grantee shall, at its expense, replace and restore such right-of-way to a condition which existed immediately prior to such disturbance. If grantee excavates the surface of any right-of-way, grantee shall be responsible for restoration of the right-of-way and its surface within the area affected by the excavation. The Township reserves the right, after providing notice to grantee, to remove and/or repair any work done by grantee which is inadequate. The reasonable cost thereof, including the cost of inspection and supervision, shall be paid by the grantee. All excavations made by grantee in the right-of-way shall be properly safeguarded for the prevention of accidents.

3. The grantee shall notify Township and all affected property owners regarding grantee's need to trim trees or other natural growth upon and overhanging rights-of-way so as to prevent the branches of such trees from coming in contact with its facilities or equipment. Trimming shall be limited to the area required to clear its facilities or equipment. The Township shall be notified, in writing, 48 hours in advance of any tree or shrub trimming or clearing, and at the discretion of the Township, appoint a designee to inspect and monitor trimming and clearing operations.

4. All such work in the rights-of-way shall be performed in accordance with applicable safety codes and technical requirements.

5. Prior to beginning any construction of facilities, the grantee shall provide the Township with a written construction schedule for work in the right-of-way which schedule shall be updated as changed. Upon completion of initial construction and upon completion of construction of any modification to its facilities, the grantee shall provide the Township with a map showing the location of its installed facilities in the rights-of-way. Such maps shall be provided in both paper forms as well as in an electronic format for the placement on the Township's GIS system. Annually thereafter, the grantee shall provide a map to the Township showing the location of the grantee's facilities in the rights-of-way on a scale of 150 feet per inch or whatever standard scale the Township adopts for general use.

6. The grantee may make excavations in rights-of-way for any facility subject to obtaining any applicable excavation permits from the Township. Prior to doing such work, grantee must apply for, and obtain, appropriate permits from the Township, and give appropriate notices to any other

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licensees and/or permittees of the Township, and/or other units of government owing or maintaining facilities which may be affected by the proposed excavation.

7. Nothing in this Part shall be construed to prevent the Township or other agency of government or municipal authority from constructing sewers, grading, paving, repairing and/or altering any street and/or laying down, repairing and/or removing water mains and/or constructing and/or establishing any other public work or improvement. If any of the grantee's facilities or equipment interferes with the construction or repair of any street or public improvement, including construction, repair or removal of a sewer or water main, the grantee's facilities or equipment shall be removed or replaced in the manner the respective Township or other agency of government or municipal authority shall direct. Any and all such removal or replacement shall be at the expense of the grantee. Should grantee fail to remove, adjust or relocate its facilities by the date established by the Township or other agency of government or municipal authority, the Township or other agency of government or municipal authority may cause and/or effect such removal, adjustment or relocation, and the expense thereof shall be paid by grantee, including all reasonable costs and expenses incurred by the Township or other agency of government or municipal authority due to grantee's delay.

§ 27-907. Rental and Right-of-Way Management Fees. [Ord. No. 199, 1/15/2025]

1. Compensation for Right-of-Way Use. Every grantee registered with the Township is subject to the Township's right to fix annually a fair and reasonable compensation to be paid for use and occupancy of the right-of-way. Such compensation for right-of-way use shall be directly related to the Township's actual right-of-way management costs, including, but not limited to, the costs of issuing the permit and the administration and performance of all reviewing, inspecting, permitting, supervising and other right-of-way management activities by the Township.

2. Annual Right-of-Way Management Fee. Each grantee that is not exempt shall pay an annual fee to the Township to compensate the Township for its costs incurred in connection with reviewing, permitting, inspecting, and supervising the ongoing use and occupancy of the right-of-way. The annual right-of-way management fee shall be determined by the Township and authorized by resolution of Township Board of Supervisors and shall be based on the Township's actual right-of-way management costs as applied to such grantee. This annual right-of-way management fee shall not be adjusted for at least two years from the effective date of this Part, except for purposes of inflation as determined by the National Consumer Price Index published by the United States Department of Labor. Any adjustments to the fee subsequent to two years from the effective date shall be authorized by resolution of Township Board of Supervisors, shall be based on the Township's actual right-of-way management costs as applied to such grantee and shall be implemented only after providing at least 30 days' prior written notice to all then-current grantees. The costs recovered under this subsection shall not include costs recovered by any other fee provided in this Part or in related ordinances.

§ 27-908. Insurance, Indemnification and Bonds or Other Surety. [Ord. No. 199, 1/15/2025]

1. The grantee shall save the Township, its agents, employees and elected and appointed officials, harmless from and against all claims, damages, losses and expenses, including reasonable attorney's fees, sustained on account of any suit, judgment, execution, claim or demand whatsoever arising out of the construction, leasing, operation or maintenance of the grantee's equipment, facilities, and services specified by this Part, whether or not any act or omission complained of is authorized, allowed and/or prohibited by the Ordinance, as amended, and the rights granted thereunder.

2. Insurance.

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A. Grantee shall oin and maintain in full force and effect throughout the term of this Part insurance with an insurance company licensed to do business and doing business in the Commonwealth of Pennsylvania and acceptable to the Township. All companies will be required to be rated A-VII or better by A.M. Best or A better by Standard and Poor's. Grantee shall provide Township with proof of such insurance so required.

B. Grantee shall obtain and maintain in full force and effect, at grantee's sole expense, insurance coverage in the types and minimum amounts as required by and shown:

Type	Amount
Worker's compensation and statutory employer's liability	$500,000/$500,000/$500,000
Commercial general (public) - liability to include coverage for the following where the exposure exists:	
Premises operations independent contractors products/completed operations contractual liability explosion, collapse and underground property damage	Combined single limit for bodily injury and property. Damages $2,000,000 per occurrence or its equivalent
Comprehensive vehicle insurance coverage for loading and unloading hazards for:	
Owned/leased vehicles nonowned vehicles hired vehicles	Combined single limit of bodily injury and property damage $1,000,000 per occurrence or its equivalent

C. The Township shall receive without expense copies of certificates of insurance evidencing coverage stated above.

D. Grantee agrees that with respect to the above-required insurance, all insurance certificates will contain the following required provisions:

(1) Name the Township and its officers, employees, board members and elected and appointed officials as additional insured parties (as the interests of each insured may appear) as to all applicable coverage (except worker's compensation);

(2) Provide 60 days' written notice to the Township for cancellation, nonrenewal, or material change;

(3) Provide that all provisions of this Part concerning liability, duty, and standard of care, including the Indemnity provisions, shall be underwritten by contractual coverage sufficient to include such obligations within applicable policies, subject to policy terms and conditions.

E. Companies issuing the insurance policies shall have no recourse against the Township for payment of any premiums or assessments which all are set at the sole risk of the grantee. Insurance policies obtained by the grantee shall provide that the issuing company waives all right of recovery by way of subrogation against the Township in connection with any damage covered by these policies.

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3. Bonds.

   A. The grantee shall obtain and maintain, at its sole cost and expense, and file with the Township, a corporate surety bond with a surety company authorized to do business in the Commonwealth of Pennsylvania in the amount of 15% of grantee's estimated costs to secure grantee's performance of its obligations and faithful adherence to all requirements of this Part.

   B. No action, proceeding or exercise of right with respect to such bond shall affect the Township's rights to demand full and faithful performance under this Part or limit the grantee's liability for damages.

   C. The bond shall contain the following endorsement: "It is hereby understood and agreed that this bond may not be cancelled by the surety nor any intention not to renew be exercised by the surety until 60 days after receipt by the Township of Upper Nazareth, by registered mail, of written notice of such intent."

4. All expenses of the above-noted insurance and bond shall be paid by the grantee.

5. The insurance policies mentioned herein shall contain an endorsement stating the following: "Should any policies of insurance be cancelled, or coverages be reduced before the expiration date of said policies of insurance, the issuer shall deliver 60 days' advance written notice to the Township."

6. Neither the provisions of this Part nor any insurance accepted by the Township pursuant hereto, nor any damages recovered by the Township thereunder, shall be construed to excuse faithful performance by the grantee and/or limit the liability of the grantee under the Ordinance, as amended, issued hereunder and/or for damages, either to the full amount of the bond or otherwise.

§ 27-909. Enforcement and Termination of Ordinance. [Ord. No. 199, 1/15/2025]

1. General. In addition to all other rights, remedies and powers reserved and/or retained by the Township under this rights-of-way ordinance, as amended, or otherwise, the Township reserves the right to bring a civil action to collect any sums due to the Township by the grantee and/or forfeit or revoke all privileges of the grantee under this Part in the event of willful or repeated violation of this Part.

2. Penalties. Any person which commits or suffers the violation of this Part, shall, upon being found liable in a civil enforcement proceeding commenced by the Township, pay a fine of $600 plus all court costs, including reasonable attorneys' fees incurred by the Township. A separate offense shall arise for each day or portion thereof in which a violation is found to exist or for each section of this Part which is found to have been violated. In addition, the Township also may enforce this Part by an action brought in equity.

§ 27-910. Compliance with Applicable Laws and Ordinances. [Ord. No. 199, 1/15/2025]

The grantee shall at all times be subject to the exercise of the police power of the Township. The grantee shall comply with all lawful ordinances, codes, laws, rules and regulations of the Township, County of Northampton, Commonwealth of Pennsylvania, and the United States of America which are now in effect or hereafter enacted.

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Appendix A

ADJUSTMENTS TO TOWNSHIP BOUNDARIES

§ A-101. Adjustments to Township Boundaries.

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§ A-101. Adjustments to Township Boundaries.

(Reserved)

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Appendix B

DEBT AND BOND ISSUES

§ B-101. Debt and Bond Issues.

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§ B-101. Debt and Bond Issues.

Ord./Res.	Date	Subject
Ord. 29A	3/15/1974	Increasing the indebtedness of the Township, by the issue of a general obligation note in the amount of $25,000 for sundry purposes
Ord. 70	11/13/1996	Increasing the indebtedness of the Township, by the issue of a general obligation note in the amount of $300,000 for the construction of an administration building
Res. No. 22-11	5/4/2022	Issuance of tax-exempt obligations to finance Heritage Village project

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UPPER NAZARETH CODE

Appendix C

FRANCHISES AND SERVICES

§ C-101. Franchises and Services.

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§ C-101. Franchises and Services.

Ord./Res.	Date	Subject
Ord. No. 21	10/22/1969	Granting permission to D.J. Cable Company, Inc., a Pennsylvania corporation, to construct, maintain and operate within the Township a community television antenna system
Ord. No. 27	--/--/1972	Granting permission to Twin County Trans-Video, Inc., a Pennsylvania corporation, to construct, maintain and operate within the Township a community television antenna system
Ord. No. 158	12/18/2013	Authorizing execution of a cable franchise agreement between the Township and RCN Telecom Services (Lehigh), LLC
Ord. No. 163	11/19/2014	Authorizing execution of a cable franchise agreement between the Township and Electric Cable TV, Inc.
Res. No. 16-19	10/19/2016	Accepting the application and consenting to change of control of cable television franchise
Res. No. 21-09	2/17/2020	Accepting the application and consenting to change of control of cable television franchise
Ord. No. 195	4/3/2024	Authorizing execution of a cable franchise agreement between the Township and RCN Telecom Services (Lehigh), LLC

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Appendix D

GOVERNMENTAL AND INTERGOVERNMENTAL AFFAIRS

§ D-101. Governmental and Intergovernmental Affairs.

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§ D-101. Governmental and Intergovernmental Affairs.

Ord./Res.	Date	Subject
Ord. 35	--/--/----	Providing for the adoption and regulation of a Police Pension Fund and Police Pension Program for full-time policemen of the Township
Ord. 42A	--/--/----	Providing for the adoption and regulation of a Police Pension Fund and Police Pension Program for full-time policemen of the Township
Ord. 42B	6/10/1987	Amending the Police Pension Plan of the Township
Ord. 47	12/9/1987	Setting forth compensation of members of the Board of Supervisors
Ord. 57	11/14/1990	Implementing an agreement for intergovernmental cooperation known as the "Municipal Police Mutual Aid Agreement"
Ord. 60	2/12/1992	Amending the Police Pension Plan of the Township
Ord. 68	11/8/1995	Amending the Police Pension Plan of the Township
Ord. 69	12/27/1995	Amending and revising the compensation paid to the Township Supervisors
Ord. 71	12/22/1997	Providing for the establishment of a Pension Plan for the full-time police employees of the Township

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Ord./Res.	Date	Subject
Ord. 84	12/26/2002	Amending the Police Pension Plan of the Township
Ord. 90	12/10/2003	Authorizing the execution of a joint purchasing agreement by and between the participating municipalities belonging to the Nazareth Area Council of Governments
Res. 491	12/10/2003	Adopting a public comment policy and order of business in accordance with Robert's Rules of Order
Ord. 105	--/--/2004	Authorizing the Township to join with other local government units as a settlor of the Pennsylvania Local Government Investment Trust for the purpose of purchasing shares of the trust
Ord. 121	11/15/2006	Authorizing execution of the Nazareth Area Multi-municipal Comprehensive Plan Intermunicipal Cooperative Implementation Agreement
Ord. 129	11/7/2007	Authorizing approval and execution of the Nazareth Area Council of Governments Emergency Services Mutual Aid Agreement
Ord. 131	4/16/2008	Authorizing the Township, to join with other political subdivisions as a member of the Pennsylvania Municipal Health Insurance Cooperative (PMHIC), to enter into an intergovernmental agreement for the purpose of joining the PMHIC and to participate as a member of the PMHIC

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Ord./Res.	Date	Subject
Ord. 133	7/2/2008	Electing to join the Pennsylvania Municipal Retirement System under Article IV of the Pennsylvania Municipal Retirement Law: agreeing to be bound by all provisions of the Pennsylvania Municipal Retirement Law as amended and as applicable to member municipalities joining
Res. 541	12/3/2008	Appointing a certified or competent public accountant or firm of certified or competent public accounts to make an examination of all of the accounts of the Township for the fiscal year 2008
Res. 08-2	1/7/2008	Setting the compensation of Tax Collector
Res. 08-1	1/7/2008	Designation of depositories
Res. 08-5	1/16/2008	Resolving that no contributions shall be required by the participants in the Township Police Pension Plan for the calendar year 2008
Res. 08-6	2/6/2008	Implementing the National Incident Management System
Res. 08-08	2/20/2008	Appointing Jerilyn Kronstadt as the Chief Administrative Officer of pension plans for the Township
Res. 08-09	1/17/2008	Corporate authorization resolution
Res. 08-11	6/4/2008	Authorizing submission of a Federal Fiscal Year (FFY) 2008 Community Development Block Grant Subgrant Application to the County of Northampton
Res. 08-12	8/6/2008	Creating the Township Municipal Capital Improvements Committee pursuant to Act 209 of 1990, as amended
Res. 09-1	1/5/2009	Designation of depositories

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Ord./Res.	Date	Subject
Res. 09-3	1/5/2009	Appointing Jerilyn Kronstadt as the Chief Administrative Officer of pension plans for the Township
Res. 09-5	3/4/2009	Agreeing to use the dotGrants on-line reporting system to file the required Liquid Fuels forms annually
Res. 09-6	1/21/2009	Adopting the Nazareth Area School District Resolution and Earned Income Tax Collection Policies
Res. 09-7	2/18/2009	Resolving that no contributions shall be required by the participants in the Township Police Pension Plan for the calendar year 2009
Res. 09-10	5/6/2009	Designating and appointing Betty Parrish as the Township's representative to the Northampton County Tax Collection Committee
Res. 09-13	12/16/2009	Resolving that the lands of Carol S. Keller, designated as Tax Parcel No. K6-20-1 and K6-20-1F may be added to the East Allen Township Agricultural Security Area District
Res. 09-14	12/--/2009	Appointing a certified or competent public accountant or firm of certified or competent public accounts to make an examination of all of the accounts of the Township for the fiscal year 2009
Res. 10-2	1/4/2010	Designation of depositories
Res. 10-3	1/4/2010	Resolving that no contributions shall be required by the participants in the Township Police Pension Plan for the calendar year 2010

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Ord./Res.	Date	Subject
Res. 10-4	6/2/2010	Adopting Land Use Assumption Report
Res. 10-5	7/21/2010	Opposing any measure, initiative, or plan that mandates the forced merger or consolidation of local governments
Res. 10-06	8/4/2010	Opposing the lease or sale of Gracedale
Res. 10-07	9/15/2010	Authorizing submission of a municipal park acquisition and development program grant application to the County of Northampton
Res. 10-8	10/6/2010	Adopting a code of conduct for the participation in and acceptance of funds associated with the Community Development Block Grant Program (CDBG)
Res. 10-9	12/15/2010	Appointing a certified or competent public accountant or firm of certified or competent public accounts to make an examination of all of the accounts of the Township for the fiscal year 2010
Res. 11-2	1/3/2011	Designation of depositories
Res. 11-3	1/3/2011	Resolving that no contributions shall be required by the participants in the Township Police Pension Plan for the calendar year 2011
Res. 11-5	4/6/2011	Joint purchase of police and utility vehicles with South Hills Area Council of Governments
Res. 11-04	1/19/2011	Authorizing adoption of retirement plan
Res. 11-6	4/6/2011	Approving the transfer of restaurant liquor license No. R-14145 into the Township from the Township of Bethlehem

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Ord./Res.	Date	Subject
Ord. 147	6/1/2011	Amending the provisions of the Police Pension Plan
Res. 11-7	6/2/2011	Designation of depositories
Res. 11-08	8/3/2011	Appointing and designating a liaison between it and Northampton Tax Collection Committee and its Tax Officer for the express purpose of sharing confidential tax information with the Township for official purposes
Res. 11-09	8/17/2011	Adopting emergency operations plan for the Township
Ord. 150	11/16/2011	Approving and authorizing an Intergovernmental Cooperation Agreement between the Township and East Allen Township entitled "Intergovernmental Cooperation Agreement" concerning enforcement of traffic restrictions on Township Line Road
Res. 12-2	1/3/2012	Designation of depositories
Res. 12-3	1/3/2012	Resolving that no contributions shall be required by the participants in the Township Police Pension Plan for the calendar year 2012
Res. 12-4	1/3/2012	Appointing a certified or competent public accountant or firm of certified or competent public accounts to make an examination of all of the accounts of the Township for the fiscal year 2011
Res. 12-05	1/3/2012	Appointing and designating a liaison between it and Northampton Tax Collection Committee and its Tax Officer for the express purpose of sharing confidential tax information with the Township for official purposes

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Ord./Res.	Date	Subject
Res. 12-07	--/--/2012	Allowing payments of 2012 Township Real Estate taxes in two installments
Ord. 151	2/1/2012	Establishing a Deferred Retirement Option Plan as an optional form of benefit under the existing Township Police Pension Plan
Res. 12-08	3/7/2012	Prevailing wage reform
Res. 12-09	3/21/2012	Designating and appointing Betty Parrish as the Township's representative to the Northampton County Tax Collection Committee and that Scott Sylvainus is designated and appointed as the Township's alternate representative to the Northampton County Tax Collection Committee and that James Augustine is designated and appointed Township's second alternate representative to the Northampton County Tax Collection Committee
Res. 12-14	10/17/2012	Ordering and directing Met-Ed to furnish additional lighting
Res. 12-13	9/19/2012	Declaring Ashley Development Corporation in default under land development agreement Hillside Farms Subdivision Phase III, Land Development Maintenance and Guaranty Agreement Hillside Farms Subdivision Phase III, and Development Security Agreement Hillside Farms Subdivision Phase III dated November 26, 2002, with notice of default to surety
Res. 12-15	11/12/2012	Designation of depositories

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Ord./Res.	Date	Subject
Res. 12-16	11/20/2012	Adopting written procedures governing how professional services are chosen for its pension plans in order to comply with Act 44 and the Auditor General's recommendation
Res. 12-17	12/5/2012	Ordering and directing Met-Ed to furnish additional lighting
Res. 13-2	1/7/2013	Designation of depositories
Res. 13-3	1/7/2013	Resolving that no contributions shall be required by the participants in the Township Police Pension Plan for the calendar year 2013
Res. 13-04	1/7/2013	Appointing a certified or competent public accountant or firm of certified or competent public accounts to make an examination of all of the accounts of the Township for the fiscal year 2012
Res. 13-05	1/7/2013	Designating and appointing Betty Parrish as the Township's representative to the Northampton County Tax Collection Committee and that Scott Sylvainus is designated and appointed as the Township's alternate representative to the Northampton County Tax Collection Committee and that James Augustine is designated and appointed Township's second alternate representative to the Northampton County Tax Collection Committee
Res. 13-06	2/6/2013	Designation of agent resolution
Res. 13-08	6/5/2013	Urging the General Assembly to free our taxpayers from the undue fiscal burden placed on them by the Pennsylvania Prevailing Wage Act of 1961

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Ord./Res.	Date	Subject
Res. 13-09	7/2/2013	Declaring its intent to follow the schedules and procedures for disposition of records as set forth in the Municipal Records Manual Approved on December 16, 2008
Res. 13-10	8/7/2013	Adopting the Lehigh Valley 2013 Hazard Mitigation Plan
Res. 13-11	9/4/2013	Adopting a policy protecting individuals engaged in nonviolent civil rights demonstration
Res. 13-12	9/18/2013	Designating Michael Rinker, Chairman of the Board of Supervisors, and Jerilyn Kronstadt, Secretary of the Township, to execute all documents and agreements between the Township and the Commonwealth Financing Authority to facilitate and assist in obtaining the requested grant
Res. 13-15	10/16/2013	Designating Michael Rinker, Chairman of the Board of Supervisors, and Jerilyn Kronstadt, Secretary of the Township, to execute all documents and agreements between the Township and the Commonwealth Financing Authority to facilitate and assist in obtaining the requested grant
Ord. 156	11/6/2013	Amending the Municipal Pension Plan of the Township
Res. 13-18	12/18/2013	Amending the Municipal Pension Plan
Res. 14-2	1/6/2014	Designation of depositories
Res. 14-3	1/6/2014	Resolving that no contributions shall be required by the participants in the Township Police Pension Plan for the calendar year 2014

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Ord./Res.	Date	Subject
Res. 14-4	1/6/2014	Appointing a certified or competent public accountant or firm of certified or competent public accounts to make an examination of all of the accounts of the Township for the fiscal year 2013
Res. 14-5	1/6/2014	Designating and appointing Betty Parrish as the Township's representative to the Northampton County Tax Collection Committee and that Scott Sylvainus is designated and appointed as the Township's alternate representative to the Northampton County Tax Collection Committee and that James Augustine is designated and appointed Township's second alternate representative to the Northampton County Tax Collection Committee
Res. 14-6	2/19/2014	Authorizing application to Pennsylvania Municipal Assistance Program
Res. 14-9	6/4/2014	Designating Michael Rinker, Chairman of the Board of Supervisors, and Betty Parrish, Secretary/Treasurer of the Township, to execute all documents and agreements between the Township and the Commonwealth Financing Authority to facilitate and assist in obtaining the requested grant
Res. 14-10	6/18/2014	Adopting written procedures in how professional services are chosen for its pension plans in order to comply with Act 44 of 2009 and the Auditor General's recommendation

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Ord./Res.	Date	Subject
Ord. 162	10/1/2014	Amending the Township Police Employees Pension Plan providing for purchase of non-intervening military service credit
Res. 14-15	11/19/2014	Ordering and directing Met-Ed to furnish additional street lighting (Amended and superseded by Res. 16-16)
Res. 14-17	12/3/2014	Prohibiting the use of tobacco in recreational areas, parks and playgrounds
Ord. 164	1/5/2015	Authorizing the participation of the Township in the PSATS Unemployment Compensation Group Trust
Res. 15-2	1/5/2015	Designation of depositories
Res. 15-3	1/5/2015	Resolving that no contributions shall be required by the participants in the Township Police Pension Plan for the calendar year 2015
Res. 15-4	1/5/2015	Appointing a certified or competent public accountant or firm of certified or competent public accounts to make an examination of all of the accounts of the Township for the fiscal year 2014
Res. 15-5	1/5/2015	Designating and appointing Betty Parrish as the Township's representative to the Northampton County Tax Collection Committee, and Scott Sylvainus as alternate representative
Res. 15-7	3/15/2015	Approving application for funds under Park Acquisition and Development Program and authorizing Chairperson of Board of Supervisors to execute and file appropriate forms

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Ord./Res.	Date	Subject
Res. 15-9	5/20/2015	Submitting application for traffic signal approval to PennDOT
Res. 15-10	7/15/2015	Authorizing submission of a TreeVitalize Tree Planing Grant application to Pennsylvania Department of Conservation and Natural Resources Bureau of Forestry
Res. 15-11	8/19/2015	Authorizing filing of application for funds with the DCED
Res. 15-12	10/7/2015	Requesting local share account grant from Commonwealth Financing Authority to purchase police vehicle
Res. 16-2	1/4/2016	Designation of depositories
Res. 16-3	1/4/2016	Resolving that no contributions shall be required by the participants in the Township Police Pension Plan for the calendar year 2016
Res. 16-4	1/4/2016	Appointing a certified or competent public accountant or firm of certified or competent public accounts to make an examination of all of the accounts of the Township for the fiscal year 2015
Res. 16-5	1/4/2016	Designating and appointing Betty Parrish as the Township's representative to the Northampton County Tax Collection Committee; E.J. Mentry as alternate representative; Scott Sylvainus as second alternate representative
Ord. 170	2/3/2016	Amending the Township Police Employees Pension Plan providing for reduction of normal retirement age and enhanced pension benefit

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Ord./Res.	Date	Subject
Res. 16-6	4/6/2016	Designating agent for obtaining financial assistance under Robert T. Stafford Disaster Relief and Emergency Assistance Act (2016 Winter Storm Jonas)
Res. 16-7	4/6/2016	UNT Park, Recreation, and Open Space Plan grant application
Res. 16-8	6/15/2016	Authorizing signing of agreement related to PennDOT
Res. 16-9	6/15/2016	Support of fair housing
Res. 16-10	7/6/2016	Authorizing disposition of records
Res. 16-11	7/6/2016	Authorizing signing of grant agreement from PennDOT to receive grant funds under Green Light-Go Program
Res. 16-13	7/20/2016	Designation of depositories
Res. 16-14	8/3/2016	Authorizing Edward M. Mentry, Jr., to sign documentation pertaining to HOME Program Grant
Res. 16-15	8/17/2016	Supporting Township Police Department's request for a grant for portable scales to be used by Township's certified Motor Carrier Safety Assistance Program (MCSAP) Officer
Res. 16-16	9/7/2016	Ordering and directing Met-Ed to furnish additional street lighting
Res. 16-17	9/21/2016	Requesting local share account grant from Commonwealth Financing Authority for roadway improvements on North Liberty Street (Amended and superseded by Res. 16-18)
Res. 16-18	10/5/2016	Requesting local share account grant from Commonwealth Financing Authority for roadway improvements on North Liberty Street

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Ord./Res.	Date	Subject
Res. 16-20	11/16/2016	Authorizing disposition by Police Department of abandoned bicycles
Res. 16-21	11/16/2016	Authorizing disposition of records
Res. 17-2	1/3/2017	Designation of depositories
Res. 17-3	1/3/2017	Resolving that no contributions shall be required by the participants in the Township Police Pension Plan for the calendar year 2017
Res. 17-4	1/3/2017	Appointing a certified or competent public accountant or firm of certified or competent public accounts to make an examination of all of the accounts of the Township for the fiscal year 2016
Res. 17-5	1/4/2017	Designating and appointing Betty Parrish as the Township's representative to the Northampton County Tax Collection Committee; E.J. Mentry as alternate representative; Scott Sylvainus as second alternate representative
Res. 17-6	1/18/2017	Establishing mailbox replacement policy for snow plow-related damages
Res. 17-7	2/1/2017	Establishing compensation of Tax Collector
Res. 17-9	6/7/2017	Ordering and directing Met-Ed to furnish additional street lighting
Res. 17-12A	9/6/2017	Support of fair housing
Res. 17-13	9/20/2017	Authorizing submission of municipal park acquisition and development program grant application to Northampton County

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Ord./Res.	Date	Subject
Res. 17-15	11/15/2017	Adopting emergency operations plan
Res. 17-19	12/20/2017	Prohibiting the locating of a Category 4 licensed facility within Township
Res. 18-2	1/2/2018	Designation of depositories
Res. 18-3	1/2/2018	Resolving that no contributions shall be required by the participants in the Township Police Pension Plan for the calendar year 2018
Res. 18-4	1/2/2018	Appointing a certified or competent public accountant or firm of certified or competent public accounts to make an examination of all of the accounts of the Township for the fiscal year 2017
Res. 18-5	1/2/2018	Designating and appointing Betty Parrish as the Township's representative to the Northampton County Tax Collection Committee; E.J. Mentry as alternate representative; Scott Sylvainus as second alternate representative
Res. 18-7	3/26/2018	Transferring unused 2017 funds from General Fund to various accounts
Res. 18-8	5/2/2018	Support of fair housing
Ord. 177	8/1/2018	Adopting an intergovernmental cooperation agreement for road, street and/or highway construction, repair and maintenance projects with the Township of Bushkill and the Township of Lower Nazareth
Res. 18-9	8/1/2018	Certifying application to Pennsylvania Municipal Assistance Program

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Ord./Res.	Date	Subject
Res. 18-10	9/19/2018	Authorizing Bushkill Township to consider incorporation of Profeta Farms Pennsylvania LLC property into an agricultural security area
Res. 18-11	9/19/2018	Requesting local share account grant from Commonwealth Financing Authority for procurement of multimunicipal road-paving equipment with the Borough of Bath
Res. 18-12	10/17/2018	Requesting local share account grant from Commonwealth Financing Authority for procurement of multimunicipal road-paving equipment with the Borough of Bath
Res. 18-14	11/7/2018	Authorizing approval of participation in Nazareth Area Council of Governments Animal Control Officer Program
Ord. No. 180	12/19/2018	Providing that participant contributions to the Police Pension Plan be "picked up" by the employer and treated as employer contributions pursuant to IRC § 414(h)(2)
Res. No. 19-02	1/7/2019	Designating depositories for Township funds for the year 2019
Res. No. 19-03	1/7/2019	Requiring member contributions to the Police Pension Plan of 1% of gross wages for calendar year 2019
Res. No. 19-04	1/7/2019	Appointing a certified or competent public accountant or firm of certified or competent public accountants to make an examination of all of the accounts of the Township for the fiscal year 2018

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Ord./Res.	Date	Subject
Res. No. 19-05	1/7/2019	Designating and appointing Betty Parrish as the Township's representative to the Northampton County Tax Collection Committee and Scott Sylvainus as alternate representative
Res. No. 19-06	1/7/2019	Support of fair housing
Res. No. 19-07	1/7/2019	Adopting the Lehigh Valley 2018 Hazard Mitigation Plan
Res. No. 19-08	3/20/2019	Authorizing Bushkill Township to consider incorporation of Tax Parcel J7-13-14-0432, property of Robert Oswald, in Upper Nazareth Township, into the Bushkill Township agricultural security area
Res. No. 19-09	5/15/2019	Opposing House Bill 349
Ord. No. 182	6/5/2019	Providing for a referendum on the question of whether an additional earned income tax at a rate of 0.25% shall be imposed on the residents of Upper Nazareth Township for purposes of preservation of open space
Res. No. 19-10	6/5/2019	Amending and authorizing the joint submission between the Borough of Bath and Upper Nazareth Township of a local share account grant application to the Commonwealth Financing Authority for the purpose of purchasing multimunicipal road-paving equipment
Res. No. 19-13	10/16/2019	Authorizing the disposition of records as set forth in the Municipal Records Manual
Ord. No. 183	12/18/2019	Imposing an addition 0.25% earned income tax for open space funding
Res. No. 20-02	1/6/2020	Designating depositories for Township funds for the year 2020

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Ord./Res.	Date	Subject
Res. No. 20-03	1/6/2020	Requiring member contributions to the Police Pension Plan of 1.5% of gross wages for calendar year 2020
Res. No. 20-04	1/6/2020	Appointing a certified or competent public accountant or firm of certified or competent public accountants to make an examination of all of the accounts of the Township for the fiscal year 2019
Res. No. 20-05	1/6/2020	Designating and appointing Betty Parrish as the Township's representative to the Northampton County Tax Collection Committee and Lisa Klem as alternate representative
Res. No. 20-06	1/6/2020	Support of fair housing
Res. No. 20-07	1/6/2020	Intergovernmental cooperation shared equipment agreement with the Borough of Bath regarding road-paving equipment
Res. No. 20-08	5/20/2020	Authorizing and implementing changes to the designated Pension Plan officials
Res. No. 20-09	4/1/2020	Authorizing contracts by and between the Township and Isett for the appointment of Isett as the third-party Uniform Construction Code plan reviewers and inspectors; and appointing Daniel DeMeno of Isett to serve as Alternate Zoning Officer for the Township
Res. No. 20-10	4/1/2020	Authorizing emergency intermunicipal mutual aid for police services between Bushkill Township, Tatamy Borough and Upper Nazareth Township during the COVID-19 pandemic
Res. No. 20-11	3/25/2020	Declaration of disaster emergency

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Ord./Res.	Date	Subject
Res. No. 20-12	4/1/2020	Declaration of disaster emergency extension
Res. No. 20-13	5/20/2020	Extending the period in which the Township will collect the tax imposed on the assessed value of real estate at the Township's prescribed base amount through 7/31/2020
Res. No. 20-14	5/20/2020	Adopting an Emergency Operations Plan for the Township
Res. No. 20-19	9/16/2020	Amending the Non-Uniform Pension Plan administered by the Pennsylvania Municipal Retirement System
Res. No. 20-20	9/16/2020	Requesting a local share account grant from the Commonwealth Financing Authority for the purchase of two four-wheel drive utility vehicles with required police emergency equipment for the Police Department
Res. No. 20-21	10/21/2020	Requesting a local share account grant from the Commonwealth Financing Authority for the purchase of a double drum asphalt roller and a cold planer for the Public Works Department
Res. No. 21-01	1/4/2021	Designating depositories for Township funds for the year 2021
Res. No. 21-02	1/4/2021	Requiring member contributions to the Police Pension Plan of 2.0% of gross wages for calendar year 2021
Res. No. 21-03	1/4/2021	Appointing a certified or competent public accountant or firm of certified or competent public accountants to make an examination of all of the accounts of the Township for the fiscal year 2020

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Ord./Res.	Date	Subject
Res. No. 21-04	1/4/2021	Designating and appointing Betty Parrish as the Township's representative to the Northampton County Tax Collection Committee and Lisa Klem as alternate representative
Res. No. 21-05	2/3/2021	Closing out the Community Conservation Partnerships Program grant project BRC-TAG-22-136
Res. No. 21-06	2/3/2021	Establishing compensation of the Tax Collector for the collection of the special library tax for the year 2021
Res. No. 21-07	2/3/2021	Establishing discount and penalty rates for collection of the special library tax
Res. No. 21-08	2/3/2021	Establishing compensation of the Tax Collector
Res. No. 21-14	9/1/2021	Incorporating Tax Parcel K7-17-18-0432 into the Lower Nazareth Township Agricultural Security Area
Res. No. 22-01	1/3/2022	Designating Embassy Bank and the Pennsylvania Local Government Investment Trust as designated depositories for Township funds for the year 2022
Res. No. 22-03	1/3/2022	Appointing a certified or competent public accountant or firm of certified or competent public accounts to make an examination of all of the accounts of the Township for the fiscal year 2021
Res. No. 22-04	1/3/2022	Appointing Lisa Klem as the Township's representative to the Northampton County Tax Collection Committee and Deanne Werkheiser as the alternate

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Ord./Res.	Date	Subject
Res. No. 22-05	2/22/2022	Adopting the Emergency Operations Plan February 2022
Res. No. 22-06	2/2/2022	Business credit card account authorization
Res. No. 22-07	2/16/2022	Requesting a local share account grant from the Commonwealth Financing Authority to purchase Public Works equipment
Res. No. 22-08	3/2/2022	Requesting a local share account grant from the Commonwealth Financing Authority for an addition to the Township Municipal Building
Res. No. 22-12	4/6/2022	Applying for funds under the Livable Landscape Grant Program
Res. No. 22-13	8/3/2022	Adopting the Nazareth Area Multimunicipal Comprehensive Plan
Res. No. 22-14	8/3/2022	Requesting a local share account grant from the Commonwealth Financing Authority for the purchase of communications and rescue equipment for the Nazareth Volunteer Fire Department
Res. No. 22-15	9/21/2022	Requesting a local share account grant from the Commonwealth Financing Authority for the purchase of public works equipment
Res. No. 22-16	11/16/2022	Requiring the Tax Collector to comply with Act 57 of 2022
Res. No. 22-18	11/16/2022	Authorizing and implementing changes to the designated Pension Plan officials
Ord. No. 190	12/7/2022	Amending the Police Pension plan providing for an early retirement benefit

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Ord./Res.	Date	Subject
Res. No. 22-23	12/7/2022	Requesting a PA Small Water and Sewer Program grant from the Commonwealth Financing Authority for stormwater projects
Res. No. 23-01	1/3/2023	Designating Embassy Bank as the designated depository for Township funds for the year 2023
Res. No. 23-02	1/3/2023	Requiring member contributions to the Police Pension Plan of 3.0% of gross wages for calendar year 2023
Res. No. 23-03	1/3/2023	Appointing a certified or competent public accountant or firm of certified or competent public accounts to make an examination of all of the accounts of the Township for the fiscal year 2022
Res. No. 23-04	1/3/2023	Appointing Brian Sayago as the Township's representative to the Northampton County Tax Collection Committee and Deanne Werkheiser as the alternate
Res. No. 23-07	6/7/2023	Adopting and confirming the acquisition of lands more particularly described in the Office for the Recording of Deeds in and for Northampton County, Tax Parcel No. K6-24-3-0432
Res. No. 23-08	6/21/2023	Ordering and directing Met-Ed to energize lighting
Res. No. 23-09	8/2/2023	Approving the Nazareth Area Multimunicipal Comprehensive Plan Intermunicipal Cooperative Implementation Agreement

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Ord./Res.	Date	Subject
Res. No. 23-10	9/6/2023	Requesting a local share account grant for $189,790 from the Commonwealth Financing Authority to be used for purchase of police quality communications equipment and services consisting of body cameras and car cameras
Res. No. 23-11	9/6/2023	Authorizing the disposition of records
Res. No. 23-12	9/6/2023	Requesting a Monroe County Local Share Account grant for $49,840 from the Commonwealth Financing Authority to be used for purchase of a 2024 F-150 police responder
Res. No. 23-15	9/20/2023	Requesting a local share assessment grant of $1,000,000 from the Commonwealth Financing Authority, to be used for the purchase of an enforcer pumper tanker for the Upper Nazareth Township Fire Department
Res. No. 23-16	10/4/2023	Adopting and allocating funds for an outdoor fitness court® as part of the 2024 National Fitness Campaign
Res. No. 24-01	1/2/2024	Designated as depositories for Township funds for the year 2024: Embassy Bank, P.O. Box 20405, Lehigh Valley, PA 18002-0405
Res. No. 24-02	1/2/2024	Requiring member contributions by participants in the Upper Nazareth Township Police Pension Plan for the Calendar Year 2024

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Ord./Res.	Date	Subject
Res. No. 24-03	1/2/2024	Appointing a certified or competent public accountant or firm of certified or competent public accountants to make an examination of all of the accounts of the Township for the fiscal year 2023
Res. No. 24-04	1/2/2024	Appointing Brian Sayago as the Township's representative to the Northampton County Tax Collection Committee and Deanne Werkheiser as the alternate
Res. No. 24-07	2/21/2024	Adopting Emergency Operations Plan February 2024
Res. No 24-08	3/20/2024	Approving application for funds from the county's Livable Landscapes Grant Program
Ord. No. 194	4/3/2024	Establishing the rate of compensation for newly-elected supervisors consistent with the results of the 2020 census
Ord. No. 197	9/4/2024	Amending the Township non-uniform pension plan
Res. No. 24-09	4/3/2024	Adopting the acquisition of Lot 1A of the preliminary/final plan major subdivision of lands of the Keller Family Joint Living Trust, for consideration of $990,000, to be preserved as open space and used for passive recreation purposes and open space and/or agricultural preservation
Res. No. 24-12	8/7/2024	Requesting a Monroe County Local Share Account grant for $199,490 from the Commonwealth Financing Authority to be used for purchase of police quality body cameras and car cameras

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Ord./Res.	Date	Subject
Res. No. 24-13	9/4/2024	Requesting a Northampton County Local Share Account grant for $47,735 from the Commonwealth Financing Authority to be used for a 2025 police interceptor utility AWD base responder
Res. No. 24-14	11/6/2024	Requesting a Statewide Local Share Assessment grant of $907,500 from the Commonwealth Financing Authority, to be used for renovations to the Upper Nazareth Township Police Station
Res. No. 24-15	11/6/2024	Requesting a Statewide Local Share Assessment grant of $744,097 from the Commonwealth Financing Authority, for 61 XL-200 portable radios and 30 XL-200M mobiles radios for police, emergency management, fire department, and ambulance
Res. No. 24-16	11/6/2024	Requesting a Statewide Local Share Assessment grant of $138,000 from the Commonwealth Financing Authority, for a 2025 Ford F-350 equipped with a truck mounted aerial lift
Res. No. 24-17	11/6/2024	Adopting the Lehigh Valley 2024 Hazard Mitigation Plan as the official Hazard Mitigation Plan of the Upper Nazareth Township
Res. No. 25-01	1/6/2025	Designating Embassy Bank as depository for Township funds for the year 2025
Res. No. 25-02	1/6/2025	Requiring member contributions by participants in the Upper Nazareth Township Police Pension Plan for the calendar year 2025

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Ord./Res.	Date	Subject
Res. No. 25-03	1/6/2025	Appointing a certified or competent public accountant or firm of certified or competent public accountants to make an examination of all of the accounts of the Township for the fiscal year 2024
Res. No. 25-04	1/6/2025	Appointing representative and alternate representative to the Northampton County Tax Collection Committee
Res. No. 25-09	4/2/2025	Adopting an intermunicipal cooperative zoning implementation agreement wherein Lower Nazareth Township, Upper Nazareth Township, and Chapman Borough share residential, commercial, and industrial uses pursuant to the Nazareth Area Multi-Municipal Comprehensive Plan and Pennsylvania Municipalities Planning Code
Res. No. 25-12	6/4/2025	Authorizing the disposition of records
Res. No. 25-13	7/2/2025	Requesting a Monroe County Local Share Account grant for $88,111 from the Commonwealth Financing Authority to be used for purchase of a 2025 Chevy 3500 Fire Police Truck

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Appendix E

PLAN APPROVAL

§ E-101. Plan Approval.

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§ E-101. Plan Approval.

Ord./Res.	Date	Subject
Res. 09-8	2/18/2009	Accepting the deed of dedication from Stone Creek Development for use as a Township park, playground, play field, public park, and other such recreational uses and municipal uses
Res. 11-10	11/2/2011	Accepting the withdrawal of the Keller Tract-Newburg Road Residential subdivision plan
Res. 12-10	4/18/2012	Approving the preliminary plan for the Heritage Village Campus of Moravian Hall Square
Res. 12-12	9/5/2012	Approving the preliminary plan for the Heritage Village Campus of Moravian Hall Square
Res. 14-8	6/4/2014	Approving the final plan for Scenic View Estates III
Res. 14-11	7/16/2014	Approving the final plan for Chrin Commerce Center Lot No. 1
Res. 14-12	8/6/2014	Approving the final plan for Heritage Village Campus of Moravian Hall Square
Res. 14-13	8/20/2014	Approving the final plan for Videra Minor Subdivision
Res. 15-8	5/6/2015	Approving the final plan for Exigo Manufacturing
Res. 15-13	10/21/2015	Approving final plan for Chrin Commerce Center Lot Nos. 2 and 3

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Ord./Res.	Date	Subject
Res. 16-12	7/20/2016	Approving final plan for SR 191 Realignment
Res. 16-22	12/7/2016	Approving final phasing plan for Heritage Village Campus of Moravian Hall Square
Res. 17-11	7/5/2017	Approving Chrin Commerce Center, Lot Nos. 2 and 3 consolidation
Res. 17-14	11/15/2017	Approving final phasing plan for Heritage Village Campus of Moravian Hall Square, including payment by developer of traffic impact fee
Res. No. 19-11	9/4/2019	Approving final plan for Tanzosh Minor Subdivision
Res. No. 19-12	9/18/2019	Approving the final plan of Phases 3 and 4 of the Heritage Village Campus of Moravian Hall Square
Res. No. 20-16	7/1/2020	Approving the final subdivision plan for the Schoeneberger Minor Subdivision
Res. No. 20-17	8/5/2020	Approving the preliminary land development plan for Project Tadmor
Res. No. 20-18	8/5/2020	Approving the conditional preliminary subdivision plan for Project Tadmor
Res. No. 20-26	12/16/2020	Approving the conditional preliminary land development plan for Project Tadmor 2
Res. No. 21-11	6/16/2021	Approving the final subdivision plan for Project Tadmor 2
Res. No. 21-12	6/16/2021	Approving the final land development plan for Project Tadmor 2
Res. No. 21-13	8/4/2021	Approving the final land development plan for Phase 5 and 6, Heritage Village Campus of Moravian Hall Square

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Ord./Res.	Date	Subject
Res. No. 22-22	12/7/2022	Approving the final subdivision plan for Overlook Estates
Res. No. 23-06	2/15/2023	Approving the amended final land development plan Phase 5 and 6, Heritage Village Campus of Moravian Hall Square
Res. No. 23-20	12/6/2023	Approving the final plan of Phase 5 and 6, Heritage Village Campus of Moravian Hall Square
Res. No. 24-06	1/2/2024	Approving final plan for Keller Family Joint Living Trust
Res. No. 24-10	5/1/2024	Approving final subdivision plan for Henry Yeska Jr.
Res. No. 24-11	7/17/2024	Approving final land development plan for 373 East Lawn Road
Res. No. 24-18	11/20/2024	Approving the preliminary/final plan for Overlook Estates West with conditions
Res. No. 4-22	12/18/2024	Approving the final site/grading plan for 3260 Gun Club Road Grading Plan with conditions
Res. No. 25-08	2/5/2025	Approving the preliminary subdivision and land development plan for Penn-Dixie Commercial Park with conditions

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Appendix F

PUBLIC PROPERTY

§ F-101. Public Property.

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§ F-101. Public Property.

(Reserved)

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Appendix G

SEWERS

§ G-101. Sewers.

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§ G-101. Sewers.

Ord./Res.	Date	Subject
Ord. No. 30	–/–/1974	Approving the engineering proposals of Gilbert Associates, Inc., to the Bushkill-Lower Lehigh Joint Sewer Authority dated February 20, 1974, and July 27, 1972, relating to consulting engineering services for the preparation of right-of-way drawings for and design of a sanitary sewerage system in the Townships of Bush Kill, Upper Nazareth, Palmer and Plainfield and the Boroughs of Stockertown and Tatamy,
Res. No. 12-11	6/20/2012	Adopting and submitting to the Department of Environmental Protection its approval as a revision to the "Official Sewage Facilities Plan," for Gracedale Nursing Home
Res. No. 14-7	3/5/2014	Adopting and submitting to the Department of Environmental Protection its approval as a revision to the "Official Sewage Facilities Plan," for Morningstar Senior Living, Inc., for Heritage Village Campus of Moravian Hall Square
Res. No. 14-16	11/19/2014	Adopting and submitting to the Department of Environmental Protection its approval as a revision to the "Official Sewage Facilities Plan," for Chrin Commerce Center

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Ord./Res.	Date	Subject
Res. No. 21-10	5/19/2021	Adopting and submitting to the Department of Environmental Protection for its approval a revision to the "Official Sewage Facilities Plan" for a sewer extension and private pump station for Project Tadmor 2
Res. No. 25-10	4/2/2025	Adopting and submitting to The Department of Environmental Protection for its approval as a revision to the "Official Sewage Facilities Plan" to provide for sewer tap-ins, retaining tanks and a privately owned and maintained pump station and force main for Penn Dixie Commercial Park
Res. No. 25-11	4/2/2025	Adopting and submitting to The Department of Environmental Protection for its approval as a revision to the "Official Sewage Facilities Plan" to provide for individual onlot systems for Overlook Estates West

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Appendix H

STREETS AND SIDEWALKS

§ H-101. Streets and Sidewalks.

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§ H-101. Streets and Sidewalks.

Street	Activity	Description	Ord./Res.	Date
American Hemlock Lane	Accepting		Res. 17-10	7/5/2017
Blue Eagle Lane	Accepting		Res. 18-13	10/17/2018
Blue Mountain Lane	Dedicating		Res. 13-13	10/2/2013
Broadwood Way	Dedicating		Res. 15-6	1/21/2015
Central Avenue	Vacating	Between Cedar Street and First Street	Ord. 115	5/4/2005
Central Avenue	Vacating	Between East Second Street and Third Street	Ord. 192	12/6/2023
Chase Court	Dedicating		Res. 09-11	8/5/2009
Cherry Street	Ordaining and dedicating	Between Mt. Vernon Avenue and Friedenstahl Avenue	Ord. 138	5/6/2009
Cherry Street	Ordaining and dedicating	Between Central Avenue and Friedenstahl Avenue	Ord. 138	5/6/2009
City View Drive cul-de-sac	Dedicated		Res. 13-19	12/18/2013
Eagle Nest Lane	Dedicating		Res. 14-14	9/3/2014
Eagles Landing Drive	Dedicating	Between Eagle Nest Lane and Gray Cottage Lane	Res. 14-14	9/3/2014
Eagles Landing Drive	Dedicating	Between Evening Sun Road and Phase 1 boundary	Res. 14-14	9/3/2014

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Street	Activity	Description	Ord./Res.	Date
Eagles Landing Drive	Accepting	Portion thereof	Res. 17-10	7/5/2017
Eagles Landing Drive	Accepting	Portion thereof	Res. 18-13	10/17/2018
Eagles Landing Drive	Accepting	Portion thereof	Res. 20-15	6/3/2020
Eagle View Court	Dedicating		Res. 13-13	10/2/2013
East Beil Avenue	Dedicating		Res. 13-19	12/18/2013
English Ivy Road	Dedicating	Between Evening Sun Road and Eagles Landing Drive	Res. 14-14	9/3/2014
English Ivy Road	Accepting		Res. 18-13	10/17/2018
Evening Sun Road	Dedicating	Between English Ivy Road and Eagles Landing Drive	Res. 14-14	9/3/2014
Evening Sun Road	Dedicating	Between Eagles Landing Drive and Penn Allen Road	Res. 14-14	9/3/2014
Frank's Alley	Ordaining and dedicating	Between Hill Avenue and Morris Street	Ord. 142	--/--/----
Gray Cottage Lane	Dedicating		Res. 14-14	9/3/2014
Gun Club Road (T-506)	Accepting	Portion thereof	Res. 22-09; Res. 22-10	4/6/2022
Gun Club Road	Dedicating	Portion thereof	Res. 23-13; Res. 23-14	9/20/2023
Heatherwood Way	Dedicating		Res. 15-6	1/21/2015
Lehigh Lane	Dedicating		Res. 13-14	10/2/2013
Martin Street	Dedicating		Res. 13-13	10/2/2013
Mayfair Place	Dedicating		Res. 15-6	1/21/2015
Monacacy Road	Accepting		Res. 17-10	7/5/2017
Mount Vernon Street	Vacating	Between 5th Street and North Street	Ord. 108	2/2/2005
Neville Way	Dedicating		Res. 15-6	1/21/2015
New England Court	Dedicating		Res. 13-14	10/2/2013

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Street	Activity	Description	Ord./Res.	Date
New England Drive	Dedicating		Res. 13-14	10/2/2013
Penfield Way	Dedicating		Res. 15-6	1/21/2015
Penn Allen Road (T-505)	Vacating		Ord. 119	4/5/2006
Poplar Street	Vacating	Between Cedar Street and First Street	Ord. 115	5/4/2005
Poplar Street	Vacating	Between Cedar Street and Second Street	Ord. 101	8/18/2004
Rising Sun Court	Dedicating		Res. 09-12	9/16/2009
Unnamed Rights-of-Way	Dedicating		Res. 08-10	2/20/2008
Westminster Way	Dedicating		Res. 15-6	1/21/2015
White Fence Lane	Dedicating		Res. 08-07	2/6/2008
Windsor Court	Dedicating		Res. 15-6	1/21/2015
York Street	Ordaining and dedicating	South of Christian Avenue	Ord. 138	5/6/2009

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Appendix I

WATER

§ I-101. Water.

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§ I-101. Water.

(Reserved)

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Appendix J

ZONING; PRIOR ORDINANCES

§ J-101. Zoning; Prior Ordinances.

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§ J-101. Zoning; Prior Ordinances.

Ord./Res.	Date	Subject
Ord. 20	1/14/1970	Amending zoning ordinance
Ord. 48	--/--/----	Amending zoning ordinance
Ord. 51	7/19/1988	Amending flood zones
Ord. 66	--/--/----	Amending zoning ordinance
Ord. 72	9/9/1998	Amending conditional uses permitted
Ord. 73	4/12/2000	Amending Zoning Map to rezone I-1 District located south of Clearview Avenue and east of Schoeneck Street to an R-3 District and a portion of the NC District located south of St. Elmo Street and north of Pine Street to R-4 District
Ord. 99	7/7/2004	Amending the procedures for initiation of hearings and decisions/findings of the Zoning Hearing Board
Ord. 109	3/2/2005	Amending the rear and side yard setback requirements of accessory structures for single-family detached dwellings
Ord. 120	7/19/2006	Amending the maximum lot coverage and maximum building coverage requirements for single-family detached dwellings in the Medium Density Residential, High Density Residential, and High Density-West Residential Districts

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Ord./Res.	Date	Subject
Ord. 122	11/15/2006	Amending the zoning ordinance to provide public and private schools as a special exception use in the Neighborhood Commercial Zoning District

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Chapter KO

TABLE TO DISPOSITION OF ALL ORDINANCES

§ KO-101. Table to Disposition of All Ordinances.

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§ KO-101. Table to Disposition of All Ordinances.

Ordinance	Date	Subject	Disposition
1	1/5/1960	Taxation; Special	Superseded by 5
2	1/8/1963	Housing	Superseded by 135
3	1/8/1963	Code Enforcement	Repealed by 8/14/1970
4	5/15/1963	Water	Superseded by 98
5	12/1/1963	Taxation; Special	Superseded by 8
6	2/12/1964	Administration and Government	Superseded by A.O.
7	10/6/1964	Health and Safety	Superseded by 145
8	12/1/1964	Taxation; Special	Superseded by 11
9	1/7/1965	Licenses, Permits and General Business Regulations	Superseded by 125
10	12/7/1965	Fire Prevention and Fire Protection	Repealed by 58
11	12/7/1965	Taxation; Special	Superseded by 16
12	6/22/1966	Sewers and Sewage Disposal	§§ 18-101 — 18-105
13	11/22/1966	Sewers and Sewage Disposal	§§ 18-111 — 18-115
14	11/22/1966	Sewers and Sewage Disposal	§§ 18-121, 18-122
15	12/14/1966	Health and Safety	Superseded by A.O.
16	--/--/----	Taxation; Special	Superseded by 91
17	3/8/1967	Taxation; Special	Superseded by 127
18	3/22/1967	Taxation; Special	Superseded by 107

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Ordinance	Date	Subject	Disposition
19	6/12/1968	Administration and Government	§§ 1-311 — 1-314
20	1/14/1970	Zoning	Superseded by 125
		Zoning; Prior Ordinances	Appendix J
21	10/22/1969	Franchises and Services	Appendix C
22	1/14/1970	Code Enforcement	Superseded by 98
23	1/14/1970	Motor Vehicles and Traffic	Superseded by A.O.
24	1/14/1970	Conduct	Superseded by A.O.
8/14/1970	8/14/1970	Code Enforcement	Superseded by 98
25	5/12/1971	Streets and Sidewalks	§§ 21-401 — 21-406
26	3/15/1972	Mobile Homes and Mobile Home Parks	§§ 14-101 — 14-117
27	--/--/1972	Franchises and Services	Appendix C
28	10/10/1973	Administration and Government	§§ 1-401 — 1-408
29A	3/15/1974	Debt and Bond Issues	Appendix B
29B	7/17/1974	Streets and Sidewalks	Repealed by 52
30	--/--/1974	Sewer	Appendix G
31			No ordinance
32A	3/12/1975	Bicycles	Repealed by A.O.
32B	2/10/1976	Conduct	Repealed by 166
33	12/29/1976	Licenses, Permits and General Business Regulations	§§ 13-201 — 13-212
34	7/28/1978	Motor Vehicles and Traffic	Superseded by A.O.
34A	12/15/1984	Motor Vehicles and Traffic	Superseded by A.O.
35	--/--/----	Governmental and Intergovernmental Affairs	Appendix D
36	11/11/1981	Administration and Government	§§ 1-501 — 1-508
37	10/1/1982	Motor Vehicles and Traffic	Superseded by A.O.

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Ordinance	Date	Subject	Disposition
38	2/9/1983	Motor Vehicles and Traffic	Superseded by A.O.
39	4/13/1983	Motor Vehicles and Traffic	Superseded by A.O.
40	4/13/1983	Motor Vehicles and Traffic	Superseded by A.O.
41	4/13/1983	Motor Vehicles and Traffic	Superseded by A.O.
42A	--/--/----	Governmental and Intergovernmental Affairs	Appendix D
42B	6/10/1987	Governmental and Intergovernmental Affairs	Appendix D
43	7/12/1989	Motor Vehicles and Traffic	Superseded by A.O.
4/9/1986	4/9/1986	Motor Vehicles and Traffic	Superseded by A.O.
44	6/11/1986	Subdivision and Land Development	Repealed by 174
45	8/19/1986	Streets and Sidewalks	§§ 21-301 — 21-312
46	10/8/1986	Motor Vehicles and Traffic	Superseded by A.O.
47	12/9/1987	Governmental and Intergovernmental Affairs	Appendix D
48	--/--/----	Zoning	Superseded by 125
		Zoning; Prior Ordinances	Appendix J
49	11/11/1987	Sewers and Sewage Disposal	§§ 18-201 — 18-210
50	6/8/1988	Housing	Superseded by 80
51	7/19/1988	Zoning	Superseded by 125
		Zoning; Prior Ordinances	Appendix J
52	6/8/1988	Streets and Sidewalks	Repealed by 189
53	11/9/1988	Animals	Superseded by 76
54	11/9/1988	Code Enforcement	§§ 5-201 — 5-218

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Ordinance	Date	Subject	Disposition
55	11/9/1988	Health and Safety	§§ 10-301 — 10-307
56	5/9/1990	Stormwater Management	Superseded by 111
57	11/14/1990	Governmental and Intergovernmental Affairs	Appendix D
58	4/10/1991	Fire Prevention and Fire Protection	§§ 7-101 — 7-105
59	4/10/1991	Taxation; Special	Superseded by 148
60	2/12/1992	Governmental and Intergovernmental Affairs	Appendix D
61	3/10/1993	Stormwater Management	Superseded by 112
62	4/14/1993	Motor Vehicles and Traffic	Superseded by A.O.
63	8/12/1993	Motor Vehicles and Traffic	Superseded by A.O.
64	11/9/1994	Licenses, Permits and General Business Regulations	§§ 13-101 — 13-107
65	12/17/1994	Water	§§ 26-101 — 26-105
66	--/--/----	Zoning	Superseded by 125
		Zoning; Prior Ordinances	Appendix J
67	9/14/1995	Sewers and Sewage Disposal	§§ 18-501 — 18-509
68	11/8/1995	Governmental and Intergovernmental Affairs	Appendix D
69	12/27/1995	Governmental and Intergovernmental Affairs	Appendix D
70	11/13/1996	Debt and Bond Issues	Appendix B
71	12/22/1997	Governmental and Intergovernmental Affairs	Appendix D
72	9/9/1998	Zoning	Superseded by 125

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Ordinance	Date	Subject	Disposition
		Zoning; Prior Ordinances	Appendix J
73	4/12/2000	Zoning	Superseded by 125
		Zoning; Prior Ordinances	Appendix J
74	12/10/2003	Taxation; Special	Superseded by 134
75	7/12/2000	Code Enforcement	Superseded by A.O.
76	8/9/2000	Animals	§§ 2-101 — 2-105
77	3/14/2000	Administration and Government	§§ 1-601 — 1-609
78	10/10/2001	Motor Vehicles and Traffic	Superseded by A.O.
79	12/27/2001	Taxation; Special	Superseded by A.O.
80	5/8/2002	Housing	§§ 11-101 — 11-103
81	7/10/2002	Conduct	Repealed by 166
82	7/10/2002	Motor Vehicles and Traffic	Superseded by A.O.
83	7/10/2002	Motor Vehicles and Traffic	Superseded by A.O.
84	12/26/2002	Governmental and Intergovernmental Affairs	Appendix D
85	3/12/2003	Parks and Recreation	§§ 16-101 — 16-109
86	3/12/2003	Administration and Government	Repealed by 172
87			No ordinance
88	7/9/2003	Sewers and Sewage Disposal	§§ 18-301 — 18-310
89	8/13/2003	Motor Vehicles and Traffic	Superseded by A.O.
90	12/10/2003	Governmental and Intergovernmental Affairs	Appendix D
91	12/10/2003	Taxation; Special	Superseded by 134
92	12/10/2003	Trees	§§ 25-101 — 25-105
93	12/10/2003	Conduct	Superseded by A.O.
94	12/10/2003	Taxation; Special	§§ 24-401 — 24-406

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Ordinance	Date	Subject	Disposition
95	5/5/2004	Administration and Government	§§ 1-201 — 1-224
96			No ordinance
97	5/12/2004	Motor Vehicles and Traffic	Superseded by A.O.
98	6/2/2004	Code Enforcement	§§ 5-101 — 5-106
99	7/7/2004	Zoning	Superseded by 125
		Zoning; Prior Ordinances	Appendix J
100			No ordinance
101	8/18/2004	Streets and Sidewalks	Appendix H
102	9/1/2004	Licenses, Permits and General Business Regulations	§§ 13-301 — 13-315
103	9/15/2004	Health and Safety	Superseded by 145
104	9/15/2004	Subdivision and Land Development	Repealed by 174
105	--/--/2004	Governmental and Intergovernmental Affairs	Appendix D
106	2/2/2005	Sewers and Sewage Disposal	§§ 18-511 — 18-529
107	2/2/2005	Taxation; Special	Superseded by 128
108	2/2/2005	Streets and Sidewalks	Appendix H
109	3/2/2005	Zoning	Superseded by 125
		Zoning; Prior Ordinances	Appendix J
110	2/16/2005	Motor Vehicles and Traffic	Superseded by A.O.
111	4/6/2005	Stormwater Management	Superseded by 123
112	4/6/2005	Stormwater Management	Superseded by 124
113	4/6/2005	Sewers and Sewage Disposal	§§ 18-401 — 18-411
114	4/6/2005	Motor Vehicles and Traffic	Superseded by A.O.

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Ordinance	Date	Subject	Disposition
115	5/4/2005	Streets and Sidewalks	Appendix H
116	9/7/2005	Subdivision and Land Development	Repealed by 174
117	11/16/2005	Motor Vehicles and Traffic	Superseded by A.O.
118	1/18/2006	Motor Vehicles and Traffic	Superseded by A.O.
119	4/5/2006	Streets and Sidewalks	Appendix H
120	7/19/2006	Zoning	Superseded by 125
		Zoning; Prior Ordinances	Appendix J
121	11/15/2006	Governmental and Intergovernmental Affairs	Appendix D
122	11/15/2006	Zoning	Superseded by 125
		Zoning; Prior Ordinances	Appendix J
123	4/18/2007	Monocacy Creek Watershed Act 167 Stormwater Management	Superseded by 179
124	4/18/2007	Bushkill Creek Watershed Act 167 Stormwater Management	Superseded by 196
125	7/18/2007	Zoning	Superseded by 199
126	9/5/2007	Motor Vehicles and Traffic	Superseded by A.O.
127	9/19/2007	Taxation; Special	§§ 24-301 — 24-303
128	11/7/2007	Taxation; Special	§§ 24-201 — 24-216
129	11/7/2007	Governmental and Intergovernmental Affairs	Appendix D
130	2/6/2008	Motor Vehicles and Traffic	Superseded by A.O.
131	4/16/2008	Governmental and Intergovernmental Affairs	Appendix D

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Ordinance	Date	Subject	Disposition
132	3/19/2008	Motor Vehicles and Traffic	Superseded by A.O.
133	7/2/2008	Governmental and Intergovernmental Affairs	Appendix D
134	12/3/2008	Taxation; Special	Superseded by 149
135	12/3/2008	Housing	§§ 11-201 — 11-204
136	3/18/2009	Motor Vehicles and Traffic	Superseded by A.O.
137	4/15/2009	Zoning	Superseded by 199
138	5/6/2009	Streets and Sidewalks	Appendix H
139	6/17/2009	Motor Vehicles and Traffic	Superseded by A.O.
140	9/16/2009	Zoning	Superseded by 199
141	2/3/2010	Health and Safety	§§ 10-201 — 10-210
142	--/--/----	Streets and Sidewalks	Appendix H
143	12/1/2010	Motor Vehicles and Traffic	Superseded by A.O.
144	1/19/2011	Transportation Impact Fees	§§ 22B-101 — 22B-404
145	3/16/2011	Health and Safety	§§ 10-101 — 10-108
146	5/18/2011	Fire Prevention and Fire Protection	§§ 7-201 — 7-205
147	6/1/2011	Governmental and Intergovernmental Affairs	Appendix D
148	10/5/2011	Taxation; Special	§ 24-501
149	10/5/2011	Taxation; Special	§§ 24-101 — 24-110
150	11/16/2011	Governmental and Intergovernmental Affairs	Appendix D
151	2/1/2012	Governmental and Intergovernmental Affairs	Appendix D
152	7/18/2012	Solid Waste	Superseded by 161
153	3/20/2013	Motor Vehicles and Traffic	Superseded by A.O.

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Ordinance	Date	Subject	Disposition
154	5/15/2013	Motor Vehicles and Traffic	Superseded by A.O.
155	6/19/2013	Zoning	Zoning Map Amendments
156	11/6/2013	Governmental and Intergovernmental Affairs	Appendix D
157	11/6/2013	Zoning	Superseded by 199
158	12/18/2013	Franchises and Services	Appendix C
159	2/19/2014	Streets and Sidewalks	§§ 21-101, 21-102
160	6/4/2014	Zoning	Superseded by 199
161	8/6/2014	Solid Waste	§§ 20-101 — 20-506
162	10/1/2014	Governmental and Intergovernmental Affairs	Appendix D
163	11/19/2014	Franchises and Services	Appendix C
164	1/5/2015	Governmental and Intergovernmental Affairs	Appendix D
165	1/5/2015	Motor Vehicles and Traffic	Superseded by A.O.
166	3/18/2015	Conduct	Repealer
167	4/1/2015	Motor Vehicles and Traffic	Superseded by A.O.
168	4/15/2015	Licenses, Permits and General Business Regulations	§§ 13-401 — 13-409
169	10/7/2015	Motor Vehicles and Traffic	Superseded by A.O.
170	2/3/2016	Governmental and Intergovernmental Affairs	Appendix D
171	4/6/2016	Motor Vehicles and Traffic	Superseded by A.O.
172	7/20/2016	Administration and Government	§§ 1-301 — 1-311
173	9/7/2016	Zoning	Superseded by 199

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Ordinance	Date	Subject	Disposition
174	12/20/2017	Subdivision and Land Development	§§ 22A-101 — 22A-1006
175	5/2/2018	Motor Vehicles and Traffic	Superseded by A.O.
176	6/20/2018	Administration and Government	§§ 1-701 — 1-705
177	8/1/2018	Governmental and Intergovernmental Affairs	Appendix D
178	8/15/2018	Motor Vehicles and Traffic	Superseded by A.O.
179	11/7/2018	Monocacy Creek Watershed Act 167 Stormwater Management	Superseded by 196

Ordinance	Date	Subject	Disposition	Supp. No.
180	12/19/2018	Governmental and Intergovernmental Affairs	Appendix D	2
181	3/6/2019	Adopting Ordinance		1
182	6/5/2019	Governmental and Intergovernmental Affairs	Appendix D	2
183	12/18/2019	Governmental and Intergovernmental Affairs	Appendix D	2
184	6/3/2020	Motor Vehicles and Traffic	Ch. 15	2
185	6/2/2021	Administration and Government: Boards and Commissions	Ch. 1, Pt. 3	3
186	10/6/2021	Animals: Livestock Running At Large	Ch. 2, Pt. 2	4
187	12/15/2021	Motor Vehicles and Traffic	Ch. 15	4
188	4/6/2022	Motor Vehicles and Traffic	Ch. 15	5

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§ KO-101 TABLE TO DISPOSITION OF ALL ORDINANCES

Ordinance	Date	Subject	Disposition	Supp. No.
189	11/16/2022	Streets and Sidewalks: Street Cuts and Excavations	Ch. 21, Pt. 2	5
190	12/7/2022	Governmental and Intergovernmental Affairs	Apx. D	5
191	7/19/2023	Fire Prevention and Fire Protection: Open Fires and Burning	Ch. 7, Pt. 1	6
192	12/6/2023	Streets and Sidewalks	Apx. H	7
193	3/6/2024	Health and Safety: Noise	Ch. 10, Pt. 4	7
194	4/3/2024	Governmental and Intergovernmental Affairs	Apx. D	8
195	4/3/2024	Franchises and Services	Apx. C	8
196	8/21/2024	Stormwater Management	Ch. 23; Ch. 23A; Ch. 23B	8
197	9/4/2024	Governmental and Intergovernmental Affairs	Apx. D	8
198	11/6/2024	Animals: Animal Nuisances	Ch. 2, Pt. 1	8
199	1/15/2025	Zoning	Ch. 27	9
200	2/5/2025	Motor Vehicles and Traffic	Ch. 15	9
201	2/2/2025	Motor Vehicles and Traffic	Ch. 15	9
202	6/18/2025	Zoning	Ch. 27	10

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Chapter KR

TABLE TO DISPOSITION OF SIGNIFICANT RESOLUTIONS

§ KR-101. Table to Disposition of Significant Resolutions.

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§ KR-101. Table to Disposition of Significant Resolutions.

Resolution	Date	Subject	Disposition
08-1	1/7/2008	Governmental and Intergovernmental Affairs	Appendix D
08-2	1/7/2008	Governmental and Intergovernmental Affairs	Appendix D
08-3	1/7/2008		Tax Rate 2008
08-4	1/7/2008		Tax Rate 2008
08-5	1/16/2008	Governmental and Intergovernmental Affairs	Appendix D
08-6	2/6/2008	Governmental and Intergovernmental Affairs	Appendix D
08-7	2/6/2008	Streets and Sidewalks	Appendix H
08-8	2/20/2008	Governmental and Intergovernmental Affairs	Appendix D
08-9	1/17/2008	Governmental and Intergovernmental Affairs	Appendix D
08-10	2/20/2008	Streets and Sidewalks	Appendix H
08-11	6/4/2008	Governmental and Intergovernmental Affairs	Appendix D
08-12	8/6/2008	Governmental and Intergovernmental Affairs	Appendix D
08-13	12/17/2008	Fee Schedule	Superseded by Res. 10-1

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Resolution	Date	Subject	Disposition
541	12/3/2008	Governmental and Intergovernmental Affairs	Appendix D
542	12/3/2008		Budget 2009
543	12/3/2008		Tax Rate 2009
544	12/3/2008		Tax Rate 2009
09-1	1/5/2009	Governmental and Intergovernmental Affairs	Appendix D
09-2			Voided
09-3	1/5/2009	Governmental and Intergovernmental Affairs	Appendix D
09-4			Voided
09-5	3/4/2009	Governmental and Intergovernmental Affairs	Appendix D
09-6	1/21/2009	Governmental and Intergovernmental Affairs	Appendix D
09-7	2/18/2009	Governmental and Intergovernmental Affairs	Appendix D
09-8	2/18/2009	Plan Approval	Appendix E
09-9	3/18/2009	Fee Resolution	Superseded by A.O.
09-10	5/6/2009	Governmental and Intergovernmental Affairs	Appendix D
09-11	8/5/2009	Streets and Sidewalks	Appendix H
09-12	9/16/2009	Streets and Sidewalks	Appendix H
09-13A	12/2/2009		Tax Rate 2010
09-14	12/--/2009	Governmental and Intergovernmental Affairs	Appendix D
10-1	1/4/2010	Fee Schedule	Superseded by Res. 11-1
10-2	1/4/2010	Governmental and Intergovernmental Affairs	Appendix D

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Resolution	Date	Subject	Disposition
10-2	1/4/2010	Governmental and Intergovernmental Affairs	Appendix D
10-3	1/4/2010	Governmental and Intergovernmental Affairs	Appendix D
10-4A	6/2/2010	Governmental and Intergovernmental Affairs	Appendix D
10-4B	7/7/2010		Tax Rate 2010
10-5	7/21/2010	Governmental and Intergovernmental Affairs	Appendix D
10-6	8/4/2010	Governmental and Intergovernmental Affairs	Appendix D
10-7	9/15/2010	Governmental and Intergovernmental Affairs	Appendix D
10-8	10/6/2010	Governmental and Intergovernmental Affairs	Appendix D
10-9	12/15/2010	Governmental and Intergovernmental Affairs	Appendix D
10-10	12/15/2010		Tax Rate 2011
10-11	12/15/2010		Tax Rate 2011
11-1	1/3/2011	Fee Schedule	Superseded by Res. 12-1
11-2	1/3/2011	Governmental and Intergovernmental Affairs	Appendix D
11-3	1/3/2011	Governmental and Intergovernmental Affairs	Appendix D
11-4	1/19/2011	Governmental and Intergovernmental Affairs	Appendix D
11-5	4/6/2011	Governmental and Intergovernmental Affairs	Appendix D

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Resolution	Date	Subject	Disposition
11-6	4/6/2011	Governmental and Intergovernmental Affairs	Appendix D
11-7	6/2/2011	Governmental and Intergovernmental Affairs	Appendix D
11-8	8/3/2011	Governmental and Intergovernmental Affairs	Appendix D
11-9	8/17/2011	Governmental and Intergovernmental Affairs	Appendix D
11-10	12/21/2011		Tax Rate 2012
11-11	12/21/2011		Tax Rate 2012
12-1	1/3/2012	Fee Schedule	Superseded by Res. 13-1
12-2	1/3/2012	Governmental and Intergovernmental Affairs	Appendix D
12-3	1/3/2012	Governmental and Intergovernmental Affairs	Appendix D
12-4	1/3/2012	Governmental and Intergovernmental Affairs	Appendix D
12-5	1/3/2012	Governmental and Intergovernmental Affairs	Appendix D
12-6	1/18/2012		Tax Rate 2012
12-7	--/--/2012	Governmental and Intergovernmental Affairs	Appendix D
12-8	3/7/2012	Governmental and Intergovernmental Affairs	Appendix D
12-9	3/21/2012	Governmental and Intergovernmental Affairs	Appendix D
12-10	4/18/2012	Plan Approval	Appendix E
12-11	6/20/2012	Sewers	Appendix G

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Resolution	Date	Subject	Disposition
12-12	9/5/2012	Plan Approval	Appendix E
12-13	9/19/2012	Governmental and Intergovernmental Affairs	Appendix D
12-14	10/17/2012	Governmental and Intergovernmental Affairs	Appendix D
12-15	11/12/2012	Governmental and Intergovernmental Affairs	Appendix D
12-16	11/20/2012	Governmental and Intergovernmental Affairs	Appendix D
12-17	12/5/2012	Governmental and Intergovernmental Affairs	Appendix D
12-18	12/19/2012		Tax Rate 2013
12-19	12/19/2012		Tax Rate 2013
13-1	1/7/2013	Fee Schedule	Superseded by Res. 14-1
13-2	1/7/2013	Governmental and Intergovernmental Affairs	Appendix D
13-3	1/7/2013	Governmental and Intergovernmental Affairs	Appendix D
13-4	1/7/2013	Governmental and Intergovernmental Affairs	Appendix D
13-5	1/7/2013	Governmental and Intergovernmental Affairs	Appendix D
13-6	2/6/2013	Governmental and Intergovernmental Affairs	Appendix D
13-7	4/17/2013	Zoning	§ 27-109
13-8	6/5/2013	Governmental and Intergovernmental Affairs	Appendix D

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Resolution	Date	Subject	Disposition
13-9	7/2/2013	Governmental and Intergovernmental Affairs	Appendix D
13-10	8/7/2013	Governmental and Intergovernmental Affairs	Appendix D
13-11	9/4/2013	Governmental and Intergovernmental Affairs	Appendix D
13-12	9/18/2013	Governmental and Intergovernmental Affairs	Appendix D
13-13	10/2/2013	Streets and Sidewalks	Appendix H
13-14	10/2/2013	Streets and Sidewalks	Appendix H
13-15	10/16/2013	Governmental and Intergovernmental Affairs	Appendix D
13-16	12/18/2013		Tax Rate 2014
13-17	12/18/2013		Tax Rate 2014
13-18	12/18/2013	Governmental and Intergovernmental Affairs	Appendix D
13-19	12/18/2013	Streets and Sidewalks	Appendix H
14-1	1/6/2014	Fee Schedule	Superseded by A.O.
14-2	1/6/2014	Governmental and Intergovernmental Affairs	Appendix D
14-3	1/6/2014	Governmental and Intergovernmental Affairs	Appendix D
14-4	1/6/2014	Governmental and Intergovernmental Affairs	Appendix D
14-5	1/6/2014	Governmental and Intergovernmental Affairs	Appendix D
14-6	2/19/2014	Governmental and Intergovernmental Affairs	Appendix D

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Resolution	Date	Subject	Disposition
14-7	3/5/2014	Sewers	Appendix G
14-8	6/4/2014	Plan Approval	Appendix E
14-9	6/4/2014	Governmental and Intergovernmental Affairs	Appendix D
14-10	6/18/2014	Governmental and Intergovernmental Affairs	Appendix D
14-11	7/16/2014	Plan Approval	Appendix E
14-12	8/6/2014	Plan Approval	Appendix E
14-13	8/20/2014	Plan Approval	Appendix E
14-14	9/3/2014	Streets and Sidewalks	Appendix H
14-15	11/19/2014	Governmental and Intergovernmental Affairs	Appendix D
14-16	11/19/2014	Plan Approval	Appendix E
14-17	12/3/2014	Governmental and Intergovernmental Affairs	Appendix D
14-18	12/3/2014		Tax Rate 2015
14-19	12/3/2014		Tax Rate 2015
15-1	1/5/2015		Fee Schedule
15-2	1/5/2015	Governmental and Intergovernmental Affairs	Appendix D
15-3	1/5/2015	Governmental and Intergovernmental Affairs	Appendix D
15-4	1/5/2015	Governmental and Intergovernmental Affairs	Appendix D
15-5	1/5/2015	Governmental and Intergovernmental Affairs	Appendix D
15-6	1/21/2015	Streets and Sidewalks	Appendix H
15-7	3/15/2015	Governmental and Intergovernmental Affairs	Appendix D

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Resolution	Date	Subject	Disposition
15-8	5/6/2015	Plan Approval	Appendix E
15-9	5/20/2015	Governmental and Intergovernmental Affairs	Appendix D
15-10	7/15/2015	Governmental and Intergovernmental Affairs	Appendix D
15-11	8/19/2015	Governmental and Intergovernmental Affairs	Appendix D
15-12	10/7/2015	Governmental and Intergovernmental Affairs	Appendix D
15-13	10/21/2015	Plan Approval	Appendix E
15-14	12/16/2015		Tax Rate 2016
15-15	12/16/2015		Tax Rate 2016
16-1	1/4/2016		Fee Schedule
16-2	1/4/2016	Governmental and Intergovernmental Affairs	Appendix D
16-3	1/4/2016	Governmental and Intergovernmental Affairs	Appendix D
16-4	1/4/2016	Governmental and Intergovernmental Affairs	Appendix D
16-5	1/4/2016	Governmental and Intergovernmental Affairs	Appendix D
16-6	4/6/2016	Governmental and Intergovernmental Affairs	Appendix D
16-7	4/6/2016	Governmental and Intergovernmental Affairs	Appendix D
16-8	6/15/2016	Governmental and Intergovernmental Affairs	Appendix D

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Resolution	Date	Subject	Disposition
16-9	6/15/2016	Governmental and Intergovernmental Affairs	Appendix D
16-10	7/6/2016	Governmental and Intergovernmental Affairs	Appendix D
16-11	7/6/2016	Governmental and Intergovernmental Affairs	Appendix D
16-12	7/20/2016	Plan Approval	Appendix E
16-13	7/20/2016	Governmental and Intergovernmental Affairs	Appendix D
16-14	8/3/2016	Governmental and Intergovernmental Affairs	Appendix D
16-15	8/17/2016	Governmental and Intergovernmental Affairs	Appendix D
16-16	9/7/2016	Governmental and Intergovernmental Affairs	Appendix D
16-17	9/21/2016	Governmental and Intergovernmental Affairs	Appendix D
16-18	10/5/2016	Governmental and Intergovernmental Affairs	Appendix D
16-19	10/19/2016	Franchises and Services	Appendix C
16-20	11/16/2016	Governmental and Intergovernmental Affairs	Appendix D
16-21	11/16/2016	Governmental and Intergovernmental Affairs	Appendix D
16-22	12/7/2016	Plan Approval	Appendix E
16-23	12/21/2016		Tax Rate 2017
16-24	12/21/2016		Tax Rate 2017
17-1	1/3/2017		Fee Schedule

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Resolution	Date	Subject	Disposition
17-2	1/3/2017	Governmental and Intergovernmental Affairs	Appendix D
17-3	1/3/2017	Governmental and Intergovernmental Affairs	Appendix D
17-4	1/3/2017	Governmental and Intergovernmental Affairs	Appendix D
17-5	1/4/2017	Governmental and Intergovernmental Affairs	Appendix D
17-6	1/18/2017	Governmental and Intergovernmental Affairs	Appendix D
17-7	2/1/2017	Governmental and Intergovernmental Affairs	Appendix D
17-8	4/5/2017		Fee Schedule
17-9	6/7/2017	Governmental and Intergovernmental Affairs	Appendix D
17-10	7/5/2017	Streets and Sidewalks	Appendix H
17-11	7/5/2017	Plan Approval	Appendix E
17-12A	9/6/2017	Governmental and Intergovernmental Affairs	Appendix D
17-13	9/20/2017	Governmental and Intergovernmental Affairs	Appendix D
17-14	11/15/2017	Plan Approval	Appendix E
17-15	11/15/2017	Governmental and Intergovernmental Affairs	Appendix D
17-16	12/6/2017		Tax Rate 2018
17-17	12/6/2017		Tax Rate 2018
17-18	12/9/2017		Fee Schedule

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Resolution	Date	Subject	Disposition
17-19	12/20/2017	Governmental and Intergovernmental Affairs	Appendix D
18-1	1/2/2018		Fee Schedule
18-2	1/2/2018	Governmental and Intergovernmental Affairs	Appendix D
18-3	1/2/2018	Governmental and Intergovernmental Affairs	Appendix D
18-4	1/2/2018	Governmental and Intergovernmental Affairs	Appendix D
18-5	1/2/2018	Governmental and Intergovernmental Affairs	Appendix D
18-6	2/21/2018		Fee Schedule
18-7	3/26/2018	Governmental and Intergovernmental Affairs	Appendix D
18-8	5/2/2018	Governmental and Intergovernmental Affairs	Appendix D

Resolution	Date	Subject	Disposition	Supp. No.
18-9	8/1/2018	Governmental and Intergovernmental Affairs	Appendix D	2
18-10	9/19/2018	Governmental and Intergovernmental Affairs	Appendix D	2
18-11	9/19/2018	Governmental and Intergovernmental Affairs	Appendix D	2
18-12	10/17/2018	Governmental and Intergovernmental Affairs	Appendix D	2
18-13	10/17/2018	Streets and Sidewalks	Appendix H	2

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Resolution	Date	Subject	Disposition	Supp. No.
18-14	11/7/2018	Governmental and Intergovernmental Affairs	Appendix D	2
18-15	12/19/2018	Tax Rate	NCM	2
18-16	12/19/2018	Tax Rate	NCM	2
18-17	12/19/2018	Budget	NCM	2
19-01	1/7/2019	Fee Schedule	NCM	2
19-02	1/7/2019	Governmental and Intergovernmental Affairs	Appendix D	2
19-03	1/7/2019	Governmental and Intergovernmental Affairs	Appendix D	2
19-04	1/7/2019	Governmental and Intergovernmental Affairs	Appendix D	2
19-05	1/7/2019	Governmental and Intergovernmental Affairs	Appendix D	2
19-06	1/7/2019	Governmental and Intergovernmental Affairs	Appendix D	2
19-07	1/7/2019	Governmental and Intergovernmental Affairs	Appendix D	2
19-08	3/20/2019	Governmental and Intergovernmental Affairs	Appendix D	2
19-09	5/15/2019	Governmental and Intergovernmental Affairs	Appendix D	2
19-10	6/5/2019	Governmental and Intergovernmental Affairs	Appendix D	2
19-11	9/4/2019	Plan Approval	Appendix E	2
19-12	9/18/2019	Plan Approval	Appendix E	2
19-13	10/16/2019	Governmental and Intergovernmental Affairs	Appendix D	2

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Resolution	Date	Subject	Disposition	Supp. No.
19-14	12/18/2019	Budget	NCM	2
19-15	12/18/2019	Tax Rate	NCM	2
19-16	12/18/2019	Tax Rate	NCM	2
20-01	1/6/2020	Fee Schedule	NCM	2
20-02	1/6/2020	Governmental and Intergovernmental Affairs	Appendix D	2
20-03	1/6/2020	Governmental and Intergovernmental Affairs	Appendix D	2
20-04	1/6/2020	Governmental and Intergovernmental Affairs	Appendix D	2
20-05	1/6/2020	Governmental and Intergovernmental Affairs	Appendix D	2
20-06	1/6/2020	Governmental and Intergovernmental Affairs	Appendix D	2
20-07	1/6/2020	Governmental and Intergovernmental Affairs	Appendix D	2
20-08	5/20/2020	Governmental and Intergovernmental Affairs	Appendix D	2
20-09	4/1/2020	Governmental and Intergovernmental Affairs	Appendix D	2
20-10	4/1/2020	Governmental and Intergovernmental Affairs	Appendix D	2
20-11	3/25/2020	Governmental and Intergovernmental Affairs	Appendix D	2
20-12	4/1/2020	Governmental and Intergovernmental Affairs	Appendix D	2
20-13	5/20/2020	Governmental and Intergovernmental Affairs	Appendix D	2

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Resolution	Date	Subject	Disposition	Supp. No.
20-14	5/20/2020	Governmental and Intergovernmental Affairs	Appendix D	2
20-15	6/3/2020	Streets and Sidewalks	Appendix H	2
20-16	7/1/2020	Plan Approval	Appendix E	3
20-17	8/5/2020	Plan Approval	Appendix E	3
20-18	8/5/2020	Plan Approval	Appendix E	3
20-19	9/16/2020	Governmental and Intergovernmental Affairs	Appendix D	3
20-20	9/16/2020	Governmental and Intergovernmental Affairs	Appendix D	3
20-21	10/21/2020	Governmental and Intergovernmental Affairs	Appendix D	3
20-22	10/21/2020	Fee Schedule	NCM	3
20-23	11/18/2020	Budget	NCM	3
20-24	11/18/2020	Tax Rate	NCM	3
20-25	11/18/2020	Tax Rate	NCM	3
20-26	12/16/2020	Plan Approval	Appendix E	3
21-01	1/4/2021	Governmental and Intergovernmental Affairs	Appendix D	3
21-02	1/4/2021	Governmental and Intergovernmental Affairs	Appendix D	3
21-03	1/4/2021	Governmental and Intergovernmental Affairs	Appendix D	3
21-04	1/4/2021	Governmental and Intergovernmental Affairs	Appendix D	3
21-05	2/3/2021	Governmental and Intergovernmental Affairs	Appendix D	3

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Resolution	Date	Subject	Disposition	Supp. No.
21-06	2/3/2021	Governmental and Intergovernmental Affairs	Appendix D	3
21-07	2/3/2021	Governmental and Intergovernmental Affairs	Appendix D	3
21-08	2/3/2021	Governmental and Intergovernmental Affairs	Appendix D	3
21-09	2/17/2020	Franchises and Services	Appendix C	3
21-10	5/19/2021	Sewers	Appendix G	3
21-11	6/16/2021	Plan Approval	Appendix E	3
21-12	6/16/2021	Plan Approval	Appendix E	3
21-13	8/4/2021	Plan Approval	Appendix E	4
21-14	9/1/2021	Governmental and Intergovernmental Affairs	Appendix D	4
21-15	11/3/2021	Budget	NCM	4
21-16	11/3/2021	Tax Rate	NCM	4
21-17	11/3/2021	Tax Rate	NCM	4
21-18	11/3/2021	Budget	NCM	4
21-19	12/15/2021	Fee Schedule	NCM	4
22-01	1/3/2022	Governmental and Intergovernmental Affairs	Appendix D	4
22-02	1/3/2022	Governmental and Intergovernmental Affairs	Appendix D	4
22-03	1/3/2022	Governmental and Intergovernmental Affairs	Appendix D	4
22-04	1/3/2022	Governmental and Intergovernmental Affairs	Appendix D	4
22-05	2/22/2022	Governmental and Intergovernmental Affairs	Appendix D	4

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Resolution	Date	Subject	Disposition	Supp. No.
22-06	2/2/2022	Governmental and Intergovernmental Affairs	Appendix D	4
22-07	2/16/2022	Governmental and Intergovernmental Affairs	Appendix D	4
22-08	3/2/2022	Governmental and Intergovernmental Affairs	Appendix D	4
22-09	4/6/2022	Streets and Sidewalks	Apx. H	5
22-10	4/6/2022	Streets and Sidewalks	Apx. H	5
22-11	5/4/2022	Debt and Bond Issues	Apx. B	5
22-12	4/6/2022	Governmental and Intergovernmental Affairs	Apx. D	5
22-13	8/3/2022	Governmental and Intergovernmental Affairs	Apx. D	5
22-14	8/3/2022	Governmental and Intergovernmental Affairs	Apx. D	5
22-15	9/21/2022	Governmental and Intergovernmental Affairs	Apx. D	5
22-16	11/16/2022	Governmental and Intergovernmental Affairs	Apx. D	5
22-17	11/16/2022	Fee Schedule	NCM	5
22-18	11/16/2022	Governmental and Intergovernmental Affairs	Apx. D	5
22-19	12/7/2022	Budget	NCM	5
22-20	12/7/2022	Tax Rate	NCM	5
22-21	12/7/2022	Tax Rate	NCM	5
22-22	12/7/2022	Plan Approval	Apx. E	5

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Resolution	Date	Subject	Disposition	Supp. No.
22-23	12/7/2022	Governmental and Intergovernmental Affairs	Apx. D	5
23-01	1/3/2023	Governmental and Intergovernmental Affairs	Apx. D	5
23-02	1/3/2023	Governmental and Intergovernmental Affairs	Apx. D	5
23-03	1/3/2023	Governmental and Intergovernmental Affairs	Apx. D	5
23-04	1/3/2023	Governmental and Intergovernmental Affairs	Apx. D	5
23-05	1/3/2023	Fee Schedule	NCM	5
23-06	2/15/2023	Plan Approval	Apx. E	6
23-07	6/7/2023	Governmental and Intergovernmental Affairs	Apx. D	6
23-08	6/21/2023	Governmental and Intergovernmental Affairs	Apx. D	6
23-09	8/2/2023	Governmental and Intergovernmental Affairs	Apx. D	6
23-10	9/6/2023	Governmental and Intergovernmental Affairs	Apx. D	6
23-11	9/6/2023	Governmental and Intergovernmental Affairs	Apx. D	6
23-12	9/6/2023	Governmental and Intergovernmental Affairs	Apx. D	6
23-13	9/20/2023	Streets and Sidewalks	Apx. H	7
23-14	9/20/2023	Streets and Sidewalks	Apx. H	7

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Resolution	Date	Subject	Disposition	Supp. No.
23-15	9/20/2023	Governmental and Intergovernmental Affairs	Apx. D	7
23-16	10/4/2023	Governmental and Intergovernmental Affairs	Apx. D	6
23-17	12/6/2023	Budget	NCM	7
23-18	12/6/2023	Tax Rate 2024	NCM	7
23-19	12/6/2023	Tax Rate 2024	NCM	7
23-20	12/6/2023	Plan Approval	Apx. E	7
24-01	1/2/2024	Governmental and Intergovernmental Affairs	Apx. D	7
24-02	1/2/2024	Governmental and Intergovernmental Affairs	Apx. D	7
24-03	1/2/2024	Governmental and Intergovernmental Affairs	Apx. D	7
24-04	1/2/2024	Governmental and Intergovernmental Affairs	Apx. D	7
24-05	1/2/2024	Fee Schedule	NCM	7
24-06	1/2/2024	Plan Approval	Apx. E	7
24-07	2/21/2024	Governmental and Intergovernmental Affairs	Apx. D	7
24-08	3/20/2024	Governmental and Intergovernmental Affairs	Apx. D	7
24-09	4/3/2024	Governmental and Intergovernmental Affairs	Apx. D	8
24-10	5/1/2024	Plan Approval	Apx. E	8
24-11	7/17/2024	Plan Approval	Apx. E	8
24-12	8/7/2024	Governmental and Intergovernmental Affairs	Apx. D	8

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Resolution	Date	Subject	Disposition	Supp. No.
24-13	9/4/2024	Governmental and Intergovernmental Affairs	Apx. D	8
24-14	11/6/2024	Governmental and Intergovernmental Affairs	Apx. D	8
24-15	11/6/2024	Governmental and Intergovernmental Affairs	Apx. D	8
24-16	11/6/2024	Governmental and Intergovernmental Affairs	Apx. D	8
24-17	11/6/2024	Governmental and Intergovernmental Affairs	Apx. D	8
24-18	11/20/2024	Plan Approval	Apx. E	8
24-19	12/4/2024	Budget	NCM	8
24-20	12/4/2024	Tax Rate 2025	NCM	8
24-21	12/4/2024	Taxation; Special	Ch. 24	8
24-22	12/18/2024	Plan Approval	Apx. E	9
25-01	1/6/2025	Governmental and Intergovernmental Affairs	Apx. D	9
25-02	1/6/2025	Governmental and Intergovernmental Affairs	Apx. D	9
25-03	1/6/2025	Governmental and Intergovernmental Affairs	Apx. D	9
25-04	1/6/2025	Governmental and Intergovernmental Affairs	Apx. D	9
25-05	1/6/2025	Fee Schedule	NCM	9
25-06	1/15/2025	Fee Schedule	NCM	9
25-07	1/15/2025	Fee Schedule	NCM	9
25-08	2/5/2025	Plan Approval	Apx. E	9
25-09	4/2/2025	Governmental and Intergovernmental Affairs	Apx. D	10

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Resolution	Date	Subject	Disposition	Supp. No.
25-10	4/2/2025	Sewers	Apx. G	10
25-11	4/2/2025	Sewers	Apx. G	10
25-12	6/4/2025	Governmental and Intergovernmental Affairs	Apx. D	10
25-13	7/2/2025	Governmental and Intergovernmental Affairs	Apx. D	10

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